United States
of America

Congressional Record

PROCEEDINGS AND DEBATES OF THE 113th CONGRESS, SECOND SESSION

Vol. 160 WASHINGTON, THURSDAY, JULY 17, 2014 *No. 112*

House of Representatives

The House met at 9 a.m. and was called to order by the Speaker.

PRAYER

The Chaplain, the Reverend Patrick J. Conroy, offered the following prayer:

Eternal God, we give You thanks for giving us another day.

Strengthen the constitutional commitments of the Members of this people's House in their work today. Guide and sustain them in Your wisdom, and inspire all, especially those in leadership, with the insights needed to assist our Nation at this time.

As the Members return once again to their districts, may their encounters with those whom they represent be fruitful and bring confidence to all that our future as a Nation will be secure and productive.

May all that is done this day be for Your greater honor and glory.

Amen.

THE JOURNAL

The SPEAKER. The Chair has examined the Journal of the last day's proceedings and announces to the House his approval thereof.

Pursuant to clause 1, rule I, the Journal stands approved.

PLEDGE OF ALLEGIANCE

The SPEAKER. Will the gentleman from Illinois (Mr. ENYART) come forward and lead the House in the Pledge of Allegiance.

Mr. ENYART led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

ANNOUNCEMENT BY THE SPEAKER

The SPEAKER. The Chair will entertain up to five requests for 1-minute speeches on each side of the aisle.

SAVE MEDICARE HOME HEALTH ACT

(Mr. THOMPSON of Pennsylvania asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. THOMPSON of Pennsylvania. Mr. Speaker, I rise today as a cosponsor of the Securing Access Via Excellence, or SAVE, Medicare Home Health Act, legislation introduced by my colleagues Mr. WALDEN and Dr. PRICE to replace the cuts to Medicare home health funding under the President's Affordable Care Act with a value-based purchasing program.

Home health care allows the ill and disabled to access essential care services within the home setting and enables our seniors to have more control over health care decisions.

The Affordable Care Act cuts Medicare home health by 14 percent by the year 2017. This will have a devastating impact on a large portion of the 3.5 million Americans who receive these services, including more than 143,000 in Pennsylvania. Of equal concern, these cuts could result in the loss of thousands of jobs for caregivers and health professionals.

The SAVE Medicare Home Health Act will achieve the same level of savings in the Medicare program. Rather than indiscriminately cut this funding, this legislation protects beneficiaries' access to home health by making these services more effective and cost efficient.

I urge my colleagues to cosponsor this legislation. America's seniors deserve as much.

PASSING OF FORMER CONGRESSMAN KEN GRAY

(Mr. ENYART asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. ENYART. Mr. Speaker, today, I rise to commemorate the life of a great southern Illinoisan, a man who knew this Chamber very well, U.S. Congressman Ken Gray.

Kenny's ability to fight for southern Illinois is unmatched, from building interstate highways, Rend Lake, the Marion Federal Penitentiary, to building bridges, countless post offices, and water lines.

Whether convincing President Carter to tour an underground mine or escorting President Kennedy to Carbondale and Marion, Congressman Gray was a one-of-a-kind advocate for southern Illinois.

I counted Kenny among my friends, and he loved serving in this House. We will always remember him as the gentleman whose personality was as colorful as the suits he wore to the Capitol each day.

Colleagues, join me in remembering World War II veteran, Congressman Ken Gray.

Kenny, thank you for your service to your Nation, your State, and to southern Illinois.

PROTECTING OUR DIGITAL ECONOMY

(Mr. PAULSEN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. PAULSEN. Mr. Speaker, it is important to highlight legislation that the House passed this week protecting the future of our digital economy.

The rise of the Internet has been a great American success story. One of the biggest reasons for its success is the fact that the government hasn't needlessly gotten in the way of innovators who have grown the information superhighway to what it is today.

This week, the House passed, with bipartisan overwhelming support, the Permanent Internet Tax Freedom Act to continue to allow the Internet to

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flourish and protect the opportunities that arise with it.

Without this legislation, we will see taxes increased on hardworking Americans and decreased access to the Internet. It is estimated that low-income households would actually bear 10 times the financial load as high-income households just to go online.

Mr. Speaker, the legislation that was voted on this week is as common sense as it comes. I ask and urge the Senate to take action as well so we can protect Internet access from taxation.

NOT MY BOSS' BUSINESS ACT

(Mr. BERA asked and was given permission to address the House for 1 minute.)

Mr. BERA. Mr. Speaker, last month's Supreme Court decision in the Hobby Lobby case is a serious step backwards for women's health. It sets a dangerous precedent where bosses are in control of their employees' health care decisions. And it worries me.

As a doctor, I know that in order for a woman to make the best decision, she needs to sit down and have a conversation with her physician. It is important that we have all options available.

Long-term contraceptive methods like IUDs are often the safest option and up to 20 times more effective than the birth control pill, but upfront costs can make it difficult for some women, particularly low-income women, to afford these methods. Prescription birth control can often cost up to $600 a year, and if women can't afford it, they are more likely to use it in an inconsistent manner.

That is why I am proud to support the not my boss' business act, which ensures that employers can't pick and choose what health services a woman can receive. Health care decisions should be made between a patient and a doctor, not her boss.

ENERGY AND ROADS EQUAL JOBS

(Mrs. CAPITO asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Mrs. CAPITO. Mr. Speaker, the people of West Virginia want to invest in the future of our State and our Nation. We want safe roads and the opportunity to work.

This week, we took steps in the House to invest in our infrastructure and our domestic energy production, actions that will help create and sustain American jobs. On Tuesday, we passed a bill in the House to invest and rehabilitate our Nation's infrastructure. Roads create jobs. Investing in our roads and bridges creates not only construction jobs, but also grows the economy by ensuring reliable interstate commerce and travel.

I have seen firsthand the difference that good infrastructure can make. Whether it is in Berkeley County or U.S. Route 35 in Putnam and Mason Counties, it has helped to grow that local economy.

Yesterday, my bill, the Coal Jobs Protection Act, passed in the House Transportation Committee with bipartisan support. A robust mining industry is not only good for the miners and their families, but good for the businesses who depend on these workers to buy goods and services and good for the communities who depend on those tax dollars.

Investing in our roads and our energy production will create more prosperous times for my State of West Virginia and for our Nation.

HUMANITARIAN CRISIS AT THE BORDER

(Mr. TAKANO asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. TAKANO. Mr. Speaker, I rise today to talk about the humanitarian crisis that is happening at our border.

Since October of last year, more than 50,000 children have fled their homes and turned themselves in to the United States Border Patrol. These children are fleeing extreme violence, extortion, and poverty. As they await their hearings, some are being transported to my district in the Inland Empire.

Several weeks ago, the first wave of buses transporting these children was scheduled to arrive right outside my district. I was disappointed and disturbed to see some of my fellow Americans curse, spit at, and block one of these buses filled with women and children who have endured traumas many of us will never understand.

Mr. Speaker, this is the United States of America. We are a nation of laws and compassion. As this body determines its course of action, we should ensure that every one of these children is taken care of and treated with dignity.

ISRAEL UNDER SIEGE

(Mrs. HARTZLER asked and was given permission to address the House for 1 minute.)

Mrs. HARTZLER. Mr. Speaker, I rise today to highlight the real and present danger that Israel finds itself in today. Quite simply, Israel is under siege.

Hamas has fired over 1,000 rockets in the last few weeks into the country. Millions of Israelis are at risk. Hamas is a designated terrorist organization that calls for the destruction of Israel.

The aggression of Hamas leaves Israel with no choice but to defend its citizens, and we must show that we stand with Israel against unprovoked rocket attacks. Hamas must immediately end the unprovoked attacks and agree to a ceasefire.

In addition, Israel finds itself under siege by the persistent threat of a nuclear Iran. Stringent economic sanctions remain our only peaceful option by which to persuade Iran to suspend its quest for nuclear weapons. However, with the negotiations deadline approaching this Sunday, we must present a credible military threat and strengthen sanctions should Iran not respond to peacefully ending their pursuit.

The last window of opportunity we have to keep Iran from achieving a nuclear weapons capability is soon closing. Preventing Iran from achieving nuclear weapons capabilities is essential. We must stand with Israel.

PEACE NEGOTIATIONS

(Ms. JACKSON LEE asked and was given permission to address the House for 1 minute.)

Ms. JACKSON LEE. Mr. Speaker, this morning, I heard on the radio a Palestinian mother who said: I wish the bombing would stop so that I could get food for my children.

I don't expect that that mother would in any way deny Israeli mothers and fathers from their ability to live in peace.

I rise today to stand with the right of Israel to exist and to defend herself and to call upon the redoubling of peace efforts by the United States to ensure that there is a peace resolution. I also hope that, as Egypt is negotiating a ceasefire, the terrorist group Hamas can be isolated and the people in the Palestinian area in Gaza and the West Bank would come together as one, with Mr. Abbas leading a peaceful region.

It is time now for the unprovoked rockets to stop and for people to come together in a coalition of peace.

I have been to Israel. I have seen the Iron Dome. It is an Iron Dome of protection. I have listened to the President of Israel, who has argued for peace.

Let us stand for peace and the ceasing of the firing of rockets and a negotiation of settlement that is permanent.

WORKERS AT SPINA BIFIDA ASSOCIATION LATEST VICTIMS OF PRESIDENT'S HEALTH CARE LAW

(Mr. ROTHFUS asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. ROTHFUS. Mr. Speaker, Washington, D.C., is increasingly detached from the needs and concerns of western Pennsylvanians.

The Spina Bifida Association of Western Pennsylvania works to improve the quality of life for people with spina bifida and their families by providing much-needed service, education, advocacy, and housing.

Mr. Speaker, I recently visited with the men and women who work there, as well as the residents and program participants of the facilities and programs they operate. The workers are dedicated and caring people, and they do tremendous work.

As of July 1, 2014, Mr. Speaker, the Spina Bifida Association was forced to

discontinue coverage for its 25 full-time employees because President Obama's health care law made it so unaffordable for them to continue—another broken promise of President Obama's oversold health care law.

It is past time for President Obama and his unelected Federal elites to change course and begin pursuing policies that help people and not his out-of-touch and out-of-control Washington, D.C.

□ 0915

NIGERIA

(Mr. JOHNSON of Georgia asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. JOHNSON of Georgia. Mr. Speaker, I rise today to implore this country and the world to direct our attention to the kidnappings of more than 300 young Nigerian women in May and of another eight girls just yesterday.

The leader of the Nigerian Islamist group, Boko Haram, who claims responsibility for the kidnappings, has referred to these young women as ''slaves'' and has threatened to sell them like chattel.

These deplorable actions can only be stopped by bringing the full weight of international condemnation and law enforcement to bear on those responsible and the ideology that they exploit. We must find the perpetrators and combat their backward ideas in the court of public opinion.

Every child has an absolute right to receive an education in a safe and protected environment. We must redouble our efforts to better the lives of people around the world who may be too poor and too isolated to protect themselves. These girls could have been our daughters, our sisters, our nieces, or our friends.

PROVIDING FOR CONSIDERATION OF H.R. 4719, FIGHTING HUNGER INCENTIVE ACT OF 2014

Mr. BURGESS. Mr. Speaker, by direction of the Committee on Rules, I call up House Resolution 670 and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 670

Resolved, That upon adoption of this resolution it shall be in order to consider in the House the bill (H.R. 4719) to amend the Internal Revenue Code of 1986 to permanently extend and expand the charitable deduction for contributions of food inventory. All points of order against consideration of the bill are waived. In lieu of the amendment in the nature of a substitute recommended by the Committee on Ways and Means now printed in the bill, an amendment in the nature of a substitute consisting of the text of Rules Committee Print 113-51 shall be considered as adopted. The bill, as amended, shall be considered as read. All points of order against provisions in the bill, as amended, are waived. The previous question shall be considered as ordered on the bill, as amended, and on any further amendment thereto, to final passage without intervening motion except: (1) one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on Ways and Means; and (2) one motion to recommit with or without instructions.

The SPEAKER pro tempore (Mr. POE of Texas). The gentleman from Texas is recognized for 1 hour.

Mr. BURGESS. Mr. Speaker, for the purpose of debate only, I yield the customary 30 minutes to the gentleman from Florida (Mr. HASTINGS), pending which I yield myself such time as I may consume. During consideration of this resolution, all time yielded is for the purpose of debate only.

GENERAL LEAVE

Mr. BURGESS. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days to revise and extend their remarks.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

There was no objection.

Mr. BURGESS. Mr. Speaker, House Resolution 670 provides for the consideration of a package of tax deductions for charitable contributions to organizations in the form of excess food inventory and conservation easements, as well as authorizing tax-free distributions from individual retirement accounts, lowering the excise tax on private foundations, and extending the date by which taxpayers can make charitable contributions to be considered for a tax deduction. This is a package of policies, each of which has been supported by the overwhelming majorities of both parties.

The rule before us today provides for a closed rule for H.R. 4719, which is the standard rule for tax bills. Of course, the minority will have its customary motion to recommit. This is a straightforward rule.

H.R. 4719, the America Gives More Act of 2014, will benefit the countless numbers of Americans who rely on and utilize charitable organizations in communities throughout the country. A great incentive for many Americans to contribute to those organizations or to contribute in a greater capacity than they otherwise might are the tax deductions that have been made available by the Federal Government. Congress, long ago, decided it was sound public policy to incentivize charitable giving, encouraging citizens to open their pocketbooks and lend a hand to those less fortunate—and Americans are a generous people. Moreover and importantly, today's bill makes these tax provisions permanent so that Americans will not have to worry from year to year whether the tax deductions on which they have come to rely will be available to them that year.

Recently, the House passed a permanent tax credit for corporate research and development. There were 62 Democrats who voted against the measure. Their reasoning, as far as I can tell, was not against the policy but of maintaining that the measure was not paid for. However, pay-fors are something in Congress that we need when we are creating new programs or are allocating money not previously appropriated, essentially making the American people pay more in taxes. The offsets are unnecessary and not needed when we are actually shielding the American people from having their money taken in the first place in the form of a tax.

Moreover, we heard on Tuesday night while in the Rules Committee markup of today's rule—and I suspect we will hear some about it today—the fact that the two tax-related bills before us today in the rule are not paid for. Congress only needs to pay for a tax credit if one subscribes to the belief that all money in our country belongs first to the government, then to the people. I reject this mindset. Congress does not need to justify or pay for not taking more money from the American people. Congress needs to justify and, thus, pay for policies that take money from the American people.

Mr. Speaker, even if you did subscribe to the notion that all money in this country, first and foremost, belongs to the government and that the government has to pay for allowing Americans to keep their money, the exact provisions contained in the America Gives More Act have traditionally not been offset, and Democrats on the Ways and Means Committee, on the Rules Committee, and Democratic leadership have often voted in favor of these same provisions in un-offset legislation in previous years.

In the absence of a larger, comprehensive tax reform package, permanent extenders like these make sense. They bring back stability and certainty to businesses that are constantly having to wait to see if Congress will, in fact, act. I urge my colleagues to vote ''yes'' on the rule and ''yes'' on the underlying bill.

I reserve the balance of my time.

Mr. HASTINGS of Florida. Mr. Speaker, I yield myself such time as I may consume.

(Mr. HASTINGS of Florida asked and was given permission to revise and extend his remarks.)

Mr. HASTINGS of Florida. I thank the gentleman from Texas (Mr. BURGESS) for yielding me the customary 30 minutes.

Mr. Speaker, I rise today in opposition to this rule. The legislation consists of a package of five bills previously reported by the Ways and Means Committee, which would add an estimated $16 billion to the deficit over the next 10 years.

Like every Member of this body, I strongly support charitable giving. I tout the fact in the Rules Committee frequently that I am proud of the fact that I work directly with three food pantries—one that I am extremely proud of that works with grandmothers and grandfathers who are taking care of their children's children and who find great needs. I might add that that

particular charity has seen a diminution, a diminishing, of charitable giving. I might add additionally to that, when I look across the board in my community, I find that charitable giving is down, and I think that is commensurate with the kind of economy that we are in.

I applaud Americans who donate what they can to the causes they care about. I would go as far as to say that I support many of the measures that are in this bill. However, in its present form, I cannot support it. The Republican majority has divided what used to be a complete extenders package into smaller parts, some of which will be debated here today and some of which, I predict, will never reach the floor for debate, certainly not a vote. My friends have managed to make a traditionally nonpartisan and noncontroversial issue both partisan and controversial. The provisions we are debating are not paid for and, yet, are made permanent.

I am afraid that this bill is part and parcel in a pattern of what I perceive as reckless, irresponsible behavior on the part of the majority. Republican inconsistency on fiscal responsibility and the deficit is stunning. Whenever we are considering a bill they like, they are happy to ignore the deficit and waive all of the rules that enforce fiscal discipline; but whenever Republicans don't like a proposal, they hide behind budget rules to block it. On the one hand, they have blocked or delayed everything from extending unemployment insurance, to an SGR doc fix, to emergency hurricane relief, demanding that they are fully offset. Yet, when it comes to tax credits, they waive their own budgeting rules, as they are doing here, and run up the deficit as they are doing here. This bill alone will add an additional $16 billion to the deficit over 10 years. These are the people who continuously decry the fact that we have deficits, and these are the people who continue to say that they are spendthrifts in the sense that they are taking care of the budget. That is just the beginning.

Today, the Ways and Means Committee has reported 12 unpaid-for tax extenders at a cost of $614 billion over 10 years. The House has passed five at a cost of $518 billion over 10 years. I might add this is budget hocus-pocus. It was referred to as ''voodoo economics'' at another point in time. For example, you take something like we did with the highway trust bill earlier, and you pay for it. You spend the money in 6 months, and then you pay for it over a 10-year period of time, which substantially mitigates against what their intent is rather than to do what is needed, and that is a highway infrastructure bill that will give our Nation reassurance with reference to construction measures and make sure our bridges are not falling down and that our roads are safe to drive on.

Look at the bill that we were dealing with last week. My friends threw away another $287 billion, or at least they proposed to. Much of this stuff isn't going anywhere, but they proposed to throw away another $287 billion on an extenders package just like this one. Let me repeat: $287 billion. Now we are going to add another $16 billion to that number. It is as if we are looking for new ways to be dysfunctional.

Instead of creating a stable economy, they are picking and choosing their favorite provisions and are extending them piece by piece. Rather than reforming our Tax Code, they are making it up as they go along. Assuredly, all of us have great respect for our colleagues on both sides of the aisle who have that awesome responsibility of finding the ways and the means to fund this government, and I for one—and I am sure I speak for many—have great respect for DAVE CAMP, the chairman of that committee.

At the beginning of this session, Chairman CAMP proposed tax reform. I might have agreed or disagreed with an awful lot of it, but inside his own Conference, he could not get people who would support meaningful tax reform. Instead, now, in refutation to much of what he had put forward by denying some of these 60-plus extensions—he had said that many of them should not be in the measure—they come and cherry-pick and get the ones that they want and put them here rather than reform this Tax Code.

Is there anybody in this country, in this Congress, in the House, or in the Senate who believes that the Tax Code is fair and simple for everybody—business and/or Americans? No. They are making it up as they go along—a tax extender here, a tax extender there, something I like here, and I don't like that over there.

Let me tell you what we should be doing. We should be passing bills that create jobs in this country.

□ 0930

We should be repairing our infrastructure, and all of us know this.

When I came to Congress in 1992, then-President Bill Clinton identified—and we agreed—that there were 14,000 bridges in America that were in need of repair, but now, what we find is that there are substantially more bridges, and some have fallen down in that period of time, and yet, we are piecemealing the transportation issue, kicking the can down the road.

I commented in the Rules Committee some time back, this kicking the can down the road concept, if it were an Olympic sport, then Congress would not only get gold and bronze and silver, they would also get aluminum because they are real good at kicking the can.

We should be passing bills that tackle comprehensive immigration reform. Is there anybody, including all of the don't come here people that are out there shouting at children—in many instances—and mothers and people who don't speak our language, that have undertaken the most unreasonable, for any of us, journey to try to get to a better life for themselves—and people standing there, shouting at them, rather than collecting ourselves as a sensible country—of immigrants, I might add—and allow, among other things that we try to do, not just comprehensive immigration reform, indeed, we should do border security.

We have to have clarity, not only for those who may seek to come here, but for all of us. We need clarity as it pertains to immigration.

Will they put it on the floor just for a vote? No. It will not happen, and yet, we will see this piecemeal, and we will see this back and forth some time next week.

The President proposes $3.7 billion. Someone on the other side said that is too much money. The President says we need more judges and more lawyers, and we need lawyers on both sides I maintain, and yet, we find ourselves in the position of not being able to do anything and not doing it hurriedly enough.

We have this crisis on our border, which doesn't even come close to rivaling the many issues that are developing in the world, from Ukraine to Israel to Yemen, back across the board to Syria, and countless other places, our relationships are in jeopardy, and all of it is placed at the hands, if you let these people tell it, of Barack Obama.

Many of the issues that are developing developed over periods of time, and they largely did so because this Congress does not have the courage to stand up and do the things that are vitally necessary for all of America, Republican and Democrat, conservative and liberal. The needs are great, and we are doing very little of anything at all.

We have 10 more days until we go on recess to campaign, and when we do go on recess to campaign, that will be for the whole month of August. Then we will come back here a few weeks in September, and we will be gone the whole month of October.

What in the world would stop us then from having the time and the necessity to sit down together in a bipartisan way and come up with what is needed for immigration reform in this country?

We have 3.3 million people—after the expiration of the unemployment insurance measures in this country in the month of December, we now number 3.3 million people out of work, in the cold, and that has cost the economy more than $10 billion.

Of those 3.3 million people, I remind my friends who stand up here with their patriotic notions that they espouse, and I believe they believe in our troops. We are fond of saying that around here.

I believe they believe that we should be secure, as do I, with reference to our military, but 300,000 of those people that are unemployed are veterans, not to mention all of the problems at the veterans hospitals that we need to attend to, rather than finger-pointing

and trying to find measures to beat each other down, rather than try to lift America up.

House Republicans have found time to sue President Obama for doing his job, but we haven't found time to pass these important bills.

I said humorously, before I began to hear it often, that if President Obama is going to be sued by the Speaker for doing something, then I want to participate in the lawsuit against the Speaker for doing nothing.

We can try to appease the most extreme end of the Republican Party, but we can't pass the laws that address the challenges facing Americans all across this Nation, and for this dereliction of duty, maybe somebody should consider when we are talking about a lawsuit—what I said humorously—really considering suing this institution and its Speaker for not doing those things that are a few that I have identified.

In yesterday's hearing in the Rules Committee, I ended my remarks—and we had outstanding witnesses, experts in this area, ranging from Elizabeth Foley, from Florida International University; to Jonathan Turley, from George Washington University; Simon Lazarus, from the Constitutional group; and Walter Dellinger—all of them—at least three of them being extremely experienced in the subject matter and each of them addressing the subject of standing, as I did, in asking them questions at different times.

Most of us know that this lawsuit is not likely to go anywhere, and at some point, all of the witnesses agreed that there are challenges ahead with reference to this lawsuit, and all of them knew and know that there is absolutely no precedent for this action, none.

There is a case, McClure v. Carter, that has some similarities, but even that one did not cross the threshold that is needed. I did end my comments by saying that I was being partisan, and I will end this portion of my comments by saying I am being partisan.

These are the people that for the 52 years, nearly, that I am a lawyer, that have argued against frivolous lawsuits. If there was ever a frivolous lawsuit, then the one that is proposed to be filed by the Speaker of this House gives frivolous new meaning. It is indeed just that.

Mr. Speaker, I reserve the balance of my time.

Mr. BURGESS. Mr. Speaker, I reserve the balance of my time.

Mr. HASTINGS of Florida. Mr. Speaker, on this matter, the administration, as it is wont to do, filed administration policy. We refer to them in our committees and around the House as a SAP.

What the administration said is the following:

> The administration supports measures that enhance nonprofits, philanthropic organizations, and faith-based and other community organizations in their many roles, including as a safety net for those most in need, an economic engine for job creation, a tool for environmental conservation that encourages land protections for current and future generations, and an incubator of innovation to foster solutions to some of the Nation's toughest challenges. The President's budget includes a number of proposals that would enhance and simplify charitable giving incentives for many individuals.

I am going to come back to this, but before we go forward, if we defeat the previous question, I will offer an amendment to the rule that would give Members a second opportunity this week to consider reversing the damage done by the recent Hobby Lobby Supreme Court decision.

No employer should have the right to limit the health choices of its employees, male or female. It is pure discrimination when 99 percent of women in this country have used some form of birth control during their lifetime, but to now have to literally go through unreasonable measures to simply secure the fundamental health care they need.

To discuss our proposal, I yield 3 minutes to the distinguished gentlewoman from Massachusetts (Ms. CLARK).

Ms. CLARK of Massachusetts. Mr. Speaker, Justice Ruth Bader Ginsburg, Justice Sonia Sotomayor, Justice Elena Kagan, our three women Justices stood unanimously against the Court's decision in the Hobby Lobby case.

They sit on the highest court in the Nation, and by no coincidence, the three women's dissent is representative of what I heard from the women I talked to in my district.

I asked women at home to send me in three words how they feel about the Court's decision. This is what they shared with me: Jennifer from Melrose, sad, disappointing, disturbing; Anna from Framingham, backwards, scary, hurtful; Jeanine from Waltham, disgusted, wrong, outraged; Susan from Cambridge, need more Ginsburgs.

The Court's decision to strike down women's access to basic health care is only the latest in systemic efforts to unwind the progress women have made.

Why aren't we demanding equal pay for women from our employers, rather than giving a woman's boss the right to make the most personal health care decisions for her and her family?

Congress has an obligation to correct this course. The amendment and the Protect Women's Health From Corporate Interference Act makes certain that a woman's boss does not interfere in her basic health care. It simply affirms that when the law provides for insurance companies to cover basic health care for all, all people are entitled to that health care, period.

Mr. BURGESS. Mr. Speaker, I reserve the balance of my time.

Mr. HASTINGS of Florida. Mr. Speaker, I am very pleased at this time to yield 3 minutes to the distinguished gentleman from California (Mr. BERA), a good friend who serves on the Foreign Affairs Committee.

Mr. BERA of California. Mr. Speaker, I rise today to speak to this body about the outrageous Supreme Court decision, the Hobby Lobby case.

I look at this, not as a Member of Congress, but as a doctor. Now, in my training, we took an oath. That oath was to put our patients first, to do good.

My core job as a doctor is to sit with my patients, answer her questions, talk about the risks and benefits and the various options that are available, but then to empower my patients to make the decisions that best fit their lives.

To women, there is no greater decision than when to start a family, when to become a mother, and that is why protecting those reproductive rights and reproductive options are so important. That is core to our oath as physicians, and that is why the Supreme Court's decision on Hobby Lobby was so outrageous.

We have got to fight against this encroachment of the government or the Justices in the Supreme Court coming into my exam room and getting between me and my patients. That is outrageous. It is an affront to individual liberties. It is an affront to what we do as doctors.

It is not just me speaking. This is doctors all across America. The American Congress of OB/GYNs calls this ruling outrageous.

□ 0945

We need to have all options available. But what am I to do now if a Hobby Lobby employee comes to me as a patient, sits down and says: You know, I am not ready to start a family at this juncture. I would like to know what my contraceptive options are; I would like to know what some of the safest methods are.

Well, IUDs often are 20 times more effective and are extremely safe, but the Supreme Court has now made that option unavailable for me. They didn't go to medical school. I did. As a doctor, it is my oath to provide all those options.

Now, others might say, well, that patient can still choose to get it. The reason people have health insurance is because they want to have health care available when it is necessary. What if that patient can't afford that health care option? For many patients, hourly workers, often contraception can cost up to $600 a year. They are not able to afford it. That is why this is such an outrageous decision. We have got to keep the government and the Supreme Court out of our exam room.

And it is even more personal than that. I am a husband and I am a father. I want my daughter to grow up in a country where she is in control of her health care decisions, where she is in control of her body.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. HASTINGS of Florida. I yield the gentleman an additional 30 seconds.

Mr. BERA of California. So as a doctor, as a father of a daughter, I am

proud to support the not my boss' business act because it puts patients back in charge of their health care decisions. We, as a country, prize individual liberties and individual freedoms above all. So this gives those decisions back to the patients.

Mr. BURGESS. I reserve the balance of my time.

Mr. HASTINGS of Florida. Mr. Speaker, I am very pleased at this time to yield 3 minutes to the distinguished gentleman from New York (Mr. NADLER), my classmate and good friend.

Mr. NADLER. I thank the gentleman for yielding.

Mr. Speaker, I rise today to urge my colleagues to vote ''no'' on the previous question in order to bring the Protect Women's Health from Corporate Interference Act to the floor.

In 1993, I was a leader in passing the Religious Freedom Restoration Act, or RFRA. If you had told me then that RFRA would one day be used to allow employers to dictate to employees what preventive health care they can or cannot use, if you had told me then that I would stand on the House floor in 2014 fighting to ensure that women have the ability to make their own most basic health care decisions regardless of their boss' religious beliefs, I would never have believed it.

We wrote that bill to be a shield to protect an individual's personal exercise of religious beliefs, not a sword to enable employers to impose their religious beliefs on their employees.

No matter how sincerely held a religious belief might be, for-profit employers, like Hobby Lobby or Conestoga Wood, must not be allowed to impose their beliefs or that belief on their employees as a means of denying their employees access to critical preventive health care services.

I was proud to work with the gentlewoman from Colorado (Ms. DEGETTE) and the gentlewoman from New York (Ms. SLAUGHTER) to introduce this simple legislation to ensure that, notwithstanding the Supreme Court's mangling of RFRA, employers cannot deny their employees access to federally mandated health services.

Every woman must have the right to follow her own beliefs and guidance when making health care choices. This bill simply guarantees that the boss' beliefs cannot supersede that right.

I was disappointed to see that none of my colleagues on the other side of the aisle voted earlier this week to bring this bill to the floor. I urge them to stand with us today or else, when they go home this weekend, to tell the men and women of their districts that their health care decisions are now going to be made for them by their bosses, regardless of their own choices, regardless of their own religious beliefs or the doctor's recommendations; and tell them that you believe that their boss' religious beliefs must be imposed on them, notwithstanding their own religious beliefs, which don't count; and tell them you did nothing to stop this.

This country will not stand for that. We have fought for too long to preserve the right of all Americans to make their own health care choices and, I must add, to make their own religious decisions to refuse to act now.

I urge all of my colleagues to vote ''no'' on the previous question, allow this bill to come to the floor, and send a strong message that health care choices are not your boss' business and that your religious beliefs trump your boss' religious beliefs.

Your boss has a right to his beliefs. You have a right to your beliefs. Government must not allow him to impose his beliefs on you.

Mr. BURGESS. Mr. Speaker, I reserve the balance of my time.

Mr. HASTINGS of Florida. Mr. Speaker, I yield myself such time as I may consume.

I am a proud cosponsor of the measure that was just spoken to, and I am very pleased that my colleague came here to speak on it.

Rather than read the entirety of the Statement of Administration Policy at this time, I will submit that statement for the RECORD.

STATEMENT OF ADMINISTRATION POLICY

H.R. 4719—AMERICA GIVES MORE ACT OF 2014

(Rep. Reed, R-New York, and 9 cosponsors, July 17, 2014)

The Administration supports measures that enhance non-profits, philanthropic organizations, and faith-based and other community organizations in their many roles, including as a safety net for those most in need, an economic engine for job creation, a tool for environmental conservation that encourages land protections for current and future generations, and an incubator of innovation to foster solutions to some of the Nation's toughest challenges. The President's Budget includes a number of proposals that would enhance and simplify charitable giving incentives for many individuals.

However, the Administration strongly opposes House passage of H.R. 4719, which would permanently extend three current provisions that offer enhanced tax breaks for certain donations and add another two similar provisions without offsetting the cost. If this same, unprecedented approach of making certain traditional tax extenders permanent without offsets were followed for the other traditional tax extenders, it would add $500 billion or more to deficits over the next ten years, wiping out most of the deficit reduction achieved through the American Taxpayer Relief Act of 2013. Just two months ago, House Republicans themselves passed a budget resolution that required offsetting any tax extenders that were made permanent with other revenue measures.

As with other similar proposals, Republicans are imposing a double standard by adding to the deficit to continue and create tax breaks that primarily benefit higher-income individuals, while insisting on offsetting the proposed extension of emergency unemployment benefits and the discretionary funding increases for defense and non-defense priorities such as research and development in the Bipartisan Budget Act of 2013. House Republicans also are making clear their priorities by rushing to make these tax cuts permanent without offsets even as the House Republican budget resolution calls for raising taxes on 26 million working families and students by letting important improvements to the Earned Income Tax Credit, Child Tax Credit, and education tax credits expire.

The Administration wants to work with Congress to make progress on measures that strengthen America's social sector. However, H.R. 4719 represents the wrong approach.

If the President were presented with H.R. 4719, his senior advisors would recommend that he veto the bill.

Mr. HASTINGS of Florida. Now, there is something else we need to discuss about this rule. Once again, we are debating a closed rule.

When I came to Congress, I was listening on the radio. I didn't know very much about rules. And a part of why Democrats in the majority lost, in my opinion, was the harangue that was going on on the radio about closed rules.

Well, I came here, and I wound up on the Rules Committee, and now I know a little bit about closed rules. I also know that we have set an all-time record in the history of the United States Congress, for now, in this particular rule that is before the House of Representatives, the 65th time this session, we are going to have a closed rule. What that means, America, is that your Representative on either side will not have an opportunity to offer an amendment to this measure with reference to tax extenders. This is the most closed rules that this Congress has considered ever, and I expect we are not finished yet and that the number of closed rules will continue to grow.

We started the 113th session with a pledge of transparency and openness from the Speaker of the House, but that has fallen by the wayside, and it has done so in historic proportion. Enough already. The majority should do the responsible thing and bring up bills that actually matter, bills that will address the many challenges facing this country, challenges, as I have pointed out before, about our crumbling infrastructure and, most importantly, creating jobs, even as it pertains to immigration reform.

Everyone who looks at that measure that says, if we had clear immigration policy, whether it was dealing with H–1B visas, whether it was dealing with farmworkers, whatever the measure, that it would increase our revenue in this country and enhance our overall economic circumstances.

Mr. Speaker, I ask unanimous consent to insert the text of the amendment in the RECORD along with extraneous material immediately prior to the vote on the previous question.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Florida?

There was no objection.

Mr. HASTINGS of Florida. Mr. Speaker, I urge my colleagues to vote ''no'' to defeat the previous question. I urge a ''no'' vote on this 65th closed rule, and I yield back the balance of my time.

Mr. BURGESS. Mr. Speaker, I yield myself the balance of my time.

Mr. Speaker, let me try to take some of these points in order that we have heard over the last 45 minutes.

The gentleman talks about tax reform. I hope that means that he is prepared to join me on H.R. 1040, a measure that would provide a flat tax to the citizens of the United States. There is no more egregious function that most of us have to deal with every year than dealing with the IRS.

Unfortunately, because of the actions of the administration, the IRS now stands in ill favor with a majority of Americans. The President, himself, promised in 2013 that he would get to the bottom of the problems in the IRS and that he would get them corrected. I believe that he should. This is the agency with which we all have to deal every year. No one likes the taxman, but it is imperative that the American people have the confidence in the agency that is tasked with collecting their taxes.

On the issue of the VA, it is in conference. We will hear from them. Is the VA going to require a higher appropriation than we gave a few weeks ago? Perhaps. But I would also like to see the new administrator, the new Secretary of the VA be able to discharge people from his employment if they have, in fact, acted in bad faith.

I must have missed the firings that have occurred at the VA amongst the Senior Executive Service. I am not even talking about political appointees. I am talking about people who are lifers within the VA who seem perfectly content to continue business as usual. You are not going to fix that problem if you just pump more taxpayer money into the system. I wouldn't disagree that more money may be necessary at the VA, but we do have to fix the problem that is endemic in the agency if we don't expect the same result to be clearly evident in 2 or 3 years' time.

Let me just talk briefly about the issue that came up about the Supreme Court decision. Unlike Mr. NADLER, I was not here in 1993 and 1994. I was not part of the Congress that passed the Religious Freedom Restoration Act, but many of the same people who wrote and voted for and defended the Affordable Care Act, the cast of characters is remarkably similar. In fact, the gentleman from New York, Senator SCHUMER, when he was a Member of the House, was, I believe, the lead sponsor of that, and he is now in the Senate. The majority leader in the Senate was a ''yes'' vote on the Religious Freedom Restoration Act.

So this is a law that was written by Democratic sponsors in a Democratic-controlled House, signed by a Democratic President. How could they not know? How could they not know of its existence when they were writing the Affordable Care Act?

Ms. JACKSON LEE. Will the gentleman yield?

Mr. BURGESS. Let me continue with this thought, and if there is time, I will consider yielding to the gentlewoman from Texas.

Now, while they were crafting the Affordable Care Act, they were fully cognizant of the same restrictions they had written into law in the Religious Freedom Restoration Act. The Supreme Court simply looked at the facts and said that a Federal agency—in this case, the Department of Health and Human Services—in a rulemaking activity cannot negate a law that was passed by the people's representatives in the Congress. I think that is as it should be.

If there was anything, there were drafting errors in the Affordable Care Act. I have spoken about that time and again. But why weren't the same people who were tasked with writing the Religious Freedom Restoration Act, why weren't they watchful while they were writing their own health care law?

Now, let's talk for just a minute about the Hobby Lobby decision. The first thing—and it is important to stress this—no FDA-approved contraceptive that was available to women before the decision is unavailable after the decision. The Court simply said that the government cannot force a citizen to violate his or her religious beliefs paying for medicine that a citizen believes takes a life. No employer before or after Hobby Lobby can prevent a woman from purchasing any contraceptive that is currently available.

We also heard criticism from the minority that the House was doing other things than doing its work. I would just point out that the House is doing its work. Forty jobs bills have passed this House and are sitting, waiting for activity over in the Senate. And we saw how quickly the SKILLS Act, after the Senate renamed it and it came back to the House, how quickly it got to the President's desk. So the fact that the bills are over there waiting is a problem of the other body. It is not a problem of the House. The House has been doing its work.

Yesterday we passed the Financial Services Appropriations bill. Mr. Speaker, I would ask rhetorically: When was the last time that the House passed the Financial Services Appropriations bill? It was 2007, the first year that the Democrats had taken over the majority. We haven't seen an appropriations bill for Financial Services in—what?—5 years' time. This was a landmark achievement yesterday.

Let's look for just a moment at the number of amendments that have been heard under open rules. On appropriations bills this year, we are through seven appropriations bills as we sit here in the middle of July. That is a significant achievement in and of itself. There have been 395 amendments heard to appropriations bills. That hardly sounds like a closed process. There have been 210 Republican amendments, 185 Democratic amendments, and that was exclusive of yesterday's passed appropriations bill.

So I don't think you can rationally make the argument that the House is not doing its work and that, as we go through the appropriations process, it is not open.

□ 1000

I have some other things that I want to say about the deficit, but I will be happy to yield 1 minute to the gentlewoman from Texas (Ms. JACKSON LEE).

Ms. JACKSON LEE. I thank the gentleman for yielding for just a moment because this is a colleague from Texas, and there are many issues that we have agreed on with respect to Texas.

I might say to you that I am a strong proponent of religious liberty. You had mentioned Hobby Lobby in terms of some of the issues you were discussing. I think I have stood fast on that question. I only raise the point, and you made the point that anything that was approved pre-Hobby Lobby by the FDA, but in actuality we know that, just from the religious liberty point of view, this is a slippery slope because it pits the large entity against the individual rights, and we know under our Constitution that the very premise of religious freedom is the idea that there is no pronounced, structured religious plan in place that denies me my freedom. And that is what you have done to women as it relates—when I say ''you,'' excuse me—that is what the decision has done. It has made the boss in charge of an individual.

I would just make the argument we can stand for religious liberty, but we must stand for it not only for corporations but for individuals such as women who use contraception for health care, Doctor. And you know that that happens. You are certainly very much an experienced medical professional. I would just make the argument that I can't imagine in the course of your medical history that you have not seen women who need contraception for health care.

The other point that I would just finish on is that, as I indicated on the question of a slippery slope, how else can a corporation suggest that I am, because of my needs, infringing upon their religious liberty? I am obviously going to be disadvantaged because, in essence, I am a minority of one. I am an employee. I am scared for my job. But I need to be able to express my religious freedom, and it may infringe upon someone else's. Let us be careful about this. And I frankly hope——

Mr. BURGESS. Mr. Speaker, I need to reclaim my time. Mr. Speaker, slippery slopes work both ways, and those people who are worried about laws that would require the ending of life are worried about that slippery slope as well.

I would just reiterate the point: no contraceptive that was previously available is now unavailable because of the Hobby Lobby decision. If there are problems in the way the law was written, I would remind people it was a Democratic Congress and a Democratic

President who signed the Religious Freedom Restoration Act, and it was a Democratic Congress and a Democratic President that signed the Affordable Care Act. They perhaps should have taken better care in writing their law.

We had the hearing yesterday in the Rules Committee about the President taking care that the laws are faithfully executed. Perhaps we ought to have a faithful writing of the laws, as well.

Mr. Speaker, today's rule provides for consideration of the America Gives More Act of 2014, making permanent the tax deductions for charitable contributions to food banks and conservation easements, and allowing for tax-free IRA deductions. It is a sound public policy, and I am certainly grateful to my colleague from New York (Mr. REED) for writing this legislation, which will have a positive impact on the countless charities in this country which provide such critical services to our neighbors in need.

The material previously referred to by Mr. HASTINGS of Florida is as follows:

AN AMENDMENT TO H. RES. 670 OFFERED BY MR. HASTINGS OF FLORIDA

At the end of the resolution, add the following new sections:

SEC. 2. Immediately upon adoption of this resolution the Speaker shall, pursuant to clause 2(b) of rule XVIII, declare the House resolved into the Committee of the Whole House on the state of the Union for consideration of the bill (H.R. 5051) to ensure that employers cannot interfere in their employees' birth control and other health care decisions. All points of order against consideration of the bill are waived. General debate shall be confined to the bill and shall not exceed one hour equally divided among and controlled by the chair and ranking minority member of the Committee on Education and the Workforce, the chair and ranking minority member of the Committee on Energy and Commerce, and the chair and ranking minority member of the Committee on Ways and Means. After general debate the bill shall be considered for amendment under the five-minute rule. All points of order against provisions in the bill are waived. At the conclusion of consideration of the bill for amendment the Committee shall rise and report the bill to the House with such amendments as may have been adopted. The previous question shall be considered as ordered on the bill and amendments thereto to final passage without intervening motion except one motion to recommit with or without instructions. If the Committee of the Whole rises and reports that it has come to no resolution on the bill, then on the next legislative day the House shall, immediately after the third daily order of business under clause 1 of rule XIV, resolve into the Committee of the Whole for further consideration of the bill.

SEC. 3. Clause 1(c) of rule XIX shall not apply to the consideration of H.R. 5051.

THE VOTE ON THE PREVIOUS QUESTION: WHAT IT REALLY MEANS

This vote, the vote on whether to order the previous question on a special rule, is not merely a procedural vote. A vote against ordering the previous question is a vote against the Republican majority agenda and a vote to allow the Democratic minority to offer an alternative plan. It is a vote about what the House should be debating.

Mr. Clarence Cannon's Precedents of the House of Representatives (VI, 308–311), describes the vote on the previous question on the rule as ''a motion to direct or control the consideration of the subject before the House being made by the Member in charge.'' To defeat the previous question is to give the opposition a chance to decide the subject before the House. Cannon cites the Speaker's ruling of January 13, 1920, to the effect that ''the refusal of the House to sustain the demand for the previous question passes the control of the resolution to the opposition'' in order to offer an amendment. On March 15, 1909, a member of the majority party offered a rule resolution. The House defeated the previous question and a member of the opposition rose to a parliamentary inquiry, asking who was entitled to recognition. Speaker Joseph G. Cannon (R–Illinois) said: ''The previous question having been refused, the gentleman from New York, Mr. Fitzgerald, who had asked the gentleman to yield to him for an amendment, is entitled to the first recognition.''

The Republican majority may say ''the vote on the previous question is simply a vote on whether to proceed to an immediate vote on adopting the resolution . . . [and] has no substantive legislative or policy implications whatsoever.'' But that is not what they have always said. Listen to the Republican Leadership Manual on the Legislative Process in the United States House of Representatives, (6th edition, page 135). Here's how the Republicans describe the previous question vote in their own manual: ''Although it is generally not possible to amend the rule because the majority Member controlling the time will not yield for the purpose of offering an amendment, the same result may be achieved by voting down the previous question on the rule. . . . When the motion for the previous question is defeated, control of the time passes to the Member who led the opposition to ordering the previous question. That Member, because he then controls the time, may offer an amendment to the rule, or yield for the purpose of amendment.''

In Deschler's Procedure in the U.S. House of Representatives, the subchapter titled ''Amending Special Rules'' states: ''a refusal to order the previous question on such a rule [a special rule reported from the Committee on Rules] opens the resolution to amendment and further debate.'' (Chapter 21, section 21.2) Section 21.3 continues: ''Upon rejection of the motion for the previous question on a resolution reported from the Committee on Rules, control shifts to the Member leading the opposition to the previous question, who may offer a proper amendment or motion and who controls the time for debate thereon.''

Clearly, the vote on the previous question on a rule does have substantive policy implications. It is one of the only available tools for those who oppose the Republican majority's agenda and allows those with alternative views the opportunity to offer an alternative plan.

Mr. BURGESS. Mr. Speaker, I yield back the balance of my time, and I move the previous question on the resolution.

The SPEAKER pro tempore. The question is on ordering the previous question.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. HASTINGS of Florida. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 and clause 9 of rule XX, this 15-minute vote on ordering the previous question will be followed by 5-minute votes on adopting House Resolution 670, if ordered, and adopting the motion to instruct on H.R. 3230.

The vote was taken by electronic device, and there were—yeas 226, nays 186, not voting 20, as follows:

[Roll No. 428]

YEAS—226

Aderholt
Amash
Amodei
Bachmann
Bachus
Barletta
Barr
Barton
Benishek
Bentivolio
Bilirakis
Bishop (UT)
Black
Blackburn
Boustany
Brady (TX)
Bridenstine
Brooks (AL)
Brooks (IN)
Broun (GA)
Buchanan
Bucshon
Burgess
Calvert
Camp
Cantor
Capito
Carter
Cassidy
Chabot
Chaffetz
Clawson (FL)
Coble
Coffman
Cole
Collins (GA)
Collins (NY)
Conaway
Cook
Cotton
Cramer
Crawford
Crenshaw
Culberson
Daines
Davis, Rodney
Denham
Dent
DeSantis
Diaz-Balart
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Griffin (AR)
Griffith (VA)
Grimm
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Heck (NV)
Hensarling
Herrera Beutler
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (OH)
Johnson, Sam
Jolly
Jones
Jordan
Joyce
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
LaMalfa
Lamborn
Lance
Lankford
Latham
Latta
Lipinski
LoBiondo
Long
Lucas
Luetkemeyer
Lummis
Marchant
Marino
Massie
McAllister
McCarthy (CA)
McCaul
McClintock
McHenry
McIntyre
McKeon
McKinley
McMorris Rodgers
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Noem
Nugent
Nunes
Olson
Palazzo
Paulsen
Pearce
Perry
Peterson
Petri
Pittenger
Pitts
Poe (TX)
Pompeo
Posey
Price (GA)
Rahall
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross
Rothfus
Royce
Runyan
Ryan (WI)
Salmon
Sanford
Scalise
Schock
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stewart
Stockman
Stutzman
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walorski
Weber (TX)
Webster (FL)
Wenstrup
Westmoreland
Williams
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Yoho
Young (IN)

NAYS—186

Barber
Barrow (GA)
Bass
Beatty
Becerra
Bera (CA)
Bishop (GA)
Bishop (NY)
Blumenauer
Bonamici
Brady (PA)
Braley (IA)
Brown (FL)
Brownley (CA)
Bustos

Butterfield
Capps
Capuano
Cárdenas
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu
Cicilline
Clark (MA)
Clay
Cleaver
Clyburn
Cohen
Connolly
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
Deutch
Dingell
Doggett
Doyle
Duckworth
Edwards
Ellison
Engel
Enyart
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Garcia
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hastings (FL)
Heck (WA)
Higgins
Himes
Hinojosa
Holt
Honda
Horsford
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lewis
Loebsack
Lofgren
Lowenthal
Lowey
Lynch
Maffei
Maloney, Carolyn
Maloney, Sean
Matheson
Matsui
McCarthy (NY)
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Michaud
Miller, George
Moore
Moran
Murphy (FL)
Nadler
Napolitano
Neal
Negrete McLeod
Nolan
O'Rourke
Owens
Pallone
Pascrell
Pastor (AZ)
Payne
Pelosi
Perlmutter
Peters (CA)
Peters (MI)
Pingree (ME)
Pocan
Polis
Price (NC)
Quigley
Rangel
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sanchez, Loretta
Schakowsky
Schiff
Schneider
Schrader
Schwartz
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Shea-Porter
Sherman
Sinema
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Tierney
Titus
Tonko
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters
Waxman
Welch
Wilson (FL)
Yarmuth

NOT VOTING—20

Byrne
Campbell
Carney
Clarke (NY)
Conyers
DesJarlais
Hanabusa
Kingston
Labrador
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Miller, Gary
Nunnelee
Sánchez, Linda T.
Sarbanes
Simpson
Sires
Stivers
Whitfield
Young (AK)

□ 1031

Mr. CICILLINE and Ms. PELOSI changed their vote from ''yea'' to ''nay.''

Messrs. KINZINGER, FORBES, PETERSON, ADERHOLT, and Mrs. HARTZLER changed their vote from ''nay'' to ''yea.''

So the previous question was ordered.

The result of the vote was announced as above recorded.

Stated against:

Ms. CLARKE of New York. Mr. Speaker, on rollcall No. 428 I was unavoidably detained. Had I been present, I would have voted ''no.''

The SPEAKER pro tempore. The question is on the resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

RECORDED VOTE

Mr. HASTINGS of Florida. Mr. Speaker, I demand a recorded vote.

A recorded vote was ordered.

The SPEAKER pro tempore. This is a 5-minute vote.

The vote was taken by electronic device, and there were—ayes 230, noes 183, not voting 19, as follows:

[Roll No. 429]

AYES—230

Aderholt
Amash
Amodei
Bachmann
Bachus
Barber
Barletta
Barr
Barton
Benishek
Bentivolio
Bilirakis
Bishop (UT)
Black
Blackburn
Boustany
Brady (TX)
Bridenstine
Brooks (AL)
Brooks (IN)
Broun (GA)
Buchanan
Bucshon
Burgess
Calvert
Camp
Cantor
Capito
Carter
Cassidy
Chabot
Chaffetz
Clawson (FL)
Coble
Coffman
Cole
Collins (GA)
Collins (NY)
Conaway
Cook
Cotton
Cramer
Crawford
Crenshaw
Culberson
Daines
Davis, Rodney
Denham
Dent
DeSantis
Diaz-Balart
Duffy
Duncan (SC)
Ellmers
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Griffin (AR)
Griffith (VA)
Grimm
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Heck (NV)
Hensarling
Herrera Beutler
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (OH)
Johnson, Sam
Jolly
Jones
Jordan
Joyce
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Labrador
LaMalfa
Lamborn
Lance
Lankford
Latham
Latta
LoBiondo
Long
Lucas
Luetkemeyer
Lummis
Marchant
Marino
Massie
McAllister
McCarthy (CA)
McCaul
McClintock
McHenry
McIntyre
McKeon
McKinley
McMorris Rodgers
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Mullin
Mulvaney
Murphy (FL)
Murphy (PA)
Neugebauer
Noem
Nugent
Nunes
Olson
Owens
Palazzo
Paulsen
Pearce
Perry
Petri
Pittenger
Pitts
Poe (TX)
Pompeo
Posey
Price (GA)
Rahall
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross
Rothfus
Royce
Runyan
Rush
Ryan (WI)
Salmon
Sanford
Scalise
Schock
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Sinema
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stewart
Stockman
Stutzman
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walorski
Weber (TX)
Webster (FL)
Wenstrup
Westmoreland
Williams
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IN)

NOES—183

Barrow (GA)
Bass
Beatty
Becerra
Bera (CA)
Bishop (GA)
Bishop (NY)
Blumenauer
Bonamici
Brady (PA)
Braley (IA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
Deutch
Dingell
Doggett
Doyle
Duckworth
Edwards
Ellison
Engel
Enyart
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Garcia
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hastings (FL)
Heck (WA)
Higgins
Himes
Hinojosa
Holt
Honda
Horsford
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Lee (CA)
Levin
Lewis
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lynch
Maffei
Maloney, Carolyn
Maloney, Sean
Matheson
Matsui
McCarthy (NY)
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Michaud
Miller, George
Moore
Moran
Nadler
Napolitano
Neal
Negrete McLeod
Nolan
O'Rourke
Pallone
Pascrell
Pastor (AZ)
Payne
Pelosi
Perlmutter
Peters (CA)
Peters (MI)
Peterson
Pingree (ME)
Pocan
Polis
Price (NC)
Quigley
Rangel
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Ryan (OH)
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schneider
Schrader
Schwartz
Scott (VA)
Serrano
Sewell (AL)
Shea-Porter
Sherman
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Tierney
Titus
Tonko
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters
Waxman
Welch
Wilson (FL)
Yarmuth

NOT VOTING—19

Byrne
Campbell
Carney
Conyers
DesJarlais
Duncan (TN)
Hanabusa
Kingston
Larson (CT)
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Miller, Gary
Nunnelee
Sánchez, Linda T.
Scott, David
Simpson
Sires
Stivers
Whitfield

□ 1039

Mr. MURPHY of Pennsylvania changed his vote from ''no'' to ''aye.''

So the resolution was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

MOTION TO INSTRUCT CONFEREES ON H.R. 3230, PAY OUR GUARD AND RESERVE ACT

The SPEAKER pro tempore. The unfinished business is the vote on the motion to instruct on the bill (H.R. 3230) making continuing appropriations during a Government shutdown to provide pay and allowances to members of the reserve components of the Armed Forces who perform inactive-duty training during such period, offered by the gentleman from Texas (Mr. GALLEGO) on which the yeas and nays were ordered.

The Clerk will redesignate the motion.

The Clerk redesignated the motion.

The SPEAKER pro tempore. The question is on the motion to instruct.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 201, nays 213, not voting 18, as follows:

[Roll No. 430]

YEAS—201

Barber
Barrow (GA)
Bass
Beatty
Becerra
Bera (CA)
Bishop (GA)
Bishop (NY)
Blumenauer
Bonamici
Brady (PA)
Braley (IA)
Brown (FL)
Brownley (CA)
Burgess
Bustos
Butterfield
Capito
Capps
Capuano
Cárdenas
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
Dent
Deutch
Dingell
Doggett
Doyle
Duckworth
Duncan (TN)
Edwards
Ellison
Engel
Enyart
Eshoo
Esty
Farr
Fattah
Fitzpatrick
Fleischmann
Fortenberry
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Garcia
Gibson
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Heck (WA)
Higgins
Himes
Hinojosa
Holt
Honda
Horsford
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lewis
Lipinski
LoBiondo
Loebsack
Lofgren
Lowenthal
Lowey
Lynch
Maffei
Maloney, Carolyn
Maloney, Sean
Matheson
Matsui
McCarthy (NY)
McCollum
McDermott
McGovern
McIntyre
McNerney
Meeks
Meng
Michaud
Miller, George
Moore
Moran
Murphy (FL)
Nadler
Napolitano
Neal
Negrete McLeod
Nolan
O'Rourke
Owens
Pallone
Pascrell
Pastor (AZ)
Payne
Pelosi
Perlmutter
Peters (CA)
Peters (MI)
Pingree (ME)
Pocan
Polis
Posey
Price (NC)
Quigley
Rahall
Rangel
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schneider
Schrader
Schwartz
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Shea-Porter
Sherman
Sinema
Slaughter
Smith (NJ)
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Tierney
Titus
Tonko
Tsongas
Upton
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Wasserman Schultz
Waters
Waxman
Welch
Wilson (FL)
Yarmuth
Yoder

NAYS—213

Aderholt
Amash
Amodei
Bachmann
Bachus
Barletta
Barr
Barton
Benishek
Bentivolio
Bilirakis
Bishop (UT)
Black
Blackburn
Boustany
Brady (TX)
Bridenstine
Brooks (AL)
Brooks (IN)
Broun (GA)
Buchanan
Bucshon
Calvert
Camp
Cantor
Carter
Cassidy
Chabot
Chaffetz
Clawson (FL)
Coble
Coffman
Cole
Collins (GA)
Collins (NY)
Conaway
Cook
Cotton
Cramer
Crawford
Crenshaw
Culberson
Daines
Davis, Rodney
Denham
DeSantis
Diaz-Balart
Duffy
Duncan (SC)
Ellmers
Farenthold
Fincher
Fleming
Flores
Forbes
Foxx
Franks (AZ)
Frelinghuysen
Gardner
Garrett
Gerlach
Gibbs
Gingrey (GA)
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Griffin (AR)
Griffith (VA)
Grimm
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Heck (NV)
Hensarling
Herrera Beutler
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (OH)
Johnson, Sam
Jolly
Jones
Jordan
Joyce
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Labrador
LaMalfa
Lamborn
Lance
Lankford
Latham
Latta
Long
Lucas
Luetkemeyer
Lummis
Marchant
Marino
Massie
McAllister
McCarthy (CA)
McCaul
McClintock
McHenry
McKeon
McKinley
McMorris Rodgers
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Noem
Nugent
Nunes
Olson
Palazzo
Paulsen
Pearce
Perry
Peterson
Petri
Pittenger
Pitts
Poe (TX)
Pompeo
Price (GA)
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross
Rothfus
Royce
Runyan
Ryan (WI)
Salmon
Sanford
Scalise
Schock
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Smith (MO)
Smith (NE)
Smith (TX)
Southerland
Stewart
Stockman
Stutzman
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner
Valadao
Wagner
Walberg
Walden
Walorski
Walz
Weber (TX)
Webster (FL)
Wenstrup
Westmoreland
Williams
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoho
Young (AK)
Young (IN)

NOT VOTING—18

Byrne
Campbell
Carney
Conyers
DesJarlais
Foster
Hanabusa
Hastings (FL)
Kingston
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Miller, Gary
Nunnelee
Sánchez, Linda T.
Simpson
Sires
Stivers
Whitfield

□ 1046

So the motion to instruct was rejected.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

MESSAGE FROM THE SENATE

A message from the Senate by Ms. Curtis, one of its clerks, announced that the Senate has passed without amendment a bill of the House of the following title:

H.R. 1528. An act to amend the Controlled Substances Act to allow a veterinarian to transport and dispense controlled substances in the usual course of veterinary practice outside of the registered location.

The message also announced that the Senate has passed with an amendment in which the concurrence of the House is requested, a bill of the House of the following title:

H.R. 3212. An act to ensure compliance with the 1980 Hague Convention on the Civil Aspects of International Child Abduction by countries with which the United States enjoys reciprocal obligations, to establish procedures for the prompt return of children abducted to other countries, and for other purposes.

REPORT ON H. RES. 645, REQUESTING PRESIDENT TRANSMIT EMAILS TO OR FROM LOIS LERNER BETWEEN JANUARY 2009 AND APRIL 2011; AND REPORT ON H. RES. 647, DIRECTING SECRETARY OF THE TREASURY TO TRANSMIT EMAILS TO OR FROM LOIS LERNER BETWEEN JANUARY 2009 AND APRIL 2011

Mr. CAMP, from the Committee on Ways and Means, submitted a privileged adverse report (Rept. No. 113–524) requesting that the President of the United States transmit to the House of Representatives copies of any emails in the possession of the executive office of the President that were transmitted to or from the email account(s) of former Internal Revenue Service Exempt Organizations Division Director Lois Lerner between January 2009 and April 2011; and a privileged adverse report (Rept. No. 113–525) directing the Secretary of the Treasury to transmit to the House of Representatives copies of any emails in the possession of the Department that were transmitted to or from the email account(s) of former Internal Revenue Service Exempt Organizations Division Director Lois Lerner between January 2009 and April 2011, which were referred to the House Calendar and ordered to be printed.

FIGHTING HUNGER INCENTIVE ACT OF 2014

Mr. CAMP. Mr. Speaker, pursuant to House Resolution 670, I call up the bill (H.R. 4719) to amend the Internal Revenue Code of 1986 to permanently extend and expand the charitable deduction for contributions of food inventory, and ask for its immediate consideration.

The Clerk read the title of the bill.

The SPEAKER pro tempore. Pursuant to House Resolution 670, in lieu of the amendment in the nature of a substitute recommended by the Committee on Ways and Means, printed in the bill, an amendment in the nature of a substitute consisting of the text of Rules Committee Print 113–51 is adopted, and the bill, as amended, is considered read.

The text of the bill, as amended, is as follows:

H.R. 4719

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''America Gives More Act of 2014''.

SEC. 2. EXTENSION AND EXPANSION OF CHARITABLE DEDUCTION FOR CONTRIBUTIONS OF FOOD INVENTORY.

(a) PERMANENT EXTENSION.—Section 170(e)(3)(C) of the Internal Revenue Code of 1986 is amended by striking clause (iv).

(b) INCREASE IN LIMITATION.—Section 170(e)(3)(C) of such Code, as amended by subsection (a), is amended by striking clause (ii), by redesignating clause (iii) as clause (iv), and by inserting after clause (i) the following new clauses:

''(ii) LIMITATION.—The aggregate amount of such contributions for any taxable year which may be taken into account under this section shall not exceed—

''(I) in the case of any taxpayer other than a C corporation, 15 percent of the taxpayer's aggregate net income for such taxable year from all trades or businesses from which such contributions were made for such year, computed without regard to this section, and

''(II) in the case of a C corporation, 15 percent of taxable income (as defined in subsection (b)(2)(D)).

''(iii) RULES RELATED TO LIMITATION.—

''(I) CARRYOVER.—If such aggregate amount exceeds the limitation imposed under clause (ii), such excess shall be treated (in a manner consistent with the rules of subsection (d)) as a charitable contribution described in clause (i) in each of the 5 succeeding years in order of time.

''(II) COORDINATION WITH OVERALL CORPORATE LIMITATION.—In the case of any charitable contribution allowable under clause (ii)(II), subsection (b)(2)(A) shall not apply to such contribution, but the limitation imposed by such subsection shall be reduced (but not below zero) by the aggregate amount of such contributions. For purposes of subsection (b)(2)(B), such contributions shall be treated as allowable under subsection (b)(2)(A).''.

(c) DETERMINATION OF BASIS FOR CERTAIN TAXPAYERS.—Section 170(e)(3)(C) of such Code, as amended by subsections (a) and (b), is amended by adding at the end the following new clause:

''(v) DETERMINATION OF BASIS FOR CERTAIN TAXPAYERS.—If a taxpayer—

''(I) does not account for inventories under section 471, and

''(II) is not required to capitalize indirect costs under section 263A,

the taxpayer may elect, solely for purposes of subparagraph (B), to treat the basis of any apparently wholesome food as being equal to 25 percent of the fair market value of such food.''.

(d) DETERMINATION OF FAIR MARKET VALUE.—Section 170(e)(3)(C) of such Code, as amended by subsections (a), (b), and (c), is amended by adding at the end the following new clause:

''(vi) DETERMINATION OF FAIR MARKET VALUE.—In the case of any such contribution of apparently wholesome food which cannot or will not be sold solely by reason of internal standards of the taxpayer, lack of market, or similar circumstances, or by reason of being produced by the taxpayer exclusively for the purposes of transferring the food to an organization described in subparagraph (A), the fair market value of such contribution shall be determined—

''(I) without regard to such internal standards, such lack of market, such circumstances, or such exclusive purpose, and

''(II) by taking into account the price at which the same or substantially the same food items (as to both type and quality) are sold by the taxpayer at the time of the contribution (or, if not so sold at such time, in the recent past).''.

(e) EFFECTIVE DATE.—

(1) IN GENERAL.—Except as otherwise provided in this subsection, the amendments made by this section shall apply to contributions made after December 31, 2013, in taxable years ending after such date.

(2) LIMITATION; APPLICABILITY TO C CORPORATIONS.—The amendments made by subsection (b) shall apply to contributions made in taxable years beginning after December 31, 2013.

SEC. 3. RULE ALLOWING CERTAIN TAX-FREE DISTRIBUTIONS FROM INDIVIDUAL RETIREMENTS ACCOUNTS FOR CHARITABLE PURPOSES MADE PERMANENT.

(a) IN GENERAL.—Section 408(d)(8) of the Internal Revenue Code of 1986 is amended by striking subparagraph (F).

(b) EFFECTIVE DATE.—The amendment made by this section shall apply to distributions made in taxable years beginning after December 31, 2013.

SEC. 4. SPECIAL RULE FOR QUALIFIED CONSERVATION CONTRIBUTIONS MODIFIED AND MADE PERMANENT.

(a) MADE PERMANENT.—

(1) INDIVIDUALS.—Subparagraph (E) of section 170(b)(1) of the Internal Revenue Code of 1986 is amended by striking clause (vi).

(2) CORPORATIONS.—Subparagraph (B) of section 170(b)(2) of such Code is amended by striking clause (iii).

(b) CONTRIBUTIONS OF CAPITAL GAIN REAL PROPERTY MADE FOR CONSERVATION PURPOSES BY NATIVE CORPORATIONS.—

(1) IN GENERAL.—Paragraph (2) of section 170(b) of the Internal Revenue Code of 1986 is amended by redesignating subparagraph (C) as subparagraph (D), and by inserting after subparagraph (B) the following new subparagraph:

''(C) QUALIFIED CONSERVATION CONTRIBUTIONS BY CERTAIN NATIVE CORPORATIONS.—

''(i) IN GENERAL.—Any qualified conservation contribution (as defined in subsection (h)(1)) which—

''(I) is made by a Native Corporation, and

''(II) is a contribution of property which was land conveyed under the Alaska Native Claims Settlement Act,

shall be allowed to the extent that the aggregate amount of such contributions does not exceed the excess of the taxpayer's taxable income over the amount of charitable contributions allowable under subparagraph (A).

''(ii) CARRYOVER.—If the aggregate amount of contributions described in clause (i) exceeds the limitation of clause (i), such excess shall be treated (in a manner consistent with the rules of subsection (d)(2)) as a charitable contribution to which clause (i) applies in each of the 15 succeeding years in order of time.

''(iii) NATIVE CORPORATION.—For purposes of this subparagraph, the term 'Native Corporation' has the meaning given such term by section 3(m) of the Alaska Native Claims Settlement Act.''.

(2) CONFORMING AMENDMENT.—Section 170(b)(2)(A) of such Code is amended by striking ''subparagraph (B) applies'' and inserting ''subparagraph (B) or (C) applies''.

(3) VALID EXISTING RIGHTS PRESERVED.—Nothing in this subsection (or any amendment made by this subsection) shall be construed to modify the existing property rights validly conveyed to Native Corporations (within the meaning of section 3(m) of the Alaska Native Claims Settlement Act) under such Act.

(c) EFFECTIVE DATE.—The amendments made by this section shall apply to contributions made in taxable years beginning after December 31, 2013.

SEC. 5. EXTENSION OF TIME FOR MAKING CHARITABLE CONTRIBUTIONS.

(a) IN GENERAL.—Subsection (a) of section 170 of the Internal Revenue Code of 1986 is amended by redesignating paragraphs (2) and (3) as paragraphs (3) and (4), respectively, and by inserting after paragraph (1) the following new paragraph:

''(2) TREATMENT OF CHARITABLE CONTRIBUTIONS MADE BY INDIVIDUALS BEFORE DUE DATE OF RETURN.—If any charitable contribution is made by an individual after the close of a taxable year but not later than the due date (determined without regard to extensions) for the return of tax for such taxable year, then the taxpayer may elect to treat such charitable contribution as made in such taxable year. Such election shall be made at such time and in such manner as the Secretary may provide. For purposes of this paragraph, an individual's distributive share of a partnership's charitable contribution, and an individual's pro rata share of an S corporation's charitable contribution, shall not be treated as charitable contributions made by such individual.''.

(b) EFFECTIVE DATE.—The amendments made by this section shall apply to elections made with respect to taxable years beginning after December 31, 2013.

SEC. 6. MODIFICATION OF THE TAX RATE FOR THE EXCISE TAX ON INVESTMENT INCOME OF PRIVATE FOUNDATIONS.

(a) IN GENERAL.—Section 4940(a) of the Internal Revenue Code of 1986 is amended by striking ''2 percent'' and inserting ''1 percent''.

(b) ELIMINATION OF REDUCED TAX WHERE FOUNDATION MEETS CERTAIN DISTRIBUTION REQUIREMENTS.—Section 4940 of such Code is amended by striking subsection (e).

(c) EFFECTIVE DATE.—The amendments made by this section shall apply to taxable years beginning after the date of the enactment of this Act.

SEC. 7. BUDGETARY EFFECTS.

(a) STATUTORY PAY-AS-YOU-GO SCORECARDS.—The budgetary effects of this Act shall not be entered on either PAYGO scorecard maintained pursuant to section 4(d) of the Statutory Pay-As-You-Go Act of 2010.

(b) SENATE PAYGO SCORECARDS.—The budgetary effects of this Act shall not be entered on any PAYGO scorecard maintained for purposes of section 201 of S. Con. Res. 21 (110th Congress).

The SPEAKER pro tempore. The gentleman from Michigan (Mr. CAMP) and the gentleman from Michigan (Mr. LEVIN) each will control 30 minutes.

The Chair recognizes the gentleman from Michigan (Mr. CAMP).

GENERAL LEAVE

Mr. CAMP. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and to include extraneous material on H.R. 4719.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Michigan?

There was no objection.

Mr. CAMP. Mr. Speaker, I yield myself such time as I may consume.

The American people are the most charitable people in the world, donating money, food, and clothing in times of need. Their donations ensure that charities and foundations can help individuals and communities across the country.

There are numerous provisions in the Tax Code that encourage giving, and the bill we have before us today, H.R. 4719, the America Gives More Act, ensures that some of these provisions are made permanent so individuals, businesses, and farmers can donate and give back more. The first provision will make permanent and expand the charitable deduction for contributions of food inventory by businesses, regardless of how they are organized.

Food banks are a vital part of communities, helping Americans put food on the table and provide for their families when they have come across hard times or suffered through a natural disaster.

The Food Donation Connection has estimated that since this tax deduction was expanded in 2006, donations have increased 127 percent. Unfortunately, a provision in current law that encouraged passthrough businesses to contribute food inventory expired at the end of last year, and charities and foundations across the country are urging that it be restored and made permanent.

According to Feeding America, 3.6 billion pounds of food is distributed by food bank members each year. This legislation would significantly increase food bank access to the 70 billion pounds of nutritious food wasted each year.

Today, we have the opportunity to continue this important credit, allowing all businesses, farmers, and ranchers to take advantage and donate more nutritious food to the millions of Americans who need it most.

This bill also ensures that seniors who donate to charities from their Individual Retirement Accounts can do so without a tax penalty. According to the Independent Sector, this provision has ''prompted more than $140 million in gifts to the work of nonprofits since enactment, assisting social service providers, religious organizations, cultural institutions and schools, and other nonprofits.'' Making this provision permanent can only serve to increase the generous donations that charities rely on.

In addition, the bill will make permanent the deduction for contributions of conservation easements. This provision will also increase the amount of land or property donated for charitable use. Witnesses before the Ways and Means Committee have testified that in the first 2 years of the enactment of conservation easements, the number of donations doubled compared to the previous 2 years, resulting in a 32 percent increase of acreage conserved.

This is one area, especially, where long-term planning is essential. To allow this to expire makes it much more difficult for the often multigenerational planning necessary to take place. In Michigan, I have seen the benefits of conservation easements firsthand. This is a tremendous legacy for future generations.

The tax reform draft the committee produced earlier in the year would encourage charitable giving in several important ways and, by creating a stronger economy, analysis found that it would increase charitable giving by an estimated $2.2 billion each year.

Two important charitable provisions from the draft—lowering the excise tax on private foundations and extending the tax deadline for charitable contributions from December 31 to April 15—are included in the America Gives More Act.

At the end of the year, many taxpayers have no idea what their tax liability will be, and it is only after struggling through the daunting process of preparing their tax return that they know with certainty. If taxpayers were permitted to make and deduct contributions prior to filing their tax return, I believe many Americans will be even more generous in supporting religious and charitable causes. Testimony before the Ways and Means Committee found that allowing donors to deduct gifts until April 15 would result in significantly more charitable giving.

Another provision from the draft would lower and simplify the excise tax on private foundations, making compliance easy, especially for smaller foundations. As a result, foundations will have more of their resources available to support charities and exempt organizations across the country.

All of these provisions are bipartisan and have the support of over 850 charities and foundations across the country, who wrote to Congress stating:

Without an incentive in place and assured, many of the gifts the charitable incentives were intended to promote will simply not take place.

I will insert in the RECORD the letter from Independent Sector, supported by 850 charities and foundations across the United States.

INDEPENDENT SECTOR,
July 15, 2014.

OPEN LETTER TO THE HOUSE OF REPRESENTATIVES: Millions of individuals and families are served by the essential work of America's public charities, which is made possible in part by incentives for charitable giving in our tax code. The House may soon have an opportunity to address tax legislation that would renew and make permanent three key incentives for donations to America's public charities. We strongly urge you to approve legislation that would renew the IRA charitable rollover and the enhanced incentives for donations of food inventory and land conservation easements, each of which expired as of January 1, 2014.

Originally enacted in the Pension Protection Act of 2006 as a way to encourage increased charitable giving, these three provisions have demonstrated a significant impact on the nonprofit community. The IRA charitable rollover increases the ability of older Americans to make gifts to charities by allowing individuals age 70½ or older to donate up to $100,000 to a qualifying public charity directly from their IRAs without incurring tax on the withdrawal. The provision has prompted more than $140 million in gifts to the work of nonprofits since enactment, assisting social service providers, religious organizations, cultural institutions and schools, and other nonprofits.

The enhanced deduction for donations of food allows individuals and organizations to reduce their taxable income by providing qualifying food inventory to certain charitable organizations. According to Feeding America, 3.6 billion pounds of food is distributed by food bank members each year. This legislation would significantly increase food bank access to the 70 billion pounds of nutritious food wasted each year, particularly the 6 billion pounds of produce that does not make it to market.

The enhanced deduction for donations of land conservation easements allows land owners to get a meaningful deduction for permanently retiring development rights to their property to protect and preserve significant natural resources. A survey by the Land Trust Alliance showed that this incentive helped 1,700 land trusts increase the pace of conservation by a third—to over a million acres a year.

Unfortunately, these charitable tax provisions were allowed to expire on January 1 for the fourth time in recent years. On each of the three previous occasions, an entire package of tax extenders was reinstated retroactively at the end of the following year. While this may be an adequate solution for many provisions in the extenders package, these charitable provisions are different. Without an incentive in place and assured, many of the gifts the incentives were intended to promote will simply not take place. The time to plan and execute the gifts will have already passed by.

For all these reasons, we urge you to support legislation to permanently reinstate these critical giving incentives, namely: H.R. 4619 (to make permanent the IRA charitable rollover); HR 4719 (to permanently extend the charitable deduction for donation of food inventory); and H.R. 2807 (the Conservation Easement Incentive Act). We hope to see them combined and passed as a package as soon as possible in order to continue sustaining the vital work of charitable organizations in our communities.

Thank you for your consideration,

Independent Sector; 92nd Street Y; Achievement Centers for Children; Ackland Art Museum; Acton Conservation Trust; Adults with Developmental Disabilities; Advonance; Agricutural Stewardship Association; Agudath Israel of America; Agudath Israel of the Five Towns; Air Force Museum Foundation; Akron-Canton Regional Foodbank; Alabama Dance Council; Alachua Conservation Trust; Alexander Haas; All Saints Church; All Stars Project (ASP); Alliance for Children and Families; Alliance of Arizona Nonprofits; The ALS Association; Amador Livermore Valley Historical Society & Museum on Main; American Alliance of Museums; American Autoimmune Related Diseases Association; American Behcet's Disease Association; American Cancer Society Cancer Action Network; American Chemical Society.

American Clock & Watch Museum; American Folk Art Museum; American Friends Service Committee; American Heart Association; American Jewish Committee (AJC); American Library Association; American Lung Association; American Red Cross; Americans for the Arts; Americans for the Arts Action Fund; America's Charities; Amon Carter Museum of American Art; The Ananda Center for the Arts; Anderson County Museum; Andy Warhol Museum; AngelCare/Americans Care & Share; Angus Nazarene Food Pantry; Ann Arrundell County Historical Society, Inc.; Annette Strawder Here to Help Pantry; Antique Boat Museum; Apache Creek Deaf and Youth Ranch, Inc.; Appalachia Ohio Alliance; Argus Museum; Arkansas Nonprofit Alliance; Armstrong County Museum; Arthurdale Heritage, Inc.; Association for Healthcare Philanthropy.

Association of Art Museum Directors; Association of Direct Response Fundraising Counsel; Association of Fundraising Professionals; Atlantic Coast Conservancy; Auburn Automotive Heritage, Inc. & Auburn Cord Duesenberg Automobile Museum; Bainbridge Island Land Trust; Baltimore Heritage Area Association; Baltimore Museum of Art; Bass Museum of Art; Bay Area Food Bank; Bayer Center for Nonprofit Management at Robert Morris University; Bayou Land Conservancy; Bayshore Baptist Church Food Pantry; Bedford Historical Society; Believer's Sanctuary; Bellville Christian Food Pantry; BethanyKids; Bishop Hill Heritage Association; Black Swamp Conservancy; Blair County Historical Society; Blue Ridge Conservancy; Blue Ridge Land Conservancy; BoardSource.

Boise Art Museum; Boston Baroque; Boston Children's Museum; Bowers Museum;

Boys & Girls Clubs of Austin County, TX; Boys & Girls Clubs of Southeastern Michigan; Branford Land Trust, Inc.; Brazoria County Alcoholic Recovery Center; Briar Bush Nature Center; The Bridge Ministries; The Bridge Over Troubled Waters; Bridging for Tomorrow; BrightFocus Foundation; Buckner Children & Family Services; Burchfield Penney Art Center; The Burd Group; Califomia Association of Food Banks; Califomia Association of Museums; Califomia Museum of Ancient Art; Califomia Science Center Foundation; Califomia State Parks; Calyx Sustainable Tourism; Capital Area Food Bank of Texas; Carbon County Museum; Care and Share, Inc.; Carolina Mountain Land Conservancy; CASA Program for the Ogeechee Circuit; Casa Rosa Food Pantry.

Catawba Lands Conservancy; Cathedral Arts Project, Inc.; Catholic Foundation of Eastern Montana; Cedar Rapids Museum of Art; Cedarhurst Center for the Arts; Celiac Disease Foundation; Center for History; Center for Nonprofit Excellence; Center for Non-Profits; Center for Success and Independence; Central Co-op; Central Pennsylvania Food Bank; Champlain Area Trails; Cheyenne Center, Inc.; Chicago Humanities Festival; Children's Discovery Museum; Christian Tabernacle; Civil War Trust; Clay Center for the Arts & Sciences of West Virginia; Clear Lake Food Pantry; ClearWater Conservancy; Cleveland Zoological Society; Clinton Symphony Orchestra; Coalition for Pulmonary Fibrosis; Colby College Museum of Art; Cole Art Center at Stephen F. Austin State University.

Collins Group, A Division of Donald A. Campbell & Company; Colorado Nonprofit Association; Colorado-Wyoming Association of Museums; Columbia College (MO); Columbia Land Trust (OR & WA); Columbia Museum of Art (SC); Columbia Pacific Heritage Museum; Columbus Museum of Art; Community Action Committee of the Lehigh Valley; Community Care Center, Inc.; Community Food Bank of Eastern Oklahoma; Community Food Pantry in Tool (TX); Community Food Pantry of Franklin County, Texas; Community Foodbank of New Jersey; The Community Foundation for Crawford County; Community Foundation for Muskegon County; Community Foundation for Southwest Washington; Community Foundation of Eastern Connecticut; Community Foundation of Northern Colorado; The Community Foundation of South Puget Sound; Community Foundation of the Great River Bend; Community Foundation of the Holland/Zeeland Area; Congaree Land Trust; Connecticut Electric Railway Association dba Connecticut Trolley Museum; Connecticut Farmland Trust.

Connecticut Food Bank; Connecticut Land Conservation Council; Connecticut Nonprofit Human Services Cabinet; Connemara Conservancy Foundation; Conservation Foundation of the Gulf Coast; The Conservation Fund; Conservation Tax Credit Transfer, LLC; Conservation Trust for North Carolina; The Contemporary Austin; COPD Foundation; CoreStrategies for Nonprofits, Inc.; Cornerstone Outreach Center of Amarillo, Inc.; Council for Christian Colleges & Universities; Council of Michigan Foundations; Council on Foundations; Cow Marsh Creek Consultants, LLC; Cradle of Texas Conservancy, Inc.; Crawford County Historical Society; Crested Butte Land Trust; Crisis Center of the Plains; Crocker Art Museum; Crossroads at Park Place, Inc.; Cultural Alliance of Fairfield County; Cultural Assets Consulting; Cumberland Land Trust.

Currier Museum of Art; Cystic Fibrosis Foundation; Da Vinci Science Center; Dallas Museum of Art; Dance/USA; Dare to Believe Ministries Outreach Center; Dare to Care Food Bank; Datil Educators Club; Deke Slayton Memorial Space & Bicycle Museum; Delaware Center for the Contemporary Arts; Delaware Highlands Conservancy; Denver Art Museum; Des Moines Art Center; Desert Foothills Land Trust; Dixon Gallery and Gardens; DMA Nonprofit Federation; Donors Forum; Douglas County Historical Society; The Drawing Center; Duck Hollow; DuPage County Historical Museums; Dutchess Land Conservancy; Earl Scruggs Center; East End Baptist Church; East Hillsborough Historical Society, Inc.; East Texas Food Bank; Eastern Sierra Land Trust; Ecology Project International.

EcoTrust; Edisto Island Open Land Trust; Eightmile River Wild & Scenic Coordinating Committee; Ellis County Museum, Inc.; Eno River Association; Epilepsy Foundation; Epiphany Lutheran Church; Equestrian Partners in Conservation (EPIC); Erie Art Museum; Essex County Greenbelt Association; Exploration Place; Family Abuse Shelter of Miami; Family League of Baltimore; Family Worship Center Food Pantry; Faye Gehl Conservation Foundation; Fayette CARE Clinic; Federation of Protestant Welfare Agencies; Feeding America; Feeding America San Diego; Feeding America Southwest Virginia; Feeding America Tampa Bay; Feeding Indiana's Hungry; Feeding Pennsylvania; Field Museum; First Baptist Church (Atlanta, TX); First Baptist Church (Bovina, TX); First Christian Church Food Pantry.

First Christian Church Outreach (Conroe, TX); First Resource Center; Fishtown Preservation Society, Inc.; Flathead Land Trust; Florida Holocaust Museum; The Florida Orchestra; Florida Philanthropic Network; Food Bank of Central New York; Food Bank of Delaware; Food Bank of Northeast Arkansas; Food Bank of the Albemarle; Food Bank of the Rockies; Food Bank of the Southern Tier; The Food Bank of Western Massachusetts; FOOD for Lane County; Food Industry Alliance of New York State; Foodbank of Southeastern Virginia; The Foodbank, Inc.; Foodshare; Foothills Conservancy of North Carolina; Forgotten Harvest; Fort Ticonderoga; Foundation Layers; Fox Valley Family YMCA; Frances Lehman Loeb Art Center; Franklin Area Community Services.

Franklin County (KS) Historical Society; Franklin Institute; Franklin Park Conservatory and Botanical Gardens; Freshwater Future; Freshwater Land Trust; Frick Art and Historical Center; Friends Committee on National Legislation; Friends of Balcones Canyonlands National Wildlife Refuge; Friends of Lopez Island Pool; Friends of the Mitchell Gallery of Flight; Friends of Tualatin River National Wildlife Refuge; Frist Center for the Visual Arts; Galveston Bay Foundation; Gates Mills Land Conservancy; Gateway Science Museum; Gathering Waters Conservancy; Geist Fall Creek Watershed Alliance; The General Society of Mayflower Descendants; Genesee Valley Conservancy, Inc.; George Eastman House; Georgia Center for Nonprofits; Georgia Charitable Care Network; Gilroy Historical Society; Girl Scouts of San Gorgonio; Girl Scouts of the USA; Girls Inc.

Glen Ellyn Historical Society; Glencairn Museum; Global Orphan Assistance Foundation; God's Pantry Food Bank; Gold Coast Railroad Museum; Golden Gate National Parks Conservancy; Golden State Bonsai Federation and Bonsai Garden at Lake Merritt; Goldstein Museum of Design; Good Neighbor Community Builders; Good Samaritan Health & Wellness Center; Goshen Land Trust; Grand Encampment Museum; Grand Haven Area Community Foundation; Grand Rapids Art Museum; Grand Traverse Regional Land Conservancy; Grantmakers Forum of New York; Grassroots International; The Graue Mill & Museum; Great Peninsula Conservancy; Great Plains Food Bank; Great Plains Welsh Heritage Project; The Greater Boston Food Bank; Greater Chicago Food Depository; Greater Grace Outreach; Greater Hudson Heritage Network; Greenbelt Land Trust of Mid-Missouri.

Greensboro Land Trust; Grosse Ile Nature and Land Conservancy; Grounds For Sculpture; Gulf Coast Community Foundation; Gulf Coast Symphony; Hammer Museum; Harmony House; Harry Chapin Food Bank of Southwest Florida; Harry S. Truman Little White House; The Hartt School; Harvard Art Museums; Harvest Assembly, House of Blessing; Harvest House; Harvest Texarkana Regional Food Bank; Harvesters—The Community Food Network (KS); Harvesters—The Community Food Network (MO); Hawaiian Islands Land Trust; Heart of the Lakes Center for Land Conservation Policy; Heaven's Windows; Hedley Senior Citizens; Heifer Foundation; Heifer International; Helping Hands Outreach Center of Gasconade County; Henderson Food Pantry; The Henry Ford; Herbert F. Johnson Museum of Art.

Heritage Museum (OR); Heritage Museum of Orange County; Hidalgo Medical Services; High Museum of Art; High Plains Food Bank; Higher Heights Church of God Food Pantry; Highlands-Cashiers Land Trust; Hill Country Land Trust; Hillsboro Independent School District Education Foundation; Hillwood Estate, Museum & Gardens; Historic Flat Rock, Inc.; The History Center in Tompkins County; Holy Family Home and Shelter, Inc.; Holy Family St. Vincent de Paul; Holy Ghost St Vincent de Paul; HomeAid Atlanta; Honolulu Museum of Art; Hope Food Pantry; HOPE Outreach; House of Help Hempstead; The House of the Seven Gables Settlement Association; Houston Food Bank; The Humanity Institute for Children & Families (HICF); Hunger-Free Pennsylvania; Hyde Hall; IBB Local 684 Labor Participation.

Idaho Coalition of Land Trusts; The Idaho Foodbank; Iglesia Trinidad (TX); Illinois Coalition Against Domestic Violence; Illinois Collaboration on Youth; Illinois Network of Charter Schools; Illinois Valley Symphony Orchestra; Immune Deficiency Foundation; Indian Hill Music; Indiana Philanthropy Alliance; Indianapolis Museum of Art; Informal Learning Experiences; Inner Wisdom, Inc.; Interfaith Caring Ministries; International Primate Protection League; Iowa Natural Heritage Foundation; IRIS Orchestra; Iron and Steel Museum of Alabama; Irving S. Gilmore International Keyboard Festival; Isabella Stewart Gardner Museum; The Isamu Noguchi Foundation; Islamic Society of North America; Jack Hadley Black History Museum; Jacksonville Zoo and Gardens; Jacob and Terese Hershey Foundation; Jefferson Land Trust.

Jemez Helping Hands; Jeremiah Call Christ Ministry/Jeremiah's Food Pantry; Jesus Outreach Ministries; Jewish Federations of North America; The Jewish Museum; Jordan Schnitzer Museum of Art; Joseph's House; Julian Pathways; Kansas City Symphony; Kansas Land Trust; Kenton Conservancy; The Kingdom Zone Before & After Community Center; Kings Local Food Pantry; The King's Palace Food Pantry; Kohl Children's Museum of Greater Chicago; The Kreeger Museum; Kress United Methodist Church; Ku'ikahi Mediation Center; K–VA–T Food Stores/Food City (TN); K–VA–T Food Stores/Food City (VA); Ladies In Action; Lafayette Symphony; Lancaster Community Library; Lancaster Farmland Trust; The Land Conservancy for Southern Chester County; Land Conservancy of Adams County; Land Trust Alliance.

The Land Trust for Tennessee; Laredo Crime Stoppers, Inc.; LeadingAge; League of American Orchestras; Leander Independent

School District Educational Excellence Foundation; Lebanon Food Pantry; Leelanau Conservancy; Lehigh Valley Abundant Life Ministries; Leigh Yawkey Woodson Art Museum; The Leighty Foundation; Life Challenge; Light of Christ Food Pantry; Literary Arts; Little Miami Food Service; Littleton Conservation Trust; LIVESTRONG Foundation; Living Faith Food Pantry; Living Water I.A.M; Livingston County Historical Society; LJC Mercy Ministries; Local Infant Formula for Emergencies, Inc. (LIFE-Houston); Lorraine Street Church of God in Christ; Los Angeles Regional Food Bank; Louisiana Food Bank Association; Louisiana Landmarks Society.

Louisville Zoological Garden; Lowe Art Museum; Lupus and Allied Diseases Association, Inc.; Lutheran Services in America; Magdalena Samaritan Center; Maiden Alley Cinema; Maine Appalachian Trail Land Trust; Maine Association of Nonprofits; Maine Coast Heritage Trust; March of Dimes; Marin Agricultural Land Trust; Martin Luther King Jr. Center; Mary Reynolds Babcock Foundation; Mason Food Pantry; Massachusetts Land Trust Coalition; Massillon Museum; Matthew 25 Ecumenical Food Pantry; Maxwell Museum of Anthropology; McCary's Chapel United Methodist Church; McHenry County Historical Society & Museum; Mead Art Museum; Meadowlark Methodist Food Pantry; Meals On Wheels Association of America; Memorial Baptist Food Pantry; Menil Collection; Mental Health Association of Rhode Island; Mesothelioma Applied Research Foundation.

Miami Springs Historical Museum; Michigan Historic Preservation Network; Michigan Nonprofit Association; Mid-South Food Bank; The Miller Art Museum; Milwaukee Art Museum; Mims Chapel Drydock Food Pantry; The Minneapolis Foundation; Minneapolis Institute of Arts; Minnesota Historical Society; Minnesota Land Trust; Mission Aviation Fellowship; Mission Northeast, Inc.; Mississippi Food Network; Mississippi Valley Conservancy; Missouri Association for Museums and Archives; Missouri Street Church of Christ Pantry Program; Mitchell Prehistoric Indian Village Preservation Society; Mobile Medical Museum; Mojave Desert Land Trust; Molly Brown House Museum; Mon General Foundation; Monadnock Conservancy; Montana Association of Land Trusts; Montana Food Bank Network; Montclair Art Museum.

Montgomery County Emergency Assistance; Montgomery County Food Bank (TX); Montgomery County Lands Trust (PA); Montgomery County Youth Services (TX); Montgomery Museum of Fine Arts; Morton County Historical Society Museum; Mountain-Plains Museums Association; Mt. Canaan Missionary Baptist; Mt. Manna; Murphysboro Food Pantry, Inc.; Muscarelle Museum of Art; Museo de Arte de Ponce; Museum Association of New York; Museum at FIT (Fashion Institute of Technology); Museum of Arts and Design; Museum of Contemporary Art; Museum of Contemporary Art Denver; Museum of Contemporary Art San Diego; Museum of Cultural and Natural History; Museum of Danish America; Museum of Fine Arts Boston; The Museum of Fine Arts Houston; Museum of Fine Arts, St. Petersburg, FL; The Museum of Flight; Museum of Glass; Museum of Latin American Art; Museum of Science, Boston.

Museum of Zavkhan Province; My Brother's Keeper Outreach Center; Mystic Art Association, dba Mystic Arts Center; N.C. Center for Nonprofits; Nacogdoches HOPE; Nantucket Historical Association; Naperville Heritage Society; Naples Historical Society; National Alliance on Mental Illness (NAMI) Omaha; National Association for Interpretation; National Association of Area Agencies on Aging; National Association of Clock and Watch Collectors; National Atomic Testing Museum; National Audubon Society; National Bottle Museum; National Civil Rights Museum; National Council of Nonprofits; National Czech & Slovak Museum & Library; National Multiple Sclerosis Society; National Museum of American Jewish History; National Museum of Wildlife Art; National Parks Conservation Association; National Soaring Museum; National Veterans Art Museum; National Watch and Clock Museum.

National Wildlife Federation; National Woodland Owners Association; National Youth Leadership Council; Native American Rights Fund; Natural Land Institute; Natural Lands Trust; Natural Resources Defense Council; The Nature Conservancy; Nebraska Land Trust; Needy Basket of Southern Miami County, Inc.; Nelson-Atkins Museum of Art; Nevada Land Trust; New Canaan Historical Society; New Covenant Christian Fellowship; New England Museum Association; New Hampshire Boat Museum; New Hampshire Charitable Foundation; New Hope Seventh Day Adventist Church; New Jersey Conservation Foundation; New Museum; New Path, Inc. aka New Path Outreach; New River Conservancy; New River Land Trust; New York Botanical Garden; New York Live Arts; NGO Foundation; Nisqually Land Trust; Nonprofit Association of Oregon.

Nonprofit Coordinating Committee of New York; Nonprofit Institute at College of Southern Maryland; Norman Rockwell Museum; North Carolina Museum of Art; North Carolina Symphony; North Creek Baptist Church; North Creek Baptist Church Food Pantry; North Group Consultants; North Olympic Land Trust; North Salem Open Land Foundation; North Shore Land Alliance; Northeast Iowa Food Bank; Northwest Montana Historical Society; Northwest Railway Museum; Norwich University; NPO Accounting Solutions; Nunda Historical Society; NY Textile Conservation, LLC; Oblong Land Conservancy; Ohio League of Conservation Voters; Okanogan County Community Action Council; Okanogan Land Trust; Oklahoma City Museum of Art; Old Pine Farm Natural Lands Trust; Old Stone Fort Museum.

One Powerful Movement Community Development Center; Onondaga Historical Association; Open Door Pantry; OPERA America; Orlando Museum of Art; Orlando Science Center; Ouabache Land Conservancy; The Our House Tavern; Ozark Regional Land Trust; Pacific Battleship Center; Pacific Grove Museum of Natural History; Pacific Science Center; Paducah Area Food Pantry; Paducah Symphony Orchestra; Pajarito Environmental Education Center; Palm Springs Art Museum; Parkdale Valley Land Trust; Parks & Trails New York; Passages Alternative Living Programs, Inc.; Pathways Food Pantry; Patsy's Place Transitional Home; Peabody Essex Museum; Pelican Coast Conservancy; Pennsbury Land Trust; Pennsylvania Academy of the Fine Arts; People Attempting To Help ''PATH''; People Helping People.

Peoria Riverfront Museum; Peralta Memorial United Methodist Church; Petersen Automotive Museum Foundation; Philabundance; The Phillips Collection; Phoenix Art Museum; PhotoArts Imaging Professionals, LLC; Pines and Prairies Land Trust; Pinnacle Community Church; The Pittsburgh Foundation; Places of New Beginnings; Plant City Photo Archives & History Center; Point Blue Conservation Science; Portland Art Museum (OR); Portland Museum of Art (ME); Pound Ridge Land Conservancy, Inc.; Prairie Public Broadcasting; Primary Care Development Corporation (PCDC); Project Restoration Outreach; Project Sister Family Services; Prospect House Museum; Puerto Seguro, Inc. (PSI) Safe Harbor; Pulitzer Arts Foundation; Ralphs Grocery Company; Redwood Empire Food Bank.

Reginald F. Lewis Museum of Maryland, African American History and Culture; Regional Food Bank of Northeastern New York; Renaissance Charitable Foundation, Inc.; Renaissance Entrepreneurship Center; Rensselaer County Historical Society; Rescue Rehome Resource; Restoration Care Ministry; Restore & Enlightenment Ministries; Riverside Baptist Church Crisis Closet; Rochester Area Community Foundation; Roger Williams Park Zoo; Rooted In; Roxbury Land Trust; Sacramento Mountains Senior Services, Inc.; Sagebrush Steppe Land Trust; The Salvation Army; San Angelo Museum of Fine Arts; San Antonio Food Bank; San Antonio Museum of Art; San Diego Natural History Museum; San Diego Youth Symphony and Conservatory; San Diego Zoo Global; San Francisco Heritage/Haas Lilienthal House; San Isabel Land Protection Trust; San Jacinto County Historical Commission; San Jose Museum of Art; San Jose Museum of Quilts & Textiles.

Santa Fe Texas Education Foundation; Save The Prairie Society; Scenic Hudson; Schingoethe Museum, Aurora University; Science Factory Children's Museum & Exploration Dome; Scleroderma Foundation; Sealy Christian Pantry; Seattle Art Museum; Second Harvest Food Bank Mahoning Valley; Second Harvest Food Bank of Central Florida; Second Harvest Food Bank of East Central Indiana; Second Harvest Food Bank of Northeast Tennessee; Second Harvest Food Bank of Northeast Tennessee; Second Harvest Food Bank of Northwest North Carolina; Second Harvest Food Bank of Santa Clara and San Mateo Counties; Second Harvest North Central Food Bank; Sedoan Historical Society; Senior Connections; Sequoia Riverlands Trust; Seventh-Day Adventist Church (Tulia, TX); Shared Harvest Foodbank; Sharlot Hall Museum; Shepherd Senior Citizens, Inc.; Sheridan Community Land Trust.

Shiloh Museum of Ozark History; Sierra Foothill Conservancy; Silver City Gospel Mission; Six Rivers Land Conservancy; Skagit Land Trust; Society for Experimental Graphic Design (SEGD); Society for Preservation of Long Island Antiquities; Society of St. Stephen Outreach Ministry (SOSS); Society of St. Vincent de Paul in Houston, TX; Solomon R. Guggenheim Museum; South Carolina Conservation Exchange; South Texas Food Bank; South Union Church of Christ Food Pantry; Southbury Land Trust; Southeast Area Ministries; Southeast Missouri Food Bank; Southeast Texas Arts Council; Southern Appalachian Highlands Conservancy; Southside Church of Christ Food Pantry; Spearman Ministerial Alliance; Spinal Cord Injury Network International; Springfield Museum of Art; Squam Lake Natural Science Center; St Vladimir's Orthodox Theological Seminary; St. Andrews United Methodist Church Food Pantry; St. Anne de Beaupre Food Pantry; St. Anthony's Bread Food Pantry; St. Augustine Lighthouse and Museum.

St. James Episcopal Church Food Pantry; St. John of the Cross Food Pantry; St. Joseph Museums, Inc.; St. Leo the Great St. Vincent de Paul; St. Louis Area Foodbank; St. Louis Art Museum; St. Mary's Food Bank Affiance; St. Mary's United Methodist Church (TX); St. Monica Food Pantry; St. Monica Knights of Peter Claver, Ladies Auxiliary, Court #151; St. Monica's Altar Society; St. Paul's Lutheran Food Pantry; St. Stephen Presbyterian Food Pantry; St. Stephen's of St. Andrews United Methodist Church (TX); St. Vincent de Paul in Los Lunas, NM; St. Vincent de Paul in Artesia,

NM; St. Vincent de Paul Society (St. Philip Neri Catholic Church); Stax Museum of American Soul Music; Sterling and Francine Clark Art Institute; Stockton Symphony Association; Sts. Joachim and Ann Care Service.

Stuart Pimsler Dance & Theater; Studebaker National Museum; Sullivan Museum and History Center; Summit Land Conservancy; Tacoma Art Museum; Tall Timbers Research Station & Land Conservancy; Tampa Museum of Art; Telfair Museums; Temenos CDC/Bread of Life, Inc.; Temple University Anthropology Laboratory; Tennessee Parks and Greenways Foundation; Texas Land Conservancy; Texas Land Trust Council; Texas Quilt Museum; THE PROGRAM for Offenders, Inc.; Theatre Communications Group; Three Angels Seventh Day Adventist Church; Three Village Community Trust; The Time IN Children's Arts Initiative; Timken Museum of Art; Toledo Museum of Art; Toledo Northwestern Ohio Food Bank; Towne Learning Center; Travis Audubon; Tread of Pioneers Museum; The Treehouse Center, Inc.; Tri County Assembly Choice Food Pantry; Triangle Land Conservancy; Tri-county Meals.

Trinity Garden First Food Pantry; The Trust for Public Land; U.S. Military Combat Camera History & Stories Museum; U.S. Pain Foundation, Inc.; UJA-Federation of New York, Inc.; The Ukrainian Museum; Ukrainian National Women's League of America; Union Symphony Society, Inc.; United Assembly (Plainview, TX); United Food Bank; United Way Fox Cities; United Way of Buffalo and Erie County; United Way of Greater Cincinnati; United Way of Portage County; United Way Worldwide; University Christian Church; University of Michigan—Dearborn; University of Michigan Law School; Upper Savannah Land Trust; Upscale CDC; Upshur County Shares Food Pantry; Urban Gateways; Utah Food Bank.

Utah Museum of Fine Arts; Uvalde Baptist Church Food Pantry; Venice Community Housing Corporation; The Vermont River Conservancy; Vermont Symphony Orchestra; Vero Beach Museum of Art; Vesterheim Museum; Vietnamese American Community Center; Virginia Museum of Fine Arts; The Viscardi Center; Vision Weavers Consulting, LLC; VisionServe Alliance; Voices of Victory; Walker Art Center; Wallowa Land Trust; Wartburg Community Symphony; Washington Association of Land Trusts; Washington Nonprofits; Washington State Historical Society; Washington Street Family Service Center; Way Food Pantry; Wee Care Child Center, Inc.; Wellsprings Village, Inc.; West Central Ohio Land Conservancy; West Side Baptist Early Education Center; West Wisconsin Land Trust; Western New York Land Conservancy; Western Reserve Land Conservancy; Western Rhode Island Civic Historical Society; Westmoreland County Agricultural Land Preservation.

Westmoreland Museum of American Art; Westport Arts Center; Whidbey Camano Land Trust; White Deer-Skellytown Lighthouse Food Pantry; Whitney Museum of American Art; Wilbarger Creek Conservation Alliance; The Wilderness Society; Wildling Museum; Wildwood United Methodist Church; Williams Temple Church of God In Christ; Wilmette Historical Museum; Wings for L.I.F.E. (Life skills Imparted to Families through Education); Winston-Salem Symphony; Wisconsin Youth Symphony Orchestras; Wood County Senior Citizens Association; Woods and Waters Land Trust; Wyoming Symphony Orchestra; Yellowstone Art Museum; YMCA of the USA; York County Heritage Trust; Zimmerli Art Museum.

Mr. CAMP. The goodwill of the American people is unmatched, and we should do everything we can to encourage Americans to do more, enabling charities, nonprofits, foundations, and schools across the country to expand their reach and serve those most in need.

A ''yes'' vote on this bill is a vote for hardworking Americans who selflessly lend a hand every day to their neighbors, communities, and others in need.

Mr. Speaker, I reserve the balance of my time.

Mr. LEVIN. Mr. Speaker, I yield myself such time as I may consume.

I want to be clear what this debate is about and what it is not about. It is not a debate about the merits of public charities and private foundations.

All of us support the good works of the charitable community and strive to provide charities and foundations with the resources they need to carry out their mission. Indeed, along with Congressman GERLACH, I am the lead sponsor of the food donation deduction.

I think that highlights that this is a debate not about charities, not about foundations. It is about fiscal responsibility and fiscal priorities.

Today, Republicans have selected to make permanent 10 of the approximately 60 expired tax provisions without a single dime of offset—not a single dime. After today, if this bill passes, the House will have approved $534 billion worth of tax provisions without a single offset, wiping out more than half of the total deficit reduction enacted last year during the bipartisan fiscal deal.

Indeed, this bill is totally inconsistent with the Republican tax reform draft they unveiled in February. And, I might add, if you add up the 14 bills that came out of the Ways and Means Committee, entirely unoffset, it is $825 billion.

I was reading, this morning, the debate which I heard yesterday on a motion to recommit. I was reading this language from Mr. CRENSHAW in opposition to the motion to recommit.

□ 1100

This is what he said about how Republicans proceed with budget issues:

We do it just like every American business does, like every American family. They sit down. They take the money that they have, and they set priorities. Then they make some tough choices. That is what we have done.

There is not a single tough choice in what the Republicans are doing. It is, essentially, throwing discretion and tough choices to the wind.

Also let me say that their approach is inconsistent with their own tax reform draft of some months ago. The enhanced deduction for food contributions that the chairman has spoken so eloquently about was expressly repealed in the Republican reform draft, and the rollover provision was allowed to expire. So you have irresponsibility, you have inconsistency, and you also have a violation of priorities, because left to an uncertain fate are important provisions, like the Work Opportunity Tax Credit, the New Markets Tax Credit, and the renewable energy credits, as well as the long-term status of expansions to the EITC and the Child Tax Credit.

This is the Statement of Administration Policy just issued:

The administration supports measures that enhance nonprofits, philanthropic organizations and faith-based and other community organizations in their many roles, including as a safety net for those most in need, an economic engine for job creation, a tool for environmental conservation that encourages land protections for current and future generations, and an incubator of innovation to foster solutions to some of the Nation's toughest challenges.

The President's budget includes a number of these proposals that would enhance and simplify charitable giving incentives for many individuals. However, the administration strongly opposes the House passage of H.R. 4719, which would permanently extend three current provisions that offer enhanced tax breaks for certain donations and add another two similar provisions without offsetting the cost. If this same unprecedented approach of making certain traditional tax extenders permanent without offsets were followed for the other traditional tax extenders, it would add $500 billion or more to deficits over the next 10 years, wiping out most of the deficit reduction achieved through the American Taxpayer Relief Act of 2013.

Just 2 months ago, House Republicans, themselves, passed a budget resolution that required offsetting any tax extenders that were made permanent with other revenue measures. As with other similar proposals, Republicans are imposing a double standard by adding to the deficit to continue and create tax breaks that primarily benefit higher income individuals while insisting on offsetting the proposed extension of emergency unemployment benefits and the discretionary funding increases for defense and non-defense priorities such as research and development in the bipartisan Budget Act of 2013.

House Republicans are also making clear their priorities by rushing to make these tax cuts permanent without offsets, even as the House Republican budget resolution calls for raising taxes on 26 million working families and students by letting important improvements to the EITC, to the Child Tax Credit, and to education tax credits expire.

The administration wants to work with Congress to make progress on measures that strengthen America's social sector. However, H.R. 4719 represents the wrong approach. If the President were presented with H.R. 4719, his senior advisors would recommend that he veto the bill.

So what in the world are we doing here today? What in the world are we doing? We are passing another bill that deepens the deficit, that is contrary to the rhetoric of the Republicans and is going nowhere in the Senate—zero. It is hard to figure this out, Mr. Speaker. What is motivating Republicans to be so totally inconsistent and irresponsible?

I reserve the balance of my time.

Mr. CAMP. Mr. Speaker, at this time, I yield 3 minutes to the gentleman from New York (Mr. REED), a distinguished member of the Ways and Means Committee.

Mr. REED. Thank you, Mr. Chairman, for yielding.

I want to start my comments today by focusing on the merits of this proposal and then by offering some comments in response to my good friend from Michigan in regards to the budgetary concerns that he articulated in his opening remarks.

Mr. Speaker, this bill is a commonsense bill that is the right thing to do for America. It is the right policy because what we are doing with the America Gives More Act of 2014 is putting in our tax policy provisions on a permanent basis that are going to provide for enhanced charitable giving in America. That is the right thing to do. We care about Americans, especially fellow American citizens. In times when they need it the most, we are going to stand with them. Our tax policy under this provision would be made permanent to encourage fellow Americans to help Americans. To me, it makes sense. It is a fundamental question of fairness, and it is a fundamental question of: Do we care about our fellow citizens in their time of need?

I have one piece of legislation in this underlying bill in particular that I wanted to articulate, and I want to thank my colleagues on the Ways and Means Committee who are going to speak after me in regards to their individual pieces of legislation that make up this America Gives More Act of 2014. That provision that I am going to talk about is the Fighting Hunger Incentive Act.

Essentially, all we are doing under the Tax Code is recognizing that we are going to treat all businesses, all people the same across America when it comes to their excess food inventories—be it in their restaurants, expanded to farms—so that our farmers can be in a position to give that food that otherwise would go into a landfill to the people who need it most: fellow hungry Americans.

To me, that makes sense, and that is where we have supported this legislation. It has come out of the committee, and it has gotten bipartisan support. Groups across the country took out an ad in our local paper here today, and they support this effort to not have food go to a landfill but to go onto the tables, onto the plates of fellow Americans who need it most. That is why this legislation is the right thing to do.

Mr. Speaker, I heard my colleague talk about the concern about the deficit. I share that concern, but the question that has to be answered is: Why have these extenders historically been renewed on a temporary basis without an offset? It is because it is the policy of the Tax Code that we are trying to make permanent here. Prior Members of Congress—and the President, himself, when he was in the Senate—supported the extension of these extenders without an offset because it was good policy. It is the right thing to do, and I urge all of my colleagues to join in support of this legislation.

Mr. LEVIN. Mr. Speaker, I yield myself 30 seconds.

Mr. REED, do I care? It is my bill, with Mr. GERLACH, that you have taken and put your name on—my bill. To make it permanent without any offset, with over $500 billion already done, is the wrong way to do the right thing. I care.

The SPEAKER pro tempore (Mr. HULTGREN). Members are reminded to direct their remarks to the Chair.

Mr. LEVIN. Mr. Speaker, I yield 3 minutes to the gentleman from California (Mr. THOMPSON), another member of the committee.

Mr. THOMPSON of California. I thank the gentleman for yielding.

Mr. Speaker, the tax provisions that are being considered today include the much-needed Conservation Easement Incentive Act, a bill I introduced with my friend from Pennsylvania (Mr. GERLACH). As a matter of fact, I have worked on this issue ever since I have been here. The last time that we introduced the bill, it was Mr. CAMP and I who carried the bill.

It is important, and since its first passage in '06, farmers, ranchers, hunters, and conservation groups alike have waited a long time for the security provided in this measure. It needs to be extended, and it needs to be made permanent. Conservation easements help protect valuable natural resources and scenic open spaces by allowing private landowners to permanently retire the development rights on their land. This bill keeps farmers and ranchers on the farms and on the ranches.

This provision is more than just about landowners, however. More than 70 percent of our wildlife gets food and shelter from our privately owned working farms, ranches, and forest lands, but we are losing these habitats to development at an alarming rate of about 5,000 acres per day. As an outdoors person—a hunter, a fisher—I am well aware of the importance of having places to hunt and fish and of the importance of that to our communities. I also know that many outdoor recreational activities depend on maintaining viable fish and wildlife habitats.

It is also important for clean habitats. Our urban areas benefit from this—watersheds, for instance, right outside of New York. If it weren't for this type of measure, we wouldn't have clean watersheds. New York City and the surrounding areas wouldn't have water. This incentive helps maintain healthy wildlife populations, hunter access, and healthy communities. It is not just land trust and government agencies that depend upon this. All types of charitable groups—Ducks Unlimited, Mule Deer Foundation, Pheasants Forever—depend on this type of legislation.

As much as I support this measure—as I said, it is my bill—as much as it is important to the country, the fact remains that it is not paid for. This is an incredibly popular bill. There has never been a time that we have introduced it when it hasn't had over 200 coauthors. As we know, during these divisive political times, it is hard to get 200 of us on this floor to agree on what time it is. This bill has over 225 coauthors this year, but, again, it is not paid for. The fact of the matter is that this, in combination with the other fiscally irresponsible measures that the committee has marked up, realizes an $825 billion shortage. It is not paid for.

I support the measure, but I don't support it in the fashion that it has been drafted. We need to pay for it, and we need to pass it. We need to do it right.

Mr. CAMP. Mr. Speaker, at this time, I yield 3 minutes to the gentleman from Pennsylvania (Mr. GERLACH), a distinguished member of the Ways and Means Committee.

Mr. GERLACH. I thank the chairman for his recognition and for his strong leadership on this important legislation.

Mr. Speaker, I rise today to urge my colleagues to support this legislation and specifically to highlight section 4 of the bill, which would make permanent the hugely successful conservation easement tax incentive.

When the time comes for families across our great country to decide the future of land that has been farmed for generations or is blessed with abundant natural resources, the choices should not be limited to simply selling that land or struggling to pay bigger tax bills to hold onto what are likely their most valuable family assets. The extremely difficult decisions families make about their farms and their property ultimately affect not only their lives but also the quality of life for their neighbors and the character of their communities. Conservation easements provide property owners with another choice when looking for an alternative to selling their land.

Before expiring at the end of 2013, modest-income property owners, family farmers, and other landowners utilized this Tax Code incentive to voluntarily protect millions of acres of land across the country. I have been fortunate to meet many of the families in my district who have been able to preserve their property thanks to the conservation easement deduction.

They are folks like Don Hawthorne, who in 2006 donated a conservation easement on 28 acres of his land to the Montgomery County Lands Trust in order to preserve an active Christmas tree farm, a fruit orchard, and a blueberry patch prized by the local community.

□ 1115

He expressed his support for making permanent the Federal Conservation Easement Tax Incentive this way:

Knowing that farming will likely continue on this land long after I am gone gives me peace of mind. It really would be wonderful if the Federal tax incentive would be made permanent so other farmers who choose to preserve their land can benefit.

The Great Marsh area of Chester County has been part of Jim Moore's

family for many generations. It is the most biologically diverse wetland in southeastern Pennsylvania and home to 155 species of birds, 200 species of flowering plants, and perhaps, most significantly, the headwaters for Marsh Creek, which is the primary source of drinking water for Wilmington, Delaware.

Mr. Moore explained why conservation easements are important:

> Open space is really about the next generation. We preserved this land because we love it and want to share it . . . and the tax benefits from easement donations make it more feasible to do that.

This legislation before us includes language identical to a bill that I have been working on with my colleague, Mr. THOMPSON of California, to pass for a few sessions now.

Last session, our bill had over 300 cosponsors, and now has over 200 cosponsors here in the House this session, and for anybody to see that kind of consensus here in Washington, D.C., is noteworthy indeed.

I believe the conservation easement incentive enjoys broad bipartisan support in Washington because it works in our communities. Therefore, that is why I am urging our colleagues to support this important legislation today to provide property owners with the freedom, the opportunity, and the certainty they deserve when making critical choices about the future of their land.

I thank the chairman for yielding.

Mr. LEVIN. Mr. Speaker, I yield 5 minutes to the gentleman from Texas (Mr. DOGGETT), another distinguished member of our committee.

Mr. DOGGETT. Mr. Speaker, I rise in opposition to approving this permanent Republican tax break for Twinkies. That is exactly what this bill does. I think we should encourage charity, but also fiscal responsibility and accountability. This bill fails on both the latter two points.

A while back, there was a Texas official who often derided the war on poverty and Social Services in general by declaring: America is the only country in the world where most of the poor people are fat.

Well, in more recent years, we have come to understand that the challenges of obesity and poverty are different faces of the same problem, that diabetes and hunger sometimes go hand in hand. Disadvantaged neighbors, who too often lack enough to eat, too often make up for it with high, sugary, fatty foods that provide temporary relief from hunger, while making them more prone to disease.

According to the American Heart Association, 1 in 3 American children are obese or overweight. That is nearly triple the rate of 50 years ago, and 1 in 3 children will contract what was once called adult-onset type 2 diabetes.

Now, we can address these challenges through direct government expenditures like WIC, the Women, Infant and Children nutrition program, and we can address the challenges with tax expenditures like the one that is proposed here today.

I happen to believe that we need both of them, that we should be encouraging food banks and the businesses that donate to them—who do some excellent, some valuable work, we ought to encourage them to expand the work that they do. But when we tell a taxpayer that they don't have to pay the same taxes as their competitor if they donate for a good cause, we ought to be sure that that cause is good.

Just as we scrutinize the WIC program and other food security programs to ensure no misuse, no ineligibility—we want to see that every one of those dollars spent is spent efficiently—we need to do some of the same with reference to tax expenditures like that is proposed for permanent extension here.

We need accountability, and you lose that when this and the other provisions are extended forever and never carefully evaluated.

Now, the expenditure that is provided here for food donations is one that the law says is available for any food that is ''apparently wholesome food.'' The only problem is that apparently wholesome food includes much food that is not actually wholesome.

For example, some potato chips that have long since had their expiration date, they qualify. A can that fell off and was run over by the forklift and is very damaged, it qualifies.

Most particularly, if you have candy at Halloween and you overstocked and you have a significant amount of candy left—or for the Easter Bunny or at Christmas—the shelves at some food pantries overflow with these products.

Why is that? Because the business that donates the Twinkies or the stale potato chips is entitled to deduct not the cost of what they cost that business, but twice the cost of what it cost that business, and this bill makes that permanent.

Why should we at a time of great fiscal concern be paying twice the cost of stale potato chips and Twinkies and sugary nonwholesome and nonnutritious foods—why should we be paying for that?

It is a tax break that goes too far, that requires more careful evaluation. Indeed, one 2011 NPR report that was entitled ''Overburdened Food Banks Can't Say No to Junk'' because some of the same retailers that they rely on and count on for wholesome food dump the Halloween candy, dump the Easter eggs there, and they are available and treated just the way that wholesome food is treated.

I say, Mr. Speaker, let's encourage donating the good stuff, but let's not pay for the junk. We have the power to correct that problem by, instead of having a flawed permanent bill, having one that is available for evaluation on a more regular basis, just as we do with reference to these other provisions.

The cost of this bill is part of the overall cost and strategy to wreck our budget and reduce hunger programs in this country.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. LEVIN. I yield the gentleman an additional 30 seconds.

Mr. DOGGETT. The same Republicans that are advancing this include a group that have characterized as welfare Pell grants, school breakfast programs, senior nursing care programs. They want to lump all that as welfare, and they say we just can't afford that.

I don't believe that we can't afford to target public resources where they are needed, whether they are tax expenditures or direct expenditures, but we don't need a permanent tax break for Twinkies and stale potato chips.

Let's take the fiscally responsible, accountable approach, not the irresponsible approach that is being advanced today, and reject this bill.

Mr. CAMP. Mr. Speaker, I yield 3 minutes to the gentleman from Illinois (Mr. SCHOCK), a distinguished member of the Ways and Means Committee.

Mr. SCHOCK. Mr. Speaker, I thank the chairman of our committee for introducing this important piece of legislation that is being supported by the American Red Cross, the American Heart Association, the Salvation Army, United Way Worldwide. All want to see the IRA charitable rollover which is contained in this bill made permanent.

The IRA charitable contribution incentive was established as a temporary provision of the Pension Protection Act of 2006, but the past 8 years, we have extended provision with strong bipartisan support.

Why? Because Republicans and Democrats have known that our Nation's charities comprise the most effective army of mercy and often are on the front lines of meeting the needs of our friends and neighbors when disaster strikes.

The war against poverty, homelessness, illness, and illiteracy is fought by our churches, private foundations, and the public charities in communities throughout the United States and around the world.

I have been working closely with one such organization, the Global Poverty Project, with my good friend, Hugh Evans, who has implemented a vision to eradicate extreme poverty, increase economic opportunity for women and children, and bring the developing world clean water, modern sanitation, and the health care they need.

It is organizations like this and the many public charities in my district—like the Boys and Girls Club of Bloomington-Normal, Peoria's Hult Center for Healthy Living, and the Community Foundation of Central Illinois—all of which stand to benefit from making this provision permanent.

In the first 2 years Congress made the option available, more than $140 million was donated to public charities in the United States. Since that time, hundreds of millions more have been committed.

In Illinois, one single charity, the Jewish Federation of Chicago, has raised more than $11 million just from 1,000 IRA contributions since 2006.

Every dollar that is voluntarily contributed on charitable work means one less dollar that U.S. taxpayers are forced to spend to meet the same basic human needs here in our communities.

Last year, charitable giving in the United States grew by 4.9 percent, topping $316 billion. Globally, the United States gives more to charitable causes than any other countries, according to the World Giving Index of 2013.

This provision helps accomplish that, and that is why it should be made permanent. I urge a ''yes'' vote.

Mr. LEVIN. Mr. Speaker, I yield 3 minutes to the gentleman from Oregon (Mr. BLUMENAUER), another distinguished member of our committee.

Mr. BLUMENAUER. Mr. Speaker, this is sort of an Alice in Wonderland experience here. We deal on an ongoing basis with provisions in the Tax Code. We have routinely extended some, as has been referenced; but what we have attempted to do historically is work together to be able to weigh, to balance—in many cases, pay for—for a duration that is not going to have the fiscal discipline evaporate.

We need to be able to manage these provisions because they actually cost the Treasury money, and some are more valuable than others. There are tradeoffs.

My friend, the chairman, worked for years producing a deficit-neutral tax reform, which had much to commend it, and I commend him for his hard work. All of these elements were addressed in his tax reform, but they were dealt with differently. Not all were extended permanently. In some cases, they were modified, some were repealed, some were made permanent—as part of a deliberative process to evaluate the impact and to not break the bank.

He did it right. I appreciate it. I am sorry that it has not been introduced, and it was dismissed by the Speaker. I think that was a mistake.

Today, we are continuing an effort to abandon any semblance that this Congress is going to work on major accomplishments before we adjourn.

This week, we passed legislation that, if it were enacted, would kick into the next Congress our transportation bill, handing off that responsibility at least to the next Congress, probably the Congress after that.

We have found that they are giving up on deficit reduction, with budget-busting proposals roaring through here with no semblance of honoring their own budget rules under their budget resolution.

They have given up on tax reform because we are not going to be able to have meaningful tax reform if we are just willy-nilly going to rush all these provisions through, an avalanche of spending.

It takes away the tools that are necessary to make the changes we all know are necessary with the Tax Code and for what my friend, the chairman, worked on so hard.

Last, but not least, they have given up on the previous tradition of bipartisan cooperation. Republicans have forced responsible Members to oppose what they passionately support. Well, luckily, this bill will not be enacted. We will be able to work with the Senate.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. LEVIN. I yield the gentleman an additional minute.

Mr. BLUMENAUER. This bill is not going to be enacted into law, and we will be able to pick up where it left off and, frankly, where Mr. CAMP left off, as we work with our friends in the other body.

My friend and fellow Oregonian, Senator WYDEN, the Chair, has already advanced some proposals we will be able to work with. It is a little more even-handed, and that is how ultimately we are going to go, but I am sorry for what this represents in terms of this Congress giving up.

I think we can do better. I hope people will vote against this, and we will commit to move forward on the things that we are all committed to in a way that is fiscally responsible, is bipartisan and thoughtful, working with the interest groups that deserve us to work together to get the outcomes we all want for them.

□ 1130

Mr. CAMP. Mr. Speaker, at this time, I yield 3 minutes to the gentleman from Minnesota (Mr. PAULSEN), a distinguished member of the Ways and Means Committee.

Mr. PAULSEN. I thank the chairman for yielding.

Mr. Speaker, I want to speak in support of the legislation, H.R. 4719, the America Gives More Act. This is important legislation that is actually going to increase charitable giving for the benefit of individuals in need across the country while also assisting those vital charities and foundations that serve them in all of our Nation's communities.

These are bipartisan proposals, Mr. Speaker, and the bill will make many of these provisions permanent. It will improve a variety of tax rules governing charitable donations and charitable organizations, encouraging America's taxpayers to give even more generously and enabling charities to serve those in need even more effectively.

I would also like to address a provision specifically, Mr. Speaker, that I authored that reduces and simplifies the provision, the excise tax on private foundation investment income.

Now, private foundations make a world of difference in our communities. I look at Minnesota, my home State. We have 1,400 different foundations. In 2011, about $1 billion is what they annually would donate to those in need. Nationwide, we have got 81,000 foundations that donated almost $50 billion in 2011.

These are impressive numbers, impressive figures, but as impressive as those figures and statistics are, the reality is they could easily be higher. Unfortunately, the Tax Code is actually discouraging large and increasingly larger donations given by private foundations.

Today these institutions, these foundations face a very complicated two-tiered system of taxation, and there are actually perverse incentives built into the Tax Code for a foundation not to make a donation, not to give a contribution in times when those needs might be greatest, such as after a natural disaster.

This legislation eliminates that disincentive so we can make large donations in times of need and replaces the two-tiered system with a simple, flat 1 percent excise tax on all foundation investment income.

It also simplifies the tax planning process. Especially for smaller foundations, this is important so that they can spend their valuable resources not on expensive accounts, not on expensive or high-priced lawyers but, instead, providing grants to grantees. We need to ensure that charitable decisions are based on the needs of our communities, not based on the Tax Code.

This legislation is strongly supported by the Council on Foundations.

The bottom line here, Mr. Speaker and Members, is that every dollar that these organizations are either paying in taxes or they are giving to accountants or attorneys is one less dollar going to those in need. This bill makes compliance easier and ensures that more resources are available.

Mr. Speaker, I commend the chairman for his leadership. I urge my colleagues to join me in supporting this legislation.

Mr. LEVIN. I yield 3 minutes to the gentleman from Illinois (Mr. DANNY K. DAVIS), a distinguished member of our committee.

Mr. DANNY K. DAVIS of Illinois. Mr. Speaker, I thank the ranking member for yielding.

I cannot support $825 billion in unpaid for, permanent, and piecemeal tax cuts while other critical investments that help our most vulnerable citizens, like the long-term unemployed and working poor, go unmet.

I strongly support extending the IRA charitable rollover, tax incentives for property owners who protect natural resources through conservation easements, tax incentives for charitable contributions of food inventory, and improving the private foundation excise tax to allow a better response to communities during economic troubles and natural disasters, a bill which I introduced.

However, I oppose adding almost $1 trillion to the deficit that will imperil our economic recovery and the well-being of our citizens. I oppose leaving

behind other critical tax provisions that help the working poor, strengthen economically distressed communities, promote affordable housing, help cover transportation costs, incentivize businesses to hire hard-to-employ workers, and assist teachers with classroom expenses.

Many of these bills provide examples of smart Federal investment. For example, in the first 2 years the IRA charitable rollover was available, more than $140 million was donated to support charities, with the median gift just under $4,500.

I strongly support giving food to the hungry and helping the needy. However, I cannot vote in favor of this package of bills because of their fiscal impact and the lack of fiscal responsibility to balanced policy.

Mr. CAMP. Mr. Speaker, I yield 3 minutes to the gentleman from Pennsylvania (Mr. KELLY), a distinguished member of the Ways and Means Committee.

Mr. KELLY of Pennsylvania. Mr. Speaker, first, let me thank the gentleman from Michigan, Chairman CAMP, for bringing this important set of charitable bills, the America Gives More Act, H.R. 4719, to the floor for a vote.

H.R. 3134, the Charitable Giving Extension Act, is a bill I introduced that would make a small change in the Tax Code but make a huge change in the lives of every American. This legislation would extend the yearly deadline for making charitable giving deductions from December 31 to April 15 of the following year so that all Americans can have an extra 3½ months to give to charity and include those donations in that year's tax returns. No longer would Americans be forced to complete their charitable giving by New Year's Eve.

Let me tell you, this is something that goes far deeper than that, and the gentleman from Illinois (Mr. SCHOCK) referenced it. According to the World Giving Index, America is the most bighearted nation in the world—in the world. All this is is an affirmation of who we are as Americans. Believe me, my friends, this charitable virtue that we have is not a Republican issue or a Democratic issue. This is who we basically are as Americans.

We look at what happens. I want to you think about any time there is any kind of a crisis or tragedy in the world. Who is the first responder? America, always America. It is just who we are. It is the very fabric of this Nation and what has been given to us.

We have been so blessed by God. And then the question becomes: Well, I would like to give a little bit more, but I didn't know by the end of the year that I was going to have that little bit extra to work with.

I am talking about guys and gals who get up every morning, the alarm goes off, they throw their feet out over the bed, and they want to do it for one reason: to put a roof over their family, food on their table, clothes on their backs, and prepare for their future.

Then they say at the end of that day: I have a little bit left over. I want to be able to give that to a charitable organization.

Is there anyplace else in the world where we see that happen, and happen on a regular basis, day in and day out?

Now this is not just thumping, ''I am proud of America.'' This is a humble pride that says, I thank our Lord and God for putting us in the position where we can actually share that which we have.

''From everyone who has been given much, much will be required.'' I understand that, but please don't turn this into a political argument when it comes to good policy. You know in the depths of your hearts where the American people are. You know what they have done year after year, in good times and in bad times. And we turn this into political theater when we talk about policy that is good, not just for every single American, but for every person they help.

Now, please, on the floor that sometimes seems so divided and wants to pick sides on who is doing the best job, I came here for one reason, and that was to serve the people from Pennsylvania's Third District who sent me here—both Republicans and Democrats, some that vote and some that don't vote—and to serve the needs of the American people.

Have we gone so far from those goals that we decide to make everything political? It is not just enough to agree with every single thing that comes forward, but then we use the hypocrisy, ''But wait a minute. This is not paid for,'' and the idea to pay for it is taxing people more.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. CAMP. I yield the gentleman an additional 30 seconds.

Mr. KELLY of Pennsylvania. I would hate to be in the position where I tell every American: You know what? We know how to spend the money better than you. We will make the decisions of how it gets doled out. In your heart of hearts, when you want to give to a charitable organization, forget it. We will make that decision. Send the money to Washington, because we have done such a wonderful job with it.

No, my friends, that is not America. That is not who we are. That is not who we will ever be. That is not the fabric of this great Nation.

So I ask you to look past your political ambitions and beating each other up, and look at what is good policy for every single American. I urge the passage of this bill.

Mr. LEVIN. Mr. Speaker, could you tell us how much time remains on each side, please.

The SPEAKER pro tempore. The gentleman from Michigan (Mr. LEVIN) has 7½ minutes remaining. The gentleman from Michigan (Mr. CAMP) has 9½ minutes remaining.

Mr. LEVIN. I yield 3 minutes to the gentleman from Wisconsin (Mr. KIND), a member of our committee.

Mr. KIND. Mr. Speaker, I thank my friend for yielding me this time.

Mr. Speaker, here we are again. Over the last few weeks, the Ways and Means Committee has been bringing bill after bill to the House floor to make permanent changes to the Tax Code, but in a lot of the policy behind it, there is very little dispute and debate. It is the fact that they are bringing these bills to the floor without any pay-fors, without any offsets, and instead they are leaving this legacy of debt for future generations to have to contend with, or they increase our borrowing costs with China at a time when most of the discussion about this place has been about fiscal responsibility. It certainly must be an election year, because any limit to fiscal responsibility is out the door.

Here again today, we have got five bills that would make five permanent changes to the Tax Code, none of which is offset. One would extend the charitable deduction for firms that donate food from their inventories.

One would permanently extend the charitable deduction for donations of qualified conservation easements, a bill I have been particularly working hard to find a permanent fix in the Tax Code, having seen the good work that our land trusts in the Mississippi Valley Conservancy back home have been doing with those tax incentives in the Code.

Another bill would extend the tax-free exclusion from income of charitable contributions from the individual retirement accounts, the so-called IRA rollover charitable contribution, something that the chairman of the committee himself actually eliminated in his comprehensive tax reform discussion draft that was introduced earlier this year.

The Joint Committee on Taxation says you add all these five bills up, it is at a cost of over $16 billion. And again, not a nickel in it. There is no offset to pay for any of this.

At a time when long-term unemployment benefits have expired in the early part of this year, the cost of this bill here today alone would cover 35 times the cost of those emergency unemployment benefits for the duration of this year—35 times.

We are doing nothing to permanently change the so-called SGR, or the doc fix. We have sequestration hanging over our heads that is about to do more damage to our military and to the Federal budget, and no work is being done on that front.

Last week, we passed legislation, scratching and clawing, trying to find a little over $10 billion in offsets for a temporary extension of the infrastructure investment we have to be making in this country to keep the highway trust fund funded, and yet here we are with another five bills that will cost us $16 billion. Apparently, some in this

place don't even blink about spending that type of money. That is where we have got a problem—philosophically, I am afraid—as far as our approach to this.

There are better ways of doing this. I think one of the ways that could help jump-start this economy is working hard, making tough decisions, and moving forward on comprehensive tax reform to make our Code more competitive globally. And now we have got an emergency situation of more companies here in the United States trying to find some small entity overseas where they are foreign shopping for a low-tax jurisdiction to avoid taxation here in the United States, and this place is doing nothing about that.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. LEVIN. I yield the gentleman an additional 1 minute.

Mr. KIND. I would submit that between these five bills, the nine bills that have already come out of committee at a total cost of close to $900 billion, if we move forward down that track, there is no way, no ability for us to come back and address comprehensive tax reform in a fiscally responsible manner.

I, again, commend the chairman of the Ways and Means Committee, Mr. CAMP, for the courage he has demonstrated by offering that discussion draft, but in doing so, he had to make some tough decisions on what expenditures, what loopholes we would have to go without in order to pay for a lowering of rates.

If we give the store away today and with the previous bills that were passed and what might be coming up tomorrow, there will be no ability for us to be able to seriously work on the comprehensive tax reform that our country desperately needs in order to put us in a more competitive position in this 21st century global economy.

I encourage my colleagues to vote ''no.''

Mr. CAMP. At this time, I yield 2 minutes to the distinguished gentleman from Alaska (Mr. YOUNG).

(Mr. YOUNG of Alaska asked and was given permission to revise and extend his remarks.)

Mr. YOUNG of Alaska. Mr. Speaker, I want to thank the gentleman from Michigan, Chairman CAMP, for his work on this important legislation.

H.R. 4719, the America Gives More Act of 2014, is a package of bipartisan bills to improve or make permanent several tax rules governing charitable donations. Especially, I would like to speak to a provision in the bill concerning Alaska Native Corporations.

Alaska Native Corporations generally pay Federal corporate tax at the highest marginal rate but are not able to take advantage of many of the corporate tax credits like the other corporations.

□ 1145

Under the current Tax Code, the Federal Government provides favorable tax treatment for conservation easements donated by certain corporations owned by farmers and ranchers. Considering that in Alaska, Native corporation lands have high conservation value and lack access to many other corporate tax credits, it makes sense to extend these favorable tax benefits to Alaska Native corporations.

I must make it clear this provision does not mandate the creation of conservation easement, but allows Alaska Native landholders to determine themselves which lands will be best suited. I strongly support this provision and underlying bill.

Mr. Speaker, it is always interesting. We talk about our good chairman's proposal for tax reform. If I remember correctly, that side of the aisle criticized that tax reform badly, and did not do it when they were in the majority. They passed ObamaCare, they passed cap-and-trade, they passed the stimulus package, and they passed Dodd-Frank. They didn't address this issue of being fiscally responsible. That amazes me.

Now I hear from that side ''be fiscally responsible.'' Well, what we are trying to do here is give an extension for those who want to give instead of going through this Congress. Let's let the private individual be the one that is able to help his neighbor, not through a bureaucracy. I mean, it is amazing to me how this changes, how somebody on that side can say, well, we need reform, we need reform, and it was criticized by that side of the aisle.

I want to compliment the chair again for his hard work, and especially my provision. Thank you, Mr. Chairman.

Mr. LEVIN. Mr. Speaker, I yield myself 45 seconds.

Mr. Speaker, I just wonder where the gentleman from Alaska was. I mean PAYGO existed under Democrats. We tried to pay for things, and we did not dismiss out of hand the tax proposal.

The ones who are throwing it to the winds are Republicans. It is the Republicans. You are throwing fiscal responsibility to the winds. You are throwing any kind of prioritization to the winds. You are coming here and just saying, do anything and pay nothing.

Mr. Speaker, how much time is there now on both sides, please?

The SPEAKER pro tempore. The gentleman from Michigan (Mr. LEVIN) has 2 minutes remaining. The other gentleman from Michigan (Mr. CAMP) has 7½ minutes remaining.

Mr. LEVIN. Mr. Speaker, I reserve the balance of my time.

The SPEAKER pro tempore. Members are reminded again to direct their remarks to the Chair.

Mr. CAMP. Mr. Speaker, at this time, I yield 2 minutes to the distinguished gentleman from Montana (Mr. DAINES).

Mr. DAINES. Mr. Speaker, I rise in strong support of the America Gives More Act because it encourages charitable giving. This bill includes the Conservation Easement Incentive Act, which is very important to the people of Montana.

Rising property values and estate taxes make passing down working lands to future generations very, very difficult. In fact, in 2010, the Leep family, a family that has farmed in the Gallatin Valley, my home county, since 1926, faced the challenge of transferring a family farm to the next generation. Because of this incentive, the Leeps were able to donate land to the Gallatin Valley Land Trust, an organization that works on conserving working lands and other areas valued for wildlife habitat and for outdoor recreation, and kept the land in production and in the family's ownership.

The America Gives More Act makes this provision permanent and gives landowners the assurances they need to make long-term estate planning decisions. It is a commonsense, smart tax policy that makes a real difference in the lives of Montanans.

Mr. Speaker, I urge support for this measure.

Mr. LEVIN. Mr. Speaker, I reserve the balance of my time.

Mr. CAMP. At this time, I yield 2 minutes to the distinguished gentleman from Pennsylvania (Mr. FITZPATRICK).

Mr. FITZPATRICK. Mr. Speaker, I thank the chairman, Mr. CAMP, for his leadership on this issue. And I also want to thank and recognize Representative GERLACH of Pennsylvania. Over several terms here during his time in the United States Congress, he has been a constant advocate for so many important issues, including the conservation easement tax program which has helped a lot of people. And while this is another extension, what we really need is that it be made permanent in tax law.

Even with the temporary extension, so much good has been done. I remember coming here in 1999, while serving as a local elected official, a Bucks County commissioner. I was asked to testify before the United States Senate on this topic on the Federal Government helping to preserve land throughout our great Nation. And in those 15 years since, in my community of Bucks County, we have preserved over 10,000 acres of farmland, parkland, and critical natural areas.

It is important for so many different reasons, not just for good land use, planning, and quality of life, but also creating food security for our Nation. It reduces the cost of providing local government services.

So much good has come of the conservation easement program and this incentive act, which is part of the greater America Gives More Act we are debating today. It is not only good tax policy, but it is good environmental policy. These are issues that can bring us together as Democrats and Republicans in this House.

So by permanently removing the uncertainty for those communities who would set aside land for conservation easements, we are going to help ensure that we can pass on open spaces and

wild places to future generations of Americans yet to be born.

So, Mr. Speaker, it is my hope that this legislation will pass the House today, it will proceed swiftly through the United States Senate, and we can come together around an American ethic of preserving and conserving our open spaces and get this bill to the President's desk.

Mr. LEVIN. Mr. Speaker, I reserve the balance of my time.

Mr. CAMP. Mr. Speaker, at this time, I yield 2 minutes to the distinguished gentlewoman from Wyoming (Mrs. LUMMIS).

Mrs. LUMMIS. Mr. Speaker, I rise to support the Conservation Easement Incentive Act as well. Conservation easements are a cost-effective way of protecting valuable open space and farm and ranch land in the West, including in my home State of Wyoming.

Mr. Speaker, easement conservation is an alternative to government landownership and allows our local land stewards to continue the best management practices on private land.

The expiration of enhanced tax incentives for landowners discourages modest-income and working ranchers and farmers from participating in a program to permanently protect their land resources and their way of life. While these enhanced tax deductions have been extended multiple times, their on-again, off-again eligibility makes business and tax planning difficult for donors, especially since they are often delayed by the Federal Government's timeline.

Mr. Speaker, conservation easements leverage ranchers' and farmers' love of their land and allows them to maintain operations that are beneficial not only for agriculture, but for habitat, recreation, and our landscapes.

Mr. Speaker, I urge support of this bill. I thank the gentleman from Michigan, the Ways and Means Committee chairman, for this time.

Mr. CAMP. Mr. Speaker, how much time is remaining?

The SPEAKER pro tempore. The gentleman from Michigan (Mr. CAMP) has 3 minutes remaining. The other gentleman from Michigan (Mr. LEVIN) has 2 minutes remaining.

Mr. CAMP. At this time, I yield 2 minutes to the gentleman from Illinois (Mr. ROSKAM), the distinguished member of the Ways and Means Committee.

Mr. ROSKAM. Mr. Chairman, thank you for yielding.

Mr. Speaker, I am really pleased to rise today for this whole package but in particular H.R. 2807, which permanently extends conservation easement tax incentives. This worthy provision incentivizes property donations to groups who maintain the property for conservation purposes, encouraging good stewardship of our environment.

Mr. Speaker, the area in Illinois that you and I represent, suburban Chicago and areas outlying, are incredibly significant. There are beautiful places in the five counties that I represent and the many counties that you represent, Mr. Speaker, and this is an opportunity for the Tax Code to work in favor of land preservation and open space and to do it in a way that is thoughtful, to do it in a way that is inclusive, and to do it in a way that ultimately saves and preserves these precious natural resources and uses them not just for our generation but for the generations to come.

I want to thank the chairman for his leadership on this issue, and I urge its passage.

Mr. LEVIN. Mr. Speaker, this is a severe case of losing the forest for the trees. This is not about the benefits of charity. This is not about the benefits of foundations. It is not about the benefit of conservation easements. This is a dramatic challenge to Republicans in terms of fiscal responsibility and fiscal priorities.

They passed a budget that cuts severely into needed programs, and then they come here and say, let's pass provisions that would add up to close to $1 trillion and not pay one dime.

I don't think anything can be more fiscally irresponsible and hurt the priorities of this country. Maybe they do this because they know it is a dead end in the Senate. So they think somehow they can use this to their political advantage. But it is reckless, and it is to the harm of the Nation, and I think the process is on a bipartisan basis of this institution.

I urge everybody to vote ''no''. There is so much a better path than this reckless one.

Mr. Speaker, I yield back the balance of my time.

Mr. CAMP. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, the provisions we are talking about today, the policies, whether it is donations to food inventory or IRA contributions, excess dollars from an IRA, or whether it is a conservation easement, these are all items that have been extended unpaid for, if you will, time and time again.

We have heard a lot about the cost from the other side. But if charities, religious groups, foundations, food banks, if we can make these permanent—because, right now, these three are expired. They can't be used. But if we can make these permanent, we will see an increase in charitable giving—850 organizations have written us and said that would happen, all of them who serve the poor, who serve the needy, who serve Americans in trouble.

Also, it doesn't go through the government. What these charities do, what these religious groups do, and what these foundations do is beyond the power of government to give. Let's make these permanent. Let's extends these provisions. Let's increase charitable giving in the United States, and let's help people help themselves.

I urge a ''yes'' vote on the legislation, and I yield back the balance of my time.

Mr. HOLT. Mr. Speaker, I rise today in reluctant opposition to H.R. 4719, the Fighting Hunger Incentive Act of 2014.

The legislation before us today is another in a long line of picking and choosing which tax extenders to make permanent. Instead of looking at all of the tax extenders comprehensively we are again picking the extenders that many Members may find easy to approve, and making them permanent. I find it ironic that Representative CAMP has continued to bring permanent extenders to the floor, some of which he chose not to extend at all when he released his plan for comprehensive tax reform earlier this year.

But that aside, what is truly at issue here is again the unwillingness to find a way to pay for these tax expenditures. This package of five bills would increase the deficit by $16.2 billion over 10 years. With the passage of this package today the House will have approved $534.4 billion in tax breaks over ten years. This is more than the entire non-defense discretionary budget for all of this year. Republicans say that we do not have enough money to pay for an extension of unemployment insurance or to feed the most vulnerable in our society, yet here we are spending money they have said over and over that we do not have.

I support some of the individual extensions in this bill such as the Conservation Easement Incentive Act which allows for family farmers, ranchers and forest land owners to receive a tax break for setting aside areas of their land for conservation purposes, which is a noble and well intentioned goal.

However, I cannot support this legislation without considering the cost. We cannot continue to blindly pass permanent tax breaks, even if the outcome of such breaks would benefit charitable organizations.

I have seen firsthand what happens when we take that approach. We did that under President Bush and went from budget surpluses to budget deficits. Deficits that have pushed Congress to reduce investment in our country in recent years.

I look forward to Congress addressing the tax extenders that require action by the end of the year in a serious way, not the way in which they have been brought before us thus far.

The SPEAKER pro tempore. All time for debate has expired.

Pursuant to House Resolution 670, the previous question is ordered on the bill, as amended.

The question is on the engrossment and third reading of the bill.

The bill was ordered to be engrossed and read a third time, and was read the third time.

MOTION TO RECOMMIT

Mr. VAN HOLLEN. Mr. Speaker, I have a motion to recommit at the desk.

The SPEAKER pro tempore. Is the gentleman opposed to the bill?

Mr. VAN HOLLEN. I am opposed in its current form.

The SPEAKER pro tempore. The Clerk will report the motion to recommit.

The Clerk read as follows:

Mr. Van Hollen moves to recommit the bill H.R. 4719 to the Committee on Ways and Means with instructions to report the same back to the House forthwith with the following amendment:

Page 1, strike lines 7 through 9 and insert the following:

(a) TWO-YEAR EXTENSION.—Section 170(e)(3)(C)(iv) of the Internal Revenue Code of 1986 is amended by striking ''December 31, 2013'' and inserting ''December 31, 2015''.

Page 1, starting at line 12, strike ''by redesignating clause (iii) as clause (iv)'' and insert ''by redesignating clauses (iii) and (iv) as clauses (iv) and (v), respectively''.

Page 3, line 16, strike ''(v)'' and insert ''(vi)''.

Page 4, line 7, strike ''(vi)'' and insert ''(vii)''.

Page 5, strike lines 15 through 21 and insert the following:

SEC. 3. EXTENSION OF RULE ALLOWING CERTAIN TAX-FREE DISTRIBUTIONS FROM INDIVIDUAL RETIREMENT ACCOUNTS FOR CHARITABLE PURPOSES.

(a) IN GENERAL.—Section 408(d)(8)(F) of the Internal Revenue Code of 1986 is amended by striking ''December 31, 2013'' and inserting ''December 31, 2015''.

Page 6, strike lines 1 through 10 and insert the following:

SEC. 4. SPECIAL RULE FOR QUALIFIED CONSERVATION CONTRIBUTIONS EXTENDED AND MODIFIED.

(a) EXTENSION.—

(1) INDIVIDUALS.—Section 170(b)(1)(E)(vi) of the Internal Revenue Code of 1986 is amended by striking ''December 31, 2013'' and inserting ''December 31, 2015''.

(2) CORPORATIONS.—Section 170(b)(2)(B)(iii) of such Code is amended by striking ''December 31, 2013'' and inserting ''December 31, 2015''.

Page 7, after line 23 insert the following:

''(iv) TERMINATION.—This subparagraph shall not apply to any contribution made in taxable years beginning after December 31, 2015.''.

Page 8, line 23, strike ''after the close of a taxable year'' and insert ''after the close of any taxable year beginning in 2014 or 2015''.

Page 9, striking lines 16 through 22 and insert the following:

(a) IN GENERAL.—Section 4940(a) of the Internal Revenue Code of 1986 is amended by inserting ''(1 percent in the case of any taxable year beginning in 2014 or 2015)'' after ''2 percent''.

(b) REDUCED TAX WHERE FOUNDATION MEETS CERTAIN DISTRIBUTION REQUIREMENTS.—Section 4940(e) of such Code is amended by adding at the end the following new paragraph:

''(7) COORDINATION WITH TEMPORARY REDUCTION OF RATE.—Paragraph (1) shall not apply in the case of any taxable year beginning in 2014 or 2015.''.

At the end of the bill, add the following:

SEC. 8. TAX BENEFITS DISALLOWED IN CASE OF INVERTED CORPORATIONS.

(a) IN GENERAL.—In the case of an inverted domestic corporation, the Internal Revenue Code of 1986 shall be applied and administered as if the provisions of, and amendment made by, this Act had never been enacted.

(b) INVERTED DOMESTIC CORPORATION.—

(1) IN GENERAL.—For purposes of this section, the term ''inverted domestic corporation'' means any foreign corporation—

(A) which, pursuant to a plan or a series of related transactions, completes after May 8, 2014, the direct or indirect acquisition of—

(i) substantially all of the properties held directly or indirectly by a domestic corporation, or

(ii) substantially all of the assets of, or substantially all of the properties constituting a trade or business of, a domestic partnership, and

(B) more than 50 percent of the stock (by vote or value) of which, after such acquisition, is held—

(i) in the case of an acquisition with respect to a domestic corporation, by former shareholders of the domestic corporation by reason of holding stock in the domestic corporation, or

(ii) in the case of an acquisition with respect to a domestic partnership, by former partners of the domestic partnership by reason of holding a capital or profits interest in the domestic partnership, or

(C) the management and control of the expanded affiliated group of which, after such acquisition, occurs (directly or indirectly) primarily within the United States, and such expanded affiliated group has significant domestic business activities.

(2) EXCEPTION FOR CORPORATIONS WITH SUBSTANTIAL BUSINESS ACTIVITIES IN FOREIGN COUNTRY OF ORGANIZATION.—A foreign corporation shall not be treated as an inverted domestic corporation for purposes of this paragraph if after the acquisition the expanded affiliated group which includes the entity has substantial business activities in the foreign country in which or under the law of which the entity is created or organized when compared to the total business activities of such expanded affiliated group. For purposes of the preceding sentence, the term ''substantial business activities'' shall have the meaning given such term under regulations under 7874 of the Internal Revenue Code of 1986 in effect on May 8, 2014, except that the Secretary may issue regulations increasing the threshold percent in any of the tests under such regulations for determining if business activities constitute substantial business activities for purposes of this subparagraph.

(3) MANAGEMENT AND CONTROL.—For purposes of paragraph (1)(C)—

(A) IN GENERAL.—The Secretary shall prescribe regulations for purposes of determining cases in which the management and control of an expanded affiliated group is to be treated as occurring, directly or indirectly, primarily within the United States. The regulations prescribed under the preceding sentence shall apply to periods after May 8, 2014.

(B) EXECUTIVE OFFICERS AND SENIOR MANAGEMENT.—Such regulations shall provide that the management and control of an expanded affiliated group shall be treated as occurring, directly or indirectly, primarily within the United States if substantially all of the executive officers and senior management of the expanded affiliated group who exercise day-to-day responsibility for making decisions involving strategic, financial, and operational policies of the expanded affiliated group are based or primarily located within the United States. Individuals who in fact exercise such day-to-day responsibilities shall be treated as executive officers and senior management regardless of their title.

(4) SIGNIFICANT DOMESTIC BUSINESS ACTIVITIES.—For purposes of paragraph (1)(C), an expanded affiliated group has significant domestic business activities if at least 25 percent of—

(A) the employees of the group are based in the United States,

(B) the employee compensation incurred by the group is incurred with respect to employees based in the United States,

(C) the assets of the group are located in the United States, or

(D) the income of the group is derived in the United States,

determined in the same manner as such determinations are made for purposes of determining substantial business activities under regulations referred to in paragraph (3) as in effect on May 8, 2014, but applied by treating all references in such regulations to ''foreign country'' and ''relevant foreign country'' as references to ''the United States''. The Secretary may issue regulations decreasing the threshold percent in any of the tests under such regulations for determining if business activities constitute significant domestic business activities for purposes of this paragraph.

(5) EXPANDED AFFILIATED GROUP.—For purposes of this paragraph, the term ''expanded affiliated group'' has the meaning given such term in section 7874(c) of the Internal Revenue Code of 1986.

Mr. VAN HOLLEN (during the reading). I ask unanimous consent to dispense with the reading.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Maryland?

Mr. CAMP. I object, Mr. Speaker, and I reserve a point of order against the motion to recommit.

The SPEAKER pro tempore. Objection is heard.

A point of order is reserved.

The Clerk will read.

The Clerk continued to read.

Mr. CAMP (during the reading). Mr. Speaker, I ask unanimous consent to dispense with the reading.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Michigan?

There was no objection.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Maryland is recognized for 5 minutes in support of his motion.

□ 1200

Mr. VAN HOLLEN. Mr. Speaker, this is the final amendment to the bill. It will not kill the bill or send it back to committee. If adopted, the bill will immediately proceed to final passage, as amended.

Mr. Speaker, this motion to recommit does two things. First, it ensures that the charities we support, we support in a fiscally responsible manner by extending these incentives for 2 years, rather than permanently in order to, number one, give taxpayers clarity, but also to give this Congress time to work together on tax reform without piling up huge new deficits.

Mr. Speaker, just yesterday in the Budget Committee, we had a hearing on the long-term deficits. Our Republican colleagues said they worry about the long-term deficit picture, and yet, in the last 6 weeks, they have added over $500 billion to the deficit, in violation of their own budget, including what we are doing today. So let's do this extension for 2 years and in a fiscally responsible manner.

The second thing this motion does is it denies the benefits of this legislation to any corporation that effectively renounces its U.S. citizenship and reincorporates overseas to avoid taxes. These so-called corporate inversions are generating outrage among families and small businesses around the country who can't simply tell the IRS they have moved their residence to some tax haven country because they don't want to pay their taxes.

In recent months, we have seen corporation after corporation jumping on this bandwagon. In fact, the financial press reports that Walgreens, the drugstore chain that has almost all of its

stores right here in the United States, is thinking about moving to Switzerland.

Now here is the catch: Walgreens' management doesn't want to do it, but they are being driven by outside hedge fund stockholders to do this simply for tax purposes, so we have a situation where the management of an American company is being forced to decide between pressure from hedge funds to exploit a tax dodge and loyalty to the United States of America, the country where Walgreens was built into a company and where its customers are.

Just on Tuesday, Secretary Lew wrote to Congress expressing urgency to stop this fled of inversions now as we deal with broader tax reform. He called for a new sense of economic patriotism, and I couldn't agree with him more.

The ranking member of the Ways and Means Committee, Mr. LEVIN, and others have worked together to do this. We have got to get it done. The respected reporter, Alan Sloan, just wrote about this in Fortune magazine this month and said he was angry about this.

Mr. Speaker, we should all be angry. We should do something about it. We have already voted to say, on appropriations bills, that you shouldn't benefit from contracts if you are just going to move your residency overseas.

We should say the same thing with respect to tax benefits. You shouldn't get a tax benefit if you are renouncing your U.S. citizenship and deserting U.S. taxpayers and the country for tax-avoidance schemes.

Mr. Speaker, I am very pleased to yield the balance of my time to the gentleman from Massachusetts (Mr. NEAL), a member of the Ways and Means Committee.

Mr. NEAL. Mr. Speaker, I thank Mr. VAN HOLLEN.

To listen to the histrionics from the other side here today, you would think that we could run the Pentagon through charitable giving. You would think that if there was just a deduction for charitable giving, we would have people volunteering to give their money to the Pentagon.

The reality is that, in this institution, we have had time for Benghazi. We have had time for the IRS, and guess what, next week and the week after, we are going to find time to sue the President of the United States, but we don't have time to address the American Tax Code where, as Mr. VAN HOLLEN has just described, 40 companies are lined up to leave.

Yesterday, the acting head of the VA said we are going to need $18 billion to straighten out the VA, based upon the men and women who have honorably served this Nation.

Mr. CAMP said yesterday, in an email to The Wall Street Journal:

Our Tax Code is dysfunctional.

Let me refer to what the gentleman from Alaska said just a few moments ago. He blamed Democrats in this Chamber for thwarting tax reform. I guess he didn't vote for the Speaker of the House because the Speaker of the House looked at the issue and said ''blah, blah, blah'' about tax reform—even as $20 billion, in terms of base erosion, is about to abandon the United States.

If you want to do something about charitable giving—and everybody in this institution honors Tocqueville's description of what is known as habits of the heart, we do it naturally. It is the third largest expenditure in the American Tax Code.

Nobody is talking about disarming charitable giving. What we are saying is that Mr. CAMP is correct in his email to The Wall Street Journal yesterday. The Tax Code is, in fact, dysfunctional, and we should be addressing it.

Mr. VAN HOLLEN. Mr. Speaker, I yield back the balance of my time.

Mr. CAMP. Mr. Speaker, I withdraw my point of order and seek time in opposition to the motion.

The SPEAKER pro tempore. The point of order is withdrawn.

The gentleman from Michigan is recognized for 5 minutes.

Mr. CAMP. Mr. Speaker, this motion would create chaos for the charitable community. Americans are more generous than any other nation in the world. What we need is certainty in our Tax Code—certainty for those who want to donate food to food banks, certainty for those who want to make excess contributions to IRAs, and certainty for those who want to preserve fragile land for future generations.

This motion makes it much harder to help those in need, and God knows, we have a lot of Americans in need with a contracting economy and the worst recovery since the Great Depression.

We are the only nation in the world with temporary tax policies. Some of these provisions have expired and have been renewed time and time again, and we need to admit it and make them permanent.

Let me just say, when it comes to inversions, the administration agrees with me that the best way to address this issue is through lower rates and through comprehensive tax reform, and we should be doing that, but this motion actually creates a perverse incentive for American companies to pack up and move overseas. That is the worst thing we can do for American workers.

I urge a ''no'' vote on this motion to recommit and a ''yes'' vote on the underlying legislation.

I yield back the balance of my time.

The SPEAKER pro tempore. Without objection, the previous question is ordered on the motion to recommit.

There was no objection.

The SPEAKER pro tempore. The question is on the motion to recommit.

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

Mr. VAN HOLLEN. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 9 of rule XX, the Chair will reduce to 5 minutes the minimum time for any electronic vote on the question of passage of the bill.

The vote was taken by electronic device, and there were—yeas 185, nays 227, not voting 20, as follows:

[Roll No. 431]

YEAS—185

Bass
Beatty
Becerra
Bera (CA)
Bishop (GA)
Bishop (NY)
Blumenauer
Bonamici
Brady (PA)
Braley (IA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Cooper
Costa
Courtney
Crowley
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
Deutch
Dingell
Doggett
Doyle
Duckworth
Edwards
Ellison
Engel
Enyart
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Garcia
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hastings (FL)
Heck (WA)
Higgins
Himes
Hinojosa
Holt
Honda
Horsford
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lewis
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lynch
Maffei
Maloney, Carolyn
Maloney, Sean
Matheson
Matsui
McCarthy (NY)
McCollum
McDermott
McGovern
McIntyre
McNerney
Meeks
Meng
Michaud
Miller, George
Moore
Moran
Murphy (FL)
Nadler
Napolitano
Neal
Negrete McLeod
Nolan
O'Rourke
Owens
Pallone
Pascrell
Pastor (AZ)
Payne
Pelosi
Perlmutter
Peters (CA)
Peters (MI)
Peterson
Pingree (ME)
Pocan
Polis
Price (NC)
Quigley
Rahall
Rangel
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schneider
Schrader
Schwartz
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Shea-Porter
Sherman
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Tierney
Titus
Tonko
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters
Waxman
Welch
Wilson (FL)
Yarmuth

NAYS—227

Aderholt
Amash
Amodei
Bachmann
Bachus
Barber
Barletta
Barr
Barrow (GA)
Barton
Benishek
Bentivolio
Bilirakis
Bishop (UT)
Black
Blackburn
Boustany
Brady (TX)
Bridenstine
Brooks (AL)
Brooks (IN)
Broun (GA)
Buchanan
Bucshon
Burgess
Calvert
Camp
Cantor
Capito
Cárdenas
Carter
Cassidy
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Conaway
Cook
Cotton
Cramer
Crawford
Crenshaw
Culberson
Daines
Davis, Rodney
Denham
Dent
DeSantis
Diaz-Balart
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Farenthold

Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gardner
Garrett
Gerlach
Gibbs
Gingrey (GA)
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Griffin (AR)
Griffith (VA)
Grimm
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Heck (NV)
Hensarling
Herrera Beutler
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (OH)
Johnson, Sam
Jolly
Jones
Jordan
Joyce
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Labrador
LaMalfa
Lamborn
Lance
Lankford
Latham
Latta
LoBiondo
Long
Lucas
Luetkemeyer
Lummis
Marchant
Marino
Massie
McAllister
McCarthy (CA)
McCaul
McClintock
McHenry
McKeon
McKinley
McMorris Rodgers
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Noem
Nugent
Nunes
Olson
Palazzo
Paulsen
Pearce
Perry
Petri
Pittenger
Pitts
Poe (TX)
Pompeo
Posey
Price (GA)
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross
Rothfus
Royce
Runyan
Ryan (WI)
Salmon
Sanford
Scalise
Schock
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Sinema
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stewart
Stockman
Stutzman
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walorski
Weber (TX)
Webster (FL)
Wenstrup
Westmoreland
Williams
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IN)

NOT VOTING—20

Byrne
Campbell
Carney
Coble
Conyers
Cuellar
DesJarlais
Gibson
Hanabusa
Hoyer
Kingston
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Miller, Gary
Nunnelee
Sánchez, Linda T.
Sires
Stivers
Thompson (MS)
Whitfield

□ 1234

Messrs. LUETKEMEYER, SENSENBRENNER, POSEY, and Mrs. BLACK changed their vote from ''yea'' to ''nay.''

Ms. MCCOLLUM and Mr. DOGGETT changed their vote from ''nay'' to ''yea.''

So the motion to recommit was rejected.

The result of the vote was announced as above recorded.

The SPEAKER pro tempore. The question is on the passage of the bill.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. LEVIN. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 277, nays 130, not voting 25, as follows:

[Roll No. 432]

YEAS—277

Aderholt
Amash
Amodei
Bachmann
Bachus
Barber
Barletta
Barr
Barrow (GA)
Barton
Benishek
Bentivolio
Bera (CA)
Bilirakis
Bishop (GA)
Bishop (NY)
Bishop (UT)
Black
Blackburn
Boustany
Brady (TX)
Braley (IA)
Bridenstine
Brooks (AL)
Brooks (IN)
Broun (GA)
Brownley (CA)
Buchanan
Bucshon
Burgess
Bustos
Calvert
Camp
Cantor
Capito
Capps
Cassidy
Castro (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Conaway
Cook
Cotton
Cramer
Crawford
Crenshaw
Culberson
Daines
Davis, Rodney
DeFazio
Delaney
DelBene
Denham
Dent
DeSantis
Diaz-Balart
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Enyart
Esty
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foster
Foxx
Frankel (FL)
Franks (AZ)
Frelinghuysen
Gallego
Garamendi
Garcia
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Grayson
Griffin (AR)
Griffith (VA)
Grimm
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Heck (NV)
Heck (WA)
Hensarling
Herrera Beutler
Holding
Honda
Horsford
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jackson Lee
Jenkins
Johnson (OH)
Johnson, Sam
Jolly
Jordan
Joyce
Kelly (PA)
Kilmer
King (IA)
King (NY)
Kinzinger (IL)
Kline
Kuster
Labrador
LaMalfa
Lamborn
Lance
Langevin
Lankford
Latham
Latta
Lipinski
LoBiondo
Loebsack
Long
Lucas
Luetkemeyer
Lummis
Maffei
Maloney, Sean
Marchant
Marino
Massie
Matheson
McAllister
McCarthy (CA)
McCarthy (NY)
McCaul
McClintock
McHenry
McIntyre
McKeon
McKinley
McMorris Rodgers
McNerney
Meadows
Meehan
Messer
Mica
Michaud
Miller (FL)
Miller (MI)
Mullin
Mulvaney
Murphy (FL)
Murphy (PA)
Neugebauer
Noem
Nolan
Nugent
Nunes
Olson
Palazzo
Paulsen
Pearce
Perry
Peters (CA)
Peters (MI)
Peterson
Petri
Pingree (ME)
Pittenger
Pitts
Poe (TX)
Pompeo
Posey
Price (GA)
Rahall
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross
Rothfus
Royce
Ruiz
Runyan
Ruppersberger
Ryan (WI)
Salmon
Sanford
Scalise
Schneider
Schock
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shea-Porter
Shimkus
Shuster
Simpson
Sinema
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stewart
Stockman
Stutzman
Swalwell (CA)
Terry
Thompson (PA)
Thornberry
Tiberi
Tierney
Tipton
Titus
Turner
Upton
Valadao
Vargas
Veasey
Vela
Wagner
Walberg
Walden
Walorski
Walz
Weber (TX)
Webster (FL)
Wenstrup
Westmoreland
Williams
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IN)

NAYS—130

Bass
Beatty
Becerra
Blumenauer
Bonamici
Brady (PA)
Brown (FL)
Butterfield
Capuano
Carson (IN)
Cartwright
Castor (FL)
Chu
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Cooper
Costa
Courtney
Crowley
Cummings
Davis (CA)
Davis, Danny
DeGette
DeLauro
Deutch
Dingell
Doggett
Doyle
Duckworth
Edwards
Ellison
Engel
Eshoo
Farr
Fattah
Fudge
Gabbard
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hastings (FL)
Higgins
Himes
Hinojosa
Holt
Hoyer
Huffman
Israel
Jeffries
Johnson (GA)
Johnson, E. B.
Jones
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kind
Kirkpatrick
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lewis
Lofgren
Lowenthal
Lowey
Lynch
Matsui
McCollum
McDermott
McGovern
Meeks
Meng
Miller, George
Moore
Moran
Napolitano
Neal
Negrete McLeod
O'Rourke
Owens
Pallone
Pascrell
Pastor (AZ)
Payne
Pelosi
Perlmutter
Pocan
Polis
Price (NC)
Rangel
Richmond
Roybal-Allard
Rush
Ryan (OH)
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Schwartz
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Slaughter
Smith (WA)
Speier
Takano
Thompson (CA)
Tonko
Tsongas
Van Hollen
Velázquez
Visclosky
Wasserman Schultz
Waxman
Welch
Wilson (FL)
Yarmuth

NOT VOTING—25

Byrne
Campbell
Cárdenas
Carney
Carter
Coble
Conyers
Cuellar
DesJarlais
Gohmert
Hanabusa
Kingston
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Maloney, Carolyn
Miller, Gary
Nadler
Nunnelee
Quigley
Sánchez, Linda T.
Sires
Stivers
Thompson (MS)
Waters
Whitfield

□ 1241

So the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

□ 1245

LEGISLATIVE PROGRAM

(Mr. HOYER asked and was given permission to address the House for 1 minute.)

Mr. HOYER. Mr. Speaker, I yield to the gentleman from California (Mr. MCCARTHY) for the purposes of inquiring of the majority leader-elect the schedule for the week to come.

Mr. MCCARTHY of California. I thank the gentleman for yielding.

Mr. Speaker, on Monday, no votes are expected in the House. On Tuesday, the House will meet at noon for morning hour and 2 p.m. for legislative business. Votes will be postponed until 6:30 p.m. On Wednesday and Thursday, the House will meet at 10 a.m. for morning hour and noon for legislative business. On Friday, the House will meet at 9 a.m. for legislative business. Last votes of the week are expected no later than 3 p.m.

Mr. Speaker, the House will consider a few suspensions next week, a complete list of which will be announced by close of business tomorrow and which, I am proud to say, will include additional bills to combat human trafficking.

In addition, the House will consider two bills to support innovation and enhance financial counseling in higher education: H.R. 3136, the Advancing Competency-Based Education Demonstration Project Act, authored by Representative MATT SALMON; and H.R. 4984, the Empowering Students through Enhanced Financial Counseling Act, authored by Representative BRETT GUTHRIE.

The House will consider H.R. 3393, the Student and Family Tax Simplification Act. It is a bipartisan bill, authored by Representatives DIANE BLACK and DANNY DAVIS, to ensure a simple and fair Tax Code so that students and families can afford a college education.

The House will consider H.R. 4935, the Child Tax Credit Improvement Act of 2014, authored by Representative LYNN JENKINS, to help low- and middle-income families save for child expenses.

Finally, the House will also consider legislation to address the growing crisis on the border and the reauthorization of the Terrorism Risk Insurance Act.

Mr. HOYER. I thank the gentleman for his information.

He mentioned, in closing, the Terrorism Risk Insurance Act. As the gentleman knows, that bill did not come to the floor this week as we may have thought it would. We think this bill is a very, very critically important bill that needs to be addressed before it expires at the end of this year.

As the gentleman probably knows, the Senate is expected to vote on the passage of their bill, as I understand it, today. I expect it to be a bipartisan vote, as TRIA has been a bipartisan vote in the past. I hope that we can follow suit with that quickly, so I am pleased to see that the gentleman says that that may well be on the agenda for next week. I don't know whether the gentleman wants to make any further comment, but we believe that is a very, very important piece of legislation for us to move.

I yield to my friend.

Mr. MCCARTHY of California. I thank the gentleman.

I did say ''may'' come up. We would always like to work together on any capabilities that we can on legislation that we move forward, and once the timing is finalized, the Rules Committee will announce a hearing on the measure to determine the process by which the bill will be brought before the floor.

Mr. HOYER. Again, I hope that we can do that as soon as possible. To the extent that we pass it before the August break, I think that will give confidence to the construction industry and confidence to municipalities in areas around the country. Hopefully, we can do that, as I said, sooner rather than later.

There is another matter that is critically time sensitive, in my view, Mr. Leader. As we all know, we have a humanitarian crisis on the border, and addressing this crisis is very necessary for us to do in a timely fashion. I think almost everybody agrees on that. The supplemental is not on the schedule for next week, but I am wondering whether or not you contemplate that supplemental. The Speaker had said we ought to do something before the August break. We have 3 weeks left to go, and I am wondering whether you could give us some insight into the progress of that supplemental that the President has requested.

I yield to my friend.

Mr. MCCARTHY of California. Again, I thank the gentleman for yielding.

As I mentioned, in the schedule announcement for next week, Members should be prepared for the possible consideration of legislation to address the ongoing border crisis. Once again, once the timing is finalized, the Rules Committee will announce a hearing on the measure to determine the process by which the bill will be brought before the floor.

Mr. HOYER. I thank the gentleman for that news. That is good news. Hopefully, we will be able to move on this next week because it is very important that we get this done as soon as possible because the crisis is posing immediate demands on our resources.

I would say to the gentleman, can he illuminate at all whether or not that supplemental will be limited to the resources necessary to confront the crisis?

I have heard some comments that there may be changes in the underlying law with respect to how individuals at the border are treated depending upon where they come from. While I think that both the administration and others have indicated that that matter ought to be considered, there is no doubt that it will be more controversial than, I think, the supplemental will be.

Can the gentleman tell me whether or not he expects the supplemental to include attempts to amend existing immigration law, or whether or not we can consider changes to immigration law in a more either comprehensive form or in an individual bill form and, perhaps, in conjunction with the border security bill that has passed out of the Homeland Security Committee in this House, as I understand it, on voice vote? I don't know whether it was unanimous, but I don't think there was opposition to it.

I yield to my friend.

Mr. MCCARTHY of California. Again, I thank the gentleman for yielding.

As the gentleman knows, there has been ongoing consideration of this.

As the gentleman knows, from this side of the aisle, many of our Members, including on your side of the aisle, have been to the border to see this crisis, and it is the intent that we solve this problem and solve it for the long term. So, as I did mention in the schedule announcement for next week, Members should still be prepared for the possible consideration of the legislation to address the ongoing border crisis, and we will keep you posted.

Mr. HOYER. Again, I would just reiterate that I think we both feel that we need to act on this, but I would urge the gentleman to urge his committees and his side of the aisle to bring the supplemental—and I talked to Mr. ROGERS about bringing the supplemental—whatever that supplemental may entail, on the resources necessary to deal with the crisis and not to try to also deal with the legislative issue, which, I think, is a substantive issue. As you point out, on both sides of the aisle, people have raised this issue, but there is no doubt that that will slow down considerably the passing of a supplemental for the emergency money that is necessary today.

So I would hope that he would keep that in mind and that he would, hopefully, urge his party and his committee—the Appropriations Committee—to report out a clean bill at whatever levels they believe are appropriate for whatever objectives they believe are appropriate and let us deal with the resources now and the policy in a more considered way after hearings. I will be glad to yield if you want to respond.

Lastly, Mr. Leader and Mr. Speaker, we have talked about a Make It In America agenda. As the gentleman knows, there are some 70 bills that we have suggested as part of that agenda. We believe this House needs to focus on jobs, and it is still the main concern of the American people.

I know the gentleman, in telling us the schedule, indicated there are some bills on there that are trying to deal with jobs. It is my understanding that Representative SWALWELL's bill will be on the calendar next week as a suspension bill. I want to thank the gentleman for putting that on the suspension calendar, and I hope that I can work with him.

Mr. CANTOR and I had discussed some of the Make It In America bills, and I hope that I can work with him on these bills, which I think are bipartisan. Every Member of this Congress wants to see more jobs created and more stimulus to create jobs provided.

There is a particular bill that was going to be on the suspension calendar some months ago, and it has not yet made it. The gentleman and I have discussed it. Mr. LIPINSKI has a bill which deals with a plan for making America as competitive as it can be. That bill passed out of the last Congress unanimously out of committee, and it passed this House with over 350 votes. It has again passed out of committee overwhelmingly. I don't know whether there was a recorded vote or not, but it

overwhelmingly came out of committee, and I would hope that the gentleman would, with his staff, review and consider adding that bill as well to the suspension calendar at some time in the future.

I yield to the gentleman.

Mr. MCCARTHY of California. Again, I thank the gentleman for yielding.

Yes, we have had those conversations, and I appreciate the continual conversations.

As the gentleman knows, the Science Committee has several manufacturing and jobs bills before it, and I am confident they are reviewing and giving all due consideration. The bill that you speak of that passed out of the last Congress was changed within this Congress, and I know the process in which it is going. I do not anticipate any coming up next week, but we will certainly notify the Member of any consideration in the House in the future.

Mr. HOYER. I thank the gentleman, and I appreciate his comments.

Mr. Speaker, I yield back the balance of my time.

MOTION TO INSTRUCT CONFEREES ON H.R. 3230, PAY OUR GUARD AND RESERVE ACT

Mr. BARBER. Mr. Speaker, I have a motion at the desk.

The SPEAKER pro tempore (Mr. HOLDING). The Clerk will report the motion.

The Clerk read as follows:

Mr. Barber moves that the managers on the part of the House at the conference on the disagreeing votes of the two Houses on the House amendment to the Senate amendment to the bill H.R. 3230 (an Act to improve the access of veterans to medical services from the Department of Veterans Affairs, and for other purposes) be instructed to—

(1) recede from disagreement with section 701 of the Senate amendment (relating to the expansion of the Marine Gunnery Sergeant John David Fry Scholarship); and

(2) recede from the House amendment and concur in the Senate amendment in all other instances.

The SPEAKER pro tempore. Pursuant to clause 7(b) of rule XXII, the gentleman from Arizona (Mr. BARBER) and the gentleman from Florida (Mr. MILLER) each will control 30 minutes.

The Chair recognizes the gentleman from Arizona.

Mr. BARBER. Mr. Speaker, I yield myself such time as I may consume.

I rise today in strong support of the Veterans' Access to Care through Choice, Accountability, and Transparency Act of 2014, which was passed by the Senate 93–7 on June 11 of this year.

This critical piece of legislation is one that must be implemented immediately to provide solutions to the many problems that have been discovered at the Department of Veterans Affairs and to provide the necessary care and assistance that our veterans deserve. We must move immediately on an agreement with the Senate and not further delay the long overdue care that our veterans need and have earned.

The most expeditious way to do this would be to move forward with the Senate bill, one, as I said, that was supported by 93 Senators—Republican, Democrat, and Independent alike. I know that my colleagues in the House and Senate are committed to serving our veterans. Services for our veterans, I am pleased to say, is an issue of great importance and is one that continuously receives strong bipartisan support in both Chambers.

I want to applaud Chairman MILLER and the Veterans' Affairs Committee and Ranking Member MICHAUD for their hard work in bringing to light the many problems and the terrible corruption that we have discovered in the VA, and for working to improve the care for our veterans.

I am here to fight for the veterans and the military families in my district and for those across the country. Mr. Speaker, this is a deeply personal issue with me. My father was a veteran of World War II. He joined the Army Air Corps, and probably lied about his age so he could go serve his country.

□ 1300

He served in World War II. He went on to serve in Korea and Vietnam, and when he left the Air Force, he extensively used the services of the veterans administration.

Were he alive today, I know he would be enraged by what has been discovered about the neglect, misconduct, and manipulation of the VA waiting lists, so that top executives could receive financial rewards and bonuses.

The 85,000 veterans I work for in southern Arizona—and countless more nationwide—deserve better from us and from the Department of Veterans Affairs than they have been getting.

I have been pressing for better access to health care for our veterans since I first came to Congress in 2012. One of the first bills I introduced was the Veterans Health Access Act, to ensure that veterans could get the health care they needed in their communities, without long commutes and even longer wait times, and I am pleased that the House and Senate are now working to address this issue.

We must improve the quality and timeliness of care to our veterans, and that is why, today, Mr. Speaker, I stand before you to call on my colleagues in the House and the Senate to support the Senate bill that increases access to care and takes many more steps to improve services and support for our veterans and their families.

Included in the Senate-passed bill is the expansion of the Marine Gunnery Sergeant John David Fry Scholarship, so that surviving spouses may have a chance to further their education and take care of their families.

The Marine Gunnery Sergeant John David Fry Scholarship is a current education benefit for the surviving children of our fallen military servicemembers. It has sent many sons and daughters of fallen heroes to college and given them the opportunity to get the American Dream.

However, it is important that we also offer this benefit to the spouses who are left widowed and must singlehandedly care for their families. This scholarship could provide many spouses an opportunity to get the education they need and the jobs that will help them succeed and support their family.

This scholarship was originally created in memory of John David Fry, who was a leader of marines from Lorena, Texas. Gunnery Sergeant Fry, a member of the explosive ordnance disposal community, demonstrated true service to his country and to his fellow marines in Iraq.

With only 1 week left on his tour in 2006, he injured his hand and was given the option to return home early with a Bronze Star. Fry declined the offer and volunteered to go on one last patrol, to defuse bombs for his fellow servicemembers.

Sadly, Gunnery Sergeant Fry was killed that day by an improvised explosive device in Anbar province, Iraq, leaving behind his wife and three small children.

Mr. Speaker, this type of courage and sacrifice has been witnessed countless times in the past 13 years by our men and women in uniform. For example, just recently, on May 12, a soldier from my district with 29 years of military service succumbed to the wounds he received in Afghanistan.

Command Sergeant Major Martin R. Barreras of Tucson was the enlisted leader of his infantry battalion in Harat province and was on his sixth deployment to Afghanistan.

While on patrol with his soldiers, Gunny—as his family likes to call him and remember him—was fatally wounded by small-arms fire while leading his troops into battle.

This was not the only time this respected leader saw combat. In 2003, Sergeant Major Barreras helped rescue former prisoner of war Jessica Lynch from an Iraqi hospital. At the time, he was the enlisted leader of the Army battalion that conducted the mission.

He personally handed Lynch to another soldier to transfer her to the helicopter that evacuated her from the area and to safety. According to reports, he then fended off multiple attacks to retrieve all nine bodies of the other U.S. soldiers missing in action.

Everyone in our country owes all of our fallen heroes, such as Gunnery Sergeant Fry and Command Sergeant Major Barreras, a debt of gratitude for their service and their courage, but we must also remember the silent courage of spouses of our servicemembers who must cope with the rigors of military life and who must live with only the memory of their fallen husband or wife.

These unsung heroes are the ones who maintain the homefront for our deployed men and women in uniform. They are the ones who maintain the

morale of our troops. They are the ones who unite with other military families to develop a support network for those spouses and children while their loved ones are in harm's way.

They are the ones who live with constant worry of their servicemember's safety, and they are the ones who must bear the burden in the absence of their husband or wife.

Our military spouses play a pivotal role in our Nation, and it is one that we must never forget. This is a good way to honor that service, by providing a scholarship in memory not just of Gunnery Sergeant Fry and Command Sergeant Barreras, but all of the servicemembers who died for our country and have left behind a loving family.

Mr. Speaker, I urge my colleagues on both sides of the aisle to support this motion to instruct, to support the expansion, with no limitations, of the Gunnery Sergeant John David Fry Scholarship.

I further urge swift passage to pass the Veterans' Access to Care through Choice, Accountability, and Transparency Act of 2014 in its entirety. We must act now to enact this legislation and get our veterans the care that they deserve.

Mr. Speaker, I reserve the balance of my time.

Mr. MILLER of Florida. Mr. Speaker, I rise in opposition to the motion to instruct and yield myself such time as I may consume.

As we have already heard, the motion to instruct would require the House to recede to the Senate amendment to H.R. 3230.

Solving the problem of timely access to health care and imposing the rule of accountability is absent at VA, and I think that is our first and most important obligation because it is the source of many of the problems that exist within the Department, many of the problems that were uncovered because of the oversight from both Republicans and Democrats on the House Committee on Veterans' Affairs.

We are making good progress with our negotiations with our Senate colleagues, and now is not the time to try to tie the hands of the negotiators with what I believe is a partisan ploy.

Moreover, yesterday, Senator SANDERS indicated that he wanted to expand the scope of the conference committee's work far beyond what the Senate bill itself had encompassed, by adding VA's request for an additional $17.6 billion into the mix.

So today, I say to my colleagues I am not even sure that the Senate could recede to the Senate amendment because they keep moving the goalposts.

As I said yesterday, on the last motion to instruct, the inspector general and the GAO have both stated on multiple occasions during our hearings that they do not have confidence in VA's numbers.

Moreover, at every VA budget hearing, the Secretary has been asked: Do you have the dollars you need to take care of the veterans that you are tasked with taking care of? Invariably, we get the answer, every single time, yes.

So why should we believe that, suddenly, VA sees the need to add an additional $10 billion to hire 10,000 new clinical staff and $6 billion in new construction without having those numbers vetted?

When our staff was briefed yesterday on this request for $17.6 billion—actually, I don't even know if it is a request yet, but when the Secretary talked about it, they came to brief our staffs, and they brought three sheets of paper to justify a $17.6 billion number.

To the Members on both sides of the aisle, I caution that, despite the urgency of the current crisis, we have got to root out the cause that has been affecting timely access to care and accountability, not secondary issues, many of which we all support, including the Fry Scholarship fund expansion.

If we don't, those of us fortunate enough to be here years from now will be right back where we are, debating, once again, how things went wrong at the VA.

I would point out again, as I did yesterday, there are dozens of bills sitting, languishing in the Senate, including the authorization of 27 clinics. The motion to instruct yesterday talked about receding to the Senate bill that had 26 clinics.

The House bill was passed in December of last year—27 clinics. If the Senate would just bring it up, pass it, send to it the President, we could immediately make a difference.

I also talked about the expansion of the Fry Scholarship program. That is something that we certainly should look at, but it will do nothing, nothing to increase the care and break the backlog, the lines that our veterans are waiting in now to get the health care that they have earned.

So I would ask the Senate to pass the dozen bills that sit over there on their side, send them to the President today, and I would also point out that I am willing to discuss—and I think most Members on our side—the Fry Scholarship issues, but we don't think that they are in the scope of the emergency that exists today.

Part of the reason that I believe that, section 701 of the Senate bill does not address timely access to care or the cultural corruption that exists within the Department.

A surviving spouse—as my colleague, Mr. BARBER has already said—who has a spouse that was killed on active duty is already entitled to receive financial benefits that include 45 months of GI Bill-type education benefits, $500,000 in death benefits, and $1,215 in monthly dependency and indemnity compensation benefits.

In short, I don't believe it is time for us to be talking about expanding the benefits without expressing them through regular order here on the House floor, especially in the face of what I now understand is the Senate's new effort to move the goal line in our conference committee work.

Mr. Speaker, I reserve the balance of my time.

Mr. BARBER. Mr. Speaker, could you advise me on how much time remains?

The SPEAKER pro tempore. The gentleman from Arizona has 22 minutes remaining.

Mr. BARBER. Mr. Speaker, I want to introduce a series of Members who would like to speak to this issue, but before I do, I would just say this: I have been here now a little bit more than 2 years, and I have learned a few things.

One of those things I have learned is that, when you have the public's attention and when you have this Chamber's attention and when you have the Senate's attention on an issue of importance like this, you act, and you do as much as you can to not only take care of the corruption, the systemic problems within the VA, but other issues that have been pending for a long time. To that end, I hope that we will, in fact, recede to the Senate version of the legislation.

Mr. Speaker, I yield 3 minutes to my colleague from Arizona (Mrs. KIRKPATRICK), ranking member on the Oversight Subcommittee of the Veterans' Affairs Committee, who has been a strong fighter for our veterans her entire time in Congress.

Mrs. KIRKPATRICK. Mr. Speaker, I support this motion to instruct the conferees. The Senate amendments go beyond a short-term solution to solving the patient access crisis at the VA.

As a member of the conference committee, I continue to push for the provisions in the Senate amendments because they are good for veterans and their families.

We must seize this opportunity to pass meaningful reforms at the VA. Our veterans and their families deserve better than piecemeal, short-term fixes, especially with report after report of veterans struggling to receive timely care and benefits and struggling to find good-paying jobs.

One provision in the Senate amendment will give post-9/11 GI benefits to surviving spouses of servicemembers who have given the ultimate sacrifice for our country.

We cannot forget about surviving spouses. A surviving spouse struggles with the loss of a loved one and often struggles with a financial loss that can make it difficult to provide for the family left behind.

Servicemembers are able to transfer GI Bill benefits to their spouses and children, but the benefits and the ability to transfer this benefit are based on time served on active duty.

We can all agree that surviving spouses should not be cut out of receiving full bill benefits if they lose a loved one before that loved one has served 36 months on active duty.

The Post-9/11 GI Bill will give surviving spouses the opportunity to receive education and training so they

are better able to provide for themselves and their families. It would be wrong of the conference committee and Congress to pass up this opportunity to give surviving spouses this benefit.

We cannot delay passing meaningful veterans legislation. If we do not take this opportunity now, then Congress will once again fail all the American people, veterans, and their families by refusing to act.

□ 1315

Passing VA reform legislation in a meaningful way that gives GI Bill benefits to surviving spouses should be an easy decision for every Member of Congress.

For those who are holding up the progress of this legislation, how will you go home to your district in August and explain to veterans and constituents why Congress was unable to pass something as simple as giving GI benefits to surviving spouses?

I know that all of my colleagues sincerely wish to help veterans and their families, but it is not enough to pay lip service to our military and veterans. Congress must act now. At the very least, the conference committee should agree to this provision in the Senate amendments.

Mr. MILLER of Florida. Mr. Speaker, I hope that the last speaker did not imply that anybody on the conference committee from the House was trying to delay the progress on this particular bill.

With that, I reserve the balance of my time.

Mr. BARBER. Mr. Speaker, next I would like to yield 3 minutes to the gentlewoman from Nevada, Congresswoman DINA TITUS, a member of the House Veterans' Affairs Committee, who has introduced legislation here in the House, H.R. 3441, the Spouses of Heroes Education Act, which would expand this scholarship.

As a university professor at UNLV for more than 30 years, Congresswoman TITUS understands the importance of education and has been a strong leader in education issues both in Nevada and here in Washington, as a former member of the Education and Labor Committee.

Ms. TITUS. I thank the gentleman from Arizona for yielding to me.

Mr. Speaker, I rise in strong support of a provision that has been highlighted by my colleague from Arizona in his motion to instruct and was also discussed by the chairman of the Veterans' Affairs Committee.

As a member of that committee, I am working hard to ensure that our veterans in Las Vegas and throughout the country have access to high-quality health care in a timely fashion. So it is critical that this conference committee quickly finishes its work so we can send a reform package to the President for his signature.

The gentleman from Arizona's amendment highlights a critical piece of the Senate proposal, which is identical to the legislation I introduced along with Senator JEFF MERKLEY from Oregon just last year, H.R. 3441, the Spouses of Heroes Education Act. Our important legislation amends the post-9/11 GI Bill to expand the Fry Scholarship, which you have heard described most eloquently by the gentleman from Arizona (Mr. BARBER), by making surviving spouses of the members of the armed services eligible for this education benefit program.

The scholarship provides full instate tuition, fees, a monthly living stipend, and a book allowance to children of servicemembers who have died in the line of duty. Our change would allow spouses to receive those same benefits.

When a servicemember tragically loses his or her life on the field of battle, we owe it to their spouses to do all we can to support them and their families—not just in the immediate aftermath of the tragedy, but going forward. We can ensure that they have all the educational opportunities they need because this will enable them to further their careers and increase the financial stability of that family.

I was pleased that the Senate included this bicameral, bipartisan legislation in the McCain-Sanders agreement that passed 93–3, and it is very important that our conferees continue to fight to maintain that provision. I was also very glad to hear the chairman say that he is so supportive of our looking at that provision here in the House as a stand-alone bill, and I hope to see that move also. So I thank them for their work on this important issue.

Mr. MILLER of Florida. I reserve the balance of my time.

Mr. BARBER. Mr. Speaker, next I would like to yield 3 minutes to my colleague from Arizona, Congresswoman KYRSTEN SINEMA. If you know Congresswoman SINEMA, you know that when she gets her dander up, she fights like hell for whatever the issue is, and that has certainly been true in the fight that she has waged on behalf of our veterans.

As you know, the first evidence of corruption and misdeeds was discovered in Arizona at the VA in Phoenix, and from the very beginning, Congresswoman SINEMA has been on that issue. So I am very proud and pleased to yield to her to speak on this bill.

Ms. SINEMA. Mr. Speaker, I thank my colleague from Arizona (Mr. BARBER) for offering this motion to instruct and for his leadership and work on behalf of veteran and military families in Arizona.

This motion urges conferees to expand the Marine Gunnery Sergeant John David Fry Scholarship to include spouses of fallen servicemembers. Currently, the scholarship covers the children of servicemembers who are killed in the line of duty. After their tragic loss, the surviving spouse is frequently left to provide for her or his family. It is important that Congress take action to expand this benefit to spouses and to help these military families begin to rebuild.

It is also important that Congress and the Department of Veterans Affairs take action to get veterans the care they need. Veterans in my district, which is home to the Phoenix VA, are still waiting for Congress to produce a bipartisan VA reform bill to send to the President's desk. But in Arizona, we are not waiting idly for Washington to take action; we are doing it ourselves.

In Phoenix, we have established a working group of community providers, veterans service organizations, and the local VA to work together to improve access to services. We also recently cohosted our Veterans First Clinic, which brought together community providers, the Phoenix VA, and over 20 veteran-serving organizations to help veterans in a variety of ways. Approximately 400 veterans and their families attended and got the care that they earned and that they deserve.

These are examples of the good that results when we set aside partisanship and focus on putting veterans first to help meet their needs, but more action is required.

I appreciate the bipartisan leadership and work the House—especially Chairman MILLER and Ranking Member MICHAUD—has done on this issue, and I call on the conferees to move quickly to produce a bipartisan bill and get it on the President's desk. By working together, we can address this crisis and create a VA system that our veterans deserve.

Let's get this done for our veterans.

Mr. MILLER of Florida. Mr. Speaker, might I inquire as to whether or not the gentleman from Arizona has any further requests for time?

Mr. BARBER. I have no further requests for time, but I do have some closing remarks.

Mr. MILLER of Florida. Mr. Speaker, again, I would urge my colleagues to not support this motion to instruct. And I would also remind my colleagues that even though the number 93–3 has been used for the passage of the Senate bill, the House bill, itself, which was much more narrowly tailored to actually deal with the crisis that exists today, with access to care, passed unanimously, 426–0, in this House. Just prior to the final vote, there was a motion to recommit that did, in fact, want the House to recede to the Senate amendment.

The problem is, again, the goalposts are changing. The House has been working with the Senate. We have made an offer on our particular side. We are waiting for the Senate to return a counter. Things changed yesterday, unfortunately, because of the additional $17.6 billion that was brought forward by the Department themselves.

So we continue to stay focused. Our intent is to complete this bill and get it to the President's desk before we leave in August.

I appreciate my colleague's comments today.

With that, I yield back the balance of my time.

Mr. BARBER. Mr. Speaker, could I ask for the balance of time remaining.

The SPEAKER pro tempore. The gentleman from Arizona has 13½ minutes remaining.

Mr. BARBER. Mr. Speaker, let me just close with these thoughts.

I came here, as you well know, following the resignation of Congresswoman Gabrielle Giffords, for whom I worked, when she was a Member. Her commitment to veterans was complete and deep. I am pleased to have picked up that mission and have tried to move forward with it in every way possible.

I also came here in the spirit of bipartisanship, looking for partners on both sides of the aisle to move important legislation for our country, and I am very pleased to say that I have found bipartisanship in full measure in the manner with which we have worked together to ensure that our veterans are properly served. Now I call on my colleagues, the conferees, to move quickly to bring our two bills together, to strike now while the opportunity presents.

Back home, when I meet with veterans, they say, What are you waiting for? We need you to act, and act now.

I urge our colleagues to adopt the motion to instruct so that we can get this job done expeditiously and in full measure.

Mr. Speaker, I yield back the balance of my time.

The SPEAKER pro tempore. All time for debate has expired.

Without objection, the previous question is ordered on the motion to instruct.

There was no objection.

The SPEAKER pro tempore. The question is on the motion to instruct.

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

Mr. BARBER. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this question will be postponed.

HOUR OF MEETING ON TOMORROW

Mr. MILLER of Florida. Mr. Speaker, I ask unanimous consent that when the House adjourns today, it adjourn to meet at 11 a.m. tomorrow; and when the House adjourns on that day, it adjourn to meet on Tuesday, July 22, 2014, when it shall convene at noon for morning-hour debate and 2 p.m. for legislative business.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Florida?

There was no objection.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. The Chair will recognize Members for Special Order speeches without prejudice to the resumption of legislative business.

JOBS BILLS STUCK IN THE SENATE

(Mr. LAMALFA asked and was given permission to address the House for 1 minute.)

Mr. LAMALFA. Mr. Speaker, 5 million Americans have given up on their search for a job. For 59 months straight, invisible unemployment has remained above 10 percent. The number of long-term unemployed Americans is double the prerecession figure.

Mr. Speaker, among the 294 bills the Democrat-controlled Senate has failed to act on are over 40 House-passed bipartisan pro-jobs bills that would help put Americans back to work. We have passed legislation to help the long-term unemployed get training for new jobs, a measure to restore hourly wages cut by the 30-hour workweek mandate, and regulatory reform bills to cut the red tape holding back key energy and construction projects that will help create jobs and boost our economy. These measures are commonsense solutions that our country needs right now, policies that reward hard work and provide opportunities for Americans to be self-sufficient.

Where are the jobs? Where are the jobs bills? We hear that over here on the other side of the aisle. You can find them over in HARRY REID's dusty desk drawer waiting for action in the Senate. However, the Senate has refused to vote on them, has refused to take action to help our economy, and has refused to consider any approach but bigger government.

It is time for the Senate to get to work and take action on the jobs bills Americans need.

SAFE CLIMATE CAUCUS

(Mr. TONKO asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. TONKO. Mr. Speaker, last week's Energy and Water Appropriations bill provided another glaring example of an opportunity squandered. We could have invested more in clean energy and certainly weaned our Nation off its heavy dependence on fossil fuels. We could have heeded the warnings of the scientific community and taken greater steps to reduce emissions and adapt our dams and ports and coastal infrastructure to new conditions. We did neither. Even worse, the bill contained riders to prevent the modeling and study of climate change.

The climate deniers are condemning us to a future of crisis management. Organizations, including global manufacturers, governments, aid organizations, and the insurance industry are examining risks to key infrastructure of supply chain disruptions, water shortages, and increased political unrest.

Instead of suing our President for taking action, we should be joining him and organizations around the world in the effort to understand and meet this formidable challenge. Failure to do so will be costly, and failure to do so will be tragic.

We must do better. We should start by doing something.

□ 1330

GAZA

The SPEAKER pro tempore (Mr. COOK). Under the Speaker's announced policy of January 3, 2013, the gentleman from Maryland (Mr. HOYER) is recognized for 60 minutes as the designee of the minority leader.

Mr. HOYER. Mr. Speaker, I rise in solidarity with our good ally and friend, Israel, as it defends its people from Hamas' deadly rockets.

Every nation, Mr. Speaker, has the right to defend its citizens; indeed, it has a moral obligation to do so. And no people ever ought to live in constant fear that their homes, schools, businesses, places of worship, and hospitals might be the target of terrorists' rockets.

Mr. Speaker, there is a town in southern Israel whose name is Sderot which has been the target of over 6,300 rockets since 2007. Mr. Speaker, I have been to Sderot, and I have talked to some of the families there. As the rockets fall, they gather their children in bomb shelters and sing them songs. I have been in the recreational gymnasium. It is itself a bomb shelter. Preschoolers learn to run for cover before they learn to read and write.

If American communities were subjected to what the residents of Sderot—and now cities even as far north as Tel Aviv and Jerusalem—have had to endure, I doubt very seriously whether we would show as much restraint as Israel has shown.

There are two major challenges I hear to Israel's exercise of its legitimate self-defense, and I want to address both of them. First, undertaking this necessary response was not an easy choice for Israel, nor was the decision to agree to a cease-fire on Tuesday. Israel abided by the cease-fire without any commitment from Hamas, and Prime Minister Netanyahu even fired—removed—his deputy defense minister for questioning that decision, so committed was the Israeli Government to trying to reach a cease-fire and cessation of danger to Israelis and to Palestinians.

Tragically and appallingly—but I suggest not so surprisingly—Hamas not only rejected the cease-fire, but continued to rain missiles upon Israeli communities even while Israel had unilaterally stopped its defensive strikes. Secondly, Israeli forces have continued to do everything possible to prevent civilian casualties as they strike Hamas' leadership and its rocket launchers.

Mr. Speaker, it is shameful that Hamas' reign of terror extends not only

to Israelis, but to their own people, the Palestinians in Gaza, where Hamas continues to use innocent civilians as human shields while firing rocket after rocket after rocket after rocket at Israel.

Prime Minister Netanyahu summed up his country's struggle earlier this week in the following way:

We (meaning the Israelis, and I am quoting Prime Minister Netanyahu) we are using missile defense to protect our civilians, and they are using civilians to protect their missiles.

We are using (the prime minister said) missile defense to protect our citizens, while Hamas is using its own citizens to protect its missiles.

How sad. Just today, while Israel was observing a 5-hour cease-fire to allow humanitarian supplies to reach Gaza, we have seen news reports that Hamas continued firing mortar shells into Israel, in violation of that truce.

This week has seen bitter tragedy for both Israelis and Palestinians. You have to listen carefully to the words of Rachel Fraenkel, the mother of one of the three murdered Israeli teenagers. When she learned of the brutal killing of a Palestinian teenager, Mohammed Abu Khedair, she said this:

There is no difference between blood and blood.

Of course, what she meant by that was the loss of her son and the loss of the Palestinian young man was an equal tragedy. He was gunned down by angry people motivated by the acts of terrorists to seek revenge on innocent noncombatants, in this case on children.

Mr. Speaker, Hamas has the power to end this violence. I call on them to do so before more innocent blood on both sides is shed. The United States, of course, will continue to stand by its ally, Israel, and we will continue to hold in our hearts all of the families, including Rachel Fraenkel, and the family of Mohammed Abu Khaber, who are grieving the loss of loved ones as a result of Hamas' reprehensible and criminal actions.

Mr. Speaker, I yield back the balance of my time.

IRAQ PRIVILEGED RESOLUTION

The SPEAKER pro tempore. Under the Speaker's announced policy of January 3, 2013, the gentleman from Massachusetts (Mr. MCGOVERN) is recognized for the balance of the hour as the designee of the minority leader.

Mr. MCGOVERN. Mr. Speaker, let me begin by saying the obvious. We are living in a chaotic and dangerous world. But contrary to what some in this Chamber suggest, the solution to every problem is not expanding the U.S. military footprint. There are many of us who are deeply concerned about our renewed military involvement in Iraq. We believe we need a debate. We believe we need a vote. We believe the Congress ought to live up to its constitutional responsibilities.

Mr. Speaker, I am pleased to be joined by a couple of my colleagues here today who share those concerns and who want to express their beliefs about how we should proceed on this issue. I would like to first yield to my colleague from California, Congresswoman BARBARA LEE, who has been a leader on these issues. I yield her as much time as she may consume.

Ms. LEE of California. First, let me thank Congressman MCGOVERN for your tireless leadership and for hosting this Special Order today. For many years, you have been raising the level of awareness with regard to the responsibilities of Congress, our duties as it relates to war making, as well as the impact of these tragic wars on our brave men and women. So thank you for once again coming forward with now a privileged resolution that directs the President to remove all United States military forces stationed in Iraq within 30 days or by the end of the year.

Mr. Speaker, this is a very reasonable resolution. It is very consistent with what I believe the American people—we know, based on what the American people have said over and over and over again, they are war weary. And Mr. MCGOVERN has really given us an opportunity to vote the views of the American people.

This resolution exempts, of course, troops necessary for the security of the United States diplomatic post and personnel.

We are all familiar with the reports coming out of Iraq about the horrific sectarian violence taking place. We hear many of the same voices who championed the unnecessary war in Iraq once again beating the drum for a renewed war in Iraq today. So we must not let history repeat itself. We must remember history. We must not be dragged back into a war in Iraq. This must be rejected.

Many of my colleagues agree. And I want to remind us that over 100 Members of Congress now from both parties have signed a letter, Congressman MCGOVERN, myself—many—SCOTT RIGELL from Virginia, we are calling for the President to come to Congress for debate on an authorization before any military escalation on Iraq.

Last month, during the consideration of the 2015 Defense Appropriations bill, over 150 bipartisan Members supported our amendment that would prohibit funds from being used to conduct combat operations in Iraq.

Mr. Speaker, there is no military solution in Iraq. This is a sectarian war with longstanding roots that were inflamed when we invaded Iraq in 2003. Any lasting solution must be political and take into account all sides. The change that Iraq needs must come from Iraqis. They must reject violence in favor of a peaceful democracy that represents everyone and respects the rights of all citizens.

The future of Iraq is in the hands of the Iraqi people. Our job is to continue to promote regional and international engagement, recognition of human rights, women's rights, and political reforms. Only through these actions can Iraq and, of course, the United States, and the rest of the world, begin supporting a process of reconciliation and help the Iraqis secure long-term national stability.

Mr. Speaker, after more than a decade of war, thousands of American lives, and billions of dollars, the American people are rightfully war weary. The American people are looking for Congress to act. We must heed their call and bring this privileged resolution to the House floor for an immediate up-or-down vote.

As our President told the American people in May:

United States military action cannot be the only, or even primary, component of our leadership in every instance.

This is one of those instances.

Before we put our brave servicemen and -women in harm's way again, Congress should carry out its constitutional responsibilities and vote on whether or not to get militarily involved in Iraq. But we must vote on this resolution immediately because I think this would give the American people a clear understanding of what this administration and Congress intends to do, and that is remove all military forces stationed in Iraq.

So I want to thank, again, Congressman MCGOVERN for his leadership for bringing this forward. It is time that we have a clear up-or-down vote on this. I want to thank Congressman JONES for cosponsoring this.

Also, I will finally conclude by saying sooner or later—sooner or later—we have got to go back and repeal the Authorization for Use of Military Force which has become a blank check for this war this past decade. It sets the stage for perpetual war. We need to repeal it. The American people deserve a vote on this resolution, and they deserve a vote for repealing this authorization.

So thank you again for your leadership, and let's move forward and vote the will of the American people.

Mr. MCGOVERN. I thank the gentlewoman for her eloquent words and for her leadership on this issue in particular.

Mr. Speaker, I am happy to be here with my colleagues, Congresswoman LEE and Congressman JONES, to talk about I think an issue that deserves a lot more discussion than it is getting. We need to take a look at the recent return of the U.S. military to Iraq.

Iraq is a complicated country with a long history of ethnic and religious divisions. It is now facing a crisis of governance and a crisis of invasion by extremist militant forces. Sadly for Iraq, the two are closely intertwined.

In large measure, Iraq is falling apart because of its sectarian government currently led by Prime Minister Maliki that excludes and represses most Sunnis, Kurds, and other ethnic and religious minorities; and an army that

thinks more about saving its own skin than protecting the Iraqi people. This is what has laid the foundation for extremist forces, namely ISIL, to enter Iraq and take control of disaffected communities and territory.

I do not believe we can fix this. Only the Iraqi people can fix this. And I certainly don't believe our brave and stalwart military men and women can fix this.

I believe that we should never have invaded Iraq. I also believe it is foolish to once again commit U.S. troops to try and save an Iraqi Government and army that cannot stand on their own.

As Joseph Cirincione wrote last month in ''Defense One'' magazine:

This debacle was predictable. In fact, it was predicted by dozens of analysts who knew a great deal more about Iraq than those who cheerleaded the invasion in Iraq in 2002 and 2003.

This is not to say ''we told you so'' but to warn that the desperate, quick fixes now being offered are false hopes. The hard truth is that there is little we can do to save the corrupt, incompetent government we installed in Iraq. If 10 years, millions of hours of work, and hundreds of billions of dollars could not build a regime that can survive, it is difficult to imagine any fix that can. Those seeking to blame the Obama administration for the collapse are engaged in a cynical game.

Mr. Speaker, I include for the RECORD the entire Defense One article.

[From Defense One, June 12, 2014]

DON'T BE SUCKED INTO WAR WITH IRAQ, AGAIN

(By Joseph Cirincione)

We never should have invaded Iraq. It would be folly to recommit United States forces to save an artificial Iraqi government and army that cannot stand on its own.

Ten years ago, U.S. forces battled Sunni insurgents in the very same cities that are falling to anti-government fighters today. Hundreds of American lives were lost in the 2004 battles for Mosul, Fallujah, Karbala, Ramadi, Tikrit, Najaf and Samarra. The U.S. spent tens of billions of dollars to train and equip an Iraqi army that was supposed to protect the government we formed to replace the deposed dictator, Saddam Hussein.

This week, that army collapsed. In Mosul, The Guardian reports, ''two divisions of Iraqi soldiers—roughly 30,000 men—simply turned and ran in the face of the assault by an insurgent force of just 800 fighters.'' In other cities, Iraqi troops simply handed over their American-supplied uniforms, guns and armored fighting vehicles to the Islamic State in Iraq and Syria, or ISIS, fighters, then scattered. ISIS has seized more than $450 million from the banks in these cities, making it perhaps the richest and best equipped insurgent group in the world.

This debacle was predictable. In fact, it was predicted by dozens of analysts who knew a great deal more about Iraq than those who cheerleaded the invasion of Iraq in 2002 and 2003. The very first sentence of Tom Ricks' 2006 masterpiece, Fiasco, warns, ''President George W. Bush's decision to invade Iraq in 2003 ultimately may come to be seen as one of the most profligate actions in the history of American foreign policy. The consequences won't be clear for decades.''

Well, they are becoming much clearer now. Ricks' concludes his book—which should be read by anyone searching for a solution to the current debacle—with this:

''So while there is a small chance that the Bush administration's inflexible optimism will be rewarded, that the political process will undercut the insurgency and that democracy will take hold in Iraq, there is a far greater chance of other, more troublesome outcomes: That Iraq will fall into civil war, or spark regional war, or eventually become home to an anti-American regime, or break up altogether. In any of these forms it would offer a new haven for terrorists.''

He was not alone. I wrote, with my colleagues at the Carnegie Endowment for International Peace in WMD in Iraq: Evidence and Implications, an anatomy of the false intelligence supplied to justify the war:

''It was almost inevitable that a U.S. victory would add to the sense of cultural, ethnic, and religious humiliation that is known to be a prime motivator of al Qaeda-type terrorists. It was widely predicted by experts beforehand that the war would boost recruitment to this network and deepen anti-Americanism in a region already deeply antagonistic to the United States and suspicious of its motives. Although this may not be the ultimate outcome, the latter has so far been a clear cost of the war. And while a successful war would definitely eliminate a ''rogue'' state, it might—and may—also create a new ''failed'' state: one that cannot control its borders, provide internal security, or deliver basic services to its people. Arguably, such failed states—like Afghanistan, Sudan, and others—pose the greatest risk in the long struggle against terror.''

This is not to say, ''We told you so,'' but to warn that the desperate, quick fixes now being offered are false hopes. The hard truth is that there is little we can do to save the corrupt, incompetent government we installed in Iraq. If 10 years, millions of hours of work and hundreds of billions of dollars could not build a regime that can survive, it is difficult to imagine any fix that can. Those seeking to blame the Obama administration for the collapse are engaged in a cynical game.

Rep. Paul Ryan, R–Wisc., played the game well in his speech at the Center for New American Security conference, in Washington on Wednesday. He blamed the chaos in Iraq on the failure of the Obama administration to negotiate a status of forces agreement, pulling the troops out too soon and for not intervening in Syria. In other words, for failing to double down on the military policy that created the mess in the first place.

Sen. John McCain, R–Ariz., goes even further, calling on the entire Obama administration national security team to resign. McCain went ''roaring onto the Senate floor'' on Thursday, claiming ''Could all this have been avoided? . . . The answer is absolutely yes.''

Part of this is the normal partisan attack on Obama. His political opponents squeeze everything he does into their preferred frame: he is weak, naive, dangerous, doesn't really care about American security, may not even be an American.

Part of it, however, is the way Washington looks at national security issues: focused on the immediate, ignoring or twisting history. So, the Iraq debacle is something that has happened only now, with perhaps one or two years of prelude. The policy fix should address what can be done today, looking forward a year or two. There must be an immediate solution: bomb, invade, supply, sanction. The so-called ''defense Democrats'' jump in, too, wanting to prove their toughness by advocating one or another military solution.

The Washington Post, which played a key role in convincing policy makers to go to war with Iraq, picks up the pro-war line of attack in its editorial: ''For years, President Obama has been claiming credit for ''ending wars,'' when, in fact, he was pulling the United States out of wars that were far from over. Now the pretense is becoming increasingly difficult to sustain.''

In other words, the problem is not that we started the war, it is that we never should have ended it.

None of these critics have the slightest self-awareness. None take responsibility for their previous policy pronouncements. It's like the driver of a car that has plowed into a crowd of pedestrians blaming the emergency medical technicians for not saving the lives of those injured.

Nor do the defense Democrats want to go back to this debate, preferring to be seen as positive and forward-looking. They want to talk about robotics or new paradigms. They want to get away from any hint that they once were against the war, or hide their own shame that they were once for it.

I understand. But we have to go over this again. The American public long ago decided that the Iraq War was a mistake, that Iraq is not worth fighting for. It is the Washington elite that doesn't seem to have made up their minds. It is the Obama administration that, after being blasted by Republicans for always ''blaming Bush'' whenever they talked about the multiple crises they inherited, stopped drawing the lines from the failed policies of the past to the current dilemmas.

Well, it is time to draw the lines again. It is vital that we not be bullied into squandering more resources into a futile effort. We cannot let politics and ideology and short-term thinking again trick the nation into making a bad situation worse.

There is not a quick fix to this problem. The hard truth is that, like the collapse of the Diem government in South Vietnam a generation ago, there is little we can do to prop up this government. As military expert Micha Zenko tweeted, ''Unless the US has bombs that can install wisdom and leadership into PM Maliki, airstrikes in Iraq would be pointless.'' We may have to revisit then-Senator Joe Biden's strategy from 2006 that the only way to stop the killing and salvage the situation was to scrap Iraq's artificially-imposed boundaries and partition the country into three ethnic regions.

Gen. Colin Powell famously invoked the ''Pottery Barn rule'' about Iraq, but he got it slightly wrong. It is not, ''You broke it; you own it,'' but ''You broke it; you pay for it.'' We broke Iraq. We paid a huge price in lives, treasure and legitimacy. It is time to stop paying.

□ 1345

Mr. MCGOVERN. Mr. Speaker, I believe President Obama has done the right thing to send U.S. forces to Iraq to increase the security and help protect our diplomatic facilities and personnel.

So far, he has sent two contingents—the first of 275 military troops on June 15 and a second deployment of 200 additional troops on June 30. With respect to the second deployment, he noted that they would also be used to reinforce the security of the Baghdad International Airport.

They would consist of additional security forces; rotary wing aircraft; and intelligence, surveillance, and reconnaissance support. The President specifically noted that they are equipped for combat.

In between these two deployments, the President announced on June 19 and notified Congress on June 26 that he was sending 300 military troops to

train, advise, and support Iraqi security forces and to establish joint operations centers with Iraqi security forces, so we could share intelligence and coordinate plans on how to confront the threat of ISIL. Quite frankly, Mr. Speaker, this deployment concerns me deeply.

In each of these three deployments, the President has rightly formally informed Congress consistent with the War Powers Resolution. The only reason a President has to inform Congress about such overseas deployments—the only time it applies is when the President—and I am quoting now from the War Powers Resolution—has introduced ''United States Armed Forces into hostilities or into situations where imminent involvement in hostilities is clearly indicated by the circumstances.''

Mr. Speaker, I ask to include for the RECORD the three notifications the President has sent to Congress on deployments of troops to Iraq.

THE WHITE HOUSE

Office of the Press Secretary

[For Immediate Release—June 16, 2014]

TEXT OF A LETTER FROM THE PRESIDENT TO THE SPEAKER OF THE HOUSE OF REPRESENTATIVES AND THE PRESIDENT PRO TEMPORE OF THE SENATE

Dear Mr. Speaker: (Dear Mr. President:) Starting on June 15, 2014, up to approximately 275 U.S. Armed Forces personnel are deploying to Iraq to provide support and security for U.S. personnel and the U.S. Embassy in Baghdad. This force is deploying for the purpose of protecting U.S. citizens and property, if necessary, and is equipped for combat. This force will remain in Iraq until the security situation becomes such that it is no longer needed.

This action has been directed consistent with my responsibility to protect U.S. citizens both at home and abroad, and in furtherance of U.S. national security and foreign policy interests, pursuant to my constitutional authority to conduct U.S. foreign relations and as Commander in Chief and Chief Executive.

I am providing this report as part of my efforts to keep the Congress fully informed, consistent with the War Powers Resolution (Public Law 93–148). I appreciate the support of the Congress in these actions.

Sincerely,

BARACK OBAMA.

THE WHITE HOUSE

Office of the Press Secretary

[For Immediate Release—June 26, 2014]

TEXT OF A LETTER FROM THE PRESIDENT TO THE SPEAKER OF THE HOUSE OF REPRESENTATIVES AND THE PRESIDENT PRO TEMPORE OF THE SENATE

Dear Mr. Speaker: (Dear Mr. President:) As I reported on June 16, 2014, U.S. Armed Forces personnel have deployed to Iraq to provide support and security for U.S. personnel and the U.S. Embassy in Baghdad.

I have since ordered further measures in response to the situation in Iraq. Specifically, as I announced publicly on June 19, I have ordered increased intelligence, surveillance, and reconnaissance that is focused on the threat posed by the Islamic State of Iraq and the Levant (ISIL). I also ordered up to approximately 300 additional U.S. Armed Forces personnel in Iraq to assess how we can best train, advise, and support Iraqi security forces and to establish joint operations centers with Iraqi security forces to share intelligence and coordinate planning to confront the threat posed by ISIL. Some of these personnel were already in Iraq as part of the U.S. Embassy's Office of Security Cooperation, and others began deploying into Iraq on June 24. These forces will remain in Iraq until the security situation becomes such that they are no longer needed.

This action is being undertaken in coordination with the Government of Iraq and has been directed consistent with my responsibility to protect U.S. citizens both at home and abroad, and in furtherance of U.S. national security and foreign policy interests, pursuant to my constitutional authority to conduct U.S. foreign relations and as Commander in Chief and Chief Executive.

I am providing this report as part of my efforts to keep the Congress fully informed, consistent with the War Powers Resolution (Public Law 93–148). I appreciate the support of the Congress in these actions.

Sincerely,

BARACK OBAMA.

THE WHITE HOUSE

Office of the Press Secretary

[For Immediate Release—June 30, 2014]

TEXT OF A LETTER FROM THE PRESIDENT TO THE SPEAKER OF THE HOUSE OF REPRESENTATIVES AND THE PRESIDENT PRO TEMPORE OF THE SENATE

Dear Mr. Speaker: (Dear Mr. President:) As I previously reported on June 16, 2014, U.S. Armed Forces personnel have deployed to Iraq to provide support and security for U.S. personnel and the U.S. Embassy in Baghdad.

In light of the security situation in Baghdad, I have ordered up to approximately 200 additional U.S. Armed Forces personnel to Iraq to reinforce security at the U.S. Embassy, its support facilities, and the Baghdad International Airport. This force consists of additional security forces, rotary-wing aircraft, and intelligence, surveillance, and reconnaissance support.

This force is deploying for the purpose of protecting U.S. citizens and property, if necessary, and is equipped for combat. This force will remain in Iraq until the security situation becomes such that it is no longer needed.

This action has been directed consistent with my responsibility to protect U.S. citizens both at home and abroad, and in furtherance of U.S. national security and foreign policy interests, pursuant to my constitutional authority to conduct U.S. foreign relations and as Commander in Chief and Chief Executive.

I am providing this report as part of my efforts to keep the Congress fully informed, consistent with the War Powers Resolution (Public Law 93–148). I appreciate the support of the Congress in these actions.

Sincerely,

BARACK OBAMA.

Mr. MCGOVERN. Mr. Speaker, I think the President did the right thing to inform Congress because I believe that our troops have been introduced into a situation in Iraq where imminent involvement in hostilities is clearly indicated by the circumstances. In fact, more simply put, if Iraq wasn't engaged in hostilities in a moment of crisis, we wouldn't have sent troops over there.

This is why last Friday, on June 11, my good friends and colleagues, Representatives WALTER JONES of North Carolina and BARBARA LEE of California, introduced a privileged resolution, House Concurrent Resolution 105, to direct the President to remove U.S. troops from Iraq within 30 days, or no later than the end of this year, except for those troops needed to protect U.S. diplomatic facilities and personnel.

We did this for a simple reason. Congress has the responsibility to authorize the introduction of American troops where hostilities are imminent. In less than 3 weeks, in three separate deployments, the U.S. has sent at least 775 additional troops to Iraq.

We don't know what might happen next to those troops or to yet another deployment of additional troops, but we do know that Congress should debate it. We do know that Congress should vote on whether to authorize it or not.

That is what the Constitution of the United States demands of Congress. That is what the Constitution demands of us. Now is the time for Congress to debate the merits of our military involvement in this latest Iraq conflict—openly, transparently.

Do we approve of these deployments and any future escalation? If so, we should vote to authorize it. If we do not support it, then we should bring our troops back home. It is that simple, Mr. Speaker. Congress has the responsibility to act on Iraq now.

Mr. Speaker, we did not introduce this privileged resolution lightly. By doing so, we started a process to hold a debate on our engagement in Iraq in the coming days, using the special procedures outlined under the War Powers Resolution. While this is an imperfect tool, it requires the House to take up this bill after 15 calendar days.

Like most of my colleagues, I would prefer for this House to bring up a bill authorizing our engagement in Iraq, and nothing in this resolution inhibits such important legislation from being drafted and brought before the House for a clean up-or-down vote. Frankly, I wish that were happening, but I have not heard that such an authorization is even under discussion, let alone being prepared for debate.

I regret to say that I only hear how we can avoid having such a debate. So my colleagues—Mr. JONES and Ms. LEE and myself—we introduced this concurrent resolution because we strongly believe that Congress has to step up to the plate and carry out its responsibilities when our servicemen and -women are once again being sent into harm's way.

The time for debate is now, not when the first body bag comes home from Iraq, not when the first U.S. airstrikes or bombs fall on Iraq, not when we are embedded with Iraqi troops trying to back an ISIL-held town, and worst-case scenario, not when our troops are shooting their way out of an overtaken Baghdad.

Now, Mr. Speaker, is the time to debate our new engagement in Iraq—before the heat of the moment—when we can weigh the pros and cons of supporting the Maliki government or

whatever government is cobbled together should Maliki be forced to step down—now, before we are forced to take sides in a religious and sectarian war; now, before the next addition of more troops takes place—make no mistake, I firmly believe we will continue to send more troops and more military assets into this crisis—now, Mr. Speaker, before we are forced to fire our first shots, launch our first missiles, or drop our first bombs.

Now, Mr. Speaker, is when the House should debate and vote on this very serious matter. For those who say it is too early, too premature for this debate, I respectfully disagree. The administration has tacitly signaled when it notified Congress that our troops have been sent to a place where the threat of hostilities is imminent.

The longer we put off carrying out our constitutional responsibilities, the easier it becomes to just drift along, and this is what Congress has done over and over. We just kind of drift along, and it has to end. It has to end, Mr. Speaker. Congress must speak. Congress must act.

This resolution, should it pass, would direct the President to bring our troops home from Iraq within 30 days—or should the President determine that such a rapid withdrawal would pose a security question, then no later than by the end of the year, nearly 6 months from now.

It would not require those troops that have been deployed to safeguard the security of our diplomatic facilities and personnel from withdrawing. They could remain and carry out their crucial roles of protecting our civilian personnel on the ground in Iraq.

Mr. Speaker, we need to take up this resolution. We need to debate our military engagement in this latest war in Iraq. We need to have a clean up-or-down vote, whether we stay in Iraq or whether we bring our troops home.

We owe that much to our troops and their families. We owe that much to the American people, and we owe at least that much to our own democracy and democratic institutions that require Congress to be the final arbiter on whether our troops are sent into hostilities abroad.

Mr. Speaker, at this time, it is my privilege to yield to the conscience of this Congress on issues of war, a man I have great admiration for, the gentleman from North Carolina (Mr. JONES).

Mr. JONES. Mr. Speaker, I thank the gentleman from Massachusetts, and I want to thank him for being a leader on bringing to the floor of the House not only this resolution asking for a vote about bringing our troops home from Iraq, but also the way that he speaks about the fact that 17 million American children go home at night hungry. That is another issue, I understand that, but it all ties in.

When we continue to not debate whether we should be sending our young men and women to die, we are shirking our constitutional responsibility that we, in this Congress, have raised our hand to swear that we will uphold the Constitution of the United States, but we don't do that, Mr. Speaker, when it comes to war, and I blame myself.

In 2003, I bought the lie that was told by the previous administration about the weapons of mass destruction that Saddam Hussein had and how he was going to use that against the American people.

That misinformation that was given by the previous administration caused us to go into Iraq, and I voted to give the President at the time—President Bush—the authority to bypass the Constitution.

It is called the AUMF, the Authorization for Use of Military Force, and I regret that and will until the day I die because I gave up my constitutional responsibility to debate and to vote on whether we should go to war or not, and that was the constitutional responsibility of this Congress and of me being a Member of Congress.

Mr. Speaker, I have beside me a poster of a funeral. It is a military funeral where a soldier has given his life for this country. His wife is there with her sunglasses on, holding the hand of her little girl who can't quite understand why her daddy is dead, why her daddy is in a flag-draped coffin.

That is why we need to be on this floor, as Mr. MCGOVERN and Ms. LEE have said, to debate whether we continue to allow the President—in this case, President Obama—to use the War Powers Act to send our troops into Iraq, and yet, we sit here idle.

We don't even hardly debate the issue of war when we are going to pass millions and billions of dollars to be spent by our military overseas. It does not make any sense.

I want to say about my own side, I regret that my side, the Republican Party, we have become the war party now. It is not so much the Democrats who were the war party during the Vietnam war. Now, it is the Republican Party.

I am a great supporter of Pat Buchanan. I love his position on foreign policy and his many articles. This is from a recent article that he wrote. Pat Buchanan says:

> It is astonishing that Republicans who threaten to impeach Obama for usurping authority at home remain silent as he prepares to usurp their war powers to march into Syria and back into Iraq. Are Republicans now prepared to sit mute as Obama takes us into two new Middle East wars on his own authority?

This is what Mr. MCGOVERN and Ms. LEE and I are trying to say. It is time that this Congress start speaking out. We listen to the American people when it comes to war, and the American people are tired. They are worn out.

A recent survey actually said that 71 percent of American people said that the first intervention in Iraq was wrong. It was a mistake. It should never have happened, and yet that is why I admire you, Mr. MCGOVERN, and Ms. LEE and the others who are willing to speak out on this.

Just a couple of other points I want to make—people always say those who wrote the Constitution, they maybe really better understood more than we do, and yet they didn't have the sophistication that we have today in the wars that we fight, but that brings me to a letter from George Washington to James Monroe:

> I have always given it as my decided opinion that no nation has a right to meddle into the concerns of another, that everyone has the right to form and adopt whatever government they like best to live under themselves.

That is George Washington in 1796, in a letter to James Monroe. Again, I think about the fact that I, along with other Members of Congress, gave away my constitutional right to declare war when we gave to President Bush the authority to use military force.

That in itself is something, again, being repetitive for just a moment, I will always, always regret.

Another quote, this one by James Madison, and this is Mr. MCGOVERN's point:

> The power to declare war, including the power of judging the causes of war, is fully and exclusively vested in the legislature.

We are the legislature. It is our responsibility to meet our constitutional duties. Mr. MCGOVERN, I have signed over 11,000 letters to families and extended families in this country since we went into Iraq because I have asked God to forgive me for listening to the misinformation and the distortions by the previous administration to go into Iraq.

That is my pain, and I will live with that pain.

□ 1400

I am on the floor with you today—and Ms. LEE who has already spoken—to say thank you for taking the lead in trying to force this Congress to have a debate.

I am not going to restate what Pat Buchanan has said, but I will say to my own side many times: Why do you sit idly by when you complain about Mr. Obama and spending, spending, and we have already spent $1.5 trillion in Afghanistan and Iraq, and we are still spending money in Afghanistan?

We will for 10 more years because of a bilateral strategic agreement, but what we are trying to do today is to say that we are not going to make another mistake in Iraq.

That is why I am pleased to join with you today in this effort to make the American people aware that we do care. We want the American people to contact the Members of Congress and say join in this concurrent resolution, this privileged resolution, to bring a debate to the floor of the House.

Mr. MCGOVERN. I look forward to a continued exchange on this issue with my colleague. I want to thank him for

his passion on this issue and for reminding not only our colleagues, but the American people that there are really consequences to war.

One of the things that has frustrated me is that, for too long, we have avoided talking about the wars in this Congress, not just Iraq, but also Afghanistan.

My colleague, Mr. JONES, and I had an amendment to the defense authorization bill a few weeks back, which said that President Obama had mentioned a couple of years ago that we would be out of Afghanistan by 2014. Clearly, that is not going to be the case.

The amendment said that the President had to notify Congress of what our military plans were going to be in Afghanistan and that Congress should consider that and vote up or down on whether we should continue our military involvement in Afghanistan.

That is hardly a radical bill. It is simply a bill that says: Congress do your job, you have an obligation—a constitutional obligation when it comes to war.

This amendment, which was germane, it was in order—on the defense bill, no less—at the last minute, we were told we could not offer it, it would not be made in order because the leadership of this House didn't want that debate, they were afraid it might pass.

Well, that is the way democracy is supposed to work. If a majority in this place does not want to continue an endless war in Afghanistan or does not want to start another war in Iraq, then that ought to mean something.

My criticism right now is not with the White House. I may have some disagreements with the President in terms of what his policy on Iraq might be, but he has done his job, he has notified us, he has sent letters up to Congress that have announced the deployments that he is making, and it says—consistent with the War Powers Resolution, so this is not a complaint about the White House. We may disagree with their policy, but they did what they were supposed to do.

Our complaint is with this institution, that we are not doing what we are supposed to do. The Foreign Affairs Committee, in consultation with other relevant committees, ought to bring a resolution to the floor if they want to authorize the use of additional force in Iraq.

I would vote ''no.'' There are some in this Chamber that would vote ''yes,'' but there ought to be a debate. We ought to go into any new deployment—any new military intervention with our eyes wide open. We have lived through enough deception. We have been lied to over the years too many times. It is time for us to demand some truth when it comes to war. People ought to know what we are getting into.

By the way, one other thing that has troubled me greatly about these wars that we have been involved with is that we don't pay for them. We all complain about the deficit and the debt, and we have to dig ourselves out of this hole of debt. Trillions of dollars of that debt are directly related to these wars. We don't pay for these wars. We put them on a credit card.

I offered a bill a few years ago calling for a war tax, saying that if we are going to go to war, then we ought to pay for it—the American people ought to pay for it, and if the American people don't want to pay for it, maybe we ought not go to war.

This notion of going to war and putting it on a credit card and making believe like it is not a big deal has to stop, has to stop. The first George Bush, when he went to war in Iraq when Saddam Hussein invaded Kuwait—I wasn't for that war, I wasn't in Congress then—but nonetheless, when he went to war, he got the cooperation of all the Arab states in the region to pitch in to pay for it.

What wasn't paid for, Congress paid for, but it wasn't added to our debt. Now, it has become commonplace, and we don't even question it.

There are huge costs to these wars, not only in terms of blood, but also in terms of treasure. We nitpick on this House floor over whether or not we are going to feed hungry children or make sure people have adequate housing.

We say we don't have enough money, but when it comes to these wars, the sky is the limit—whatever you want, you can get.

Here is the deal: I would argue with you that that money has not been spent wisely. Notwithstanding the incredible service of our men and women, we are in Afghanistan right now propping up one of the most corrupt governments in the world, in the world.

In Iraq, we are now reentering a situation where even our own administration is saying the Maliki government is lousy, and we obviously hate this extremist group called ISIL, so we are going right in the middle, and I worry that we are going to be target practice for both sides.

One other thing—the Iraqi Army, as I mentioned earlier, has been trained by the very best of American military personnel. They have the best equipment, they have the best weaponry you can imagine.

They outnumber, overwhelmingly, these extremist groups that are now attacking Iraq. We read in The Washington Post last week that commanders of the Iraqi Army in areas that come under fire decide to leave—they basically desert—and so do the troops.

If they are not willing to fight after all that we have sacrificed, why the hell are we going back in there and thinking of fighting this? Now, this is the beginning—this is the very beginning of our reentry.

As Mr. JONES and I have said, we hope that it doesn't go any further than this, but this is the time when we ought to have a debate about what might happen and what we are prepared to do.

I am happy to yield to my colleague.

Mr. JONES. Mr. MCGOVERN, thank you very much.

I want to pick up on a few things you said just a few minutes ago.

Iraq is in total chaos. It is kind of ironic. In 1983—I found a photograph of Donald Rumsfeld who was a special envoy sent by President Reagan to thank Hussein for what he had done to try to defend Iraq against the Iranians.

That brings me to where we are today and why this resolution that you have sponsored is so important. I have the former Commandant of the Marine Corps who, for the last 6 years, has been my adviser on Afghanistan, simply because I don't have the military background, and he is a very dear friend of mine.

I emailed him a week ago and asked him:

What do you think about all of these advisers going to Iraq, something you were just talking about?

He emailed me back and he said:

We should not put boots on the ground.

He further stated:

It is a Middle East issue that needs a Middle East solution, not more troops.

That is why, again, your resolution, and our resolution needs to be debated.

A couple of other points, very quickly—after I found out that I had been misled with the first war in Iraq, I contacted Lieutenant General Greg Newbold because he wrote an article for Time magazine. I want to read just a little bit of it very quickly.

General Greg Newbold was director of operations for the Joint Chiefs of Staff from 2000 to 2002 and describes himself as ''a witness and therefore a party to the actions that led us to the invasion of Iraq, an unnecessary war''—Mr. MCGOVERN, unnecessary war.

He wrote an insightful editorial for Time in April 2006 titled, ''Why Iraq was a mistake.'' I want to share a paragraph from his article because it is so appropriate of what we are trying to do today and what we are trying to do with this resolution to force Congress to meet its constitutional responsibility about sending our young men and women to die.

In 1971, the rock group The Who released the antiwar anthem ''Won't Get Fooled Again.'' To us, its lyrics invoked a feeling that we must never again stand by quietly while those ignorant of and casual about war lead us into another one and then mismanage the conduct of it.

He further stated:

Never again, we thought, would our military's senior leaders remain silent as American troops were marched off to an ill-considered engagement. It's 35 years later, and the judgment is in: The Who had it wrong. We have been fooled again.

We were fooled to go into Iraq.

I am with you. I know Mr. Obama came out against the Iraq war—and I want to thank him for doing that—when he was a Senator, but you are right, it is not the administration we are talking about today. It is the role of Congress and our lack of fulfilling our constitutional duty.

One last point, very quickly—four weeks ago, I went to Walter Reed hospital. I was told that two marines from Camp Lejeune in my district had been severely wounded, so I went to Walter Reed hospital.

As I go into the area where they teach them how to walk without legs, on prosthesis—they teach them how to use the artificial limbs to pick up a spoon—I met three Army guys from Fort Bragg, which is not in my district, but in North Carolina. All three had lost one leg each, each one of them.

Then, Mr. MCGOVERN, when I went over to meet the young marine from Camp Lejeune, 23 years of age, and he is on what they call an exercise mat about 3 feet off the floor—he has lost both legs and an arm. I never will forget his father's eyes.

They were the saddest eyes I have ever seen on a man in my life. I saw pain. I saw worry. Here is his son, both legs gone and one arm gone, 23 years of age.

The second marine that I saw from Camp Lejeune had lost both legs by stepping on a 40-pound IED in Afghanistan.

The more that we have troops in Iraq, the longer they stay, there will be someone killed or wounded before it is over.

That is why your resolution—that is why it is necessary for my party, the Republican Party, to stop being the war party and being the party that wants to defend the Constitution. My party needs to allow us to have this debate that you have introduced.

As I leave, I want to thank you for giving me a little bit of this time today. I want to thank you for your friendship. I want to thank you for what you do for America. I want to thank you for what you do for our military. I want to thank you for what you are trying to do for the House of Representatives to say we have an obligation.

No kid should ever die again if the Congress is not willing to follow the Constitution and demand a declaration of war and have that debate and that vote, so I thank you so much for giving me this time, and may God continue to bless our men and women in uniform.

□ 1415

Mr. MCGOVERN. I thank the gentleman for his eloquent remarks. I want to associate myself with every single word that he has said.

I believe deep down that the President of the United States does not want to get involved in another endless war in the Middle East, but sometimes things have a way of happening and sometimes things have a way of spinning out of control, and that is why this debate is so important and so timely now.

Mr. Speaker, the Iraq war has already claimed 4,500 American lives. 4,500 Americans have already been killed in the Iraq war. According to one study, over 500,000 Iraqis have also perished over the past decade of war. The UNHCR states that over 1 million additional people have been displaced in Iraq this year alone.

Linda Blimes, an expert in public finance at Harvard University, estimates that the total cost of the Iraq war for the United States will be $4 trillion when we take into account the long-term costs of health care and benefits for the veterans of that war.

The human and financial costs for us and for the Iraqis have been severe.

Let me just quote a few experts on military and foreign policy about this possibility of reentering the Iraq civil conflict.

Gordon Adams, a former senior White House budget official, said in mid-June:

> What is happening in Iraq right now is both a cautionary tale and an unfolding tragedy. The caution is about the blithe American assumption that the United States is omnipotent, and that with enough money, goodwill, expertise, equipment and training, Americans can build foreign forces and bring security to troubled areas around the world. The tragedy is that what the U.S. does, and has done, leads down the road to failure.

Retired U.S. Army Lieutenant General Robert Gard, Jr., stated, on July 6:

> The collapse of the Iraqi Army was not due to a shortage of trained Iraqi troops or the inferiority in firepower or equipment. The case was their lack of confidence in, and commitment to, Iraqi national institutions and leadership, both military commanders and political authorities. This intangible but essential element in combat effectiveness depends upon legitimate governance, not admonitions from foreign military advisers.

Retired General Barry McCaffrey, on June 12, said:

> At the end of the day, if your army won't fight, it's because they don't trust their incompetence, corrupt generals, they don't trust each other. This is an enduring civil war between the Shi'a, the Sunni, and the Kurds. So I don't think we've got any options, and we'd be ill-advised to start bombing where we really can't sort out the combatants or understand where the civilian population is.

Mr. Speaker, I do not believe the United States should be involving itself militarily in a civil war, a sectarian war, a religious war, a struggle for power that has been going on for generations. We shouldn't be taking sides in this conflict.

I do believe that a region in turmoil is not in the best interest of the United States. But as so many have said, including the President, this requires a political solution and it requires the political will of all the key actors in the region, not just outside actors like the United States and the Europeans, but those in the region. The countries and leaders in the region need to step up to the plate and actually lead on finding a political solution or watch their neighbors go up in flames and hope the fire doesn't jump to their homes and destroy them as well.

This is why we need a full debate on what is happening in Iraq, in the region, what our options are, and whether or not we should keep sending troops to Iraq or not.

Mr. Speaker, on Tuesday, the bipartisan Tom Lantos Human Rights Commission, which I cochair with my good friend Congressman FRANK WOLF, held a briefing on the human rights and humanitarian crisis in Iraq. We had witnesses from the administration, the U.N. High Commissioner on Refugees Office, and several NGOs.

The situation on the ground in Iraq that they described is horrifying, but it stretches back over a year. The human rights and humanitarian crisis in Iraq did not begin with ISIL coming back into Iraq, but that certainly has worsened and accelerated the decline in security, protection, and basic rights for the civilian population.

Yesterday, Antonio Guterres, the head of UNHCR said:

> There will not be a humanitarian solution for the Iraqi crisis. It is absolutely crucial that the Iraqi political system find a way to overcome its political divisions and contradictions.

He urged Iraq's neighbors and Western countries to work together to find a political solution as quickly as possible.

Mr. Speaker, this is where we should be putting our energy, not trying to find some sort of military path to civility in Iraq, because there is none.

I will enter into the RECORD today's Washington Post article on UNHCR's assessment of the humanitarian crisis in Iraq.

[From the Washington Post, July 17, 2014]

REFUGEE CHIEF URGES POLITICAL DEAL IN IRAQ

(By Abigail Hauslohner)

BAGHDAD—The head of the U.N. refugee agency said Wednesday that he was increasingly frustrated with Iraq's skyrocketing number of displaced people—and with governments worldwide that expect humanitarian aid organizations to ''come clean up the mess.''

''There will not be a humanitarian solution for the Iraqi crisis. There is no humanitarian solution for the Syrian crisis,'' António Guterres, the U.N. high commissioner for refugees, said in a closed briefing with reporters here in the Iraqi capital.

''It is absolutely crucial that the Iraqi political system find a way to overcome its political divisions and contradictions,'' he said.

Iraq's Political factions are negotiating the key positions in a new government that they hope will guide this fractured nation out of its worst crisis since U.S. troops pulled out in late 2011.

In recent weeks, Iraq has come dangerously close to breaking apart as Sunni militants calling themselves the Islamic State have seized control of a vast swath of territory stretching from Syria to central Iraq.

The Shiite-led government has fought back with the help of militias, raising the specter of sectarian war as violence—including airstrikes, bombings, and executions of Shiites by Sunnis and vice versa—racks many parts of the country.

Iraqi Kurds, meanwhile, are pressing for a referendum on independence in their largely autonomous—and relatively stable—region in the north.

On Wednesday, Guterres urged Iraq's neighbors and Western countries to work together to find a political solution as quickly as possible.

He said about 1.1 million Iraqis have been displaced since the start of the year, when serious violence first broke out between government forces and Sunni insurgents in the western province of Anbar.

At least half a million have fled their homes in the past five weeks alone, Guterres added.

During his weekly televised address Wednesday, embattled Prime Minister Nouri al-Maliki congratulated the Iraqi parliament on electing a new speaker. The vote Tuesday was a crucial step toward forming the desperately needed new government.

''I hope that they will work in harmony and to agree on running the parliament . . . away from all differences and calculations,'' Maliki said, according to the Associated Press.

But the parliament still needs to vote on a president and a prime minister. Maliki is facing growing pressure to step down, and his reluctance to do so has been the main cause of Iraq's political deadlock.

In his address Wednesday, however, he did not comment on whether he would seek a third term.

Mr. MCGOVERN. Mr. Speaker, my colleagues, Mr. JONES, Ms. LEE, and I have come to this floor because we are worried. We are worried because we have lived through the last many years of war and we have seen how things have gotten out of control.

I remember when the war in Iraq began. Then-Vice President Cheney was on all the news shows saying that it will be over in a few weeks or few months. No big deal. Don't worry. That was in addition to being told that Saddam Hussein had weapons of mass destruction, which we all know now was a lie.

But the fact of the matter is all those rosy predictions did not come true. We were involved in Iraq for many, many years, and there was a high cost in terms of blood and treasure. Afghanistan, we were told that it would not be an endless conflict, and here we are today still involved in Afghanistan—the longest war in American history.

I hope that history doesn't repeat itself, and I know President Obama does not want history to repeat itself. I know he deeply wants to find a political solution. I know he does not want to see more troops be involved in the Iraqi civil war, but the fact of the matter is none of us know what is going to happen.

In a couple of weeks, this Congress will adjourn for several weeks of our summer break, and then we come back for only a couple more weeks and we adjourn again for many more weeks for the campaigns. I don't want to come back to a situation and have to react to a situation that is engulfed in an all-out mess, quite frankly.

I think we ought to be debating these issues now. We ought to be debating these issues with open eyes. We ought to have a transparent system, and we ought to live up to our constitutional responsibilities.

What happens when there are the first American casualties in Iraq? What happens? What is the reaction?

Some say maybe we don't have to send military troops; maybe we will just bomb them. We will send drones. We will send missiles.

As military expert Micah Zenko tweeted:

Unless the U.S. has bombs that can install wisdom and leadership into Prime Minister Maliki, air strikes in Iraq would be pointless.

And imagine the civilian casualties that would be associated with that.

Mr. BRIDENSTINE. Will the gentleman yield?

Mr. MCGOVERN. I yield to the gentleman from Oklahoma.

Mr. BRIDENSTINE. Earlier, you made a statement about there being no weapons of mass destruction in Iraq. I would respectfully ask the gentleman to maybe rephrase that. There are mass graves in Iraq. As somebody who——

Mr. MCGOVERN. Reclaiming my time, there were no weapons of mass destruction in Iraq.

The Vice President of the United States, the President of the United States, and the Secretary of State came to Congress and told us there were weapons of mass destruction, implied there were nuclear weapons of mass destruction. And the deal was, it was a lie.

4,500 Americans died; 5,000 Iraqis died. We need to pay for the war. We didn't pay for the war. The brave men and women who served our country paid, their families paid, and the rest of us were asked to do nothing.

What I am suggesting to everybody in this Chamber now, whether you want to go back into Iraq or not, that is almost beside the point for the purpose of this debate. The issue is we ought to do our job in Congress. We have a constitutional responsibility that we seem to waive, that we seem to ignore.

We are bombing in Pakistan. We are bombing in Yemen. We had a military incursion in Libya. None of that was authorized by Congress. We are relying on these vague AUMFs that were negotiated over a decade ago to justify more military involvements in different parts of the world. What is wrong with debating these issues?

Mr. BRIDENSTINE. Will the gentleman yield?

Mr. MCGOVERN. I yield to the gentleman from Oklahoma.

Mr. BRIDENSTINE. You have tens of thousands of people in mass graves as a result of chemical weapons in Iraq, killed directly by the regime of Saddam Hussein. When you continue to perpetuate this idea that there were no weapons of mass destruction, WMD includes chemical weapons, biological weapons.

Mr. MCGOVERN. Reclaiming my time, as the gentleman knows, that is not what the Vice President or the Secretary of State or the head of the National Security Council or the President of the United States were talking about. He knows that.

What was presented to us was not truthful. It was not truthful. We were deceived. The Vice President of the United States said the war was only going to last a couple of months. He said that on TV, on news shows. That was a lie. It was a lie, and I am sick and tired of being lied to.

One of the lessons that I think we should have learned from our involvement in Iraq and Afghanistan is that we need to ask the tough questions before we get involved—not in the midst of a conflict, not later on in the conflict.

We have a responsibility. Read the Constitution of the United States. The notion that the President of the United States—and, again, I don't believe he wants to get involved in a lengthy, unlimited, endless war in Iraq. But there is the notion that we are ramping up the number of troops, and those in Congress here are saying nothing. The leadership in this Congress says nothing. There is no authorization.

I guess it is easy to sit back as an elected official and not have to vote years from now. It is a lot easier. You don't have to take responsibility. If things go well, you can say, ''Hey, that was a good idea.'' If things don't go well, ''Gee, I would have been opposed to that.'' But we are not doing our job here. We are not even paying for these wars.

To my friends on the Republican side who complain about debt, where is the outrage on the fact that we don't even pay for these wars? I can't quite understand why people approach war in this Chamber with such indifference.

My colleague Mr. JONES and I tried to bring an amendment to the floor, as I said earlier, to debate whether we should stay in Afghanistan longer. We were not even allowed a vote. The amendment we offered was germane, was relevant, and the leadership of this House said you can't even debate or vote this.

The defense bill. We are at war. What can be more important than debating whether we should be involved in this war?

So this is the time. What Mr. JONES and Ms. LEE and I are saying is that this is the time to debate this, before the first soldier comes home in a body bag.

The major proponents of a new war in Iraq are those who disastrously got us involved in the first place; people like Dick Cheney and John Bolton, Senator MCCAIN and Senator GRAHAM.

We were deceived, and we should never let that happen again. We should never let that happen again. We should demand the truth. Congress should carry out its constitutional responsibilities and vote on whether or not to get militarily involved in Iraq again.

That is what this privileged resolution that Mr. JONES, Ms. LEE, and I have suggested that we vote on. I don't know why that is such a controversial issue, but for some reason in this Congress big issues like that don't ever seem to make their way for debate on the House floor.

This should not be a Democratic or Republican issue. In fact, there are Democrats who disagree with my position. There are some Democrats who believe we ought to continue to send more military aid and potentially more troops to Iraq, and there are Republicans who agree with me that we ought not to. So this is a bipartisan concern.

□ 1430

I will close by simply saying to the Speaker of the House: Give us a vote. Let us debate this issue.

To my fellow Members of Congress on both sides of the aisle: Live up to your constitutional responsibility. Demand a vote.

I yield back the balance of my time.

PROVIDING FOR THE CORRECTION OF THE ENROLLMENT OF H.R. 5021

Mr. CHAFFETZ (during the Special Order of Mr. MCGOVERN). Mr. Speaker, I send to the desk a concurrent resolution and ask unanimous consent for its immediate consideration in the House.

The Clerk read the title of the concurrent resolution.

The SPEAKER pro tempore (Mr. BRIDENSTINE). Is there objection to the request of the gentleman from Utah?

There was no objection.

The text of the concurrent resolution is as follows:

H. CON. RES. 108

Resolved by the House of Representatives (the Senate concurring), That in the enrollment of the bill (H.R. 5021) an Act to provide an extension of Federal-aid highway, highway safety, motor carrier safety, transit, and other programs funded out of the Highway Trust Fund, and for other purposes, the Clerk of the House of Representatives shall make the following correction: At the end, add the following and conform the table of contents accordingly:

''TITLE III—TREATMENT FOR PAYGO PURPOSES

''SEC. 3001. BUDGETARY EFFECTS.

''(a) PAYGO SCORECARD.—The budgetary effects of this Act and the amendments made by this Act shall not be entered on either PAYGO scorecard maintained pursuant to section 4(d) of the Statutory Pay-As-You-Go Act of 2010 (2 U.S.C. 933(d)).

''(b) SENATE PAYGO SCORECARD.—The budgetary effects of this Act and the amendments made by this Act shall not be entered on any PAYGO scorecard maintained for purposes of section 201 of S. Con. Res. 21 (110th Congress).''.

The concurrent resolution was agreed to.

A motion to reconsider was laid on the table.

HONORING LOUIS THEODORE GETTERMAN, JR.

The SPEAKER pro tempore. Under the Speaker's announced policy of January 3, 2013, the gentleman from Texas (Mr. FLORES) is recognized for 60 minutes as the designee of the majority leader.

Mr. FLORES. Mr. Speaker, on July 1, our Nation lost Louis Theodore Getterman, Jr., a veteran, a successful businessman, a dedicated philanthropist, and a legend at Baylor University.

Lovingly known by all as Ted Getterman, he was born on October 1, 1924, in Baltimore, Maryland, and later moved to Waco, Texas, to attend Baylor University and to eventually become an active community leader.

Ted Getterman lived his entire life with excellence. At the age of 18, he volunteered for the Army, and served our Nation for 3½ years during World War II. He was on the beach with his fellow soldiers, preparing to invade Japan, when the atomic bomb was dropped, thus ending the war. Upon his return, he attended Baylor University, where he received both his BBA and J.D. degrees.

Ted Getterman was very dedicated to his alma mater, Baylor University. He upheld the university's mission well—to educate men and women for worldwide leadership and service by integrating academic excellence and Christian commitment within a caring community. He was active in various Baylor organizations, and was an honorary member of the Baylor ''B'' Association. Ted was also awarded with the Baylor Athletic Director's Hall of Honor Achievement Award, the Victory with Integrity Award, and the Baylor Founder's Medal. He was also a fellow in the Golden Bear Circle. He was even recognized as a Distinguished Alumnus by the Baylor Hankamer School of Business. The Baylor softball field was even named in his family's honor—Getterman Stadium.

In addition to his love for his university, Ted Getterman was also successful and active as a businessman. He was a partner of the Seven-Up Bottling Company, which owned franchises in 29 Texas counties and bottling plants in the Texas cities of Waco, Bryan, and Austin. Ted also served in the leadership of various business organizations, including having been the chairman of his chapter of the Texas Manufacturers Association and the president of the State Bottlers Association.

As an active community leader, Ted Getterman served on the Waco City Council, and was the mayor of Waco for two terms. He also served tirelessly on various boards and organizations, including the Waco Chamber of Commerce, the Rotary Club of Waco, the Hillcrest Baptist Medical Center, the Salvation Army, the Family Counseling and Children's Services, the Baylor Stadium Corporation, the Bear Club, the Baylor Development Council, the Ridgewood Country Club, and the McDonald Observatory of Texas. In fact, Ted was named the Philanthropist of the Year by the Central Texas Chapter of Fund-Raising Executives.

Ted Getterman was a hardworking man who also enjoyed his leisure time with family, friends, and his rescue dog, Noodle. He enjoyed traveling, golfing, and working out at the Ted and Sue Getterman Wellness Center. He was a faithful husband to his loving wife, Sue; a mentoring father to his sons, ''T'' and Holt; and an inspiration to his numerous grandchildren and great grandchildren.

When I was growing up, my dad used to always tell me the same thing each day. Those words were: ''Go make a hand.'' In other words, he was telling me to add value, to make the world a better place. I think all of us in the 17th Congressional District of Texas can unanimously say without reservation that Ted Getterman made a hand.

Before I close, I ask that all Americans continue to pray for our country, for our military men and women, and for our first responders, who serve selflessly to keep us safe and free.

My thoughts and prayers are with the family and friends of Ted Getterman's. He will be forever remembered as selfless, hardworking, and devoted man of God. He left a legacy of love, dignity, grace, and philanthropy. God bless his family and our community as we mourn his passing.

Mr. Speaker, I yield back the balance of my time.

SEPARATION OF POWERS

The SPEAKER pro tempore. Under the Speaker's announced policy of January 3, 2013, the gentleman from Georgia (Mr. WOODALL) is recognized for 55 minutes as the designee of the majority leader.

Mr. WOODALL. Mr. Speaker, I have a festival of charts with me, not because they are pretty, not because they are attractive, but because I have something very important I want to talk about today, and I just can't do it without the direct quotes. I want to talk about the separation of powers.

If you will remember the conversation that the gentleman from Massachusetts had—he was down here on the floor with the gentleman from North Carolina—they were talking about constitutional powers. They were talking about what we need to do in this body to fulfill our constitutional powers. It is hard. I don't envy them at all, Mr. Speaker. I come down here, and folks at home always ask about this time at the end of the day.

They say, What goes on in that time?

I say, Well, they yield time for long periods, about an hour at a time. They will yield Members time to come down here and debate the issues of their choice, but your job of sitting there as the impartial observer while anybody says ''goodness knows what'' down here on the House floor is a hard, hard job—a hard job.

I didn't want to come down here today and try to come up with something that was divisive, that would try to get you out of your chair, that would try to bring your gavel down on me. I wanted to come up with something today that would be something that we could agree on as a people.

Now think about that.

I don't know what your understanding is, Mr. Speaker, of who we are

as a people. I was just visiting with some young constituents out in the hallway—ages 6, ages 8, ages 10. What does it mean to be an American? It is a set of ideas. It is a set of values. It is a set of principles. Now, most of those principles, I would argue, are contained in our United States Constitution. It is a pretty simple document. It lays out a vision, a vision that has governed this country well for over 200 years.

Sadly—and I mean, sincerely, I do think it is sad—we have crafted a resolution up in the Rules Committee—and we just had a hearing on it this week—where we are suing the President of the United States over his adherence to the Constitution. Now, I take absolutely no pleasure in that. To be fair, as folks back in their offices know, Mr. Speaker, I am a hardcore Republican from the State of Georgia, but I take no pleasure in suing the President of the United States.

I take no pleasure in it because I represent the article I United States Congress. It is not my power that is in my voting card. It is the power of 650,000 constituents back home in Georgia. It is the people's power that is represented in my voting card. I will tell you that, not just during the time you have been here in Congress, Mr. Speaker, and not just during the 3 years that I have been here in Congress, but for a long period of time, the people's power that is represented here in this institution has been slipping and sliding right down Pennsylvania Avenue, behind me, and accumulating in the United States White House. Administrations, both Republicans and Democrats, have been taking one fiber of freedom—one fiber of power at a time—from the people, taking it from the Congress and amassing it down at 1600 Pennsylvania Avenue.

The reason I say I take no pleasure in the lawsuit, Mr. Speaker, is that I don't want to have to go across the street to the Supreme Court and ask a coequal branch of government—those article III courts—to return to me the people's power that I lost. I should have never lost it to begin with. Now, I wasn't here in Congress when so much of that was going on, Mr. Speaker. You know it has only been 3 years that I have had a voting card, but I feel responsible. Here is what the resolution says:

> Resolve: that the Speaker—the Speaker of the House—may initiate or intervene in one or more civil actions on behalf of the U.S. House of Representatives in Federal court.

It is saying that we have experienced institutional harm in article I. In article I in the House, we have experienced institutional harm. It authorizes the Speaker to file suit not on his behalf but on our behalf. He is not the Speaker of the Republicans. He is not the Speaker of the Democrats. He is the Speaker of the whole House. It is to file suit on our behalf, and it is a suit on the implementation of the Affordable Care Act.

I know what you are thinking, Mr. Speaker. If you have not had a chance to see this resolution, you are thinking, Oh, boy. Here go those Republicans again. They are just filing one more lawsuit to try to stop the implementation of the Affordable Care Act. Not true. Not true. This is a lawsuit to require the implementation of the Affordable Care Act.

I want you to think about that. That is why we are in this constitutional crisis.

I didn't want the Affordable Care Act. I wasn't here at the time. I didn't have a chance to vote for it. I knew I wasn't going to be able to keep my doctor. I knew I wasn't going to be able to keep my insurance policy. I knew that, if we wanted to take care of the needs of the uninsured, there were better ways, but I didn't get a chance to vote. I wasn't here. The Senate passed it. It got jammed through the House. The President signed it. It turns out it didn't quite work the way the President wanted it to.

So what does he do? He started to implement some of it, and decided not to implement other parts of it.

You don't get to do that.

We have an article I Congress. We pass the law. The President gets to sign it or veto it. The courts decide whether or not it is constitutional. Presidents don't get to decide which laws they like, which laws they don't like, which lines they want to implement, which lines they don't. So this is a lawsuit to require the President to follow the law that he signed.

I wish we would repeal the law. It turns out—and it has been said many times by leaders in this country—that the best way to do away with a bad law is to require its aggressive enforcement. I want you to think about that. The best way to end a bad law is to require its strict enforcement because then the people will make that decision.

I don't mean to pick on the President. Again, the President has a hard job. I was with my mom on Mother's Day at church, Mr. Speaker.

Someone came up, and said, Oh, Ms. Woodall, we just love your son. We hope he will think about running for the White House one day.

My mom looked him in the eye, and said, That is a terrible thing to say about my son.

And it is. It is just awful. It is an awful job, and I am glad we have men and women who are willing to pursue it, but it must be pursued, not as an all powerful executive, but as a caretaker of the constitutional responsibilities invested in that position by article II of our Constitution. Not more than 30 days ago the Supreme Court ruled on that.

This is what I want you to understand, Mr. Speaker. I know you followed the Noel Canning decision, but what the Supreme Court said in a case called Noel Canning v. NLRB not more than 30 days ago—and just to digress for a moment, Mr. Speaker, you have looked at that Court, haven't you? I mean, there are some hardcore, rock-ribbed conservatives on that Court, and there are some fringe liberals on that Court, too. I suppose, if I were in the other category, I would say there were fringe conservatives and some rock-ribbed liberals. Yet what I am saying is that they don't agree on much in that Chamber. You see it over and over and over again the decisions that come out of there. It is that five of them believe this and that four of them believe that. It is a divided Court, a divided opinion, but not so when it comes to the United States Constitution in this Noel Canning case.

In the Noel Canning case, the Court ruled 9–0—the Court ruled unanimously, Mr. Speaker—that the President of the United States exceeded his constitutional authority in making appointments to positions without consulting the United States Senate. The President made appointments to positions that the Constitution requires that the Senate approve, that the Democratic Senate approve. He made those appointments without Senate approval. He said he thought he could do it. He said it was the right thing to do. He said the ends justified the means. The Supreme Court said, 9–0, no, he can't do it. The Constitution doesn't allow it.

But that is not the point, Mr. Speaker.

The point is that that happened 2 years ago. The President made these appointments 2 years ago, and you have not heard one peep out of that United States Senate. This wasn't a lawsuit that the Senate brought to say, Wait a minute, Mr. President. You are stealing the power of the people out from under article I on Capitol Hill. This wasn't a Senate lawsuit. This was a private sector lawsuit. This was just some company out there across America that said, I have been disadvantaged because the Constitution has been breached, and I am seeking relief from the United States Supreme Court. The Senate did not stand up when the President stole their power.

□ 1445

The only way our system of government works, Mr. Speaker, is when we stand up for the people to preserve their power here in this institution.

This is what the Court said, and I just so identify with this. They said the Recess Appointments Clause—that is what we are talking about.

That was where the President said: I am going to make these appointments because the Senate is not in session. The Senate said: yes, I am in session. The President said: no, you are not, you are mistaken, I am going to make these appointments.

Anyway, the Supreme Court said the Recess Appointments Clause is not designed to overcome serious institutional friction. It simply provides a subsidiary method for appointing officials when the Senate is away during a recess.

Here is the money line, Mr. Speaker: ''Here, as in other contexts, friction between the branches is an inevitable consequence of our constitutional structure.''

I happen to have a copy of the Constitution right here, Mr. Speaker. Friction, the Supreme Court says, is ''an inevitable consequence of our constitutional structure.'' If you don't like friction, you need to rewrite your Constitution because the Constitution creates this friction to create that balance between the article I Congress, the article II executive, the article III courts.

This is not news to the President of the United States, Mr. Speaker. In fact, it is not news to the country at all.

This is George Washington's farewell address. It was 1796, Mr. Speaker, 1796. This is our unwilling President. President Washington didn't want to be our first President. He was drafted to do the job.

Turns out, some of the best Presidents are the ones who don't want the job, but who have it thrust upon them by the circumstances of history.

President Washington says this—farewell address, 1796, he said:

> It is important, likewise, that the habits of thinking in a free country should inspire caution in those entrusted with its administration, to confine themselves within their respective constitutional spheres, avoiding in the exercise of the powers of one department to encroach upon another.

President George Washington, having fought that Revolutionary War, having given us the benefit that no other nation on the planet had, of self-governance, having been drafted into service after the Constitutional Convention of 1787 to serve as the first President of the United States—in his parting words, in the final wisdom that he tries to pass on to preserve this fledgling Nation that he pledged his life and his fortune to create, he said, it is important, in the habits of thinking in a free country, that those habits should inspire caution in those entrusted with its administration to confine themselves within their respective constitutional spheres.

I want you to think about that, Mr. Speaker, where we are today, where the Supreme Court is ruling unanimously that this President of the United States has overstepped his constitutional bounds, where the House of Representatives is considering a lawsuit against the President of the United States for even more overreaching of his constitutional authority.

From the very beginning of this Nation, our leaders knew that the Nation's success depended on confining each branch of government to its respective constitutional sphere.

Now, I know what you are thinking, Mr. Speaker. You are thinking that was 1797, things change.

Well, let's take a look and see. Here is a quote from Senator Barack Obama, 2007. Senator Barack Obama, 2007, says this—he says: I was a constitutional law professor, which means, unlike the current President, I actually respect the Constitution.

That is pretty powerful. Now, in fairness, there were Presidential campaigns beginning then. People sometimes say inflammatory things during campaigns that they later regret saying, but then-Senator Barack Obama said: This current President, George Bush, he doesn't respect the Constitution. Maybe he doesn't understand it; but I, President Obama, said—then-Senator Obama said: I am a constitutional professor. I understand it. I get it, and I respect it.

Not so, says the Supreme Court this summer, 9–0, that the President overstepped his constitutional bounds. I know what you are thinking, Mr. Speaker. You are saying you have been around this town for a short period of time, and you know how people game these quotes. They go out and they pull the most awful quote out, and they pretend that that represents someone's entire body of thought.

Well, I have gone much further. Here, again, Senator Barack Obama, 2007: These last few years, we have seen an unacceptable abuse of power here at home in America.

He said: We have paid a heavy price for having a President whose priority is expanding his own power. The constitution is treated like a nuisance.

I want to think about that, Mr. Speaker, because I want to come back to that.

Then-Senator Barack Obama, observing what happened in the Bush administration, says: We have paid a heavy price for having a President whose priority is expanding his own power. The Constitution is treated like a nuisance.

Now, what I hope the take-home message is, Mr. Speaker, that you will share with your constituents back home, that I certainly share with mine, is we have just had a debate over constitutional responsibility on the floor of the House, where both our Democratic friend from Massachusetts and our Republican friend from North Carolina both agreed that we need to stand up more for our article I powers.

I want to associate myself with the comments of Senator Barack Obama in 2007. Had Republicans done a better job—and, again, I wasn't in Congress at the time. You weren't in Congress at the time, Mr. Speaker—had Republicans done a better job reining in the overreach of then-President Bush, we wouldn't be having so many of these conversations today.

Something very destructive is happening in this country, very destructive, where Republicans prioritize protecting Republicans in the White House more than they prioritize protecting the Constitution, where Democrats prioritize protecting the Democrats in the White House more than they prioritize protecting the Constitution.

I don't know how that happened. We had giants in this institution, Mr. Speaker, on both sides of the aisle—both sides of the aisle.

Robert Byrd from West Virginia always comes to mind. I couldn't agree with him on many policy issues, but, boy, did I love his affection for the United States of America. Man alive, did I admire his commitment to the Constitution.

The thing of it is, Mr. Speaker, if we don't stand up for it, no one else will. President Obama said he was going to stand up for it. He said we had paid a heavy price under President Bush for treating the Constitution as a nuisance.

Let me go a little more current. President Obama, at a press conference, August 13 of 2013, he is talking about the Affordable Care Act. He is talking about that bill on which the House is getting ready to file a lawsuit.

This is exactly what he said: In a normal political environment—President Obama said—it would have been easier for me to simply call up the Speaker and say, you know what? This is a tweak that doesn't go to the essence of the law.

He is talking about delaying the employer mandate. He is talking about taking that part of the law that says this must happen by this date and deciding it is not going to happen by that date. In fact, it might not happen at all, but it is certainly not going to happen this year.

He says, ordinarily, he would have just called up the Speaker and said, We need to tweak this. He says, Let's make a technical change to the law, would be what he would ordinarily tell the Speaker. He said that would be the normal thing that I would prefer to do, but we are not in a normal atmosphere around here when it comes to ObamaCare.

We had the executive authority to do what we did, and so we did so.

Our President who, as a Senator, recognized the erosion of power from article I, our President who, as a Senator, wanted to rein in what George Bush was doing—in fact, accused George Bush of considering the Constitution a nuisance, our President, when then a Senator, said he was a constitutional law professor, he understood the nuances of the Constitution.

When he became President, Mr. Speaker, he said: you know what? I understand that what is supposed to happen is that I am supposed to go to Capitol Hill, I am supposed to talk to the Speaker, and I am supposed to get the law changed—but these aren't ordinary times. These aren't times like last year or 2 years ago or 10 years ago or 200 years ago. These are special times, and in these special times, I am just going to do it myself from the White House.

Incredibly dangerous, incredibly dangerous—he could be right, he could be 100 percent right about what he wants to do, but the way he wants to do it is 100 percent wrong.

Don't believe me, listen to the Supreme Court, which said, 9–0, unanimously, the President has overstepped his bounds.

Then-Senator Barack Obama, Mr. Speaker: I taught constitutional law for 10 years, I take the Constitution very seriously.

This is 2008. There is a war ongoing. The economy is collapsing, America is in crisis, and this is what then-Senator Barack Obama says: The biggest problems that we are facing right now have to do with George Bush trying to bring more and more power into the executive branch and not go through Congress at all.

I want you to think about that, Mr. Speaker. 2008, in the midst of crisis in this country, a Presidential election year, where candidates are telling the American people who they are, what they believe, and what the American people can count on them to do if elected to office.

Looking at that landscape of crisis in this country, President Obama—then-Senator Obama says: The biggest problem that we are facing right now has to do with George Bush trying to bring more and more power into the executive branch and not go through Congress at all.

Here is the money line, Mr. Speaker: That is what I intend to reverse when I am President of the United States of America.

This body is getting ready to file a lawsuit, unprecedented, against the President of the United States for failure to stay within his constitutional lane.

The lawsuits filed by the private sector are coming back from the Supreme Court, 9–0, that the President has exceeded his constitutional lane. He ran on a platform of Presidents are exceeding their constitutional lanes and it is destroying the country. It is among the biggest problems the Nation faces. He pledges to reform it.

I would argue, Mr. Speaker, in the 40 years that I have been watching the governance of this Nation, I have never seen it any worse, but to be clear, I have seen it bad. I have seen it bad, and I have seen the failure of this House to stop it. I have seen the failure of the Senate to stop it.

There is plenty of blame to go around. I am not interested in who to blame for it, I am interested in how to solve it, because here is the question that I think all the board of directors of America has to answer.

Now, I gesture to this Chamber, Mr. Speaker, as if the board of directors live here. They do not. The board of directors of the United States of America lives at home in Peachtree Corners, Georgia; in Lawrenceville, Georgia; they live in Poughkeepsie; they live in L.A.; they live in New York; they live in Sioux City; they live in New Orleans; they live all across this land.

The board of directors are those people with voter registration cards in their pocket. They are the ones who run this country. They are the ones to whom we are accountable.

The President knows—he knew it when he was in the Senate, he knew when he began his campaign for office, he knew what George Washington told us in his farewell address, which was only a reverence for the division of powers crafted by the Constitution will allow our country to be strong.

He knew it, he campaigned on it, and the pressures of the job—the pressures of this horrible, horrible job, I will tell you, that is President of the United States, have caused him to lose sight of that constitutional mooring; and we, the board of directors, must bring him back.

Now, we are going to try to do it through a lawsuit here in the U.S. House. The private sector has already done it through multiple lawsuits, through the Supreme Court.

The American people need to do it—not at the ballot box because this President will never seek election again. They need to do it through the court of public opinion.

□ 1500

Getting our goals accomplished is important. How we get those goals accomplished may be even more.

Senator Barack Obama in 2008: One of the most important jobs of the Supreme Court is to guard against the encroachment of the executive branch on the power of the other branches. And I think the Chief Justice has been a little bit too willing and eager to give the administration—then the Bush administration—whether it's mine or George Bush's, more power than I think the Constitution originally intended.

Think about that, Mr. Speaker. Again, this is an election year. This is 2008. The President is running to be the President of the United States. He is being asked about what that separation of powers means. He is being asked whether or not the Constitution matters. He is being asked, how do we continue this great experiment in self-governance that is the United States of America? And he says: One of the most important jobs of the Supreme Court is to guard against the encroachment of the executive branch on the power of the other branches.

Mr. Speaker, I want you to listen to what is coming out of this White House when we talk about this lawsuit the House is considering filing. Is this what you hear? Is what you hear from President Barack Obama in 2014 the same thing you heard from him as candidate-for-President Barack Obama in 2008?

The most important job of the Supreme Court is to guard against the encroachment of the executive branch?

That is all this House is asking the Court to decide.

And we didn't choose a controversial issue, one that we might disagree with the President on, on whether or not it should be implemented. We chose his own health care bill to say: Mr. President, I know you are proud of this health care bill, and so let's do it. Let's implement it. Let's not pick and choose. Let's do the whole thing exactly the way you signed it, exactly the way the House and Senate passed it. Let's do it that way. You don't get to make those decisions on your own.

The President knew that as a Senator. In fact, he criticizes the Supreme Court. In the same way that today, what I hear coming out of the White House is a criticism of the U.S. House for even going to the Court to try to chasten the President, when he was a Senator, he goes the other direction. He says: I think the Chief Justice has been a little bit too willing and eager to give the administration, whether it's mine or George Bush's, more power than I think the Constitution originally intended.

There is a lot of pressure to get your agenda accomplished. It is not just a Capitol Hill thing. It is not a White House thing. It is a life thing. We have been talking about that since we were kids, Mr. Speaker.

Do the ends justify the means? Does the process matter? I will tell you, if you have a broken process, you are going to end up with a broken product.

We have an opportunity in this Chamber to do exactly what then-Senator Obama asked us to do, which is to stand up for this division of power.

Then-Senator Barack Obama, Mr. Speaker, on May 19, 2008, he says this about the division of power. He does understand it. At least in 2008, he got it. This is what he said. He said: Everybody's got their own role. Congress' job is to pass legislation, and the President can veto it or sign it. But what George Bush has been doing, as a part of his effort to accumulate more power in the Presidency, is he has been saying, Well, I can basically change what Congress passed by attaching a letter that says I don't agree with this part or that part. He says: What President Bush is doing is saying, I am going to choose to interpret it this way or that way.

But then-Senator Barack Obama goes on to say that is not part of the President's power. He says: This is part of the whole theory of George Bush, that he can make up the law as he goes along. Then-Senator Barack Obama says: I disagree with that.

Mr. Speaker, it does not matter whether you are the most liberal Democrat in this country or the most conservative Republican or anybody in between. There is no question that there is picking and choosing going on in the implementation of laws in this country: I am going to enforce this law because I like it; I am going to ignore this law because I don't like it; I am going to change this law because I would like it better if only it had this instead of that.

The lawsuit this institution is proposing is not to settle any kind of policy dispute; it is to settle a process dispute. It is to say, whatever you think about the Affordable Care Act, it passed the Senate; whatever you think about the Affordable Care Act, it passed the House; whatever you think about the Affordable Care Act, it was

signed into law by the President of the United States and upheld by the Supreme Court; so let's enforce it. Let's enforce it. Let's do what it says. If it says these policies should be outlawed, let's outlaw them. You don't get to choose which ones you think should and shouldn't be outlawed. The law, itself, says outlaw them. No policy shall be sold after this date.

If you believe that the protections of the Affordable Care Act—I don't call them protections. They have done more to destroy health insurance in my district than to protect the uninsured in my district. But if you believe those protections are important for America, implement those. Implement those.

You saw the chaos that was caused in the individual market when that one set was implemented. No more deadlines have been implemented since that time.

The President said: You know what? That wasn't quite what I had intended. It wasn't supposed to work out that way. He says: In ordinary times, I would have gone to the U.S. House of Representatives. I would have called the Speaker. I would have said let's work together to change the law. But these are not ordinary times, so I am going to change it myself, as the Executive of the United States.

You won't find those powers in this Constitution, Mr. Speaker. You won't find them here. You will find a long history of Senators and House Members saying: Mr. President, you can't do that; you will find a long history of the Supreme Court saying: You can't do that; and you will find, in the case of this President in particular, because he had decades as a constitutional scholar, you will find speech after speech, you will find quote after quote, you will find article after article that say to the then-President of the United States, George Bush: Stay in your constitutional lane. Obey that simple document that is our United States Constitution. If you want something done, go to the Congress to get it done. Do not do it by yourself in the White House. Don't pick up your pen. Don't pick up your phone. Get in your car and drive down to the United States Congress.

And every single time then-Senator Barack Obama said that, he was right. And there were far too few Republicans in this Chamber, far too few Republicans in the Senate who stood up and agreed with him.

As Republicans, we had a war on our hands. The Nation was in crisis, a national security crisis. Terrorism was on our shores like we had never seen before. And we thought, you know what—and again, I wasn't here then. I can only imagine what was going on in this body. I can only imagine what those with voting cards were thinking. But I imagine they were thinking: I would hate to criticize my own President in these tough times for America. Maybe it would be better if I looked the other way. Maybe it would be better if I just turned my head just this once, irrespective of what the constitutional guidance requires.

If that was the thought of any man or woman in this Chamber, if that was the thought of any man or woman in the United States Senate, they were 100 percent wrong. I get it. I get how they could feel that way, but they were 100 percent wrong. And if any man or woman in this Chamber or in the United States Senate is thinking today, I must protect my President from the strictures of the Constitution, they are wrong.

The Constitution does not exist to protect the President. The Constitution exists to protect the people. The Constitution is not a document to make sure that government power is preserved. The Constitution is a document to make sure the people's power isn't abrogated. It is not easy.

I hope folks liked to see the gentleman from Massachusetts and the gentleman from North Carolina, gentlemen who disagree on so much about policy in this Chamber, gentlemen from different parts of the country, gentlemen from different parties down here agreeing on the constitutional role of this House when it comes to sending our young men and women into harm's way. They were exactly right.

We have to come together to do this, Mr. Speaker. And if we could come together to do this, a lawsuit wouldn't even be necessary.

Again, we used to have giants. We used to have giants in this institution who put the country first and the party a distant, distant second or third or fourth. We have got to bring those traditions back.

President Barack Obama, August 2013, an incredibly popular President sat for reelection, reelected to a second term by the American people. A constitutional scholar, having forewarned the American people for over a decade about the dangers of too much power involved in the executive branch, having warned the American people about the importance of including Congress, having told the Bush White House how absolute power cannot reside there, must have ideas originating from the U.S. House, says: In a normal political environment, it would have been easier for me to call the Speaker and say, You know what, let's tweak this legislation. That would be the normal thing, and that is what I would prefer to do, but I am not going to do it. We are not in a normal atmosphere around here, he says. I have executive authority, and I used it.

The funny thing about the Constitution, Mr. Speaker, folks always talk about their constitutional rights. They always talk about their constitutional rights. Sometimes the rights they are talking about really are constitutional; sometimes they are not. But the funny thing about this Constitution is it allows the President to do anything he or she wants to do until somebody stands up and says no.

The powers are in the Congress. The powers are in the courts. The Executive's role is to implement those rules, to implement those laws. But if no one stands up and says no, the largest branch in the country is the executive branch, and they continue to operate unfettered.

We don't have an opportunity to say no. We have an obligation to say no. Not to say no to this President, but to say no to the Office of the President. When these powers slip away, these powers that don't belong to this Chamber but belong to the American people, when they slip away, they are hard to get back.

We didn't have a revolution in this country because the executive wasn't powerful enough. We had a revolution in this country because the executive was all powerful, and we thought there was a better way.

The President, speech after speech, article after article, thought there was a better way. But the power of that office, perhaps the burdens of that office, the responsibility of that office, have brought a 180-degree change in the President's view of the Constitution. We are back to where he identified George Bush as being 8 years ago, where the Constitution is treated as a nuisance.

The Constitution is not a nuisance. The Constitution is the only thing standing between the American people and a complete seizure of their freedoms. This is that document.

I am going to end where I began, Mr. Speaker, with the Noel Canning decision, 9–0. The Supreme Court says President Barack Obama had no constitutional authority to do what he did—no constitutional authority. And what the Court observes is friction between the branches is an inevitable consequence of our constitutional form of government.

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We can absolutely do away with the friction. We can absolutely get things done. We can absolutely move all the obstacles out of the way. But that would not be America. That would not be our constitutional form of government.

You cannot eliminate the friction without eliminating the Constitution. There is not a constituent in my district back home that would make that choice. We have to embrace the friction. We have to embrace the battles of ideas that is America, and we have to commit ourselves—even when it is inconvenient—to playing by the rules of the United States Constitution. It has protected our freedoms as a self-governing people for 200 years, and it can do it for another 200 years if we don't lose track of our obligation to protect it today.

Mr. Speaker, thank you for being down here with me today, and with that, I yield back the balance of my time.

FURTHER MESSAGE FROM THE SENATE

A further message from the Senate by Ms. Curtis, one of its clerks, announced that the Senate has passed a bill of the following title in which the concurrence of the House is requested:

S. 2244. An act to extend the termination date of the Terrorism Insurance Program established under the Terrorism Risk Insurance Act of 2002, and for other purposes.

LEAVE OF ABSENCE

By unanimous consent, leave of absence was granted to:

Mr. STIVERS (at the request of Mr. CANTOR) for today on account of Ohio Army National Guard duty in Columbus, Ohio.

BILL PRESENTED TO THE PRESIDENT

Karen L. Haas, Clerk of the House, reported that on July 17, 2014, she presented to the President of the United States, for his approval, the following bill:

H.R. 697. To provide for the conveyance of certain Federal land in Clark County, Nevada, for the environmental remediation and reclamation of the Three Kids Mine Project Site, and for other purposes.

ADJOURNMENT

Mr. WOODALL. Mr. Speaker, I move that the House do now adjourn.

The motion was agreed to; accordingly (at 3 o'clock and 16 minutes p.m.), under its previous order, the House adjourned until tomorrow, Friday, July 18, 2014, at 11 a.m.

EXECUTIVE COMMUNICATIONS, ETC.

Under clause 2 of rule XIV, executive communications were taken from the Speaker's table and referred as follows:

6476. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Withdrawal of Labeling of Pesticide Products and Devices for Export [EPA-HQ-OPP-2009-0607; FRL-9913-18] (RIN: 2070-AJ53) received July 9, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Agriculture.

6477. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Approval and Promulgation of Air Quality Implementation Plans; Connecticut; Regional Haze [EPA-R01-OAR-2009-0919; A-1-FRL-9810-2] received July 9, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

6478. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Approval and Promulgation of Air Quality Implementation Plans; Illinois; Latham Pool Adjusted Standard [EPA-R05-OAR-2014-0119; FRL-9912-19-Region 5] received July 9, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

6479. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Approval and Promulgation of Air Quality Implementation Plans; Maryland; Low Emission Vehicle Program [EPA-R03-OAR-2014-0310; FRL-9913-30-Region 3] received July 9, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

6480. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Approval and Promulgation of Air Quality Implementation Plans; Maryland; Section 110(a)(2) Infrastructure Requirements for the 2010 Nitrogen Dioxide National Ambient Air Quality Standards [EPA-R03-OAR-2013-0649; FRL-9913-41-Region 3] received July 9, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

6481. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Approval and Promulgation of Air Quality Implementation Plans; Pennsylvania; Control of Commercial Fuel Oil Sulfur Limits for Combustion Units [EPA-R03-OAR-2013-0241; FRL-9913-26-Region 3] received July 9, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

6482. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Approval and Promulgation of Air Quality Implementation Plans; West Virginia; Minor New Source Review [EPA-R03-OAR-2013-0789; FRL-9913-42-Region 3] received July 9, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

6483. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Approval and Promulgation of Implementation Plans; Idaho: Infrastructure Requirements for the 1997 and 2006 Fine Particulate Matter and 2008 Ozone National Ambient Air Quality Standards [EPA-R10-OAR-2011-0715; FRL-9913-28-Region 10] received July 9, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

6484. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Approval and Promulgation of Implementation Plans; Texas; Revisions to the New Source Review State Implementation Plan; Flexible Permit Program [EPA-R06-OAR-2013-0542; FRL-9913-48-Region 6] received July 9, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

6485. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Approval and Promulgation of State Air Quality Implementation Plans for Designated Facilities and Pollutants; Delaware, District of Columbia, and West Virginia; Control of Emissions from Existing Sewage Sludge Incinerator Units [EPA-R03-OAR-2013-0475; FRL-9913-32-Region 3] received July 9, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

6486. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Revisions to the California State Implementation Plan; Placer County Air Pollution Control District and South Coast Air Quality Management District [EPA-R09-OAR-2014-0323; FRL-9913-12-Region 9] received July 9, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

6487. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Significant New Use Rules on Certain Chemical Substances [EPA-HQ-OPPT-2014-0166; FRL-9910-01] (RIN: 2070-AB27) received July 9, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

6488. A letter from the Attorney Advisor, Department of Homeland Security, transmitting the Department's final rule — Safety Zones; Hawaiian Island Commercial Harbors, HI [USCG-2013-0021] (RIN: 1625-AA00) received June 30, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

6489. A letter from the Attorney Advisor, Department of Homeland Security, transmitting the Department's final rule — Safety Zone; Hudson River Swim for Life; Hudson River, Sleepy Hollow, New York [USCG-2014-0363] (RIN: 1625-AA00) received June 30, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

6490. A letter from the Attorney Advisor, Department of Homeland Security, transmitting the Department's final rule — Safety Zone; Lady Liberty Sharkfest Swim; Upper New York Bay, Liberty Island, NY [USCG-2014-0117] (RIN: 1625-AA00) received June 30, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

6491. A letter from the Attorney Advisor, Department of Homeland Security, transmitting the Department's final rule — Safety Zone; Texas City Channel, Texas City, TX [USCG-2014-0034] (RIN: 1625-AA00) received June 30, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

6492. A letter from the Attorney Advisor, Department of Homeland Security, transmitting the Department's final rule — Safety Zone; Execpro Services Fireworks Display, Lake Tahoe, Incline Village, NV [USCG-2014-0402] (RIN: 1625-AA00) received June 30, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

6493. A letter from the Attorney Advisor, Department of Homeland Security, transmitting the Department's final rule — Safety Zone; Arts Project Cherry Grove Pride Week Fireworks Display; Great South Bay; Cherry Grove, Fire Island, NY [USCG-2014-0180] (RIN: 1625-AA00) received June 30, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

6494. A letter from the Attorney Advisor, Department of Homeland Security, transmitting the Department's final rule — Safety Zones; July 4th Fireworks Displays within the Captain of the Port Zone, Miami, FL [USCG-2014-0165] (RIN: 1625-AA00) received June 30, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

6495. A letter from the Paralegal Specialist, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; The Boeing Company Airplanes [Docket No.: FAA-2013-0368; Directorate Identifier 2012-NM-058-AD; Amendment 39-17851; AD 2014-11-01] (RIN: 2120-AA64) received July 9, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

6496. A letter from the Paralegal Specialist, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; Airplanes Originally Manufactured by Lockheed for the Military as Model P-3A and P3A Airplanes [Docket No.: FAA-2013-1073; Directorate Identifier

2012-NM-039-AD; Amendment 39-17856; AD 2014-11-06] (RIN: 2120-AA64) received July 9, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

REPORTS OF COMMITTEES ON PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XIII, reports of committees were delivered to the Clerk for printing and reference to the proper calendar, as follows:

Mr. CAMP: Committee on Ways and Means. House Resolution 645. Resolution requesting that the President of the United States transmit to the House of Representatives copies of any emails in the possession of the Executive Office of the President that were transmitted to or from the email account(s) of former Internal Revenue Service Exempt Organizations Division Director Lois Lerner between January 2009 and April 2011, adversely; (Rept. 113–524). Referred to the House Calendar.

Mr. CAMP: Committee on Ways and Means. House Resolution 647. Resolution directing the Secretary of the Treasury to transmit to the House of Representatives copies of any emails in the possession of the Department that were transmitted to or from the email account(s) of former Internal Revenue Service Exempt Organizations Division Director Lois Lerner between January 2009 and April 2011, adversely; (Rept. 113–525). Referred to the House Calendar.

Mr. CAMP: Committee on Ways and Means. H.R. 3393. A bill to amend the Internal Revenue Code of 1986 to consolidate certain tax benefits for educational expenses, and for other purposes; with an amendment (Rept. 113–526). Referred to the Committee of the Whole House on the state of the Union.

Mr. CAMP: Committee on Ways and Means. H.R. 4935. A bill to amend the Internal Revenue Code of 1986 to make improvements to the child tax credit; with an amendment (Rept. 113–527). Referred to the Committee of the Whole House on the state of the Union.

Mr. MCCAUL: Committee on Homeland Security. H.R. 3202. A bill to require the Secretary of Homeland Security to prepare a comprehensive security assessment of the transportation security card program, and for other purposes; with an amendment (Rept. 113–528). Referred to Committee of the Whole House on the state of the Union.

Mr. KLINE: Committee on Education and the Workforce. H.R. 3136. A bill to establish a demonstration program for competency-based education; with an amendment (Rept. 113–529). Referred to the Committee of the Whole House on the state of the Union.

Mr. KLINE: Committee on Education and the Workforce. H.R. 4983. A bill to simplify and streamline the information regarding institutions of higher education made publicly available by the Secretary of Education, and for other purposes; with an amendment (Rept. 113–530). Referred to the Committee of the Whole House on the state of the Union.

Mr. KLINE: Committee on Education and the Workforce. H.R. 4984. A bill to amend the loan counseling requirements under the Higher Education Act of 1965, and for other purposes; with an amendment (Rept. 113–531). Referred to the Committee of the Whole House on the state of the Union.

Mr. HASTINGS of Washington: Committee on Natural Resources. H.R. 3716. A bill to ratify a water settlement agreement affecting the Pyramid Lake Paiute Tribe, and for other purposes (Rept. 113–532). Referred to the Committee of the Whole House on the state of the Union.

Mr. HASTINGS of Washington: Committee on Natural Resources. H.R. 4283. A bill to amend the Wild and Scenic Rivers Act to authorize the Secretary of the Interior to maintain or replace certain facilities and structures for commercial recreation services at Smith Gulch in Idaho, and for other purposes; with an amendment (Rept. 113–533). Referred to the Committee of the Whole House on the state of the Union.

Mr. HASTINGS of Washington: Committee on Natural Resources. H.R. 4508. A bill to amend the East Bench Irrigation District Water Contract Extension Act to permit the Secretary of the Interior to extend the contract for certain water services (Rept. 113–534). Referred to the Committee of the Whole House on the state of the Union.

Mr. HASTINGS of Washington: Committee on Natural Resources. H.R. 4527. A bill to remove a use restriction on land formerly a part of Acadia National Park that was transferred to the town of Tremont, Maine, and for other purposes (Rept. 113–535). Referred to the Committee of the Whole House on the state of the Union.

Mr. HASTINGS of Washington: Committee on Natural Resources. H.R. 4562. A bill to authorize early repayment of obligations to the Bureau of Reclamation within the Northport Irrigation District in the State of Nebraska (Rept. 113–536). Referred to the Committee of the Whole House on the state of the Union.

Mr. HASTINGS of Washington: Committee on Natural Resources. H.R. 4315. A bill to amend the Endangered Species Act of 1973 to require publication on the Internet of the basis for determinations that species are endangered species or threatened species, and for other purposes; with an amendment (Rept. 113–537). Referred to the Committee of the Whole House on the state of the Union.

Mr. HASTINGS of Washington: Committee on Natural Resources. H.R. 4316. A bill to amend the Endangered Species Act of 1973 to improve the disclosure of certain expenditures under that Act, and for other purposes; with an amendment (Rept. 113–538). Referred to the Committee of the Whole House on the state of the Union.

Mr. HASTINGS of Washington: Committee on Natural Resources. H.R. 4317. A bill to amend the Endangered Species Act of 1973 to require disclosure to States of the basis of determinations under such Act, to ensure use of information provided by State, tribal, and county governments in decisionmaking under such Act, and for other purposes (Rept. 113–539). Referred to the Committee of the Whole House on the state of the Union.

Mr. HASTINGS of Washington: Committee on Natural Resources. H.R. 4318. A bill to amend the Endangered Species Act of 1973 to conform citizen suits under that Act with other existing law, and for other purposes (Rept. 113–540, Pt. 1). Referred to the Committee of the Whole House on the state of the Union.

DISCHARGE OF COMMITTEE

Pursuant to clause 2 of rule XIII, Committee on the Judiciary discharged from further consideration. H.R. 4318 referred to the Committee of the Whole House on the state of the Union, and ordered to be printed.

PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Mr. SMITH of Nebraska (for himself, Mr. FORTENBERRY, and Mr. TERRY):

H.R. 5129. A bill to require notification of a Governor of a State if an unaccompanied alien child is placed for custody and care in the State; to the Committee on the Judiciary.

By Mr. CARTWRIGHT (for himself, Ms. CLARK of Massachusetts, Mr. CLAY, Mr. CLYBURN, Mr. CUMMINGS, Mr. DANNY K. DAVIS of Illinois, Mr. DOGGETT, Ms. EDWARDS, Mr. ELLISON, Mr. FATTAH, Ms. JACKSON LEE, Ms. EDDIE BERNICE JOHNSON of Texas, Mr. GEORGE MILLER of California, Ms. PINGREE of Maine, Mr. RANGEL, Ms. TSONGAS, Ms. MICHELLE LUJAN GRISHAM of New Mexico, and Mr. COHEN):

H.R. 5130. A bill to amend the Truth in Lending Act to establish a national usury rate for consumer credit transactions; to the Committee on Financial Services.

By Ms. GABBARD (for herself and Mr. KINZINGER of Illinois):

H.R. 5131. A bill to direct the Secretary of Veterans Affairs to reimburse non-Department of Veterans Affairs medical providers for the provision of certain hospital care and medical services to veterans, and for other purposes; to the Committee on Veterans' Affairs.

By Mr. CONYERS (for himself, Mr. JOHNSON of Georgia, Ms. JACKSON LEE, Ms. NORTON, and Ms. LOFGREN):

H.R. 5132. A bill to amend title 11 of the United States Code to dispense with the requirement of providing assurance of payment for utility services under certain circumstances,; to the Committee on the Judiciary.

By Mr. CONYERS (for himself, Mr. JOHNSON of Georgia, Ms. JACKSON LEE, and Mr. COHEN):

H.R. 5133. A bill to amend chapter 9 of title 11 of the United States Code to improve protections for employees and retirees in municipal bankruptcies; to the Committee on the Judiciary.

By Ms. FOXX (for herself and Mr. HINOJOSA):

H.R. 5134. A bill to extend the National Advisory Committee on Institutional Quality and Integrity and the Advisory Committee on Student Financial Assistance for one year; to the Committee on Education and the Workforce.

By Mrs. NOEM (for herself, Mr. PAULSEN, Mr. CRAMER, Mr. DAINES, Mr. COFFMAN, Mr. RODNEY DAVIS of Illinois, Mrs. BLACK, Mr. FLORES, Mr. FITZPATRICK, Mrs. WALORSKI, Mrs. WAGNER, Mr. SCHOCK, Mr. SOUTHERLAND, Ms. BASS, Mr. JOLLY, Mr. LANCE, Mr. LANKFORD, Mr. MULLIN, Mr. WALBERG, Mr. LAMALFA, Mr. CRAWFORD, Mr. MCKINLEY, Mr. PITTENGER, Mr. COOK, Ms. HERRERA BEUTLER, Mrs. ELLMERS, Mrs. CAROLYN B. MALONEY of New York, Mrs. BLACKBURN, Mr. REED, and Mr. WEBER of Texas):

H.R. 5135. A bill to direct the Interagency Task Force to Monitor and Combat Trafficking to identify strategies to prevent children from becoming victims of trafficking and review trafficking prevention efforts, to protect and assist in the recovery of victims of trafficking, and for other purposes; to the Committee on the Judiciary, and in addition to the Committee on Foreign Affairs, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. FUDGE (for herself, Mr. RYAN of Ohio, Mr. CUMMINGS, Ms. LEE of California, Ms. NORTON, Mr. RICHMOND, Mr. HASTINGS of Florida, and Ms. CLARKE of New York):

H.R. 5136. A bill to direct the Secretary of Health and Human Services to establish a demonstration project under the Medicaid

program under title XIX of the Social Security Act under which payment may be made to States for expenditures for medical assistance with respect to substance use disorder treatment services, and for other purposes; to the Committee on Energy and Commerce.

By Mr. CHAFFETZ (for himself, Mr. GOODLATTE, Mr. SMITH of Texas, Mr. CHABOT, and Mr. FARENTHOLD):

H.R. 5137. A bill to modify the treatment of unaccompanied alien children who are in Federal custody by reason of their immigration status, and for other purposes; to the Committee on the Judiciary, and in addition to the Committees on Foreign Affairs, Agriculture, Natural Resources, and Homeland Security, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. OLSON (for himself, Mr. SAM JOHNSON of Texas, Mr. POE of Texas, Mr. WILLIAMS, Mr. BURGESS, Mrs. MILLER of Michigan, Mr. COTTON, Mrs. BLACK, Mr. WALBERG, and Mr. MARCHANT):

H.R. 5138. A bill to amend the William Wilberforce Trafficking Victims Protection Reauthorization Act of 2008 to require consultation with State and local elected officials and a public hearing before awarding grants or contracts for housing facilities for unaccompanied alien children; to the Committee on the Judiciary.

By Mr. CLAWSON of Florida:

H.R. 5139. A bill to correct the boundaries of the John H. Chafee Coastal Barrier Resources System Unit P16; to the Committee on Natural Resources.

By Ms. BASS (for herself, Mr. RANGEL, Mr. RUSH, Mr. MCDERMOTT, and Ms. LEE of California):

H.R. 5140. A bill to amend part E of title IV of the Social Security Act to enable a State to be reimbursed for child welfare training expenditures made by a nonprofit educational institution in the State; to the Committee on Ways and Means.

By Mr. BURGESS:

H.R. 5141. A bill to reduce the amount of foreign assistance to Mexico, Guatemala, Honduras, and El Salvador based on the number of unaccompanied alien children who are nationals or citizens of such countries and who in the preceding fiscal year are placed in Federal custody by reason of their immigration status; to the Committee on Foreign Affairs.

By Mr. BUTTERFIELD (for himself, Mrs. ELLMERS, Mr. JONES, Mr. PRICE of North Carolina, Mr. COBLE, Mr. HUDSON, Mr. PITTENGER, Mr. MEADOWS, Mr. MCHENRY, Mr. MCINTYRE, and Mr. HOLDING):

H.R. 5142. A bill to designate the facility of the United States Postal Service located at 113 West Jackson Street in Rich Square, North Carolina, as the ''Chief Joseph E. White, Jr. Post Office Building''; to the Committee on Oversight and Government Reform.

By Mr. CARTER (for himself, Mr. ADERHOLT, and Mr. KINGSTON):

H.R. 5143. A bill to amend the William Wilberforce Trafficking Victims Protection Reauthorization Act of 2008 to provide for the expedited removal of unaccompanied alien children who are not victims of a severe form of trafficking in persons and who do not have a fear of returning to their country of nationality or last habitual residence, and for other purposes; to the Committee on the Judiciary, and in addition to the Committee on Foreign Affairs, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. CLEAVER (for himself, Mr. COHEN, Mr. SCHIFF, Ms. JACKSON LEE, and Mr. POCAN):

H.R. 5144. A bill to amend the Help America Vote Act of 2002 to require States which require individuals to present a photo identification as a condition of voting in elections for Federal office to accept a photo identification presented by a student which is issued by the school the student attends; to the Committee on House Administration.

By Ms. DELAURO (for herself and Mr. ISRAEL):

H.R. 5145. A bill to require breast density reporting to physicians and patients by facilities that perform mammograms, and for other purposes; to the Committee on Energy and Commerce.

By Mr. DOYLE (for himself and Mr. MURPHY of Pennsylvania):

H.R. 5146. A bill to designate the United States courthouse located at 700 Grant Street in Pittsburgh, Pennsylvania, as the ''Joseph F. Weis Jr. United States Courthouse''; to the Committee on Transportation and Infrastructure.

By Mrs. KIRKPATRICK:

H.R. 5147. A bill to provide certain uninsured individuals a special enrollment period after tax filing in 2015 for enrollment in qualified health plans offered through an Exchange, and for other purposes; to the Committee on Energy and Commerce.

By Mr. LUETKEMEYER:

H.R. 5148. A bill to amend the Truth in Lending Act to exempt certain higher-risk mortgages from property appraisal requirements and to exempt individuals from penalties for failure to report certain appraisers, and to amend the Financial Institutions Reform, Recovery, and Enforcement Act of 1989 to exempt certain higher-risk mortgages from property appraisal requirements, and for other purposes; to the Committee on Financial Services.

By Mr. MCNERNEY (for himself and Mr. KINZINGER of Illinois):

H.R. 5149. A bill to provide for a smart water management pilot program; to the Committee on Energy and Commerce, and in addition to the Committees on Science, Space, and Technology, Natural Resources, and Transportation and Infrastructure, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. MCNERNEY:

H.R. 5150. A bill to establish a WaterSense program within the Environmental Protection Agency; to the Committee on Energy and Commerce, and in addition to the Committees on Transportation and Infrastructure, and Natural Resources, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. MURPHY of Florida (for himself and Mr. SCHOCK):

H.R. 5151. A bill to amend the Higher Education Act of 1965 to require certain information be included in loan disclosure statements prior to disbursement, and for other purposes; to the Committee on Education and the Workforce.

By Mr. MURPHY of Florida (for himself, Mr. JOLLY, Mr. SWALWELL of California, Mr. RICE of South Carolina, Ms. KUSTER, Mr. MEADOWS, Ms. SINEMA, Mr. MULVANEY, Mr. GARCIA, Mr. RUIZ, Ms. GABBARD, and Mr. MATHESON):

H.R. 5152. A bill to save the Federal Government money by reducing duplication and increasing efficiency, and for other purposes; to the Committee on Oversight and Government Reform, and in addition to the Committees on Energy and Commerce, Armed Services, Ways and Means, and Veterans' Affairs, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. NORTON:

H.R. 5153. A bill to amend the Act of September 16, 1922, to clarify the responsibility of Federal agencies to remove snow and ice for areas around Federal buildings in the District of Columbia; to the Committee on Oversight and Government Reform.

By Mr. PETERS of California:

H.R. 5154. A bill to direct the Administrator of the Small Business Administration and the Administrator of General Services to make rules to streamline and simplify the registration system used by small business concerns, and for other purposes; to the Committee on Small Business.

By Mr. SALMON:

H.R. 5155. A bill to prohibit the National Endowment for the Humanities to provide funds to carry out the Popular Romance Project or any similar project relating to love or romance; to the Committee on Education and the Workforce.

By Ms. SHEA-PORTER (for herself and Mr. DEFAZIO):

H.R. 5156. A bill to authorize the Secretary of the Interior to identify and declare wildlife disease emergencies and to coordinate rapid response to these emergencies, and for other purposes; to the Committee on Natural Resources, and in addition to the Committees on Agriculture, and the Budget, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. TITUS (for herself, Mr. STEWART, and Mr. MATHESON):

H.R. 5157. A bill to amend title 38, United States Code, to authorize the Secretary of Veterans Affairs to waive certain requirements relating to the approval of programs of educations for purposes of the educational assistance programs of the Department of Veterans Affairs; to the Committee on Veterans' Affairs.

By Mr. CHAFFETZ:

H. Con. Res. 108. Concurrent resolution providing for the correction of the enrollment of H.R. 5021; considered and agreed to. considered and agreed to.

By Ms. WATERS (for herself, Ms. LEE of California, Mrs. CHRISTENSEN, Mr. GRIJALVA, Mr. DAVID SCOTT of Georgia, Ms. NORTON, Ms. VELÁZQUEZ, Mr. CLAY, Mr. DANNY K. DAVIS of Illinois, Mr. SEAN PATRICK MALONEY of New York, Mr. HONDA, Ms. HAHN, Ms. JACKSON LEE, Mr. HASTINGS of Florida, Mr. RANGEL, Mr. MEEKS, Mr. LEWIS, and Mr. HIMES):

H. Res. 673. A resolution supporting the goals and ideals of National Clinicians HIV/AIDS Testing and Awareness Day, and for other purposes; to the Committee on Energy and Commerce.

By Mr. BISHOP of Georgia (for himself, Ms. BASS, Mrs. BEATTY, Mr. BUTTERFIELD, Mr. CARSON of Indiana, Ms. CLARKE of New York, Mr. CLAY, Mr. CLEAVER, Mr. CLYBURN, Ms. FUDGE, Mr. HASTINGS of Florida, Mr. JEFFRIES, Mr. JOHNSON of Georgia, Ms. KELLY of Illinois, Mr. LEWIS, Ms. NORTON, Mr. RANGEL, Ms. SEWELL of Alabama, Mr. THOMPSON of Mississippi, Ms. WASSERMAN SCHULTZ, and Ms. WATERS):

H. Res. 674. A resolution expressing the sense of the House of Representatives that sedentary lifestyles are a public health issue and supporting the designation of a National Get Vertical Day to recognize the importance of preventing physical inactivity and

encouraging adults to live physically active lifestyles; to the Committee on Energy and Commerce.

By Mr. KING of Iowa (for himself, Mrs. BACHMANN, Mr. GIBBS, Mr. GOHMERT, Mr. BISHOP of Utah, Mr. FLEMING, Mr. FRANKS of Arizona, Mr. GINGREY of Georgia, Mr. JONES, Mr. LAMALFA, Mr. LAMBORN, Mr. MARCHANT, Mr. MCCLINTOCK, Mr. ROHRABACHER, Mr. STOCKMAN, Mr. WILSON of South Carolina, Mr. PALAZZO, Mr. MASSIE, Mr. DUNCAN of Tennessee, Mr. MEADOWS, Mr. RICE of South Carolina, Mr. DUNCAN of South Carolina, Mr. WEBER of Texas, Mr. BURGESS, Mr. SMITH of Texas, Mr. POSEY, and Mr. YOHO):

H. Res. 675. A resolution supporting the Constitutional authority of the Governors of the States of Texas, New Mexico, Arizona, and California to take action to secure the international border of the United States within their States; to the Committee on Armed Services.

CONSTITUTIONAL AUTHORITY STATEMENT

Pursuant to clause 7 of rule XII of the Rules of the House of Representatives, the following statements are submitted regarding the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution.

By Mr. SMITH of Nebraska:

H.R. 5129.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 4 of the Constitution provides that Congress shall have power ''To establish a uniform Rule of Naturalization.''

By Mr. CARTWRIGHT:

H.R. 5130.

Congress has the power to enact this legislation pursuant to the following:

Article I; Section 8; Clause 1 of the Constitution states The Congress shall have Power To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes.

By Ms. GABBARD:

H.R. 5131.

Congress has the power to enact this legislation pursuant to the following:

The U.S. Constitution including Article 1, Section 8.

By Mr. CONYERS:

H.R. 5132.

Congress has the power to enact this legislation pursuant to the following:

U.S. Constitution, Article I, Section 8, Clause 4.

By Mr. CONYERS:

H.R. 5133.

Congress has the power to enact this legislation pursuant to the following:

U.S. Constitution, Article I, Section 8, Clause 4

By Ms. FOXX:

H.R. 5134.

Congress has the power to enact this legislation pursuant to the following:

Article I, section 8 of the Constitution of the United States

By Mrs. NOEM:

H.R. 5135.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8

By Ms. FUDGE:

H.R. 5136.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1 and Clause 18.

By Mr. CHAFFETZ:

H.R. 5137.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clauses 4 and 18 of the US Constitution

By Mr. OLSON:

H.R. 5138.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 4

By Mr. CLAWSON of Florida:

H.R. 5139.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 1:

The Congress shall have Power to...provide for the common Defense and general Welfare of the United States;

By Ms. BASS:

H.R. 5140.

Congress has the power to enact this legislation pursuant to the following:

Article. I.

Section 1.

All legislative Powers herein granted shall be vested in a Congress of the United States, which shall consist of a Senate and House of Representatives.

By Mr. BURGESS:

H.R. 5141.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 9, Clause 7 of the Constitution of the United States: No Money shall be drawn from the Treasury, but in Consequence of Appropriations made by law.

and

Article I, Section 8, Clause 4 of the Constitution of the United States: To Establish an uniform Rule of Naturalization;

By Mr. BUTTERFIELD:

H.R. 5142.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to the Congress under Article 1, Section 8, Clause 1 of the United States Constitution.

By Mr. CARTER:

H.R. 5143.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the United States Constitution.

By Mr. CLEAVER:

H.R. 5144.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 4 of the United States Constitution and Article 1, Section 8, Clause 18 of the United States Constitution.

By Ms. DELAURO:

H.R. 5145.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3 of the United States Constitution

By Mr. DOYLE:

H.R. 5146.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 17 of the United States Constitution.

By Mrs. KIRKPATRICK:

H.R. 5147.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 18, ''The Congress shall have the Power To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by the Constitution in the Government of the United States, or in any Department or Officer thereof'

By Mr. LUETKEMEYER:

H.R. 5148.

Congress has the power to enact this legislation pursuant to the following:

Additionally, Article 1, Section 7, Clause 2 of the Constitution allows for every bill passed by the House of Representatives and the Senate and signed by the President to be codified into law; and therefore implicitly allows Congress to repeal any bill that has been passed by both chambers and signed into law by the President.

By Mr. MCNERNEY:

H.R. 5149.

Congress has the power to enact this legislation pursuant to the following:

Congress has the power to enact this legislation pursuant to the following: Article I, section 8 of the United States Constitution.

By Mr. MCNERNEY:

H.R. 5150.

Congress has the power to enact this legislation pursuant to the following:

Article I, section 8 of the United States Constitution.

By Mr. MURPHY of Florida:

H.R. 5151.

Congress has the power to enact this legislation pursuant to the following:

Article I, section 8 of the Constitution of the United States

By Mr. MURPHY of Florida:

H.R. 5152.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the United States Constitution.

By Ms. NORTON:

H.R. 5153.

Congress has the power to enact this legislation pursuant to the following:

clause 18, section 8 of article I of the Constitution.

By Mr. PETERS of California:

H.R. 5154.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 of the Constitution

By Mr. SALMON:

H.R. 5155.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 9, Clause 7—''No money shall be drawn from the Treasury, but in Consequence of Appropriations made by Law; and a regular Statement and Account of the Receipts and Expenditures of all public Money shall be published from time to time.''

By Ms. SHEA-PORTER:

H.R. 5156.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the United States Constitution.

By Ms. TITUS:

H.R. 5157.

Congress has the power to enact this legislation pursuant to the following:

The bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Amendment XVI, of the United States Constitution.

ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resolutions, as follows:

H.R. 32: Mr. COBLE, Ms. TSONGAS, Mr. FARR, and Mr. GARAMENDI.

H.R. 148: Mr. QUIGLEY.

H.R. 208: Ms. LOFGREN.

H.R. 217: Mr. LUCAS.

H.R. 318: Mr. GRAVES of Georgia.

H.R. 333: Mrs. LOWEY.

H.R. 519: Mr. SCHNEIDER.

H.R. 594: Mr. CHAFFETZ.

H.R. 647: Mr. FLORES and Mr. FATTAH.
H.R. 789: Mr. KILDEE.
H.R. 920: Ms. LORETTA SANCHEZ of California and Mr. NOLAN.
H.R. 942: Mr. VAN HOLLEN, Mr. GENE GREEN of Texas, Mr. RODNEY DAVIS of Illinois, Mr. BUCHANAN, and Mr. TAKANO.
H.R. 956: Mr. SWALWELL of California.
H.R. 1020: Ms. BROWNLEY of California.
H.R. 1070: Mr. KELLY of Pennsylvania.
H.R. 1179: Mr. HORSFORD.
H.R. 1180: Mr. BERA of California.
H.R. 1252: Mr. SOUTHERLAND.
H.R. 1362: Mr. MCGOVERN.
H.R. 1449: Mr. SCOTT of Virginia.
H.R. 1500: Mr. POCAN.
H.R. 1527: Mrs. KIRKPATRICK.
H.R. 1563: Mr. WALBERG.
H.R. 1620: Ms. SPEIER and Mr. ELLISON.
H.R. 1627: Mr. BACHUS, Mr. DAVID SCOTT of Georgia, and Mr. HORSFORD.
H.R. 1761: Mr. KILMER and Mr. CÁRDENAS.
H.R. 1788: Mr. POE of Texas.
H.R. 1801: Ms. ESHOO.
H.R. 1920: Mr. CONNOLLY.
H.R. 2149: Mr. COOPER and Mr. MURPHY of Florida.
H.R. 2283: Ms. SCHWARTZ.
H.R. 2366: Mr. HURT, Mr. BARR, Mr. GRIFFIN of Arkansas, Mr. HECK of Nevada, Mr. ROGERS of Michigan, Mr. BARTON, Mr. WOLF, Mr. WENSTRUP, Mr. FARENTHOLD, Mr. AUSTIN SCOTT of Georgia, Mr. COOK, Mr. CALVERT, Mr. RIGELL, Mr. JORDAN, Mr. BROOKS of Alabama, Mr. FLEISCHMANN, Mr. FORBES, Mr. PITTS, Mr. POMPEO, Mr. REED, Mr. SIMPSON, Mr. ADERHOLT, Mr. HECK of Washington, Mr. SIRES, Mr. HASTINGS of Florida, Ms. WASSERMAN SCHULTZ, Ms. KAPTUR, Mr. COOPER, Ms. WATERS, Mr. AL GREEN of Texas, Mr. HINOJOSA, Mr. CÁRDENAS, Ms. GABBARD, Mr. DEUTCH, Mr. CUMMINGS, Mr. ELLISON, Mr. CASTRO of Texas, Ms. DUCKWORTH, Mr. O'ROURKE, Mrs. BUSTOS, Ms. BROWNLEY of California, Mr. HIMES, Mr. SCHRADER, Mr. KENNEDY, Mr. BECERRA, Mr. BEN RAY LUJÁN of New Mexico, Ms. KUSTER, Ms. VELÁZQUEZ, Mr. ISRAEL, Mr. MCNERNEY, Mrs. NOEM, Mr. BUCSHON, Mr. COLLINS of New York, and Mr. PERRY.
H.R. 2453: Mr. PERRY, Mr. FITZPATRICK, Mr. DIAZ-BALART, Mr. CRAWFORD, Mr JOLLY, and Ms. HERRERA BEUTLER.
H.R. 2500: Mr. BUTTERFIELD and Mr. BOUSTANY.
H.R. 2510: Mrs. BUSTOS.
H.R. 2523: Mrs. BEATTY.
H.R. 2529: Ms. WASSERMAN SCHULTZ and Mr. KILMER.
H.R. 2536: Mr. CALVERT.
H.R. 2591: Mr. JOLLY.
H.R. 2673: Mr. BISHOP of Utah and Mr. FINCHER.
H.R. 2767: Mr. YOHO.
H.R. 2835: Mr. FLORES.
H.R. 2852: Mr. MCDERMOTT.
H.R. 2918: Mr. SCOTT of Virginia.
H.R. 3116: Mr. THOMPSON of California.
H.R. 3136: Mr. GEORGE MILLER of California and Mr. KLINE.
H.R. 3150: Mr. POCAN.
H.R. 3374: Mr. SMITH of Washington and Mr. BUCSHON.
H.R. 3383: Mr. NOLAN.
H.R. 3398: Ms. CHU, Mr. HIMES, Mr. LOWENTHAL, and Mr. MURPHY of Florida.
H.R. 3461: Ms. CLARKE of New York.
H.R. 3486: Mr. YOHO.
H.R. 3505: Mr. HUFFMAN.
H.R. 3544: Mr. PITTENGER and Mr. KINZINGER of Illinois.
H.R. 3556: Mr. LIPINSKI.
H.R. 3680: Mr. RODNEY DAVIS of Illinois and Mr. FARENTHOLD.
H.R. 3698: Mr. MCCAUL.
H.R. 3740: Mrs. BEATTY.
H.R. 3742: Mr. BARTON and Mr. LANGEVIN.
H.R. 3930: Mr. CARTWRIGHT.
H.R. 3992: Mr. BUTTERFIELD and Mr. MICHAUD.
H.R. 3999: Ms. NORTON.
H.R. 4041: Mr. SCHIFF, Mr. PASTOR of Arizona, Mr. LARSON of Connecticut, Ms. SLAUGHTER, and Ms. LORETTA SANCHEZ of California.
H.R. 4060: Mr. TIPTON and Mr. FRANKS of Arizona.
H.R. 4086: Ms. LOFGREN.
H.R. 4119: Mr. PRICE of North Carolina, Mr. DOGGETT, and Mr. AL GREEN of Texas.
H.R. 4148: Ms. CASTOR of Florida.
H.R. 4156: Mr. MULLIN, Mrs. BACHMANN, and Mr. MCCAUL.
H.R. 4158: Mr. SIMPSON.
H.R. 4190: Mr. LANGEVIN and Mr. PAULSEN.
H.R. 4205: Mr. NOLAN.
H.R. 4216: Mr. LOWENTHAL
H.R. 4238: Mr. BOUSTANY.
H.R. 4271: Mr. PERLMUTTER.
H.R. 4294: Ms. MOORE.
H.R. 4301: Mr. RICHMOND and Mr. GOHMERT.
H.R. 4336: Mr. GARAMENDI.
H.R. 4361: Ms. NORTON.
H.R. 4426: Ms. SPEIER.
H.R. 4432: Mr. SHIMKUS.
H.R. 4437: Mr. CRAWFORD.
H.R. 4450: Mrs. MILLER of Michigan.
H.R. 4521: Mr. BISHOP of Utah.
H.R. 4525: Mr. CONNOLLY.
H.R. 4531: Mr. LUCAS.
H.R. 4576: Ms. KAPTUR.
H.R. 4613: Ms. SCHAKOWSKY, Mr. CÁRDENAS, and Mr. VELA.
H.R. 4680: Ms. FRANKEL of Florida.
H.R. 4703: Mrs. HARTZLER.
H.R. 4706: Mr. KILMER.
H.R. 4727: Mr. CRAWFORD.
H.R. 4732: Mr. MCNERNEY and Mr. KING of New York.
H.R. 4778: Mr. PETERSON.
H.R. 4792: Mr. ADERHOLT.
H.R. 4805: Mr. FORBES.
H.R. 4857: Ms. MATSUI.
H.R. 4885: Mr. KELLY of Pennsylvania.
H.R. 4888: Mr. HOLT, Ms. KELLY of Illinois, Ms. CASTOR of Florida, Ms. DELBENE, Mr. BARR, Mr. ROGERS of Kentucky, Mr. LYNCH, Mr. MCKINLEY, and Mr. ENYART.
H.R. 4900: Mr. WILSON of South Carolina, Mrs. BACHMANN, Mr. BROUN of Georgia, Mr. BRADY of Texas, Mr. MCKINLEY, Mr. JORDAN, Mr. MULVANEY, Mr. LAMALFA, Mr. SMITH of Texas, and Mr. GOHMERT.
H.R. 4920: Mr. CRAWFORD.
H.R. 4930: Mr. ROONEY and Ms. LOFGREN.
H.R. 4960: Mr. BILIRAKIS, Mr. DUNCAN of Tennessee, Mr. BISHOP of Georgia, Mr. HINOJOSA, Mr. PASTOR of Arizona, and Mr. LYNCH.
H.R. 4980: Mrs. HARTZLER and Mr. WALBERG.
H.R. 4983: Mr. ROYCE, Mr. SABLAN, and Mr. GEORGE MILLER of California.
H.R. 4984: Mr. ROYCE, Mr. SABLAN, Mr. KING of New York, and Mr. GEORGE MILLER of California.
H.R. 4986: Mr. YODER.
H.R. 4989: Mr. LARSON of Connecticut, Mr. HUELSKAMP, Mr. HARRIS, Mr. WILSON of South Carolina, Mr. BROUN of Georgia, Mr. ROE of Tennessee, Mr. ISSA, Mr. WENSTRUP, Mr. FLEMING, and Mr. POSEY.
H.R. 5018: Mr. GRIFFIN of Arkansas, Mr. HUELSKAMP, Mr. FLEMING, Mr. POSEY, Mr. GOHMERT, Mr. BROUN of Georgia, Mr. ROE of Tennessee, Mr. JOLLY, Mrs. LUMMIS, and Mr. CHABOT.
H.R. 5024: Mr. POCAN.
H.R. 5026: Mrs. KIRKPATRICK.
H.R. 5033: Ms. LOFGREN and Mrs. LOWEY.
H.R. 5041: Mr. COOK and Mr. COLE.
H.R. 5052: Mr. BURGESS.
H.R. 5054: Ms. KUSTER, Mr. DINGELL, and Mr. RUIZ.
H.R. 5078: Mr. TIPTON, Mrs. NOEM, Mr. THORNBERRY, Mr. LATTA, Mr. ROKITA, and Mr. PEARCE.
H.R. 5079: Mr. MEEHAN and Mr. AMODEI.
H.R. 5081: Mr. HASTINGS of Florida, Mr. THOMPSON of Pennsylvania, Mr. CHABOT, Ms. BROWN of Florida, Mr. SCHIFF, Mr. CÁRDENAS, Mrs. ELLMERS, Mr. FARENTHOLD, Mrs. NOEM, and Mr. LANGEVIN.
H.R. 5083: Mr. TIBERI.
H.R. 5084: Mr. TAKANO.
H.R. 5095: Ms. TSONGAS, Mrs. CAROLYN B. MALONEY of New York, Mr. VARGAS, Mr. FATTAH, Mr. ENYART, Mr. LANGEVIN, Ms. KAPTUR, Mr. LOEBSACK, Mr. WALZ, Mrs. BUSTOS, Mr. MURPHY of Florida, Ms. SPEIER, Ms. ESTY, Ms. BROWNLEY of California, Mr. DEFAZIO, Mr. GRIJALVA, and Mr. HONDA.
H.R. 5111: Ms. BROWNLEY of California, Ms. JACKSON LEE, Mr. JOYCE, and Ms. NORTON.
H.R. 5113: Mr. LAMALFA and Mr. KELLY of Pennsylvania.
H.R. 5114: Mr. DENT.
H.R. 5119: Mr. COLLINS of New York.
H.J. Res. 113: Mr. HORSFORD.
H.J. Res. 118: Mr. FORBES.
H. Con. Res. 107: Mr. CHABOT, Mr. WEBER of Texas, Mr. MARINO, Mr. BILIRAKIS, Mr. DIAZ-BALART, Ms. FRANKEL of Florida, Mr. COOK, Ms. WASSERMAN SCHULTZ, Mr. MEADOWS, Mr. CICILLINE, Ms. GABBARD, Mr. DUFFY, and Mr. PERRY.
H. Res. 109: Mr. CLAY.
H. Res. 208: Ms. SHEA-PORTER and Mr. COHEN.
H. Res. 231: Mr. RANGEL.
H. Res. 281: Mr. BUTTERFIELD, Mr. COBLE, Mr. CLAWSON of Florida, and Mr. CLAY.
H. Res. 456: Mr. PERRY.
H. Res. 522: Mr. MILLER of Florida.
H. Res. 612: Mr. YOHO.
H. Res. 644: Mr. CRAWFORD.
H. Res. 649: Mr. JONES.
H. Res. 665: Mr. LAMALFA.

United States
of America

Congressional Record

PROCEEDINGS AND DEBATES OF THE 113th CONGRESS, SECOND SESSION

Vol. 160 WASHINGTON, THURSDAY, JULY 17, 2014 *No. 112*

Senate

The Senate met at 9:30 a.m. and was called to order by the President pro tempore (Mr. LEAHY).

PRAYER

The Chaplain, Dr. Barry C. Black, offered the following prayer:

Let us pray.

Eternal Father, hear and answer our prayers from Your holy hills. We sleep each night in peace, sustained by Your grace and mercy. Arise, O Lord, and use our lawmakers to fulfill Your purposes. Empower them to make the rough places smooth and the crooked places straight. Give them the wisdom to commune with You throughout the day, leaning confidently upon You for wisdom and striving to be responsible stewards of their calling. Keep them from becoming impatient when anything or anyone causes them to wait.

Lift the light of Your countenance upon us all.

We pray in Your Holy Name. Amen.

PLEDGE OF ALLEGIANCE

The President pro tempore led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

RECOGNITION OF THE MAJORITY LEADER

The PRESIDENT pro tempore. The majority leader is recognized.

BRING JOBS HOME ACT—MOTION TO PROCEED

Mr. REID. Mr. President, I now move to proceed to Calendar No. 453, S. 2569, the Bring Jobs Home Act.

The PRESIDENT pro tempore. The clerk will report the motion.

The assistant legislative clerk read as follows:

Motion to proceed to Calendar No. 453, S. 2569, a bill to provide an incentive for businesses to bring jobs back to America.

SCHEDULE

Mr. REID. Mr. President, following my remarks and those of the Republican leader, the Senate will proceed to the consideration of S. 2244—an extremely important piece of legislation. There will be 30 minutes for debate on the Coburn amendment, 20 minutes on the Vitter amendment, 10 minutes on the Flake amendment, and 30 minutes on the Tester amendment. Any remaining time until 12 noon will be for general debate on this legislation.

At 12 noon the Senate will proceed to a series of up to five rollcall votes. Rollcall votes are expected in relation to the Coburn and Flake amendments; however, we expect voice votes on the Vitter and Tester amendments. Upon disposition of the amendments, the Senate will proceed to a rollcall vote on passage of S. 2244, as amended.

We expect to reach an agreement to vote at 2 p.m. on the motion to invoke cloture on Executive Calendar No. 849, the nomination of Julie Carnes, of Georgia, to be United States circuit judge for the Eleventh Circuit. Senators will be notified when an agreement is reached.

(Mr. WALSH assumed the Chair.)

BORDER CRISIS

Mr. President, the distinguished President pro tempore of the Senate, who just opened the Senate, has been for many, many years the chair of the foreign operations subcommittee on appropriations. He is the chairman of the Judiciary Committee. I wanted to note that while he is on the floor.

Over the past 2 weeks poker players have flocked to Las Vegas because there is an annual World Series of Poker there. It is on ESPN. I do not know how athletic it is, but it is on ESPN, and it draws a lot of attention. Poker is a very important and popular game now—a game of chance, and this tournament—the World Series of Poker—is the most prestigious high-stakes tournament in the world, and 2,400 or 2,500 miles away from Las Vegas, here in Washington, DC, some Senate Republicans are playing a high-stakes game of their own with a humanitarian crisis. But instead of poker chips, they are using kids, children.

Last night the junior Senator from Texas upped the ante and announced that any legislation to address the humanitarian crisis in the Rio Grande Valley must also include a termination of President Obama's 2012 Deferred Action for Childhood Arrivals program. In other words, before Republicans help our Border Patrol agents and all the other personnel who are trying to do something to handle this humanitarian crisis, they want President Obama to deport the DREAMers who are already here. They are legitimately here. These are children. But instead of considering a thoughtful, compassionate solution to a real-life crisis on our border, radical Republicans are trying to hold these kids ransom.

I have heard Senator DURBIN speak here on the floor. He visited one of these centers in Chicago on Monday. There are mothers with little babies there who have been brought, as the law requires, to Chicago to try to unite them with their families.

We have, as we learned last night in a Senators briefing, more than 50,000 of these children who have arrived at the border, and we have to do something to address that. The people who are required by law to take care of these children—some of whom are babies—do not have the resources to do it.

These are not children sneaking over the border. They come to the people in uniform and say: Here we are. We have an obligation by law to do something about it. But it takes a lot of money to take care of this. We cannot do it unless we get added resources, and what the junior Senator from Texas said is that we are not going to do this unless we deport all these children who came here before—the so-called DREAMers.

Once again, we see there are no substantive solutions being offered by today's Republican Party. Instead of

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

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doing something about these children who are at the border, they want to deport hundreds of thousands of these people who are already here.

President Obama's deferred action plan, which is widely popular in the country because it is the right thing to do—and, obviously, Republicans want to get rid of it—what this is all about, his deferred action plan, is about keeping families together in America. It grants immigration officials discretion in considering the cases of children who have lived most of their lives as Americans, even though they were brought here illegally.

Let me give you an example of a young woman from Las Vegas. Her name is Astrid Silva. Astrid came to the United States as a little, tiny girl in a boat across the Rio Grande. Her mother was with her. She was in her—I want to get this right—she was in her dress, confirmation dress or whatever it was. She was just a tiny, little girl. She had her rosary beads and a little doll, and she floated across the river.

She knows no other country than the United States of America. Now, because of what happened, because of the President's action, she can now fly in an airplane. She has done that. She is working on getting her education completed—a wonderful, wonderful, involved woman in what is going on in Nevada. And the junior Senator from Texas wants to send her back to a place she does not know—Mexico? Mr. President, Astrid Silva is an American. It is the only country she knows. It would be cruel and unusual to do what the junior Senator from Texas wants done.

The deferred action plan is a positive step forward, and we should not go back, especially not as a ransom for helping our border personnel to care for desperate children.

I would hope my friend, the Republican leader, can rein in these extreme elements of his caucus so we can achieve a real solution, one worthy of the ideals upon which this Nation was founded.

These children are real—they are little kids—real human beings. They should not be used as pawns in the Republicans' high-stakes game of chicken with President Obama.

AMBASSADORIAL NOMINATIONS

Mr. President, when I first came to the House of Representatives, I had the good fortune of serving on the Foreign Affairs Committee. It was wonderful. I served under Chairman Zablocki from Wisconsin, Chairman Fascell from Florida. It was a wonderful experience to get a view of what was going on in the world, and I enjoyed it very, very much.

But I learned there—and I think we all know; maybe I should have learned it sooner—our national security depends on the qualified men and women who serve as our ambassadors throughout the world.

When I travel overseas, I always make sure I get the staff at these embassies together and tell them how much I appreciate what they do for our country. They are not all ambassadors, of course. There is one per country—we hope.

To apply to be a Foreign Service officer is hard. You have to have really, really good grades. You have to pass a written examination after having graduated from college and maybe with graduate work. Some of them are Ph.D.s. And then, after you pass a written test, you have to pass an oral test. It is very, very difficult.

These are some of the best and brightest in the world, and their ultimate goal—as we had the All-Star Game on Tuesday—is to be an all-star, to be able to play—as they did on Tuesday in Major League Baseball—in the ''all-star game.'' Well, that is what ambassadors are; they are the all stars of the diplomatic corps of this country. Right now, these ambassadors are on the front lines. They are fighting to defend our interests abroad—our security interests, our national interests, and our economic interests. Right now there are gaping holes in our Nation's front lines.

Let's look at who ambassadors really are. Here in the Senate, I had the good fortune to serve with one of the really distinguished ambassadors, Daniel Patrick Moynihan from New York. Prior to coming to the Senate, he was our Ambassador to India. He left his mark on that country. He did a remarkably good job as Ambassador from the United States to India.

The Republican leader and I attended a funeral a week or so ago in Tennessee. The funeral was for Howard Baker, who had been the majority leader in the Senate—a fine man. He married another Senator from Kansas, Nancy Kassebaum. He became, after retiring from the Senate, our Ambassador to Japan. He distinguished himself there again with the remarkably good job he did.

We can go back and look at the beginning of the history of this country. What do we always learn about Thomas Jefferson? We know how smart he was, how he wrote brilliantly. But we also learned in every history lesson about Thomas Jefferson, that he was our Ambassador to France. John Adams was our Ambassador to England. They have set the standard for how important ambassadors are.

Here in the Senate Republicans are stalling ambassadors. Twenty-five percent of all the ambassadorships to the continent of Africa—unfilled. There are gaping holes in our Nation's front lines. Approximately 30 ambassadors are waiting to be confirmed—and waiting and waiting and waiting.

Senate Republicans, who have been so quick to accuse this administration of poor leadership on world issues, are obstructing the confirmation of ambassadors who are desperately needed at embassies all around the world. Republicans are abdicating the Senate's constitutional role to confirm ambassadors.

In previous years ambassadors were just approved so quickly. Once in a while something controversial would come up, but it was once in a great while. As I said, a quarter of U.S. Embassies in Africa do not have an ambassador. We do not have an ambassador in Bosnia. We do not have an ambassador in Vietnam—on and on. Can't we all agree that it is important that American interests be represented in these places? The answer: We cannot agree. The Republicans do not want these ambassadorships filled.

When can these people who want to play in the ''all-star game'' be able to play in the ''all-star game'' and represent the interests of this country? They work in careers that are very difficult. They do not start out as ambassadors. Rarely does that happen.

Each day that goes by more ambassadorships are unfilled. All the ambassador nominees were passed out of committee unanimously. With rare exception they are noncontroversial. I am talking about career ambassadors. These are not political appointees. I am talking about career ambassadors.

What does that mean when I say career ambassadors, career diplomats? These are good men and women who have worked for decades for the U.S. State Department. In most cases these diplomats started working at the lowest levels, processing visa applications, asylum requests, and then became an economic officer, a political officer. By working hard and requiring the necessary expertise, these career diplomats have readied themselves to be ambassadors. It is hard.

Career diplomats do not represent political parties, they represent our country. These long-time professionals have worked for both Democrats and Republicans. They worked for several different administrations. It does not matter, if someone is a Foreign Service officer, whether the President is a Democrat or Republican, they do their job for the country.

Now these professionals are needed to fill vital ambassadorial posts in some of the most volatile regions in the world. Republicans have slammed the brakes on these nominations. At the very least the Senate should confirm these noncontroversial career diplomats. If they want to play games with the political appointees, they can do that, but these career diplomats are not political appointees. They are qualified diplomats who have performed admirably for the State Department for a long time. We need their experience, we need their expertise at embassies all over the world.

Some Senate observers say Republicans are stalling these nominations as a payback for rules changes instituted by the Senate. Let's see if I can try to figure this one out. Republicans are stalling Executive nominees vital to our national interests to get back at Democrats, to get back at me. How is

that? Stalling these nominees is jeopardizing America's interests abroad. It is damaging our Nation's role in global affairs. It is damaging our national security. Is this conjured-up political retribution worth harming the United States? Of course not.

There was a New York Times article within the last 48 hours where Secretary of State John Kerry said: I have 52 important State Department officials who are waiting to be confirmed in the Senate—52. I was stunned to read in that same article a quote from the ranking member of the Foreign Relations Committee over here, the junior Senator from Tennessee.

Here is what he said: ''Rather than filling vacant embassies to alleviate the national security concerns raised by Secretary Kerry and others, the majority leader— Listen to this one.

—who controls the Senate floor—has chosen to spend this week on a sportsman's bill and previous weeks confirming judges.

Why criticize me for bringing up the sportsmen's bill? This bill was sponsored by a majority of the Republicans. Twenty-six Republicans cosponsored that legislation. The junior Senator from Tennessee is complaining that I brought that up. I guess he is also complaining that I brought up raising the minimum wage, which the Republicans filibustered. Maybe he is also complaining that we have student debt in this country—about $1.3 trillion—and we brought that up to alleviate the pain to families in America with student debt.

Maybe he is complaining because we brought up on the Senate floor something extremely important; that is, that if a woman does the same work as a man, she should get paid the same amount of money—not different work, the same work. She should get the same money. I guess he is complaining because we brought up something that addresses the needs that Americans have; that is, the Hobby Lobby decision from the Supreme Court. We think that is wrong. Women in America, families in America, with some exception, believe that is wrong.

So I agree with the junior Senator from Tennessee. There is an urgent need to fill these diplomatic posts as soon as possible, but for heaven's sake, how could he complain about the substantive legislation which is so important to America that I have just run through?

Then he complains about judges, we are confirming judges. I have been here a while in the Senate. Until Obama became President, with some exception, these nominations went through on unanimous consent. We were not holding up ambassadors. There would be a spat on a judge here and there but not holding up all of the judges. The reason it is taking so long is we have, under the rules of the Senate, what we call postcloture time. That time was originally set up so after we got on a piece of legislation or on a nomination, we could think about it for a little bit. They think about it a lot and do nothing.

Thirty hours on a lot of nominations postcloture, 8 hours on others, judges only 2 hours. We have been able to go through a lot of judges because of that rule change that we made. I thought it was an urgent need 4 months ago when I came to the Senate floor to talk about the growing logjam of our ambassadorial corps around the country. But Senator CORKER's reasoning that these ambassadorial confirmations were delayed unnecessarily by legislation and judicial confirmations is a little weird, a little strange. It is strange and weird for a number of reasons.

I take issue with the notion that the Senate somehow wasted time by legislating and confirming judicial nominees. These are our constitutional duties. We are going to confirm, in the next few days, a post in Georgia. We have two to be filled there. One of them has been waiting for more than 1,000 days. So I think it is important we do this. Why? Because it is our constitutional duty.

We only have so much time to confirm judges, because as I indicated, filibustering nominees, they do it to everybody. We are working through the judges quickly because we changed the rules. Thank goodness we did. The Senate did consider Senator HAGAN's sportsmen's legislation last week. I repeat. That important bill affects—the one that the junior Senator from Tennessee said we should not have brought up—affects 40 million Americans who hunt and fish.

Somebody I used to practice law with has a place in Montana. He took his grandson there and had a wonderful time fishing—no hunting but fishing. This place he has, a little stream goes by there. He said it was the best time he ever had with his grandchild. That is what 40 million people do. That is what we brought up. That is what the junior Senator from Tennessee said was such a bad idea. Twenty-six Republicans cosponsored that legislation. It contributes $200 billion annually to our Nation's economy.

My friend from Tennessee thinks it is a waste of time; we should not have done that. The junior Senator from Tennessee was a cosponsor of the legislation. He is going to go back and tell the people in Tennessee that he made a mistake, he should not have been a cosponsor.

Earlier, he voted to proceed so we could work on the legislation. Then he voted to filibuster it. This is the same tactic we have seen so much over the past 6 years. Republicans obstruct. When asked why they are not accomplishing anything, they blame Democrats. They blame me. The truth is Senate Democrats have continued to press for more and more ambassadorial confirmations while also introducing legislation that helps working families.

As I came to the floor in March to highlight the backlog of ambassadorial confirmations, the Senate has considered an increase in the minimum wage, equal pay for women, student loan refinancing, extension of tax cuts, cost-cutting energy legislation, and a number of other items. These are all important bills to give working Americans a fair shot at a measure of prosperity. Republican filibusters blocked every one of them.

Another issue I have with the Senator from Tennessee is that undoubtedly he knows the Senate traditionally does much of its business through unanimous consent—in fact most of our business. If Republicans agree there is an urgent need to get these nominations done and give their consent, we could confirm all of these ambassadors in a single afternoon. It would only take a few hours in the afternoon. We could do it today.

But it is clearly not a priority for Republicans; otherwise, they would expedite these confirmations. Their behavior on these ambassadorial nominations reminds me of a quote by Gandhi: ''Action expresses priorities.'' Republicans' lack of action on this matter illustrates that they have no priorities in this regard.

So enough with the stalling and enough with retribution. The Senate standoff is not good for this body, and it is hurting American interests abroad. Let's get these ambassador posts filled. Our national security depends on it.

UNANIMOUS CONSENT AGREEMENT—EXECUTIVE CALENDAR

Mr. REID. Mr. President, I ask unanimous consent that notwithstanding rule XXII, at 2 p.m. today the Senate vote on cloture on Executive Calendar No. 849, Carnes; further, that if cloture is invoked, at 5:30 p.m. on Monday, July 21, 2014, the Senate resume executive session and all postcloture time be expired and the Senate proceed to vote on confirmation of the nomination; further, that following the 2 p.m. cloture vote, the Senate proceed to the consideration and vote on Executive Calendar Nos. 709, Shear, and 834, Mader; further, that if confirmed, the motions to reconsider be considered made and laid upon the table, with no intervening action or debate; that no further motions be in order to the nominations; that any statements related to the nominations be printed in the RECORD; that the President be immediately notified of the Senate's action and the Senate then resume legislative session.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. REID. Mr. President, with this agreement, we expect one rollcall vote beginning at 2 p.m. and two additional voice votes as I have mentioned. I apologize to the Republican leader for taking so much time.

RECOGNITION OF THE MINORITY LEADER

The PRESIDING OFFICER. The Republican leader is recognized.

CITIZEN VICTORIES

Mr. MCCONNELL. Mr. President, yesterday the American people actually scored a victory in the ongoing battle against government overreach. They literally rose, spoke out, and they forced the Obama administration to withdraw the latest gem from the ''department of terrible ideas'' over at the Environmental Protection Agency.

They showed two things in the process; first, the need for constant vigilance when it comes to protecting our liberties, especially with the current crowd down at the White House; and, second, the impact ordinary citizens can actually have.

The proposal in question was a uniquely awful idea. The goal was for the EPA to grant itself the authority to garnish the wages of private citizens without even giving them a day in court. Imagine. You received a letter from the government accusing you of violating some obscure regulation, a regulation most likely you never heard of and did not even know you were violating. The government then hits you with massive fines, sometimes on the order of tens of thousands of dollars a day, as you weigh your legal options and whether to fight it in court.

If you cannot or will not pay these fines in the meantime, too bad. Bureaucrats in Washington will take them out of your paycheck anyway—out of our paycheck anyway—without even the option of contesting the government's actions in court for it. This is certainly government overreach at its very worst. That is why I joined Senators THUNE, VITTER, and BARRASSO in speaking out against it. That is why we developed a resolution of disapproval to block it.

But the real key to our success was the action of the American people themselves. They got our help, but they did not sit back and wait. They let their outrage be known. They fought back against this brazen power grab. Thanks to all of those efforts, the administration finally literally threw in the towel yesterday. Certainly we were glad to see it.

But look, the fact that the Obama administration's EPA even introduced this rule in the first place should concern all of us. It was truly outrageous, but it is also not surprising because this is the same administration that just proposed a so-called waters of the U.S. regulation that would expand the government's authority so broadly that the Agency could regulate and fine almost every pothole and ditch in our backyards.

This is the same administration that has been waging a costly war on coal jobs in my State through similarly onerous and arbitrary regulations aimed at pleasing hard-core activists in Washington without any regard for real-world consequences.

It is as though these distant elites in Washington view their mission as ideological warfare. They do not seem the least bit concerned about the casualties they leave behind in the process. I have tried to get some of these bureaucratic foot soldiers down to Kentucky to see the impact of their efforts firsthand, but of course they are not interested. They are not interested in people such as the 32-year-old unemployed miner who walked into a Pikeville pregnancy center to ask for baby clothes. An employee at the center wrote to tell me what this miner had to say.

Here is what he said:

I don't come from a family that has ever had to ask for help. I feel humiliated, but my baby is suffering.

That pregnancy center employee wrote that the look on his face broke her heart. She wrote: ''[But] this is the plight of many of our families in Eastern Kentucky, their livelihood is being taken away by the War on Coal.''

These are the people whom distant bureaucrats in Washington should be forced to meet before they draft their rules. This guy just wants to put food on the table, to keep the lights on, and to give his kids a better life. But the war on coal jobs is taking away more than just his livelihood and that of so many others. It is taking away his dignity as well. Maybe that is why the administration doesn't want to meet Kentuckians like him. Maybe that is why they don't want to look my constituents in the eye. It is a big problem, and that is why I am so proud of the people who stood up to this latest ominous regulation.

Yesterday the EPA confirmed that it won't hold a single hearing within hours of my State as it works to finalize national energy tax regulations that could devastate the lives of tens of thousands of Kentuckians. They don't care, and they are not listening.

Well, I care. I see these folks when I go home. I hear their stories. My heart breaks for them. I am going to keep fighting. I am going to keep fighting against the Obama administration's various power grabs and its regulatory overreach. I am going to keep fighting against the national energy tax. I am going to keep fighting for practical ideas that aim to help struggling families for once—a marked departure from the administration's constant attacks against them—ideas such as the Coal Country Protection Act and the Saving Coal Jobs Act.

These proposals are common sense. If the majority leader would stop blocking them, we could deliver some relief to middle-class families for once. So he should know I am not going to let up and neither are the American people who won this important victory yesterday on another subject over the EPA's latest power grab because, as we also saw with the administration's recent withdrawal of an IRS regulation aimed at restricting free speech, the people can still win with enough determination. Civic involvement works—and given the pattern of abuse we keep seeing with this administration, it is absolutely critical.

RESERVATION OF LEADER TIME

The PRESIDING OFFICER. Under the previous order, the leadership time is reserved.

TERRORISM RISK INSURANCE PROGRAM REAUTHORIZATION ACT

The PRESIDING OFFICER. Under the previous order, the Senate will proceed to consideration of S. 2244, which the clerk will report.

The assistant legislative clerk read as follows:

A bill (S. 2244) to extend the termination date of the Terrorism Insurance Program established under the Terrorism Risk Insurance Act of 2002, and for other purposes.

There being no objection, the Senate proceeded to consider the bill (S. 2244) to extend the termination date of the Terrorism Insurance Program established under the Terrorism Risk Insurance Act of 2002, and for other purposes, which had been reported from the Committee on Banking, Housing, and Urban Affairs, with amendments, as follows:

(The parts of the bill intended to be stricken are shown in boldface brackets and the parts of the bill intended to be inserted are shown in italic.)

S. 2244

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Terrorism Risk Insurance Program Reauthorization Act of 2014''.

SEC. 2. EXTENSION OF TERRORISM INSURANCE PROGRAM.

Section 108(a) of the Terrorism Risk Insurance Act of 2002 (15 U.S.C. 6701 note) is amended by striking ''December 31, 2014'' and inserting ''December 31, 2021''.

SEC. 3. FEDERAL SHARE.

Section 103(e)(1)(A) of the Terrorism Risk Insurance Act of 2002 (15 U.S.C. 6701 note) is amended by inserting ''and beginning **[**in the calendar year that follows the date of enactment of the Terrorism Risk Insurance Program Reauthorization Act of 2014**]** *on January 1, 2016,* shall decrease by **[**1 percent**]** *1 percentage point* per calendar year until equal to 80 percent'' after ''85 percent''.

SEC. 4. RECOUPMENT OF FEDERAL SHARE OF COMPENSATION UNDER THE PROGRAM.

Section 103(e) of the Terrorism Risk Insurance Act of 2002 (15 U.S.C. 6701 note) is amended—

(1) in paragraph (6), in the matter preceding subparagraph (A), by striking ''shall be'' and all that follows through subparagraph (E) and inserting **[**''shall be $27,500,000,000 and beginning in the calendar year that follows the date of enactment of the Terrorism Risk Insurance Program Reauthorization Act of 2014 shall increase by $2,000,000,000 per calendar year until equal to $37,500,000,000.''; and**]** *''shall be the lesser of—*

''(A) $27,500,000,000, as such amount is adjusted pursuant to this paragraph; and

''(B) the aggregate amount, for all insurers, of insured losses during such calendar year,

provided that beginning in the calendar year that follows the date of enactment of the Terrorism Risk Insurance Program Reauthorization Act of 2014, the amount set forth under subparagraph (A) shall increase by $2,000,000,000 per calendar year until equal to $37,500,000,000.'';

(2) in paragraph (7)—

(A) in subparagraph (A)—

(i) in the matter preceding clause (i), by striking ''for each of the periods referred to in subparagraphs (A) through (E) of paragraph 6 *(6)*''; and

(ii) in clause (i), by striking ''for such period'';

[(B) in subparagraph (B)—

(i) by striking ''for any period referred to in any of subparagraphs (A) through (E) of paragraph (6)''; and

(ii) by striking ''for such period'';]

(B) by striking subparagraph (B) and inserting the following:

''(B) [Reserved.]'';

[(C) in subparagraph (C), by striking ''occurring during any of the periods referred to in any of subparagraphs (A) through (E) of paragraph (6)''; and]

(C) in subparagraph (C)—

(i) by striking ''occurring during any of the periods referred to in any of subparagraphs (A) through (E) of paragraph (6), terrorism loss risk-spreading premiums in an amount equal to 133 percent'' and inserting '', terrorism loss risk-spreading premiums in an amount equal to 135.5 percent''; and

(ii) by inserting ''as calculated under subparagraph (A)'' after ''mandatory recoupment amount''; and

(D) in subparagraph (E)(i)—

(i) in subclause (I)—

(I) by striking ''2010'' and inserting ''2017''; and

(II) by striking ''2012'' and inserting ''2019'';

(ii) in subclause (II)—

(I) by striking ''2011'' and inserting ''2018'';

(II) by striking ''2012'' and inserting ''2019''; and

(III) by striking ''2017'' and inserting ''2024''; and

(iii) in subclause (III)—

(I) by striking ''2012'' and inserting ''2019''; and

(II) by striking ''2017'' and inserting ''2024''.

SEC. 5. TECHNICAL AMENDMENTS.

The Terrorism Risk Insurance Act of 2002 (15 U.S.C. 6701 note) is amended—

(1) in section 102—

(A) in paragraph (3)—

(i) by redesignating subparagraphs (A), (B), and (C) as clauses (i), (ii), and (iii), respectively;

(ii) in the matter preceding clause (i) (as so redesignated), by striking ''An entity has'' and inserting the following:

''(A) IN GENERAL.—An entity has''; and

(iii) by adding at the end the following new subparagraph:

''(B) RULE OF CONSTRUCTION.—An entity, including any affiliate thereof, does not have 'control' over another entity, if, as of the date of enactment of the Terrorism Risk Insurance Program Reauthorization Act of 2014, the entity is acting as an attorney-in-fact, as defined by the Secretary, for the other entity and such other entity is a reciprocal insurer, provided that the entity is not, for reasons other than the attorney-in-fact relationship, defined as having 'control' under subparagraph (A).'';

([A]*B*) in paragraph (7)—

(i) by striking subparagraphs (A) through (F) and inserting the following:

''(A) the value of an insurer's direct earned premiums during the immediately preceding calendar year, multiplied by 20 percent; and'';

(ii) by redesignating subparagraph (G) as subparagraph (B); and

(iii) in subparagraph (B), as so redesignated by clause (ii)—

(I) by striking ''notwithstanding subparagraphs (A) through (F), for the Transition Period or any Program Year'' and inserting ''notwithstanding subparagraph (A), for any calendar year''; and

(II) by striking ''Period or Program Year'' and inserting ''calendar year'';

([B]*C*) by striking paragraph (11); and

([C]*D*) by redesignating paragraphs (12) through (16) as paragraphs (11) through (15), respectively; and

(2) in section 103—

(A) in subsection (c), by striking ''Program Year'' and inserting ''calendar year'';

(B) in subsection (e)—

(i) in paragraph (1)—

(I) in subparagraph (A), as previously amended by section 3—

(aa) by striking ''the Transition Period and each Program Year through Program Year 4 shall be equal to 90 percent, and during Program Year 5 and each Program Year thereafter'' and inserting ''each calendar year'';

(bb) by striking the comma after ''80 percent''; and

(cc) by striking ''such Transition Period or such Program Year'' and inserting ''such calendar year''; and

(II) in subparagraph (B), by striking ''exceed'' and all that follows through clause (ii) and inserting ''exceed $100,000,000 with respect to such insured losses occurring in the calendar year.'';

(ii) in paragraph (2)(A), by striking ''the period beginning on the first day of the Transition Period and ending on the last day of Program Year 1, or during any Program Year thereafter'' and inserting ''a calendar year''; and

(iii) in paragraph (3), by striking ''the period beginning on the first day of the Transition Period and ending on the last day of Program Year 1, or during any other Program Year'' and inserting ''any calendar year''; and

(C) in subsection (g)(2)—

(i) by striking ''the Transition Period or a Program Year'' each place that term appears and inserting ''the calendar year'';

(ii) by striking ''such period'' and inserting ''the calendar year''; and

(iii) by striking ''that period'' and inserting ''the calendar year''.

SEC. 6. IMPROVING THE CERTIFICATION PROCESS.

(a) DEFINITIONS.—As used in this section—

(1) the term ''act of terrorism'' has the same meaning as in section 102(1) of the Terrorism Risk Insurance Act of 2002 (15 U.S.C. 6701 note);

(2) the term ''certification process'' means the process by which the Secretary determines whether to certify an act as an act of terrorism under section 102(1) of the Terrorism Risk Insurance Act of 2002 (15 U.S.C. 6701 note); and

(3) the term ''Secretary'' means the Secretary of the Treasury.

(b) STUDY.—Not later than 9 months after the date of enactment of this Act, the Secretary shall conduct and complete a study on the certification process.

(c) REQUIRED CONTENT.—The study required under subsection (a) shall include an examination and analysis of—

(1) the establishment of a reasonable timeline by which the Secretary must make an accurate determination on whether to certify an act as an act of terrorism;

(2) the impact that the length of any timeline proposed to be established under paragraph (1) may have on the insurance industry, policyholders, consumers, and taxpayers as a whole;

(3) the factors the Secretary would evaluate and monitor during the certification process, including the ability of the Secretary to obtain the required information regarding the amount of projected and incurred losses resulting from an act which the Secretary would need in determining whether to certify the act as an act of terrorism;

(4) the appropriateness, efficiency, and effectiveness of the consultation process required under section 102(1)(A) of the Terrorism Risk Insurance Act of 2002 (15 U.S.C. 6701 note) and any recommendations on changes to the consultation process; and

(5) the ability of the Secretary to provide guidance and updates to the public regarding any act that may reasonably be certified as an act of terrorism.

(d) REPORT.—Upon completion of the study required under subsection (a), the Secretary shall submit a report on the results of such study to the Committee on Banking, Housing, and Urban Affairs of the Senate and the Committee on Financial Services of the House of Representatives.

(e) RULEMAKING.—Section 102(1) of the Terrorism Risk Insurance Act of 2002 (15 U.S.C. 6701 note) is amended—

(1) by redesignating subparagraph (D) as subparagraph (E); and

(2) by inserting after subparagraph (C) the following:

''(D) TIMING OF CERTIFICATION.—Not later than 9 months after the report required under section 6 of the Terrorism Risk Insurance Program Reauthorization Act of 2014 is submitted to the appropriate committees of Congress, the Secretary shall issue final rules governing the certification process, including any timeline applicable to any certification by the Secretary on whether an act is an act of terrorism under this paragraph.''.

SEC. 7. GAO STUDY ON UPFRONT PREMIUMS.

(a) STUDY.—Not later than 2 years after the date of enactment of this Act, the Comptroller General of the United States shall complete a study on the viability and effects of the Federal Government assessing and collecting upfront premiums on insurers that participate in the Terrorism Insurance Program established under the Terrorism Risk Insurance Act of 2002 (15 U.S.C. 6701 note) (hereafter in this section referred to as the ''Program'').

(b) REQUIRED CONTENT.—The study required under subsection (a) shall examine, but shall not be limited to, the following issues:

(1) How the Federal Government could determine the price of such upfront premiums on insurers that participate in the Program.

(2) How the Federal Government could collect and manage such upfront premiums.

(3) How the Federal Government could ensure that such upfront premiums are not spent for purposes other than claims through the Program.

(4) How the assessment and collection of such upfront premiums could affect take-up rates for terrorism risk coverage in different regions and industries and how it could impact small businesses and consumers in both metropolitan and non-metropolitan areas.

(5) The effect of collecting such upfront premiums on insurers both large and small.

(6) The effect of collecting such upfront premiums on the private market for terrorism risk reinsurance.

(7) The size of any Federal Government subsidy insurers may receive through their participation in the Program, taking into account the Program's current post-event recoupment structure.

(c) REPORT.—Upon completion of the study required under subsection (a), the Comptroller General shall submit a report on the results of such study to the Committee on Banking, Housing, and Urban Affairs of the Senate and the Committee on Financial Services of the House of Representatives.

(d) PUBLIC AVAILABILITY.—The study and report required under this section shall be made available to the public in electronic form and shall be published on the website of the Government Accountability Office.

The PRESIDING OFFICER. Under the previous order, the committee-reported amendments are agreed to, and the bill, as amended, is considered as original text for purposes of further amendment.

The PRESIDING OFFICER. The Senator from Florida.

Mr. NELSON. I ask to speak for 3 minutes as in morning business.

The PRESIDING OFFICER. Without objection, it is so ordered.

(The remarks of Mr. NELSON are printed in today's RECORD under ''Morning Business.'')

The PRESIDING OFFICER. The Senator from New York.

Mr. SCHUMER. First, I thank my good friend from Florida for his heartfelt and his always articulate words. We are now going to debate, finally, the reauthorization of the Terrorism Risk Insurance Program.

Senator CRAPO and I have opening statements, but Senator TESTER, who has added an extremely important amendment to this legislation, has a markup shortly, so we are going to accede and let him speak about his amendment first, and then we will get on with our opening statements. I thank Senator TESTER for his hard work on this issue as well as his ability to compromise to get something done.

The PRESIDING OFFICER. The Senator from Montana.

AMENDMENT NO. 3552

Mr. TESTER. I call up amendment No. 3552, ask for its immediate consideration, and I ask that Senator KLOBUCHAR and Senator PRYOR be added as cosponsors.

The PRESIDING OFFICER. Without objection, it is so ordered.

The clerk will report the amendment.

The assistant legislative clerk read as follows:

The Senator from Montana [Mr. TESTER] for himself, Ms. KLOBUCHAR and Mr. PRYOR, proposes an amendment numbered 3552.

(The amendment is printed in today's RECORD under ''Text of Amendments.'')

Mr. TESTER. I thank Chairman JOHNSON and Ranking Member CRAPO and Senators SCHUMER and HELLER for their hard work on helping me on the TRIA bill and for helping me on this amendment, as well as Senator SCHUMER and Senator HELLER for their hard work not only on the TRIA legislation but also on the NARAB amendment, which I am going to talk about in a moment. I also wish to give a special thank-you to Senator JOHANNS, who is a cosponsor on this amendment and somebody with whom I have worked very closely to get this amendment to the point it is today.

The Tester-Johanns amendment is the National Association of Registered Agents and Brokers Act, otherwise known as NARAB. NARAB is a bill Senator JOHANNS and I introduced last year. It was reported out of the Banking, Housing, and Urban Affairs Committee on a voice vote.

Our amendment creates a nonprofit association to provide one-stop licensing for insurance agents and brokers operating outside of their home State. This arrangement would fully preserve the authority of State insurance regulators to supervise these markets.

Currently, an insurance agent or broker seeking to operate in multiple States must meet different State-specific licensing requirements and seek approval from each State's insurance commissioner. This process is time consuming, it is costly, it is redundant, and it is sometimes contradictory—without providing any greater consumer protection. That is a big disincentive for smaller agents and brokers to grow their businesses.

This is not a new issue for the insurance industry. Congress recognized the need for a forum to reform the insurance licensing system in 1999 when it incorporated the National Association of Registered Agents and Brokers Act subtitle into the Gramm-Leach-Bliley Act. Unfortunately, at that time Congress did not immediately establish NARAB. As a result, Gramm-Leach-Bliley did not achieve the level of reciprocity and uniformity Congress expected and these efforts to streamline cross-state insurance licensing never took hold. That is why this important amendment is before the Senate today.

Senator JOHANNS' and my amendment would provide insurance agents and brokers with the option of becoming a member of NARAB provided that they meet the professional standards set by the association and undergo a criminal background check.

NARAB will streamline the licensing process for agents and brokers, enabling them to be licensed under one single, strong national licensing standard rather than following different State standards, thereby saving time and money.

In addition to setting rigorous professional standards, the association will let agents and brokers renew their licenses all at once and fully preserve the abilities of regulators to protect consumers and supervise and discipline agents and brokers.

Currently, on average, insurance agents sell their products in eight States, with many serving even more. A one-stop licensing compliance mechanism will benefit all agents and brokers but particularly the smaller folks who must spend time and money dealing with different standards in different States.

A one-stop shop for insurance licensing will help smaller players compete against the bigger competitors. That is good for business, and it is good for consumers.

NARAB represents a decade of effort, and I am pleased we will finally achieve the goals laid out in Gramm-Leach-Bliley. Some feared NARAB would diminish States rights. As a former State legislator, when folks start talking about States rights issues, I pay attention, but in this case I believe they are wrong.

I wish to take a minute and talk about how this amendment protects States rights. Under this amendment, States would retain all authority to license their own resident agents and brokers. The association would be required to notify States when agents and brokers apply for membership, letting the States notify NARAB of any reason membership should not be granted to the producer.

States will also have significant control over NARAB. The nonprofit association would be governed by a board of directors dominated by State insurance regulators and chaired by a State insurance regulator. Most importantly, NARAB deals only with marketplace entry and would not impact the day-to-day regulation of insurance. States will maintain exclusive control of the regulation of marketplace activities, consumer protection requirements, unfair trade practices, and other important areas.

Under this bill, under this amendment, we will preserve the authority of States to supervise insurance producers. Any agent or broker who obtains the authority to operate in a jurisdiction through NARAB is still subject to the full regulatory authority of that State and must comply with all marketplace requirements. Under our amendment, States will continue to receive insurance licensing fees, which will be collected by NARAB and remitted to the States.

This legislation is supported by the National Association of Insurance and Financial Advisers, the Council of Insurance Agents and Brokers, and the Independent Insurance Agents and Brokers of America. It is also supported by the National Association of Insurance Commissioners, which has expressed its full support for this bill and the final TRIA bill.

I urge my colleagues to support the Tester-Johanns amendment. It is truly a commonsense amendment that helps not only the industry but also the consumers.

I yield the floor.

The PRESIDING OFFICER. The Senator from Nebraska.

Mr. JOHANNS. Mr. President, I will begin today by acknowledging the good work of the good Senator from Montana. This bill has been around for a long time, and it is our hope that we will get to a point today where we can say that finally we have solved the problems.

The Senator from Montana has done an excellent job of laying out what this bill is all about and what it is not about, and I don't feel a need today to repeat what he has said, but let me just make a couple of points.

First, the partnership we had in working on this bill was excellent, and that is why it is this far along. It was a bipartisan effort.

This legislation is long overdue, and it does benefit consumers and businesses all across this great country. It is exactly what we look for. It reduces redtape, it encourages competition and protects State law, and it promotes consumer choice. For these reasons, it is my hope the entire Senate unanimously supports the amendment.

I might mention that we passed this legislation out of the banking committee about a year ago. That was after working on this for about 10

years. The House passed this bill last year by an overwhelming bipartisan vote, 397 to 6. So I am pleased we can advance this legislation today as part of the terrorism risk insurance bill, which I also support and will vote yes on.

Frankly, it is refreshing to finally be allowed to vote on amendments on the Senate floor. I hope this is a sign of things to come. I thank Senator SCHUMER and Senator CRAPO for their work in bringing us to this point. Without their work, TRIA would not be where it is today.

I urge the adoption of the amendment. I hope we can move the legislation to the President's desk as soon as possible.

Mr. President, I yield the floor.

The PRESIDING OFFICER. The Senator from New York.

Mr. SCHUMER. Mr. President, I thank my colleagues from Montana and Nebraska for their hard work on not only this legislation but their very important amendment—long overdue. I certainly thank Senators JOHNSON and CRAPO, without whose leadership we couldn't be here to pass this bill. I thank my original cosponsors, Senator KIRK from Illinois who is here, Senator JACK REED, Senator HELLER, Senator MURPHY, Senator JOHANNS, Senator WARNER, Senator BLUNT, and Senator MENENDEZ, all of whom recognized the importance of having this incredibly important program reauthorized.

As author of the original TRIA legislation, I have watched this evolution closely. I could not be more convinced of the necessity to reauthorize the program for the long haul.

I remember the dark days right after 9/11. I was there. The worst thing was the loss of life—people we had all known. I know people who were lost—a guy I played basketball with in high school, a businessman who helped me on the way up, a firefighter with whom I did blood drives. But there was also the economic worry. People thought southern Manhattan would not come back. People thought businesses would flee New York—that New York's greatest days were behind us. And of course the people of New York, with their resiliency, backed up by everyone in this country—including President Bush, very strongly—did come back. But the uncertainty we faced in the immediate aftermath was that there would be no building in southern Manhattan or Manhattan at all. And we have some history.

One of the things that greatly stood in the way was the private sector did not offer any sufficient coverage to protect against the threat of terrorism. No one knew when there might be another terrorist incident. Insurance companies, knowing how large the losses were, figured it was better not to underwrite insurance than write it for such an astronomical sum that the building would not be even economically feasible.

We have some colleagues who said this should be a private sector endeavor. Well, we have history. The private sector was unable, because of the potential economic losses if, God forbid, there was another terrorist attack, whether it be conventional, nuclear, or chemical, to provide terrorism insurance. When that occurs, banks would not finance buildings, knowing there was no insurance backup, and we would have been in huge trouble. That is why we devised the terrorism insurance bill.

For those who say let the private sector do it, we have an experiment. We have what the scientists would call a controlled experiment. When there was no terrorism insurance after 9/11, the private sector would not offer insurance. We even find to this day, as the existing bill expires, fewer people underwrite terrorism insurance and fewer buildings are financed.

So we can do one of two things: We can sit back and let the market handle this on its own and lose millions—literally millions—of jobs, lose economic stability, safety, prosperity, and growth or we can renew this legislation. We can come up with a smart, responsible, risk-sharing system where the private sector is paying upfront. But if, God forbid, there is another serious incident beyond the capability of the private sector to shoulder, the Federal Government can step in and provide a backstop. That is what we have done.

The TRIA Program is a shining example of the government partnering with the private sector to solve problems that neither can solve on its own.

Let me underline, first, the importance to my city of New York. The redevelopment of downtown Manhattan is booming there. People are flocking to live there and work there. It is the hot area of New York again—not just with financial services but with law and advertising and high-tech. It serves as a reminder of the role the Federal Government can and should play in helping facilitate the stability and growth of cities across the country.

This bill will not lessen the impact of a terrorist attack but will help ensure that our cities throughout the country are less vulnerable to the economic devastation that would follow such a horrific event.

But this bill is hardly just focused on New York City. It not only affects every large city—my good friend from Nebraska spoke—it affects the football stadium and any renovations that might occur there in Lincoln. I have been there for a Nebraska-Oklahoma game. It was an amazing experience. It affects any city that has large gatherings of people and buildings—shopping centers, athletic facilities, colleges. So it affects almost every State. That is one of the reasons we have come together and gotten such broad bipartisan support.

We must make sure that every reauthorization of the program provides the certainty lenders and developers need to make the kind of long-term investment our country and large projects need to stimulate job growth and economic growth, and this bill does just that. That is why it was passed out of the banking committee unanimously.

Again, I thank my colleagues, particularly on the other side of the aisle. As Senator JOHANNS said—and we say it on each bill where there is some bipartisan support—this one has overwhelming support. Maybe this bill can be a model that at least on many issues we can work together.

Time is of the essence. Insurance policies for 2015 are already being written. Each day that goes by without a TRIA Program causes great uncertainty in the market and holds back the potential for more development, more construction, more jobs, and more economic growth.

I will talk about the amendments later, but I urge my colleagues, both here in the Senate and in the House, to move as quickly as possible because our economy is greatly affected by it. It is one of those that ''runs quiet, runs deep.'' It is a quiet policy but a policy that greatly affects lots of things that go on.

Again, I thank my colleagues, Senator CRAPO for his good and hard work, as well as Senator JOHNSON and my cosponsors.

I yield the floor.

The PRESIDING OFFICER. The Senator from Idaho.

Mr. CRAPO. Mr. President, I am appreciative of Senator SCHUMER and the work we have been able to do together to move this legislation forward.

I rise today to speak in favor of S. 2244, the Terrorism Risk Insurance Act, or TRIA, program. As a cosponsor of this bill, I recognize Senator SCHUMER, Senator KIRK, Senator HELLER, Senator REED, and others for helping to put this bipartisan piece of legislation together.

Chairman JOHNSON and his staff also deserve a great amount of thanks for their strong efforts in moving this bill forward.

Working together, we developed a balanced bipartisan product that was literally unanimously supported in the banking committee 22 to 0. This bill we have put together allows the private insurance industry to absorb and cover the losses of all but the largest acts of terror—ones in which the Federal Government would likely be forced to step in, in any event, if the program were not there. Taxpayer protections have been increased in this reauthorization by moving more of the responsibility for losses on to private insurers.

For those who are not familiar with the program, TRIA was initially passed as a response to the unavailability of terrorism insurance in the wake of 9/11. The private market had already retreated in response to those terrorist attacks. It was then thought that a temporary program would allow the market time to develop products that would allow policyholders to protect themselves from terrorism losses.

More than a decade after the tragic events of 9/11, the temporary inability

to insure against terrorism has abated, and private capital is better positioned to take on more exposure to terrorism.

When the banking committee held its first hearing on TRIA's reauthorization last year, we discussed the ability of the private insurance market to step in to provide terrorism insurance if the TRIA Program expired. In that hearing, and in subsequent meetings with providers, policyholders, and stakeholders, we recognized on a bipartisan basis the continued difficulties associated with providing terrorism insurance required that we look again at extending the act.

Terrorism is difficult to predict. Therefore, the ability to develop products to insure against terrorism is very difficult to do. The size, severity, and frequency of attacks are hard to model. Also, attacks may be highly correlated, making it difficult for private insurers to diversify their risks.

Having TRIA in place was determined to be important. But if the market is too heavily reliant on Federal support, we may deter private companies from coming up with cost-effective solutions. That is why, instead of a straight reauthorization, I and others pushed for reforms to maintain the program and increase protections for taxpayers.

In order to do that, we examined each of the policy levers in the program. The bill marked up by the banking committee would increase the insurance industry's aggregate retention level and the company coinsurance levels. As the program stands today, the Federal Government would recoup any TRIA payments it makes up to $27.5 billion through post-event payments. This industry retention level allows the taxpayer to recover TRIA payments through an industrywide assessment on property-casualty policies. This aspect of the bill was last changed in the 2005 reauthorization. The bill before us today increases that recoupment level by $2 billion a year, to an overall level of $37.5 billion—an additional $10 billion. This is a significant reduction in the potential exposure and cost to taxpayers.

In addition, the bill increases the company coinsurance level from 15 percent to 20 percent over 5 years. This means that before the backstop is reached, each company will take on a greater portion of the losses above their deductible.

In order to get more private capital in the marketplace, Senator FLAKE has an amendment to create an advisory committee to promote the creation and development of private sector risk-sharing mechanisms. I support the addition of the Flake amendment and believe the advisory committee will find private sector solutions that will allow us to further decrease the program in future reauthorizations.

Before I conclude, I have a handful of letters in my possession here from groups across the country strongly supporting and encouraging that we adopt this legislation.

The U.S. Chamber of Commerce has listed this as a key vote. The Coalition to Insure Against Terrorism, which represents dozens and dozens of the financial sector interests across this country, recommends and encourages that we support this legislation, and the Mortgage Bankers Association, the National Association of Insurance Companies, the Property Casualty Insurers, the National Apartment Association, the National Multifamily Housing Council, and the American Builders Conference.

These are just a sampling of letters we have received from interests across the Nation that support this legislation. I ask unanimous consent that these letters be printed in the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

ASSOCIATED BUILDERS
AND CONTRACTORS, INC.,
Washington, DC, July 17, 2014.

U.S. SENATE,
Washington, DC.

DEAR SENATOR: on behalf of Associated Builders and Contractors (ABC), a national construction industry association with 70 chapters representing nearly 21,000 members, I am writing to express our support for S. 2244, the Terrorism Risk Insurance Program Reauthorization Act of 2014. The bill, introduced by Sen. Chuck Schumer (D–N.Y.), would extend the Terrorism Risk Insurance Act (TRIA) for seven years beyond the current expiration date of December 14, 2014, ensuring the construction industry will be able to secure sufficient terrorism insurance.

Following the tragic attacks on our country on September 11, 2001, terrorism insurance rates skyrocketed and many contractors were unable to secure insurance, forcing projects to be put on hold, costing jobs and hindering economic development. The attacks had a particularly devastating impact on the construction industry: more than one million jobs were lost and $15 billion in real estate transactions were canceled.

In 2002, President Bush signed TRIA into law, immediately providing much needed assurance to builders and lenders. TRIA acted as a spark to help our economy recover in the face of continued terrorist threats by allowing contractors across the country to secure this commercially necessary product.

Since 2002, TRIA has been reauthorized twice in overwhelmingly bipartisan fashion and has continued to act as a public-private partnership to ensure the stability of the terrorism insurance marketplace. The seven year extension contained in S. 2244 would provide a long term backstop that is necessary to ensure the construction industry's future success. Without the extension, banks will be less inclined to lend necessary funds to new construction projects and companies may be forced out of the industry because of financial risks, costing jobs and putting a roadblock in our nation's drive to economic recovery.

In the wake of a recession in which our industry faced a 27.2 percent unemployment rate, the construction economy cannot sustain the uncertainty and disruption that the expiration of TRIA would trigger.

ABC and its members fully support the extension of TRIA, and urges all Senators to support S. 2244.

Sincerely,

GEOFFREY BURR,
Vice President, Government Affairs.

NATIONAL MULTIFAMILY HOUSING
COUNCIL, NATIONAL APARTMENT
ASSOCIATION,
Washington, DC, July 16, 2014.

DEAR SENATOR: This week the U.S. Senate is scheduled to consider a bill to reauthorize the Terrorism Risk Insurance Act (TRIA). We commend Chairman Johnson and Ranking Member Crapo for their good work on S. 2244, the Terrorism Risk Insurance Reauthorization Act of 2014. It represents a bipartisan, balanced approach to maintaining the necessary program elements of TRIA while enhancing taxpayer protections. TRIA was first enacted after the events of 9–11 creating a federal backstop so that affordable terrorism coverage would be available and affordable for commercial policyholders across the country, including apartment property owners, developers and managers. The program has been a successful public/private partnership and is fiscally sound.

On behalf of the National Multifamily Housing Council (NMHC) and the National Apartment Association (NAA), we urge your support of S. 2244. As policyholders, our members are anxious to advance legislation in a swift manner to eliminate the uncertainty associated with the year-end program expiration.

NMHC/NAA represent the nation's leading firms participating in the multifamily rental housing industry. Our combined memberships engage in all aspects of the apartment industry, including ownership, development, management and finance. NMHC represents the principal officers of the apartment industry's largest and most prominent firms. NAA is a federation of 170 state and local apartment associations comprised of approximately 64,000 multifamily housing companies representing nearly 7.5 million apartment homes throughout the United States and Canada.

TRIA and subsequent extensions of the program have been the mechanism that provides ready access to affordable insurance coverage. Terrorism risk does not resemble other commercial risks. Unlike natural disasters in which insurers have had significant experiences and data to project the risk of damage, terrorism remains unpredictable and therefore largely uninsurable. The impact of an event can be enormous, and insurance modeling for such risks is still not reliable, thus underscoring the importance of continued federal involvement.

In 2012 data collected from our members relative to their cost of insurance, take up rates for terrorism coverage was 91%. This is not insignificant and demonstrates that certainty offered by TRIA in costs and coverage limits are critical components in a multifamily property owner's continued ability to offer safe and affordable housing.

We thank you for your support of this measure and appreciate your taking steps to move this important legislation one step closer to enactment before the December 2014 expiration.

Sincerely,

DOUGLAS M. BIBBY,
PRESIDENT,
National Multi Housing Council.

DOUGLAS S. CULKIN, CAE,
PRESIDENT,
National Apartment Association.

PROPERTY CASUALTY INSURERS ASSOCIATION OF AMERICA,
July 16, 2014.

Contact: Eileen Gilligan
Phone: 202–639–0497
Email: Eileen.Gilligan@pciaa.net

PCI URGES THE SENATE TO SUPPORT THE TERRORISM RISK INSURANCE PROGRAM REAUTHORIZATION ACT OF 2014

Washington—Nat Wienecke, senior vice president, federal government relations of the Property Casualty Insurers Association of America (PCI) issued the following statement in regards to the Senate's upcoming consideration of S. 2244, the Terrorism Risk Insurance Program Reauthorization Act of 2014.

''PCI strongly supports passage of S. 2244, the Terrorism Risk Insurance Program Reauthorization Act of 2014, and commends the Senate Committee on Banking, Housing, and Urban Affairs for unanimously passing this legislation and sending it to the full Senate for a vote,'' said Wienecke. ''TRIA is a critical part of the fabric of our national response plan for terrorist attacks. Ensuring America's economic resiliency to terrorist attacks is a solemn responsibility and we call on the members of the Senate to vote aye and move this legislation one step closer to the president's desk.''

PCI is composed of more than 1,000 member companies, representing the broadest cross-section of insurers of any national trade association. PCI members write over $195 billion in annual premium, 39 percent of the nation's property casualty insurance. Member companies write 46 percent of the U.S. automobile insurance market, 32 percent of the homeowners market, 37 percent of the commercial property and liability market, and 41 percent of the private workers compensation market.

NATIONAL ASSOCIATION OF MUTUAL INSURANCE COMPANIES,
July 16, 2014.

DEAR SENATOR: as the Senate completes floor consideration of S. 2244, the Terrorism Risk Insurance Program Reauthorization Act of 2014, the National Association of Mutual Insurance Companies respectfully urges you to vote ''yes'' on this critical piece of legislation. A long-term reauthorization of the TRIA program ensures a vital piece of the nation's economic national security infrastructure will continue to encourage private sector involvement in the terrorism insurance marketplace—thereby protecting and promoting our nation's finances, security, and economic strength.

NAMIC is the largest and most diverse property/casualty trade association in the country, with 1,400 regional and local mutual insurance member companies on main streets across America joining many of the country's largest national insurers who also call NAMIC their home. Member companies serve more than 135 million auto, home and business policyholders, writing in excess of $196 billion in annual premiums that account for 50 percent of the automobile/ homeowners market and 31 percent of the business insurance market. More than 200,000 people are employed by NAMIC member companies.

NAMIC appreciates the bipartisan leadership of the Senate Banking Committee in reporting legislation by a unanimous vote which both increases taxpayer protections and which will maintain a robust terrorism insurance market for consumers and companies of all sizes. In particular, we applaud the crafters of S. 2244 for recognizing that raising the ''trigger level'' could make it impossible for many small to medium-sized insurers to continue to write terrorism and other business coverages without ultimately doing anything to reduce taxpayer exposure. As it is, we are encouraging you to pass this compromise legislation to reauthorize a program that has protected the economic security of the United States since its creation following the September 11, 2001 terrorist attacks.

Sincerely,

JAMES D. GRANDE,
SVP—Federal and Political Affairs, National Association of Mutual Insurance Companies.

MORTGAGE BANKERS ASSOCIATION,
July 14, 2014.

Hon. HARRY REID,
Majority Leader, U.S. Senate, Washington, DC.
Hon. MITCH MCCONNELL,
Minority Leader, U.S. Senate, Washington, DC.

DEAR LEADER REID AND LEADER MCCONNELL: On behalf of the Mortgage Bankers Association (MBA), I am writing to urge the Senate to pass S. 2244, the Terrorism Risk Insurance Program Reauthorization Act of 2014, which was unanimously approved by the Senate Banking Committee last month. With the year-end expiration of the Terrorism Risk Insurance Act (TRIA) looming closer, it is critical that Congress take action to pass a long-term extension of the terrorism risk insurance program.

MBA's paramount objective for TRIA reauthorization is for terrorism risk insurance to remain both available and affordable, in the long-term, for commercial real estate and multifamily properties. The clearest path to this objective is a long-term TRIA extension without modifications. If changes to the program are inevitable, our perspective on TRIA reauthorization legislation is then guided by its potential impact on the availability and affordability of terrorism risk insurance. By introducing a limited number of incremental programmatic modifications, S. 2244 is consistent with past reauthorization efforts that MBA has supported.

A long-term extension of TRIA is essential to the health and vitality of the $2.5 trillion commercial and multifamily real estate finance sector and the nation as a whole. The absence of available and affordable terrorism risk insurance would not only impact the commercial real estate finance center, but would ripple through the economy as buildings became more difficult and costly to finance and purchase.

Any changes to TRIA should be incremental, at most, and implemented over the course of a long-term reauthorization period in order to avoid unintended consequences. Past reauthorization efforts for the program have introduced gradual changes that did not negatively impact the availability and affordability of terrorism risk insurance. A departure from this approach could result in price and availability shocks for terrorism risk insurance. We are pleased the Senate is placing a high priority on TRIA reauthorization.

Regarding S. 2244, MBA offers the following observations:

Long-Term Extension—MBA strongly supports the seven-year extension period because it will allow for extended market certainty that a terrorism risk insurance program will be in place.

Increased Recoupment—The federal government's potential recoupment is increased from $27.5 billion to $37.5 billion over a five-year period. The five-year adjustment period ($2 billion per year) represents an incremental approach to an important element of the program.

Increased Insurance Company Co-Pay—After the initial deductible, the insurance company co-pay will be increased by one percent a year for five years until the co-pay increases from 15 percent to 20 percent. This also represents an incremental change to another important element of the program. TRIA reauthorization should take into consideration the potential impacts on small property insurance companies.

MBA urges all members of the Senate to vote in favor of S. 2244 and to oppose amendments that would weaken the TRIA program. We look forward to working with Congress, other policymakers, and engaged stakeholders to ensure the long-term reauthorization of the TRIA program as quickly as possible.

Sincerely,

DAVID H. STEVENS,
President and Chief Executive Officer.

COALITION TO INSURE AGAINST TERRORISM,
Washington, DC, July 16, 2014.

DEAR SENATOR: The Coalition to Insure Against Terrorism (CIAT) strongly urges you to support S. 2244, the Terrorism Risk Insurance Program Reauthorization Act of 2014. S. 2244 would extend the Terrorism Risk Insurance Act (TRIA) for seven years.

CIAT represents a wide range of businesses and organizations throughout the transportation, real estate, manufacturing, construction, energy, education, entertainment and retail sectors that regularly must obtain insurance against terrorism. We know firsthand that, as part of its economic national security, America needs a stable, reliable terrorism competitive insurance market so employers can invest in assets and create jobs without assuming the risk and liabilities of a terrorist attack.

Again, we urge you to support S. 2244 and we thank you for your consideration of CIAT's concerns on this vital issue.

Sincerely,

THE COALITION TO INSURE AGAINST TERRORISM.

NATIONAL ASSOCIATION OF REALTORS,
July 16, 2014.

DEAR SENATOR: On behalf of the over one-million members of the National Association of REALTORS (NAR), I urge you to support S. 2244, the ''Terrorism Risk Insurance Program Reauthorization Act of 2014,'' when the Senate votes on it on Thursday, July 17th. This bipartisan legislation, unanimously approved by the Senate Banking Committee in June, extends the Terrorism Risk Insurance Act (TRIA) for seven years and makes minimal changes to a program that has worked since its inception in 2002 at virtually no cost to taxpayers.

NAR's membership includes commercial practitioners and brokers who work with clients that would be adversely affected if TRIA is allowed to expire at the end of 2014, or if it is renewed in a manner that constricts the ability of private insurers to make terrorism coverage available and affordable throughout the country. The current TRIA program continues to be a success, keeping private terrorism insurance coverage available and affordable while protecting taxpayers and limiting the federal government's exposure to only the most extreme events. Though we do have concerns that provisions in S. 2244 to increase the mandatory recoupment amount (from $27.5 billion to $37.5 billion) could adversely impact the economy in the wake of a terrorist attack, overall we are pleased that the bill received unanimous bipartisan support from the Banking Committee. NAR urges the full Senate to approve it today.

Please give your support to S. 2244 when it reaches the Senate floor. TRIA provides a crucial framework for economic recovery in

the wake of a catastrophic terrorist attack, and allows the United States to maintain a stable terrorism insurance market so employers can invest in properties and create jobs without assuming the risk and liabilities of a terrorist attack. Your support of this extension bill will aid in preventing market uncertainty for years to come.

Sincerely,

STEVE BROWN,
2014 President,
National Association of REALTORS®.

NATIONAL ASSOCIATION OF MUTUAL INSURANCE COMPANIES, PROPERTY CASUALTY INSURERS ASSOCIATION OF AMERICA, U.S. CHAMBER OF COMMERCE, COMMERCIAL REAL ESTATE FINANCE COUNCIL,

July 8, 2014.

Hon. HARRY REID,
Majority Leader, U.S. Senate,
Washington, DC
Hon. MITCH MCCONNELL,
Minority Leader, U.S. Senate,
Washington, DC.

DEAR MAJORITY LEADER REID AND MINORITY LEADER MCCONNELL: The undersigned organizations respectfully request quick action on S. 2244, the Terrorism Risk Insurance Program Reauthorization Act of 2014. This bipartisan legislation was reported last month with a unanimous vote by the Senate Committee on Banking, Housing, and Urban Affairs and is essential to retain the Terrorism Risk Insurance Program that has protected U.S. national and economic security since its creation following the September 11, 2001 terrorist attacks. To date, a quarter of the Senators have cosponsored S. 2244.

The TRIA program is a vital piece of the nation's economic national security infrastructure. The federal government plays an important and appropriate role in encouraging private sector involvement in the terrorism insurance marketplace—thereby protecting and promoting our nation's finances, security, and economic strength. The Terrorism Risk Insurance Program has been a remarkable success in achieving its primary mission to ''protect consumers by addressing market disruptions and ensure the continued widespread availability and affordability of property and casualty insurance for terrorism risk.''

The undersigned parties are very appreciative of the bipartisan leadership of the Senate Banking Committee in reporting legislation that increases taxpayer protections while retaining broad support of consumer groups and the marketplace. Working together, Sens. Johnson and Crapo and members of the Committee achieved consensus agreement on a bipartisan piece of legislation. The bill reauthorizes the TRIA program for seven years, a period of time that will bring longer-term certainty to the market and facilitate economic development, and increases the ultimate private sector share of the responsibility for insured losses, thereby reducing any potential burden on the taxpayer.

We are particularly appreciative that the Senate consensus bill largely maintains the current thresholds that facilitate broad private participation in the terrorism insurance market. For example, the bill maintains the current $100 million ''trigger''—the minimum size of a terrorist event required to trigger any Federal involvement. An excessive trigger could make it impossible for many small to medium-sized insurers to continue to write terrorism and other business coverages. If insurers are forced out of the market, the result is expected to be less availability of coverage and less competition. That would be antithetical to TRIA's stated purposes. Small and medium-sized insurers represent almost 98 percent of all insurers writing TRIA coverage and almost half of all TRIA-related premiums. Small and medium-sized insurers are a critical source of terrorism coverage as well as other lines of insurance meeting all of needs of American businesses large and small. The primary impact of raising the trigger would be on smaller, regional, and niche insurers whose deductible—and even total exposure—is less than the amount of an elevated trigger level that has been set too high. We applaud the crafters of S. 2244 for recognizing this important fact.

We urge the Senate to take up S. 2244 as quickly as possible. Consumers are already having to purchase terrorism insurance coverage that extends beyond TRIA's current December 31, 2014 expiration without any certainty regarding the levels of protection TRIA will provide. Many newly issued policies contain conditional terrorism exclusions, which could result in no protection for consumers if Congress fails to act in a timely manner. While most stakeholders prefer a straight extension of TRIA with no changes, we recognize and appreciate the bipartisan leadership of the committee in moving S.2224 forward and hope that you can reach agreement to bring this legislation to the Senate floor as soon as possible where we believe it will have overwhelming support.

Given the broad support this bill has already attracted, we would encourage the full Senate to consider this legislation as soon as possible with minimal revisions, and in particular, no amendments to raise the trigger from its current $100 million level. We believe that the current version of the legislation will help maintain a vital program that has succeeded in fostering a robust terrorism insurance market for consumers and companies of all sizes, at virtually no cost to the federal government.

Sincerely,

National Association of Mutual Insurance Companies, Property Casualty Insurers Association of America, U.S. Chamber of Commerce, Commercial Real Estate Finance Council.

U.S. CHAMBER OF COMMERCE,
Washington, DC, July 16, 2014.

TO THE MEMBERS OF THE UNITED STATES SENATE: The U.S. Chamber of Commerce, the world's largest business federation representing the interests of more than three million businesses of all sizes, sectors, and regions, as well as state and local chambers and industry associations, and dedicated to promoting, protecting, and defending America's free enterprise system, strongly supports S. 2244, the ''Terrorism Risk Insurance Program Reauthorization Act of 2014,'' and applauds the Senate Committee on Banking, Housing, and Urban Affairs for reporting out this important bill with unanimous support.

In the months following the 9/11 terrorist attacks, the inability for insurance policyholders to secure terrorism risk insurance contributed to a paralysis in the economy, especially in the construction, travel and tourism, and real estate finance sectors. Since its initial enactment in 2002, the Terrorism Risk Insurance Act (TRIA) has served as a vital public-private risk sharing mechanism, ensuring that private terrorism risk insurance coverage remains commercially available and that the U.S. economy could more swiftly recover in the event of a terrorist attack.

Catastrophic terrorism remains an uninsurable risk because its frequency and location cannot be accurately predicted, and its potential scale could be economically devastating. TRIA continues to promote long-term availability of terrorism risk insurance for catastrophic terror events and provides a standard of stability for financial markets and recovery after such an attack.

The Chamber strongly urges you to support S. 2244, the ''Terrorism Risk Insurance Program Reauthorization Act of 2014,'' and may consider votes on, or in relation to, this bill in our annual How They Voted scorecard.

Sincerely,

R. BRUCE JOSTEN.

Mr. CRAPO. Getting terrorism risk insurance right is important in order to protect taxpayers and to limit economic and physical impacts of any future terrorist attacks on the United States. This bill will help us maintain a properly balanced terrorism risk insurance program that increases the Nation's economic resilience to terrorism. Again, I thank Chairman JOHNSON and Senators SCHUMER, KIRK, REED, and HELLER for their partnership in bringing this bill forward and encourage its adoption.

The PRESIDING OFFICER. The Senator from Illinois.

Mr. KIRK. Mr. President, I haven't spoken that much in this Chamber since I suffered that stroke. I so strongly believe in this legislation to make it happen.

Behind me is a representation of the world's tallest buildings, the 10 tallest buildings in the world. Only one is in the U.S.A. Look over at that tallest one. That still distresses me, the Burj Khalifa, which is right now the tallest building in the world. I believe as the Senator representing Chicagoland, the city that invented the skyscraper, that Chicagoland citizens have a right to grow up in the shadow of the world's tallest buildings. Unless we quantify the risk for building one of these buildings through the TRIA legislation, we will not return skyscrapers to the country that invented skyscrapers.

With that I yield back the remainder of my time.

Thank you.

The PRESIDING OFFICER. The Senator from New York.

Mr. SCHUMER. Senator CRAPO listed some letters and asked that they be put in the RECORD for some groups supporting our legislation.

We have a very long list, and I ask unanimous consent that list be added to the RECORD, the supporters of the legislation.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

SUPPORT S. 2244, THE BIPARTISAN TERRORISM RISK INSURANCE PROGRAM REAUTHORIZATION ACT OF 2014

On April 10th, following two Banking Committee hearings on the need for Congress to reauthorize TRIA, Senators Schumer (D-NY), Kirk (R-IL), Reed (D-RI), Heller (R-NV), Murphy (D-CT), Johanns (R-NE), Warner (D-VA), Blunt (R-MO) and Menendez (D-NJ) introduced the Terrorism Risk Insurance Program Reauthorization Act of 2014. The sponsors, working with Banking Committee Chairman Johnson and Crapo, crafted a bipartisan compromise with the following key features:

Long-term extension that will promote national security, economic growth and market certainty

7 year extension of TRIA until December 31, 2021.

Improve existing taxpayer protections

Gradually raise the insurer co-payment from 15% to 20% over 5 years.

Gradually raise the mandatory recoupment threshold from $27.5 billion to $37.5 billion over 5 years.

When considering S. 2244, the Banking Committee made several improvements to the bill offered by both Republican and Democratic Committee Members, including requiring a study and rulemaking by the Treasury Department to improve the TRIA certification process to provide better guidance and certainty following events that may qualify to be certified as ''acts of terror'' under the program.

Broad support for S. 2244 and extending TRIA

Unanimous, Bipartisan Support in Committee: By a unanimous and bipartisan vote of 22-0, the Banking Committee voted on June 3, 2014, to report S. 2244 to the Senate floor.

Quarter of the Senate are Cosponsors: A quarter of the Senate is now cosponsors of S. 2244, including the original sponsors and Senators Blumenthal (D-CT), Booker (D-NJ), Cardin (D-MD), Chambliss (R-GA), Crapo (R-ID), Donnelly (D-IN), Durbin (D-IL), Franken (D-MN), Gillibrand (D-NY), Isakson (R-GA), Johnson (D-SD), Klobuchar (D-MN), Markey (D-MA), Merkley (D-OR), Mikulski (D-MD), and Tester (D-MT).

Strong Support from a Wide Range of Stakeholders Across the Country: A large number of businesses and organizations have called on Congress to extend TRIA and support S. 2244, including the U.S. Chamber of Commerce, American Hotel and Lodging Association, Real Estate Roundtable, Realtors, Mortgage Bankers Association, MLB's Office of the Commissioner, NBA, NCAA, NFL and NHL.

S. 2244 is strongly supported by a wide range of organizations, including:

American Association of Port Authorities, American Bankers Association, American Bankers Insurance Association, American Bankers Securities Association, American Council of Engineering Companies, American Gaming Association, American Hotel and Lodging Association, American Insurance Association, American Land Title Association, American Public Gas Association, American Public Power Association, American Resort Development Association, American Society of Association Executives, Associated Builders and Contractors, Associated General Contractors of America, Association of American Railroads, Association of Art Museum Directors, Building Owners and Managers Association International, Boston Properties, Campbell Soup Company.

Coalition to Insure Against Terrorism, Cornerstone Real Estate Advisers, LLC, CRE Finance Council, CSX Corporation, Emerson, Financial Services Roundtable, Food Marketing Institute, Helicopter Association International, Hilton Worldwide, Host Hotels & Resorts, Inc., Institute of Real Estate Management, InterContinental Hotel Group, International Council of Shopping Centers, International Franchise Association, International Safety Equipment Association, International Speedway Corporation, Long Island Import Export Association, Marriott International, Mortgage Bankers Association, NAIOP.

National Apartment Association, National Association of Chain Drug Stores, National Association of Home Builders, National Association of Manufacturers, National Association of Mutual Insurance Companies (NAMIC), National Association of REALTORS, National Association of Real Estate Investment Trusts, National Association for Stock Car Auto Racing (NASCAR), National Association of Waterfront Employers, National Basketball Association, National Collegiate Athletic Association, National Council of Chain Restaurants, National Football League, National Hockey League, National Multifamily Housing Council, National Restaurant Association, National Retail Federation, National Roofing Contractors Association, National Rural Electric Cooperative Association, New England Council.

Partnership for NYC, Property Casualty Insurers Association of America (PCI), Public Sector Alliance, Public Utilities Risk Management Association, Office of the Commissioner of Baseball, The Real Estate Board of New York, The Real Estate Roundtable, Securities Industry and Financial Markets Association, Self-Insurance Institute of America, Inc., Starwood Hotels and Resorts, Tenaska, Taxicab, Limousine & Paratransit Association, UJA-Federation of New York, United Airlines, Union Pacific, University Risk Management and Insurance Association, U.S. Chamber of Commerce, U.S. Travel Association.

Mr. SCHUMER. Now I would like to discuss the amendment process to preview it for my colleagues a little bit.

I would also ask unanimous consent that quorum calls be counted equally against both sides.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. SCHUMER. As was mentioned, I believe by some of my colleagues, the give-and-take on this bill was ideally how things should work. First, a bipartisan group of Senators got together and crafted the legislation. As Senator CRAPO noted, there was some push and pull, what should be the balance between government and the private sector, and we did move a little bit more in giving greater responsibility to the private sector. People should note that at the end of the day the private sector will pay back all the money the government would lay out if, God forbid, there is a terrorist incident, but it would be over a period of time of course.

But we had Democrats and Republicans come together and we came up with a bill. The chairman and ranking member agreed that the bill was a good idea, held hearings, and then we moved forward with the legislation.

Then always comes the even greater morass. We do get some bills passed out of this place with bipartisan support and many of them are significant bills, but then we go to the floor and we wonder what is going to happen now. We have the age-old dispute about how many amendments, what type of amendments, should they be relevant. In this case we asked colleagues on both sides of the aisle who would want amendments.

The amendments that came back were reasonable. Most—not all—were related to terrorism insurance. Those that weren't, such as by Senator TESTER and Senator VITTER, were in the jurisdiction of the Banking Committee, so they at least had some relationship. We did not get a flurry of amendments from all over the place on issues that naturally divide the parties.

Then we had to do some negotiating, but we allowed—Senator CRAPO and Senator JOHNSON allowed every amendment, that any author who wanted to offer an amendment could. We worked out some compromises on the Tester amendment. Senator COBURN had objections, and a compromise was worked out there. Some were withdrawn, but at the end of the day anyone who wanted an amendment got it. Both sides showed restraint, and I think that is what brought us to this position.

So the good news for my colleagues, we have a very limited number of amendments, and we intend to dispose of the entire bill before lunch this morning.

Let me briefly go over the amendments.

Senator COBURN will offer an amendment on recoupment timing. The Coburn amendment would give the Treasury Secretary the ability to extend the recoupment period of up to 10 years following an attack. The problem is the way Senator COBURN had drafted his amendment, it would create a significant score. He offered in it the Banking Committee and it failed on a bipartisan vote, the majority of both parties, I believe, voting against it. But he wanted to offer it on the floor, and so he will.

There is a point of order, a pay-go point of order that will be raised against the Coburn amendment, and I will raise that because it does break the budget. It doesn't have a pay-for in exchange for it. So Chairman JOHNSON and I believe the sponsors of the legislation recommend a ''no'' vote on waiving pay-go against the Coburn amendment.

The Tester amendment, as modified by Senator COBURN, I believe will be voice-voted. Senator TESTER and Senator JOHANNS described that adequately, but it is something long overdue that would create a National Association of Registered Agents and Brokers and make the whole brokerage business work more smoothly. It has very broad support in this body.

Senator VITTER will offer an amendment that would require the President to nominate at least one individual with primary experience working in or supervising community banks on the Federal Reserve Board of Governors. I am sure he will come to the floor to explain his amendment. We expect this amendment, which we will all agree to, will be approved by voice vote, and Chairman JOHNSON has recommended a voice vote to the Members on our side.

Finally, there is a Flake amendment that would create an advisory committee on risk-sharing mechanisms. Again, I think Senator FLAKE will come down at some point and explain his amendment. There will be a recorded vote on this at least as planned now, and I will be supportive and I know Chairman JOHNSON again has recommended a ''yes'' vote on the Flake amendment.

With that, I note the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

The PRESIDING OFFICER. The Senator from Arizona.

Mr. FLAKE. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded. 59/b

The PRESIDING OFFICER. Without objection, it is so ordered.

AMENDMENT NO. 3551

Mr. FLAKE. I ask unanimous consent to temporarily set aside the pending amendment so I may call up my amendment 3551, which is at the desk.

The PRESIDING OFFICER. Without objection, it is so ordered.

The clerk will report the amendment.

The legislative clerk read as follows:

The Senator from Arizona [Mr. FLAKE] proposes an amendment numbered 3551.

The amendment is as follows:

(Purpose: To establish the Advisory Committee on Risk-Sharing Mechanisms)

On page 13, after line 22, insert the following:

SEC. 8. ADVISORY COMMITTEE ON RISK-SHARING MECHANISMS.

(a) FINDING; RULE OF CONSTRUCTION.—

(1) FINDING.—Congress finds that it is desirable to encourage the growth of nongovernmental, private market reinsurance capacity for protection against losses arising from acts of terrorism.

(2) RULE OF CONSTRUCTION.—Nothing in this Act, any amendment made by this Act, or the Terrorism Risk Insurance Act of 2002 (15 U.S.C. 6701 note) shall prohibit insurers from developing risk-sharing mechanisms to voluntarily reinsure terrorism losses between and among themselves.

(b) ADVISORY COMMITTEE ON RISK-SHARING MECHANISMS.—

(1) ESTABLISHMENT.—The Secretary of the Treasury shall establish and appoint an advisory committee to be known as the ''Advisory Committee on Risk-Sharing Mechanisms'' (referred to in this subsection as the ''Advisory Committee'').

(2) DUTIES.—The Advisory Committee shall provide advice, recommendations, and encouragement with respect to the creation and development of the nongovernmental risk-sharing mechanisms described under subsection (a).

(3) MEMBERSHIP.—The Advisory Committee shall be composed of 9 members who are directors, officers, or other employees of insurers, reinsurers, or capital market participants that are participating or that desire to participate in the nongovernmental risk-sharing mechanisms described under subsection (a), and who are representative of the affected sectors of the insurance industry, including commercial property insurance, commercial casualty insurance, reinsurance, and alternative risk transfer industries.

(c) EFFECTIVE DATE.—The provisions of this section shall take effect on January 1, 2015.

Mr. FLAKE. Mr. President, I am pleased to have the opportunity to offer this amendment. I thank my colleagues, the ranking member of the Banking Committee, and the senior Senator from New York for working with my office to make this possible.

The Terrorism Risk Insurance Program Reauthorization Act before us extends for 7 years the Federal loss sharing program developed in response to the market destructions that were caused by 9/11. Created in 2002, the Terrorism Risk Insurance Program was intended to be just a 3-year program. This program has since been extended twice, and the bill before us would extend its life through December 31, 2021.

Given the longevity of the program, I think it would be prudent for us to focus some attention on the growing private market reinsurance capability and capacity.

My amendment simply establishes an advisory committee composed of members of the insurance industry to provide recommendations to accelerate the creation and development of private nongovernmental risk-sharing mechanisms for terrorism losses. I urge my colleagues to join me in taking this modest step toward developing a functioning private-run market for terrorism risk insurance, thereby reducing dependency on the Federal Government in this regard.

I yield the floor and I note the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. CRAPO. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. BOOKER). Without objection, it is so ordered.

Mr. CRAPO. Mr. President, I wish to take this opportunity to make comments on a couple of the amendments that have been or will be presented to the bill.

First, with regard to the amendment presented by Senator FLAKE. As I mentioned in my opening remarks, I support this amendment. One of the issues we deal with in the reauthorization of TRIA each time we face it is the correct balance and the level of government protection and support that needs to be in place to help the market deal with major catastrophic events in the United States and the level of requirement we insist there be from the private sector and how they will step in and deal with these risks on an insurance basis rather than requiring the taxpayers to be the ultimate backstop.

Ultimately our objective should be and must be that the taxpayer be relieved of this kind of burden and that the private sector step in and cover the risks through our private sector insurance markets. I think we have a pretty broad consensus that we are not at the level yet where we can get there, but each time we have reauthorized TRIA, we have moved it closer to that objective, and this legislation itself moves it closer.

As I said in my introductory remarks, we have increased the retention level—in other words, the amount of money the private sector must pay back to the Treasury if the taxpayer is ultimately required to step in and backstop a catastrophic terrorist attack. This legislation will increase that amount by another $10 billion—from $27.5 billion to $37.5 billion. We are also increasing the amount of money which the private sector insurance industry must put up upfront before the government steps in and provides a backstop. We are increasing that from a 15-percent copay to 20-percent copay.

We are taking significant steps in this legislation to get to the ultimate objective of having the private sector fully handle the insurance risk due to a catastrophic terrorist attack.

Senator FLAKE has provided an amendment, which I support, that would help us create an advisory committee that will focus on this specific issue and help us to find private sector solutions to allow us to further decrease the program in the future reauthorizations. I think this is an incredibly important amendment, and I believe there is strong bipartisan support for it. It allows us to have advice and support from this advisory committee that would be created under his amendment to take further and more important steps toward achieving the ultimate objective of having to be able to eliminate the need for taxpayer involvement in dealing with catastrophic events such as a terrorist attack.

I strongly support the addition of the Flake amendment. I believe the advisory committee he proposes will find private sector solutions which will allow us to further decrease and ultimately eliminate the program in future reauthorizations.

Another amendment that has been discussed on the floor today by Senator TESTER of Montana and Senator JOHANNS of Nebraska is the NARAB amendment, which is an amendment that will be added to this legislation. This is also an important piece of legislation from the banking committee and it is called the National Association of Registered Agents and Brokers, or NARAB. Again, it is a bipartisan piece of legislation that has strong support across the United States in various industries to try to allow our registered agents and brokers to have a more efficient and effective system in which to obtain necessary authorization to conduct their business nationwide.

I am an original cosponsor of this language because it simplifies the process of agent licensing across State lines while preserving the authority of State insurance regulators. This bill has broad support from the insurance community, including the National Association of Insurance Commissioners, the Independent Insurance Agents and Brokers of America, the National Association of Insurance and Financial Advisers, and the Council of Insurance Agents and Brokers.

The creation of NARAB will allow agents and brokers to focus on their responsibilities to their clients and spend

less time dealing with redtape. By reducing costs and increasing competition among insurance producers, we will generate lower costs and better service for consumers. Importantly, NARAB II deals specifically with marketplace entry and would not impact the States' jurisdiction over day-to-day authority in the insurance marketplace. This is a very critical point because I believe one of the biggest issues relating to this legislation is preserving and protecting States rights and State jurisdiction with regard to regulation of the insurance marketplace.

Insurance commissioners of the States will be able to better catch bad actors who, after losing a license in one State, move quickly to enter into another State. State regulators will serve on the board of NARAB with the same objectives they have as insurance commissioners—to protect the public interest by promoting the fair and equitable treatment of insurance consumers.

The idea for NARAB is now 14 years old. We have literally been working on it for that long, and I am hoping we can get this legislation across the finish line today.

These are two important amendments that will come forward today with regard to the TRIA legislation, and there are several more. As we move forward today I am hopeful we will make the kind of progress on these important and critical issues that will enable us to not only pass this legislation but to do so with a strong vote here in the Senate and then get us into a conference with the House so we can put this important legislation, which has been developed on a bipartisan basis, on the President's desk.

Far too often we are seeing gridlock in this Chamber. We have two pieces of legislation today where we have a bipartisan agreement and bipartisan support, and I think it is a good day for the Senate to see this kind of legislation moving forward.

I yield the floor.

The PRESIDING OFFICER. The Senator from Connecticut.

Mr. MURPHY. Thank you, Mr. President. Let me join my friend Senator CRAPO in congratulating the leadership on both the Republican and Democratic side and the leadership on the banking committee for bringing this bill before us this morning. It is, unfortunately, all too rare when we can bring a piece of legislation to the floor that has been worked on by both sides of the aisle and has broad agreement on both sides of the aisle. Of course, as the Senator from Idaho knows, there is nothing partisan about the effects of not reauthorizing TRIA. This is going to affect every part of the country. Republicans and Democrats, people of liberal and conservative persuasions, will ultimately be paying a lot more and losing a lot more because of our failure to get this bill done. So let me again thank Senator CRAPO and Senator JOHNSON for all the work they have done. I was one of the original cointroducers of this bill, along with Senator SCHUMER and Senator REID, as well as Senators MENENDEZ, WARNER, KIRK, HELLER, JOHANNS, and BLUNT.

Ultimately, we were educated by what happened in the weeks and months following September 11. In that period of time, the real estate market in large parts of this country—certainly in my part of the country surrounding New York City—collapsed. As a result, $15 billion worth of projects stalled overnight, and we lost about 300,000 construction jobs that were planned to come online—all because the insurance industry decided, with justification, that they could no longer insure for the risk of terrorism. Prior to September 11 we got coverage for terrorism essentially at no cost. But after September 11, again, for good reason, for good cause, insurers, without knowing what their exposure was going to be should there be another attack, decided they could no longer insure for that risk. So, in this sense, it logically fell to the Federal Government to provide that assurance that no matter where one is—whether in Idaho or Nebraska or Connecticut or New Jersey—if a person is building a project and they were the subject of terrorism, they would get a backstop of protection for those losses.

Some said at the time: Why don't we treat insurance, when it comes to protecting for terrorism, the same as we protect against other disasters? Of course, we see these threats as fundamentally different. We can make a decision as to whether we want to live in a part of the country that may be subject to greater risk from floods or hurricanes. So we have grown to accept the fact that we are going to pay a little bit more if we are going to have a house or a business right on the water. And we have a program here by which we mitigate that risk so that it is not extraordinarily different, understanding there is still good reason why people have to congregate in those spaces. But a terrorist attack, frankly, whether it happens in New York City right on the precipice of Connecticut, or in Los Angeles or in a rural environment in the Midwest, is an attack on the United States of America. That is an attack on all of us, no matter what specific geography in which it happens to be located. So that is why we made the decision as a Nation to help backstop those localities that may feel the initial burden of having to reconstruct after a terrorism attack, because we believe it is a national responsibility.

So for the practical reason that there was no longer an ability for the insurance industry to calculate how on Earth they would assess a premium based on the enormous potential loss of a terrorist event, and because of the fact that as Americans we felt as though we should come together and insure against this risk, we passed TRIA initially. Over time we have come together as Republicans and Democrats to reauthorize it.

Now, as time has gone on, we have had a conversation about how to best share this responsibility between the public sector and the private sector, because we expect that private insurers still should, as is their business, pick up some of this cost. So this version of the bill continues along the line of transferring some of this responsibility from the Federal Government and the Federal taxpayers to private insurers. For instance, the underlying legislation continues to have a 20-percent deductible. But after that 20-percent deductible is met, under the previous version of the bill the insurer was responsible for picking up 15 percent of the cost. Under this bill they are going to pick up 20 percent of the cost. So there is a little bit more responsibility built in for the cost of paying out claims after a terrorist attack is picked up by insurers.

There is a provision in the bill which says the Federal Treasury will recoup the costs from insurers of any claims it pays out. It can do that over a long period of time. Previously, it was mandatory to recoup all of that money for claims under $27 billion. Now that number is $37 billion. So we now have a mandatory return to the Treasury of any claims under $37 billion, which is an additional protection for taxpayers as well as an additional responsibility for insurers now because we will collect from the insurers for losses up to a higher amount than the previous law. I think all of this is pretty reasonable.

I wish there were more days such as this and weeks such as this—although maybe TRIA isn't infused with the same kind of politics that other issues such as immigration reform and energy reform and criminal justice reform can be—but this was made possible by some really hard work by a number of people who knew this was right to do for the country. Speaking as a Senator from a State that has a big stake in the reauthorization of TRIA, I say thank you to all of the people who made this possible and give an advanced shout-out to the House of Representatives which we hope will pass this bipartisan bill in an expeditious manner. Connecticut cares about this because we were, as I said, on the edge of the attack of September 11. We lost dozens and dozens of Connecticut residents in that attack. Our economy was effectively shut down because of the inability to assess this risk throughout the real estate sector surrounding New York City. But we also are home to some of the biggest and, frankly, most responsible property and casualty insurers. The Hartford and Travelers, in particular, have been a big part of trying to figure out a public-private partnership to solve this problem, and this certainly helps them to be able to provide more of a very important product to the rest of the country.

So, again, my thanks to all of those who made this piece of legislation possible. My hope is we get a big vote later today across the aisle, sending a message to the House of Representatives

that they can take this bipartisan piece of legislation, pass it, and then get it to the President's desk. Then we can, once again, give some sense of surety to our insurance markets and our real estate market that the United States of America is, once again, going to step up and decide that terrorism, no matter where it happens—whether it is in New York City or in Topeka—is not going to get this country back.

I yield the floor, and I note the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll. The assistant legislative clerk proceeded to call the roll.

Mr. VITTER. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

AMENDMENT NO. 3550

Mr. VITTER. Mr. President, I ask unanimous consent to temporarily set aside the pending amendment so that I may call up my amendment No. 3550, which is at the desk.

The PRESIDING OFFICER. Without objection, it is so ordered.

The clerk will report.

The assistant legislative clerk read as follows:

The Senator from Louisiana [Mr. VITTER] proposes an amendment numbered 3550.

Mr. VITTER. Mr. President, I ask unanimous consent that reading of the amendment be dispensed with.

The PRESIDING OFFICER. Without objection, it is so ordered.

The amendment is as follows:

(Purpose: To reaffirm the importance of community banking and community banking regulatory experience on the Federal Reserve Board of Governors, to ensure the Federal Reserve Board of Governors has a member who has previous experience in community banking or community banking supervision)

On page 13, after line 22, add the following:

SEC. 8. MEMBERSHIP OF BOARD OF GOVERNORS OF THE FEDERAL RESERVE SYSTEM.

(a) IN GENERAL.—The first undesignated paragraph of section 10 of the Federal Reserve Act (12 U.S.C. 241) is amended by inserting after the second sentence the following: ''In selecting members of the Board, the President shall appoint at least 1 member with demonstrated primary experience working in or supervising community banks having less than $10,000,000,000 in total assets.''.

(b) EFFECTIVE DATE.—The amendment made by this section shall take effect on the date of enactment of this Act and apply to appointments made on and after that effective date, excluding any nomination pending in the Senate on that date.

Mr. VITTER. Mr. President, I rise to talk about this amendment which I look forward to being adopted on this important terrorism risk insurance reauthorization bill. It is a commonsense amendment. It is about the Federal Reserve Board, and it says at least one member of that important Board should have significant experience as a community banker or a community bank supervisor.

This used to be commonplace because community banks—smaller institutions—were and are an important part of our financial system. In fact, these days it is one part of our financial system that sets us apart from many others, such as Canada and Europe, which are far more dominated by mega-institutions. Of course, the United States has some very big institutions, and they serve an important role and they have an important place, but smaller institutions, so-called community banks, serve a vital role as well and particularly in smaller communities and in more rural areas they serve those communities in a way megabanks simply do not.

I have been looking at this trend on the Federal Reserve, and unfortunately there is an unmistakable trend away from having adequate representation from folks with community bank experience; that same trend has been toward having the Federal Reserve Board completely dominated by academics and folks with megabank and academic economist experience.

This chart I have in the Chamber shows that trend. From 1936 until the present, it goes decade by decade. The chart is a little busy, and we have this color coding here, but basically we can see this huge growth in the domination of this red category: folks with pure academic economic experience. Folks with community bank experience, which used to actually dominate the Federal Reserve Board several decades ago, are now very limited.

Look, there is nothing wrong with folks with academic experience, but it should not be so dominant on the Federal Reserve and we should have regular representation from community banks or community bank supervisors because that is a vital part of our banking system.

My amendment is therefore very simple. It would mandate that at least one member of the Federal Reserve Board have that experience, have direct community bank experience or have direct experience as a community bank supervisor. Specifically, we are talking about institutions with less than $10 billion in total assets.

This bill follows a letter several of my colleagues joined me in sending to President Obama. We were asking him to nominate an individual with that sort of experience, and I thank the cosigners on that letter: Senators TESTER, MORAN, MERKLEY, COBURN, and JOHANNS on the committee; and noncommittee Members Senators HIRONO, KING, FRANKEN, BALDWIN, BEGICH, LANDRIEU, HEINRICH, and UDALL.

We seem to be making progress in that regard. There is widespread reporting that the White House is considering a list of candidates for the Federal Reserve with community banking experience. But this specific mandate—just one member, a very modest mandate—would help ensure that happens and would help ensure that regularly happens into the future to reverse this trend, to get more balance on the Federal Reserve Board.

This is very important in the context of the too-big-to-fail debate. Too big to fail helped lead to the crisis several years ago in the banking industry. It helped lead to the massive bailouts of mega-institutions, and unfortunately I am one who believes—and there are many others—that too big to fail is alive and well today, and in some ways Dodd-Frank institutionalized too big to fail. It did not end too big to fail in any way.

We need to do a number of things to even the playing field, to make it fairer for smaller institutions, community banks that serve our smaller communities in rural areas, particularly on the Federal Reserve Board, which is such a significant governing and supervisory board in our banking industry.

I specifically thank the ranking member of the committee, Senator CRAPO, for his support of this concept, his support in negotiations of this amendment, and his very active involvement in getting this amendment accepted on to the TRIA bill.

I think the ranking member may have a few words about this and other matters. I will relinquish the floor.

The PRESIDING OFFICER. The Senator from Idaho.

Mr. CRAPO. Mr. President, I will just take a moment to speak about Senator VITTER's amendment, which I strongly support.

During Dr. Yellen's nomination hearing, I noted the need to fill additional vacancies at the Federal Reserve Board with individuals bringing balanced viewpoints. The President should nominate someone with community bank experience to the Board to fill at least one of the remaining vacancies.

Community banks play an important role in their local economies and face a disproportionate burden from our existing regulations. We should ensure that the perspective of these banks is represented in policymaking. That is what this amendment does, and I encourage my colleagues to support it.

The PRESIDING OFFICER. The Senator from Louisiana.

Mr. VITTER. Mr. President, just one final wrapup issue. I ask unanimous consent to have printed in the RECORD a letter of support for this amendment from ICBA, the Independent Community Bankers of America.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

INDEPENDENT COMMUNITY BANKERS OF AMERICA,
Washington, DC, July 17, 2014.

U.S. SENATE,
Washington, DC.

DEAR SENATOR: On behalf of the Independent Community Bankers of America and the more than 6,500 community banks nationwide, I write to urge you to vote YES on Amendment 3550, offered by Senator David Vitter, to the Terrorism Risk Insurance Program Reauthorization Act of 2014 (S. 2244). This amendment would ensure at least one member of the Board of Governors of the Federal Reserve (the Board) has experience as a community banker or as a supervisor of community banks. The Board not only plays

a key role in our economy by promoting employment and stable prices, but is also an important regulatory body for the U.S. and global financial system. A broad range of representation on the Board is critical to its effectiveness.

Community banks are vitally important to the nation's economy, particularly with respect to small business lending and providing banking services in small and rural communities. These banks and the communities they serve have vital interests at stake in the economic, banking, and payment system issues that come before the Board. The Board must consider how best to tier regulation to meet regulatory objectives without disproportionately impacting community banks. Expertise is also required to ensure that regulations intended for the largest banks do not unintentionally sweep in community banks. The unexpected compliance problems associated with the December 2013 Volcker Rule vividly illustrate this risk.

By requiring community bank representation on the Board, Senator Vitter's amendment will help secure the future of the community banking industry and the customers and communities that depend on it. Again, ICBA urges you to vote YES on this important amendment.

Thank you for your consideration.

Sincerely,

CAMDEN R. FINE,
President and CEO.

Mr. VITTER. Thank you, Mr. President.

The PRESIDING OFFICER. The Senator from Oklahoma.

AMENDMENT NO. 3549

Mr. COBURN. Mr. President, I ask unanimous consent that the pending amendment be set aside and my amendment No. 3549 be called up.

The PRESIDING OFFICER. Without objection, it is so ordered.

The clerk will report.

The assistant legislative clerk read as follows:

The Senator from Oklahoma [Mr. COBURN] proposes an amendment numbered 3549.

Mr. COBURN. Mr. President, I ask unanimous consent that reading of the amendment be dispensed with.

The PRESIDING OFFICER. Without objection, it is so ordered.

The amendment is as follows:

(Purpose: To allow the Secretary to extend the deadline for collecting terrorism loss risk-spreading premiums if the mandatory recoupment is morethan $1,000,000,000)

On page 4, line 21, strike ''(i)''.

On page 4, between lines 21 and 22, insert the following:

(i) in clause (i)—

On page 4, line 22, strike ''(i)'' and insert ''(I)'' and move such subclause 2 ems to the right.

On page 4, line 23, strike ''(I)'' and insert ''(aa)''and move such item 2 ems to the right.

On page 5, line 1, strike ''(II)'' and insert ''(bb)'' and move such item 2 ems to the right.

On page 5, line 3, strike ''(ii)'' and insert ''(II)'' and move such subclause 2 ems to the right.

On page 5, line 4, strike ''(I)'' and insert ''(aa)'' and move such item 2 ems to the right.

On page 5, line 6, strike ''(II)'' and insert ''(bb)'' and move such item 2 ems to the right.

On page 5, line 8, strike ''(III)'' and insert ''(cc)'' and move such item 2 ems to the right.

On page 5, line 10, strike ''(iii)'' and insert ''(III)'' and move such subclause 2 ems to the right.

On page 5, line 11, strike ''(I)'' and insert ''(aa)'' and move such item 2 ems to the right.

On page 5, line 13, strike ''(II)'' and insert ''(bb)'' and move such item 2 ems to the right.

On page 5, line 14, strike the period at the end and insert ''; and''.

On page 5, between lines 14 and 15, insert the following:

(ii) by adding at the end the following:

''(iii) DEADLINE EXTENSIONS.—

''(I) IN GENERAL.—If the mandatory recoupment amount under subparagraph (A) is more than $1,000,000,000 in any given calendar year, the Secretary may extend the applicable deadline for collecting terrorism loss risk-spreading premiums under clause (i) for a period not to exceed more than 10 years after the date on which such act of terrorism occurred.

''(II) DETERMINATION.—Any determination by the Secretary to grant an extension under subclause (I) shall be based on—

''(aa) the economic conditions in the commercial marketplace, including the capitalization, profitability, and investment returns of the insurance industry and the current cycle of the insurance markets;

''(bb) the affordability of commercial insurance for small- and medium-sized businesses; and

''(cc) such other factors as the Secretary considers appropriate.

''(III) REPORT.—If the Secretary grants an extension under subclause (I), the Secretary shall promptly submit to Congress a report—

''(aa) justifying the reason for such extension; and

''(bb) detailing a plan for the collection of the required terrorism loss risk-spreading premiums.''.

Mr. COBURN. Mr. President, we have before us a bill where unfortunately we do not believe in markets. We are told markets will not work, so we have a terrorism risk insurance bill. That means the Federal Government is going to be the insurer of last resort. There have been some improvements over what we have put forward in the past, and I agree with those improvements if in fact we have to do this. I am not convinced we have to do it, but we are going to do it, and I understand that. I think the work of the committee, of which I am a member, has been very good.

But there is one real problem with this bill, and it is about smoke and mirrors, it is about not being honest with the American people. This bill was designed so it would have no score. It was not designed to do the best we can for America should we have a tragedy, and it was not designed to create the flexibility that would be necessary if we do have a tragedy.

Let me outline this for you. The way this bill is set up is that we could have a significant tragedy, God forbid, in this country from a terrorist attack, and the bill will mandate spikes in casualty and property insurance far above what will need to happen because we passed the bill to pass a CBO score. So what could happen is we would have to collect billions of dollars over an 18-month period through premium increases on everybody in the country, not just where we had the problem—everybody in the country—because we have designed a bill that will in fact mandate that or at least could mandate that.

I have been around this place for 10 years. I know exactly what is going to happen if that comes about through this TRIA bill. The first thing that will happen is the Senate and the House will pass an elimination of this requirement. So what will happen is the American taxpayer will get stuck with all this. They all know that. Everybody agrees they designed the bill to meet CBO. So what I put in was an amendment that would give flexibility to the Treasury so we do not, after one tragedy, create another tragedy with markedly elevated casualty and property rates. We still recoup the money, but we do it over a longer period of time, if it is necessary, and we give the Secretary of the Treasury the ability to do that.

My friend from New York says there is a budget point of order that lies against it. It does according to CBO. I agree, it does. But the difference between this and most budget points of order is my amendment will not increase the deficit one penny—not one penny.

I would also note that my colleague from New York has voted to override budget points of order every time they have been offered this year. So it is going to be curious to me to all of a sudden have a budget point of order raised by someone who has voted to override the budget point of order every time it has been offered in the Senate this session, and it goes to why we should not pass this bill without common sense in terms of how we collect the recoupment.

I understand the constraints of CBO, but I also understand common sense. So we are going to play the game on the constraints, and we are ultimately going to pass on—rather than recoup—we are ultimately going to pass it on to the American taxpayer, which hollows out the whole purpose of the bill.

So this has a billion-dollar score, on which we are going to have a point of order, which I am sure I will lose. But when you vote for this bill, know you are not voting for what the bill says it is going to do because it is going to do something completely different than what it says, if we were to have one of these catastrophies.

The political pressure to not have these massive increases in property and casualty insurance—this place will fall, and so will the House, and we will change this, and we will have the score then. We will have the score then, and ultimately your children will pay for the cost of this terrorism risk insurance, not the people who are owning the property today, not the insurance company. We will just kick the can down the road, just as we have on everything else.

It would seem to me that we would want to do something that works along

the parameters of this bill, and we ought to build in flexibility to this bill so that—it may be 10 years that we get on one of these because the bill is divided up to meet the score so it does not score in any one period. So over an 18-month period we could have to recoup it all and people could not tolerate those kinds of rate increases in their businesses or their homes. They would not be able to tolerate it and we would change it. Just as I am asking for us to change it now and be honest with the American people, we are going to change it if that happens.

We will change this, and we will delay the onset of the collection of this recoupment. Everybody knows that will happen. So why not be honest about it and put it in the bill now and waive the budget point of order because it does not change the deficit one penny. It changes when we collect it, but we still collect it against the risk of not collecting it at all.

That is what I ask my colleagues. I do not expect to win the amendment, but it is another confirmation to the American people that we are not about truth, we are not about doing commonsense things; we are about playing games and we are about satisfying the demands of the industry over which this applies.

Nobody knows what could happen in this country in terms of terrorism, but everybody knows I am right about this issue.

All I am saying is: Fess up. Be honest, colleagues. Let's build the flexibility in this so we do not have to address it, and the Treasury Secretary, no matter whether it is a Democrat or Republican administration, can use common sense to guide about how fast this recoupment will come; otherwise, you have not done anything to improve this bill if, in fact, this is not accepted.

I will be leaving here at the end of the year. Hopefully, we never see another terrorism event in this country. But if we do, it will be a sweet irony when you all say: Oops, time out. We are not going to do what we said we were going to do in that bill because the country cannot take it. What you will do is put one tragic event on top of another. You will not do that. So what will happen? You will change this bill. You will get that score. You will call it an emergency. You will do it anyway.

All I am asking is, be honest about what is going to ultimately happen on this should we have an event and it fall within one of these close parameters, based on what we said in the bill, because we are running the bill according to what CBO says, not as to what common sense is.

I look forward to having a vote on this amendment. I understand my likelihood of being successful. But I also understand the lack of honesty in dealing with the American people if we do not accept this amendment.

I yield the floor.

TERRORIST ATTACKS

Mr. REED. Mr. President, I join with my colleagues to speak about S. 2244, the Terrorism Risk Insurance Program Reauthorization Act of 2014, TRIA, which I have cosponsored.

First, I commend Banking Committee Chairman JOHNSON and Ranking Member CRAPO for their leadership on this important issue. Their efforts, along with those of the sponsors and cosponsors of the bill, led to a unanimous committee vote of 22 to 0 to report the legislation favorably to the full Senate. It is heartening to see legislation like this come together on such a strong bipartisan basis.

Reauthorizing TRIA is vital and not just from a Banking Committee perspective. I also have the privilege of serving on the Armed Services Committee. It is through this dual lens, and from what we know of the significant terrorist threats our Nation still faces, that compels me to believe that we need to reauthorize TRIA as soon as possible.

We must keep markets effectively and efficiently operating in light of these threats. We must continue to have policies in place to make sure our economy stays on track in the event of another attack on our Nation.

In short, reauthorizing TRIA is not only a matter of economic security; it is also a matter of national security. And so, I again thank the chairman for his leadership on this vital issue.

Mr. JOHNSON of South Dakota. I thank Senator REED for his valuable contributions to the work of the Banking Committee. I also thank him for working with me on this matter and for his continued efforts to bolster our national security.

Mr. REED. I thank the chairman. I would like to clarify one point. While TRIA is silent on whether a nuclear, chemical, biological, or radiological related terrorist attack or any kind of cyber-related attack are covered, I believe our intent with S. 2244 is that these attacks would continue to fall within the scope of TRIA's covered lines, as they do today, provided that statutory prerequisites are met. Does the chairman agree with this assessment?

Mr. JOHNSON of South Dakota. Yes. The Committee makes this point clear in the Committee Report for S. 2244, and I thank the Senator again for his work on this issue.

Mr. REED. I thank the chairman again, and I look forward to swift passage of this legislation here in the Senate, and hopefully in the House as well.

Mr. NELSON. Mr. President, today I commend my colleagues for a strong bipartisan vote in favor of S. 2244, the Terrorism Risk Insurance Program Reauthorization Act.

After the attacks of September 11, 2001, the Terrorism Risk Insurance Act, or TRIA, helped stabilize the commercial property market. This has allowed for continued commercial property development and real estate lending for office buildings, hotels, malls, and tourist attractions across the United States. In Florida, TRIA has been particularly important for continued development in the tourism sector—which is a critical part of the economy.

The passage of S. 2244 today illustrates the widespread, continued support for TRIA and the need for a backstop to guarantee sufficient capacity for businesses to insure against catastrophic terrorist events, including coverage for events involving a nuclear, biological, chemical or radiological element. At the same time, S. 2244 also ensures that taxpayers are a top priority and includes a recoupment mechanism to guarantee that taxpayers are made whole if the backstop is triggered.

I now hope that the House of Representatives will take quick action on S. 2244 so that the President can sign this legislation and assure continued stability in the commercial property and insurance market.

The PRESIDING OFFICER. The Senator from South Dakota.

Mr. JOHNSON of South Dakota. Mr. President, I rise today to support S. 2244, the Terrorism Risk Insurance Program Reauthorization Act. Congress first enacted TRIA into law in 2002 after the commercial property sector saw major disruptions in the ability to obtain financing and terrorism risk insurance following the September 11 terrorist attacks.

TRIA stabilized the markets and provided a government backstop to these unique markets, allowing commercial property development and real estate lending to continue for everything from hotels, stadiums, malls, to tourist attractions across the country. Experts and stakeholders testified at several banking committee hearings that there remains a clear and longstanding need for the kind of government backstop TRIA provides.

We also learned the private insurance market for terrorism risk exists because of TRIA, not in spite of it.

The long-term 7-year extension this bipartisan bill provides will promote national security, economic growth, and market certainty. While many Members in this Chamber would be fine with extending TRIA in its current form, this tough compromise has two additional changes that will further protect taxpayers: gradually raising both the insurer copayment from 15 percent to 20 percent, and the mandatory recoupment threshold from $27.5 billion to $37.5 billion.

We were careful, however, in reaching this compromise not to raise the trigger, which would drive small insurers out of the market and reduce the availability and affordability of coverage for businesses nationwide. This bipartisan bill also does not pick what modes of terrorist attacks should get preferential treatment over other forms of attacks.

The entire Senate banking committee voted to report the bill to the floor by a unanimous and bipartisan 22-to-0 vote. Stakeholders across the board strongly support the Senate's bipartisan approach to extending TRIA,

including the U.S. Chamber of Commerce, the American Hotel and Lodging Association, the National Association of Mutual Insurance Companies, and the Real Estate Roundtable, to name just a few.

Let me commend Senators SCHUMER, CRAPO, KIRK, REED, HELLER, and others from both sides of the aisle for their leadership on this issue. I thank them as well as their staffs for working with Ranking Member CRAPO and me and our staffs to craft this bipartisan compromise to extend TRIA for another 7 years. We would not be here today without all of their efforts.

TRIA must be renewed soon, given the program expires at the end of the year, and policyholders have increasingly reported challenges in renewing contracts for 2015. To that end, I urge my colleagues to support S. 2244.

I yield the floor and I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mr. HELLER. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. HELLER. Mr. President, I rise to speak on S. 2244, the Terrorism Risk Insurance Program Reauthorization Act. This is a bill I have worked on closely with my colleagues Senators SCHUMER, KIRK, and REED from Rhode Island. I also want to thank Chairman JOHNSON and Ranking Member CRAPO, who have been instrumental in getting this bill to this point. Without their leadership, we would not be here today.

The terrorist attacks on September 11 caused a sudden and dramatic shock in the domestic market for terrorism insurance. After the attack there was a tremendous amount of uncertainty about the frequency and potential size of future attacks. Insurers quickly withdrew from the terrorist coverage market, and a new threat to our economy emerged.

In response, Congress passed TRIA, to provide a Federal insurance backstop for terrorism coverage. Since the passage in 2002, TRIA has helped ensure the widespread availability of affordable insurance against terrorism. This helped spur new development and protected existing real estate throughout our country.

TRIA was reauthorized in 2005 and reauthorized again in 2007. It is currently set to expire at the end of this year unless Congress acts. Unfortunately, the tragic bombing in Boston last year has shown that even years after September 11, the threat of terrorism still exists and we must continue our efforts to prevent, respond, and recover from any possible attacks in the future.

I wish to remind my colleagues that terrorism is not only an issue for big cities in New Jersey, on the east coast, in the Midwest, Chicago, terrorism is a real threat in both rural and urban areas, north, south, east, and west. That is why I have been so involved in trying to get TRIA extended.

In my home State, Las Vegas is considered one of the leading international business and tourism destination cities in the world. Southern Nevada welcomes almost 40 million tourists annually and has a population of nearly 2 million people. We have 35 major hotels along the Las Vegas strip. Many of them could have up to 15,000 occupants at any given time. According to the Las Vegas Metro Chamber of Commerce, in 2013, the total economic impact of tourism was $45.2 billion, supporting 47 percent of the region's gross product, and 383,000 jobs, nearly half of the total workforce in southern Nevada.

My point in citing these statistics is if a terrorist attack were to occur in Las Vegas, our entire State economy would be devastated without TRIA.

It is not just about Las Vegas. In northern Nevada, our tourism and gaming industry is the largest private employer in Washoe County, which also includes Reno. They know that unless they have access to affordable terrorism coverage, they will have difficulty starting new capital projects and creating new jobs.

You will find similar stories across our Nation in every State. Currently, there is no evidence that the terrorism risk insurance market is prepared to provide coverage without TRIA. Without TRIA, most developments would halt because businesses would not be able to access and afford the necessary insurance that is often required to secure a loan.

TRIA has helped many hotels, hospitals, office complexes, shopping centers, colleges, and universities have access to terrorism insurance coverage.

The bill before us today is truly a bipartisan bill. It received a unanimous 22-to-0 vote in the banking committee. Such a strong vote only reinforces the bipartisan work that went into crafting this legislation.

I, along with my colleagues on the Banking, Housing, and Urban Affairs Committee, agreed to several key reforms that would increase the insurance industry's aggregate retention level and coinsurance levels, which will significantly reduce the potential cost to taxpayers.

It is my hope that we can easily pass this important legislation with a strong bipartisan vote and send this bill to the House as soon as possible. I urge my colleagues to support this bill, and let's not wait until the end of the year to extend this critical program.

With that, I yield the floor, and I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mr. CRAPO. I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. CRAPO. Mr. President, as we near the votes on this bill, I wish to take one more opportunity to speak in favor of the TRIA reauthorization legislation.

Again, I thank Senators SCHUMER, HELLER, and KIRK and their staffs and Senator REED for all their hard work in bringing forward this legislation.

I also thank Chairman JOHNSON and his staff for moving forward so quickly and aggressively on this legislation. Together, we were able to put together a bill that allows the program to continue to function while increasing the movement toward ultimate taxpayer protection.

As I mentioned before, we were able to approve this bill out of committee with a 22-to-0 unanimous vote. The agreement of all the members of the banking committee that we should move this bill forward speaks to the importance of this critical legislation and to the level of the added taxpayer protections we were able to build into it.

Our bill increases the level of losses that the private sector will absorb before reaching the Federal backstop. We do that by increasing the coinsurance level of any company participating in TRIA so that each company will shoulder a greater percentage of the losses. We also increase by $10 billion the level of mandatory post-event recoupments to $37.5 billion, which means that the taxpayer will ultimately recover all TRIA losses except in the most extreme events.

This bill will continue a program that reduces our economic vulnerability to terrorism, and I encourage my colleagues to support it.

One last time, I thank Senator JOHNSON and Senator SCHUMER for their strong support and for our ability to work together and break the mold, if you will, by having a bipartisan movement forward on this important and critical legislation.

With that, I yield the floor.

The PRESIDING OFFICER. The Senator from New York.

Mr. SCHUMER. Once again I thank the chair and the ranking member of the banking committee, TIM JOHNSON and MIKE CRAPO, for their great work.

I say to my colleagues, this is a very good example of much cooperation—bipartisan cooperation, Democrat and Republican—a 22-to-0 unanimous vote out of the committee. It is also cooperation between private industry and the government. Industry, insurance, and others knew they had to shoulder a greater share of the load as we move on after 9/11 but that only government could be the backstop at the end of the day.

Again, this is an economic development issue above anything else. It is not out of whose pocket what money comes. If the greatest problem America faces is good-paying jobs—well, if we were not to renew terrorism insurance, we would lose many good-paying jobs.

This amendment will allow those jobs to continue and grow. People will

not build major edifices, major complexes—whether they be skyscrapers in Chicago or New York, whether they be football stadiums in Idaho or South Carolina or major shopping centers in South Dakota—unless they know there is a backstop, because insurers will not insure if they think terrorism could just totally wipe them out. And that means we wouldn't get financing for these projects.

It is an outstanding piece of legislation. My hope, in conclusion, is that the House would pass our bill. We know there are some concerns in the House, but there is a bipartisan coalition of Democrats and Republicans who really favor the approach we have taken. I know there are some in the House who don't believe government should be involved here, but that is, with all due respect, a purist view.

We have cut back on some of the government's obligations. MIKE CRAPO and many of our colleagues from the other side of the aisle made that happen. But at the same time, without the government backstop, we would do real harm to our economy.

I hope we can get a very large vote in the Senate—bipartisan—because if we do, it should importune the House to perhaps pass our legislation.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mr. SCHUMER. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. SCHUMER. Mr. President, I wish to make a couple points on the Coburn amendment, and then I will raise a point of order.

The current bill, S. 2244, is budget neutral, as the past TRIA bills have been. On the other hand, CBO has said Senator COBURN's amendment is not fully paid for, violating the Senate's PAYGO rule.

Basically, the amendment—even though I know the sponsor does not intend it that way—is a killer amendment. CBO has said the amendment would cause S. 2244 to increase the Federal deficit in both the 5-year and 10-year budget windows.

Senator COBURN offered this amendment in committee. It was roundly defeated by a bipartisan vote of 16 to 6 against it.

I appreciate Senator COBURN's effort to provide more flexibility to the timeframe for recoupment by the government in case of a terrorist attack, but in fact the banking committee, led by Senator JOHNSON, and my office have worked with CBO for a number of months to determine whether there could be more flexibility in the recoupment process. Unfortunately, CBO has yet to identify a way to provide more flexibility in the recoupment period while still ensuring the program remains budget neutral as it is now.

It is also important to note that if recoupment by the government poses any unforeseen challenge after a future attack, nothing would stop the Treasury Secretary from asking the Congress then to provide that flexibility.

The bottom line is that TRIA is too important to allow this amendment and nonreauthorization of the program because it is not budget neutral. We don't want to give anybody an excuse.

I am hopeful Senator COBURN will support TRIA's final passage, even if his amendment isn't agreed to, as he did in committee. But for those of us whose priority is to reauthorize this program, I urge my colleagues to vote to sustain the budget point of order and oppose the amendment.

Mr. President, I raise a point of order that the pending amendment violates section 201 of S. Con. Res. 21, the concurrent resolution on the budget for the fiscal year 2008.

The PRESIDING OFFICER. The Senator from Iowa.

Mr. CRAPO. Mr. President, pursuant to section 904 of the Congressional Budget Act of 1974 and the waiver provisions of applicable budget resolutions, I move to waive all applicable sections of that act and applicable budget resolutions for purposes of the pending amendment, and I ask for the yeas and nays.

The PRESIDING OFFICER (Mr. KING). Is there a sufficient second?

There appears to be a sufficient second.

All debate time is expired.

The question is on agreeing to the motion.

The clerk will call the roll.

The bill clerk called the roll.

Mr. DURBIN. I announce that the Senator from Delaware (Mr. COONS) and the Senator from Hawaii (Mr. SCHATZ) are necessarily absent.

Mr. CORNYN. The following Senator is necessarily absent: the Senator from Tennessee (Mr. ALEXANDER).

Further, if present and voting, the Senator from Tennessee (Mr. ALEXANDER) would have voted ''yea.''

The PRESIDING OFFICER. Are there any other Senators in the Chamber desiring to vote?

The yeas and nays resulted—yeas 48, nays 49, as follows:

[Rollcall Vote No. 229 Leg.]

YEAS—48

Ayotte	Flake	Murkowski
Barrasso	Graham	Paul
Blunt	Grassley	Portman
Boozman	Hatch	Risch
Burr	Heller	Roberts
Chambliss	Hoeven	Rubio
Coats	Inhofe	Scott
Coburn	Isakson	Sessions
Cochran	Johanns	Shaheen
Collins	Johnson (WI)	Shelby
Corker	Kirk	Thune
Cornyn	Lee	Toomey
Crapo	Manchin	Udall (CO)
Cruz	McCain	Vitter
Enzi	McConnell	Warner
Fischer	Moran	Wicker

NAYS—49

Baldwin	Bennet	Booker
Begich	Blumenthal	Boxer
Brown	Johnson (SD)	Pryor
Cantwell	Kaine	Reed
Cardin	King	Reid
Carper	Klobuchar	Rockefeller
Casey	Landrieu	Sanders
Donnelly	Leahy	Schumer
Durbin	Levin	Stabenow
Feinstein	Markey	Tester
Franken	McCaskill	Udall (NM)
Gillibrand	Menendez	Walsh
Hagan	Merkley	Warren
Harkin	Mikulski	Whitehouse
Heinrich	Murphy	Wyden
Heitkamp	Murray	
Hirono	Nelson	

NOT VOTING—3

Alexander	Coons	Schatz

The PRESIDING OFFICER. On this vote, the yeas are 48 and the nays are 49. Three-fifths of the Senators duly chosen and sworn not having voted in the affirmative, the motion is rejected and the amendment falls.

CHANGE OF VOTE

Mr. WARNER. Mr. President, on rollcall vote No. 229, I was present and voted aye. The official record has me listed as absent. Therefore, I ask unanimous consent that the official record be corrected to accurately reflect my vote. This will in no way change the outcome of the vote.

The PRESIDING OFFICER. Without objection, it is so ordered.

(The foregoing tally has been changed to reflect the above order.)

VOTE ON AMENDMENT NO. 3550

The PRESIDING OFFICER. Under the previous order, there will be 2 minutes of debate prior to a vote in relation to Vitter amendment No. 3550.

Mr. SCHUMER. Mr. President, I yield back all time.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. SCHUMER. I ask for a voice vote.

The PRESIDING OFFICER. The question is on agreeing to the amendment.

The amendment (No. 3550) was agreed to.

The PRESIDING OFFICER. Under the previous order, there will be 2 minutes of debate prior to a vote in relation to Flake amendment No. 3551.

The PRESIDING OFFICER. The Senator from New York.

Mr. SCHUMER. This is a good amendment and will be supported by Chairman JOHNSON and myself.

I yield back all time.

Mr. MCCAIN. Mr. President, I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The question is on agreeing to the amendment.

The clerk will call the roll.

The assistant bill clerk called the roll.

Mr. DURBIN. I announce that the Senator from Delaware (Mr. COONS) and the Senator from Hawaii (Mr. SCHATZ) are necessarily absent.

Mr. CORNYN. The following Senator is necessarily absent: the Senator from Tennessee (Mr. ALEXANDER).

Further, if present and voting, the Senator from Tennessee (Mr. ALEXANDER) would have voted ''yea.''

The PRESIDING OFFICER. Are there any other Senators in the Chamber desiring to vote?

The result was announced—yeas 97, nays 0, as follows:

[Rollcall Vote No. 230 Leg.]

YEAS—97

Ayotte	Graham	Murphy
Baldwin	Grassley	Murray
Barrasso	Hagan	Nelson
Begich	Harkin	Paul
Bennet	Hatch	Portman
Blumenthal	Heinrich	Pryor
Blunt	Heitkamp	Reed
Booker	Heller	Reid
Boozman	Hirono	Risch
Boxer	Hoeven	Roberts
Brown	Inhofe	Rockefeller
Burr	Isakson	Rubio
Cantwell	Johanns	Sanders
Cardin	Johnson (SD)	Schumer
Carper	Johnson (WI)	Scott
Casey	Kaine	Sessions
Chambliss	King	Shaheen
Coats	Kirk	Shelby
Coburn	Klobuchar	Stabenow
Cochran	Landrieu	Tester
Collins	Leahy	Thune
Corker	Lee	Toomey
Cornyn	Levin	Udall (CO)
Crapo	Manchin	Udall (NM)
Cruz	Markey	Vitter
Donnelly	McCain	Walsh
Durbin	McCaskill	Warner
Enzi	McConnell	Warren
Feinstein	Menendez	Whitehouse
Fischer	Merkley	Wicker
Flake	Mikulski	Wyden
Franken	Moran	
Gillibrand	Murkowski	

NOT VOTING—3

Alexander	Coons	Schatz

The amendment (No. 3551) was agreed to.

VOTE ON AMENDMENT NO. 3552

The PRESIDING OFFICER. Under the previous order, there will be 2 minutes of debate prior to a vote in relation to the Tester amendment No. 3552.

The Senator from New York.

Mr. SCHUMER. I yield back all time.

The PRESIDING OFFICER. All time is yielded back.

The question is on agreeing to Tester amendment No. 3552.

The amendment was agreed to.

The bill was ordered to be engrossed for a third reading and was read the third time.

The PRESIDING OFFICER. Under the previous order, there will be 2 minutes of debate equally divided prior to a vote on the passage of the bill.

Mr. SCHUMER. Mr. President, I yield back all time and ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

Thre is a sufficient second.

The bill having been read the third time, the question is, Shall it pass?

The clerk will call the roll.

The legislative clerk called the roll.

The PRESIDING OFFICER (Ms. HIRONO). Are there any other Senators in the Chamber desiring to vote?

Mr. DURBIN. I announce that the Senator from Delaware (Mr. COONS) and the Senator from Hawaii (Mr. SCHATZ) are necessarily absent.

Mr. CORNYN. The following Senator is necessarily absent: the Senator from Tennessee (Mr. ALEXANDER).

Further, if present and voting, the Senator from Tennessee (Mr. ALEXANDER) would have voted ''yea.''

The result was announced—yeas 93, nays 4, as follows:

[Rollcall Vote No. 231 Leg.]

YEAS—93

Ayotte	Gillibrand	Mikulski
Baldwin	Graham	Moran
Barrasso	Grassley	Murkowski
Begich	Hagan	Murphy
Bennet	Harkin	Murray
Blumenthal	Hatch	Nelson
Blunt	Heinrich	Paul
Booker	Heitkamp	Portman
Boozman	Heller	Pryor
Boxer	Hirono	Reed
Brown	Hoeven	Reid
Burr	Inhofe	Risch
Cantwell	Isakson	Rockefeller
Cardin	Johanns	Sanders
Carper	Johnson (SD)	Schumer
Casey	Johnson (WI)	Scott
Chambliss	Kaine	Shaheen
Coats	King	Shelby
Cochran	Kirk	Stabenow
Collins	Klobuchar	Tester
Corker	Landrieu	Thune
Cornyn	Leahy	Toomey
Crapo	Lee	Udall (CO)
Cruz	Levin	Udall (NM)
Donnelly	Manchin	Vitter
Durbin	Markey	Walsh
Enzi	McCain	Warner
Feinstein	McCaskill	Warren
Fischer	McConnell	Whitehouse
Flake	Menendez	Wicker
Franken	Merkley	Wyden

NAYS—4

Coburn	Rubio	
Roberts	Sessions	

NOT VOTING—3

Alexander	Coons	Schatz

The bill (S. 2244), as amended, was passed, as follows:

S. 2244

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Terrorism Risk Insurance Program Reauthorization Act of 2014''.

SEC. 2. EXTENSION OF TERRORISM INSURANCE PROGRAM.

Section 108(a) of the Terrorism Risk Insurance Act of 2002 (15 U.S.C. 6701 note) is amended by striking ''December 31, 2014'' and inserting ''December 31, 2021''.

SEC. 3. FEDERAL SHARE.

Section 103(e)(1)(A) of the Terrorism Risk Insurance Act of 2002 (15 U.S.C. 6701 note) is amended by inserting ''and beginning on January 1, 2016, shall decrease by 1 percentage point per calendar year until equal to 80 percent'' after ''85 percent''.

SEC. 4. RECOUPMENT OF FEDERAL SHARE OF COMPENSATION UNDER THE PROGRAM.

Section 103(e) of the Terrorism Risk Insurance Act of 2002 (15 U.S.C. 6701 note) is amended—

(1) in paragraph (6), in the matter preceding subparagraph (A), by striking ''shall be'' and all that follows through subparagraph (E) and inserting ''shall be the lesser of—

''(A) $27,500,000,000, as such amount is adjusted pursuant to this paragraph; and

''(B) the aggregate amount, for all insurers, of insured losses during such calendar year,

provided that beginning in the calendar year that follows the date of enactment of the Terrorism Risk Insurance Program Reauthorization Act of 2014, the amount set forth under subparagraph (A) shall increase by $2,000,000,000 per calendar year until equal to $37,500,000,000.'';

(2) in paragraph (7)—

(A) in subparagraph (A)—

(i) in the matter preceding clause (i), by striking ''for each of the periods referred to in subparagraphs (A) through (E) of paragraph (6)''; and

(ii) in clause (i), by striking ''for such period'';

(B) by striking subparagraph (B) and inserting the following:

''(B) [Reserved.]'';

(C) in subparagraph (C)—

(i) by striking ''occurring during any of the periods referred to in any of subparagraphs (A) through (E) of paragraph (6), terrorism loss risk-spreading premiums in an amount equal to 133 percent'' and inserting '', terrorism loss risk-spreading premiums in an amount equal to 135.5 percent''; and

(ii) by inserting ''as calculated under subparagraph (A)'' after ''mandatory recoupment amount''; and

(D) in subparagraph (E)(i)—

(i) in subclause (I)—

(I) by striking ''2010'' and inserting ''2017''; and

(II) by striking ''2012'' and inserting ''2019'';

(ii) in subclause (II)—

(I) by striking ''2011'' and inserting ''2018'';

(II) by striking ''2012'' and inserting ''2019''; and

(III) by striking ''2017'' and inserting ''2024''; and

(iii) in subclause (III)—

(I) by striking ''2012'' and inserting ''2019''; and

(II) by striking ''2017'' and inserting ''2024''.

SEC. 5. TECHNICAL AMENDMENTS.

The Terrorism Risk Insurance Act of 2002 (15 U.S.C. 6701 note) is amended—

(1) in section 102—

(A) in paragraph (3)—

(i) by redesignating subparagraphs (A), (B), and (C) as clauses (i), (ii), and (iii), respectively;

(ii) in the matter preceding clause (i) (as so redesignated), by striking ''An entity has'' and inserting the following:

''(A) IN GENERAL.—An entity has''; and

(iii) by adding at the end the following new subparagraph:

''(B) RULE OF CONSTRUCTION.—An entity, including any affiliate thereof, does not have 'control' over another entity, if, as of the date of enactment of the Terrorism Risk Insurance Program Reauthorization Act of 2014, the entity is acting as an attorney-in-fact, as defined by the Secretary, for the other entity and such other entity is a reciprocal insurer, provided that the entity is not, for reasons other than the attorney-in-fact relationship, defined as having 'control' under subparagraph (A).'';

(B) in paragraph (7)—

(i) by striking subparagraphs (A) through (F) and inserting the following:

''(A) the value of an insurer's direct earned premiums during the immediately preceding calendar year, multiplied by 20 percent; and'';

(ii) by redesignating subparagraph (G) as subparagraph (B); and

(iii) in subparagraph (B), as so redesignated by clause (ii)—

(I) by striking ''notwithstanding subparagraphs (A) through (F), for the Transition Period or any Program Year'' and inserting ''notwithstanding subparagraph (A), for any calendar year''; and

(II) by striking ''Period or Program Year'' and inserting ''calendar year'';

(C) by striking paragraph (11); and

(D) by redesignating paragraphs (12) through (16) as paragraphs (11) through (15), respectively; and

(2) in section 103—

(A) in subsection (c), by striking ''Program Year'' and inserting ''calendar year'';

(B) in subsection (e)—

(i) in paragraph (1)—

(I) in subparagraph (A), as previously amended by section 3—

(aa) by striking ''the Transition Period and each Program Year through Program Year 4 shall be equal to 90 percent, and during Program Year 5 and each Program Year thereafter'' and inserting ''each calendar year'';

(bb) by striking the comma after ''80 percent''; and

(cc) by striking ''such Transition Period or such Program Year'' and inserting ''such calendar year''; and

(II) in subparagraph (B), by striking ''exceed'' and all that follows through clause (ii) and inserting ''exceed $100,000,000 with respect to such insured losses occurring in the calendar year.'';

(ii) in paragraph (2)(A), by striking ''the period beginning on the first day of the Transition Period and ending on the last day of Program Year 1, or during any Program Year thereafter'' and inserting ''a calendar year''; and

(iii) in paragraph (3), by striking ''the period beginning on the first day of the Transition Period and ending on the last day of Program Year 1, or during any other Program Year'' and inserting ''any calendar year''; and

(C) in subsection (g)(2)—

(i) by striking ''the Transition Period or a Program Year'' each place that term appears and inserting ''the calendar year'';

(ii) by striking ''such period'' and inserting ''the calendar year''; and

(iii) by striking ''that period'' and inserting ''the calendar year''.

SEC. 6. IMPROVING THE CERTIFICATION PROCESS.

(a) DEFINITIONS.—As used in this section—

(1) the term ''act of terrorism'' has the same meaning as in section 102(1) of the Terrorism Risk Insurance Act of 2002 (15 U.S.C. 6701 note);

(2) the term ''certification process'' means the process by which the Secretary determines whether to certify an act as an act of terrorism under section 102(1) of the Terrorism Risk Insurance Act of 2002 (15 U.S.C. 6701 note); and

(3) the term ''Secretary'' means the Secretary of the Treasury.

(b) STUDY.—Not later than 9 months after the date of enactment of this Act, the Secretary shall conduct and complete a study on the certification process.

(c) REQUIRED CONTENT.—The study required under subsection (a) shall include an examination and analysis of—

(1) the establishment of a reasonable timeline by which the Secretary must make an accurate determination on whether to certify an act as an act of terrorism;

(2) the impact that the length of any timeline proposed to be established under paragraph (1) may have on the insurance industry, policyholders, consumers, and taxpayers as a whole;

(3) the factors the Secretary would evaluate and monitor during the certification process, including the ability of the Secretary to obtain the required information regarding the amount of projected and incurred losses resulting from an act which the Secretary would need in determining whether to certify the act as an act of terrorism;

(4) the appropriateness, efficiency, and effectiveness of the consultation process required under section 102(1)(A) of the Terrorism Risk Insurance Act of 2002 (15 U.S.C. 6701 note) and any recommendations on changes to the consultation process; and

(5) the ability of the Secretary to provide guidance and updates to the public regarding any act that may reasonably be certified as an act of terrorism.

(d) REPORT.—Upon completion of the study required under subsection (a), the Secretary shall submit a report on the results of such study to the Committee on Banking, Housing, and Urban Affairs of the Senate and the Committee on Financial Services of the House of Representatives.

(e) RULEMAKING.—Section 102(1) of the Terrorism Risk Insurance Act of 2002 (15 U.S.C. 6701 note) is amended—

(1) by redesignating subparagraph (D) as subparagraph (E); and

(2) by inserting after subparagraph (C) the following:

''(D) TIMING OF CERTIFICATION.—Not later than 9 months after the report required under section 6 of the Terrorism Risk Insurance Program Reauthorization Act of 2014 is submitted to the appropriate committees of Congress, the Secretary shall issue final rules governing the certification process, including any timeline applicable to any certification by the Secretary on whether an act is an act of terrorism under this paragraph.''.

SEC. 7. GAO STUDY ON UPFRONT PREMIUMS.

(a) STUDY.—Not later than 2 years after the date of enactment of this Act, the Comptroller General of the United States shall complete a study on the viability and effects of the Federal Government assessing and collecting upfront premiums on insurers that participate in the Terrorism Insurance Program established under the Terrorism Risk Insurance Act of 2002 (15 U.S.C. 6701 note) (hereafter in this section referred to as the ''Program'').

(b) REQUIRED CONTENT.—The study required under subsection (a) shall examine, but shall not be limited to, the following issues:

(1) How the Federal Government could determine the price of such upfront premiums on insurers that participate in the Program.

(2) How the Federal Government could collect and manage such upfront premiums.

(3) How the Federal Government could ensure that such upfront premiums are not spent for purposes other than claims through the Program.

(4) How the assessment and collection of such upfront premiums could affect take-up rates for terrorism risk coverage in different regions and industries and how it could impact small businesses and consumers in both metropolitan and non-metropolitan areas.

(5) The effect of collecting such upfront premiums on insurers both large and small.

(6) The effect of collecting such upfront premiums on the private market for terrorism risk reinsurance.

(7) The size of any Federal Government subsidy insurers may receive through their participation in the Program, taking into account the Program's current post-event recoupment structure.

(c) REPORT.—Upon completion of the study required under subsection (a), the Comptroller General shall submit a report on the results of such study to the Committee on Banking, Housing, and Urban Affairs of the Senate and the Committee on Financial Services of the House of Representatives.

(d) PUBLIC AVAILABILITY.—The study and report required under this section shall be made available to the public in electronic form and shall be published on the website of the Government Accountability Office.

SEC. 8. MEMBERSHIP OF BOARD OF GOVERNORS OF THE FEDERAL RESERVE SYSTEM.

(a) IN GENERAL.—The first undesignated paragraph of section 10 of the Federal Reserve Act (12 U.S.C. 241) is amended by inserting after the second sentence the following: ''In selecting members of the Board, the President shall appoint at least 1 member with demonstrated primary experience working in or supervising community banks having less than $10,000,000,000 in total assets.''.

(b) EFFECTIVE DATE.—The amendment made by this section shall take effect on the date of enactment of this Act and apply to appointments made on and after that effective date, excluding any nomination pending in the Senate on that date.

SEC. 9. ADVISORY COMMITTEE ON RISK-SHARING MECHANISMS.

(a) FINDING; RULE OF CONSTRUCTION.—

(1) FINDING.—Congress finds that it is desirable to encourage the growth of nongovernmental, private market reinsurance capacity for protection against losses arising from acts of terrorism.

(2) RULE OF CONSTRUCTION.—Nothing in this Act, any amendment made by this Act, or the Terrorism Risk Insurance Act of 2002 (15 U.S.C. 6701 note) shall prohibit insurers from developing risk-sharing mechanisms to voluntarily reinsure terrorism losses between and among themselves.

(b) ADVISORY COMMITTEE ON RISK-SHARING MECHANISMS.—

(1) ESTABLISHMENT.—The Secretary of the Treasury shall establish and appoint an advisory committee to be known as the ''Advisory Committee on Risk-Sharing Mechanisms'' (referred to in this subsection as the ''Advisory Committee'').

(2) DUTIES.—The Advisory Committee shall provide advice, recommendations, and encouragement with respect to the creation and development of the nongovernmental risk-sharing mechanisms described under subsection (a).

(3) MEMBERSHIP.—The Advisory Committee shall be composed of 9 members who are directors, officers, or other employees of insurers, reinsurers, or capital market participants that are participating or that desire to participate in the nongovernmental risk-sharing mechanisms described under subsection (a), and who are representative of the affected sectors of the insurance industry, including commercial property insurance, commercial casualty insurance, reinsurance, and alternative risk transfer industries.

(c) EFFECTIVE DATE.—The provisions of this section shall take effect on January 1, 2015.

TITLE II—NATIONAL ASSOCIATION OF REGISTERED AGENTS AND BROKERS

SEC. 201. SHORT TITLE.

This title may be cited as the ''National Association of Registered Agents and Brokers Reform Act of 2014''.

SEC. 202. REESTABLISHMENT OF THE NATIONAL ASSOCIATION OF REGISTERED AGENTS AND BROKERS.

(a) IN GENERAL.—Subtitle C of title III of the Gramm-Leach-Bliley Act (15 U.S.C. 6751 et seq.) is amended to read as follows:

''Subtitle C—National Association of Registered Agents and Brokers

''SEC. 321. NATIONAL ASSOCIATION OF REGISTERED AGENTS AND BROKERS.

''(a) ESTABLISHMENT.—There is established the National Association of Registered Agents and Brokers (referred to in this subtitle as the 'Association').

''(b) STATUS.—The Association shall—

''(1) be a nonprofit corporation;

''(2) not be an agent or instrumentality of the Federal Government;

''(3) be an independent organization that may not be merged with or into any other private or public entity; and

''(4) except as otherwise provided in this subtitle, be subject to, and have all the powers conferred upon, a nonprofit corporation

by the District of Columbia Nonprofit Corporation Act (D.C. Code, sec. 29–301.01 et seq.) or any successor thereto.

"SEC. 322. PURPOSE.

''The purpose of the Association shall be to provide a mechanism through which licensing, continuing education, and other nonresident insurance producer qualification requirements and conditions may be adopted and applied on a multi-state basis without affecting the laws, rules, and regulations, and preserving the rights of a State, pertaining to—

''(1) licensing, continuing education, and other qualification requirements of insurance producers that are not members of the Association;

''(2) resident or nonresident insurance producer appointment requirements;

''(3) supervising and disciplining resident and nonresident insurance producers;

''(4) establishing licensing fees for resident and nonresident insurance producers so that there is no loss of insurance producer licensing revenue to the State; and

''(5) prescribing and enforcing laws and regulations regulating the conduct of resident and nonresident insurance producers.

"SEC. 323. MEMBERSHIP.

''(a) ELIGIBILITY.—

''(1) IN GENERAL.—Any insurance producer licensed in its home State shall, subject to paragraphs (2) and (4), be eligible to become a member of the Association.

''(2) INELIGIBILITY FOR SUSPENSION OR REVOCATION OF LICENSE.—Subject to paragraph (3), an insurance producer is not eligible to become a member of the Association if a State insurance regulator has suspended or revoked the insurance license of the insurance producer in that State.

''(3) RESUMPTION OF ELIGIBILITY.—Paragraph (2) shall cease to apply to any insurance producer if—

''(A) the State insurance regulator reissues or renews the license of the insurance producer in the State in which the license was suspended or revoked, or otherwise terminates or vacates the suspension or revocation; or

''(B) the suspension or revocation expires or is subsequently overturned by a court of competent jurisdiction.

''(4) CRIMINAL HISTORY RECORD CHECK REQUIRED.—

''(A) IN GENERAL.—An insurance producer who is an individual shall not be eligible to become a member of the Association unless the insurance producer has undergone a criminal history record check that complies with regulations prescribed by the Attorney General of the United States under subparagraph (K).

''(B) CRIMINAL HISTORY RECORD CHECK REQUESTED BY HOME STATE.—An insurance producer who is licensed in a State and who has undergone a criminal history record check during the 2-year period preceding the date of submission of an application to become a member of the Association, in compliance with a requirement to undergo such criminal history record check as a condition for such licensure in the State, shall be deemed to have undergone a criminal history record check for purposes of subparagraph (A).

''(C) CRIMINAL HISTORY RECORD CHECK REQUESTED BY ASSOCIATION.—

''(i) IN GENERAL.—The Association shall, upon request by an insurance producer licensed in a State, submit fingerprints or other identification information obtained from the insurance producer, and a request for a criminal history record check of the insurance producer, to the Federal Bureau of Investigation.

''(ii) PROCEDURES.—The board of directors of the Association (referred to in this subtitle as the 'Board') shall prescribe procedures for obtaining and utilizing fingerprints or other identification information and criminal history record information, including the establishment of reasonable fees to defray the expenses of the Association in connection with the performance of a criminal history record check and appropriate safeguards for maintaining confidentiality and security of the information. Any fees charged pursuant to this clause shall be separate and distinct from those charged by the Attorney General pursuant to subparagraph (I).

''(D) FORM OF REQUEST.—A submission under subparagraph (C)(i) shall include such fingerprints or other identification information as is required by the Attorney General concerning the person about whom the criminal history record check is requested, and a statement signed by the person authorizing the Attorney General to provide the information to the Association and for the Association to receive the information.

''(E) PROVISION OF INFORMATION BY ATTORNEY GENERAL.—Upon receiving a submission under subparagraph (C)(i) from the Association, the Attorney General shall search all criminal history records of the Federal Bureau of Investigation, including records of the Criminal Justice Information Services Division of the Federal Bureau of Investigation, that the Attorney General determines appropriate for criminal history records corresponding to the fingerprints or other identification information provided under subparagraph (D) and provide all criminal history record information included in the request to the Association.

''(F) LIMITATION ON PERMISSIBLE USES OF INFORMATION.—Any information provided to the Association under subparagraph (E) may only—

''(i) be used for purposes of determining compliance with membership criteria established by the Association;

''(ii) be disclosed to State insurance regulators, or Federal or State law enforcement agencies, in conformance with applicable law; or

''(iii) be disclosed, upon request, to the insurance producer to whom the criminal history record information relates.

''(G) PENALTY FOR IMPROPER USE OR DISCLOSURE.—Whoever knowingly uses any information provided under subparagraph (E) for a purpose not authorized in subparagraph (F), or discloses any such information to anyone not authorized to receive it, shall be fined not more than $50,000 per violation as determined by a court of competent jurisdiction.

''(H) RELIANCE ON INFORMATION.—Neither the Association nor any of its Board members, officers, or employees shall be liable in any action for using information provided under subparagraph (E) as permitted under subparagraph (F) in good faith and in reasonable reliance on its accuracy.

''(I) FEES.—The Attorney General may charge a reasonable fee for conducting the search and providing the information under subparagraph (E), and any such fee shall be collected and remitted by the Association to the Attorney General.

''(J) RULE OF CONSTRUCTION.—Nothing in this paragraph shall be construed as—

''(i) requiring a State insurance regulator to perform criminal history record checks under this section; or

''(ii) limiting any other authority that allows access to criminal history records.

''(K) REGULATIONS.—The Attorney General shall prescribe regulations to carry out this paragraph, which shall include—

''(i) appropriate protections for ensuring the confidentiality of information provided under subparagraph (E); and

''(ii) procedures providing a reasonable opportunity for an insurance producer to contest the accuracy of information regarding the insurance producer provided under subparagraph (E).

''(L) INELIGIBILITY FOR MEMBERSHIP.—

''(i) IN GENERAL.—The Association may, under reasonably consistently applied standards, deny membership to an insurance producer on the basis of criminal history record information provided under subparagraph (E), or where the insurance producer has been subject to disciplinary action, as described in paragraph (2).

''(ii) RIGHTS OF APPLICANTS DENIED MEMBERSHIP.—The Association shall notify any insurance producer who is denied membership on the basis of criminal history record information provided under subparagraph (E) of the right of the insurance producer to—

''(I) obtain a copy of all criminal history record information provided to the Association under subparagraph (E) with respect to the insurance producer; and

''(II) challenge the denial of membership based on the accuracy and completeness of the information.

''(M) DEFINITION.—For purposes of this paragraph, the term 'criminal history record check' means a national background check of criminal history records of the Federal Bureau of Investigation.

''(b) AUTHORITY TO ESTABLISH MEMBERSHIP CRITERIA.—The Association may establish membership criteria that bear a reasonable relationship to the purposes for which the Association was established.

''(c) ESTABLISHMENT OF CLASSES AND CATEGORIES OF MEMBERSHIP.—

''(1) CLASSES OF MEMBERSHIP.—The Association may establish separate classes of membership, with separate criteria, if the Association reasonably determines that performance of different duties requires different levels of education, training, experience, or other qualifications.

''(2) BUSINESS ENTITIES.—The Association shall establish a class of membership and membership criteria for business entities. A business entity that applies for membership shall be required to designate an individual Association member responsible for the compliance of the business entity with Association standards and the insurance laws, rules, and regulations of any State in which the business entity seeks to do business on the basis of Association membership.

''(3) CATEGORIES.—

''(A) SEPARATE CATEGORIES FOR INSURANCE PRODUCERS PERMITTED.—The Association may establish separate categories of membership for insurance producers and for other persons or entities within each class, based on the types of licensing categories that exist under State laws.

''(B) SEPARATE TREATMENT FOR DEPOSITORY INSTITUTIONS PROHIBITED.—No special categories of membership, and no distinct membership criteria, shall be established for members that are depository institutions or for employees, agents, or affiliates of depository institutions.

''(d) MEMBERSHIP CRITERIA.—

''(1) IN GENERAL.—The Association may establish criteria for membership which shall include standards for personal qualifications, education, training, and experience. The Association shall not establish criteria that unfairly limit the ability of a small insurance producer to become a member of the Association, including imposing discriminatory membership fees.

''(2) QUALIFICATIONS.—In establishing criteria under paragraph (1), the Association shall not adopt any qualification less protective to the public than that contained in the National Association of Insurance Commissioners (referred to in this subtitle as the

'NAIC') Producer Licensing Model Act in effect as of the date of enactment of the National Association of Registered Agents and Brokers Reform Act of 2014, and shall consider the highest levels of insurance producer qualifications established under the licensing laws of the States.

''(3) ASSISTANCE FROM STATES.—

''(A) IN GENERAL.—The Association may request a State to provide assistance in investigating and evaluating the eligibility of a prospective member for membership in the Association.

''(B) AUTHORIZATION OF INFORMATION SHARING.—A submission under subsection (a)(4)(C)(i) made by an insurance producer licensed in a State shall include a statement signed by the person about whom the assistance is requested authorizing—

''(i) the State to share information with the Association; and

''(ii) the Association to receive the information.

''(C) RULE OF CONSTRUCTION.—Subparagraph (A) shall not be construed as requiring or authorizing any State to adopt new or additional requirements concerning the licensing or evaluation of insurance producers.

''(4) DENIAL OF MEMBERSHIP.—The Association may, based on reasonably consistently applied standards, deny membership to any State-licensed insurance producer for failure to meet the membership criteria established by the Association.

''(e) EFFECT OF MEMBERSHIP.—

''(1) AUTHORITY OF ASSOCIATION MEMBERS.—Membership in the Association shall—

''(A) authorize an insurance producer to sell, solicit, or negotiate insurance in any State for which the member pays the licensing fee set by the State for any line or lines of insurance specified in the home State license of the insurance producer, and exercise all such incidental powers as shall be necessary to carry out such activities, including claims adjustments and settlement to the extent permissible under the laws of the State, risk management, employee benefits advice, retirement planning, and any other insurance-related consulting activities;

''(B) be the equivalent of a nonresident insurance producer license for purposes of authorizing the insurance producer to engage in the activities described in subparagraph (A) in any State where the member pays the licensing fee; and

''(C) be the equivalent of a nonresident insurance producer license for the purpose of subjecting an insurance producer to all laws, regulations, provisions or other action of any State concerning revocation, suspension, or other enforcement action related to the ability of a member to engage in any activity within the scope of authority granted under this subsection and to all State laws, regulations, provisions, and actions preserved under paragraph (5).

''(2) VIOLENT CRIME CONTROL AND LAW ENFORCEMENT ACT OF 1994.—Nothing in this subtitle shall be construed to alter, modify, or supercede any requirement established by section 1033 of title 18, United States Code.

''(3) AGENT FOR REMITTING FEES.—The Association shall act as an agent for any member for purposes of remitting licensing fees to any State pursuant to paragraph (1).

''(4) NOTIFICATION OF ACTION.—

''(A) IN GENERAL.—The Association shall notify the States (including State insurance regulators) and the NAIC when an insurance producer has satisfied the membership criteria of this section. The States (including State insurance regulators) shall have 10 business days after the date of the notification in order to provide the Association with evidence that the insurance producer does not satisfy the criteria for membership in the Association.

''(B) ONGOING DISCLOSURES REQUIRED.—On an ongoing basis, the Association shall disclose to the States (including State insurance regulators) and the NAIC a list of the States in which each member is authorized to operate. The Association shall immediately notify the States (including State insurance regulators) and the NAIC when a member is newly authorized to operate in one or more States, or is no longer authorized to operate in one or more States on the basis of Association membership.

''(5) PRESERVATION OF CONSUMER PROTECTION AND MARKET CONDUCT REGULATION.—

''(A) IN GENERAL.—No provision of this section shall be construed as altering or affecting the applicability or continuing effectiveness of any law, regulation, provision, or other action of any State, including those described in subparagraph (B), to the extent that the State law, regulation, provision, or other action is not inconsistent with the provisions of this subtitle related to market entry for nonresident insurance producers, and then only to the extent of the inconsistency.

''(B) PRESERVED REGULATIONS.—The laws, regulations, provisions, or other actions of any State referred to in subparagraph (A) include laws, regulations, provisions, or other actions that—

''(i) regulate market conduct, insurance producer conduct, or unfair trade practices;

''(ii) establish consumer protections; or

''(iii) require insurance producers to be appointed by a licensed or authorized insurer.

''(f) BIENNIAL RENEWAL.—Membership in the Association shall be renewed on a biennial basis.

''(g) CONTINUING EDUCATION.—

''(1) IN GENERAL.—The Association shall establish, as a condition of membership, continuing education requirements which shall be comparable to the continuing education requirements under the licensing laws of a majority of the States.

''(2) STATE CONTINUING EDUCATION REQUIREMENTS.—A member may not be required to satisfy continuing education requirements imposed under the laws, regulations, provisions, or actions of any State other than the home State of the member.

''(3) RECIPROCITY.—The Association shall not require a member to satisfy continuing education requirements that are equivalent to any continuing education requirements of the home State of the member that have been satisfied by the member during the applicable licensing period.

''(4) LIMITATION ON THE ASSOCIATION.—The Association shall not directly or indirectly offer any continuing education courses for insurance producers.

''(h) PROBATION, SUSPENSION AND REVOCATION.—

''(1) DISCIPLINARY ACTION.—The Association may place an insurance producer that is a member of the Association on probation or suspend or revoke the membership of the insurance producer in the Association, or assess monetary fines or penalties, as the Association determines to be appropriate, if—

''(A) the insurance producer fails to meet the applicable membership criteria or other standards established by the Association;

''(B) the insurance producer has been subject to disciplinary action pursuant to a final adjudicatory proceeding under the jurisdiction of a State insurance regulator;

''(C) an insurance license held by the insurance producer has been suspended or revoked by a State insurance regulator; or

''(D) the insurance producer has been convicted of a crime that would have resulted in the denial of membership pursuant to subsection (a)(4)(L)(i) at the time of application, and the Association has received a copy of the final disposition from a court of competent jurisdiction.

''(2) VIOLATIONS OF ASSOCIATION STANDARDS.—The Association shall have the power to investigate alleged violations of Association standards.

''(3) REPORTING.—The Association shall immediately notify the States (including State insurance regulators) and the NAIC when the membership of an insurance producer has been placed on probation or has been suspended, revoked, or otherwise terminated, or when the Association has assessed monetary fines or penalties.

''(i) CONSUMER COMPLAINTS.—

''(1) IN GENERAL.—The Association shall—

''(A) refer any complaint against a member of the Association from a consumer relating to alleged misconduct or violations of State insurance laws to the State insurance regulator where the consumer resides and, when appropriate, to any additional State insurance regulator, as determined by standards adopted by the Association; and

''(B) make any related records and information available to each State insurance regulator to whom the complaint is forwarded.

''(2) TELEPHONE AND OTHER ACCESS.—The Association shall maintain a toll-free number for purposes of this subsection and, as practicable, other alternative means of communication with consumers, such as an Internet webpage.

''(3) FINAL DISPOSITION OF INVESTIGATION.—State insurance regulators shall provide the Association with information regarding the final disposition of a complaint referred pursuant to paragraph (1)(A), but nothing shall be construed to compel a State to release confidential investigation reports or other information protected by State law to the Association.

''(j) INFORMATION SHARING.—The Association may—

''(1) share documents, materials, or other information, including confidential and privileged documents, with a State, Federal, or international governmental entity or with the NAIC or other appropriate entity referenced in paragraphs (3) and (4), provided that the recipient has the authority and agrees to maintain the confidentiality or privileged status of the document, material, or other information;

''(2) limit the sharing of information as required under this subtitle with the NAIC or any other non-governmental entity, in circumstances under which the Association determines that the sharing of such information is unnecessary to further the purposes of this subtitle;

''(3) establish a central clearinghouse, or utilize the NAIC or another appropriate entity, as determined by the Association, as a central clearinghouse, for use by the Association and the States (including State insurance regulators), through which members of the Association may disclose their intent to operate in 1 or more States and pay the licensing fees to the appropriate States; and

''(4) establish a database, or utilize the NAIC or another appropriate entity, as determined by the Association, as a database, for use by the Association and the States (including State insurance regulators) for the collection of regulatory information concerning the activities of insurance producers.

''(k) EFFECTIVE DATE.—The provisions of this section shall take effect on the later of—

''(1) the expiration of the 2-year period beginning on the date of enactment of the National Association of Registered Agents and Brokers Reform Act of 2014; and

''(2) the date of incorporation of the Association.

"SEC. 324. BOARD OF DIRECTORS.

''(a) ESTABLISHMENT.—There is established a board of directors of the Association, which shall have authority to govern and supervise all activities of the Association.

''(b) POWERS.—The Board shall have such of the powers and authority of the Association as may be specified in the bylaws of the Association.

''(c) COMPOSITION.—

''(1) IN GENERAL.—The Board shall consist of 13 members who shall be appointed by the President, by and with the advice and consent of the Senate, in accordance with the procedures established under Senate Resolution 116 of the 112th Congress, of whom—

''(A) 8 shall be State insurance commissioners appointed in the manner provided in paragraph (2), 1 of whom shall be designated by the President to serve as the chairperson of the Board until the Board elects one such State insurance commissioner Board member to serve as the chairperson of the Board;

''(B) 3 shall have demonstrated expertise and experience with property and casualty insurance producer licensing; and

''(C) 2 shall have demonstrated expertise and experience with life or health insurance producer licensing.

''(2) STATE INSURANCE REGULATOR REPRESENTATIVES.—

''(A) RECOMMENDATIONS.—Before making any appointments pursuant to paragraph (1)(A), the President shall request a list of recommended candidates from the States through the NAIC, which shall not be binding on the President. If the NAIC fails to submit a list of recommendations not later than 15 business days after the date of the request, the President may make the requisite appointments without considering the views of the NAIC.

''(B) POLITICAL AFFILIATION.—Not more than 4 Board members appointed under paragraph (1)(A) shall belong to the same political party.

''(C) FORMER STATE INSURANCE COMMISSIONERS.—

''(i) IN GENERAL.—If, after offering each currently serving State insurance commissioner an appointment to the Board, fewer than 8 State insurance commissioners have accepted appointment to the Board, the President may appoint the remaining State insurance commissioner Board members, as required under paragraph (1)(A), of the appropriate political party as required under subparagraph (B), from among individuals who are former State insurance commissioners.

''(ii) LIMITATION.—A former State insurance commissioner appointed as described in clause (i) may not be employed by or have any present direct or indirect financial interest in any insurer, insurance producer, or other entity in the insurance industry, other than direct or indirect ownership of, or beneficial interest in, an insurance policy or annuity contract written or sold by an insurer.

''(D) SERVICE THROUGH TERM.—If a Board member appointed under paragraph (1)(A) ceases to be a State insurance commissioner during the term of the Board member, the Board member shall cease to be a Board member.

''(3) PRIVATE SECTOR REPRESENTATIVES.—In making any appointment pursuant to subparagraph (B) or (C) of paragraph (1), the President may seek recommendations for candidates from groups representing the category of individuals described, which shall not be binding on the President.

''(4) STATE INSURANCE COMMISSIONER DEFINED.—For purposes of this subsection, the term 'State insurance commissioner' means a person who serves in the position in State government, or on the board, commission, or other body that is the primary insurance regulatory authority for the State.

''(d) TERMS.—

''(1) IN GENERAL.—Except as provided under paragraph (2), the term of service for each Board member shall be 2 years.

''(2) EXCEPTIONS.—

''(A) 1-YEAR TERMS.—The term of service shall be 1 year, as designated by the President at the time of the nomination of the subject Board members for—

''(i) 4 of the State insurance commissioner Board members initially appointed under paragraph (1)(A), of whom not more than 2 shall belong to the same political party;

''(ii) 1 of the Board members initially appointed under paragraph (1)(B); and

''(iii) 1 of the Board members initially appointed under paragraph (1)(C).

''(B) EXPIRATION OF TERM.—A Board member may continue to serve after the expiration of the term to which the Board member was appointed for the earlier of 2 years or until a successor is appointed.

''(C) MID-TERM APPOINTMENTS.—A Board member appointed to fill a vacancy occurring before the expiration of the term for which the predecessor of the Board member was appointed shall be appointed only for the remainder of that term.

''(3) SUCCESSIVE TERMS.—Board members may be reappointed to successive terms.

''(e) INITIAL APPOINTMENTS.—The appointment of initial Board members shall be made no later than 90 days after the date of enactment of the National Association of Registered Agents and Brokers Reform Act of 2014.

''(f) MEETINGS.—

''(1) IN GENERAL.—The Board shall meet—

''(A) at the call of the chairperson;

''(B) as requested in writing to the chairperson by not fewer than 5 Board members; or

''(C) as otherwise provided by the bylaws of the Association.

''(2) QUORUM REQUIRED.—A majority of all Board members shall constitute a quorum.

''(3) VOTING.—Decisions of the Board shall require the approval of a majority of all Board members present at a meeting, a quorum being present.

''(4) INITIAL MEETING.—The Board shall hold its first meeting not later than 45 days after the date on which all initial Board members have been appointed.

''(g) RESTRICTION ON CONFIDENTIAL INFORMATION.—Board members appointed pursuant to subparagraphs (B) and (C) of subsection (c)(1) shall not have access to confidential information received by the Association in connection with complaints, investigations, or disciplinary proceedings involving insurance producers.

''(h) ETHICS AND CONFLICTS OF INTEREST.—The Board shall issue and enforce an ethical conduct code to address permissible and prohibited activities of Board members and Association officers, employees, agents, or consultants. The code shall, at a minimum, include provisions that prohibit any Board member or Association officer, employee, agent or consultant from—

''(1) engaging in unethical conduct in the course of performing Association duties;

''(2) participating in the making or influencing the making of any Association decision, the outcome of which the Board member, officer, employee, agent, or consultant knows or had reason to know would have a reasonably foreseeable material financial effect, distinguishable from its effect on the public generally, on the person or a member of the immediate family of the person;

''(3) accepting any gift from any person or entity other than the Association that is given because of the position held by the person in the Association;

''(4) making political contributions to any person or entity on behalf of the Association; and

''(5) lobbying or paying a person to lobby on behalf of the Association.

''(i) COMPENSATION.—

''(1) IN GENERAL.—Except as provided in paragraph (2), no Board member may receive any compensation from the Association or any other person or entity on account of Board membership.

''(2) TRAVEL EXPENSES AND PER DIEM.—Board members may be reimbursed only by the Association for travel expenses, including per diem in lieu of subsistence, at rates consistent with rates authorized for employees of Federal agencies under subchapter I of chapter 57 of title 5, United States Code, while away from home or regular places of business in performance of services for the Association.

"SEC. 325. BYLAWS, STANDARDS, AND DISCIPLINARY ACTIONS.

''(a) ADOPTION AND AMENDMENT OF BYLAWS AND STANDARDS.—

''(1) PROCEDURES.—The Association shall adopt procedures for the adoption of bylaws and standards that are similar to procedures under subchapter II of chapter 5 of title 5, United States Code (commonly known as the 'Administrative Procedure Act').

''(2) COPY REQUIRED TO BE FILED.—The Board shall submit to the President, through the Department of the Treasury, and the States (including State insurance regulators), and shall publish on the website of the Association, all proposed bylaws and standards of the Association, or any proposed amendment to the bylaws or standards of the Association, accompanied by a concise general statement of the basis and purpose of such proposal.

''(3) EFFECTIVE DATE.—Any proposed bylaw or standard of the Association, and any proposed amendment to the bylaws or standards of the Association, shall take effect, after notice under paragraph (2) and opportunity for public comment, on such date as the Association may designate, unless suspended under section 329(c).

''(4) RULE OF CONSTRUCTION.—Nothing in this section shall be construed to subject the Board or the Association to the requirements of subchapter II of chapter 5 of title 5, United States Code (commonly known as the 'Administrative Procedure Act').

''(b) DISCIPLINARY ACTION BY THE ASSOCIATION.—

''(1) SPECIFICATION OF CHARGES.—In any proceeding to determine whether membership shall be denied, suspended, revoked, or not renewed, or to determine whether a member of the Association should be placed on probation (referred to in this section as a 'disciplinary action') or whether to assess fines or monetary penalties, the Association shall bring specific charges, notify the member of the charges, give the member an opportunity to defend against the charges, and keep a record.

''(2) SUPPORTING STATEMENT.—A determination to take disciplinary action shall be supported by a statement setting forth—

''(A) any act or practice in which the member has been found to have been engaged;

''(B) the specific provision of this subtitle or standard of the Association that any such act or practice is deemed to violate; and

''(C) the sanction imposed and the reason for the sanction.

''(3) INELIGIBILITY OF PRIVATE SECTOR REPRESENTATIVES.—Board members appointed pursuant to section 324(c)(3) may not—

''(A) participate in any disciplinary action or be counted toward establishing a quorum during a disciplinary action; and

''(B) have access to confidential information concerning any disciplinary action.

"SEC. 326. POWERS.

''In addition to all the powers conferred upon a nonprofit corporation by the District of Columbia Nonprofit Corporation Act, the Association shall have the power to—

''(1) establish and collect such membership fees as the Association finds necessary to impose to cover the costs of its operations;

''(2) adopt, amend, and repeal bylaws, procedures, or standards governing the conduct of Association business and performance of its duties;

''(3) establish procedures for providing notice and opportunity for comment pursuant to section 325(a);

''(4) enter into and perform such agreements as necessary to carry out the duties of the Association;

''(5) hire employees, professionals, or specialists, and elect or appoint officers, and to fix their compensation, define their duties and give them appropriate authority to carry out the purposes of this subtitle, and determine their qualification;

''(6) establish personnel policies of the Association and programs relating to, among other things, conflicts of interest, rates of compensation, where applicable, and qualifications of personnel;

''(7) borrow money; and

''(8) secure funding for such amounts as the Association determines to be necessary and appropriate to organize and begin operations of the Association, which shall be treated as loans to be repaid by the Association with interest at market rate.

"SEC. 327. REPORT BY THE ASSOCIATION.

''(a) IN GENERAL.—As soon as practicable after the close of each fiscal year, the Association shall submit to the President, through the Department of the Treasury, and the States (including State insurance regulators), and shall publish on the website of the Association, a written report regarding the conduct of its business, and the exercise of the other rights and powers granted by this subtitle, during such fiscal year.

''(b) FINANCIAL STATEMENTS.—Each report submitted under subsection (a) with respect to any fiscal year shall include audited financial statements setting forth the financial position of the Association at the end of such fiscal year and the results of its operations (including the source and application of its funds) for such fiscal year.

"SEC. 328. LIABILITY OF THE ASSOCIATION AND THE BOARD MEMBERS, OFFICERS, AND EMPLOYEES OF THE ASSOCIATION.

''(a) IN GENERAL.—The Association shall not be deemed to be an insurer or insurance producer within the meaning of any State law, rule, regulation, or order regulating or taxing insurers, insurance producers, or other entities engaged in the business of insurance, including provisions imposing premium taxes, regulating insurer solvency or financial condition, establishing guaranty funds and levying assessments, or requiring claims settlement practices.

''(b) LIABILITY OF BOARD MEMBERS, OFFICERS, AND EMPLOYEES.—No Board member, officer, or employee of the Association shall be personally liable to any person for any action taken or omitted in good faith in any matter within the scope of their responsibilities in connection with the Association.

"SEC. 329. PRESIDENTIAL OVERSIGHT.

''(a) REMOVAL OF BOARD.—If the President determines that the Association is acting in a manner contrary to the interests of the public or the purposes of this subtitle or has failed to perform its duties under this subtitle, the President may remove the entire existing Board for the remainder of the term to which the Board members were appointed and appoint, in accordance with section 324 and with the advice and consent of the Senate, in accordance with the procedures established under Senate Resolution 116 of the 112th Congress, new Board members to fill the vacancies on the Board for the remainder of the terms.

''(b) REMOVAL OF BOARD MEMBER.—The President may remove a Board member only for neglect of duty or malfeasance in office.

''(c) SUSPENSION OF BYLAWS AND STANDARDS AND PROHIBITION OF ACTIONS.—Following notice to the Board, the President, or a person designated by the President for such purpose, may suspend the effectiveness of any bylaw or standard, or prohibit any action, of the Association that the President or the designee determines is contrary to the purposes of this subtitle.

"SEC. 330. RELATIONSHIP TO STATE LAW.

''(a) PREEMPTION OF STATE LAWS.—State laws, regulations, provisions, or other actions purporting to regulate insurance producers shall be preempted to the extent provided in subsection (b).

''(b) PROHIBITED ACTIONS.—

''(1) IN GENERAL.—No State shall—

''(A) impede the activities of, take any action against, or apply any provision of law or regulation arbitrarily or discriminatorily to, any insurance producer because that insurance producer or any affiliate plans to become, has applied to become, or is a member of the Association;

''(B) impose any requirement upon a member of the Association that it pay fees different from those required to be paid to that State were it not a member of the Association; or

''(C) impose any continuing education requirements on any nonresident insurance producer that is a member of the Association.

''(2) STATES OTHER THAN A HOME STATE.—No State, other than the home State of a member of the Association, shall—

''(A) impose any licensing, personal or corporate qualifications, education, training, experience, residency, continuing education, or bonding requirement upon a member of the Association that is different from the criteria for membership in the Association or renewal of such membership;

''(B) impose any requirement upon a member of the Association that it be licensed, registered, or otherwise qualified to do business or remain in good standing in the State, including any requirement that the insurance producer register as a foreign company with the secretary of state or equivalent State official;

''(C) require that a member of the Association submit to a criminal history record check as a condition of doing business in the State; or

''(D) impose any licensing, registration, or appointment requirements upon a member of the Association, or require a member of the Association to be authorized to operate as an insurance producer, in order to sell, solicit, or negotiate insurance for commercial property and casualty risks to an insured with risks located in more than one State, if the member is licensed or otherwise authorized to operate in the State where the insured maintains its principal place of business and the contract of insurance insures risks located in that State.

''(3) PRESERVATION OF STATE DISCIPLINARY AUTHORITY.—Nothing in this section may be construed to prohibit a State from investigating and taking appropriate disciplinary action, including suspension or revocation of authority of an insurance producer to do business in a State, in accordance with State law and that is not inconsistent with the provisions of this section, against a member of the Association as a result of a complaint or for any alleged activity, regardless of whether the activity occurred before or after the insurance producer commenced doing business in the State pursuant to Association membership.

"SEC. 331. COORDINATION WITH FINANCIAL INDUSTRY REGULATORY AUTHORITY.

''The Association shall coordinate with the Financial Industry Regulatory Authority in order to ease any administrative burdens that fall on members of the Association that are subject to regulation by the Financial Industry Regulatory Authority, consistent with the requirements of this subtitle and the Federal securities laws.

"SEC. 332. RIGHT OF ACTION.

''(a) RIGHT OF ACTION.—Any person aggrieved by a decision or action of the Association may, after reasonably exhausting available avenues for resolution within the Association, commence a civil action in an appropriate United States district court, and obtain all appropriate relief.

''(b) ASSOCIATION INTERPRETATIONS.—In any action under subsection (a), the court shall give appropriate weight to the interpretation of the Association of its bylaws and standards and this subtitle.

"SEC. 333. FEDERAL FUNDING PROHIBITED.

''The Association may not receive, accept, or borrow any amounts from the Federal Government to pay for, or reimburse, the Association for, the costs of establishing or operating the Association.

"SEC. 334. DEFINITIONS.

''For purposes of this subtitle, the following definitions shall apply:

''(1) BUSINESS ENTITY.—The term 'business entity' means a corporation, association, partnership, limited liability company, limited liability partnership, or other legal entity.

''(2) DEPOSITORY INSTITUTION.—The term 'depository institution' has the meaning as in section 3 of the Federal Deposit Insurance Act (12 U.S.C. 1813).

''(3) HOME STATE.—The term 'home State' means the State in which the insurance producer maintains its principal place of residence or business and is licensed to act as an insurance producer.

''(4) INSURANCE.—The term 'insurance' means any product, other than title insurance or bail bonds, defined or regulated as insurance by the appropriate State insurance regulatory authority.

''(5) INSURANCE PRODUCER.—The term 'insurance producer' means any insurance agent or broker, excess or surplus lines broker or agent, insurance consultant, limited insurance representative, and any other individual or entity that sells, solicits, or negotiates policies of insurance or offers advice, counsel, opinions or services related to insurance.

''(6) INSURER.—The term 'insurer' has the meaning as in section 313(e)(2)(B) of title 31, United States Code.

''(7) PRINCIPAL PLACE OF BUSINESS.—The term 'principal place of business' means the State in which an insurance producer maintains the headquarters of the insurance producer and, in the case of a business entity, where high-level officers of the entity direct, control, and coordinate the business activities of the business entity.

''(8) PRINCIPAL PLACE OF RESIDENCE.—The term 'principal place of residence' means the State in which an insurance producer resides for the greatest number of days during a calendar year.

''(9) STATE.—The term 'State' includes any State, the District of Columbia, any territory of the United States, and Puerto Rico, Guam, American Samoa, the Trust Territory of the Pacific Islands, the Virgin Islands, and the Northern Mariana Islands.

''(10) STATE LAW.—

''(A) IN GENERAL.—The term 'State law' includes all laws, decisions, rules, regulations, or other State action having the effect of law, of any State.

''(B) LAWS APPLICABLE IN THE DISTRICT OF COLUMBIA.—A law of the United States applicable only to or within the District of Columbia shall be treated as a State law rather than a law of the United States.

''SEC. 335. SUNSET.

''The provisions of this subtitle, and any program or authorities established or granted therein or derived therefrom, shall terminate on the date that is 2 years after the date on which the Association approves its first member pursuant to section 323.''.

(b) TECHNICAL AMENDMENT.—The table of contents for the Gramm-Leach-Bliley Act is amended by striking the items relating to subtitle C of title III and inserting the following new items:

''Subtitle C—National Association of Registered Agents and Brokers

''Sec. 321. National Association of Registered Agents and Brokers.
''Sec. 322. Purpose.
''Sec. 323. Membership.
''Sec. 324. Board of directors.
''Sec. 325. Bylaws, standards, and disciplinary actions.
''Sec. 326. Powers.
''Sec. 327. Report by the Association.
''Sec. 328. Liability of the Association and the Board members, officers, and employees of the Association.
''Sec. 329. Presidential oversight.
''Sec. 330. Relationship to State law.
''Sec. 331. Coordination with Financial Industry Regulatory Authority.
''Sec. 332. Right of action.
''Sec. 333. Federal funding prohibited.
''Sec. 334. Definitions.
''Sec. 335. Sunset.''.

BRING JOBS HOME ACT—MOTION TO PROCEED—Continued

The PRESIDING OFFICER. The majority leader.

ORDER OF PROCEDURE

Mr. REID. Madam President, I ask unanimous consent that the cloture vote with respect to the Carnes nomination now occur at 1:45 p.m. today, with all other provisions of the previous order remaining in effect.

The PRESIDING OFFICER. Is there objection?

Hearing no objection, it is so ordered.

The Senator from Maryland.

Mr. CARDIN. Madam President, I ask unanimous consent to speak as in morning business.

The PRESIDING OFFICER. Without objection, it is so ordered.

THE MIDDLE EAST

Mr. CARDIN. Madam President, it is my understanding later today we are going to have an opportunity to approve a resolution that was voted out of the Senate Foreign Relations Committee yesterday that deals with the tragic events in the Middle East between Israel and Hamas. I just want to read part of that resolution, the action part of the resolution, because I hope it expresses the views of each Member of the Senate.

It reaffirms the Senate's support for Israel's right to defend its citizens and ensure the survival of the State of Israel. It condemns the unprovoked rocket fire at Israel. It calls on Hamas to immediately cease all rocket and other attacks against Israel. It calls upon the Palestinian Authority of President Abbas to dissolve the unity governing arrangement with Hamas and condemn the attacks on Israel.

We all are very concerned about the tragic consequences of the conflict between Israel and Hamas. Our strongest desire is that we can end the attacks and the missiles and that we can get Israel and the Palestinians to negotiate a peace agreement, a lasting agreement for two states living side-by-side, the Jewish State of Israel and a Palestinian State.

But the recent military action taken by the Israel Defense Forces in Gaza is a direct response to Hamas's barrage of rockets and mortar attacks against civilian targets in Israel. Labeled as a terrorist organization, Hamas is directly responsible for the innocent loss of life of both Israelis and Palestinians. It is very tragic what Israel is doing it is doing so to defend its civilian population from the incoming rockets.

What Hamas is doing is indiscriminately sending missiles into Israel, targeting innocent populations. Hamas's actions to extend its reach deeper into Israel and its failure to end continuing attacks undermine efforts to attain peace and security in the region.

The Israel Defense Forces began Operation Protective Edge Tuesday, July 8, with one goal, one goal in mind; that is, to stop Hamas's continued rocket attacks against Israel's civilians. Since the start of the operation, there have been over 1,000 rockets that have been launched into Israel. Most of those rockets hit targets. Fortunately, they were not major population centers because of Iron Dome. I thank the policy of this country, the United States, in providing Israel the Iron Dome missile defense system, which has been responsible for bringing down approximately 200 of the rockets that otherwise would have hit population centers in Israel.

Earlier this week, Egypt proposed an immediate cease-fire, followed by a series of meetings in Cairo with high-level delegations from both sides. Israel accepted that cease-fire immediately. They said: Fine. Let's do it. We want to stop the attacks of rockets into our country. We want to have a discussion for peace. They did it immediately. For 6 hours the IDF suspended operations against Hamas, but during this time Hamas fired 50 rockets into Israel. So the Israel Defense Forces were ordered to resume attacks against terrorist targets following continued inbound rockets and Hamas's official statement that it rejected the cease-fire.

I think what Israel's Prime Minister Benjamin Netanyahu said on CBS's ''Face the Nation'' on Sunday sums it up best. I am quoting from the Prime Minister: The difference between us is that we are using missiles to protect our civilians and they are using their civilians to protect their missiles.

In other words, what Hamas is doing is putting its missile locations in population centers, in schools, in hospitals, in mosques, in a direct way to use human shields. What a difference. Israel is trying to protect its civilian population. Hamas is putting their civilian population at great risk.

Hamas must end its rocket and mortar attacks, recognize Israel's right to exist, renounce violence, and honor all past agreements to peacefully move toward a two-state solution. That is what we want to see. I strongly support Israel's right to defend its citizens against threats to its security and existence. Hamas must end. It must be marginalized. It cannot be allowed to continue its terrorist activities. We must find a way to advance a stable and lasting peace between Israel and the Palestinian people.

I yield the floor.

The PRESIDING OFFICER. The Senator from Virginia.

Mr. WARNER. Madam President, I would like to concur with the comments of my friend, the Senator from Maryland, on the tragedy in Israel and the Middle East. I also want to say a special thanks to my friend, the Senator from Tennessee, for allowing me to jump in line for a moment.

UNANIMOUS CONSENT REQUEST—S. 2265

Mr. PAUL. Madam President, I rise to say that I think it is abhorrent and I think most American people would be greatly distressed to know that some of their money could be sent to terrorist organizations, that some of their money could be sent to Hamas.

Hamas has now joined a unity government with the Palestinian Authority. We give several hundred million dollars a year to the Palestinian Authority. I am appalled to think we could be somehow indirectly paying for missiles that Hamas is launching on Israel. I support the resolution that will shortly come forward condemning Hamas's activities.

I want more teeth in this. I would like to see legislation that says: You know what. If Hamas wants to come out of the cold, they want to recognize Israel and renounce terror, maybe. But if they are going to continue to say, as one of their leaders said recently, that our path is resistance and a rifle, our choice is jihad, if Hamas is going to continue to laugh and to cheer with glee with the killing of three teenage Israeli citizens, one of whom was an American citizen, Hamas should not—and we should guarantee that Hamas should not—get any of our money. So I will ask for unanimous consent to pass a bill to guarantee that Hamas will not receive any of our foreign aid.

I ask unanimous consent that the Committee on Foreign Relations be discharged from further consideration of S. 2265 and that the Senate proceed to its immediate consideration. I further ask unanimous consent that the bill be read a third time and passed,

the motion to reconsider be made and laid upon the table.

The PRESIDING OFFICER. Is there objection?

The Senator from Tennessee.

Mr. CORKER. Madam President, I know the Senator from Kentucky tried to have this bill heard this week in a business meeting. I know the Senator knows I supported that effort to cause this bill to be marked up in the Foreign Relations Committee, which is where it should be dealt with.

I thank him for his concern about foreign aid. I think he has brought a voice to the Senate which has raised many concerns about how we are spending taxpayer money. I thank him for raising some of the issues he has brought forth. As it relates to the bill itself, I have spoken to officials from Israel. I know one of the goals is to do something that complements Israel and helps Israel.

I know they have some concerns with the way it is constructed and actually, in many ways if this bill were to become law, it would create a heightened security problem for Israel. So we have had a constructive conversation I think on the floor. I would like to talk with the Senator a little bit further about some potential changes to the legislation. I think that would be more appropriate than passing it by unanimous consent. I thank him again for his nature, the way he works with all of us. I object.

The PRESIDING OFFICER. Objection is heard.

The Senator from South Carolina.

Mr. GRAHAM. Madam President, I ask unanimous consent to enter into a colloquy with the Senator from Tennessee.

The PRESIDING OFFICER. Without objection, it is so ordered.

IRAN

Mr. GRAHAM. I know the Senator is supposed to be chairing a hearing here in a moment. But the Senator is the ranking member on Foreign Relations. I wish to compliment the Senator from Tennessee and Senator MENENDEZ. The Senators have been a very effective team. The subject matter is Iran. July 20 will be here shortly.

I ask Senator CORKER, what is his view of where we stand with the Iranian nuclear program and what are his concerns?

Mr. CORKER. First of all, no one has taken a more important role in our foreign policy and security issues than the Senator from South Carolina. I thank him for that. I know on my last trip to Afghanistan, he was there serving his Reserve duty. I thank the Senator for the many contributions to all of these debates. I want to say that I think, similar to many in this body, when the initial agreement was put forth and it had a 6-month extension on it, there was a lot of concern. What I am concerned about, and the Senator from South Carolina I think may share some of this, is that what we are going to end up with are a series of rolling interim agreements.

What we have is Iran doing everything they can to evade sanctions that have been put in place. We have countries that see the opportunity possibly for Iran to come out from under being a rogue state. I am worried we are putting ourselves in a situation where we are losing all of the leverage Congress, working with the administration, but Congress led on in putting these sanctions in place.

We are coming up on July 20. I was very disappointed that, in essence in March, the administration agreed to the fact that Iran would be able to have centrifuges to enrich uranium. It was something that, to me, at the beginning of a negotiation, to give one of the biggest things one can possibly give to a country such as Iran on the front end, put us in a very bad position.

But here is my concern: It is July 17. This agreement ends on July 20. I believe we are losing the leverage that all of us worked so hard to put in place. I am worried the coalition we have is dissipating. It feels to me as though Iran is rope-a-doping us on this agreement.

What I hope is going to happen—I know the Senator and I are going to be in a briefing later today. I hope the administration is going to share with us, very clearly, what the gaps are between where they are and where Iran is.

It is my hope that gap is going to be very narrow. I do not think that is going to be the case. My sense is the administration is going to ask for an extension over the next few days. That concerns me. Here is what I hope Congress will do: I hope Congress somehow will have the ability, through the majority leader's efforts and all of us on the floor, to weigh in on any final agreement that is put in place. I think that is very important. I know the Senator tried to produce legislation to make that happen. I have done the same thing.

Secondly, I hope the administration will agree there will be no more extensions, period. I am pretty sure they are going to be asking for one. It is unfortunate. When you put in place an agreement on the front end that you have that ability, it then creates the essence that it does not create the focus, if you will, that is necessary to bring this to a conclusion.

Again, what I hope will happen is that Congress will have a final say on any removal of sanctions—any removal of sanctions. But my hope is that before any type of sanctions relief takes place, Congress will have the opportunity to weigh in. I had a long conversation yesterday with our lead negotiator. I shared these same concerns, that I just feel the moment slipping away from us. I think all of us want to see a diplomatic solution. I do not think there is anybody on this floor that wants to see anything less than a great result diplomatically.

But I think many of us are concerned we are losing our leverage, time is slipping away, the coalition is dissipating. Some of the parties, as the Senator knows, have differing interests now. We have had some conflicts arise over the course of time where we are at significant odds with some of our partners in these negotiations.

With Russia we have the issue in Ukraine and Crimea. With China we have issues in the South and East China Sea. So all of this is making me very concerned about our ability to reach a diplomatic solution, even though I want more than anything—on this issue, more than anything, I want us to have a solid diplomatic solution that allows us to go forward and know that Iran does not have the ability to break out and become a nuclear threat to the region, to the world, and certainly create instability.

I yield the floor.

Mr. GRAHAM. I thank the Senator from Tennessee for his leadership. We are working together. We hope to make this bipartisan. If there is an agreement reached with the Iranians—and I agree, I hope there will be, that Congress can have a say about that agreement.

President Obama felt as though he needed to come to Congress to get approval to enter into Syria. The Senator led the effort to pass the resolution in the Foreign Relations Committee, the Senator and Senator MENENDEZ working together. The Senator from Tennessee delivered Republican votes to try to help the President. He drew a red line and nothing happened.

So if he believes he needs input from the Congress about going to Syria, I hope the President will understand that the Congress wants input when it comes to the Iranian nuclear program. As a matter of fact, I hope we will demand it, because of all the decisions President Obama will make in his two terms as President, on the foreign policy front this is the most consequential.

Why do I say this? The Iranian regime with a nuclear capability is a nightmare for the world.

Does Senator CORKER agree with me, based on his travels in the region, that if we allowed the Iranians to have a robust enrichment capability—and what am I talking about is taking uranium and enriching it to the point where they can use it for commercial fuel to run a nuclear power reactor. The problem with enrichment is you can go beyond making commercial grade fuel. You can actually use that process to make a bomb. Without enrichment capability you can't make the bomb.

So they are demanding the right to enrich and it was given away in March. It was a huge mistake.

If you made a list of countries you would not trust to enrich uranium—based on their behavior and disruptive nature—I would put Iran on the top of the list. My fear is that we are about to do with the Iranians what we did with the North Koreans—that you have a deal on paper that gives them an enrichment capability to be contained by

U.N. inspection. And in North Korea the rest is history.

When it comes to the Iranians, I am not going to turn our fate over, as a nation, to a bunch of U.N. inspectors trying to contain their uranium enrichment program. I know Israel will not.

But this is the ripple effect. Does the Senator agree with me that any right to enrich we give to the Shia Persians in Iran, the Sunni Arabs are going to insist on an equivalent right?

Mr. CORKER. The Senator is exactly right. I was in the region this year, and there is tremendous concern about, obviously, Iran breaking out in this regard. Candidly, there are many conversations about ways for them to compensate for that because they obviously want a counter to Iran's being a nuclear-armed country.

As you know, with some of the proliferation that takes place, there are ways of buying those capabilities without even developing them yourself. So, yes, that is a major concern.

Our friend, Senator MENENDEZ, on the other side of the aisle—with whom you work so closely—I certainly don't want to speak for him, but I use a frame of reference that he has used on so many occasions; that is, it is one thing to dismantle their ability to enrich and produce a nuclear weapon and it is a whole different thing to just mothball.

What I fear is that we are creating a situation where, again, we have these countries that come together, we have the sanctions that are in place, and we let those sanctions dissipate. Then all of a sudden—and I think the Senator knows already—the economy in Iran is picking up and inflation has dropped if you allow those to dissipate.

It took a lot of effort to put these sanctions in place. Again, there are a lot of differing interests today that didn't exist when these were put in place. Then all of a sudden we have a situation where they break out again because they have those capabilities. They have mothballed; they have not been dismantled. Not to speak of the fact that we don't know what is going on in Parchin—we don't know what may happen with the Arak facility.

Again, I hope the administration will be very clear about the gaps that exist today. My sense is they are going to extend and, again, I have grave concerns about what that is going to mean relative to getting to a good end.

Mr. GRAHAM. Along those lines, Senator MENENDEZ has been one of the leading voices in the Senate and in the Nation about having a cautious eye toward Iran.

They have an enrichment capability. Over the last decade it has grown moderately.

This idea of moderate voices in Iran—the President of Iran was elected as a moderate. I don't believe that dichotomy really exists. This whole game of good cop/bad cop is going on in front of our eyes—in this case good president/bad ayatollah.

The ayatollah, the Supreme Leader of Iran, weighed in a few days ago talking about centrifuges 10 times greater than they have today. I am sure what he is trying to do is become the bad guy. When he puts out the number 190,000 and you wind up with 15 or 20, it is like a good deal.

I can promise you one centrifuge in the hands of the Iranians is a risk. Thousands of centrifuges in the hands of Iranians is stupid. We would be crazy to let that happen.

If they want a nuclear power program for peaceful purposes, sign me up.

As a matter of fact, as far as any deal, I would put in the deal the ability for the international community—Russia, the United States, and China working together or separately—to build a powerplant inside of Iran to give them nuclear power as long as we control the fuel cycle.

Fifteen nations have nuclear power programs that do not enrich. Canada and Mexico have nuclear power programs, but they don't enrich uranium.

As a matter of fact, we are telling our friends in South Korea: Don't begin to enrich. We are telling our friends in the United Arab Emirates: You can have nuclear power, but don't enrich.

I would find it incredible for us to tell allies that we trust them not to enrich because it could set off unintended consequences, but we are agreeing to let one of the enemies of mankind have that capability because they are demanding it.

I hope and I pray a deal can come about that will neuter the nuclear ambitions of the Iranians and give them what they claim to want—a peaceful nuclear power program. But I don't believe that is what they want. I don't think they would be doing all the things they have been doing—lying, cheating, and building plants under a mountain—if all they wanted was a peaceful nuclear power program.

As a matter of fact, our intelligence community tells us the program they have today has been put to military use. They denied that, but we can't get to the bottom of it.

What is the Senator's view about the likelihood of the Iranians lying about the fact that they have tried to militarize their program?

Mr. CORKER. I think, based on past behavior, that would be one's expectation. Again, we know there are facilities that are operating, and we haven't been able to get into those facilities.

When you look at the facts, one of the things that is not even being addressed is the whole delivery system—their ability to deliver the weaponry. None of this discussion thus far, to my knowledge, has anything to do with their developing capabilities to actually deliver a nuclear weapon.

What I am concerned about—the Senator focused on the centrifuges and it is the central issue—no question. I think the Senator has wisely pointed out how the Supreme Leader has tried to move the goalpost so far down the field that just getting to the 30- or 40-yard line looks good to us. But we also did the same on the front end of the deal by acknowledging in the preamble or the four-page agreement that enrichment certainly could occur.

But here is what is happening, I fear. On every other single portion—not just the centrifuge—the goal posts are being moved. In other words, the things that we thought were going to take place on the front end—whether it was the Arak facility and what was going to occur there or what was going to happen in other pieces of the deal—all of that adds up to very important elements or a final deal. I am afraid what is happening is the goalpost is moving on all of those as time goes on.

Mr. GRAHAM. I couldn't agree more. As a matter of fact, dismantling has become something new. They have a big stockpile of highly enriched uranium. We are talking about diluting it, but the U.N. resolution called for its removal, so this deal is to the left of the U.N. resolution. As a matter of fact, this whole agreement is getting to the left of what the United Nations has been.

What about this scenario? It is one thing to have fissile material in the hands of the ayatollah and they could make a bomb, but they still have a lot of highly enriched uranium still inside of Iran. What is the possibility of a dirty bomb, where they turn that highly enriched uranium over to a terrorist organization and it makes its way here without their fingerprints being on it?

Mr. CORKER. One of the ways that Iran has destabilized the region has been through proxies that it funds.

Let's face it. Until they became involved in Syria—as the Senator has talked about on the floor—through their proxy, Hezbollah, actually the moderate in the opposition was gaining ground. So their utilization of terrorist groups to achieve their end, obviously, is their normal mode of operation.

Mr. GRAHAM. Yes, continue.

Mr. CORKER. So when you think about the possibilities of their being able to create, as the Senator mentioned, a dirty bomb—which would create tremendous terror wherever it might have been implemented—that is something I think is frightening—more than frightening.

It would be something that would be not quite as destabilizing as, obviously, having a full-blown nuclear weapon, but something that would be very damaging to world security.

Mr. GRAHAM. I know we are going to have a vote in a second, but we will end our thoughts.

The reason 3,000 Americans were killed on 9/11 and not 3 million is that the terrorist groups that wish us harm could not find capabilities beyond the airplanes. They are trying. They are trying to get weapons of mass destruction, chemical weapons, highly enriched uranium, fissile material.

My fear is that if a regime such as Iran is given the capability to enrich,

it will become a North Korea where they break out.

I will not turn the fate of the United States over, with my vote, to a bunch of U.N. inspectors—where the only hope of a breakout is a bunch of U.N. inspectors.

The whole real goal for me is to have a capability that is very small, face-saving in nature, that can't lead to a breakout. Don't have something robust that can lead to a breakout and expect the U.N. to protect us because they can't. They didn't do it in North Korea.

At the end of the day I think the decision we are going to make as a nation—through our President—hopefully with direction and input, will be the biggest decision we have made as a nation on the foreign policy front in decades, because, if we get this wrong, if we allow the Iranian ayatollah to achieve a new nuclear capability, every Sunni Arab is going to want like capability, and we are on the road to Armageddon.

Look at the Middle East and ask yourselves: Is this a good place to give people nuclear capability? Would they use it?

Hamas is firing every rocket in its inventory, and they could care less where it lands; they hate Israel that much.

The Sunni Arabs feel more threatened by the Shia Persians than they do by the Israelis.

It is commonly believed that Israelis have a nuclear capability. Not one Sunni nation has tried to procure a weapon of their own to counter that presumed capability. Every Sunni Arab state has told me, you, and everybody else who will listen, that if the Shia Persians get a capability they are going to match that capability because they see that threat as existential.

Israel sees the threat in Iran—with a nuclear capability in Iranian hands—as existential.

I see it as existential to the United States. We have an opportunity here for negotiations to end this well. But what I hope we will not do is, through negotiations, create a scenario where they break out like the North Koreans.

If I have the choice between a bad deal through negotiations that will lead to a nuclear Iran over time and military force—as distasteful as that might be—I am going to pick military force because we have to stop their ambitions to become a nuclear nation.

If we don't stop them, it would be similar, in my view, to have let Hitler have the bomb when we could have done something about it.

Mr. CORKER. I thank the Senator again for his tremendous contributions to this body and every foreign policy debate that we have.

The President did seek congressional approval on the authorization of the use of military force in Syria. It was not something he had to do, but he sought it, and I am pleased that he did.

I was proud to be a part of writing that agreement with our chairman and other members of the committee to give him the power to do that. And actually, to be candid, I regret that things took the course they took, but the President elected to do that.

As the Senator mentioned, a nuclear-armed Iran is a whole different scale. What I hope will happen is that the President will agree there will be no more extensions if they ask for one in the next few days, and I am almost certain that is what is going to happen.

No. 2, I hope you will commit to letting Congress weigh in on the final decision. I actually think that will be useful for them in the negotiation. I really do think that having a backstop would be useful to them, but if the President doesn't agree to that, I hope we, on our own, will pass legislation which ensures that is the case.

I yield the floor.

Mr. GRAHAM. I concur, and I yield back.

The PRESIDING OFFICER. The Senator from Virginia.

Mr. KAINE. Madam President, I ask unanimous consent to speak for 5 minutes as if in morning business.

The PRESIDING OFFICER. Without objection, it is so ordered.

CARING FOR REFUGEES

Mr. KAINE. Madam President, in the last year I have been to Jordan, Turkey, and Lebanon to visit Syrian refugees and the organizations that work with them. I have seen the effects of refugees fleeing violence on these nations. Lebanon has 4 million people. They are having to care for 1 million refugees from Syria—one in four members of their population.

These countries, especially Jordan and Lebanon, are small—much smaller than the United States. They are much poorer than the United States. Jordan has very little water for their own citizens, much less refugees, but they have shown a real sense of compassion and hospitality in treating these Syrian refugees who are fleeing violence and coming over their border. Lebanese citizens even run double school shifts—their own kids in the morning and Syrian refugees in the afternoon.

When I have been in the Middle East in these countries, I have wondered what would happen if refugees fleeing violence in other countries came to the United States. I wonder if we would show the same compassion to refugees that is being shown by these poorer nations.

I wish to say a few words about the crisis at the border now because we are now faced with that question—refugees fleeing violence and coming to the United States.

Who are the children coming to the United States? They are overwhelmingly refugees from three Central American countries—52,000 just this year. They are not just coming to the United States; they are also flooding into Costa Rica and Nicaragua.

Senator MENENDEZ held a hearing this morning, and we had testimony. What is the reason they are coming? And the testimony was this: The reason they are coming is overwhelmingly the violence in the neighborhoods where they live that forces their parents to decide that to keep them safe, they should leave.

What is the source of the violence? Again, overwhelmingly, the testimony is that the source of the violence is the drug trade that has corrupted the neighborhoods and made them dangerous. The kids are fleeing violence driven by the drug trade.

Here is the sort of sad punch line: Where does the drug trade originate? The drug trade is originating because of the significant demand in the United States for illegal drugs, especially cocaine.

So these kids are fleeing to the United States because Americans are buying illegal drugs in such numbers and the dollars being shipped south are creating conditions for gang warfare and cartels, turning these nations into transit points for drugs.

I know these children, and I know their neighborhoods. I lived in El Progreso, Honduras, in 1980 and 1981. Six hundred kids from El Progreso have already come to the United States as unaccompanied refugees this year.

Honduras, a beautiful country with beautiful people, a longtime ally of the United States, is now the murder capital of the world. There are more people murdered in Honduras than in any other country. El Salvador is No. 4 in the world, and Guatemala is No. 5 in the world.

I recently met with President Hernandez of Honduras to talk about what we can do. So what should we do? Let's get to the prescription. What should we do?

First, we have to stop blaming the kids or assuming they are bad people. They are not. We need to show the same compassion for refugees fleeing violence and coming to the United States as nations such as Lebanon, Turkey, and Jordan show to refugees fleeing violence and coming to their nations.

Secondly, we need to work on our legal process and the resources the President asked for. I have some criticisms of exactly how those dollars will be spent and the particular protections these refugees need when they arrive. Remember, it is a 2008 law we are dealing with that was passed unanimously by Congress and signed by President Bush.

We need to do immigration reform. The fact that we haven't done it for so long creates a sense of confusion. If we can clearly elaborate what our immigration policy is, it will dispel myths.

More support for security in Central America is critical. We need to interdict more drugs. General Kelly, the head of SOUTHCOM, says we let 75 percent of the drugs that come into the United States go by us. We know where they are, but we haven't put the military resources in place to interdict them.

Finally, we have to tackle the U.S. demand for drugs because that is what is driving the violence in the neighborhoods which is causing kids to flee.

In conclusion, this year is the 75th anniversary of a very shameful event—the voyage of the St. Louis. The St. Louis was a ship that left Germany in 1939 with hundreds of Jews onboard. These Jews were fleeing violence and antisemitism to come to the new world. They were not allowed to disembark in Cuba, they were not allowed to disembark in the United States, and they were not allowed to disembark in Canada. Eventually, the ship had to be routed back to Europe, where, research shows, hundreds of those Jews who had to get back off in Europe died in the Holocaust.

The testimony this morning was that if we, without due process, send these children home, many will die as a result.

The PRESIDING OFFICER. The Senator's time has expired.

Mr. KAINE. That lesson of the St. Louis should stick with us, and there are many things we can do to avert this crisis and to show our good hearts as Americans.

EXECUTIVE SESSION

The PRESIDING OFFICER. Under the previous order, the Senate will proceed to executive session.

CLOTURE MOTION

The PRESIDING OFFICER. Pursuant to rule XXII, the Chair lays before the Senate the pending cloture motion, which the clerk will state.

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, hereby move to bring to a close debate on the nomination of Julie E. Carnes, of Georgia, to be United States Circuit Judge for the Eleventh Circuit.

Harry Reid, Patrick J. Leahy, Sheldon Whitehouse, Patty Murray, Elizabeth Warren, Charles E. Schumer, Jack Reed, Christopher A. Coons, Dianne Feinstein, Angus S. King, Jr., Benjamin L. Cardin, Mazie K. Hirono, Richard Blumenthal, Amy Klobuchar, Christopher Murphy, Cory A. Booker, Martin Heinrich.

The PRESIDING OFFICER. By unanimous consent, the mandatory quorum call has been waived.

The question is, Is it the sense of the Senate that debate on the nomination of Julie E. Carnes, of Georgia, to be United States Circuit Judge for the Eleventh Circuit, shall be brought to a close?

The yeas and nays are mandatory under the rule.

The clerk will call the roll.

The assistant legislative clerk called the roll.

Mr. DURBIN. I announce that the Senator from Alaska (Mr. BEGICH), the Senator from Delaware (Mr. COONS), the Senator from Vermont (Mr. SANDERS), and the Senator from Hawaii (Mr. SCHATZ) are necessarily absent.

Mr. CORNYN. The following Senators are necessarily absent: the Senator from Tennessee (Mr. ALEXANDER), the Senator from Oklahoma (Mr. COBURN), the Senator from Kansas (Mr. MORAN), the Senator from Kentucky (Mr. PAUL), and the Senator from Kansas (Mr. ROBERTS).

Further, if present and voting, the Senator from Tennessee (Mr. ALEXANDER) would have voted ''nay.''

The PRESIDING OFFICER. Are there any other Senators in the Chamber desiring to vote?

The yeas and nays resulted—yeas 68, nays 23, as follows:

[Rollcall Vote No. 232 Ex.]

YEAS—68

Ayotte	Harkin	Murphy
Baldwin	Hatch	Murray
Bennet	Heinrich	Nelson
Blumenthal	Heitkamp	Portman
Booker	Hirono	Pryor
Boxer	Inhofe	Reed
Brown	Isakson	Reid
Cantwell	Johanns	Rockefeller
Cardin	Johnson (SD)	Schumer
Carper	Kaine	Sessions
Casey	King	Shaheen
Chambliss	Klobuchar	Shelby
Coats	Landrieu	Stabenow
Cochran	Leahy	Tester
Collins	Levin	Udall (CO)
Donnelly	Manchin	Udall (NM)
Durbin	Markey	Walsh
Feinstein	McCain	Warner
Flake	McCaskill	Warren
Franken	Menendez	Whitehouse
Gillibrand	Merkley	Wicker
Graham	Mikulski	Wyden
Hagan	Murkowski	

NAYS—23

Barrasso	Enzi	McConnell
Blunt	Fischer	Risch
Boozman	Grassley	Rubio
Burr	Heller	Scott
Corker	Hoeven	Thune
Cornyn	Johnson (WI)	Toomey
Crapo	Kirk	Vitter
Cruz	Lee	

NOT VOTING—9

Alexander	Coons	Roberts
Begich	Moran	Sanders
Coburn	Paul	Schatz

The motion was agreed to.

The PRESIDING OFFICER. On this vote the yeas are 68, the nays are 23. The motion is agreed to.

NOMINATION OF JULIE E. CARNES TO BE UNITED STATES CIRCUIT JUDGE FOR THE ELEVENTH CIRCUIT

The clerk will report the nomination. The assistant legislative clerk read the nomination of Julie E. Carnes, of Georgia, to be United States Circuit Judge for the Eleventh Circuit.

NOMINATION OF DAVID B. SHEAR TO BE AN ASSISTANT SECRETARY OF DEFENSE

The assistant legislative clerk read the nomination of David B. Shear, of New York, to be an Assistant Secretary of Defense.

The PRESIDING OFFICER. If there is no further debate, the question is, Will the Senate advise and consent to the nomination of David B. Shear, of New York, to be an Assistant Secretary of Defense?

The nomination was confirmed.

NOMINATION OF DAVID ARTHUR MADER TO BE CONTROLLER, OFFICE OF FEDERAL FINANCIAL MANAGEMENT, OFFICE OF MANAGEMENT AND BUDGET

The PRESIDING OFFICER. Under the previous order, the Senate will proceed to consider the following nomination, which the clerk will report.

The assistant legislative clerk read the nomination of David Arthur Mader, of Virginia, to be Controller, Office of Federal Financial Management, Office of Management and Budget.

The PRESIDING OFFICER. If there is no further debate, the question is, Will the Senate advise and consent to the nomination of David Arthur Mader, of Virginia, to be Controller, Office of Federal Financial Management, Office of Management and Budget?

The nomination was confirmed.

The PRESIDING OFFICER. Under the previous order, the motions to reconsider are considered made and laid upon the table. The President will be immediately notified of the Senate's action.

LEGISLATIVE SESSION

The PRESIDING OFFICER. The Senate will resume legislative session.

BRING JOBS BACK HOME ACT—MOTION TO PROCEED—Continued

The PRESIDING OFFICER. The Senator from New Hampshire.

Mrs. SHAHEEN. Madam President, I come to the floor today to reiterate my opposition to legislation that would impose new tax burdens on businesses in New Hampshire and I believe would have a serious impact on our economy.

Earlier this week Majority Leader REID started a fast-track process to bring a bill to the floor that includes the so-called Marketplace Fairness Act. This is legislation that would for the first time allow States to collect sales taxes from businesses in New Hampshire. As a result, this bill would impose significant new tax compliance burdens on entrepreneurs in New Hampshire—the same entrepreneurs who are trying to grow their businesses and create jobs on the Internet.

In New Hampshire we don't have a sales tax, so our businesses are not used to collecting one. That is why New Hampshire businesses are so concerned that if this bill passes, they will

be forced to collect sales taxes from not just 1 State but 46 other States and 9,600 taxing jurisdictions across the country. The redtape would be a nightmare for small companies with only a few employees.

I heard from one small business owner in Hudson, NH. His business is about to reach $1 million in revenue, but his company has only six employees. Under the legislation, the so-called Marketplace Fairness Act, his company might be considered a large business. The company has plans to grow, but it would be forced to reconsider as it approaches this arbitrary threshold and then is covered under the so-called Marketplace Fairness Act.

E-commerce has been a real boon to small businesses in New Hampshire and across the country. It has helped companies find new markets for their products and new revenues. But for companies looking to grow through online sales, this legislation represents an artificial ceiling for creating jobs and expanding jobs through e-commerce.

I will raise a few concerns about what this legislation would mean for small business. First, each State has different sales and use taxes, so businesses would need new software to figure out how to collect and remit those taxes. Small businesses would also need to collect personal information from each buyer to make sure they are complying with all State and local sales taxes. These small businesses might then have to deal with audit and enforcement actions from other States, and the same businesses might have to answer to taxing authorities in places where they have no representation whatsoever. As States and localities consider new taxes, these small businesses would have no voice in that process because they have no representation in those jurisdictions.

These are just a few examples of the many unintended consequences this legislation would create. These burdens on small businesses will stifle e-commerce. That is why it was so disappointing to learn that the sponsors of the so-called Marketplace Fairness Act have attached it to another measure that is meant to encourage e-commerce, the Internet Tax Freedom Act. That legislation bans taxes on Internet access.

The Internet Tax Freedom Act has broad bipartisan support. I am proud to be an original cosponsor of this legislation. Since 1998 the Internet Tax Freedom Act has kept the Internet free of new taxation, which has helped the Internet flourish and become the driver of economic activity it is today.

Unfortunately, this ban on new Internet access taxes expires this November, and Congress must take action to keep the Internet tax-free. I strongly support keeping the Internet tax-free, and the vast majority of Congress supports it. In fact, just this week the House voted to make this ban on Internet taxation permanent. The Internet Tax Freedom Act could pass the Senate and the House today with strong bipartisan support. Yet based on the action earlier this week, the Senate may be asked to consider a bill that includes new tax burdens on small businesses. That is right. It doesn't make sense, but on a bill that is meant to keep the Internet free from taxation, there is now an effort to impose new tax collection burdens on Internet retailers, and that not only doesn't make sense, I think it is just wrong.

Just yesterday I sent a letter with a bipartisan group of our colleagues urging leadership to bring a clean Internet Tax Freedom Act bill to the floor. I was joined by Senators CRUZ, AYOTTE, TESTER, MERKLEY, and PAUL. We believe the Internet should be tax-free and that we should pass this noncontroversial legislation as soon as possible.

We also think it is wrong to use a critical, must-pass extension of this law to keep the Internet tax-free as a vehicle to pass a fundamental shift in how e-commerce operates. Combining these two very different issues into one bill does nothing to protect New Hampshire's small businesses from the flawed so-called Marketplace Fairness Act.

We should keep this Internet sales tax legislation from moving forward, the so-called Marketplace Fairness Act. We should do that because it is bad for New Hampshire and the other States that have no sales taxes that are in the same position as New Hampshire. It is bad for small businesses and it is bad for our economy.

Thank you very much, Madam President. I yield the floor and note the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mrs. SHAHEEN. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mrs. SHAHEEN. Madam President, I wish to recognize my colleague from New Hampshire, Senator AYOTTE, who I think has come to the floor to also express her concerns about the commingling of the Internet Tax Freedom Act with the so-called Marketplace Fairness Act. She will be speaking from her perspective about the concerns it places on New Hampshire's small businesses. I am very pleased to see my colleague from New Hampshire here to also express her concern about what is happening.

The PRESIDING OFFICER. The Senator from New Hampshire.

Ms. AYOTTE. Madam President, I certainly wish to thank my colleague from New Hampshire, Senator SHAHEEN.

As she has stated, New Hampshire doesn't have a sales tax. There is absolutely nothing fair about the so-called Marketplace Fairness Act, especially for a State such as New Hampshire. It should be more appropriately named the Internet sales tax collection act, because that is what it is—the Internet sales tax collection act. I certainly appreciate the work I have done with my colleague, both of us fighting the Marketplace Fairness Act, because there is nothing fair about it for New Hampshire and, frankly, nothing fair about it for online businesses across this country.

This act would ask our online businesses that have been thriving and growing—many people have started these businesses from their homes and we have seen those businesses flourish in our home State of New Hampshire—to become tax collectors for States that are greedy for revenue, and it would trample on the decision of a State such as New Hampshire not to have a sales tax. What it would mean for online businesses is they would have to become the tax collector not just for the 50 States, but they would actually have to become a tax collector for over 9,000 taxed jurisdictions in this country. Talk about a bureaucratic nightmare for an online business. Talk about an act that is going to put onerous burdens on an area of commerce that we have seen such great growth in. Talk about an act that is totally misnamed because there is nothing fair about it; it really is an Internet sales tax collection act.

In my home State of New Hampshire I have had so many online businesses write me about how this act—this MFA act—is going to hurt their business and is going to place onerous requirements on our businesses. Not only would they be forced to collect taxes for these other jurisdictions—over 9,000—but can we imagine what will happen once one of those jurisdictions—a municipality that is allowed to tax—changes their tax amount? Then, suddenly, they have to update their collection method. Guess what. If they get it wrong, they are subject to being sued in some other State, some other jurisdiction.

This is going to hurt the development of more online businesses because it creates a big bureaucracy. It is totally inappropriate. Why are we asking these thriving online businesses to become the tax collectors for States? The reason we have over 9,000 jurisdictions they have to collect for is because it is not just States; in some States even the municipal level has its own sales tax that can be collected. What a mess.

Then we see what is happening in Washington. The majority leader rule XIV'd a bill, and what he did is he attached the Marketplace Fairness Act, which I prefer to call the Internet sales tax collection act, to what was just passed in the House of Representatives: the Internet Tax Freedom Act. Talk about ironic. The Internet Tax Freedom Act is legislation I strongly support. This legislation is going to prevent taxes over the Internet, taxing the Internet that could hit all of us in some way, so that we can protect the freedom of the Internet and the growth

we have seen on the Internet. It is widely supported on both sides of the aisle, as my colleague from New Hampshire said.

So the irony is that here we have an act that is so widely supported—the Internet Tax Freedom Act—providing a tax-free Internet—and the majority leader decides to attach to it the so-called Marketplace Fairness Act, which is really the Internet sales tax collection act. That legislation creates new onerous burdens on online businesses to become the tax collectors for over 9,000 tax jurisdictions. We can see the irony of it. Here we have bipartisan support for freedom from taxes on the Internet that should be extended to allow the Internet to thrive and grow and continue to grow, and the majority leader, without a hearing—because when he rule XIV's it, there is no committee hearing. It doesn't go through the committee process where we can have hearings on the burdens this will place on online commerce and on online businesses not only in my home State of New Hampshire but in other businesses across the country. There was no hearing for this. It is an issue both sides of the aisle agree with: Let's keep the Internet tax-free. Then the majority leader attaches onto it with no hearing, under rule XIV, this onerous requirement which I like to call the Internet sales tax collection act. Of course, in Washington, they always name these acts to make us think it sounds good, so they call it the Marketplace Fairness Act. That is the irony. Only in Washington would we have rammed this through this process, without a committee hearing—legislation that protects Internet freedom, that has strong bipartisan support, attached with it new onerous burdens on Internet businesses to become the sales tax collectors for the Nation.

I join in what my colleague from New Hampshire just said. I think it is wrong that this bill is being pushed forward with the Internet Tax Freedom Act that has such strong support, that should be brought to this body as a stand-alone bill, not with these new burdensome requirements that are set forth in the so-called Marketplace Fairness Act, otherwise known as the Internet sales tax collection act. The people of this country deserve to have a free, tax-free Internet. The online businesses of this country that are thriving and growing shouldn't become the tax collectors for States and municipalities that are greedy for more revenue. It is their job to collect their taxes. It shouldn't be an online business's job to collect taxes for over 9,000 jurisdictions, because we can only imagine how many changes will happen and what kind of paperwork nightmare that will create for those businesses. I have heard it from our businesses firsthand.

I hope this body will oppose any effort to vote for a bill that connects Internet tax freedom with Internet sales tax collection, because the two are antithetical. One works against the other. One ensures the freedom of the Internet to be tax-free and the other one creates new burdensome requirements on online businesses and actually works against, in my view, the thriving commerce we see over the Internet and has resulted in more choice for all of us as consumers in this country.

MALAYSIAN AIRLINES CRASH

Madam President, we all learned today, very shockingly, that there was a Malaysian Airlines flight shot down over Eastern Ukraine and that, reportedly, 295 people lost their lives in that incident. Reportedly, 23 Americans were listed on the manifest. I wish to offer my thoughts and prayers to the families of the victims of that plane that went down over Eastern Ukraine, and I want them to know they are in our thoughts and in our prayers.

I wish to raise the issue as following: There is an investigation going on. We don't know yet who is responsible or if anyone is responsible. The facts will come forward as to why this plane went down. But it has been widely reported that the plane was, in fact, shot down. Some of the reports have said it was done by a medium-range surface-to-air missile system.

We know that most recently there has been tremendous violence in Eastern Ukraine. If the investigation of this plane going down reveals that either Russia or Russian agents are responsible or indirectly responsible for shooting down this civilian airliner, there should be serious consequences.

What we know is that Vladimir Putin and the Russians have been responsible in fomenting the situation that has occurred in Eastern Ukraine where there has been violence, there has been recruiting, training, and funding of Russians and Russian agents, sending them to Eastern Ukraine to fight the Ukrainian Government, interfering with the sovereignty of Ukraine. This was following the illegal invasion and annexation of Crimea, the territory of Ukraine, by the Russian Government, and the Russians have taken over that portion of Ukraine.

We will wait to see what the investigation reveals for the downing of this plane. Our prayers are with the families who have lost loved ones. But I believe there should be serious consequences if we find out it was either Russian agents, Russian equipment, or Russia directly that was responsible for this airliner going down.

Yesterday the administration announced it would impose and was imposing greater sanctions on Russia for their activities of fomenting violence in Eastern Ukraine.

I want to thank the administration for finally coming forward and putting forth more serious sanctions against Vladimir Putin, against the Russian Government, for what they have done to interfere with the sovereignty of Ukraine.

It is an important step forward, and I hope Vladimir Putin understands there are even greater sanctions that can be imposed if the sanctions that were announced yesterday by the administration that involve some sectoral sanctions against major industries in Russia and individuals—if they do not heed the warning that is coming from those sanctions, I hope Vladimir Putin and the Russian Government understand there are much tougher sanctions that can also be imposed if they do not heed the sanctions that were put in place yesterday and stop fueling the violence in Eastern Ukraine.

We need to understand the context of what we have seen happen in Eastern Ukraine. The separatists, the so-called separatists, in Eastern Ukraine are funded, equipped, and supported by the Kremlin. Vladimir Putin could end the violence in Eastern Ukraine tomorrow if he chose to. He essentially has operational control of what these violent separatists are doing to interfere with the sovereignty in Ukraine. He is responsible for the violence, and I would call on him to end that violence, to stop funding these separatists, to stop providing them with equipment that is being used against the Ukrainian people and the Ukrainian military, and to allow the people of Ukraine to determine their future. That is what they want.

I had the privilege of going to Ukraine for their Presidential election, and I was inspired by the people who went to the polls. I will never forget being there at the first polling station that day in the Presidential election and an older gentleman came to the polls and cast his ballot and said: For democracy.

The people of Ukraine want to determine their own future, just as we determine our future in this country. Vladimir Putin and Russia should allow the people of Ukraine to decide their future. They should stop interfering with the sovereignty of Ukraine.

This is not a Ukrainian uprising of disenfranchised Russian-speaking Ukrainians. What is happening in Eastern Ukraine is a Kremlin-instigated, armed, funded, trained, and fueled aggression against the people of Ukraine and their duly elected government.

This is cynical and blatant aggression by Putin against Ukraine, and Putin continues to undermine Ukrainian sovereignty and security by arming these separatist rebels, massing Russian troops at the border of Eastern Ukraine in a very threatening way, and also threatening to increase further coercive measures against Ukraine.

The people of Ukraine need our help. The Ukrainian people are willing to risk their lives and have been risking their lives to defend the sovereignty of their country against President Putin's aggression, but the Ukrainian Government desperately needs our assistance.

In particular, the prior administration of Ukraine that left—President Yanukovych was very aligned with Russia—gutted their military and much of the equipment they need to be able to defend themselves.

Let me say, they have gone there and bravely defended themselves, even without having some of the equipment they need that was really lost by their military because of the prior administration and neglect of the Ukrainian military.

Ukrainians need assistance—and not only the sanctions the administration has issued, which could get tougher but they need military assistance from our country.

We have to keep in mind the Ukrainians gave up their nuclear weapons under the Budapest Memorandum. In return—our country, the Russians, were signatories to the Budapest Memorandum—in return for security assurances, the least we can do for them is give them the means to defend themselves.

I know the Ukrainian Government has asked us for antitank weapons, antiaircraft weapons, small arms, the sharing of intelligence so they can defend their own border. It is the least we can do for them, given that they gave up their nuclear weapons.

What country is going to give up their nuclear weapons again if we will not even give them some basic military assistance so they can defend themselves? They are not asking us to send our troops in. They are not asking for things like that. They are willing to defend themselves and they need our help to do so.

Finally, President Obama said in his June 4 speech in Poland: ''Our free nations will stand united so that further Russian provocations will only mean more isolation and costs for Russia.'' I call on the President to continue to take action and to stand by those words. Those words meant a lot to the Ukrainian people, and it is important that we follow through on those words because it is in the national security interests of the United States to stand with the people of Ukraine and their legitimately elected government as they seek to protect their sovereignty.

If we are not willing in these circumstances to stand by giving them some basic military support they have asked for, after having given up their nuclear weapons, then what lessons will other actors in the region and around the world take from that?

I think lesson No. 1 is: Why would you ever give up your nuclear weapons? In a world where we are hoping to reduce proliferation, this is not a good message for us to send.

No. 2: What will our allies in the region think if we will not stand against Russian aggression under these circumstances?

You have already seen concerns, of course, by the countries in the region that can be impacted by Russian aggression, whether it is Georgia, Moldova—concerns we have seen for further support from Poland, important allies in the region.

To put it in perspective of why we need to give this military support—in addition, we do not know what happened, but we will find out, with the downing of this commercial passenger plane and the tragic loss of 295 individuals. Over the last month, we have seen that on June 14 pro-Russian separatists shot down a Ukrainian military transport, killing all 49 people on board; on June 16, Gazprom—Russia's giant state-controlled gas company—announced they are cutting off gas supplies to Ukraine.

Just this Monday, a Ukrainian cargo plane was shot down and Ukrainian officials believe it was shot down by missiles fired from Russia.

Last night, a Ukrainian fighter jet was shot down. Ukrainians also believe the Russians were involved in shooting down that fighter jet.

We will find out what happened to this passenger plane but it was in airspace where there have been instances of Russian agents directly involved in shooting down Ukrainian planes.

So it is important that we give the Ukrainian people the capacity to defend themselves under those circumstances. It is the least we can do, given that they are willing to stand up for their own sovereignty, that they are strong friends of the United States of America. If our allies in the region think we will not stand with the sovereignty of Ukraine under these situations, it is going to create a situation where our allies will not feel they can rely on the United States of America.

It also creates a situation where allies, friends, rivals, bullies, potential adversaries take the wrong message from it. For example, thinking about what is happening right now with the negotiations with Iran, if we are a country not willing to follow through to assist our friends—under circumstances where, for example, Ukraine gave up its nuclear weapons—with some basic military support, what kind of message will that send to the negotiations going on with Iran right now as to why they should give up their nuclear program?

So this is a very important moment for the United States of America. I again want to say that the steps the administration took to impose additional sanctions this week are a very important step. I support those. I hope Vladimir Putin and Russia heed what those sanctions mean. Those sanctions will have an impact on the Russian economy, but we can impose even stronger sanctions against Russia if they do not stop funding and causing the violence in Eastern Ukraine and interfering with the sovereignty of the Ukrainian people.

The people of Ukraine have our respect. They have stood for themselves. They had a free and fair election that I was able to observe. They elected their President, and now they want to determine their own future, and they want Russia to respect the sovereignty of their country—what any country in this world should be able to expect: that another country will respect their sovereignty.

Unfortunately, Vladimir Putin has been a bully in all of this and has not respected the sovereignty of Ukraine. He should understand the sanctions that were issued this week are a message to him to stop what he is doing in Eastern Ukraine, and we can issue even tougher sanctions—and should issue tougher sanctions—if he continues to act like a bully who thinks he can go into other countries, take their territory, and push people around in those countries, as we have seen in Ukraine.

This matters to the world because we cannot have people like Putin thinking they can invade another country without consequences.

Finally, I would hope we would provide more support to the Ukrainian military, given that they have been willing to stand for their own defense, to secure their own border, to stand for their own sovereignty, but it is very difficult for them to do so when they are facing Russian-supported separatists, Russian tanks, Russian antiaircraft equipment, and more sophisticated technology than they have at the moment.

We can help them by ensuring that they have the equipment to protect themselves, to protect their border, and to let Russia know there will be consequences if they continue to interfere with the sovereignty of Ukraine or any other country.

I thank the Chair.

I suggest the absence of a quorum.

The PRESIDING OFFICER (Ms. WARREN). The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mr. SESSIONS. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

STEM JOBS

Mr. SESSIONS. Madam President, three of our greatest 'masters of the universe'—as I like to refer to them—have joined in an op-ed in the New York Times just last week to share their wisdom from on high and to tell us in Congress how to do our business and to conduct immigration reform they think should be pleasing to them. I am sure other super billionaires would be glad to join with these three super billionaires and could agree on legislation that would be acceptable to them.

Sheldon Adelson, Las Vegas casino magnet and Republican supporter; Warren Buffett, the master investor; and Bill Gates, the master founder of Microsoft computer systems, all super billionaires, apparently aren't happy. They don't have much respect for Congress and, by indirection, the people who elect people to Congress, it appears from the tone of their article—you know, American people, that great unwashed group; nativists, narrow-minded patriots, possessors of middle-class values. They just don't understand as we know, we great executives and entrepreneurs.

So they declare we need to import more foreign workers in computer science, technology, and engineering, because the country is ''badly in need of their services.'' They say we are badly in need of importing large numbers of STEM graduates. That is something we have all heard and many of us have perhaps assumed is an accurate thing.

These three individuals, all generous men, have contributed to a lot of causes, and I am teasing them a lit bit. They didn't mind sticking it to Congress, so I just tease them and push back a little bit.

They particularly praised the Senate for its elimination of any limits on the number of work visas that could be awarded to immigrants who have a degree in science, technology, engineering, and mathematics and have a job offer.

This is the op-ed in the New York Times last Thursday: ''Sheldon Adelson, Warren Buffett, and Bill Gates on Immigration Reform.''

What did we see in the newspaper today? News from Microsoft—was it that they are having to raise wages to try to get enough good, quality engineers to do the work? Are they expanding or are they hiring? No, that is not what the news was, unfortunately. Not at all.

This is the headline in USA Today: ''Microsoft to cut up to 18,000 jobs over next year.''

Microsoft confirmed it will cut up to 18,000 jobs over the next year, part of the tech titan's efforts to streamline its business under a new CEO . . .

That is a significant action. Indeed, Microsoft employs about 125,000 people, and they are laying off 18,000. The company laid off 5,000 in 2009. Yet their founder and former leader, Mr. Gates, says we have to have more and more people come into our country to take those kinds of jobs.

It is pretty interesting, really. We need to be thinking about what it all means and ask ourselves: What is the situation today for American graduates of STEM degrees and technology degrees? Do we have enough? And do we need to have people come to our country to take those jobs? Or, indeed, do we not have a shortage of workers, and do we have difficulty of people finding jobs?

These are some of the facts I think we should look at. President Obama, Senate Democrats, and House Democrats have endorsed a proposal, a bill that passed the Senate, that would double the H–1B foreign workers that come into America for one reason—not to be a citizen, not to stay indefinitely, but to take a job, double the number, to come to take a job for several years. The great majority of these guest workers are not farm workers. They take jobs throughout the economy.

So how should we think about this? The U.S. Census Bureau reports that three-fourths of American with STEM degrees—science, technology, engineering, mathematics—don't have jobs in STEM fields. According to a recent newspaper from the Economic Policy Institute:

''Guestworkers may be filling as many as half of all new information technology jobs each year.''

It goes on. ''IT workers earn the same today as they did, generally, 14 years ago.'' Wages aren't going up, and in many cases they are going down. That is an absolute refutation, I think—if you believe in the free market—of any contention that we have a shortage of engineering, science, and STEM graduates.

The paper further says: ''Currently, only one of every two STEM college graduates is hired in a STEM job each year.'' So only half of them find a job in the profession they trained for.

Another finding of the paper: ''Policies that expand the supply of guest workers will discourage U.S. students from going into STEM fields, and into IT in particular.''

Get that. Is that not common sense? If anybody would dispute that, I would like to hear it. The policies that expand the supply of eligible workers in any field will tend to discourage people, particularly in science and engineering, if they feel like they are going to have a difficult time finding a job. That is common sense, and that is what the paper found.

Now, Mr. Hal Salzman—I am familiar with his work. He is a professor at Rutgers University and a labor specialist. He has done a good bit of work in this area. And what do his findings show? He determined: ''For the 180,000 or so openings annually, U.S. colleges and universities supply 500,000 graduates.''

More than twice as many people graduate in STEM fields as jobs are available in America for them to take.

Bob Charette, at the Institute of Electrical and Electronics Engineers, writes: ''Wages for U.S. workers in computer and math fields have largely stagnated since 2000.''

That is 14 years ago.

Even as the Great Recession slowly recedes, STEM workers at every stage of the career pipeline, from freshly minted grads to mid- and late-career Ph.D.s, still struggle to find employment.

In total, Charette reports that there are more than 11 million Americans with STEM degrees who don't have STEM jobs.

Harvard Professor Michael Teitelbaum has recently written a book. He explained:

Far from offering expanding attractive career opportunities, it seems that many, but not all, science and engineering careers are headed in the opposite direction: unstable careers, slow-growing wages, and high risk of jobs moving offshore or being filled by temporary workers from abroad.

Michael Anft, with the Johns Hopkins Magazine, observed:

You're a biologist, chemist, electrical engineer, manufacturing worker, mechanical engineer, or physicist, you've most likely seen your paycheck remain flat at best. If you're a recent grad in those fields looking for a job, good luck. A National Academies report suggests a glut of life scientists, lab workers, and physical scientists, owing in part to over-recruitment of science-Ph.D. candidates by universities. And postdocs, many of whom are waiting longer for academic spots, are opting out of science careers at higher rates, according to the National Science Foundation.

This is serious. There is a policy question, and he questions whether Members of Congress who don't pass laws like he wants on immigration are honoring their duty to the 300 million Americans whom we collectively represent.

I feel a deep duty to the millions of Alabamians I represent and the whole country, and I do my best every day to ask what is in their interests. As far as I am concerned, so far as I can see, those three billionaires have three votes. An individual who works stocking the shelves at the grocery store, the barber, the doctor, the lawyer, the cleaners, the operator, and the person who picks up our garbage are every bit as valuable as they are. I know who I represent. I represent the citizens of the United States of America, and I am trying to do what is in their best interests. And just as it is not always true what is good for General Motors is good for America, likewise, what may be good for Mr. Adelson and Mr. Microsoft and Mr. Buffett is not always in accord with what is good for the American people. I know that. They are free to express their opinion, but I am going to push back.

How many people come into our country each year as guest workers? We have discussed that. The Senate bill which Senator REID maneuvered through the Senate not too many weeks ago would double the number of guest workers. How many is that? The Associated Press wrote:

Although no one tracks exactly how many H–1B guest workers come to take jobs these are visas for jobs in fields like computers and technology—how many of these are in the United States? The AP says ''experts estimate there are at least 600,000 at any one time.''

That is a lot. These are individuals not on a citizenship path. They are in addition to the 1 million who come to America each year lawfully to become citizens of America. They simply come in at the behest of some business to take a job for a limited period of time. That is important. There are other visas these businesses can get too, but H–1B is one of the largest. A paper for the Economic Policy Institute explained the annual inflow of guest workers for the computer industry in particular is massive.

We estimate that during fiscal 2011, 372,516 high-skill guest workers were issued visas to enter the U.S. labor market, and, of these workers, between 134,000 and 228,000 were available for IT employment.

That is information technology.

The supply of IT guest workers appears to be growing dramatically despite stagnant or even declining wages.

But Microsoft and its allies want more.

Here is an excerpt from a report issued by the Partnership for a New American Economy. This is the front group for the pro-immigration crowd. It is co-headed by Steve Ballmer, a recent Microsoft CEO. He left Microsoft in February, but he is the co-head of this group and is lobbying for more H–1B guest workers to come to take jobs. They say: ''In many STEM occupations, unemployment is virtually nonexistent.''

This is not so. They declare it to be so. They say:

There is no evidence that foreign-born STEM workers adversely affect the wages of American workers by providing a less expensive alternative source of labor.

What planet are they on? Wages are declining. Median income in America today—well, according to the Wall Street Journal, it was approximately $55,000 for a family in 2007. It is now closer to $50,000. It dropped roughly $5,000. Somebody needs to talk about that.

Is unemployment in these industries ''virtually non-existent''? That is what they are telling us. They are spending millions of dollars even running TV ads to promote bringing in more workers than the 600,000 we have today. They want to double that number. I am not talking about the 1 million who already come lawfully every year through immigration in America. We have one of the most generous immigration policies in the world. These guest workers are in addition to the 1 million we let in each year on a permanent basis.

Look at these recent headlines.

Today: ''Microsoft To Cut Workforce By 18,000 This Year, 'Moving Now' To Cut First 13,000.''

How about this headline: ''[Google-owned] Motorola To Cut 10% Of Workforce After Laying Off 20% Last Year.''

''Panasonic To Cut 10K More Workers In The Next 5 Months.''

''[Online media and advertising company] CityGrid Lays Off 15% Of Its Employees.''

''Hewlett-Packard: 27,000 Job Cuts to Save Up To $3.5B By 2014.''

I would say things aren't going as well as some would suggest, and the demand out there for workers ought to be met from our current supply.

Byron York, an excellent writer at the Washington Examiner, wrote about this late last year in the Washington Examiner. The headline is: ''Companies lay off thousands, then demand immigration reform for new labor.''

On Tuesday, the chief human resource officers of more than 100 large corporations sent a letter to House Speaker John Boehner and Minority Leader Nancy Pelosi urging quick passage of a comprehensive immigration reform bill.

Don't read it, don't worry about it, just pass it. It gives us more workers, and we need those workers, is essentially, what they have been saying. ''The officials who signed the letter represent companies with a vast array of business interests: General Electric, Marriott International, Hilton Worldwide, Hyatt Hotels Corporation, McDonald's, Wendy's, The Cheesecake Factory, Johnson & Johnson, Hewlett-Packard, General Mills, and many more.'' All of them ''want to see increases in immigration levels for low-skill as well as high-skill workers in addition to a path to full citizenship for the millions of immigrants in the United States currently illegally.'' That is their agenda.

The article goes on to say: ''a new immigration law, the corporate officers say, 'would be a long overdue step toward aligning our nation's immigration policies with its workforce needs at all skill levels . . . ' ''

I would say at a time of high unemployment we need to be careful. The article goes on to say, ''at the . . . time the corporate officers seek higher numbers of immigrants, both low-skill and high-skill, many of their companies are laying off thousands of workers.''

So he did a little research. All these companies in need of workers. What about Hewlett-Packard? They signed the letter demanding more workers. I will quote from the article.

For example, Hewlett-Packard, whose Executive Vice President for Human Resources Tracy Keogh signed the letter, laid off 29,000 employees in 2012. In August of this year, Cisco Systems, whose Senior Vice President and Chief Human Resources Officer Kathleen Weslock signed the letter, announced plans to lay off 4,000—in addition to 8,000 cut in the last two years. United Technologies, whose Senior Vice President for Human Resources and Organization Elizabeth B. Amato signed the letter, announced layoffs of 3,000 this year.

American Express, whose Chief Human Resources Officer L. Kevin Cox signed the letter, cut 5,400 jobs this year. Proctor & Gamble, whose Chief Human Resources Officer Mark F. Biegger signed the letter, announced plans to cut 5,700 jobs in 2012.

Those are a just few of the layoffs at companies, the article said, whose officers signed the letter.

A few more: T-Mobile announced 2,250 layoffs in 2012. Archer-Daniels-Midland laid off 1,200. Texas Instruments, nearly 2,000. Cigna 1,300. Verizon sought to cut 1,700 jobs . . . Marriott announced 'hundreds' of layoffs this year. International Paper has closed plants and laid off dozens.

—including an old, big plant with 1,000 workers or so in north Alabama—

And General Mills, in what the Minneapolis Star-Tribune called a 'rare mass layoff,' laid off 850 people last year.

''There are more still.'' I am quoting here from Mr. Byron York's article:

In all, it's fair to say a large number of corporate signers of the letter demanding more labor from abroad have actually laid off workers at home in recent years. Together their actions have a significant effect on the economy. According to a recent Reuters report, U.S. employers announced 50,462 layoffs in August, up 34 percent from the previous month and up 57 percent from August 2012.

This is last August. I am quoting from the article:

''It is difficult to understand how these companies can feel justified in demanding the importation of cheap labor with a straight face at a time when tens of millions of Americans are unemployed,'' writes the Center for Immigration Studies, which strongly opposes the Senate Gang of Eight bill. . . . The companies claim the bill is an ''opportunity to level the playing field for U.S. employers' but it is more of an effort to level the wages of American citizens.''

Mr. York goes on to say this in his next article. The next month, he writes another article on the subject.

This week, the pharmaceutical giant Merck announced it would cut 8,500 jobs in an effort to remain competitive in a rapidly changing drug industry. Earlier this year Merck announced plans to cut 7,500 jobs, bringing the total of workers let go to 16,000. In all, Merck intends to lay off one out of every five of its employees.

Well, what is Merck, this great corporation, doing politically about the situation?

I will quote from the article. This is what they are doing politically:

At the same time, top Merck officials are urging Congress to loosen the nation's immigration laws to allow more foreign workers into the United States. In a Sept. 10 letter—

—this is last September—

—to House Speaker John Boehner and Majority Leader Nancy Pelosi, Merck Executive Vice President for Human Resources Mirian Graddick-Weir urged that the U.S. admit more high- and low-skilled immigrants to ''address the reality that there is a global war for talent'' and to ''align our nation's immigration policies with its workforce needs at all skill levels to ensure U.S. global competitiveness.''

Well, we have too many people unemployed. The number of people unemployed in our country is not accurately reflected by the simple unemployment data we get. When you look at the number of people in the actual workforce, you find we have the lowest workplace participation, the lowest number of workers as a percentage of the population at any time since the 1970s. It has been declining steadily. It is a fact. Everybody knows it. It is not disputed. If anybody wants to dispute that, come to the floor and tell me where I am wrong. And they won't because it is well accepted and Democrats and Republicans are talking openly about it, because it is a serious challenge for America. We don't have enough people working. We have got too many people living off the government and relying on federal aid and assistance. We need to create jobs for Americans first before we bring in foreign workers to take those jobs. We are going to help our people sustain their life. We make sure they have food and housing and aid if they are unable to work and don't have enough to live on, and we provide health care for them and education for their children. But we need to help them find work first before we bring somebody else to the country.

I would say to my free market business friends, I don't think you can win the argument that we have a shortage of labor, because wages are down. I know you believe in free markets. I

know you believe that things will balance out in a competitive world. If wages are down, that indicates we have a loose labor market, not a tight labor market. Wages go up when there are not enough employees, and businesses have to pay more to get good employees. Family income has gone down from 2007, as I said, from approximately $55,000 median household income to $50,000, adjusted for inflation. This is a very unusual decline. I am not sure we have seen anything like quite this before, at least since the Great Depression. This is a matter we need to talk about. ''Watching firms fire American workers while appealing for more immigration is a disheartening spectacle'', Mr. Byron York says. And I think that is true.

This is another Associated Press article: ''Backlash Stirs in US Against Foreign Worker Visas.''

But amid calls for expanding the so-called H–1B visa program, there is a growing pushback from Americans who argue that the program has been hijacked by staffing companies that import cheaper, lower-level workers to replace more expensive U.S. workers—or keep them from being hired in the first place.

''It's getting pretty frustrating when you can't compete on salary for a skilled job,'' said Rich Hajinlian, a veteran computer programmer from the Boston area. ''You hear references all the time that these big companies . . . can't find skilled workers. I am a skilled worker.''

How about this? They say there is a STEM crisis—which is Science, Technology, Engineering, and Mathematics. They say there are not enough STEM graduates to fill vacant jobs.

This article says: ''The STEM Crisis Is a Myth.'' This is a paper by Robert Charette, contributing editor for the Industrial Institute of Electrical and Electronic Engineers magazine. He says:

Companies would rather not pay STEM professionals high salaries with lavish benefits, offer them training on the job, or guarantee them decades of stable employment. So having an oversupply of workers, whether domestically educated or imported, is to their benefit.

That is in part because it helps keep wages in check.

Viewed another way, about 15 million U.S. residents hold at least a bachelor's degree in a STEM discipline, but three-fourths of them—11.4 million—work outside of STEM.

If there is in fact a STEM worker shortage, wouldn't you expect more workers with STEM degrees to be filling those jobs?''

I think that is correct.

What about the people who immigrate to America? They can't get a job because somebody else was brought in to take that job from them. What are they going to do?

The economy can absorb a certain number, but in this low job-wage low-job creation economy we are in today, and have been in for a number of years, you simply cannot justify these huge increases in the number of workers we have brought into the country, especially when wages are falling.

Here is another article: ''The Myth of the Science and Engineering Shortage.'' It is an op-ed by Michael Teitelbaum, a senior research associate at Harvard Law School.

A compelling body of research is now available, from many leading academic researchers and from respected research organizations such as the National Bureau of Economic Research, the RAND Corporation, and the Urban Institute.

No one has been able to find any evidence indicating current widespread labor market shortages or hiring difficulties in science and engineering occupations . . .

He goes on to write, as I read before:

From offering expanding attractive career opportunities, it seems that many, but not all science and engineering careers are headed in the opposite direction: unstable careers, slow-growing wages, and high risk of jobs moving offshore or being filled by temporary workers from abroad.

I am afraid that is the undisputed reality. I wish it were not so. I wish we had a growing economy that would create a lot of jobs and a lot more high-tech workers and that wages were going up. But it is just not so.

Here is an article from July 11, in CNNMoney. The headline is: ''Businesses Want Immigration Reform. Why? Because they can't find enough workers.'' That is what they say the answer is.

This article notes the complaints of various business lobbyists. For instance:

The tech industry faces a backlog of working visas for high skilled workers. The long wait for green cards at top universities means the U.S. is losing [talent]. . . . Microsoft founder Bill Gates and others CEOs like Yahoo's Marissa Mayer and Facebook's Mark Zuckerburg, have all pressed Washington leaders for an immigration [reform].

CNN also includes this statement from another group demanding Congress provide more workers:

Two-thirds of construction companies have reported labor shortages according to the Associated General Contractors of America, who is pushing for immigration reform.

So two-thirds of construction companies reported labor shortages. Well, what do we know about that?

Here is a May 5 article from Economic Policy Institute by Ross Eisenbrey. They cite an in-depth study about the labor market.

The headline says: ''There are Seven Unemployed Construction Workers for Every Job Opening.''

There is a chart showing the drop in wages. This isn't some promoter, some lobbyist or some media consultant putting out a self-serving statement claiming we have a shortage of workers. This is an academic study. Again, what does it say? ''No Sign of Labor Shortages in Construction: There are Seven Unemployed Construction Workers for Every Job Opening.''

That is where we are. What we need, as a Nation, is to construct an immigration policy that serves the interests of the American people.

Professor Borjas at Harvard is perhaps the most astute and renowned expert on labor and immigration of anybody in the entire world and has written a number of books on this. He did an comprehensive study using census data and Department of Labor data and concluded that from 1980 to 2000, as a result of America's high immigration levels, the wages of lower-skilled US workers declined by 7.4 percent.

The impact of this large flow of immigration from 1980 to 2000 reduced wages. We already bring in a million people a year, plus hundreds thousands more guest workers. I am not against immigration. What I am opposed to, however, is an immigration policy that fails to serve the needs of the people living here today. The myth is we have this great shortage of labor. It is just not so. If he allowed the labor market to tighten, wages would increase, more Americans would take some of these jobs and be able to raise a family, buy an automobile, and maybe even buy a house and educate their children.

Today I am going to issue a challenge to Majority Leader REID, and every single one of our 55 Senate Democrats, who voted unanimously for this Gang of 8 bill.

With Microsoft laying off 18,000 workers, come down to the Senate floor and tell me there is a shortage of qualified Americans to fill STEM jobs. Come down and tell us. Do you stand with Mr. Bill Gates or do you stand with our American constituents?

It is long past time we had an immigration policy that truly served the needs of the American people. That is the group to whom we owe our loyalty and duty and first responsibility. That is who elected us, and that is in our constitutional system, which ultimately judges us on our performance.

The United States let in 40 million new immigrants legal and illegal—since 1970. There are many wonderful people in that group. But Washington actually hurts both our immigrant workers and US-born workers alike when we continue to bring in record numbers of new workers to compete for jobs. The share of the population today that is foreign-born has quadrupled. It has gone up four-fold in forty years. After four decades of large-scale immigration, is it not time, colleagues, that we slow down a bit, allowed wages to rise, assimilation to occur, and the middle class to be restored?

I thank the chair and yield the floor.

The PRESIDING OFFICER (Mr. MARKEY). The Senator from Vermont.

Mr. LEAHY. I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

CELEBRATING GOVERNOR PHIL HOFF'S 90TH BIRTHDAY

Mr. LEAHY. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. LEAHY. Mr. President, we come to the floor oftentimes to discuss issues of portent to the Nation, but the

distinguished Senator from Vermont and I wish to speak about one of the most significant people Vermont has ever known.

I wish to yield to my distinguished colleague from Vermont and we will go back and forth.

Mr. SANDERS. I thank Senator LEAHY for yielding.

The PRESIDING OFFICER. The Senator from Vermont.

Mr. SANDERS. Mr. President, every now and then there are figures who come along who play a profound and transformative role in the period in which they are living. Phil Hoff is one of those people. We are here to celebrate his 90th birthday and the work he has done in Vermont and around the country and the life he and his wife Joan have lived, both of whom have done so much for the people of the State of Vermont.

Phil Hoff was the 73rd Governor of the State of Vermont. He was in many ways the founder of progressive politics in our State. It is now recognized—and we say this proudly, although not everybody necessarily is as proud of it as we are—but Vermont is now one of the more progressive States in the United States of America. We have been a leader for the rights of working people, for the environment, for women's rights, for gay rights, for kids, and we are proud of that, but none of that would have happened—we would not be where we are today—if it had not been for the work of Phil Hoff, who has Governor of our State and was elected in 1962.

I am going to yield to my colleague Senator LEAHY now. I have a lot more I wish to say, but let me begin the discussion by saying that we in Vermont are extraordinarily fortunate that one of the great Governors of his time is a real visionary, a man who led the beginning of making profound changes in the State of Vermont.

I yield back to the senior Senator from Vermont, Mr. LEAHY.

The PRESIDING OFFICER. The senior Senator from Vermont.

Mr. LEAHY. Mr. President, my distinguished colleague from Vermont is absolutely right. Vermont changed remarkably when Governor Phil Hoff was elected. Prior to that time, the governorship of Vermont was basically a part-time office—seen now and then when the legislature was there but not so much otherwise—and things went along almost on autopilot. Governor Hoff changed that and brought Vermont into the 20th century. I think because the two are somewhat intertwined.

I was a volunteer for the Presidential campaign of then-Senator John F. Kennedy in 1960. I volunteered on his campaign, but I wasn't old enough to vote for him. But I remember the first election I was able to vote in was the Vermont Governor's race in 1962, and I cast my first vote for Philip Henderson Hoff. My family was thrilled when he won that election. He became the first Democratic Governor elected in Vermont in over a century.

My parents and Marcelle's parents were so fond of Phil Hoff and his wife Joan. They thought the world of them. I was happy the other day in seeing both Phil and Joan at his birthday celebration. They talked about my parents and Marcelle's parents, but I told them I wouldn't be where I am today without Governor Hoff.

I was a young lawyer in his office. There had been a real problem in the State's attorney's office in Chittenden County, VT, which is about one-quarter of our State's population. The State's attorney announced he was leaving and Governor Hoff called me to his home on Friday afternoon and said: I want you to be State's attorney on Monday morning.

I gulped, and I said: Yes, sir.

He said: Clean up the backlog of cases that have accumulated in the office.

I said: Yes, sir.

He said: Do that for 1 year and then come on back to our firm.

And I said: Yes, sir.

The one thing I didn't do is I didn't come back to the firm; I enjoyed being there so much, I stayed there. I stayed there, though, with admiration for Phil Hoff because he had changed the State of Vermont. He made it exciting to be in government in Vermont. He made it exciting to be part of the fabric of Vermont. I have always appreciated that. I have always appreciated my time with him but especially the mentoring he offered me. If it had not been for him, I can tell my colleagues, I would not be standing here today as the President pro tempore of the U.S. Senate.

I yield back to my friend from Vermont.

Mr. SANDERS. Mr. President, way back in 1968 as a young man, I got a job at the Department of Taxation in a small building on State Street across the street from the statehouse, working for the administration, then-Governor Hoff, and that was a very important experience for me and helped me shape some of my views which I carry today.

Phil Hoff's career of public service began during World War II when he put his studies on hold and joined the Navy, eventually joining the submarine service. He served on the USS *Sea Dog* in the Pacific theater, going on a number of combat tours in the dangerous waters near the main islands of Japan.

While in naval training in New London, CT, a friend of his set up a blind date with a Connecticut college student. Her name was Joan Brower, and she and Phil would be married after the war—a marriage that was to last for six rich decades.

I know Senator LEAHY and his wife, as well as myself and my wife Jane, know the Hoffs very well. We know Joan and know of her years of dedication to the people of the State of Vermont, especially in the area of education. So she in her own right has been a very important figure in our State.

After Phil Hoff's graduation from Cornell Law School, he and Joan moved to Burlington, VT, in 1951. Deeply committed to social justice, he became involved in Democratic Party politics and did that despite the fact that he grew up in a Republican family.

Senator LEAHY will remember that way back then, there was a group of what they called the Young Turks—younger Democrats who came into a very conservative Republican legislature. Most of them were under 40. Many of them were veterans of World War II. They moved forward to try to bring about some long needed change in the State.

Their experience in the legislature motivated Phil Hoff to run for Governor in 1962. As Senator LEAHY indicated, if my memory is correct, he was the first Democrat elected Governor since the Civil War; is that right?

Mr. LEAHY. Mr. President, my colleague is absolutely correct. It was a cataclysmic change in the political landscape of Vermont.

Mr. SANDERS. For more than 100 years—I think many people don't know this—the Republican Party dominated Vermont politics, controlling both Houses of the legislature and the Governor's office.

This is a funny story. Even in the landslide Presidential election of 1936, when FDR—Franklin Delano Roosevelt—won a huge landslide victory, Vermont joined Maine as the only State in the country to vote against Roosevelt and vote for Alfred Landon, and thus came the well-known expression: ''As goes Maine, so goes Vermont.'' What Phil Hoff helped do is lead Vermont out of a one-party State, badly in need of reforms, and brought that State in many significant ways into the second half of the 20th century.

I yield back to the senior Senator from Vermont.

Mr. LEAHY. Mr. President, I thank my colleague from Vermont. He and I share so much affection for Phil and Joan Hoff, and I can tell hundreds of stories. He made a difference by enthusiastically bringing people together in our State, with the realization that we needed to catch up with the rest of the country in so many ways—such as bringing high-tech industry into Vermont and working so hard to make sure everybody had a good education no matter what part of the State they lived in.

Then there are the personal anecdotes. I was excited as a young State's attorney one day getting a call from the Governor's office that one of the old-line politicians in Burlington had died—a wonderful man of French Canadian descent. They were going to have a mass for him at the Cathedral, and the Governor wanted me to ride with him to the mass.

I got into the car, and I said, Governor, you know I have only been State's attorney for a very short while and I can't tell you what an honor it is to be with you. He said, An honor? Honor has nothing to do with it. He said, I am an Episcopalian, you are a Catholic. They put me in the front row. I never know when I am supposed to stand or where I am supposed to sit, so you are going to make sure I do it right. I had been an altar boy for years, and I was in sheer panic when I walked in the church that I might have the Governor do something wrong, but we made it through.

More importantly, Vermont had issues, and they became very serious, affecting the reputation of our State. Phil Hoff and great people together across the political spectrum would sit in his office and he would say, how do we make things better for Vermont—never for him, it was for Vermont.

I think of the changes in our State, and I remember my parents and Marcelle's parents talking about the amount of changes—changes for the better—and every time they would go back to one name: Phil Hoff.

I was so glad to hear Senator SANDERS speak of Joan Brower Hoff and their wonderful daughters. She truly was Vermont's First Lady. She was almost as recognizable—in fact, in many places, more recognizable than her husband—highly respected. People—men and women—wanted to be able to model their careers and their nature after her. I am glad the two are still together. They are still healthy, they are still the best of Vermont, and I feel honored to be able to speak of them here.

I yield the floor.

Mr. SANDERS. Mr. President, Senator LEAHY talked about the influence Governor Hoff had on the State. Let me give some examples of what he did.

Senator LEAHY will remember in the early 1960s we had the situation in Vermont where the Vermont State House of Representatives, people were represented by every town. I lived for a while in the town of Stannard, VT, which has maybe 100, 150 people, and they had the same vote in the legislature as Burlington, VT, the largest city in the State, which has 40,000 people. Under Phil Hoff, what we moved to in the State—and with the Supreme Court ruling dealing with proper apportionment—was person, one vote, so the house began to reflect the population locations of the State and not just every town.

In addition to that, when Phil Hoff was Governor of the State, he successfully insisted on repealing Vermont's poll tax. Now we think that is ancient history. What the poll tax said is that in order to vote, you have to pay a certain amount of money, which, obviously, is discriminatory to lower income people. That was repealed under Hoff's era as Governor.

He understood and his wife understood the importance of education. What Governor Hoff did was he quadrupled State aid to public schools and organized the three State teachers colleges into a new, revitalized State college system that better met the needs of Vermont's students. That system endures to this day. We have a very strong system of State colleges in Vermont, and that began under the Hoff era.

Under Governor Hoff's leadership, Vermont's judicial system was modernized. Always a path breaker and an advocate for justice, Phil Hoff led the way to Vermont becoming one of the first States in the country to abolish the death penalty.

No aspect of State government was beneath his notice, and he took Vermont forward in many ways, including terminating the outdated ''overseer of the poor'' system. That was something he changed as well. He established the Vermont district court State court system, the Judicial Nominating Board, the Vermont State Housing Authority, and the Vermont Student Assistance Corporation—a program which today plays a very vital role in making sure young people in Vermont can get a college education.

What was also—and Senator LEAHY knows this better than I—rather extraordinary about Phil Hoff is he understood that positive change could not take place in Vermont unless change was taking place throughout the country. In that area, being the Governor of one of the smallest States in the country, this man showed extraordinary courage, and he said: Do you know what. That war in Vietnam is not good for Vermont, it is not good for America.

He was one of the first public officials, as I recall, I say to Senator LEAHY, to speak out. That took a whole lot of courage, to speak out against the war in Vietnam. He took it a step further. Here you had Lyndon Johnson at that time—who I think will go down in history, except for that war in Vietnam, as one of our great Presidents—and Phil Hoff said: Do you know what. Maybe we need a change in the White House, and maybe we should be looking at somebody like Bobby Kennedy rather than Lyndon Johnson.

But, I say to Senator LEAHY, I know he was involved in some of that as a young man.

Mr. LEAHY. I was. And I recall, when Phil Hoff came out against the war in Vietnam—and he was in the minority on that—no member of the Vermont congressional delegation had voted against the war in Vietnam. They voted for all the increases in it. He was in some ways a lonely voice, but he did come out against it. It angered Lyndon Johnson, who was then President. But then he supported Robert Kennedy, as did I.

I remember the two of us meeting Senator Edward Kennedy—one of the Presiding Officer's predecessors—on the runway at the airport in Burlington, VT. He and Governor Hoff and myself and others were going to speak to a group on behalf of Robert Kennedy, Bobby Kennedy. I remember the look of sorrow on Governor Hoff's face as he stood as one of the honorary pallbearers at Robert Kennedy's funeral. But even after that, he continued to push to make Vermont a better State.

I think—and I realize we have others waiting for the floor—but I just want to say again that Vermont is a wonderful State. It is a beautiful State. It is a progressive State. As Senator SANDERS and I have both said, it would not be what it is today were it not for Phil Hoff. We have all tried to follow in those footsteps, but he lit the way. That sometimes is an overused expression, but in this case I think every historian would agree with us.

Mr. SANDERS. Let me concur with Senator LEAHY. We take this opportunity to wish Governor Hoff a very happy 90th birthday. Jane and I see him quite often, and we just bumped into Phil and Joan recently. We look forward to continuing that relationship.

The bottom line is, as Senator LEAHY said, we are very proud that Vermont is a leader in so many areas in terms of social justice, in terms of environmental sanity, in terms of protecting the needs of ordinary people. That transformation and those efforts did not come about by accident, and certainly one of the great leaders in moving us in that direction was the man we honor today; that is, Philip H. Hoff. We wish him the very, very best in the years to come.

Mr. LEAHY. We wish a happy birthday to a true giant of our State.

I yield the floor.

Mr. SANDERS. With that, I yield the floor.

The PRESIDING OFFICER. The Senator from Pennsylvania.

PROTECTING OUR CHILDREN

Mr. TOOMEY. Mr. President, I rise today to speak on a bill I have introduced. It is S. 1596. It is the Protecting Students from Sexual and Violent Predators Act.

I wish to thank my cosponsors on this legislation. It is a bipartisan bill. Senator JOE MANCHIN and I have introduced this together, and I am grateful to Senators MCCONNELL and INHOFE for their cosponsorship.

This bill was inspired by a terrible story. It is the story of Jeremy Bell, and it begins at a school in Delaware County, PA. One of the schoolteachers molested several boys and raped one of them. Prosecutors decided they did not have enough evidence to bring a case, but the school was aware of what happened, so they dismissed the teacher for this outrageous behavior. But then, amazingly, the school also decided that they would help this teacher get another job at another school so they could be rid of him. And they did exactly that, in fact, passing along a letter of recommendation, helping this predator get a job at a school in West Virginia.

The story ends in 1997 when that teacher—by then a school principal—raped and murdered 12-year-old Jeremy Bell in West Virginia. Justice finally caught up with that teacher, and he is now in jail serving a life sentence for the murder, but for Jeremy Bell that justice came too late.

The very sad truth is that Jeremy Bell is not alone. Every day seems to bring a new report of a child robbed of his or her innocence by someone they should have been able to trust, someone their parents told them they should obey. The numbers are absolutely terrifying, and, worse still, the numbers are growing.

On April 10 of this year, I came to this floor and spoke about the need to pass this legislation to protect our kids from predators in the classroom. I explained then that since January 1 of this year, at that point, 130 teachers had been arrested across America for sexual misconduct with children. Well, here we are just over 3 months later and that number has more than doubled. Since January 1 of this year, 275 teachers have been arrested in America for sexual misconduct with children—275. These are teachers. That is more than one per day so far this year.

Let's be honest. These are the ones whom we have caught. These are the ones who have actually been arrested. These are the ones against whom there is enough evidence that they have actually been arrested. How many more are out there who have not been caught or for whom the evidence is not yet sufficiently clear?

The damage these predators are doing is enormous. It is far beyond what any numbers or my words can express. So I want to let some of the victims speak for themselves.

I will tell you a brief story from Shannon. Shannon is from Nevada. She was raped by a teacher. The teacher was later convicted of sexual assault and sentenced to life in prison. Nine years later, this is what Shannon wrote:

When I was a senior in high school, Mr. Peterson approached me and said I would need to go to night school if I wanted enough credits to graduate on time. And, of course, he taught one of those courses—a computer class. I was 17, and he raped me 4 times over the course of a year. He said he would fail me if I ever told. He also hit me and made threats against me and my family. So I didn't. I held it in for a year and a half.

In the end, 66 people offered to testify against Peterson. His first victim dated back to the year I was born. Some of those who spoke up were parents. Their daughters had complained at the time, but nothing was done. That made me very angry. It still does. I learned that a handful of teachers, and two principals, knew about him. And his teaching license had been revoked in Michigan years before, and no one knew why.

I'm different [now] because of what happened. I have to watch people all the time, analyze them. I can't be carefree. Now I have a seven-year-old son and two daughters, ages three and one. I will home-school my girls.

So when you see the number 275, remember Shannon, and remember that so far this year there are 275 others like her.

Gary of South Carolina is one of at least 29 boys abused by a teacher named Mr. Fisher over that teacher's 37-year career. Now the teacher is serving 20 years in prison. Two school principals were sued for allegedly covering up the abuse. Here is what Gary wrote about his experience:

I was nine when it started. The abuse was frequent and long-term—till I went to college. I knew there were others, too, but until it all came out, I never knew how many.

You feel so guilty, so ashamed. It's frightening now to look back and see how calculating Fisher was. I did everything I could to get kicked out of school. I was in the guidance counselor's office all the time. Finally, in tenth grade, I got myself kicked out for cheating. By the time I want to college, I was drinking all the time. I was terrified to quit because then I'd have to feel. But I couldn't drink and do school, so I entered rehab. I was 18. It took me a year and a half, and I've been sober since.

My life is good now, for the first time. You can survive it, but you have to deal with it. I always felt that what the school did was far worse than what Fisher did. Fisher was sick, an evil monster. But [the school] just calculated the damage to its public relations. We kids were disposable, which is a whole other category of evil.

So when you see the number 275, remember Gary, and remember that there are 275 others like him that we know of already this year alone.

So what can we do? Well, my bill is a first step at addressing this problem. It is called the Protecting Students from Sexual and Violent Predators Act. It is pretty simple, really. It requires a mandatory background check for existing and prospective employees, and it requires that those checks be periodically repeated. There are five States that do no background checks.

The second thing my bill would do is it would apply to all employees of a school—employees or contractors who have unsupervised access to children, not just teachers. So it would include bus drivers and coaches. There are 12 States that currently do no checks at all on contractors.

The legislation would also require more thorough background checks. It would require that school districts check four major databases, both State and Federal. In my own State of Pennsylvania, for instance, if an employee has been a resident of my State for 2 years or more, then only the State database is checked. We just do not find out what this person might have done in another State at a different time.

The legislation also would prohibit what has—tragically, it has developed its own name; the name is ''passing the trash.'' This is the phenomenon of when a school knowingly recommends one of these predators to another school. As outrageous as that sounds, it actually happens. Some of these school and school districts so want to be rid of this problem, this embarrassment, that they actually facilitate the person moving on to some other place, where, of course, this predator just strikes again against some other children. That would be banned under this legislation.

In addition, there would be a prohibition against hiring these kinds of predators. Schools would not be able to hire a person who has ever been convicted of any violent or sexual crime against a child—if they were convicted of a violent or sexual crime against a child. There are a number of other felonies that would also preclude someone from being hired by a school if they are going to have access to children. Those would include homicide, child abuse or neglect, crimes against children, including pornography, rape, or sexual assault, kidnapping.

In addition, a person who has been convicted within the past 5 years of a felony physical assault or battery or a felony drug-related offense—for 5 years from the time at which those crimes were committed, the person would be precluded from being hired in a position, in a capacity where they would have supervisory responsibility over children.

The enforcement for all of this is the only way the Federal Government can or should enforce policies such as this on school districts and schools; that is, if a State refuses to adopt these provisions, then they would lose the funding they get from the Elementary and Secondary Education Act. That is one of many—but an important one—of the Federal Government funding streams for K–12 education. No State wants to lose that source of funding, so I think States would respond by adopting this very commonsense series of measures to protect their children.

I should say this is a bill with very broad support—so broad, in fact, that in the House the companion legislation passed unanimously. There was not a single dissenting vote. They voted last year, and it passed unanimously.

We have bipartisan support here in the Senate, as I mentioned. I am joined by Senators MANCHIN, MCCONNELL, and INHOFE.

It is supported by child advocacy groups. The National Children's Alliance, the Children's Defense Fund, and the National Center for Missing and Exploited Children all strongly support this legislation. I appreciate their support.

It is also supported by prosecutors—the Association of Prosecuting Attorneys, the Pennsylvania District Attorneys Association. As a matter of fact, there were five district attorneys from southeastern Pennsylvania alone, from different political parties, who wrote an op-ed—a very persuasive op-ed—arguing why this bill is necessary based on what they see every day in their jobs as prosecutors. I wish to thank those district attorneys. Risa Ferman from Montgomery County, Seth Williams from Philadelphia County, Tom Hogan from Chester County, David Heckler from Bucks County, and Jack Whelan from Delaware County all weighed in in favor of this legislation.

Finally, there are teacher groups that support this as well. The American Federation of Teachers supports this legislation. The Pennsylvania School Boards Association does as well.

I do not think I would be going far out on a limb to suggest that probably a huge majority of Americans support this legislation because one thing I know for sure as a parent of three young kids—my kids are 14, 12, and 4. There is one thing that is most important to most parents I know; that is, that our children be safe and secure. When you put your kid on a schoolbus, you expect that child will be in a safe environment all day long—on the ride to school, while they are in school, and on the way back home. Frankly, we owe it to parents as well as to their children to do all we can to ensure that they do, in fact, have a safe environment—as safe as we can make it—for their kids.

Two hundred seventy-five is the number. That is the number that should give us all pause. It marks 275 tragedies that we know of already this year—275 childhoods that are shattered, 275 families torn by grief, betrayal, self-blame. It marks a failure on our part. This kind of child abuse can be prevented. We have the tools to prevent it and to prevent so many children from harm.

Again, last year the House acted unanimously to protect children from these sexual predators. This is something we could have done a long time ago. We certainly should not be letting a new school year begin—really in a matter of weeks—without doing something about this shameful number and without making sure this number does not continue to grow.

I hope we will be able to bring this bill to the Senate floor. I hope we will have very broad bipartisan support for it here in the Senate, as we already have in the House.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mr. GRAHAM. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

ISRAELI CONFLICT

Mr. GRAHAM. Mr. President, I wish to comment on the fact that I believe the body has come to agreement on my resolution, along with Senator MENENDEZ, standing behind Israel in its conflict with Hamas.

As I speak, apparently there is a ground action going on by the Israelis in Gaza. From my point of view, do what you have to do to defend yourself.

I can't believe they have actually waited this long. I can't imagine what the American response would have been. If one rocket had come from our neighboring nations toward our country, we would not be so restrained.

A two-state solution seems to be a very reasonable approach. The problem is, as the Presiding Officer knows, Hamas doesn't recognize Israel as an entity. It is pretty hard to negotiate with somebody who doesn't recognize you exist and tells their schoolchildren you don't exist. The hatred that comes from Hamas in their schools toward Israel is not conducive to peace.

The resolution passed unanimously by the Senate the very night Israel decided to use ground force I think is appropriate and very symbolic. The Senate does not see a moral equivalency.

As Prime Minister Netanyahu said: Israel uses missiles, in collaboration with the United States, to produce the technology called Iron Dome to defend civilians. Hamas uses civilians to cover their missile program, making human shields of their own people.

That says all we need to know.

So I am pleased that in a bipartisan fashion, unanimous in nature, the U.S. Senate is on record supporting the State of Israel in this conflict, understanding their justification for defending themselves and that there is no moral equivalency here.

To my Israeli friends and allies, we wish you well. I expect that you will continue to defend yourselves against a terrorist organization.

To the Palestinians who have formed a unity government, you need to break away from Hamas. There will never be peace until you marginalize the terrorist organization called Hamas, until you reject what they stand for and the way they have behaved.

Finally, to those who wish for Israel to give up land and withdraw from territories, please remember, that is exactly what Israel did in Gaza. They withdrew all their forces, and what have they gotten in return? Tens of thousands of rockets.

So to those who are pushing a peace plan in the Middle East between the Palestinians and the Israelis, I hope you remember security for Israel has to be the centerpiece of any peace deal. How can you obtain peace when one of the members of the Palestinian Government—Hamas—has fired thousands of rockets, caring less where they fall? They couldn't care less if it falls on a kindergarten or a military base. They just care to kill Israelis. Israelis have killed civilians, but they go the extra mile in time of war and conflict to minimize casualties. They tell them: We are going to bomb you. They pass out leaflets. They tell people to leave. That says a lot about the Israelis.

So the Senate is in Israel's camp in a bipartisan fashion.

I yield the floor and I suggest the absence of a quorum.

The PRESIDING OFFICER. Would the Senator withhold his request?

Mr. GRAHAM. I withdraw my request.

The PRESIDING OFFICER. The Senator from Florida.

Mr. RUBIO. Mr. President, I ask unanimous consent to speak as if in morning business.

The PRESIDING OFFICER. Without objection, it is so ordered. The Senator from Florida is recognized.

Mr. RUBIO. Mr. President, I wish to continue on this topic.

In the last few hours, we have now had word of the potential for ground operations occurring in Gaza.

This is addressed to those who are watching Florida or will watch this message in Florida about what has happened.

I know the world has become a messy place over the last few hours. We have an incident that occurred over the skies of Ukraine with the Malaysian aircraft, and we don't know all the details of what had occurred there. We should reserve judgment until we do. Suffice it to say, that may further complicate our view of the world in this Chamber over the next few weeks, but let me address for a moment what is happening in the Middle East.

When I was elected to the Senate, a few days later, the first trip I took was to Israel. It was a country I had long admired, with strong links to the United States and to Florida in particular. In fact, the current Israeli Ambassador to the United States is from Florida. His brother was the mayor of Miami Beach. So there are strong links between Florida and Israel. I was amazed on that trip by how far that country has come—a nation that doesn't have oil or the kind of massive resources from an energy perspective that other countries in the region do, yet a country that is flourishing because of their investment in technology and innovation.

There is a book called ''Start-Up Nation,'' which chronicles the amazing miracle of Israel and what they have achieved. The one thing that strikes you about Israel as you fly over is how narrow it is. At its narrowest point, it is only 9 miles wide.

This is a country that was forged, by the way, in the aftermath of the Holocaust, with the notion that never again will the Jewish people not have a place to go in the world to call their own. That still remains the guiding principle behind the country and behind its defense forces, and we should view it within that context as we view what is occurring now in that region and part of the world.

Literally, Israel is surrounded by enemies. Certainly they have had the stability in the last two decades of peace agreements with Jordan and Egypt. But look everywhere around Israel and you see them surrounded by people who are intent on their destruction. We know that is the case in Gaza. We know that is the case in Samaria and Judea or what is commonly called the West Bank by some. We know that is the case with Assad and Syria, and many of the elements fighting within Syria. We know that is the case with Hezbollah and Lebanon. We know that is the case with Iran and its weapons programs and its long-term ambitions. This is a country surrounded by elements that want to destroy it.

It is in that context, by the way, that this government in Israel was involved

in an intensive process of negotiation brokered and led by the United States with the Palestinian President Abbas regarding a potential peace deal, some way of forging a solution, an answer to the conundrum of what to do with Palestinian populations that would allow them to live peacefully, coexist side by side with a Jewish State. They entered into this conversation despite the fact that it was never clear that Abbas was able or had the power or the influence to make the sort of tough decisions that were going to be required for peace.

In fact, they entered into the negotiation knowing they would not even speak for all Palestinians, given the fact that Hamas controlled the Gaza Strip. They entered into this negotiation nonetheless. They entered into this negotiation despite the chaos surrounding them in Lebanon and Syria. Despite the fact that Iran continues to pursue nuclear weapons to destroy Israel, potentially, they entered into these negotiations. Because I say this to you unequivocally: I know of no nation on Earth that wants peace more than Israel. So they entered into these negotiations.

And what happened? What happens is what always happens with these negotiations. What happened is Abbas eventually withdrew. He once again took himself out of the talks and he tried once again to seek membership—Palestinian membership—into all these sorts of national organisms of the state, as a country of its own, knowing that was a deal breaker and knowing if that occurred, there could be no peace negotiation. That is the route he chose, nonetheless.

But then he did what I believe has triggered this latest round of violence against Israel, and that is deciding to form a power-sharing government with a terrorist group by the name of Hamas that to this day continues to deny Israel's right to even exist.

I want you to think about that for a moment. How could you possibly ever enter into a peace agreement with an organization with its very purpose being your destruction? And yet that is what Israel was being asked to do.

Tragically, within several weeks of that new government being formed, three teenagers, including an American citizen, were kidnapped and they were murdered. Then on July 7 Hamas once again started raining down rockets on Israel. Today more than 1,300 of them have been fired. The good news is that Israel has invested heavily in an air defense system which I was able to see during my second visit to Israel in the early part of 2013. But 1,300 rockets is an extraordinary number, and that is what Israel has faced.

As American policymakers, you ask what is our interest there? And I think it begins with the unique relationship that exists between the United States and Israel. It is the only vibrant democracy in that part of the world. Its alliance with the United States is unquestionable, not just in international forums but all over this planet. Israel is consistently on America's side time and again, in every one of our challenges. The cooperation between our countries is extraordinary, not to mention that Israel as a nation stands for everything that we as a nation believe in: freedom, the ability to speak out. They have a vibrant democratic process. Anyone who is familiar with Israeli politics knows how vibrant their democracy is and how much they engage in open and public debate in bringing their government together to govern the country. So we have this extraordinary alliance with Israel of incredible importance, and that is why we care. That is the political reason.

There is a moral reason behind it, and that is the right of the Jewish people to have a country they can live in peacefully; that truly never again will we face a time when Jews have nowhere to go. This is the commitment we have made to Israel and that we must keep.

I must say that I am and have been deeply troubled at the attitude this administration has adopted toward Israel. Let me be clear. I don't come here today to create this into a partisan issue. I don't want it to be a partisan issue. In fact, one of the great successes of American foreign policy with Israel has been the strong bipartisan support that Israel enjoys in the House and the Senate from almost every American President since Israel's founding at the conclusion of World War II.

But I am concerned about the position this administration is taking. I was concerned about the amount of pressure the Secretary of State was placing on the Israelis to enter into a negotiation with the Palestinian Authority which didn't have the authority or power to reach a peace agreement they could possibly enforce much less deliver on. I was concerned that pressure was being put on them at a time when Israel faced so many other challenges, No. 1 being the ambitions that Iran has to acquire nuclear weapons and long-range rockets that could strike Israel and eventually the mainland of the United States.

I think it is safe to say the relationship of the Israeli Government has never been worse toward an American President for more than 2 decades. And that has an impact on this region, and unfortunately it has had an impact here.

I have also been concerned about some of this moral equivalence that is going on in the press and some of the email I have been getting and some of the public statements I am hearing some make in some corridors—not in the Senate but some other places. The idea that both sides are to blame is an interesting concept, but it isn't true.

It is tragic, unfortunately, that civilians are dying in Gaza, but the reasons why civilians are dying is 100 percent Hamas's fault. This is an organization that puts rockets and military installations right next to nurseries and hospitals and civilian population centers. Why would they do that? Do you know why they do that? They do that because they know when they launch a rocket Israel will respond by hitting that rocket launcher, and when that rocket launcher is destroyed, so are the areas around it. Then they can get the cameras to go in there and say: ''Look what Israel did. They wiped out a nursery or apartment building.''

They do that on purpose. They know exactly what they are doing. They are doing it so they can get the kind of coverage that unfortunately even some American press outlets are buying into now.

Here is the bottom line—and Senator GRAHAM was alluding to this a moment ago. Israel does extraordinary things with regard to this. They drop leaflets into population centers warning: We are going to have to conduct a military operation in your region. Please evacuate. Please go elsewhere where you will be safe.

Hamas doesn't do that. In fact, Hamas deliberately targets population centers to terrorize the people of Israel, and we should condemn it for what it is. There is no moral equivalency.

So now the situation has continued to spiral out of control and it has reached a point where the news today now is that Israel has begun to conduct ground operations and these ground operations they are conducting as early as this morning have to do with a tunnel network in Gaza which was used by Hamas to try to infiltrate terrorists through those tunnels into Israel to conduct terrorist activity and kill Israelis.

Put yourself in the position of this country, small and geographically isolated, surrounded by terrorist groups and some unfriendly countries, threatened by the prospect of an Iranian nuclear weapon and being hit by 1,300 rockets in just the last week. They have no choice but to defend themselves using all the power at their disposal. They have no choice. Not only should no one here be criticizing that, but we should be supporting it and aligning ourselves 100 percent on their side, because what they are fighting for here is not some dispute over borders. This is not some geopolitical dispute about who owns what territory. Israel is fighting for its very survival.

On the other side of this conflict is a terrorist organization bent on their destruction. On the other side of this conflict is a terrorist organization in Hamas and, truth be told, the Palestinian Authority, whose schools teach children not just to hate Israel but to hate Jews.

How could you possibly say you are for peace when your schools are actively teaching your children to hate another people? That is what is on the other side of this conflict.

And so Israel has no choice. They are fighting for their very survival, and I

think that now more than ever what they need from this country is a President and a U.S. Government that aligns itself squarely on their side—no doubletalk, no fancy diplomatic language that you could read between the lines on—a very clear statement: In this conflict we are on Israel's side and we will support them with anything they need to ensure their stability and their survival—very clear language that makes it unequivocal.

Hamas is a terrorist organization, not a legitimate representative of the aspirations of the Palestinian people, but a terrorist organization designed for the very purpose of destroying the Jewish state. We need to make these things abundantly clear, because otherwise we are going to see more of this in the years to come.

If there is any daylight between the United States and Israel, it emboldens Israel's enemies. I would say as bad as this situation is—and it is terrible—the biggest danger facing Israel today is not just 1,300 rockets that have come over from Hamas, it is the threat of a nuclear Iran. It is interesting that while we are having this conversation here today about the attack Israel is under, this administration is trying to get an extension of these talks with the Iranian regime.

I hope you clearly understand. I said this before and I want to come here and reiterate: If Iran is allowed to retain the ability of enriching uranium or reprocessing plutonium, they will build a nuclear weapon with that capacity. Let me put it in plain English. If you let them keep the machines they use to reprocess and enrich, they may not reprocess and enrich to weapons grade right away, but the fact they have the ability to do it I guarantee you eventually means they will.

Do you know how I know that? One reason is all you have to do is hear the speeches they give. The second reason why we know that is the other issue no one is talking about: Iran isn't just spinning centrifuges, they are not just enriching uranium and reprocessing plutonium. Iran is building rockets—long-range rockets, intercontinental missiles. And there is only one purpose for those missiles. The only purpose they have is to put a warhead on them with a nuclear payload. That is the only reason why you build missiles such as that. These types of missiles are not built to deliver a conventional weapon; they are built for purposes of a nuclear capability.

Additionally, these rockets they want to build aren't just rockets that can reach Jerusalem or Tel Aviv. These are rockets that can reach Washington, DC, and my hometown of Miami, and New York City, and the mainland of the United States. So if they build these missiles with that range and they develop the ability to enrich and reprocess, they are one step away, a half step away from becoming a nuclear power, able to hold our country hostage and to carry out their ambitions of destroying Israel. That is the single greatest threat. As great as this threat is with Hamas, and needs to be dealt with decisively, that is the single greatest security threat facing Israel.

It is ironic to me that even as we are focused on this issue and what is happening, this administration is off in Geneva trying to cut a deal with Iran that allows them to retain an acknowledged right to enrich and reprocess, and that is going to prove to be disastrous.

It is my opinion those negotiations will lead to nothing, because Iran has entered into these negotiations believing they entered from a position of strength. They believe this President so badly wants a deal that they don't have to give on anything. By the way, I don't know how you do a meaningful deal with Iran on nuclear weapons that doesn't involve a conversation about these long-range rockets. Yet that is exactly what they are doing with little to no consultation with the Senate or any other policymakers.

I came to the floor to reiterate my personal support for Israel but to also reiterate how strongly I believe virtually every Member of this body supports the State of Israel, supports Israel's right to defend itself, supports the United States alliance with Israel, supports everything we must and can do to help Israel defend herself. I think that is an important message to send out.

Finally, I would say this: I would ask those who have watched this speech or who will hear these words later to take the time over the next few days to pray for Israel. They need our support there as well, that God will provide her the safety and security of her people, now and in the years to come.

Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER (Mr. WARNER). The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mr. REID. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

UNANIMOUS CONSENT AGREEMENTS—EXECUTIVE CALENDAR

Mr. REID. Mr. President, I now ask unanimous consent that following the vote on confirmation of Executive Calendar No. 849, Carnes, on Monday, July 21, the Senate remain in executive session to consider Calendar No. 789, Lawson, and Calendar No. 537, Reddick; that there be 2 minutes for debate equally divided between the two leaders or their designees prior to each vote; that upon the use or yielding back of time the Senate proceed to vote, without intervening action or debate, on the nominations in the order listed; that any rollcall votes, following the first in the series, be 10 minutes in length; the motions to reconsider be considered made and laid upon the table, with no intervening action or debate; that no further motions be in order to the nominations; that any statements related to the nominations be printed in the RECORD; that President Obama be immediately notified of the Senate's action and the Senate then resume legislative session.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. REID. Mr. President, for the information of all Senators, we expect nominations considered in this agreement to be confirmed by voice vote.

Mr. President, I ask unanimous consent that notwithstanding Rule XXII, on Tuesday, July 22, at 10:45 a.m., the Senate proceed to executive session and vote on the motions to invoke cloture on Executive Calendar Nos. 851, Birotte, 852, Rosenberg, and 854, deGravelles, in the order listed; further, that if cloture is invoked on any of these nominations, that on Tuesday, July 22, 2014, at 2:15 p.m., all postcloture time be expired and the Senate proceed to vote on confirmation of the nominations in the order upon which cloture was invoked; that all rollcall votes after the first in each sequence be 10 minutes in length; further, that there be 2 minutes for debate prior to each vote; that if any nomination is confirmed, the motion to reconsider be considered made and laid upon the table and the President be immediately notified of the Senate's action and the Senate then resume legislative session.

The PRESIDING OFFICER. Without objection, it is so ordered.

MORNING BUSINESS

Mr. REID. I now ask unanimous consent that the Senate proceed to a period of morning business with Senators permitted to speak therein for up to 10 minutes each.

The PRESIDING OFFICER. Without objection, it is so ordered.

CONGRATULATING CHARLIE SEEMANN

Mr. REID. Mr. President, today I wish to honor Charlie Seemann. Mr. Seemann is a talented folklorist who is dedicated to sharing western arts and culture with communities throughout Nevada. At the end of the month, he will be retiring from his position as executive director of the Western Folklife Center in Elko, NV.

After serving as the deputy director of the Country Music Foundation in Nashville, TN, for 12 years, and later working as the program director at the Fund for Folk Culture in Santa Fe, NM, Nevada was fortunate to have Mr. Seemann dedicate his efforts to sharing the cultural heritage of the American West with communities throughout our great State.

In 1998, Mr. Seemann brought his masters of folklife studies, decades of experience, and his accomplished musical knowledge to the Western Folklife

Center in Nevada. During his 16-year tenure, he has strengthened the arts throughout his community by investing in literary and scholarship programs that have helped foster artistic development and brought new artists to Western Folklife's most notable event, the National Cowboy Poetry Gathering. Since 1986, Mr. Seemann participated in the annual National Cowboy Poetry Gathering, formerly the Elko Cowboy Poetry Gathering. This event was renamed in 2000, after Mr. Seemann worked with Members of Congress to pass a United States Senate Resolution designating the poetry gathering in Elko as a nationally recognized event.

Mr. Seeman is not only a strong advocate for western arts and culture, but he is a nationally renowned folklorist. Prior to coming to the Western Folklife Center, he received the Western Heritage Wrangler Award from the National Cowboy and Western Heritage Museum, as well as a Grammy nomination for the New World Records anthology Back in the Saddle Again: American Cowboy Songs. Mr. Seemann also received a Wrangler Award in 2003, for his production work on a joint project between the Western Folklife Center and Smithsonian Folkways Recordings, Buck Ramsey: Hittin' the Trail. In 2006, Mr. Seeman was appointed by Congress to the Board of Trustees for the American Folklife Center. This Center is housed at the Library of Congress and works to archive and preserve American's unique culture. It was a tribute to Mr. Seeman's reputation that he was selected for this Federal board, and he represented Nevada well in this role.

Mr. Seemann will be missed by the many individuals he works with at the Western Folklife Center, but his contributions to western folklore will continue. I wish him well in his retirement and all the best in his future endeavors.

BORDER CRISIS

Mr. NELSON. The administration sent several Cabinet Secretaries and high-ranking appointees to brief all Senators last evening on the crisis of the children on the border, and it appears they are getting their arms around addressing the problem of the children and the humanitarian crisis on the border. However, it is the opinion of this Senator that they do not recognize the root cause of the problem. If the administration would listen to their four-star general, the head of the United States Southern Command, General Kelly, and the testimony he has already given to the Armed Services Committee of what is the problem, then we could get to the root cause of the problem and stop these future humanitarian crises.

The problem simply is that we are not devoting the time and the resources—the money—to the interdiction of the big drug shipments coming out of South America into Central America. They come in big shipments from Colombia through Venezuela by air or sea on the eastern side, from Colombia through Ecuador or originating in Ecuador out on the western side, coming into three Central American countries—Honduras, Guatemala, and El Salvador. As a result, their drug lords have completely taken over those countries. As a result, the violence is the highest. Honduras is now the murder capital of the world. As a result of that drug violence—and there is very little law and order—the whole system is corrupted. For parents with children, it is logical that they would want to send their children to a safer environment.

The administration has to address this issue with regard to going back to what we did so successfully in Plan Colombia—interdict the drug traffic before it gets to those Central American countries because once it does in the big shipments, they then break it down into smaller packages and it goes north.

CYPRUS

Ms. MIKULSKI. Mr. President, I wish to recognize the 40th anniversary of Turkey's invasion of the island of Cyprus. Today, Cyprus remains a divided island, with a third of the territory still occupied by Turkish forces.

I am proud to stand with the people of Cyprus and call for an immediate end to the Turkish occupation of their country. On numerous occasions, United Nations resolutions have called for the respect of the sovereignty and independence of the Republic of Cyprus and for an immediate end to the Turkish occupation. The Republic of Cyprus continues to demonstrate full commitment to a peaceful process that will reunify the island in accordance with these resolutions.

Over the past year, the Republic of Cyprus has taken significant steps to lay the groundwork for peaceful negotiations, including proposals that would bring the two sides together to build confidence, strengthen ties, and integrate the Turkish-Cypriot community. It is clear that the government and people of Cyprus stand ready to make the hard decisions needed to achieve peace.

Continued unrest that threatens the security and stability of the region further underscores the importance of supporting the Republic of Cyprus. A peaceful agreement that reunifies Cyprus would signal that just and fair resolutions can be achieved to end decades long confrontations. We must continue to stand with them to fight for a fair and responsible agreement—one that safeguards basic freedoms and human rights for all Cypriots. During his visit in May of this year, Vice President BIDEN reiterated the need for Cyprus to be reunited.

The Republic of Cyprus is a strong and trusted friend of the United States. I am proud of the strategic partnership we have developed over the years. The Government of Cyprus currently hosts the joint mission responsible for carrying out the removal and destruction of Syria's chemical weapons as well as providing maritime cooperation to facilitate the process. The role of Cyprus demonstrates the island's important strategic location and critical international engagement efforts.

I am encouraged by renewed efforts to reach a comprehensive and fair solution to reunify Cyprus. I urge the government of Turkey to cooperate with negotiations and I applaud the people of Cyprus for their steadfast commitment to securing a peaceful and prosperous future.

Mrs. BOXER. Mr. President, I wish to commemorate the 40th anniversary of the division of Cyprus, which began on July 20, 1974.

On July 20, 1974, Turkey began its brutal invasion of the island of Cyprus. By August 25, 1974, Turkish forces controlled more than one-third of the island. To this day, Cyprus remains divided.

Forty years later, it is long past time for a permanent solution that results in a free and unified Cyprus.

For decades, numerous rounds of negotiations have attempted to achieve a settlement. For too long, these efforts have failed to yield meaningful progress. However, a new round of talks began in February of this year. I am deeply hopeful that these negotiations will result in a fair and durable solution for all Cypriots.

A secure and stable Republic of Cyprus will strengthen the friendship and alliance between the United States and Cyprus. This relationship is based on our long history and our mutual goals and values, including a commitment to democracy, opportunity for all, and human rights.

Lasting peace in Cyprus will also reinforce Cyprus's role as a force for peace, prosperity, and stability in the region.

That is why we must continue to do everything possible to help Cyprus resolve the decades-long illegal occupation of Northern Cyprus by Turkey.

As Vice President BIDEN said in May during his historic visit to Cyprus, ''For the sake of the boys and girls born on this island who deserve the possibility that only peace can bring, let's finally make hope and history rhyme together.''

HONORING OUR ARMED FORCES

SERGEANT ANDREW R. LOONEY

Mr. INHOFE. Mr. President, I wish to remember the life and sacrifice of Army SGT Andrew R. Looney who died on June 21, 2010 serving our Nation in Lar Sholtan Village, Afghanistan. Sergeant Looney and Army PFC David T. Miller died of wounds sustained when a suicide bomber attacked their traffic control checkpoint.

Andrew was born June 26, 1987 and grew up in Owasso, OK where he graduated from Owasso High School in 2005.

His father, Richard, said as a teen his son developed an avid interest in the military, and he was further inspired by military movies, in particular the HBO series ''Band of Brothers.'' He grew up respecting authority, was ''very compliable'' and took things in stride which made military life a good fit for him. Therefore, it was a natural for him to enlist in the Army immediately after high school.

While deployed to Iraq in August 2007, he was severely wounded from an improvised explosive device and lost part of his right foot. After nearly a year of grueling rehabilitation and receiving a prosthetic at Brooke Army Medical Center in San Antonio, TX he felt a deep sense of patriotism and a burning desire to serve and get back to where he felt he was needed. In 2009 he was assigned to 2nd Battalion, 327th Infantry Regiment, 1st Brigade Combat Team, 101st Airborne Division, Air Assault, Fort Campbell, KY where on April 24, 2010 he deployed to Afghanistan.

The last time the family saw him in April 2009 ''he was looking forward to his assignment in Afghanistan,'' his father said. He thought he ''was making a difference in the war, and was much needed.''

On June 28, 2010, with hundreds of friends in attendance, the family remembered Andrew at Owasso Public School's Mary Glass Performing Arts Center. Before and throughout the service, hundreds of people lined the streets holding up flags in solemn tribute to Andrew.

In 2012, Oklahoma Governor Mary Fallin signed Senate Bill 1320 designating the section of highway from 96th Street North to 106th Street North as ''Sergeant Andrew R. Looney Memorial Highway.''

Andrew was posthumously promoted to Sergeant and was buried in Arlington National Cemetery in Arlington, VA.

SGT Looney is survived by his parents Martha and Cleo Looney, sister Joanna, and brother, Steven who completed a tour in the Navy in December 2009.

Today we remember Army SGT Andrew R. Looney, a young man who loved his family and country, and gave his life as a sacrifice for freedom.

SPECIALIST JARED C. PLUNK

Mr. President, I also wish to remember a true American hero, Army SPC Jared C. Plunk who died on June 25, 2010 serving our Nation in Konar, Afghanistan. SPC Plunk and Army SPC Blair D. Thompson died of wounds sustained when insurgents attacked their unit using rocket-propelled grenades and small-arms fire.

Jared was born August 26, 1982 in Liberal, KS. He grew up in the Oklahoma Panhandle town of Turpin where he played football and graduated high school in 2001 before taking college classes at Seward County Community College.

After relocating to Stillwater, OK, Jared and his brother Justin enlisted in the Army in August 2006 where they were bunkmates once again in basic military training. After graduation, he married his wife Lindsay and was assigned to 1st Battalion, 327th Infantry Regiment, 1st Brigade Combat Team, 101st Airborne Division, Air Assault, Fort Campbell, KY.

Jared's funeral was held July 4, 2010 at the Turpin High School auditorium. Reverend Stan Lehnart remembered him saying ''He was not the valedictorian of Turpin. He was not the star of the football team. He was not the boy the girls wanted to sit next to at assemblies in this auditorium. He is the one who gave his life for us to sit here today. He is the one that served his country. He is a hero.''

Interment was in the Liberal City Cemetery in Liberal, KS.

Preceded in death by his father, Glen ''Tiny'' Plunk, Jared is survived by his wife Lindsay, and two sons, 5-year-old Noah and baby Kason, mother Glenda Willard and her husband Gerald of Maryville, TN, brother Justin Plunk and his wife Caitlin of Norman, Oklahoma, brother Jordan Plunk of Maryville, TN, sister Ranee Massoni and her husband Jordon and their son Gavin of Maryville, TN, and sister Michelle Plunk of Maryville, TN.

Today we remember Army SPC Jared C. Plunk, a young man who loved his family and country, and gave his life as a sacrifice for freedom.

ARMY STAFF SERGEANT TRAVIS M. TOMPKINS

Mr. President, I would also like to pay tribute to Army SSG Travis M. Tompkins. Travis tragically died on March 16, 2011 of wounds sustained when insurgents attacked his unit with a rocket propelled grenade in Logar Province, Afghanistan.

Travis was born November 26, 1979 at Fort Sill, OK to Leland and Vickie Tompkins. An active Boy Scout, he graduated from MacArthur High School in 1999 and enlisted in the Army in January 2000.

He was carrying on a tradition of service in his family that dates back to World War I. His father, Leland Tompkins served for more than two decades in an Army career that began during the Vietnam war and ended in the closing days of the Cold War. ''He was a working soldier,'' Leland said. ''He was a working leader. He cared about his soldiers. He volunteered for everything.''

Moving frequently, Travis' assignments included Fort Sill, OK, Fort Leonardwood, MO, Fort Carson, CO, and Allied Joint Force Command in Brunssum, the Netherlands. He married Candice Brown on March 1, 2001 at Fort Carson, CO and was quickly deployed to Saudi Arabia from September 2001 to March 2002.

He arrived at Fort Polk, LA in June 2009 and was assigned to Brigade Special Troops Battalion, 4th Brigade Combat Team, 10th Mountain Division. In October 2011 he deployed to Afghanistan with his unit as a military policeman with the Brigade Special Troops Battalion, 4th Brigade Combat Team, 10th Mountain Division.

The couple had recently renewed their vows on their 10th anniversary when he was home on leave. ''It was the most perfect day,'' Candy wrote. ''He was a wonderful man, an excellent soldier and above all the best father and husband and son and brother. I don't know how I'll ever live without him. He was our world.''

A loving husband, father and son, Travis is survived by his wife Candice, two children, Madison and Gianna, parents Leland and Vickie Tompkins of Lawton, OK, sister Jenny Meek and her husband Troy of Fletcher, OK, niece and nephew Megan Meek and Dillon Meek, and his mother and father-in-law Wendy and Tim Brown of Lawton, OK.

His mother Vickie said that the main thing she wanted people who never met him to know is what a great son he was to her and what a wonderful husband he was to his wife Candy, and their children.

Private family funeral services and interment with full military honors were conducted at the Fort Sill National Cemetery, Elgin, OK. Travis was posthumously promoted to Staff Sergeant.

Today we remember Army SSG Travis M. Tompkins, a young man who loved his family and country, and gave his life as a sacrifice for freedom.

TRIBUTE TO TRAVIS MOLLOHAN

Mr. MANCHIN. Mr. President, I want to thank a longtime and dedicated member of my staff, Travis Mollohan, and to wish him the best on his next professional venture—as director of State, corporate and community relations for West Virginia University.

Raised by caring parents, Todd and Brenda Mollohan, in the geographic heart of our State, Braxton County, Travis learned from a young age the value of being involved in his community and the importance of being a team player. As a proud Braxton County Eagle, Travis was a member of the high school's award-winning band, speech and debate team and president of the National Honor Society. Travis even volunteered for me during my unsuccessful 1996 gubernatorial run.

Travis graduated from Braxton County High School in 2000 and then attended college at West Virginia University. There, he was treasurer of the WVU Young Democrats, head of the Student Government Association's campus safety committee and studied abroad at Dublin City University in Ireland. Travis volunteered during my successful campaign for Governor in 2004 and began working for me in 2005 as deputy scheduler.

From my first days as the 34th Governor of the great State of West Virginia, my top priority was to deliver excellent customer service to our fellow West Virginians. Travis was ideally suited for my team—he was hard-working, smart and always there to lend a helping hand to those in need.

Travis served my gubernatorial administration in various capacities, and whether it was through tragedy or triumph, Travis represented my office with the utmost distinction.

After winning the unexpired term for the U.S. Senate in 2010, I asked Travis to help me bring our commonsense West Virginia values to Washington. He served as my director of scheduling in 2011, before returning to my State operations as director of outreach. He did an amazing job visiting the beautiful communities of the Mountain State and listening to our citizens' ideas and concerns.

Recently, I asked Travis to serve as my director of constituent services. I was confident yet again that he could do the job because Travis truly understands what West Virginians need—someone who is compassionate, thoughtful and knowledgeable about our state and the complexities of government.

Not a day passes that Travis is not dedicated to making West Virginia a better place to live, work and raise a family.

I am sad to see Travis leave my office, but I am so excited for his future. He has accepted a position with his alma mater, West Virginia University—our State's flagship university. No one is better suited for the task ahead of him than Travis.

WVU has made a significant and positive impact on the Mountain State. It offers a first-class learning experience and its graduates are spread around the world making a difference. But it is more than just an incredible institution of higher learning. WVU's programs and services improve the lives of our citizens and our communities. In our daily lives, we can always do more, and I am so proud to know that Travis will be helping WVU reach the next level.

It is very difficult to imagine my office without Travis, but I know he will bring the same level of excitement, energy, and dedication to his new position as he brought to my office for more than 9 years. He is a responsive, critical thinker who truly cares about our State and fellow citizens. He is a West Virginian through and through and a proud Mountaineer.

Travis has a bright future ahead of him, and I am pleased to say that very soon he will be marrying the love of his life, Lindsey Bennett—from my hometown of Fairmont—who is a beautiful and intelligent young lady. I know that they will have a long and happy life together, and I am proud to say that they will always remain a part of the Manchin family.

THE FIGHT AGAINST ALS

Mr. WHITEHOUSE. Mr. President, this Fourth of July marked the 75th anniversary of the muggy summer afternoon the great Henry Louis Gehrig bid farewell to baseball and introduced Americans to the illness that would become known as Lou Gehrig's disease.

Lou Gehrig was the only surviving child of a sheet metal worker and a maid—immigrants from Germany. Gehrig brought his family's humble work ethic and steadfastness to his own job, playing first base for the New York Yankees. His career was one that even a Red Sox fan can admire. On June 1, 1925, 4 days before his 20th birthday, he pinch-hit for Pee Wee Wanninger. On June 2, he broke into the starting lineup for good. He would play every single regular and postseason Yankees game until May 2, 1939—2,130 in a row.

''The Iron Horse,'' as Gehrig was known, didn't just play a lot of baseball, he played superb baseball. He racked up more than 2,700 hits, for a lifetime batting average of .340 and close to 2,000 runs batted in. He had 493 career home runs. His No. 4 jersey, known as ''the Hard Number'' by the American League pitchers who had to try to get the ball past him, was the first ever retired from Major League Baseball.

Despite his exceptional play, Gehrig was happy to leave the spotlight to teammate Babe Ruth, or later, Joe DiMaggio. ''I'm not a headline guy,'' he once said. ''As long as I was following Ruth to the plate, I could have stood on my head and no one would have known the difference.''

Lou Gehrig wasn't just great. He was always great. And his competitive spirit inspired Americans during the long years of the Great Depression. But for some unknown reason, his numbers fell off sharply in the 1938 season. He had trouble gripping the bat, running, even walking and sitting. So on the first Tuesday of May 1939, eight games into the season, the Yankee captain took his name off the lineup card. ''I'm benching myself, Joe,'' he told manager Joe McCarthy, ''for the good of the team.''

A series of tests at the Mayo Clinic in Rochester, MN, would reveal that amyotrophic lateral sclerosis, a disease that causes nerve cells to stop working and die, was robbing Gehrig's swing of its fabled power.

ALS attacks neurons responsible for controlling voluntary muscles and progresses rapidly. The brain and spinal cord lose the ability to send messages to the muscles of the body, which weaken and atrophy. ALS can impair speaking, swallowing, and breathing. As Gehrig biographer Jonathan Eig explains, the progression of ALS is like ''shutting down the body's functions one by one, like a night watchman switching off the factory-floor lights.''

Yet on that humid 1939 Independence Day, between the legs of a doubleheader against the Washington Senators, Lou Gehrig stood before a tangle of microphones at homeplate, bowed more by humility at the adulation of 62,000 Yankee fans, teammates, ball boys, and groundskeepers than by his disease. Clenching his cap in two hands, the man sportswriter Jim Murray once described as a ''Gibraltar in cleats'' spoke 278 simple words that still echo in the ears of those of us not even born at the time they were uttered.

''Fans,'' he began, ''for the past two weeks you have been reading about a bad break I got. Yet today I consider myself the luckiest man on the face of the earth.''

Although there is still much we have to learn about the causes of ALS, we have made great strides in research and treatment since Lou Gehrig took himself out of the game. With the help of Federal grants, advances in genetic research have opened the door to insights about the disease's hereditary nature, and drugs and assistive technology are improving dramatically.

Kreg Palko of Barrington, RI, recently underwent a pioneering surgery to transplant millions of stem cells into his spinal cord, in hopes of undoing the paralyzing effects of his ALS. Until Kreg discovered he had ALS just last year, he was always on the move—as a speedy defensive back at the Air Force Academy, Gulf War pilot—or active skier and surfer. ALS has dampened his mobility but not his competitive spirit. Kreg has volunteered for every clinical trial he can, and whether or not these treatments heal Kreg, he and his wife Elizabeth know this research will benefit future patients.

The heart of the movement for a cure is the dedicated community of advocates, researchers, physicians, and ALS patients. When members of the Rhode Island chapter of the ALS Association visited my office this May, they brought along baseball cards featuring Rhode Islanders living with ALS. I saw in each face courage and dignity equal to Lou Gehrig's.

Senator Jacob Javits of New York, who worked for years after his 1979 ALS diagnosis to improve long-term care and end-of-life policies, said:

> Life does not stop with terminal illness. Only the patient stops if he doesn't have the will to go forward with life.

Brian Dickinson refused to let ALS stop him. Editor of the Providence Journal's editorial page and a prize-winning columnist, he had an indomitable spirit. This was the man who once sang ''The Battle Hymn of the Republic'' outside KGB headquarters on a tour of Soviet Moscow. And although ALS silenced his voice, Brian continued to tap out his column for a number of years, with the help of a special computer in his home. His profound, optimistic observations inspired his readers. ''I do believe,'' he once assured us, ''that the capacity for hope can help us meet stiff challenges.''

Brian finally lost his battle with ALS in 2002. Last month, the ALS Association Rhode Island Chapter presented the Brian Dickinson Courage Award to Kreg Palko.

As we look back to the day Lou Gehrig reminded us he had ''an awful lot to live for,'' we should renew our

own will to go forward, with workmanlike determination, toward a cure.

ADDITIONAL STATEMENTS

REMEMBERING HAROLD LEONARD ''LENNY'' KAUFER

● Mr. BOOKER. Mr. President, today I recognize the life and legacy of New Jerseyan Lenny Kaufer, who passed away on July 13 at the age of 92. Lenny was a dear friend and inspiration to me at the very dawn of my career in public service. He will be greatly missed by all who knew him.

Harold Leonard Kaufer was born on August 25, 1921, in Newark, NJ, where he was raised with his 10 siblings in the Roseville neighborhood by his parents, Abraham and Gussie. As a son of Newark, a graduate of its schools, and a New Jersey small business owner, Lenny cared passionately about New Jersey and its future, cheering the revival of its largest city and keeping track of the news ''back home.'' He considered Newark and New Jersey to be at the very core of his identity, and even though his retirement took him to California, he kept a book of historic photos of Newark on his bedside table until the day he died. Lenny never forgot where he came from.

I had the great fortune to get to know Lenny during my time on the Newark City Council and as mayor. I consider him to have been one of the more gentle, kind souls I have ever met, and I appreciated his sound perspective and sage advice. I treasure the conversations we shared, as well as his undeterred love of Newark, and I will miss his wisdom.

Above all else, Lenny was devoted to his family. In 2012, he and his wife Shirley celebrated their 50th wedding anniversary, and they found great pleasure in the time spent with their daughter, three grandchildren, and two great-grandchildren. Lenny always gave loved ones a kiss for the road. As a man of faith, after moving to California, he maintained a membership at his temple in New Jersey, just so he could ensure that his family there would always have a home for the High Holidays.

Lenny is mourned by his wife Shirley, his daughter Jacqueline, sisters Madeline and Helga, brother Irwin, three grandchildren, two great-grandchildren, a large extended family, and his many friends and neighbors. Lenny touched so many lives over his 92 years. He was an American treasure. He demonstrated the truth that so often the biggest thing you can do in any day is a small act of kindness, decency, or love. Lenny lived every day with constant kindness, unyielding decency, and a remarkable love for others. I ask that the Senate join me in honoring him and remembering his extraordinary life.●

TRIBUTE TO COLONEL MARIAMNE R. M. OKRZESIK

● Mr. CARDIN. Mr. President, I wish to honor and pay tribute to an exceptional leader, Col. Mariamne R. Okrzesik. After a lifetime of service to our Nation, Colonel Okrzesik is retiring from the U.S. Air Force and her current position as Director of the Office of Legislative Affairs, United States Central Command, at MacDill Air Force Base in Tampa, FL. On this occasion I believe it is fitting to recognize Colonel Okrzesik's extraordinary dedication to duty and selfless service to the United States of America.

Colonel Okrzesik has served at all levels in the Air Force. Her career began when she received her commission in 1986 through the Reserve Officer Training Corps program at the University of Maryland. Colonel Okrzesik's distinguished military service has taken her all over the world in defense of our Nation. Her career has included assignments and duties across a wide variety of command, intelligence, and staff positions throughout Europe, the Pacific, and the United States. Colonel Okrzesik has served as an intelligence flight commander; director of operations; executive officer; Major Command; Headquarters Air Force and Secretary of the Air Force staff officer; squadron commander; and Joint Combatant Command staff officer. Colonel Okrzesik has received numerous awards during her career, including the Defense Meritorious Service Medal, Air Force Meritorious Service Medal with six oak leaf clusters, the Joint Commendation Medal, and Air Force Commendation Medal.

It is a pleasure to recognize Colonel Okrzesik's long and decorated career today and also the great benefit to the Nation she has provided as a senior leader for the U.S. Air Force and Department of Defense. Colonel Okrzesik has always achieved excellence during her career. On behalf of a grateful nation, I join my colleagues today in recognizing and commending Colonel Okrzesik for a lifetime of service to her country. For all she has given and continues to give to our country we are in her debt. As Colonel Okrzesik retires to Lothian, MD, we express our gratitude for her faithful and dedicated service and wish her our sincerest best wishes upon her retirement.●

REMEMBERING JOHN V. EVANS

● Mr. CRAPO. Mr. President, I wish to honor the life of former Idaho Governor John Victor Evans. Governor Evans will be missed, but his impact on Idaho and his legacy of dedicated service will endure.

Governor Evans and his family were Idaho pioneers. He was born and raised in Malad, ID. He attended Idaho State University, and like so many of his generation, he went to serve as an infantryman in World War II. After returning from the war, he earned a degree in business and economics from Stanford University.

John dedicated much of his life to public service. He served in the Idaho State Senate where he rose to the positions of majority leader and minority leader. He was mayor of Malad, the town he grew up in. In 1974, he was elected Lieutenant Governor before his terms as Idaho's 27th Governor from 1977 to 1987. He led Idaho through a number of challenging times: the historic settlement of water rights, the closure of the Bunker Hill Mine, and the difficult economic times much of the Nation saw in the 1980s. He also contributed to the national dialogue, having served in leadership positions in the Western Governors Association and National Governor's Association.

He was dedicated to community service and supported numerous efforts and organizations. He was a member of the Veterans of Foreign Wars, American Legion, the Fraternal Order of Eagles, and the Rotary Club, and he was a Mason. He also held a number of leadership positions for the Independent Community Bankers Association.

Following his retirement from public office in 1987, he became president of D.L. Evans Bank in Burley, ID. During his tenure, the bank grew from two banks to 21 banks, assisting thousands of Idaho residents and businesses.

Idahoans benefited greatly from his steady leadership in public office and in business. He was known for his open-door policy, strong work ethic and always taking the time to meet with fellow Idahoans. I extend my condolences to his wife Lola, brother Don, children, grandchildren, great-grandchildren and many other family members and friends. He will be greatly missed.●

WINNEBAGO COUNTY, IOWA

● Mr. HARKIN. Mr. President, the strength of my State of Iowa lies in its vibrant local communities, where citizens come together to foster economic development, make smart investments to expand opportunity, and take the initiative to improve the health and well-being of residents. Over the decades, I have witnessed the growth and revitalization of so many communities across my State. And it has been deeply gratifying to see how my work in Congress has supported these local efforts.

I have always believed in accountability for public officials, and this, my final year in the Senate, is an appropriate time to give an accounting of my work across four decades representing Iowa in Congress. I take pride in accomplishments that have been national in scope—for instance, passing the Americans with Disabilities Act and spearheading successful farm bills. But I take a very special pride in projects that have made a big difference in local communities across my State.

Today, I would like to give an accounting of my work with leaders and

residents of Winnebago County to build a legacy of a stronger local economy, better schools and educational opportunities, and a healthier, safer community.

Between 2001 and 2013, the creative leadership in your community has worked with me to secure funding in Winnebago County worth over $1.2 million and successfully acquired financial assistance from programs I have fought hard to support, which have provided more than $28 million to the local economy.

Of course my favorite memory of working together has to be the success that the county has had in securing over $9.4 million funds for the Heartland Power Cooperative through programs I fought for at the Federal Emergency Management Agency and in past farm bills.

Among the highlights:

School grants: Every child in Iowa deserves to be educated in a classroom that is safe, accessible, and modern. That is why, for the past decade and a half, I have secured funding for the innovative Iowa Demonstration Construction Grant Program—better known among educators in Iowa as Harkin grants for public schools construction and renovation. Across 15 years, Harkin grants worth more than $132 million have helped school districts to fund a range of renovation and repair efforts—everything from updating fire safety systems to building new schools. In many cases, these Federal dollars have served as the needed incentive to leverage local public and private dollars, so it often has a tremendous multiplier effect within a school district. Over the years, Winnebago County has received $1,083,026 in Harkin grants.

Disaster mitigation and prevention: In 1993, when historic floods ripped through Iowa, it became clear to me that the national emergency-response infrastructure was woefully inadequate to meet the needs of Iowans in flood-ravaged communities. I went to work dramatically expanding the Federal Emergency Management Agency's hazard mitigation program, which helps communities reduce the loss of life and property due to natural disasters and enables mitigation measures to be implemented during the immediate recovery period. Disaster relief means more than helping people and businesses get back on their feet after a disaster, it means doing our best to prevent the same predictable flood or other catastrophe from recurring in the future. The hazard mitigation program that I helped create in 1993 provided critical support to Iowa communities impacted by the devastating floods of 2008. Winnebago County has received over $8.2 million to remediate and prevent widespread destruction from natural disasters.

Agricultural and rural development: Because I grew up in a small town in rural Iowa, I have always been a loyal friend and fierce advocate for family farmers and rural communities. I have been a member of the House or Senate Agriculture Committee for 40 years—including more than 10 years as chairman of the Senate Agriculture Committee. Across the decades, I have championed farm policies for Iowans that include effective farm income protection and commodity programs; strong, progressive conservation assistance for agricultural producers; renewable energy opportunities; and robust economic development in our rural communities. Since 1991, through various programs authorized through the farm bill, Winnebago County has received more than $19 million from a variety of farm bill loan and grant programs.

Keeping Iowa communities safe: I also firmly believe that our first responders need to be appropriately trained and equipped, able to respond to both local emergencies and to statewide challenges such as, for instance, the methamphetamine epidemic. Since 2001, Winnebago County's fire departments have received over $623,971 for firefighter safety and operations equipment.

Wellness and health care: Improving the health and wellness of all Americans has been something I have been passionate about for decades. That is why I fought to dramatically increase funding for disease prevention, innovative medical research, and a whole range of initiatives to improve the health of individuals and families not only at the doctor's office but also in our communities, schools, and workplaces. I am so proud that Americans have better access to clinical preventive services, nutritious food, smoke-free environments, safe places to engage in physical activity, and information to make healthy decisions for themselves and their families. These efforts not only save lives, they will also save money for generations to come thanks to the prevention of costly chronic diseases, which account for a whopping 75 percent of annual health care costs. I am pleased that Winnebago County has recognized this important issue by securing $120,000 for community wellness activities.

Disability rights: Growing up, I loved and admired my brother Frank, who was deaf. But I was deeply disturbed by the discrimination and obstacles he faced every day. That is why I have always been a passionate advocate for full equality for people with disabilities. As the primary author of the Americans with Disabilities Act, ADA, and the ADA Amendments Act, I have had four guiding goals for our fellow citizens with disabilities: equal opportunity, full participation, independent living and economic self-sufficiency. Nearly a quarter century since passage of the ADA, I see remarkable changes in communities everywhere I go in Iowa—not just in curb cuts or closed captioned television, but in the full participation of people with disabilities in our society and economy, folks who at long last have the opportunity to contribute their talents and to be fully included. These changes have increased economic opportunities for all citizens of Winnebago County, both those with and without disabilities. And they make us proud to be a part of a community and country that respects the worth and civil rights of all of our citizens.

This is at least a partial accounting of my work on behalf of Iowa, and specifically Winnebago County, during my time in Congress. In every case, this work has been about partnerships, cooperation, and empowering folks at the State and local level, including in Winnebago County, to fulfill their own dreams and initiatives. And, of course, this work is never complete. Even after I retire from the Senate, I have no intention of retiring from the fight for a better, fairer, richer Iowa. I will always be profoundly grateful for the opportunity to serve the people of Iowa as their Senator.●

ALLAMAKEE COUNTY, IOWA

● Mr. HARKIN. Mr. President, the strength of my State of Iowa lies in its vibrant local communities, where citizens come together to foster economic development, make smart investments to expand opportunity, and take the initiative to improve the health and well-being of residents. Over the decades, I have witnessed the growth and revitalization of so many communities across my State. And it has been deeply gratifying to see how my work in Congress has supported these local efforts.

I have always believed in accountability for public officials, and this, my final year in the Senate, is an appropriate time to give an accounting of my work across four decades representing Iowa in Congress. I take pride in accomplishments that have been national in scope—for instance, passing the Americans with Disabilities Act and spearheading successful farm bills. But I take a very special pride in projects that have made a big difference in local communities across my State.

Today, I would like to give an accounting of my work with leaders and residents of Allamakee County to build a legacy of a stronger local economy, better schools and educational opportunities, and a healthier, safer community.

Between 2001 and 2013, the creative leadership in your community has worked with me to successfully acquire financial assistance from programs I have fought hard to support, which have provided more than $26 million to the local economy.

Of course my favorite memory of working together has to be the community's success in obtaining funding for school construction, fire safety, technology, and other improvements through Harkin school construction grants, the Star Schools program, and

American Recovery and Reinvestment Act of 2009 funds.

Among the highlights:

School grants: Every child in Iowa deserves to be educated in a classroom that is safe, accessible, and modern. That is why, for the past decade and a half, I have secured funding for the innovative Iowa Demonstration Construction Grant Program—better known among educators in Iowa as Harkin grants for public schools construction and renovation. Across 15 years, Harkin grants worth more than $132 million have helped school districts to fund a range of renovation and repair efforts—everything from updating fire safety systems to building new schools. In many cases, these Federal dollars have served as the needed incentive to leverage local public and private dollars, so it often has a tremendous multiplier effect within a school district. Over the years, Allamakee County has received $1,792,068 in Harkin grants. Similarly, schools in Allamakee County have received funds that I designated for Iowa Star Schools for technology totaling $59,494. Finally, Allamakee schools received more than $280,000 through the American Recovery and Reinvestment Act of 2009 for academic and learning support.

Agricultural and rural development: Because I grew up in a small town in rural Iowa, I have always been a loyal friend and fierce advocate for family farmers and rural communities. I have been a member of the House or Senate Agriculture Committee for 40 years—including more than 10 years as chairman of the Senate Agriculture Committee. Across the decades, I have championed farm policies for Iowans that include effective farm income protection and commodity programs; strong, progressive conservation assistance for agricultural producers; renewable energy opportunities; and robust economic development in our rural communities. Since 1991, through various programs authorized through the farm bill, Allamakee County has received more than $1.3 million from a variety of farm bill programs.

Keeping Iowa communities safe: I also firmly believe that our first responders need to be appropriately trained and equipped, able to respond to both local emergencies and to statewide challenges such as, for instance, the methamphetamine epidemic. Since 2001, Allamakee County's fire departments have received over $900,000 for firefighter safety and operations equipment.

Disability rights: Growing up, I loved and admired my brother Frank, who was deaf. But I was deeply disturbed by the discrimination and obstacles he faced every day. That is why I have always been a passionate advocate for full equality for people with disabilities. As the primary author of the Americans with Disabilities Act, ADA, and the ADA Amendments Act, I have had four guiding goals for our fellow citizens with disabilities: equal opportunity, full participation, independent living and economic self-sufficiency. Nearly a quarter century since passage of the ADA, I see remarkable changes in communities everywhere I go in Iowa—not just in curb cuts or closed captioned television, but in the full participation of people with disabilities in our society and economy, folks who at long last have the opportunity to contribute their talents and to be fully included. These changes have increased economic opportunities for all citizens of Allamakee County, both those with and without disabilities. And they make us proud to be a part of a community and country that respects the worth and civil rights of all of our citizens.

This is at least a partial accounting of my work on behalf of Iowa, and specifically Allamakee County, during my time in Congress. In every case, this work has been about partnerships, cooperation, and empowering folks at the State and local level, including in Allamakee County, to fulfill their own dreams and initiatives. And, of course, this work is never complete. Even after I retire from the Senate, I have no intention of retiring from the fight for a better, fairer, richer Iowa. I will always be profoundly grateful for the opportunity to serve the people of Iowa as their Senator.●

CONGRATULATING COLONEL JAMES WALKER

● Mr. HELLER. Mr. President, I wish to congratulate COL James Walker of Las Vegas, Nevada on his upcoming retirement from the Nevada Army National Guard. I am proud to honor a Nevadan who has dedicated his life to serving our country.

Born and raised in Las Vegas, NV, Colonel Walker's desire to serve came when he was studying psychology in college. On scholarship for soccer at the University of Nevada, Las Vegas, he decided he wanted to enlist and become a combat medic. Upon joining the Army in 1979, Colonel Walker rose through the ranks and eventually became the highest ranking African-American Army National Guard officer in Nevada history. Colonel Walker's career from private to colonel over the course of 35 years is both commendable and admirable.

Throughout his career, Colonel Walker continued to pursue all of the educational training that the Army National Guard had to offer. With the support of his wife Doris Colonel Walker decided to pursue three NCO professional development schools, earning him the prestigious NCO Ribbon. Colonel Walker also participated in an Officer Candidate School at Clear Creek near Carson City and was a pioneering student in the Nevada primary leadership development course, graduating at the top of his class with honors. After his success there, he served as a training officer for the next graduating class. His ability to give back to the National Guard and his community was also exemplified during his 3 years of teaching ROTC at the University of Nevada, Las Vegas. Upon his retirement from the National Guard, Colonel Walker plans to continue working for National Security Technologies as the company's facility manager at Nellis Air Force Base in Las Vegas.

I extend my deepest gratitude to Colonel Walker for his courageous contributions to the United States of America and to freedom-loving nations around the world. His service to his country and his bravery and dedication earn him a place among the outstanding men and women who have valiantly defended our Nation. As a member of the Senate Veterans' Affairs Committee, I recognize that Congress has a responsibility not only to honor these brave individuals who serve our Nation but also to ensure they are cared for when they return home. I remain committed to upholding this promise for our veterans and servicemembers in Nevada and throughout the Nation.

Throughout his tenure, Colonel Walker has demonstrated professionalism, commitment to excellence, and dedication to the highest standards of the Army National Guard. I am both humbled and honored by his service and am proud to call him a fellow Nevadan. I ask my colleagues to join me in recognizing COL James Walker for all of his accomplishments and wish him well in all of his future endeavors.●

USS ''NEVADA'' CENTENNIAL

● Mr. HELLER. Mr. President, I wish to recognize the 100th Anniversary of the commissioning of the USS *Nevada* Battleship. I am proud to be able to honor Nevada's namesake battleship today and all of the Americans that served aboard her.

The anniversary of the battleship USS *Nevada* comes on the heels of Nevada celebrating its 150th year of statehood. Through her years of service, the *Nevada* suffered many blows and casualties, but remained dedicated to defending her country. The crew that served aboard her have all earned a place among the outstanding men and women who have valiantly defended our Nation. I, along with my fellow Nevadans, feel a great sense of pride that our State has been chosen as the namesake for this ship that is arguably one of the greatest of our navy or of any Navy.

Launched on July 11, 1914, at the Fore River Shipbuilding Corporation in Quincy, MA, the USS *Nevada* was the most-advanced battleship in the U.S. Navy at the time. The USS *Nevada* saw both World Wars during her time in active service. During the final months of World War I, she was based in Bantry Bay, County Cork, Ireland, to ensure that the supply convoys that were sailing to and from Great Britain were protected. In World War II, she was the

only ship to get underway during the Japanese attack at Pearl Harbor. After receiving one torpedo hit and several bomb hits, the USS *Nevada* had to be beached, but after vigorous salvage work, repairs and improvements, she was able to return to combat. Highly decorated for the numerous battles that she was a part of, the USS *Nevada* was present at the Attu landings against the Japanese, fired against German defenses during the Normandy landings, and supported operations in Iwo Jima and Okinawa. After over 30 years of service, the USS *Nevada* was deemed too old for retention and was assigned to serve as a target in the atomic bomb tests at Bikini Atoll. The experience left her radioactive and badly damaged, leading to her being decommissioned and eventually sunk during naval gunfire practice.

It is an honor to be able to commemorate this day on behalf of my fellow Nevadans as we remember those who have risked their lives to defend freedom. Our Navy's commitment to this country, as well as their dedication to their families and communities, exemplified why the legacy of all veterans must be preserved for generations to come. These heroes selflessly served not for recognition, but because it was the right thing to do. As a member of the Senate Veterans' Affairs Committee, I recognize that Congress has a responsibility not only to honor these brave individuals, but to ensure they are cared for after their return home. I remain committed to upholding this promise for our veterans and servicemembers in Nevada and throughout the Nation.

I ask that we recognize the commissioning of the USS *Nevada* and honor all that sailed aboard her. I am both humbled and honored to commemorate the brave men and women who dedicated their lives to serving our country and recognize them here today. May we never forget the legacy of this great battleship and her gallant crew.●

REMEMBERING MATTIE STEPANEK

● Ms. MIKULSKI. Mr. President, I wish to pay tribute to the life of Matthew Joseph Thaddeus Stepanek, best known as Mattie, who passed away 10 years ago at the age of 13 from complications due to his rare form of muscular dystrophy. Though his death was a tragedy, his life was a triumph. He was a gifted author and noted peacemaker. He took a personal challenge and turned it into a tool of inspiration for all of us. Mattie once said, ''I want my message to live beyond me,'' and it does. His message of peace and hope has reached millions around the world.

When Mattie was born in 1990 in Upper Marlboro, MD, doctors did not expect him to live longer than 24 hours. Mattie suffered from the same rare form of muscular dystrophy as his mother, his two brothers, and sister. His siblings all died before the age of 4. Though the disease eventually rendered him unable to walk and breathe on his own, Mattie was a survivor. He began writing poetry at the age of 3. He wrote poems about hope and peace. His philosophy was, ''Remember to play after every storm,'' and he did.

Mattie believed that wishes can come true. He had three. The first was to talk peace with Jimmy Carter. They spoke several times through email correspondence. His second was to have his poems published in a book. He wrote the most successful volumes of poetry in the last 30 years and became a seven-time New York Times best-selling author. His last was to see his poetry read on Oprah. He appeared on Oprah's show several times and became her good friend.

In September 2001, Mattie faced a setback. He was so sick that his doctors warned a laugh could cause his damaged windpipe to collapse. But that did not stop Mattie from a spectacular recovery. His doctors could not explain his comeback from this brush with death, but Mattie knew what it was. It was hope, prayer, and just one in a series of miracles in a miraculous life.

After the chaos and confusion of September 11 and the anthrax attacks on the Capitol, I was very grief stricken. I saw a little boy on TV reading poetry, offering hope and healing. Mattie comforted me and lifted my spirits. I contacted him through his hospital and visited with him and his mother in his home. In 2002, I presented Mattie with the Children's Hope Medal of Honor. This medal is given to young heroes who have shown valiant effort and courage in facing life's daily challenges. No one was more deserving of that medal than Mattie Stepanek.

Today we must also remember Mattie's mother Jeni Stepanek. Like Mattie, she suffers physical challenges, but her heart, mind, and spirit remain strong. Without Jeni, Mattie would never have been able to share his beautiful, inspiring words with us. Mattie got his knack for public speaking from his mom. She writes and talks about children with disabilities. He also got his love of life from her. Jeni continues to inspire us all with her life, with Mattie's words, and most importantly, a message of peace and hope.

In his poem entitled ''The Daily Gift,'' Mattie wrote:

You know what?
Tomorrow is a new day.
And today is a new day.
Actually, every day is a new day.
Thank you, God,
For all of these special and new days.

This is how Mattie Stepanek lived his life—with appreciation, inspiration, and energy. That is why I wish to say: Thank you, God, for blessing us with the gift of Mattie Stepanek and his heart of songs.●

MESSAGES FROM THE PRESIDENT

Messages from the President of the United States were communicated to the Senate by Mr. Pate, one of his secretaries.

EXECUTIVE MESSAGES REFERRED

As in executive session the Presiding Officer laid before the Senate messages from the President of the United States submitting sundry nominations which were referred to the appropriate committees.

(The messages received today are printed at the end of the Senate proceedings.)

MESSAGE FROM THE HOUSE

At 1:23 p.m., a message from the House of Representatives, delivered by Mrs. Cole, one of its reading clerks, announced that the House has passed the following bill, in which it requests the concurrence of the Senate:

H.R. 5016. An act making appropriations for financial services and general government for the fiscal year ending September 30, 2015, and for other purposes.

At 3:03 p.m., a message from the House of Representatives, delivered by Mrs. Cole, one of its reading clerks, announced that the House agreed to the following concurrent resolution, in which it requests the concurrence of the Senate:

H. Con. Res. 108. Concurrent resolution providing for the correction of the enrollment of H.R. 5021.

MEASURES REFERRED

The following bill was read the first and the second times by unanimous consent, and referred as indicated:

H.R. 5016. An act making appropriations for financial services and general government for the fiscal year ending September 30, 2015, and for other purposes; to the Committee on Appropriations.

MEASURES READ THE FIRST TIME

The following bill was read the first time:

S. 2631. A bill to prevent the expansion of the Deferred Action for Childhood Arrivals program unlawfully created by Executive memorandum on August 15, 2012.

REPORTS OF COMMITTEES

The following reports of committees were submitted:

By Mr. DURBIN, from the Committee on Appropriations, with an amendment in the nature of a substitute:

H.R. 4870. A bill making appropriations for the Department of Defense for the fiscal year ending September 30, 2015, and for other purposes (Rept. No. 113–211).

By Mr. LEAHY, from the Committee on the Judiciary:

Report to accompany S. 517, a bill to promote consumer choice and wireless competition by permitting consumers to unlock mobile wireless devices, and for other purposes (Rept. No. 113–212).

By Mr. LEAHY, from the Committee on the Judiciary, with an amendment in the nature of a substitute:

S.J. Res. 19. A joint resolution proposing an amendment to the Constitution of the United States relating to contributions and expenditures intended to affect elections.

EXECUTIVE REPORTS OF COMMITTEE

The following executive reports of nominations were submitted:

By Mr. LEAHY for the Committee on the Judiciary.

Pamela Pepper, of Wisconsin, to be United States District Judge for the Eastern District of Wisconsin.

Pamela Harris, of Maryland, to be United States Circuit Judge for the Fourth Circuit.

Brenda K. Sannes, of New York, to be United States District Judge for the Northern District of New York.

Patricia M. McCarthy, of Maryland, to be a Judge of the United States Court of Federal Claims for a term of fifteen years.

Jeri Kaylene Somers, of Virginia, to be a Judge of the United States Court of Federal Claims for a term of fifteen years.

(Nominations without an asterisk were reported with the recommendation that they be confirmed.)

EXECUTIVE REPORTS OF COMMITTEES—WEDNESDAY, JULY 16, 2014

The following material was omitted from the CONGRESSIONAL RECORD of July 16, 2014 on page S4557:

Financial Campaign Contributions Report for Leslie Ann Bassett:

Nominee: Leslie Bassett.

Post: U.S. Ambassador to Paraguay.

(The following is a list of all members of my immediate family and their spouses. I have asked each of these persons to inform me of the pertinent contributions made by them. To the best of my knowledge, the information contained in this report is complete and accurate.)

Contributions, Amount, Date, Donee:

1. Self: 0.

2. Spouse: N/A

3. Children and Spouses: Nadia Jean Bassett (minor-no spouse): 0.

4. Parents: Carole G. Bassett (deceased), Kimbrough Stone Bassett: 0.

5. Grandparents : Albert E. Bassett (deceased), Elizabeth Stone Bassett (deceased), Mabel Moran Gilchrist (deceased), Gen. John R. Gilchrist (deceased).

6. Brothers and Spouses: Kimbrough Stone Bassett (brother): 9/30/09, Alan Grayson, Congress/House, $40.00, ActBlue.com; 2010, Jack Conway, Congress/Senate, $20.00, Estimate, I'm unable to locate the original donation amount or date; 2012, Elizabeth Warren, Congress/Senate, $40.00, Estimate, I'm unable to locate the original donation amount or date; 11/2/12, Barack Obama, President, $100.00, Obama For America; 11/3/12, Carol Shea-Porter, Congress/House, $3.00, ActBlue.com; 11/3/12, Betty Sue Sutton, Congress/House, $3.00, ActBlue.com; 11/3/12, Ami Bera, Congress/House, $3.00, ActBlue.com; 11/3/12 Ann McLane Kuster, Congress/House, $3.00, ActBlue.com; 11/3/12, Manan Trivedi, Congress/House, $3.00, ActBlue.com; 11/3/12, Patrick Murphy, Congress/House, $3.00, ActBlue.com; 11/3/12, Pat Kreitlow, Congress/House, $3.00, ActBlue.com; 11/3/12, Lois Frankel, Congress/House, $3.00, ActBlue.com; 11/3/12, Mark Takano, Congress/House, $3.00, ActBlue.com; 11/3/12, David Gill, Congress/House, $3.00, ActBlue.com; 11/3/12, Rick Nolan, Congress/House, $3.00, ActBlue.com; 11/3/12, Jose Hernandez, Congress/House, $3.00, ActBlue.com; 11/3/12, Alan Lowenthal, Congress/House, $3.00, ActBlue.com; 11/3/12, Kathryn Boockvar, Congress/House, $3.00, ActBlue.com; 11/3/12, Sean Patrick Maloney, Congress/House, $3.00, ActBlue.com; 11/3/12, Joe Garcia, Congress/House, $3.00, ActBlue.com; 11/3/12, Jim Graves, Congress/House, $3.00, ActBlue.com; 11/12/12, Barack Obama, President, $100.00, Obama For America; 2013, Elizabeth Colbert Busch, Congress/House, $20.00, Estimate, I'm unable to locate the original donation amount or date.

Zan Sterling (sister-in-law): 6/3/2010, 100, Friends of Barbara, Barbara Boxer; 8/21/2010, 105, Actblue, Barbara Boxer; 8/22/2010, 25, Actblue, Gavin Newsom; 10/1/2010, 50, Actblue, Gavin Newsom; 10/8/2010, 100, DNC, Barack Obama; 10/8/2010, 50, Actblue, Barbara Boxer; 10/29/2010, 35, Actblue, Barbara Boxer; 10/29/2010, 9.09, Actblue, Nancy Pelosi; 10/29/2010, 9.09, Actblue, Jerry McNerney; 10/29/2010, 9.09, Actblue, Debra Bowen; 10/29/2010, 9.09, Actblue, Bill Hedrick; 10/29/2010, 9.09, Actblue, Beth Krom; 10/29/2010, 9.09, Actblue, Dave Jones; 10/29/2010, 9.09, Actblue, Steve Pougnet; 10/29/2010, 9.09, Actblue, Jerry Brown; 10/29/2010, 9.09, Actblue, Gavin Newsom; 4/27/2011, 25, Obama for America, Barack Obama; 8/17/2011, 25, Obama for America, Barack Obama; 7/29/2011, 5, Dem Sen Cmp Dirct; 8/26/2011, 5, direct payment, Al Franken; 2/18/2012, 22, Actblue; 5/19/2012, 20, Obama for America, Barack Obama; 8/1/2012, 26, Actblue; 8/8/2012, 26, Actblue; 9/6/2012, 35, Obama for America, Barack Obama; 10/9/2012, 26, Actblue; 10/9/2012, 26, Actblue; 9/30/2013, 5, Actblue, Gavin Newsom; 9/30/2013, 5, Actblue, Terry McAuliffe; 10/7/2013, 3, Actblue, DCCC; 11/9/2013, 15, Organizing for Action; 11/14/2013, 15, Organizing for Action.

7. Sisters and Spouses: Diane Moran Bassett (sister), 0, Dennis Murray, (brother-in-law) 0.

EXECUTIVE REPORTS OF COMMITTEE—TREATIES

The following executive reports of committee were submitted:

By Mr. MENENDEZ, from the Committee on Foreign Relations:

Treaty Doc. 113–4: The Protocol Amending the Tax Convention with Spain (Ex. Rept. 113–10); and

Treaty Doc. 113–5: Convention on Taxes with the Republic of Poland (Ex. Rept. 113–11)

The text of the committee-recommended resolutions of advice and consent to ratification are as follows:

[Treaty Doc. 113–4 The Protocol Amending the Tax Convention with Spain]

Section 1. Senate Advice and Consent Subject to a Declaration

The Senate advises and consents to the ratification of the Protocol Amending the Convention between the United States of America and the Kingdom of Spain for the Avoidance of Double Taxation and the Prevention of Fiscal Evasion With Respect to Taxes on Income and its Protocol, signed at Madrid on February 22, 1990, and a related Memorandum of Understanding signed on January 14, 2013, at Madrid, together with correcting notes dated July 23, 2013, and January 31, 2014 (the ''Protocol'') (Treaty Doc. 113–4), subject to the declaration of section 2 and the conditions of section 3.

Section 2. Declaration

The advice and consent of the Senate under section 1 is subject to the following declaration:

The Protocol is self-executing.

Section 3. Conditions

The advice and consent of the Senate under section 1 is subject to the following conditions:

(1) Not later than 2 years after the Protocol enters into force and prior to the first arbitration conducted pursuant to the binding arbitration mechanism provided for in the Protocol, the Secretary of the Treasury shall transmit to the Committees on Finance and Foreign Relations of the Senate and the Joint Committee on Taxation the text of the rules of procedure applicable to arbitration panels, including conflict of interest rules to be applied to members of the arbitration panel.

(2)(A) Not later than 60 days after a determination has been reached by an arbitration panel in the tenth arbitration proceeding conducted pursuant to the Protocol or any of the treaties described in subparagraph (B), the Secretary of the Treasury shall prepare and submit to the Joint Committee on Taxation and the Committee on Finance of the Senate, subject to laws relating to taxpayer confidentiality, a detailed report regarding the operation and application of the arbitration mechanism contained in the Protocol and such treaties. The report shall include the following information:

(i) For the Protocol and each such treaty, the aggregate number of cases pending on the respective dates of entry into force of the Protocol and each treaty, including the following information:

(I) The number of such cases by treaty article or articles at issue.

(II) The number of such cases that have been resolved by the competent authorities through a mutual agreement as of the date of the report.

(III) The number of such cases for which arbitration proceedings have commenced as of the date of the report.

(ii) A list of every case presented to the competent authorities after the entry into force of the Protocol and each such treaty, including the following information regarding each case:

(I) The commencement date of the case for purposes of determining when arbitration is available.

(II) Whether the adjustment triggering the case, if any, was made by the United States or the relevant treaty partner.

(III) Which treaty the case relates to.

(IV) The treaty article or articles at issue in the case.

(V) The date the case was resolved by the competent authorities through a mutual agreement, if so resolved.

(VI) The date on which an arbitration proceeding commenced, if an arbitration proceeding commenced.

(VII) The date on which a determination was reached by the arbitration panel, if a IN determination was reached, and an indication as to whether the panel found in favor of the United States or the relevant treaty partner.

(iii) With respect to each dispute submitted to arbitration and for which a determination was reached by the arbitration panel pursuant to the Protocol or any such treaty, the following information:

(I) In the case of a dispute submitted under the Protocol, an indication as to whether the presenter of the case to the competent authority of a Contracting State submitted a Position Paper for consideration by the arbitration panel.

(II) An indication as to whether the determination of the arbitration panel was accepted by each concerned person.

(III) The amount of income, expense, or taxation at issue in the case as determined by reference to the filings that were sufficient to set the commencement date of the case for purposes of determining when arbitration is available.

(IV) The proposed resolutions (income, expense, or taxation) submitted by each competent authority to the arbitration panel.

(B) The treaties referred to in subparagraph (A) are—

(i) the 2006 Protocol Amending the Convention between the United States of America

and the Federal Republic of Germany for the Avoidance of Double Taxation and the Prevention of Fiscal Evasion with Respect to Taxes on Income and Capital and to Certain Other Taxes, done at Berlin June 1, 2006 (Treaty Doc. 109–20) (the ''2006 German Protocol'');

(ii) the Convention between the Government of the United States of America and the Government of the Kingdom of Belgium for the Avoidance of Double Taxation and the Prevention of Fiscal Evasion with Respect to Taxes on Income, and accompanying protocol, done at Brussels July 9, 1970 (the ''Belgium Convention'') (Treaty Doc. 110–3);

(iii) the Protocol Amending the Convention between the United States of America and Canada with Respect to Taxes on Income and on Capital, signed at Washington September 26, 1980 (the ''2007 Canada Protocol'') (Treaty Doc. 110–15); or

(iv) the Protocol Amending the Convention between the Government of the United States of America and the Government of the French Republic for the Avoidance of Double Taxation and the Prevention of Fiscal Evasion with Respect to Taxes on Income and Capital, signed at Paris August 31, 1994 (the ''2009 France Protocol'') (Treaty Doc. 111–4).

(3) The Secretary of the Treasury shall prepare and submit the detailed report required under paragraph (2) on March 1 of the year following the year in which the first report is submitted to the Joint Committee on Taxation and the Committee on Finance of the Senate, and on an annual basis thereafter for a period of five years. In each such report, disputes that were resolved, either by a mutual agreement between the relevant competent authorities or by a determination of an arbitration panel, and noted as such in prior reports may be omitted.

(4) The reporting requirements referred to in paragraphs (2) and (3) supersede the reporting requirements contained in paragraphs (2) and (3) of section 3 of the resolution of advice and consent to ratification of the 2009 France Protocol, approved by the Senate on December 3, 2009.

[Treaty Doc. 113–5 Convention on Taxes with the Republic of Poland]

Section I. Senate Advice and Consent Subject to a Declaration

The Senate advises and consents to the ratification of the Convention between the United States of America and the Republic of Poland for the Avoidance of Double Taxation and the Prevention of Fiscal Evasion with Respect to Taxes on Income, signed on February 13, 2013, at Warsaw (the ''Convention'') (Treaty Doc. 113–5), subject to the declaration of section 2.

Section 2. Declaration

The advice and consent of the Senate under section 1 is subject to the following declaration:

The Convention is self-executing.

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mr. MCCAIN (for himself, Mr. FLAKE, Mr. GRAHAM, Ms. AYOTTE, and Mr. INHOFE):

S. 2619. A bill to prevent organized human smuggling, and for other purposes; to the Committee on the Judiciary.

By Mrs. MCCASKILL (for herself and Mr. BLUNT):

S. 2620. A bill to amend the Federal Power Act to improve the reliability of the electric transmission grid, and for other purposes; to the Committee on Environment and Public Works.

By Mr. VITTER (for himself, Mr. BEGICH, Mr. BOOZMAN, Mr. COONS, Mr. CRAPO, and Mr. TESTER):

S. 2621. A bill to amend the Migratory Bird Hunting and Conservation Stamp Act to increase the price of Migratory Bird Hunting and Conservation Stamps to fund the acquisition of conservation easements for migratory birds, and for other purposes; to the Committee on Environment and Public Works.

By Mrs. FEINSTEIN (for herself and Ms. AYOTTE):

S. 2622. A bill to require breast density reporting to physicians and patients by facilities that perform mammograms, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Mr. MORAN (for himself, Mr. ROBERTS, Mr. CORNYN, Mr. CRUZ, and Mr. INHOFE):

S. 2623. A bill to prohibit land management modifications relating to the Lesser Prairie Chicken; to the Committee on Energy and Natural Resources.

By Mrs. SHAHEEN (for herself and Mr. MCCAIN):

S. 2624. A bill to provide additional visas for the Afghan Special Immigrant Visa Program, and for other purposes; to the Committee on the Judiciary.

By Mr. BOOKER (for himself, Mr. BLUMENTHAL, Mr. BROWN, Mr. FRANKEN, Mr. WHITEHOUSE, Mrs. FEINSTEIN, Mr. TESTER, Mr. WYDEN, Ms. WARREN, Ms. BALDWIN, Ms. HIRONO, Mr. MENENDEZ, Mrs. GILLIBRAND, Mrs. BOXER, Mrs. MURRAY, Mr. SANDERS, Mr. KAINE, Mr. MARKEY, Mr. BEGICH, Mrs. SHAHEEN, and Mr. MERKLEY):

S. 2625. A bill to establish certain duties for pharmacies to ensure provision of Food and Drug Administration-approved contraception, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Mr. WALSH:

S. 2626. A bill to amend chapter 69 of title 31, United States Code, to expand the payment in lieu of taxes program to include payments for secure rural schools, and for other purposes; to the Committee on Energy and Natural Resources.

By Mrs. FISCHER (for herself and Mr. KING):

S. 2627. A bill to amend the Internal Revenue Code of 1986 to provide a credit to employers who provide paid family and medical leave; to the Committee on Finance.

By Mr. JOHANNS:

S. 2628. A bill to require notification of a Governor of a State if an unaccompanied alien child is placed in a facility or with a sponsor in the State and for other purposes; to the Committee on the Judiciary.

By Mr. DURBIN (for himself, Mr. BEGICH, and Ms. HIRONO):

S. 2629. A bill to require employers to notify employees and prospective employees of exemptions from otherwise required coverage of health services under group health plans; to the Committee on Health, Education, Labor, and Pensions.

By Mr. ENZI (for himself, Mr. BARRASSO, Mr. ROBERTS, and Mr. THUNE):

S. 2630. A bill to amend the Endangered Species Act of 1973 to require disclosure to States of the basis of determinations under such Act, to ensure use of information provided by State, tribal, and county governments in decisionmaking under such Act, and for other purposes; to the Committee on Environment and Public Works.

By Mr. CRUZ (for himself and Mr. SESSIONS):

S. 2631. A bill to prevent the expansion of the Deferred Action for Childhood Arrivals program unlawfully created by Executive memorandum on August 15, 2012; read the first time.

By Mr. VITTER:

S. 2632. A bill to provide for the expedited processing of unaccompanied alien children illegally entering the United States, and for other purposes; to the Committee on the Judiciary.

SUBMISSION OF CONCURRENT AND SENATE RESOLUTIONS

The following concurrent resolutions and Senate resolutions were read, and referred (or acted upon), as indicated:

By Ms. BALDWIN (for herself, Mr. UDALL of New Mexico, Mrs. MURRAY, Mr. BROWN, Ms. MIKULSKI, Mr. DURBIN, Mrs. BOXER, Mr. UDALL of Colorado, Mr. HEINRICH, Mr. LEVIN, Mr. MARKEY, Ms. WARREN, Mr. SANDERS, Mrs. SHAHEEN, Ms. HIRONO, and Mr. BENNET):

S. Res. 505. A resolution congratulating the Gay, Lesbian, and Allies Senate Staff (GLASS) Caucus association on the 10-year anniversary of the association; to the Committee on Rules and Administration.

By Mrs. BOXER (for herself and Mr. BURR):

S. Res. 506. A resolution recognizing the patriotism and contributions of auxiliaries of veterans service organizations; to the Committee on Veterans' Affairs.

By Mr. KING (for himself, Ms. COLLINS, and Mr. SCHUMER):

S. Res. 507. A resolution designating August 7, 2014, as ''National Lighthouse and Lighthouse Preservation Day''; considered and agreed to.

By Mr. CARDIN (for himself and Mr. SCHUMER):

S. Res. 508. A resolution commemorating the centennial anniversary of the establishment of the Congressional Research Service; considered and agreed to.

ADDITIONAL COSPONSORS

S. 489

At the request of Mr. THUNE, the name of the Senator from Kansas (Mr. MORAN) was added as a cosponsor of S. 489, a bill to amend the Tariff Act of 1930 to increase and adjust for inflation the maximum value of articles that may be imported duty-free by one person on one day, and for other purposes.

S. 759

At the request of Mr. CASEY, the name of the Senator from Florida (Mr. NELSON) was added as a cosponsor of S. 759, a bill to amend the Internal Revenue Code of 1986 to allow a credit against income tax for amounts paid by a spouse of a member of the Armed Forces for a new State license or certification required by reason of a permanent change in the duty station of such member to another State.

S. 1725

At the request of Mr. NELSON, his name was added as a cosponsor of S. 1725, a bill to amend the Securities Investor Protection Act of 1970 to confirm that a customer's net equity claim is based on the customer's last statement and that certain recoveries

are prohibited, to change how trustees are appointed, and for other purposes.

S. 1738

At the request of Mr. CORNYN, the name of the Senator from Virginia (Mr. WARNER) was added as a cosponsor of S. 1738, a bill to provide justice for the victims of trafficking.

S. 2156

At the request of Mr. VITTER, the name of the Senator from Utah (Mr. HATCH) was added as a cosponsor of S. 2156, a bill to amend the Federal Water Pollution Control Act to confirm the scope of the authority of the Administrator of the Environmental Protection Agency to deny or restrict the use of defined areas as disposal sites.

S. 2182

At the request of Mr. WALSH, the name of the Senator from Illinois (Mr. DURBIN) was added as a cosponsor of S. 2182, a bill to expand and improve care provided to veterans and members of the Armed Forces with mental health disorders or at risk of suicide, to review the terms or characterization of the discharge or separation of certain individuals from the Armed Forces, to require a pilot program on loan repayment for psychiatrists who agree to serve in the Veterans Health Administration of the Department of Veterans Affairs, and for other purposes.

S. 2234

At the request of Mr. BOOKER, the name of the Senator from Montana (Mr. WALSH) was added as a cosponsor of S. 2234, a bill to amend the Internal Revenue Code of 1986 to allow employers a credit against income tax for employees who participate in qualified apprenticeship programs.

S. 2254

At the request of Ms. KLOBUCHAR, the name of the Senator from Delaware (Mr. COONS) was added as a cosponsor of S. 2254, a bill to amend the Omnibus Crime Control and Safe Streets Act of 1968 to enhance the COPS ON THE BEAT grant program, and for other purposes.

S. 2440

At the request of Mr. UDALL of New Mexico, the name of the Senator from Colorado (Mr. BENNET) was added as a cosponsor of S. 2440, a bill to expand and extend the program to improve permit coordination by the Bureau of Land Management, and for other purposes.

S. 2501

At the request of Mr. MANCHIN, the name of the Senator from Ohio (Mr. PORTMAN) was added as a cosponsor of S. 2501, a bill to amend title XVIII of the Social Security Act to make improvements to the Medicare hospital readmissions reduction program.

S. 2529

At the request of Mrs. SHAHEEN, the name of the Senator from New York (Mrs. GILLIBRAND) was added as a cosponsor of S. 2529, a bill to amend and reauthorize the controlled substance monitoring program under section 399O of the Public Health Service Act.

S. 2545

At the request of Ms. AYOTTE, the name of the Senator from Texas (Mr. CORNYN) was added as a cosponsor of S. 2545, a bill to require the Secretary of Veterans Affairs to revoke bonuses paid to employees involved in electronic wait list manipulations, and for other purposes.

S. 2569

At the request of Mr. WALSH, the name of the Senator from Maryland (Mr. CARDIN) was added as a cosponsor of S. 2569, a bill to provide an incentive for businesses to bring jobs back to America.

S. 2570

At the request of Mr. JOHNSON of South Dakota, the name of the Senator from Kansas (Mr. MORAN) was added as a cosponsor of S. 2570, a bill to amend the Internal Revenue Code of 1986 to recognize Indian tribal governments for purposes of determining under the adoption credit whether a child has special needs.

S. 2593

At the request of Mr. MCCAIN, the name of the Senator from Wyoming (Mr. ENZI) was added as a cosponsor of S. 2593, a bill to amend the FLAME Act of 2009 to provide for additional wildfire suppression activities, to provide for the conduct of certain forest treatment projects, and for other purposes.

S. 2608

At the request of Ms. MURKOWSKI, the names of the Senator from Louisiana (Mr. VITTER) and the Senator from South Carolina (Mr. SCOTT) were added as cosponsors of S. 2608, a bill to provide for congressional approval of national monuments and restrictions on the use of national monuments, to establish requirements for the declaration of marine national monuments, and for other purposes.

S. 2611

At the request of Mr. CORNYN, the names of the Senator from Wyoming (Mr. BARRASSO), the Senator from Nebraska (Mr. JOHANNS), the Senator from Oklahoma (Mr. COBURN) and the Senator from Georgia (Mr. CHAMBLISS) were added as cosponsors of S. 2611, a bill to facilitate the expedited processing of minors entering the United States across the southern border and for other purposes.

S. RES. 498

At the request of Mr. GRAHAM, the names of the Senator from Washington (Mrs. MURRAY), the Senator from Oregon (Mr. WYDEN), the Senator from Wyoming (Mr. ENZI), the Senator from Georgia (Mr. ISAKSON), the Senator from Rhode Island (Mr. REED) and the Senator from Oregon (Mr. MERKLEY) were added as cosponsors of S. Res. 498, a resolution expressing the sense of the Senate regarding United States support for the State of Israel as it defends itself against unprovoked rocket attacks from the Hamas terrorist organization.

S. RES. 500

At the request of Mrs. SHAHEEN, the name of the Senator from Illinois (Mr. DURBIN) was added as a cosponsor of S. Res. 500, a resolution expressing the sense of the Senate with respect to enhanced relations with the Republic of Moldova and support for the Republic of Moldova's territorial integrity.

AMENDMENT NO. 3552

At the request of Mr. TESTER, the names of the Senator from Minnesota (Ms. KLOBUCHAR) and the Senator from Arkansas (Mr. PRYOR) were added as cosponsors of amendment No. 3552 proposed to S. 2244, a bill to extend the termination date of the Terrorism Insurance Program established under the Terrorism Risk Insurance Act of 2002, and for other purposes.

STATEMENTS ON INTRODUCED BILLS AND JOINT RESOLUTIONS

By Mrs. FEINSTEIN (for herself and Ms. AYOTTE):

S. 2622. A bill to require breast density reporting to physicians and patients by facilities that perform mammograms, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

Mrs. FEINSTEIN. Mr. President, despite significant progress in the diagnosis and treatment of breast cancer, this continues to be the second leading cause of cancer death for women, affecting one of every 8 women in the United States.

Women with dense breast tissue may receive a normal mammogram report even if cancer is present. Dense breast tissue makes it harder to catch cancer early because it can obscure cancer in the mammogram image. This is why, for some women, additional screening is so important in catching breast cancer early.

Despite this risk for cancer being missed, when women receive their mammogram report there is no Federal standard for them to be told if they have dense tissue—even though this is already noted by the radiologist reading their mammogram.

This bill simply requires that women be informed if they have dense tissue, and that they may want to talk with their doctor if they have questions and to find out if they might benefit from additional screening. Early detection is the key to survival. Withholding this kind of information from women just doesn't make sense.

This bill sets a minimum Federal standard, so any state that wants to have additional reporting requirements may do so. The bill also requires the Department of Health and Human Services to focus on research regarding dense breast tissue, and better screening tools. Early detection is the key to beating cancer and patients deserve access to information that might just save their life.

I urge my colleagues to join Senator AYOTTE and me in supporting the Breast Density and Mammography Reporting Act. This commonsense bill increases transparency in medicine by

improving patients' access to their own health information and is supported by organizations including the American Cancer Society Cancer Action Network, Are You Dense Advocacy, Breast Cancer Fund, and Susan G. Komen for the Cure.

I look forward to working with my colleagues on this important issue.

By Mr. BOOKER (for himself, Mr. BLUMENTHAL, Mr. BROWN, Mr. FRANKEN, Mr. WHITEHOUSE, Mrs. FEINSTEIN, Mr. TESTER, Mr. WYDEN, Ms. WARREN, Ms. BALDWIN, Ms. HIRONO, Mr. MENENDEZ, Mrs. GILLIBRAND, Mrs. BOXER, Mrs. MURRAY, Mr. SANDERS, Mr. KAINE, Mr. MARKEY, Mr. BEGICH, Mrs. SHAHEEN, and Mr. MERKLEY):

S. 2625. A bill to establish certain duties for pharmacies to ensure provision of Food and Drug Administration-approved contraception, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

Mr. BOOKER. Mr. President, I rise today to introduce with nineteen of my colleagues the Access to Birth Control Act of 2014, ABC Act, which protects an individual's right to birth control by requiring pharmacies to fill a valid prescription for birth control in a timely manner.

Family planning is central to women's basic health care. Studies show that 99 percent of women will use contraception at some point in their lives. Yet, despite the prevalence of contraceptive use, women in at least 24 States across the country have reported incidents where pharmacists have refused to fill prescriptions for birth control or provide emergency contraception to individuals who do not require a prescription. Furthermore, 6 States permit refusals without patient protections, such as requirements to refer or transfer prescriptions, and 7 States allow refusals but prohibit pharmacists from obstructing patient access to medication. It is Unbelievable to me that in 2014 we are still debating a woman's right to make responsible and personal decisions about her own health.

Thanks to the Affordable Care Act, insurance plans are required to cover preventive services, including birth control without a copay. Congress has an obligation to see that the intent of the Affordable Care Act to make preventive health care affordable and accessible comes to fruition and act to make sure that the pharmacy counter does not come between women and timely access to contraception.

The ABC Act would ensure women's timely access to basic, preventative health care and ensures that women of age will not be denied birth control or emergency contraception by their pharmacist. The bill requires pharmacies to help a woman obtain medication by her preferred method if the requested product is not in stock and protects women from being intimidated when requesting contraception.

Denying contraception to women represents an erosion of a woman's right to access to contraception and a threat to women's access to basic health care. Access is especially important for low-income women who may lack the resources to find an alternative pharmacy in the appropriate time frame and women living in rural areas who may not have multiple pharmacies near them. When women are seeking emergency contraception, a pharmacist's denial can be an unsurmountable obstacle to access within the limited timeframe.

Under the ABC Act, if a requested product is not in stock, but the pharmacy stocks other forms of contraception, the pharmacy must help the woman obtain the medication without delay by the method of her preference: order, referral, or a transferred prescription. By placing the burden on the pharmacy—not the individual pharmacist—the ABC Act strikes a balance between the rights of individual pharmacists who might have personal religious objections to contraception and the rights of women to receive their validly prescribed medication.

The idea that women would still have to fight for access to birth control is astonishing. It should be clear: personal health care decisions should be between women and their doctors. I'm proud to join with my colleagues in putting forward this legislation that will protect woman's right to access contraception throughout the country. A woman's rights must not be dependent on her zip code or State.

I also want to acknowledge the late Senator Frank R. Lautenberg, who introduced a version of this legislation 5 times in the past. I am proud to build on Senator Lautenberg's leadership in defending a woman's right to make responsible and personal decisions about her own health.

I look forward to working with my colleagues to build support for this bill.

By Mr. DURBIN (for himself, Mr. BEGICH, and Ms. HIRONO):

S. 2629. A bill to require employers to notify employees and prospective employees of exemptions from otherwise required coverage of health services under group health plans; to the Committee on Health, Education, Labor, and Pensions.

Mr. DURBIN. Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 2629

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Preventive Care Coverage Notification Act''.

SEC. 2. PROVIDING INFORMATION TO EMPLOYEES AND PROSPECTIVE EMPLOYEES.

(a) DEVELOPMENT OF STANDARDS.—With respect to an employer (other than an organization that is organized and operates as a nonprofit entity and is referred to in section 6033(a)(3)(A)(i) or (iii) of the Internal Revenue Code of 1986) that establishes or maintains a group health plan (other than a grandfathered health plan as defined in section 1251 of the Patient Protection and Affordable Care Act (42 U.S.C. 18011)) for its employees, the Secretary of Health and Human Services, the Secretary of Labor, and the Secretary of the Treasury shall jointly develop standards that require the employer to provide notice to current and prospective employees if the employer is exempted or excepted from covering health services otherwise required to be covered pursuant to title XXVII of the Public Health Service Act (including preventive health services required under section 2713 of such Act). Such notice shall include a description of the specific items and services that are not covered under such plan as a result of such exemption or exception. Such standards shall require that any notice provided under this subsection be provided by the employer to employees and prospective employees in a timely and easily understandable manner.

(b) INFORMING EMPLOYEES OF LIMITATIONS ON COVERAGE.—With respect to the notice required under subsection (a), an employer shall be deemed to be in compliance with the requirements of such section if the employer is an eligible organization as defined in, and provides for the notice in accordance with, regulations issued pursuant to section 2713 of the Public Health Service Act (42 U.S.C. 300gg–13).

(c) ENFORCEMENT.—The provisions of this section shall apply to employers acting as plan sponsors, group health plans, and health insurance issuers as if enacted in the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1001 et seq.), the Public Health Service Act (42 U.S.C. 201 et seq.), and the Internal Revenue Code of 1986. Any failure by an employer acting as a plan sponsor, a group health plan, or a health insurance issuer to comply with the provisions of this Act shall be subject to enforcement through part 5 of subtitle B of title I of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1131 et seq.), section 2723 of the Public Health Service Act (42 U.S.C. 300gg–22), and section 4980D of the Internal Revenue Code of 1986.

(d) APPLICATION.—This section shall apply to plan years beginning on or after July 1, 2014.

SUBMITTED RESOLUTIONS

SENATE RESOLUTION 505—CONGRATULATING THE GAY, LESBIAN, AND ALLIES SENATE STAFF (GLASS) CAUCUS ASSOCIATION ON THE 10-YEAR ANNIVERSARY OF THE ASSOCIATION

Ms. BALDWIN (for herself, Mr. UDALL of New Mexico, Mrs. MURRAY, Mr. BROWN, Ms. MIKULSKI, Mr. DURBIN, Mrs. BOXER, Mr. UDALL of Colorado, Mr. HEINRICH, Mr. LEVIN, Mr. MARKEY, Ms. WARREN, Mr. SANDERS, Mrs. SHAHEEN, Ms. HIRONO, and Mr. BENNET) submitted the following resolution; which was referred to the Committee on Rules and Administration:

S. RES. 505

Whereas on April 23, 2004, several Senate staffers joined to form a first-of-its-kind staff association for lesbian, gay, bisexual, and transgender (referred to in this preamble as ''LGBT'') Senate staff and their allies;

Whereas the Gay, Lesbian, and Allies Senate Staff Caucus association (referred to in this preamble as the ''GLASS Caucus association'') continues to serve the Senate community by raising awareness of issues affecting the LGBT community;

Whereas the GLASS Caucus association continues to promote the welfare and dignity of LGBT Senate employees; and

Whereas the GLASS Caucus association continues to provide a safe environment for social interaction and professional development: Now, therefore, be it

Resolved, That the Senate—

(1) congratulates the Gay, Lesbian, and Allies Senate Staff Caucus association (referred to in this resolution as the ''GLASS Caucus association'') on the momentous occasion of the association's 10th anniversary;

(2) commends the late Senator Frank Raleigh Lautenberg of New Jersey for the critical role he played in the formation of the GLASS Caucus association and for his stalwart support for equality; and

(3) recognizes inaugural GLASS Caucus Steering Committee members Lynden Armstrong, Brett Bearce, Jeffrey Levensaler, Josh Brekenfeld, Jason Knapp, John Fossum, Kelsey Phipps, and Mat Young for their vision and hard work in establishing the GLASS Caucus association.

SENATE RESOLUTION 506—RECOGNIZING THE PATRIOTISM AND CONTRIBUTIONS OF AUXILIARIES OF VETERANS SERVICE ORGANIZATIONS

Mrs. BOXER (for herself and Mr. BURR) submitted the following resolution; which was referred to the Committee on Veterans' Affairs:

S. RES. 506

Whereas, for nearly a century, auxiliaries have served as a complementary and integral part of veterans service organizations, supporting members of the Armed Forces, veterans, and their families;

Whereas, since their inception, auxiliary units have proudly supported members of the Armed Forces, veterans, and the families of those who have served, volunteering hundreds of thousands of hours and raising billions of dollars;

Whereas auxiliaries have representatives in all 50 States and abroad;

Whereas auxiliaries have more than 1,000,000 members and are composed of wives, widows, mothers, grandmothers, daughters, and granddaughters of veterans, as well as veterans themselves;

Whereas auxiliary units have raised money to aid and enhance the lives of members of the Armed Forces, veterans, and their families through financial support—providing assistance with essentials such as rent, child care, utilities, and food;

Whereas auxiliary units host ''standdowns'' that focus on providing vital health and support services to homeless veterans;

Whereas auxiliary units strengthen their local communities by conducting food drives, visiting hospitals, and providing scholarships to youth;

Whereas auxiliary units serve as advocates for veterans and their families;

Whereas auxiliary units conduct welcome home and send-off events for members of the Armed Forces;

Whereas members of auxiliaries selflessly volunteer their services at facilities of the Department of Veterans Affairs throughout the country to enhance the lives of veterans and their families; and

Whereas, each year, auxiliary units raise millions of dollars for cancer research: Now, therefore, be it

Resolved, That the Senate—

(1) honors and recognizes the patriotism and countless contributions to the United States by generations of women in the auxiliaries of veterans service organizations;

(2) commends members of auxiliaries in the United States and abroad for their dedicated service to and support of members of the Armed Forces and veterans as well as their families and communities;

(3) encourages the people of the United States to promote awareness of the contributions and dedication of members of auxiliaries to members of the Armed Forces, veterans, and their families; and

(4) calls on the people of the United States to follow the noble example of the auxiliaries of veterans service organizations and volunteer support and services to those who have selflessly served the United States.

SENATE RESOLUTION 507—DESIGNATING AUGUST 7, 2014, AS ''NATIONAL LIGHTHOUSE AND LIGHTHOUSE PRESERVATION DAY''

Mr. KING (for himself, Ms. COLLINS, and Mr. SCHUMER) submitted the following resolution; which was considered and agreed to:

S. RES. 507

Whereas August 7, 2014, marks the 225th anniversary of the signing by President George Washington of the Act entitled ''An Act for the establishment and support of lighthouses, beacons, buoys, and public piers'', approved August 7, 1789 (commonly known as the ''Lighthouse Act of 1789'') (1 Stat. 53, chapter 9);

Whereas in 1789, the ninth Act of the first Congress, established a Federal role in the support, maintenance, and repair of all lighthouses, beacon buoys, and public piers necessary for safe navigation, commissioned the first Federal lighthouse, and represented the first public works act in the young United States;

Whereas the establishment of the United States system of navigational aids set the United States on a path to the forefront of international maritime prominence and established lighthouses that played an integral role in the rich maritime history of the United States, as that history spread from the Atlantic coast through the Great Lakes and the Gulf coast and Pacific States;

Whereas those iconic structures, standing at the margins of land and water, sometimes for as long as 2 centuries, have symbolized safety, security, heroism, duty, and faithfulness;

Whereas architects, designers, engineers, builders, and keepers devoted, and in some cases jeopardized, their lives for the safety of others during centuries of light tending by the United States Lighthouse Service and the United States Coast Guard;

Whereas the automation of the light system exposed the historic lighthouse towers to the ravages of time and vandalism and yet, at the same time, opened an opportunity for citizen involvement in efforts to save and restore those beacons that mark the evolving maritime history of the United States and its coastal communities;

Whereas the national lighthouse preservation movement has gained momentum over the past half century and is making major contributions to the preservation of maritime history and heritage and, through the development and enhancement of cultural tourism, to the economies of coastal communities in the United States;

Whereas the National Historic Lighthouse Preservation Act of 2000 (16 U.S.C. 470w-7 et seq.), enacted on October 24, 2000, with the aid of the lighthouse preservation community, provides an effective process administered by the General Services Administration and the National Park Service for transferring lighthouses to the best possible stewardship groups;

Whereas 2014 is the 200th anniversary of the August 24, 1814, rescue of the original copies of the Declaration of Independence, the Articles of Confederation, the United States Constitution, and many irreplaceable original government documents and books from destruction when the British burned Washington, D.C. during the War of 1812 by Stephen Pleasonton, who later served as General Superintendent of Lighthouses for 32 years;

Whereas 2014 is also the 75th anniversary of when Congress dissolved the United States Lighthouse Service and turned all of its duties over to the United States Coast Guard;

Whereas although the United States Coast Guard was created in 1915 with the merger of the United States Life Saving Service and the United States Revenue Marine Service, the United States Coast Guard uses the United States Revenue Marine founding date of 1790 as its anniversary year, and thus, August 7, 2014, is also the 225th anniversary of the United States Coast Guard;

Whereas 2014 also marks the 250th anniversary of the Sandy Hook Lighthouse in New Jersey, the oldest standing lighthouse tower in the United States, which was built before the United States was a country and was still part of the British colonies;

Whereas for the past several decades, regional and national groups have formed within the lighthouse preservation community to promote lighthouse heritage through research, education, tourism, and publications;

Whereas despite progress, many lighthouses in the United States remain threatened by erosion, neglect, vandalism, and deterioration by the elements; and

Whereas the many completed, ongoing, or planned private and public efforts to preserve lighthouses demonstrate the public support for those historic structures: Now, therefore, be it

Resolved, That the Senate—

(1) designates August 7, 2014, as ''National Lighthouse and Lighthouse Preservation Day'';

(2) encourages lighthouse grounds to be opened to the general public to the extent feasible; and

(3) encourages the people of the United States to observe National Lighthouse and Lighthouse Preservation Day with appropriate ceremonies and activities.

SENATE RESOLUTION 508—COMMEMORATING THE CENTENNIAL ANNIVERSARY OF THE ESTABLISHMENT OF THE CONGRESSIONAL RESEARCH SERVICE

Mr. CARDIN (for himself and Mr. SCHUMER) submitted the following resolution; which was considered and agreed to:

S. RES. 508

Whereas, in 1914, Congress recognized the need for greater assistance and established a reference unit within the Library of Congress to support an informed and independent legislature;

Whereas the Legislative Reorganization Act of 1970 (2 U.S.C. 28 et seq.) transformed

the Legislative Reference Service into the Congressional Research Service, expanding its size and analytic capacity;

Whereas the Congressional Research Service is housed within the Library of Congress and benefits from the unparalleled collections of the Library of Congress to complete research and analysis and to disseminate information and materials to assist Congress;

Whereas Congressional Research Service products are the result of collaboration between a diverse workforce consisting of analysts, attorneys, information professionals, and support staff;

Whereas the Congressional Research Service strives to provide accurate and objective assistance to all members and committees at all stages of the legislative process, and in a timely, confidential, and non-partisan manner; and

Whereas the Congressional Research Service provides Congress with analysis and information on legislative and oversight issues in reports, memoranda, seminars, and briefings: Now, therefore, be it

Resolved, That the Senate—

(1) recognizes the centennial anniversary of the establishment of the Congressional Research Service and commends the employees of the Congressional Research Service for their service to Congress and the people of the United States; and

(2) respectfully requests the Secretary of the Senate to transmit an enrolled copy of this resolution to—

(A) the Librarian of Congress; and

(B) the Director of the Congressional Research Service.

AMENDMENTS SUBMITTED AND PROPOSED

SA 3564. Mr. TOOMEY submitted an amendment intended to be proposed by him to the bill H.R. 5021, to provide an extension of Federal-aid highway, highway safety, motor carrier safety, transit, and other programs funded out of the Highway Trust Fund, and for other purposes; which was ordered to lie on the table.

SA 3565. Mr. PAUL submitted an amendment intended to be proposed by him to the bill H.R. 5021, supra; which was ordered to lie on the table.

SA 3566. Mr. PAUL submitted an amendment intended to be proposed by him to the bill H.R. 5021, supra; which was ordered to lie on the table.

SA 3567. Mr. LEAHY submitted an amendment intended to be proposed by him to the bill S. 2410, to authorize appropriations for fiscal year 2015 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table.

SA 3568. Mr. INHOFE submitted an amendment intended to be proposed by him to the bill S. 2410, supra; which was ordered to lie on the table.

SA 3569. Mr. INHOFE submitted an amendment intended to be proposed by him to the bill S. 2410, supra; which was ordered to lie on the table.

TEXT OF AMENDMENTS

SA 3564. Mr. TOOMEY submitted an amendment intended to be proposed by him to the bill H.R. 5021, to provide an extension of Federal-aid highway, highway safety, motor carrier safety, transit, and other programs funded out of the Highway Trust Fund, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle A of title I, add the following:

SEC. 10___. EMERGENCY EXEMPTIONS.

Any road, highway, or bridge that is damaged by an emergency that is declared by the Governor of the State and concurred in by the Secretary of Homeland Security or declared as an emergency by the President pursuant to the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5121 et seq.) and that is in operation or under construction on the date on which the emergency occurs—

(1) may be reconstructed in the same location with the same capacity, dimensions, and design as before the emergency; and

(2) shall be exempt from any environmental reviews, approvals, licensing, and permit requirements under—

(A) the National Environmental Policy Act of 1969 (42 U.S.C. 4321 et seq.);

(B) sections 402 and 404 of the Federal Water Pollution Control Act (33 U.S.C. 1342, 1344);

(C) the National Historic Preservation Act (16 U.S.C. 470 et seq.);

(D) the Migratory Bird Treaty Act (16 U.S.C. 703 et seq.);

(E) the Wild and Scenic Rivers Act (16 U.S.C. 1271 et seq.);

(F) the Fish and Wildlife Coordination Act (16 U.S.C. 661 et seq.);

(G) the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.), except when the reconstruction occurs in designated critical habitat for threatened and endangered species;

(H) Executive Order 11990 (42 U.S.C. 4321 note; relating to the protection of wetland); and

(I) any Federal law (including regulations) requiring no net loss of wetland.

SA 3565. Mr. PAUL submitted an amendment intended to be proposed by him to the bill H.R. 5021, to provide an extension of Federal-aid highway, highway safety, motor carrier safety, transit, and other programs funded out of the Highway Trust Fund, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. MODIFICATION AND PERMANENT EXTENSION OF THE INCENTIVES TO REINVEST FOREIGN EARNINGS IN THE UNITED STATES.

(a) IN GENERAL.—

(1) REPATRIATION SUBJECT TO 5 PERCENT TAX RATE.—Subsection (a)(1) of section 965 of the Internal Revenue Code of 1986 is amended by striking ''85 percent'' and inserting ''85.7 percent''.

(2) PERMANENT EXTENSION TO ELECT REPATRIATION.—Subsection (f) of section 965 of the Internal Revenue Code of 1986 is amended to read as follows:

''(f) ELECTION.—The taxpayer may elect to apply this section to any taxable year only if made on or before the due date (including extensions) for filing the return of tax for such taxable year.''.

(3) REPATRIATION INCLUDES CURRENT AND ACCUMULATED FOREIGN EARNINGS.—

(A) IN GENERAL.—Paragraph (1) of section 965(b) of the Internal Revenue Code of 1986 is amended to read as follows:

''(1) IN GENERAL.—The amount of dividends taken into account under subsection (a) shall not exceed the sum of the current and accumulated earnings and profits described in section 959(c)(3) for the year a deduction is claimed under subsection (a), without diminution by reason of any distributions made during the election year, for all controlled foreign corporations of the United States shareholder.''.

(B) CONFORMING AMENDMENTS.—

(i) Section 965(b) of such Code is amended by striking paragraphs (2) and (4) and by redesignating paragraph (3) as paragraph (2).

(ii) Section 965(c) of such Code is amended by striking paragraphs (1) and (2) and by redesignating paragraphs (3), (4), and (5) as paragraphs (1), (2), and (3), respectively.

(iii) Paragraph (3) of section 965(c) of such Code, as redesignated by clause (ii), is amended to read as follows:

''(3) CONTROLLED GROUPS.—All United States shareholders which are members of an affiliated group filing a consolidated return under section 1501 shall be treated as one United States shareholder.''.

(4) CLERICAL AMENDMENTS.—

(A) The heading for section 965 of the Internal Revenue Code of 1986 is amended by striking ''**TEMPORARY**''.

(B) The table of sections for subpart F of part III of subchapter N of chapter 1 of such Code is amended by striking ''Temporary dividends'' and inserting ''Dividends''.

(b) TRANSFERS OF REVENUE TO HIGHWAY TRUST FUND.—Section 9503(b) of the Internal Revenue Code of 1986 is amended by adding at the end the following new paragraph:

''(7) REVENUES ATTRIBUTABLE TO DIVIDENDS RECEIVED DEDUCTIONS .—There are hereby appropriated to the Highway Trust Fund amounts equivalent to the revenue derived from the amendments made by section _____(a) of the Highway and Transportation Funding Act of 2014, as determined by the Secretary in consultation with the Director of the Congressional Budget Office.''.

(c) EFFECTIVE DATE.—The amendments made by this section shall apply to taxable years ending after the date of the enactment of this Act.

SA 3566. Mr. PAUL submitted an amendment intended to be proposed by him to the bill H.R. 5021, to provide an extension of Federal-aid highway, highway safety, motor carrier safety, transit, and other programs funded out of the Highway Trust Fund, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. MULTI-STATE TRANSPORTATION PRIORITIES.

(a) LIST.—The Secretary of Transportation (referred to in this section as the ''Secretary''), in consultation with representative sample of State and local government transportation officials, shall compile a prioritized list of transportation projects, which shall guide the allocation of funding to States for multi-State transportation projects.

(b) CRITERIA.—In compiling the list under subsection (a), the Secretary, in addition to other criteria established by the Secretary, shall rank priorities in descending order, beginning with—

(1) the extent of the positive impact the project will have on 1 or more interstate highways;

(2) whether the project will repair or replace a road or bridge that—

(A) has been determined to be structurally or functionally obsolete; and

(B) poses a risk to public safety;

(3) the extent of the positive impact of the project on interstate commerce, as demonstrated by an examination of economic indicators, including—

(A) the impact of the project on shipping and trucking commerce;

(B) the nexus of the project to other States; and

(C) the availability of alternative routes;

(4) the difference between—

(A) the estimated volume of traffic that uses the road or bridge after the project is completed; and

(B) the volume of traffic that the existing road or bridge was designed to accommodate;

(5) the national significance (rather than the regional significance) of the project; and

(6) the ability of the applicable State or local government to provide additional funding for the project.

(c) REPORT.—Not later than 120 days after the date of enactment of this Act, the Secretary shall submit to Congress a report that includes—

(1) a prioritized list of multi-State transportation projects; and

(2) a description of the criteria used to establish the list referred to in paragraph (1).

(d) QUARTERLY UPDATES.—Not less frequently than 4 times each year, the Secretary shall—

(1) update the report submitted pursuant to subsection (c);

(2) transmit a copy of the report to Congress; and

(3) make copy of the report available to the public through the Department of Transportation website.

SA 3567. Mr. LEAHY submitted an amendment intended to be proposed by him to the bill S. 2410, to authorize appropriations for fiscal year 2015 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

Insert after section 101 the following:

Subtitle B—Army Programs

SEC. 111. SENSE OF THE SENATE ON UH–72 LIGHT UTILITY HELICOPTER HEALTH AND USAGE MONITORING SYSTEM.

It is the sense of the Senate that—

(1) a health and usage monitoring system for the UH–72 Lakota Light Utility Helicopter (LUH) that provides early warning for failing systems may reduce costly emergency maintenance, improve maintenance schedules, and increase fleet readiness; and

(2) the Department of the Army should consider establishing LUH health and usage monitoring system requirements that comply with Federal Aviation Administration standards for certification and are based on the condition-based maintenance needs of the Army, provided that any decision to proceed with a program of record will be done using full and open competition in accordance with the Federal Acquisition Regulation.

SA 3568. Mr. INHOFE submitted an amendment intended to be proposed by him to the bill S. 2410, to authorize appropriations for fiscal year 2015 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of title I, add the following:

Subtitle E—Defense-wide, Joint, and Multiservice Matters

SEC. 151. PLAN FOR MODERNIZATION OR REPLACEMENT OF DIGITAL AVIONIC EQUIPMENT.

(a) PLAN REQUIRED.—Not later than 90 days after the date of the enactment of this Act, the Secretary of Defense shall submit to the congressional defense committees a plan for the modernization or replacement of digital avionics equipment, including use of commercial-off-the-shelf digital avionics equipment, to meet the Federal Aviation Administration's (FAA) NextGen Equipage Program requirements.

(b) ELEMENTS.—The plan required under subsection (a) shall include the following elements:

(1) A description of the requirements imposed on Department of Defense aircraft by the FAA transition to the NextGen program, including—

(A) an identification of the type and number of aircraft that the Department will need to upgrade;

(B) a definition of the upgrades needed for such aircraft; and

(C) the schedule required for the Department to make such upgrades in time to meet FAA NextGen Equipage Program requirements.

(2) A description of options for—

(A) acquiring new equipment, including—

(i) new procurement; and

(ii) leasing equipment and installation and other services, including the use of public-private partnerships; and

(B) modernizing existing equipment.

(3) An evaluation of the ability of each option to meet future operational requirements and to meet FAA NextGen Equipage Program requirements.

(4) Estimated timeline to modernize or replace the digital avionics equipment across the Department of Defense.

(5) Estimated costs of options to modernize or replace the avionics equipment across the Department in order to meet FAA NextGen Equipage Program requirements.

SA 3569. Mr. INHOFE submitted an amendment intended to be proposed by him to the bill S. 2410, to authorize appropriations for fiscal year 2015 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle F of title X, add the following:

SEC. 1069. REPORT ON PHYSICAL SECURITY AT DEPARTMENT OF DEFENSE FACILITIES.

(a) FINDING.—Congress finds that the Secretary of Defense reviewed security standards at Department of Defense facilities following both the November 2009 shootings at Fort Hood, Texas, and the September 2013 shootings at the Washington Navy Yard, District of Columbia, which included an assessment of the ability of the Department to detect, prevent, and respond to future incidents at such facilities.

(b) REPORT.—

(1) IN GENERAL.—Not later than April 30, 2015, the Secretary of Defense shall submit to Congress a report setting forth a summary of the actions taken by the Department of Defense to respond to the recommendations resulting from the reviews of security standards described in subsection (a).

(2) ELEMENTS.—The report shall include the following:

(A) Summary of the recommendations described in paragraph (1).

(B) A description of the actions taken on each recommendation.

(C) An assessment of current and planned physical security capabilities at Department facilities, and their ability to meet Department physical security requirements.

(D) An identification and assessment of known and potential physical security shortfalls at Department facilities.

(E) An assessment of the ability of the Department to eliminate or mitigate shortfalls in physical security at Department facilities, including recommendations on means to increase physical security at such facilities and the funding required to implement such means.

NOTICES OF HEARINGS

COMMITTEE ON HEALTH, EDUCATION, LABOR, AND PENSIONS

Mr. HARKIN. Mr. President, I wish to announce that the Committee on Health, Education, Labor, and Pensions will meet on July 22, 2014, at 10 a.m., in room SD–430 of the Dirksen Senate Office Building, to conduct a hearing entitled ''Coal Miners' Struggle for Justice: How Unethical Legal and Medical Practices Stack the Deck Against Black Lung Claimants.''

For further information regarding this meeting, please contact Sindey Holcomb of the committee staff on (202) 228–1455.

COMMITTEE ON HEALTH, EDUCATION, LABOR, AND PENSIONS

Mr. HARKIN. Mr. President, I wish to announce that the Committee on Health, Education, Labor, and Pensions will meet in executive session on Wednesday, July 23, 2014, at 10 a.m. in room SD–430 of the Dirksen Senate Office Building to mark up H.R. 2083, Protecting Students from Sexual and Violent Predators Act; S. 315, Paul D. Wellstone Muscular Dystrophy Community Assistance, Research and Education, MD–CARE, Amendments of 2013; S. 2154, Emergency Medical Services for Children Reauthorization Act of 2014; S. 531, Physical Activity Guidelines for Americans Act; S. 2405, Trauma Systems and Regionalization of Emergency Care Reauthorization Act; S. 2406, Improving Trauma Care Act of 2014; S. 2539, Traumatic Brain Injury Reauthorization Act of 2014; S. 2511, A bill to amend the Employee Retirement Income Security Act of 1974; as well as any additional nominations cleared for action.

For further information regarding this meeting, please contact the Committee at (202) 224–5375.

COMMITTEE ON HEALTH, EDUCATION, LABOR, AND PENSIONS

Mr. HARKIN. Mr. President, I wish to announce that the Committee on Health, Education, Labor, and Pensions will meet on July 24, 2014, at 10 a.m., in room SD–430 of the Dirksen Senate Office Building, to conduct a hearing entitled ''The Role of States in Higher Education.''

For further information regarding this meeting, please contact Aissa Canchola of the committee staff on (202) 224–2009.

AUTHORITY FOR COMMITTEES TO MEET

COMMITTEE ON ARMED SERVICES

Mr. SCHUMER. Mr. President, I ask unanimous consent that the Committee on Armed Services be authorized to meet during the session of the Senate on July 17, 2014, at 9:30 a.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON COMMERCE, SCIENCE, AND TRANSPORTATION

Mr. SCHUMER. Mr. President, I ask unanimous consent that the Committee on Commerce, Science, and Transportation be authorized to meet during the session of the Senate on July 17, 2014, at 10 a.m. in room SR–253 of the Russell Senate Office Building to conduct a hearing entitled, ''Examining Accountability and Corporate Culture in Wake of the GM Recalls.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON COMMERCE, SCIENCE, AND TRANSPORTATION

Mr. SCHUMER. Mr. President, I ask unanimous consent that the Committee on Commerce, Science, and Transportation be authorized to meet during the session of the Senate on July 17, 2014, at 2 p.m. in room SR–253 of the Russell Senate Office Building to conduct a hearing entitled, ''The Federal Research Portfolio: Capitalizing on Investments in R&D.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON FINANCE

Mr. SCHUMER. Mr. President, I ask unanimous consent that the Committee on Finance be authorized to meet during the session of the Senate on July 17, 2014, at 10 a.m. in room SD–215 of the Dirksen Senate Office Building, to conduct a hearing entitled, ''The Role of Trade and Technology in 21st Century Manufacturing.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON FOREIGN RELATIONS

Mr. SCHUMER. Mr. President, I ask unanimous consent that the Committee on Foreign Relations be authorized to meet during the session of the Senate on July 17, 2014, at 10 a.m., to conduct a hearing entitled ''Dangerous Passage: Central America in Crisis and the Exodus of Unaccompanied Minors.''

The PRESIDING OFFICER. Without any objection, it is so ordered.

COMMITTEE ON FOREIGN RELATIONS

Mr. SCHUMER. Mr. President, I ask unanimous consent that the Committee on Foreign Relations be authorized to meet during the session of the Senate on July 17, 2014, at 2 p.m.

The PRESIDING OFFICER. Without any objection, it is so ordered.

COMMITTEE ON HEALTH, EDUCATION, LABOR, AND PENSIONS

Mr. SCHUMER. Mr. President, I ask unanimous consent that the Committee on Health, Education, Labor, and Pensions be authorized to meet during the session of the Senate on July 17, 2014, at 10 a.m., in room SD–430 of the Dirksen Senate Office Building to conduct a hearing entitled ''More Than 1,000 Preventable Deaths a Day Is Too Many: The Need to Improve Patient Safety.''

The PRESIDING OFFICER. Without any objection, it is so ordered.

COMMITTEE ON THE JUDICIARY

Mr. SCHUMER. Mr. President, I ask unanimous consent that the Committee on the Judiciary be authorized to meet during the session of the Senate on July 17, 2014, at 9:30 a.m., in room SD–226 of the Dirksen Senate Office Building.

The PRESIDING OFFICER. Without any objection, it is so ordered.

SELECT COMMITTEE ON INTELLIGENCE

Mr. SCHUMER. Mr. President, I ask unanimous consent that the Select Committee on Intelligence be authorized to meet during the session of the Senate on July 17, 2014, at 2:30 p.m.

The PRESIDING OFFICER. Without any objection, it is so ordered.

REGARDING U.S. SUPPORT FOR ISRAEL

Mr. REID. Mr. President, I ask unanimous consent that the Senate now proceed to Calendar No. 469, S. Res. 498.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 498) expressing the sense of the Senate regarding United States support for the State of Israel as it defends itself against unprovoked rocket attacks from the Hamas terrorist organization.

There being no objection, the Senate proceeded to consider the resolution.

Mr. REID. Mr. President, I ask unanimous consent that the resolution be agreed to, the preamble be agreed to, and the motion to reconsider be laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 498) was agreed to.

The preamble was agreed to.

(The resolution, with its preamble, is printed in the RECORD of Wednesday, July 16, 2014, under ''Submitted Resolutions.'')

NATIONAL DAY OF THE AMERICAN COWBOY

Mr. REID. Mr. President, I ask unanimous consent that the Judiciary Committee be discharged from further consideration and the Senate proceed to the consideration of S. Res. 488.

The PRESIDING OFFICER. Without objection, it is so ordered.

The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 488) designating July 26, 2014, as ''National Day of the American Cowboy.''

There being no objection, the Senate proceeded to consider the resolution.

Mr. REID. Mr. President, I ask unanimous consent that the resolution be agreed to, the preamble be agreed to, and the motions to reconsider be laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 488) was agreed to.

The preamble was agreed to.

(The resolution, with its preamble, is printed in the RECORD of June 26, 2014, under ''Submitted Resolutions.'')

NATIONAL LIGHTHOUSE AND LIGHTHOUSE PRESERVATION DAY

Mr. REID. Mr. President, I ask unanimous consent that the Senate proceed to the consideration of S. Res. 507.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 507) designating August 7, 2014, as ''National Lighthouse and Lighthouse Preservation Day.''

There being no objection, the Senate proceeded to consider the resolution.

Mr. REID. Mr. President, I ask unanimous consent that the resolution be agreed to, the preamble be agreed to, and the motions to reconsider be considered made and laid upon the table, with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 507) was agreed to.

The preamble was agreed to.

(The resolution, with its preamble, is printed in today's RECORD under ''Submitted Resolutions.'')

COMMEMORATING THE CENTENNIAL ANNIVERSARY OF THE CONGRESSIONAL RESEARCH SERVICE

Mr. REID. Mr. President, I ask unanimous consent that the Senate proceed to the consideration of S. Res. 508.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 508) commemorating the centennial anniversary of the establishment of the Congressional Research Service.

There being no objection, the Senate proceeded to consider the resolution.

Mr. CARDIN. Mr. President, this Wednesday—July 16, 2014—marks the centennial of the Congressional Research Service, CRS. On this exact date 100 years ago, our oldest legislative support agency was created. But the idea for such an organization to provide objective information and analysis to legislators goes back to the start of our Republic. As Thomas Jefferson said 200 years ago, ''There is, in fact, no subject to which a member of Congress may not have occasion to refer.'' Jefferson's view gained adherents over time, especially at the State level first and then during the progressive era. Two Members of Congress during that early 1900s era—Senator Robert

LaFollette and Representative John Nelson, both of Wisconsin—both championed legislation that authorized the Librarian of Congress to establish a legislative reference service composed of ''competent persons to prepare such indexes, digests and compilations of law as may be required for Congress and other official use.'' President Woodrow Wilson signed the legislation—the fiscal year 1915 appropriations bill for the Library of Congress—into law on July 16, 1914. Librarian of Congress Herbert Putnam established the Legislative Reference Service, LRS, in the Library of Congress by administrative order on July 18, 1914. The reference service's location in the Library of Congress—the library both of Congress and the American people—provided researchers then and now with a treasure trove of books, materials, and collections of various sorts to answer and address the questions and inquiries that emanate from the legislative branch. The LRS was renamed the CRS in 1970.

Today, the responsibilities and roles of CRS have grown enormously. To meet the hundreds of thousands of requests made annually by Members and staff of the legislative branch, CRS employs over 600 total staff. Among the occupations represented at CRS are reference librarians, lawyers, political scientists, economists, budget analysts, scientists, engineers, and public administrators. The titles of its five interdisciplinary research divisions underscore the wide range of expertise housed in CRS: American Law; Domestic Social Policy; Foreign Affairs, Defense & Trade; Government & Finance; and Resources, Science & Industry. In addition, CRS has a Knowledge Services Group made up of research and information specialists who provide support services to CRS analysts and attorneys. In fiscal year 2013, Members and committees received information and analysis from CRS in more than 636,000 responses that took the form of 67,000 requests for custom analysis and research, 9,000 congressional participations in 350 seminars, and over half a million instances of Web site services.

At the heart of CRS's charter is that it serves both the majority and minority parties and Members of Congress elected as Independents or with a third-party affiliation. This bedrock nonpartisan principle suffuses all of CRS's endeavors, which makes it unlike the many partisan interest groups and ''think tanks'' that populate the Nation's capital. CRS's straightforward mission statement says it all: ''The Congressional Research Service serves the Congress throughout the legislative process by providing comprehensive and reliable legislative research and analysis that are timely, objective, authoritative, and confidential, thereby contributing to an informed national legislature.''

Former Senator Daniel Patrick Moynihan said: ''People are entitled to their own opinions, but not their own facts.'' CRS provides the facts. Providing unbiased, objective facts is an invaluable service not just to Congress but to the Nation. In my considered judgment, CRS has served Congress exceptionally well during the past 100 years and I am confident that it will continue to perform at the highest level in the years and decades ahead. No one can fully predict the challenges we will face. But I am confident that the in-depth knowledge and expertise housed in CRS will enable Members of Congress and their staff to better understand and address an increasingly complex array of domestic and global issues. I congratulate CRS and its outstanding and dedicated staff on the occasion of its 100th birthday.

Mr. SCHUMER. Mr. President, I was honored today to join my colleague, Senator CARDIN, in submitting a resolution to commemorate the 100th anniversary of the Congressional Research Service, CRS. This is a historic milestone for CRS and I ask unanimous consent that a copy of a letter I recently wrote to Dr. James Billington, the Librarian of Congress, and Dr. Mary Mazanec, the Director of the Congressional Research Service, be printed the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

JULY 16, 2014.

Hon. JAMES H. BILLINGTON,
Librarian of Congress,
Dr. MARY B. MAZANEC,
Director of the Congressional Research Service.

DEAR DRS. BILLINGTON AND MAZANEC: On behalf of the Joint Committee on the Library and a grateful Congress, I'd like to congratulate you, the dedicated public servants of the Congressional Research Service (CRS), and the entire extended CRS family on this historic 100th Anniversary. You have a great deal to celebrate today at your ''The First Branch: Challenges of Governance in a Global Era'' symposium.

For a century now, CRS professionals have made enormous contributions to our public discourse and provided invaluable expertise to lawmakers challenged with developing legislation and policies to guide our nation in times of increasing complexity and rapid change.

We owe a profound debt of gratitude to all of you and to those legislators, led by Senator Robert M. La Follette and Representative John M. Nelson, who foresaw a need for your skills at the beginning of the 20th Century. As a New Yorker, I'm also proud that the legislation to create CRS was partly inspired by efforts in the Empire State undertaken by the New York State Library in addition to reforms carried out in Wisconsin, the home of Senator La Follette and Representative Nelson.

In 1914, no one could have envisioned the breadth of the challenges that would confront Congress over the following 100 years—issues of war and peace, profound social change and challenge, and revolutionary scientific and technological advancement. Yet through it all, CRS helped Congress make more informed decisions to the benefit of the American people and libraries all over the world.

We may have little idea today what Congress will be facing in the decades to come, but we know beyond any doubt that the Congressional Research Service will be there, providing Congress with the very best information possible on legislative, policy, and oversight matters, every step of the way.

Congratulations on this historic milestone, and we're looking forward to the next 100 years.

Sincerely,

CHARLES E. SCHUMER.

Mr. ROBERTS. Mr. President, as ranking member of the Committee on Rules and Administration with oversight of the Congressional Research Service, I offer my congratulations on the occasion of its centennial.

While it began in 1914 as a modest reference service, today it is an organization of nearly 600 analysts, attorneys, information professionals, and support staff with the core mission of providing timely and authoritative research and analysis on legislative issues of interest to Congress.

These highly trained and professional experts are dedicated to supporting the work of the Congress in an objective, unbiased, and nonpartisan manner.

Congratulations to the Congressional Research Service for 100 years of excellent service to the Congress.

Mr. REID. Mr. President, I ask unanimous consent that the resolution be agreed to, the preamble be agreed to, and the motions to reconsider be laid upon the table, with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 508) was agreed to.

The preamble was agreed to.

(The resolution, with its preamble, is printed in today's RECORD under ''Submitted Resolutions.'')

MEASURE READ THE FIRST TIME—S. 2631

Mr. REID. Mr. President, S. 2631 is at the desk and due for its first reading.

The PRESIDING OFFICER. The clerk will read the bill by title for the first time.

The legislative clerk read as follows:

A bill (S. 2631) to prevent the expansion of the Deferred Action for Childhood Arrivals Program unlawfully created by Executive memorandum on August 15, 2012.

Mr. REID. Mr. President, I ask for a second reading but object to my own request.

The PRESIDING OFFICER. Objection having been heard, the bill will receive a second reading on the next legislative day.

SIGNING AUTHORITY

Mr. REID. Mr. President, I ask unanimous consent that during the adjournment or recess of the Senate from Thursday, July 17, through Monday, July 21, Senators REED of Rhode Island and ROCKEFELLER be authorized to sign duly enrolled bills or joint resolutions.

The PRESIDING OFFICER. Without objection, it is so ordered.

ORDERS FOR MONDAY, JULY 21, 2014

Mr. REID. Mr. President, I ask unanimous consent that when the Senate completes its business today, it adjourn until 2 p.m. on Monday, July 21, 2014; that following the prayer and pledge, the morning hour be deemed expired, the Journal of proceedings be approved to date, and the time for the two leaders be reserved for their use later in the day; that following any leader remarks, the Senate proceed to a period of morning business until 5:30 p.m. with Senators permitted to speak therein for up to 10 minutes each, with the time equally divided and controlled between the two leaders or their designees; that at 5:30 p.m. the Senate proceed to executive session and vote on confirmation of Executive Calendar No. 849 as provided under the previous order.

The PRESIDING OFFICER. Without objection, it is so ordered.

PROGRAM

Mr. REID. Mr. President, at 5:30 p.m. on Monday, there will be votes on the confirmation of the following nominations: Carnes, Lawson, and Reddick. We expect rollcall votes on the Carnes nomination and voice votes on the Lawson and Reddick nominations.

ADJOURNMENT UNTIL MONDAY, JULY 21, 2014, AT 2 P.M.

Mr. REID. Mr. President, if there is no further business to come before the Senate, I ask unanimous consent that it adjourn under the previous order.

There being no objection, the Senate, at 6:12 p.m., adjourned until Monday, July 21, 2014, at 2 p.m.

NOMINATIONS

Executive nominations received by the Senate:

DEPARTMENT OF STATE

CHARLES C. ADAMS, JR., OF MARYLAND, TO BE AMBASSADOR EXTRAORDINARY AND PLENIPOTENTIARY OF THE UNITED STATES OF AMERICA TO THE REPUBLIC OF FINLAND.

ELECTION ASSISTANCE COMMISSION

MATTHEW VINCENT MASTERSON, OF OHIO, TO BE A MEMBER OF THE ELECTION ASSISTANCE COMMISSION FOR A TERM EXPIRING DECEMBER 12, 2017, VICE GINEEN BRESSO BEACH, TERM EXPIRED.

CHRISTY A. MCCORMICK, OF VIRGINIA, TO BE A MEMBER OF THE ELECTION ASSISTANCE COMMISSION FOR A TERM EXPIRING DECEMBER 12, 2015, VICE DONETTA DAVIDSON, TERM EXPIRED.

IN THE AIR FORCE

THE FOLLOWING AIR NATIONAL GUARD OF THE UNITED STATES OFFICER FOR APPOINTMENT IN THE RESERVE OF THE AIR FORCE TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTIONS 12203 AND 12212:

To be brigadier general

COL. CLARENCE ERVIN

IN THE ARMY

THE FOLLOWING ARMY NATIONAL GUARD OF THE UNITED STATES OFFICER FOR APPOINTMENT IN THE RESERVE OF THE ARMY TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTIONS 12203 AND 12211:

To be major general

BRIG. GEN. CHARLES L. GABLE

THE FOLLOWING ARMY NATIONAL GUARD OF THE UNITED STATES OFFICER FOR APPOINTMENT IN THE RESERVE OF THE ARMY TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTIONS 12203 AND 12211:

To be major general

BRIG. GEN. STEPHEN L. DANNER

THE FOLLOWING ARMY NATIONAL GUARD OF THE UNITED STATES OFFICERS FOR APPOINTMENT IN THE RESERVE OF THE ARMY TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTIONS 12203 AND 12211:

To be major general

BRIGADIER GENERAL PATRICIA M. ANSLOW
BRIGADIER GENERAL ELIZABETH D. AUSTIN
BRIGADIER GENERAL MATTHEW P. BEEVERS
BRIGADIER GENERAL ERIC C. BUSH
BRIGADIER GENERAL WALTER E. FOUNTAIN
BRIGADIER GENERAL RICHARD J. GALLANT
BRIGADIER GENERAL SCOTT A. GRONEWALD
BRIGADIER GENERAL JEFFREY H. HOLMES
BRIGADIER GENERAL WALTER T. LORD
BRIGADIER GENERAL JOHNNY R. MILLER
BRIGADIER GENERAL GLEN E. MOORE
BRIGADIER GENERAL LESTER SIMPSON
BRIGADIER GENERAL REX A. SPITLER
BRIGADIER GENERAL ROY S. WEBB
BRIGADIER GENERAL DAVID E. WILMOT
BRIGADIER GENERAL DAVID C. WOOD

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE RESERVE OF THE ARMY TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 12203:

To be major general

BRIG. GEN. MARK W. PALZER

THE FOLLOWING ARMY NATIONAL GUARD OF THE UNITED STATES OFFICERS FOR APPOINTMENT IN THE RESERVE OF THE ARMY TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTIONS 12203 AND 1211:

To be major general

BRIG. GEN. NEAL G. LOIDOLT

To be brigadier general

COL. THOMAS P. BUMP
COL. MARTA CARCANA
COL. JEFFREY E. IRELAND
COL. ISABELO RIVERA
COL. WALLACE N. TURNER

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES ARMY TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 624:

To be brigadier general

COL. ROBERT J. ULSES

THE FOLLOWING ARMY NATIONAL GUARD OF THE UNITED STATES OFFICER FOR APPOINTMENT IN THE RESERVE OF THE ARMY TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTIONS 12203 AND 12211:

To be brigadier general

COL. TIMOTHY J. SHERIFF

THE FOLLOWING ARMY NATIONAL GUARD OF THE UNITED STATES OFFICER FOR APPOINTMENT IN THE RESERVE OF THE ARMY TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTIONS 12203 AND 12211:

To be brigadier general

COL. TIMOTHY S. PAUL

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE RESERVE OF THE ARMY TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 12203:

To be brigadier general

COL. GLENN A. GODDARD

THE FOLLOWING ARMY NATIONAL GUARD OF THE UNITED STATES OFFICERS FOR APPOINTMENT IN THE RESERVE OF THE ARMY TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTIONS 12203 AND 12211:

To be brigadier general

COLONEL GREGREY C. BACON
COLONEL DARYL D. JASCHEN
COLONEL DAVID S. WERNER

THE FOLLOWING ARMY NATIONAL GUARD OF THE UNITED STATES OFFICER FOR APPOINTMENT IN THE RESERVE OF THE ARMY TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTIONS 12203 AND 12211:

To be brigadier general

COL. ROBERT J. HOWELL, JR.

IN THE NAVY

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES NAVY RESERVE TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 12203:

To be rear admiral

REAR ADM. (LH) KERRY M. METZ

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT IN THE UNITED STATES NAVY RESERVE TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 12203:

To be rear admiral (lower half)

CAPT. GENE F. PRICE
CAPT. LINNEA J. SOMMERWEDDINGTON

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT IN THE UNITED STATES NAVY TO THE GRADE INDICATED UNDER TITLE 10, U.S.C., SECTION 624:

To be rear admiral (lower half)

CAPT. DAWN E. CUTLER

IN THE AIR FORCE

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES AIR FORCE UNDER TITLE 10, U.S.C., SECTION 624:

To be major

JONATHAN ACKLEY
THOMAS JOSEPH ALFORD
BRADLEY A. AMYS
BRYANT OWEN BAIR
GRAHAM H. BERNSTEIN
DAVID CHARLES BLOMGREN
JOHN H. BONE
ELIJAH FRANCIS BROWN
MARK CLIFFORD BRUEGGER
TANIA C. M. BRYANT
BRIAN CHARLES CALL
SARAH WILLIAMS CARLSON
SARA JOY CARRASCO
RICHARD PIN CHEN
DAVID L. CHEWNING
JONATHAN ROY COMPTON
ELIZABETH ANNA CRANE
JEFFREY ALLAN DAVIS
BERTHA A. DIAZ
EVAN ALLEN EPSTEIN
CHAD THOMAS EVANS
JAVIER A. FARFAN
KENITRA I. FEWELL
ELIZABETH ANNA FITZGERALD
JASON E. GAMMONS
JEFFREY BEVAN GARBER
SEAN THOMAS GARNER
TIMOTHY GOINES
MARK ANDREW GOLDEN
DUSTIN L. GRANT
DAVID R. GROENDYK
JASON H. GUNNELL
GRETHE KRISTINA HAHN
BENJAMIN RUSSELL HENLEY
NATHANIEL GLENN HIMERT
IAN S. HOLZHAUER
ELGIN D. HORNE
DAPHNE LASALLE JACKSON
ISAAC C. KENNEN
WILLIAM JESSE LADUKE
TEAH LAMBRIGHT
JUSTIN PAUL LONERGAN
MARC PHILLIP MALLONE
GEORGE MATHEW
NATHAN H. MAYENSCHEIN
ERIC M. MCCUTCHEN
BRETT RICHARD MILLBURN
JENNIFER DELL MULLINS
MATTHEW JOSHUA NEIL
JOSHUA BRYAN NETTINGA
MIKAL CARL NUHN
ADAM NICHOLAS OLSEN
SALEEM SYED RAZVI
NICKLAUS JAMES REED
KEVIN YAMASHITA REINHOLZ
BRETT A. ROBINSON
MEGAN N. SCHMID
AMY KATE SIAK
THOMAS ANDREW SMITH
JOHN ROBERTS SOKOHL
MEREDITH LAURALINDLE STEER
DUSTIN MARCELLUS TIPLING
NICHOLE MARIE TORRES
KENNETH LEWIS VAUGHT
ANNA ELEANOR VIRDELL
LEAH ECCLES WATSON
BRANT FREDERICK WHIPPLE
JOSHUA CURTIS WILLIAMS
AARON ALLEN WILSON

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES AIR FORCE UNDER TITLE 10, U.S.C., SECTION 624:

To be lieutenant colonel

RICHARD EDWARD ALFORD
TAMONA L. BRIGHT
KEVIN D. CATRON
LINDSAY E. CONTOVEROS
ROYAL A. DAVIS
WILLIAM D. DEITCH
JAMES R. DORMAN
SHELLY M. FRANK
LANCE E. FREEMAN
ANDREW D. GILLMAN
PATRICIA A. GRUEN
CHARLES J. HEBNER
JENNIFER C. HOLMES
MATTHEW T. KING
ERIKA E. LYNCH
CHARLTON J. MEGINLEY
ETIENNE J. MISZCZAK
TIAUNDRA D. MONCRIEF
LISA D. MOSELEY
AIRON A. MOTHERSHED
SONDRA BELL NENSALA
GARY MATTHEW OSBORN
BRENT F. OSGOOD
STERLING C. PENDLETON
KEIRA A. POELLET
MICHELLE A. QUITUGUA
DREW G. ROBERTS
DAVID F.X. ROUTHIER
LEE F. SANDERSON
MATTHEW G. SCHWARTZ
DAMON P. SCOTT
MULGHETTA A. SIUM
DARRIN M. SKOUSEN
TIFFANY M. WAGNER
PAUL E. WELLING

ROBERT C. WILDER
DYLAN B. WILLIAMS

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES AIR FORCE UNDER TITLE 10, U.S.C., SECTION 624:

To be colonel

WILLIAM J. ANNEXSTAD
THOMAS L. CLUFF, JR.
GAIL E. CRAWFORD
ANDREA M. DECAMARA
PATRICK J. DOLAN
PATRICK W. FRANZESE
KYLE W. GREEN
BRANDON L. HART
JAMES H. KENNEDY III
JAMES E. KEY III
AMY L. MOMBER
KATHERINE E. OLER
THOMAS M. RODRIGUES
ELIZABETH L. SCHUCHSGOPAUL
MICHAEL W. TAYLOR
OWEN W. TULLOS
JEREMY S. WEBER
DAVID J. WESTERN

IN THE ARMY

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES ARMY DENTAL CORPS UNDER TITLE 10, U.S.C., SECTIONS 624 AND 3064:

To be major

ALEKSANDR BARON
DMITRY BARON
TED M. BEAUCHAMP
IVETTE BLANCOPADILLA
JAROM R. BURBANK
TYLER R. BURNINGHAM
JONATHAN D. CASO
SACHIYO K. CHAMBERS
HYUNSEOK C. CHI
VU H. DO
KATIE A. EGBERT
KONRAD D. FERGUSON
ANDREW A. GUTIERREZ
MITCHELL J. HERNANDEZ
SERGIO HERNANDEZ
KENNETH M. HUSSEY
HANANE JAMGHILI
JUSTIN JARISCH
MICHAEL L. JOHNSON
KEVIN C. JOHNSTUN
JAE H. KIM
JASON KIM
JEREMY J. KOPPENHAVER
JOHN C. LAKE, JR.
PHILLIP O. LANCE
JONATHAN Y. LEE
TIFFANY C. LOVELACE
TROY K. LUNDELL
STEVEN K. MARK
ANDRES M. MENDOZA
MORGAN K. MONCAYO
SERGIO MUNOZ
FRANCIS S. NAHM
JENNA M. NAKANISHI
JESSE B. NORRIS
MEGHAN K. OCONNELL
SONNY R. PORTER
SAMUEL PYO
DONALD G. RICE
CORY D. RICHARDS
GIOVANNI A. SAFDARI
BRIAN C. SLIGHLY
RYAN D. SWISS
ISAO F. TAKII
SHANI O. THOMPSON
JORGE E. VALDES
RODGER I. VOLTIN
ERIK P. WATZ
KYLE A. WILSON
JOHN D. WISE
RYAN D. ZIMMERMAN

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES ARMY MEDICAL CORPS UNDER TITLE 10, U.S.C., SECTIONS 624 AND 3064:

To be major

CARLO J. ALPHONSO
RYAN J. ALTENBURG
ROHUL AMIN
WILLIAM C. ARNETT
MICHAEL I. ARNOLD
MARIA C. ARTIGAS
JEFFERY C. ASHBURN
WESLEY L. BABER
JONATHAN D. BAILEY
JOSHUA R. BAKER
BRAD R. BALLARD
WAGNER BAPTISTE
ANTHONY M. BARCIA
HARRISON B. BAUCOM
ANDREW B. BEEGHLY
JENNIFER A. BENINCASA
SCOTT E. BEVANS
HUSAIN M. BHARMAL
NATHAN J. BORDEN
CHAD P. BOUCHARD
JAMES D. BOWSHER
DANIEL B. BRILLHART
MICHAEL V. BROWN
PATRICK J. BROWN
SIDNEY D. BRUCE
HEATHER J. BURCH
PAMELA L. BURGESS
DANIELLE E. CAFASSO
BARRETT H. CAMPBELL
ELIZABETH A. CAMPBELL
RONALD J. CARAS
TERRI L. CARLSON
STEPHEN M. CARROLL
JOSEPH D. CARUSO
BRIAN S. CHEN
RYAN M. CHIARELLA
DANIEL P. CHILES
JOSEPH S. CHRISTIANSEN
SOYEUN CHU
JESSIKA S. CHUMAK
JONATHAN D. CLAASSEN
STEPHANIE L. CLAASSEN
PAUL A. CLARK
JOHN P. CODY
SARAH S. COLE
JOANIE M. COLUMBIA
JAY B. COOK
JENNIFER A. COOPER
JUSTIN L. COSTA
JENNIFER L. CREAMER
SCOTT E. CUNNINGHAM
SHAUNETTE DAVEY
BENJAMIN T. DAXON
ERIC C. DELACRUZ
HEATHER D. DELUCA
BRADLEY A. DENGLER
JEANNIE S. DIAS
CHRISTOPHER M. DIPIRO
JENNIFER S. DOMINGO
MICHAEL J. DONOFRIO
KEVIN J. DOWNING
NICHOLAS D. P. DRAKOS
JASON R. DUTTON
JAMES S. EBERTOWSKI
JUSTIN C. EISENMAN
DAVID M. EVANS
AARON R. FARMER
JAMES S. FARRELL
MICHAEL G. FAZIO
DAMON A. FORBES
SHANNON N. FOSTER
BRIAN C. FULLER
JESSE V. GABRIEL
WENDRA J. GALFAND
JOSEPH W. GALVIN
EDWIN GANDIA
ALISSA R. GARCIA
JADE V. GAREEDEXTER
ANNELIESE GERMAIN
LAUREN M. GIULITTO
GEOFFREY P. GLEBUS
JEREMY D. GOINS
GENS P. GOODMAN
COLIN M. GRANT
ROLAND H. GREEN
BRENDAN D. GRIFFIS
RHIANON M. GROOM
CHRISTOPHER J. HAGEN
GREGORY C. HAHN
PAUL S. HAHN
DIANE F. HALE
ROBERT D. HALES
PATRICK S. HALL
SAMUEL J. HAN
JAMES A. HARRIS
MONIQUE O. HASSAN
EMILY N. HATHAWAY
ELISABETH M. HESSE
RICHARD W. HILLIARD, JR.
SHANA L. HIRCHERT
GALE J. HOBSON
ANDREW J. HOLDAWAY
SAMUEL L. HOLMES
STEVEN S. HONG
KRISTOPHER G. HOOTEN
MOLLY D. HOUSE
JEFFERSON T. HUNT
AARON M. JACKSON
CATHERINE JACOB
MARK D. JEFFORDS
CHRISTOPHER K. JENSEN
TODD E. JENSEN
ANTHONY W. JONES
CHRISTINA L. JONES
JAMES P. JONES
JOSEPH S. JONES
KYLE R. JUDKINS
MATTHEW C. KASPRENSKI
CHRISTOPHER D. KENNY
MARY E. KERN
SEAN Q. KERN
ROBERT G. KIRTLEY
KRISTEN E. KOENIG
KRISTIN D. KREIDER
CHAD A. KRUEGER
KEVIN P. KRUL
KELLY L. LANGAN
JUSTIN J. LAPOLLO
GARY L. LEGAULT
KEITH P. LEITZEN
ADAM B. LEWIS
DAVID L. LINDEMANN
THERESA M. LORKOWSKI
JOSEPH G. LOUDEN
DAVID R. LOWERY
MARESA LUGO
CORY A. LUNDBERG
RYAN J. MACDONALD
HOWARD W. MACLENNAN
JASON J. MADEY
JOHN R. MAGERA
CARLOS G. MALAVEMARRERO
MONICA J. S. MANN
DANIEL J. MARINO
HEATHER M. MASCIO
CHRISTOPHER R. MATTSON
CALEB M. MAY
KASEY J. MAYCLIN
KRISTA Z. L. MCBAYNE
JILL A. MCCAULLEY
DANIEL P. MCGUIRE
BRANDON W. MCNALLY
DEREK P. MCVAY
CODY D. MEAD
JEFFERY M. MEADOWS
CRAIG D. MEGGITT
ARTHUR R. MIELKE
CHRISTOPHER J. MIEREK
JESS R. MILLER
KYONG S. MIN
MELANIE A. S. MINALGA
RAUL A. MIRZA
HEATHER S. MITCHELL
EDWIN E. MORALES
MACKENZIE K. MORGAN
RYAN P. MORTON
COREY M. MOSSOP
AMY J. MOYER
HAPU T. MSONDA
CHRISTOPHER J. MULDER
BECKY T. MULDOON
ERICA L. MURRAY
MATTHEW A. NAPIERALA
DANIEL W. NELSON
JAMES H. NELSON
PATRICIA C. NELSON
STEPHANIE B. W. NG
LONG T. NGUYENDO
MELODY R. NOLAN
MICHAEL J. NORTON
YULIYA A. OGAI
CHRISTINA S. OHARA
STEPHEN M. OVERHOLSER
MATTHEW H. PARK
SAMIT A. PATEL
RACHAEL A. PAZ
BRET K. PEARCE
ERIKA PETRIK
SARAH K. PETTEYS
ELIZABETH M. POLFER
CHRISTOPHER R. PORTA
MATTHEW T. PORTER
TASHA R. POWELL
AARON W. PUMERANTZ
ELIZABETH A. PUNTENNEY
JOHN G. QUILES
DANIEL P. RABOIN
CIARA N. RAKESTRAW
SAMUEL A. RALSTON
NESTOR R. RAMOS
SEAN S. RAY
DAVID E. REECE
CHRISTOPHER J. RENAUD
CHRISTINA M. RIOJAS
PRESTON W. ROBERTS
JACQUELINE F. ROSENTHAL
JENNIFER L. ROWLAND
DOUGLAS S. RUHL
TITUS J. RUND
DANIEL H. RUSSELL
ABRAHAM E. SABERSKY
JENNIFER M. SABINO
SAW K. SAN
ADAM R. SASSO
KEVIN E. SCHLICKSUP
MARK N. SCHWENDIMAN
JOSHUA A. SCOTT
WITZARD SEIDE
JOSE A. SERRANO
BRIAN T. SHAHAN
REBECCA L. G. SHERIDAN
CREIGHTON E. SHUTE
ERIC R. SIGMON
JOSHUA R. SIMMONS
ABHAY A. SINGH
NICKLESH N. SINGH
LEIGHANNE L. SLACK
ASHLEY E. SMITH
CARIN J. SMITH
MICHAEL P. SMITH
BRIAN L. SNYDER
PRESTON J. SPARKS
RYAN W. SPEIR
GREGORY M. SPROWL
ANDREW R. STEIN
BRIAN J. STOUT
AMY N. STRATTON
TYLER E. STRATTON
STEPHEN B. STRINGHAM
CANDACE R. M. TALCOTT
PAMELA S. TIPLER
JOSEPH J. TRIPLET
ADAM M. TRITSCH
DAVID T. UM
CHARLES J. USSERY
VANEESHA VALLABHPATEL
DAVID W. VANWYCK
JAVIER M. VAZQUEZORTIZ
LUIS X. VELEZCOLON
HUMBERTO G. VILLARREAL
DIANA L. VILLAZANAKRETZER
KELLEY A. VONELTEN
TIMOTHY J. VREELAND
VANYA D. WAGLER
KEVIN B. WALDREP
AVERY S. WALKER
JESSICA L. WALSH
RYAN M. WALSH
KYLE C. WARD

WENDY S. WARREN
EZELLA N. WASHINGTON
BRIT C. D. WATERS
ROBERT E. WATTS
DEWAYNE L. WEAVER
DOUGLAS R. WEBER
JENNIFER M. WELTY
DAVID J. WILSON
WILLIAM R. WILSON, JR.
JONATHAN R. WOOD
EKAPHOL WOODEN
JINSONG WU
CHRISTOPHER G. YHEULON
JORDAN E. YOKLEY

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES ARMY UNDER TITLE 10, U.S.C., SECTION 624:

To be major

DESIREE S. DIRIGE

IN THE NAVY

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES NAVY UNDER TITLE 10, U.S.C., SECTION 624:

To be lieutenant commander

JOHN I. ACTKINSON
IAN P. ADAMS
ORENTHAL G. ADDERSON
ALLEN M. AGOR
BRANDON S. ALAMO
MATTHEW R. ALBRIGHT
TRAVIS M. ALEXANDER
NICHOLAS E. ALFANO
EDDIE C. ALLEN
JOHN R. ALLEN
EMILY C. ALLERT
MIKAEL M. ALLERT
TRAVIS S. AMERINE
ANGELA C. ANDERSON
ROBERT W. ANDERSON IV
TRAVIS S. ANDERSON
GIEORAG M. ANDREWS
ALEXANDER S. ANGELO
KEVIN C. ANTONUCCI
AARON S. ARKY
SERGIO A. ARMAS, JR.
ALYSSA B. Y. ARMSTRONG
ROBERT H. ARNDT III
ALBERT E. ARNOLD IV
ROBERT J. BAGLEY
MICHAEL BAILEY
KATHLEEN R. BALL
COREY D. BARKSDALE
ROBERT C. BARNETT
DAVID H. BARNHILL
JESSICA M. BARRIENTOS
CHARLES S. BARRS III
JOHN G. BARRY
CHAD D. BARTKUS
MICHAEL J. BARTOLF
JEREMY D. BARTOWITZ
WILLIAM T. BAUER
MATTHEW E. BAYER
DAVID R. BEAM
JOHN M. BEAR
BENJAMIN M. BEARMAN
CLAYTON C. BEAS
JAMES R. BEATY
DIANA L. BEAUFORD
JOHN P. BECKER
MATTHEW A. BECKER
TIMOTHY J. BEEBE
MICHAEL J. BEER
JUSTIN J. BENCH
CHRISTOPHER L. BENTON
AARON G. BERGER
MARK A. BERGLUND
DANIEL J. BERRY
MASON W. BERRY
MATTHEW T. BERRY
ALEXA J. BESTOSO
DYLAN C. BEYER
BRENDA W. BEZNOSKA
TIMOTHY W. BIERBACH
RYAN L. BIRKELBACH
ZACHARY A. BITTNER
JONATHAN M. BLACK
CYNTHIA BLACKMAN
ROBERT C. BLACKWOOD
GARTH J. BLAKELY
CHRISTOPHER H. BLAND
CHRISTIAN W. BLASY
MARK A. BLASZCZYK
CARL R. BLAZEK
NIKOLAUS J. BOCHETTE
THOMAS R. BOCK
DUSTIN L. BOEDING
BRETT A. BOOTHE
ROBERT H. BOWER
MATTHEW D. BOYCE
MARSHALL T. BOYD
SAMUEL C. BOYD
EDWARD H. BOYDSTON
JASON M. BRADLEY
RICHARD T. BRANNEN
JEREMY D. BRAUN
DOUGLAS A. BRAYTON
WALTER R. BRINKLEY, JR.
KYLE T. BRIZAN
JOSHUA L. BROADBENT
RYAN P. BRODERICK
MATTHEW P. BROUILLARD
ANDREW M. BROWN
DAVID M. BROWN
LUKE A. BROWN
RYAN A. BROWN
NATHAN J. BROWNE
AMANDA G. BROWNING
ADAM L. BRYAN
GRANT T. BRYAN
JOSEPH BUBULKA
RALPH T. BUCKLES
MICHAEL J. BUCKLEY
PETER M. BUGLER
WILLIAM W. BUHL
JAMES A. BURKETT III
BENJAMIN J. BURNHAM
CLINTON F. BURR
STEVEN M. BURROWS
ADAM R. BUSH
ZACHARY D. BUTALA
ADAM R. CADOVIUS
ADAM M. CALHOUN
JOSHUA C. CALHOUN
KYLE F. CALTON
ALBERT F. CALUAG
LEONARD CALVERT IV
TIMOTHY L. CAMPBELL
DAVID B. CANNADY
BENJAMIN R. CANTU
BENJAMIN C. CARLSON
AIDAN CARRIGG
WILLIAM J. CARROLL
CHRISTOPHER B. CARSON
GRANT F. CARTER
KEVIN J. CARTER
MARIO G. CASTELLANOS
MICHAEL O. CASTILLO
AARON J. CHANDLER
MATTHEW E. CHANG
JAMES M. CHARAPICH
NATHANIEL J. CHASE
MICHAEL R. CHESNUT
JEFFREY T. CHEWNING
SCOTT F. CHIRGWIN
SVEN R. CHRISMAN
ADAM K. CHRISTENSEN
CLINTON J. CHRISTOFK
JONATHAN D. CIRILLO
ROBERT A. CIZEK
JOHN P. CLARK
MATTHEW R. CLARK
MICHAEL R. CLEES
SCOTT W. CLEVELAND
CHRISTOPHER W. CLEVENGER
JOSEPH M. CLUNIE
JASON E. COATES
BRANDON J. COBB
ADAM COHEN
JORDAN M. COHEN
MATTHEW D. COLLINSWORTH
RANDY S. CONANT
BRIAN X. CONLAN
JASON A. CONLEY
ERIN N. CONNOR
BRADLEY M. CONROY
JOHN M. COOMBS
CHARLES T. COOPER
SEAN N. COOPER
WILLIAM R. COOPER
PETER E. CORNETT
LESLIE E. CORNWALL, JR.
LAUREN B. COSGRAVE
WILLIAM G. COULTER
BENJAMEN L. COVERT
SHAUN A. COX
KELLY N. CRAFT
FREDERICK D. CRAYTON
JASON C. CREWS
MATTHEW T. CRONAUER
ANDREW C. CROUSE
EDWARD L. CRUZMATOS
JEFFREY K. CUMMINGS
CHARLES M. CUNNINGHAM II
GABRIELLE D. CUNNINGHAM
LUCIAN J. CZARNECKI II
JOSHUA W. DAFFRON
RYAN S. DAHLMAN
JASON H. DAO
DAVID L. DAUPHINAIS
BENJAMIN S. DAVIDSON
AARON B. DAVIS
KEVIN J. DAVIS
CONSTANCIA A. DEAN
MATTHEW B. DEBAUN
JOHN P. DEBBINK
BRANT N. DEBOER
MATTHEW H. DECOITO
CHRISTOPHER T. DELAGRANGE
LUCAS D. DENNISON
CHRISTOPHER M. DESCOVICH
GREGORY L. DESCOVICH
JAMES P. DEWITT
MATTHEW T. DIEDERICH
GRAIG T. DIEFENDERFER
THOMAS E. DIGAN, JR.
CHRISTOPHER C. DIKE
RYAN F. DILLON
MICHAEL F. DIMMITT
EMIL D. DINNOCENZO
SETH DINOLA
THOMAS T. DIXON
DANIEL B. DOLAN
MANUEL J. DOMINGUEZ
MATTHEW S. DOMINICK
CONOR P. DONAHUE
JAMES J. DONCHEZ
KEVIN M. DORE
RICHARD A. DORSEY II
SEAN W. DOUGHERTY
CAMERON A. DOUGLAS
RYAN R. DOWNING
JAMES E. DRENNAN
JOSEPH M. DUGAN
JARRETT P. DUNN
PATRICK M. DURNIN
JAMES W. DUVALL
FRANCIS E. ECLEVIA, JR.
JOHN H. EDWARDS
LUCAS R. EDWARDS
BRANDON S. ELLIOTT
NICHOLAS D. ELLIOTT
ERIN L. ELLIOTTCARRICO
CARL A. ELLSWORTH, JR.
EVERETTE T. ERVIN
HENRY P. ESHENOUR
FREDERICK K. ESPY
ERIC M. ETHERTON
RIAN Q. EVERETT
BRADLEY W. FAIRFAX
ROBERT S. FAIRLIE
JEFFREY C. FALLAT
CHARLES R. FARLOW III
BILLIE J. FARRELL
DAVID E. FARRELL
LUKE P. FARRELL
JACQUELYN M. FELBER
MICHAEL R. FELBER
JESS B. FELDON
JACOB D. FERRARI
LEE R. FIKE
SEAN D. FINNER
KELLY J. FITZPATRICK
JASON A. FLANAGAN
CHRISTIANA M. FLOECK
CHRISTOPHER D. FLORES
PETER C. FLYNN
WARREN H. FOGLER
NICKOLAS R. FORAN
ALEXA O. FORSYTH
JOSEPH M. FOSTER
LANDON B. FOSTER
TIMOTHY A. FOX
ALEXANDER J. FRANZ
DANIEL R. FREE
WINDSOR S. H. FRINELL
JEFFREY R. FROST
CAMERON L. FULRATH
RITARSHA Y. FURQAN
AARON J. GALL
NICHOLAS J. GALL
BRYAN M. GALLANT
ROWDY A. GARCIA
JEFFREY A. GARDNER
SCOTT A. GARLINGTON
JONATHAN R. GARNER
PHILIP M. GARROW
BRANDON B. GASSER
SHAFER B. GASTON
KENT A. GEBICKE
BENJAMIN C. GEIB
TOMMY J. GETTY
ZACHARY J. GIBBONS
WILLIAM A. GIBSON
BRANDON R. GILESSUMMERS
GRAHAM C. GILL
MEGAN H. GILL
ROBERT A. GILL
ROBERT J. GILLIS, JR.
BENJAMIN J. GLASER
CARL R. GLASS
JOHN M. GLEASON
DEREK M. GOEBEL
JUSTIN L. GOLSON
ANGELA D. GONZALES
JOSHUA P. GOODIN
JASON A. GORDAN
JAMES J. GORMLEY III
IAN W. GORSKI
ERICH E. GRAWUNDER
DARBY R. GRAY
JOHN E. GRAY
JAMES N. GROSE
JUSTIN R. GROVER
JEFFREY M. GRZEBIN
LEIF E. GUNDERSON
ERIK H. GUSTAFSON
ALEJANDRO L. GUTIERREZ
CHRISTIAN X. GUTIERREZ
SOPHIA M. HABERMAN
DOUGLAS G. HAGENBUCH
STEPHEN L. HAGGARD
JAMES H. HAISLOP
JAMES A. HALL
STACEY L. HALL
STEVEN A. HALLE
ERIK L. HALVORSON
JOSEPH S. HAMILTON
JUSTIN C. HAMILTON
JAMES T. HANNIFY
JUSTIN R. HARDY
NICHOLAS J. HARGRAVES
HENRY D. HARGROVE
DANIEL W. HARKINS, JR.
NATHAN A. HARRELL
KEVIN M. HARRINGTON
RYAN N. HARRIS
TRAVIS J. HARTMAN
NATHAN L. HARVEY
STEFANIE J. HASEMAN
KARL HASSENFRATZ
CHRISTOPHER S. HATHAWAY
JOSHUA R. HATTERY
JOSHUA A. HAUSBACH
JOHN E. HEDRICK
CONOR L. HEELY
JOSHUA B. HEISLER

ADAM R. HELLER
BENJAMIN N. HERRING
GRIFFIN HETRICK
JOSEPH A. HEYNE
LAWRENCE HEYWORTH IV
KYLE R. HICKMAN
DAVID P. HICKS
JONATHAN T. HINES
MARC W. HINES
KYLE W. HISCOCK
JOSHUA J. HODGE
NICHOLAS C. HODGE
ROBERT H. HODGES, JR.
NICHOLAS A. HOFFMANN
JEFFREY R. HOGAN
JEREMY D. HOLCOMB
MATTHEW P. HOLLADAY
CHRISTOPHER D. HOLLAND
DANIEL K. HOLLINGSHEAD
BRADLEY C. HOLMES
DEVIN M. HOLMES
RICHARD J. HOLT
JOHN E. HOLTHAUS
BENJAMIN J. HORN
GARETT T. HOUSTON
WILLIAM J. HOWEY III
MICHAEL J. HUBER
SCOTT T. HUCHTON
CLAYTON J. HUGHEY
BRIAN A. HUMPHREYS
CHRISTINA L. HUMPHRIES
ERIC W. HUNG
JAMES P. HUNT
MICHAEL A. HURBAN
DAVID T. HURST
DREW A. HUSTON
LUKE J. HUSTON
IAN P. HUTTER
KATHERINE A. HUTTER
JOSEPH A. HYDE
KENJI IGAWA
LEWIS S. IM
LUKE H. I. IM
PATRICK J. IMHOFF
ELY O. INFANTE
ISAIABENETTE E. INFANTE
KENNETH C. INGLE
CAMERON A. INGRAM
ROBERT B. INMAN
ROBERT D. IRELAND
BRIAN M. IRISH
JERRY W. IRONS
JAMES J. IRRGANG, JR.
JUSTIN E. IVANCIC
JOHN C. IVEY
MATTHEW J. IWANCZUK
DOMINIQUE A. JACKSON
JOHN R. JACKSON
MICHAEL JACKSON
ALLEN W. JACOB
JOEL W. JACOBS
CARL D. JAPPERT
TIMOTHY N. JENSEN
ALLAN JESPERSEN
JOSEPH G. JINDRICH
BJORN A. JOHNSON
BRETT P. JOHNSON
KEITH A. JOHNSON
LAUREN M. JOHNSON
MATTHEW P. JOHNSON, JR.
PHILLIP C. JOLLEY
BRANDON K. JONES
JARAD T. JONES
KEVIN A. JONES
PHILLIP J. JONES
RUSSELL W. JONES
WILLIAM P. JONES
KACEE L. JOSSIS
KRISTOFER W. KALSTAD
BRAD W. KASENBERG
THERESA L. KAYLOR
JOHN W. KEEFE
MATTHEW T. KEEFE
CHRISTOPHER J. KEEN
CHRISTOPHER J. KEITHLEY
TROY L. KELLY
WILLIAM R. KELLY
LUKE E. KELVINGTON
MICHAEL L. KENDEL
HENRY J. KENNEDY
KEVIN J. KENNEDY
WESLEY G. KENNERLY
PAUL M. KEPNER
JAMES H. KEPPER IV
KRISTEN M. KERNS
JOSHUA M. KERSTING
MICHAEL W. KESSLER
SAMEER KHANNA
SCOTT O. KILGORE
LUCIAN D. KINS
DAVID E. KISER
LEANDRA N. KISSINGER
REED A. KITCHEN
RYAN J. KLAMPER
KEITH F. KLOSTERMAN
BRYAN J. KNICK
MICHAEL A. KNICKERBOCKER
NICHOLAS J. KOETTER
LUCAS R. KORAN
MICHAEL J. KOS
JASON N. KRAHNKE
DOMINIC J. KRAMER
BRYAN W. KRONCKE
MARK K. KROZEL
SETH R. KRUEGER
DANIEL L. KURATKO
GAIL A. LAMPING
ANDREW A. LAMSON
NICKOLAS LANCASTER
GEORGE A. LANE
NATHAN J. LASSAS
STEPHANIE E. LATHAM
AARON J. LEE
DAVID J. LEISENRING
BRANDON S. LENHART
CLIFTON G. LENNON
RANDALL J. LESLIE
TROY A. LEVERON
CHARLES A. LEWIS
CHRISTOPHER J. LEWIS
CALEB A. LINDH
SCOTT D. LIPPINCOTT
CARNE M. LIVINGSTON
ALFRED W. LONG, JR.
WILLIS M. LONG
JOSEPH O. LOPICCOLO
JUNIOR C. LORAH
CORRY W. LOUGEE
STEPHEN C. LOVELACE
ROBERT A. LOW
JOHN J. LOWERY
MICHAEL R. LUEBKERT
RALPH P. LUFKIN
KATIE J. LUNSER
MAXCY C. LYNN III
BLAKE A. LYON
ANTHONY D. MACALUSO
JARAD W. MAHANNA
DAVID D. MAHONEY
PATRICK T. MAHONEY
PAUL J. MAHONEY
KERRY M. MAJOR
ZUBIN J. MAJOR
WILLIAM G. MANGAN
LUDWIG MANN III
RYAN B. MANN
MATTHEW P. MAPLES
MICHAEL C. MARSH
BENJAMIN L. MARTINEZ
NATHAN W. MARTINEZ
JAMES G. MASSIE III
JORDAN A. MAYO
KRISTOPHER M. MCABEE
FRANK A. MCBRIDE
CASEY D. MCCAIN
JARED B. MCCALEB
PATRICK A. MCCARTHY
KEVIN K. MCCLELLAN
JOHN P. MCCRAY
CHRISTOPHER J. MCDONALD
SEAN R. MCELHANNON
ROBERT P. MCFALL
JASON R. MCKAY
KENT M. MCLAUGHLIN
JAMES R. MCMILLAN III
SEAN E. MCMULLEN
KYLE S. MCVAY
JEREMY C. MEDLIN
JON F. MEGAHY
KRISTINA N. MELENDEZ
CHRISTOPHER J. MERGEN
SEAN M. MERRITT
DAVID S. MICELI
NATHANIEL D. MICHAEL
DREW R. MICKLETHWAIT
JUSTIN L. MIDDLEBROOK
ADAM S. MILLER
MICHAEL J. MILLER
TRAVIS W. MILLER
SAMUEL C. MILLS
ELIJAH MOJICA
DOMENICO MONACO
BRANDON R. MONAGHAN
JAMES J. MOORE
RYAN S. MOORE
CHRISTOPHER C. MORAN
MICHAEL G. MORAN II
DOUGLAS M. MOREA
MARCUS V. MORELAND
LAWRENCE A. MORIARITY
JOHN D. MORRIS IV
KENNETH E. MORRIS
THOMAS J. MORRIS
DANIEL P. MORRISON
BRIAN M. MOWRY
LIAM F. MULCAHY
SCOTTY L. MURPHY
KARL N. MURRAY
BRAD W. MUSKOPF
SHAWN M. NAVINSKEY
JONATHAN D. NEW
MITCHELL A. NEWTON
DONALD NICHOLS, JR.
JUSTIN A. NIXON
DAVID L. NOBLES, JR.
MACK T. NOLEN, JR.
JONATHAN I. NORRIS
WILL A. NUSE
DAVIN C. OBRIEN
KYLE N. ODONOHOE
DAVID A. OECHSLEIN
KWAME K. OFORI
LUKE D. OLINGER
ANTHONY OLIPHANT
CHRISTIAN L. OLSEN
SAMANTHA A. ONEIL
SEAN T. ONEILL
BENJAMIN S. ORLOFF
FRANK J. ORNELAS II
DANIEL L. OSBOURN
MATTHEW J. OSTRYE
KENNETH C. PACKARD
JOHN J. PARMA
DANIEL C. PATRICK
NATHAN J. PECK
DANIEL PEEL
FELIX PEREZ
IGNACIO S. PEREZ
ROBERT I. PESIK
DANIEL J. PETERS
CAROLYN K. PETERSON
KORY S. PETERSON
DENNIS R. PHILLIPS
JONATHAN P. PHILLIPS
CHRISTOPHER L. PICKEN
RYAN D. PIERCE
RYAN Z. PINEDA
JEFFREY R. PINKERTON
NICHOLAS R. PINKSTON
RONALD M. PIRAMIDE
ANDREW W. PITTMAN
ANTHONY M. PIUNNO III
ALEXANDER S. PLUMER
MARK K. POBLETE
CHRISTOPHER L. POLNASZEK
CHRISTOPHER P. POLSON
JOSEPH W. POPE
MICAH A. W. PORTER
DANA R. POTAK
JARED D. POWELL
SETH K. POWELL
TRAVIS B. POWELL
EDMUND J. POYNTON
CHRISTOPHER N. PRATT
MATTHEW G. PRATT
COLIN E. PREMDAS
JOSEPH F. PRESTON
JOHN E. PRITCHETT
SARA E. PULLIAM
SEAN E. PURDY
CHRISTOPHER W. PUTRE
NICHOLAS R. QUIHUIS
JOHNNY M. QUILENDERINO
LUKE RADLOWSKI
LIDA P. RAFFEL
ROBERT T. RAGON
TREVIS L. RAINEY
EMORY A. RANK
JEFFREY W. RANSOM
RICHARD A. RASCO
KEVIN M. RAY
TRAVIS J. REAM
JOSEPH F. REARDON
TIMOTHY L. REEDER
JUSTIN D. REEVES
ELAINE D. REID
CURTIS A. REISS
JERARDO J. REYNA
JEREMY B. REYNARD
ERIK S. REYNOLDS
BRANDON L. RICE
PATRICK M. RICE
JASON M. RICHTER
KERRY N. RICKERT
WILLIAM M. RIETVELD
MATTHEW F. RIGLER
TIMOTHY M. RIGLER
MICHAEL P. RILEY
SUZANNE A. RITTER
CHRISTIAN A. RIVERA
NICHOLAS A. ROA
DOUGLAS A. ROBB
TAD J. ROBBINS
DWIGHT D. ROBERTS
JEFFREY R. ROBERTS, JR.
JOHN N. ROBERTS
THOMAS M. ROBERTS
JEREMY D. ROBERTSON
WILLIAM J. ROBESCH
AARON A. ROBINSON
BRENT K. ROBINSON
DAVID A. ROBINSON
MARY H. ROBINSON
CHRISTOPHER W. ROBISON
ALAN M. ROCHE
TIMOTHY W. ROCHHOLZ
MICHAEL RODRIGUEZ
CHRISTOPHER J. ROGERS
JUSTIN A. ROGERS
JASON R. ROGGE
RUSSELL M. ROHRING
ERIC K. ROLFS
PATRICK K. ROLLO
DANIEL C. ROLNICK
NIKOLAS G. RONGERS
CHAD S. RORSTROM
DANIEL E. ROSBOROUGH
CHRISTOPHER W. ROSE
ELI J. ROSENBERGER
RICHARD C. ROSENBUSCH
ADRIENNE L. ROSETI
BRIAN A. ROSS
JOHN H. ROSS
ARON M. ROTKLEIN
CAREY D. ROUSE
KARL K. ROYSTON
ANDREW T. RUCKER
NICHOLAS A. RUEDA
THADDEUS RUSINEK
JOSEPH A. RUSSO
CRAIG T. RYAN
NICHOLAS W. RYAN
ERIC M. RYZIW
SETH D. SAALFELD
JOSEPH H. SANDOVAL
JAMES R. SANTYMIRE
CRYSTAL L. SARGENT
ANDREW D. SCHAAF
MARK M. SCHAFF
BLADE A. SCHALLENBERGER
ZACHARY P. SCHEETZ

BENJAMIN A. SCHEIDEMAN
TIMOTHY R. SCHEIDLER
DAVID M. SCHERR
NATHAN D. SCHILLING
JOSEPH R. SCHIPPERT
RORY J. SCHNEIDER
NICHOLAS J. SCHNETTLER
JASON A. SCHRIMP
ADAM A. SCHROETER
AARON D. SCHUTTE
ERIC M. SCHWAB
STEVEN R. SCHWARZER
JONATHAN P. SCOBO
VANCE D. SCOTT
KAI C. SEGLEM
EDWIN S. SELLERS
MATTHEW L. SEVIER
KEVIN P. SHANNON
MATTHEW S. SHAW
JOHNATHAN E. SHEATER
JASON D. SHELL
DANIAL L. SHERMAN
ANTONIA K. SHEY
RICHARD P. SHIELS
JACK L. SHIS
JAMES E. SHULER
SCOTT J. SIDES
MICHAEL J. SIEDSMA
GREGORY T. SIEGERT
JACKSON M. SIEGLINGER
TYSON K. SILENGO
JASON S. SILTMANN
MICHAEL J. SIMMONS
BRETT A. SIMPSON
JOSEPH B. SIMS
RICHARD W. SKINNELL
GABRIEL M. SLATER
ADAM L. SLONE
RICHARD D. SLYE
ROBERT F. SMAIL, JR.
GLENN J. SMITH
GREGORY L. SMITH
JOHANNES SMITH
JONATHAN D. SMITH
JOSHUA D. SMITH
JUSTIN B. SMITH
KELLEN L. SMITH
JOSEPH P. SNELGROVE
PARINA SOMNHOT
JAVED P. SONDHI
DIRK C. SONNENBERG
CHARLES N. SOUTHARD
CHRISTOPHER J. SPEICHER
JASON W. SPRAY
IAN P. SPRENGER
RANDY M. STACK
DAVID L. STANFORD, JR.
JOHN T. STANLEY
JOSHUA C. STARR
STEVEN P. STASHWICK
PHILLIP A. STASO
DAVID T. STAUBIN
JAMES A. STEELE
JEREMY R. STEFFEN
ADAM M. STEIN
BENJAMIN F. STEIN
STEVEN L. STEINMETZ
MATTHEW R. STENDER
MICHAEL STENGEL
JONATHAN R. STEPHENS
GABRIEL T. STEVENS
TIMOTHY S. STEVENS
MARK P. STINES
ROBERT P. STOCHEL
JEFFREY W. STODOLA
MIRCEA D. STOICA
JEFFREY C. STORER
KALE B. STREETER
JASON M. STROBEL
DAVID R. STROMAN, JR.
NATHAN C. STUHLMACHER
JIMMY J. SUH
JAMES F. SULLIVAN IV
MICHAEL C. SULLIVAN
MARK T. SUMMERLIN
MARK A. SWARTZ
THAD D. TASSO
KEITH J. TATE
DAVID L. TAYLOR
JONATHAN A. TAYLOR
MARK A. TEDROW
DAVID R. TERRY
ANDREW M. THOM
BRADLEY R. THOMPSON
CASEY S. THOMPSON
MATTHEW G. THOMPSON
TREVOR C. THOMPSON
GALEN M. THORP
REEVES THURMAN
FREEMAN B. TIDABACK
JONATHAN D. TIGHE
DAVID K. TIREY
FRANCISCO TOBIO, JR.
DILLON J. TOLMIE
NEIL J. TOOHEY, JR.
CHRISTOPHER A. TORRES
DALE R. TOURTELOTTE
SAMUEL K. TRAIN
PAUL R. TRANBARGER
ARTURO TREJO
MICHAEL Q. TREMEL
SEAN H. TROMBLY
BRIAN TRUONG
STEVEN J. TSCHANZ
TERRY L. TURNER II
MICHAEL G. TYREE
TODD P. URKOWITZ
GREGORY M. VALDEZ
CHRISTOPHER W. VANLOENEN
SEANN M. VANOSDEL
GREGORY T. VASILOFF
PAUL VELAZQUEZ
JOSLYN M. VENEY
FRANK P. VERDUCCI III
CHRISTOPHER A. VICTOR
ROBERT W. VILLARREAL
DANIEL J. VIRGETS
DAVID J. VITOLLO
ALEXANDER C. VOELLER
CHRISTOPHER M. VONDERHEIDE
SHAWN M. VRABEL
WILLIAM M. VUILLET
ABRAHAM N. WADSWORTH
NICHOLAS W. WAGNER
BRIAN M. WALINSKI
DESMOND K. WALKER
JAMES A. WALKER
JOHN D. WALKER III
KRISTOPHER WALKER
NATHAN D. WALKER
ADAM P. WALTERS
KENNETH A. WARFORD
JOHN F. WARNER III
HUNTER D. WASHBURN
CHRISTOPHER F. WASKEY
GEORGE B. WATKINS
JAMES N. WATTS
JEREMY M. WEATHERS
JASON J. WEHMEYER
BENJAMIN R. WEISS
JOSHUA D. WEISS
RAYMOND M. WERNIG, JR.
ANDREW P. WHALEY
JONATHAN M. WHELAN
VES W. WHITTEMORE
MICHEAL A. WICKHAM
ANDREW G. WILCOX
GEORGE A. WILKENING
DIMETRI G. WILKER
JAMES T. WILLIAMS
NATHAN M. WILLIAMS
STEPHEN P. WILLIAMS
STEPHEN V. WILLIAMS
MICHAEL J. WILLIS
JARED M. WOLCOTT
MATTHEW W. WOLF
KURTIS K. WONG
TRAVIS L. WOOD
MATTHEW D. WOODS
MICHAEL D. WORRELL
JOSHUA L. WRIGHT
JAMES F. WRIGHTSON, JR.
DAVID J. WRIGLEY
KARI E. YAKUBISIN
THOMAS F. YALE
CHRISTOPHER P. YOST
TIMOTHY C. YUHAS
ROBERT M. ZABOROWSKI
ANDREA J. ZENN
PETER J. ZETTEL
REBECCA A. ZIAJA
STEVEN ZIELECHOWSKI
ERIC R. ZILBERMAN
KENNETH W. ZILKA
ROBERT E. ZUBECK II

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES NAVY UNDER TITLE 10, U.S.C., SECTION 624:

To be lieutenant commander

CHRISTOPHER W. ACOR
ERIK A. ADAMS
BRADLEY W. ADORADOR
THOMAS N. AMANO
MICHAEL J. ANDERSON
URIES S. ANDERSON, JR.
ISIDRO J. C. AQUINO
RAVEN G. ATKINS, JR.
KEVIN M. BACON
WILLIAM M. BARKSDALE
MARK J. BECKER
AARON T. BEHNE
JOHN R. BELCHER
WILLIAM R. BLACKMAN
LARRY D. BLOODSAW, JR.
CLARENCE R. BOSWELL II
SHELLEY E. BRANCH
JOHN J. BURKE
TRAVIS C. BURNETTE
JERRY L. CANNON
ADRIAN C. CASTER
PHILIP A. CASWELL
BRAD A. CLOUSE
JOSEPH T. COCKEREL
WADE A. CONAWAY
ERIC K. CONRAD
VERNON R. COOK
PATRICK G. CORTEZ
WINSTON A. COTTERELL
BRENT E. DILLOW
MICHAEL J. DISCH
CHAD D. DIXON
DOUGLAS A. EVANS
MICHAEL R. FASANO
HOWARD C. FICHTEL
MICHAEL W. FISHER
RYAN A. FISHER
DIEGO L. FLORES
TERRANCE FLOURNOY
LEONARDO R. FRANKLIN
DANIEL D. FUGETT
RODNEY B. FULLINGIM
JAMES B. GALLAGHER
BRIAN T. GARDLER
KEVIN L. GARNER
SEAN M. C. GARRETT
TODD M. GEORGE
EDWIN S. GIBSON, JR.
JOSEPH D. GODWIN
KREGG T. GOSE
EDWARD A. GRANT
JOHNNIE L. GREEN, JR.
JASON K. GREENFIELD
HENRY GUDINO
SELMA GUICE, JR.
FREDRIC P. HACKETT
NEIL HALSTEAD
ERIC E. HAYES
ERVIN L. HENLEY
LENTEISA L. HILL
MICHAEL B. HOCH
RODNEY B. HOOKS
KEVIN L. HUGHES
CHAD R. HUNSUCKER
ELOUISE M. HURST
ADAM R. JARVIS
ERROL C. JOHNSON, JR.
MARK A. JONES
TERRENCE U. JONES
ROBERT L. KETCH, JR.
KEITH W. KING
BRYCE D. KLAPUT
BRIAN K. KULBETH
DAVID A. LAFEVOR
JASON A. LAURION
RONALD F. LEFAVORE, JR.
MARK C. LETOURNEAU
CHARLES A. LONGEWAY
WILLIAM H. LOZIER III
JOHN S. I. LUCAS
DAVID N. MACIAS
RANDALL L. MCATEE
WILLIAM J. MCCAMMON
TERRANCE L. MCCRAY
RICHARD C. MCNEIL
EUGENE MENDEZ
SCOTT MILDENHALL
JEREMY MINER
LOUIS A. MOORE
JOHN T. MOSLEY
MICHAEL R. MURPHY
LEONIDES E. NEPOMUCENO
DIANE E. NICHOLS
CRAIG C. NORMAN
MICHAEL J. NOVAK
WILLIAM M. NOVAK
BRIAN C. NUSS
ANTHONY W. OXENDINE, JR.
ERICH J. PARTSCH
NICHOLAS E. PECCI
JULIO A. PETERSON
ANTONIO PRIESTER, JR.
JAMES T. RATLIFF
ERIK J. REED
DENNIS L. RICHARDSON
ALLEN W. RICHMOND
MARK C. RINSCHLER
SHARIVA A. ROBINSON
GREGORY A. RODRIGUEZ
ERIC T. RYAN
MARLON I. SALES
CHRISTOPHER S. SCHMIDT
STEVEN A. SHEPSKI
PETTIS N. SIMS
JITINDRA W. SIRJOO
DENNIS D. SMITH, JR.
JEFFREY T. SMITH
BRIAN L. SNOOK
DAVID L. STARNES
SCOTT D. SULMAN
ROBERT B. SUTTER
JAMES K. SWE
RILEY E. SWINNEY, JR.
COREY J. SYLVE
DAREN D. TILLER
MARC B. TINAZ
DANIEL J. TRIERWEILER
MARCO R. VIDES
TRAVIS W. WAGNER
TODD M. WILD
DAVID M. WILLIAMS
DAVID T. WRIGHT
RICHARD P. ZABAWA

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES NAVY UNDER TITLE 10, U.S.C., SECTION 624:

To be lieutenant commander

MATE W. AERANDIR
TONY V. ANDERSON
WILLARD E. BALL
CURTIS A. BELING, JR.
BRANDY D. BENNETT
MATTHEW B. BIELIK
JASON L. BRUEHL
LAJUANA BUHMANN
NEIL J. CURTIS
EDWARD M. DAVID
CYNTHIA R. DUKE
JUSTIN R. FARBER
HEATH C. FLORAY
LAUREN A. GOLDENBERG
WILLIAM L. V. GRENOBLE
CHRISTOPHER D. GUSTAFSON
RYAN F. HEALY
MICHAEL V. HOLLER
SHAWN R. HUGHES
GERALD J. JOHNSON, JR.
WESLEY D. KERR

BRETT T. KIRWAN
ARPAD P. KOROSSY
JOSE L. LEPESUASTEGUI
HEATHER D. MADERIA
TROY M. MCCORMICK
PHILLIP P. MENARD VII
ANDREW T. MICHALOWICZ
CHRISTOPHER M. MICHALSKI
DANIELLE K. MOEN
SHEILA R. MOLINA
KRISTEN M. MURDOCK
CURTIS B. NIEBOER
TOLULOPE E. OBRIEN
JOSEPH L. PRUCE
JESSICA A. REED
SCOTT E. RIFFLE
SERGIUS M. RODRIGUEZ
ADAM D. SEILER
JAMES M. A. SPALL
DAVID J. TEBBE
SARA E. WARYNOVICH
ROLLIE J. WICKS
JONATHAN M. WIENS
JEFFREY A. WILLIAMS
PAUL J. WOOD
ROBERT E. WOODS, JR.
JACQUELINEMAR W. WRONA

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES NAVY UNDER TITLE 10, U.S.C., SECTION 624:

To be lieutenant commander

CHRISTIAN G. ACORD
FRANK P. AGCAOILI
JONATHAN R. ALSTON
MICHAEL J. ASCHE
TIMOTHY S. BLEVINS
MICHAEL S. BROCK
ROBERT A. BUCKLES
ANTHONY C. CAGLE
JASON R. CHAMBERLAIN
JASON E. DION
ISAAC J. DONALDSON
ANTHONY E. ELLIS
CHARLES W. GORNEY
GRANT K. GRAEBER
GLENN S. GREENLEAF
DANIEL J. HANSEN
JASON J. HUGHES
JEREMY J. HULS
BRUCE L. HUNT
CLIFTON E. JACKSON III
MATTHEW T. JOHNSON
KELLY A. KEISER
RICHARD E. KIDDER, JR.
KIRSTEIN S. LEWIS
DANIEL J. MACCABE
CRAIG T. MCLEMORE
THOMAS C. MCLEMORE
CHRISTOPHER J. MULLEN
CARLOS R. PESQUERA
CHRISTOPHER R. PISANI
SANTHOSH K. SHIVASHANKAR
CARLTON B. SUMMERVILLE
ANTHONY O. THOMAS
CHRISTOPHER J. WASEK
JON T. WENDE
JEFFREY A. WHITE
JEFFREY W. WHITSETT
BRIAN P. WORDEN

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES NAVY UNDER TITLE 10, U.S.C., SECTION 624:

To be lieutenant commander

AARON N. AARON
JOSEPH D. ANDERSON
KITAN BAE
KEVIN R. BARRETT
JASON J. BECKER
ANDREW R. BELDING
EHREN J. BITTNER
JOHN J. BOGDAN III
KENNETH W. BROOKS
WILLIAM B. CAMPBELL
ANTHONY J. CANTAFIO, JR.
JOSEPH E. CANTU, JR.
TYLER H. CARR
EREN D. CATALOGLU
NICHOLAS A. COLE
HOLLIE P. CRONLEY
MATTHEW G. DALTON
JOHN K. DOYLE
REGINALD C. FEWELL
ELIAS J. GEORGE
DONNA R. GILBERT
CHRISTOPHER P. HARNED
MARK G. HOFER II
JULIA M. HUBERTZ
ADAM T. HUMPHREY
WILLIAM R. HURD
MARK J. JACOBBI, JR.
CHRISTOPHER D. JOHNSON
KENYATTA M. JONES
VICTORIA A. KAYE
JOSHUA D. KHOURY
CARSON C. MCABEE
WYLIE MCDADE
CHAD M. MCDOWELL
MICHAEL N. PERKINS II
NICHOLAS J. RAUSCH
NATHANIEL D. RIGHTSELL
JEFFREY E. ROBINSON
DARREN J. ROGERS
JONATHAN J. SAHIM
BRIAN M. SALTER
MICHAEL C. SCHAEFER
ROBERT C. SELLIN
DAVID T. SPALDING
PHILIP J. STARCOVIC
JOSHUA C. STONEHOUSE
TONY V. H. TRAN
BRIAN K. VIDRINE
STEPHEN W. WILLIS
CHELSEY L. ZWICKER

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES NAVY UNDER TITLE 10, U.S.C., SECTION 624:

To be lieutenant commander

BRIAN F. BRESHEARS
ALEXANDER J. CULLEN
LYNNE H. EDWARDS
KYLE B. FRANKLIN
JAMES R. FRITZ
MARK A. HEBERT
CARTER L. JOHNSTON
COLLEEN M. MCDONALD
THOMAS J. MILLS
KYLE E. OBROCK
MICHAEL J. PAPA
WILLIAM A. SAUER II
JEFFREY D. SCOOLER
DAVID A. TRAMPP
GARY M. VINES
ROBERT D. T. WENDT
WALTER R. YOUNG, JR.
DAVID A. ZIEMBA

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES NAVY UNDER TITLE 10, U.S.C., SECTION 624:

To be lieutenant commander

DANIEL J. BRADSHAW
ROY D. CHESSON
JARROD GAZAREK
JOHN S. HANCOCK
JONATHAN S. KIM
EMILIE A. KRAJAN
STEPHANIE C. LASTINGER
JOSEPH F. LEAVITT
TIMOTHY B. LINDSAY
ROSS W. PETERS

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES NAVY UNDER TITLE 10, U.S.C., SECTION 624:

To be lieutenant commander

ARLO K. ABRAHAMSON
DAVID A. BENNETT
BRETT A. DAWSON
THERESA L. B. DONNELLY
TIMOTHY A. HAWKINS
FREDERICK M. MARTIN
MARISSA N. MYATT
TIMOTHY C. PAGE
SCOTT D. SAGISI
MEGAN M. SHUTKA
RENEE F. SOLTES
TIFFANI B. WALKER

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES NAVY UNDER TITLE 10, U.S.C., SECTION 624:

To be lieutenant commander

JAMES C. BAILEY
MIGUEL A. BERNAL, JR.
KACEY M. BOWMAN
JOSHUA I. CAMPBELL
CHRISTOPHER G. DANIELS
ANTHONY M. ELLERBE
CHARLES L. FISHER, JR.
JOSE R. GARCIA
GAVIN D. GUIDRY
CHAD C. JELSEMA
JAMES M. LANDRY
STEPHANIE R. MACKRIS
COLETTE M. PANAGOS
CHRISTOPHER T. SCHROCK
JASON R. STALEY
TOMMY T. Y. TONG
AMANDA J. WELLS

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES NAVY UNDER TITLE 10, U.S.C., SECTION 624:

To be lieutenant commander

ERIC S. KINZBRUNNER
JUSTIN M. LETWINSKY
MATTHEW M. MCCLURE
JASON T. MOSTACCIO
ERIC M. ZACK

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES NAVY UNDER TITLE 10, U.S.C., SECTION 624:

To be lieutenant commander

JERMAINE A. BAILEY
BRIAN J. BANAZWSKI
ALEXANDER B. BAYNES
TABITHA A. BOOTH
KERRY N. BOSCHE
BRENT A. BOTTOLFSON
JAMES J. COLGARY, JR.
JONATHAN S. CONNELLY
AARON C. DAUSMAN
YEVTTE A. DAVIS
SJAAK A. DEVLAMING
LARIE A. DIXON
AARON T. DOBSON
MICHAEL G. DODSON
SEAN M. DOHERTY
JASON W. DOWNS
MARK A. EWACHIW, JR.
EID F. FAKHOURI
DEREK E. FLETCHER
ETHAN J. JAWORSKI
DAVID P. JOHNSEN
RYAN D. JOHNSON
RAYMOND J. KILWAY II
AMY C. LEES
JAMIE S. MASON
MONIQUA J. MAXIE
MICHAEL P. MCCORMICK
ALEXANDER L. MCGINNIS
ADAM J. MILLS
ADAM M. OSBORN
JARROD M. OZEREKO
CHRISTOPHER J. PANDY
THOMAS E. PILKERTON
BRANDON H. PONTIUS
JAVAN A. RHINEHART
MICHAEL A. SAMMATARO
AMIEL B. SANFIORENZO
MATTHEW B. STROTHER
WILLIAM T. TAFT
SPENCER V. TALLEY
ROBERT D. TUTTLE
JAMES M. UPSHAW
GILBERT P. VIERA III
JAMES W. WALDREP
JOHNATHAN C. WALKER
JEFFREY K. WHITE
JEREMIAH J. YOUNG

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES NAVY UNDER TITLE 10, U.S.C., SECTION 624:

To be lieutenant commander

JEMAR R. BALLESTEROS
GINA M. D. BECKER
MAURA G. BETTS
CLINTON T. CERALDE
TESSA M. DENARO
WALTER D. ENOS
ANNETTE M. FELICIANORAMOS
JOSEPH S. FELIX
JOHN B. FIELDS
DANIEL E. FRIAS
ANDREW C. GERLA
BRIAN J. GROW
PATRICE R. HENTZ
SHAINA M. HOGAN
MARK D. JENKINS
ALLEN T. KEYS
EMILY J. KLOSSNER
RICHARD H. LAY, JR.
VIANNY LEMBERTSANTANA
JESSICA K. MORRIS
SABINA D. PAMARAN
SARAH C. M. PETTIT
BRIAN C. RICHARDS
JONATHAN C. RYAN
REYNEL SAA
ASHLEY P. TAYLOR
KAREN J. TEAGUE
NICHOLAS S. TURNER
GIULIANA M. VELLUCCI
ADAM P. WALSKI
ANNE L. ZACK

THE FOLLOWING NAMED OFFICER FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES NAVY UNDER TITLE 10, U.S.C., SECTION 624:

To be captain

CHRISTOPHER A. CEGIELSKI

THE FOLLOWING NAMED OFFICERS FOR TEMPORARY APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES NAVY UNDER TITLE 10, U.S.C., SECTION 5721:

To be lieutenant commander

KEVIN C. ANTONUCCI
CHRISTOPHER H. BLAND
MARSHALL T. BOYD
BERRY T. BROWN
TRAVIS C. BURNETTE
JASON CHUMA
MATTHEW B. DEBAUN
SCOTT A. EDMINSTER
BRYAN M. GALLANT
JEFFREY A. GARDNER
CHRISTOPHER J. HEINE
DANIEL K. HOLLINGSHEAD
JONATHAN A. HULECKI
LUKE H. I. IM
JEREMY R. JANNEY
DOMINIC J. KRAMER
JAMES C. LEASURE III
ANTHONY D. MACALUSO
SEAN M. MATSON
PATRICK L. MCCLERNON
MICHAEL N. MOWRY
DONALD NICHOLS, JR.
SAMANTHA A. ONEIL
MICHAEL P. ORFINI
TRAVIS B. POWELL
ROBERT RAMIREZ III
SCOTT M. REYNOLDS
SHAYNE J. SCHUMACHER
JEFFREY D. SCHWAMB
JAMES E. SHULER
JEREMIAH S. SMITH

JOSHUA M. SMITH
REID W. SMYTHE
WILLIAM C. STEWART
MATTHEW I. TENNIS
REEVES THURMAN
PAUL R. TRANBARGER
ANDREW J. VALERIUS
CHRISTOPHER W. VANLOENEN
ANDREW J. VINCENT
NELLIE WANG
JOSHUA D. WEISS

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES NAVY UNDER TITLE 10, U.S.C., SECTION 624:

To be commander

FERDINAND D. ABRIL
JEREMY P. ADAMS
DEAN E. ALLEN
ROSS B. CAMPBELL
FRANK W. CARROLL
SOMCHANH CAVANH
CRAIG A. CLUTTS
CHRIS M. COGGINS
JEREMY B. GATES
JOHN T. JEFFREY
PATRICK C. JORS
IAN M. KELLY
CHARLES B. KUBIC
STEPHEN T. LEPPER
ANDREW L. LITTERAL
PAUL F. MAGOULICK
ANCELMO J. MCCARTHY
JOEL D. MCMILLAN
JOSEPH M. OSULLIVAN
AARON W. PARK
RUSSELL S. PILE
JAMES M. ROCHE
SHAWN M. ROCKWELL
ATIIM D. SENTHILL
ANDREW J. SHINKA
TORBEN T. SMITH
ANDREW J. SONIER
DANIEL A. STOKES
MICHAEL J. WANGER
ALLEN E. WILLEY

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES NAVY UNDER TITLE 10, U.S.C., SECTION 624:

To be commander

MICHAEL D. AMEDICK
JOHN G. ANDERSON
MICHAEL R. BAKER
MATTHEW K. BERRENS
ROBERT N. BURNS, JR.
ALAN CAMERON
MICHAEL B. CHANEY
STEPHEN M. COATES
DAVID D. DINKINS
RANDALL D. EKSTROM
DANIEL W. HALL
ROBERT W. HALL
HENRY F. HOLCOMBE, JR.
THOMAS A. IANUCCI
JOHN R. LOGAN
ROBERT A. MOORE
WESLEY T. MYHAND
RONALD C. NORDAN
MICHAEL L. PHILLIPS
WILLIAM S. RILEY
RONALD T. RINALDI
RICHARD L. ROE
JAMIE J. STALLRYAN
DARREN L. STENNETT
DENNIS M. WHEELER

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES NAVY UNDER TITLE 10, U.S.C., SECTION 624:

To be commander

KERRY E. BAKER
FORREST D. BAUMHOVER
DANIEL L. BESSMAN
KEVIN L. BORKERT
MARK S. BOWMER
PETER M. BRAENDEHOLM
JOHN H. BREDENKAMP III
MATTHEW J. BRICKHAUS
FREDERICK H. CRAWFORD
KAREN R. DALLAS
ANDRES DIAZ
STEFAN EDWARDS
VINCENT V. ERNO
RICHARD C. GUSTAFSON, JR.
DALE A. HANEY
SHANNON B. HARRELL
BRIAN D. HENDERSON
RONALD L. HOAK II
TARA L. HODGE
JASON G. HOFTIEZER
DEREK P. HOTCHKISS
KELLY W. HOUSE, JR.
ROBERT J. JAMES
THOMAS R. JENKINS
MATTHEW S. JONES
PATRICK J. KELLY
SHANI S. LEBLANC
MICHAEL F. LORRAIN II
VALERIE M. MCCALL
CRAIG A. MIHALIK
JAMES D. OLEARY
STEVEN M. OSBORNE
GILBERTO P. PENSERGA
ALLEN RIVERA
DAVID W. RODEBUSH
SCOTT A. ROSCOE
MICHAEL P. RYAN
BENJAMIN L. SHEINMAN
ELISHA E. SINGLETON
FREDERICK H. SKINNER
TERESA A. STEVENS
CHRISTOPHER M. SWANSON
CHRISTOPHER C. TECMIRE
CHARLES M. TELLIS
JUAN C. URIBE
KRISTEN D. VECHINSKI
KRISTIAN L. WAHLGREN
SHANNON W. WALKER
DARYL M. WILSON
MICHAEL D. WINN

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES NAVY UNDER TITLE 10, U.S.C., SECTION 624:

To be commander

KENNETH R. BASFORD
JOHN G. BROOM
CHERYL L. COTTRELL
WILLIAM G. DANCHANKO
CHARLES E. DICKERSON
KENNETH L. FOLSOM
DAWN E. GALVEZ
JAMESETTA W. GOGGINS
RYAN P. GRISWOLD
ROBERT J. HAAG
SHAWN M. HARRIS
TOD A. HAZLETT
TED W. HERING
CYNTHIA A. HUTCHINSON
COREY A. JAGO
PATRICIA B. JOHNSON
LALON M. KASUSKE
CHRISTOPHER D. KEITH
MATHEW R. LOE
MARK A. LYNCH
HALEY T. MACEK
SUZANNE F. MALDARELLI
JESSICA NICHOLS
CHARLENE R. OHLIGER
HEATHER B. RAY
ROBERT J. ROADFUSS
TIMOTHY R. ROUSSELOW
JARED E. SCOTT
JAMI A. STAKLEY
KELLY E. K. VEGA
JOHN M. WATERS
ANDREW S. WILSON
KENNETH A. WOFFORD
JOHN P. ZALAR

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES NAVY UNDER TITLE 10, U.S.C., SECTION 624:

To be commander

BRIAN J. ELLIS, JR.
BRENT K. FAULKNER
RICHARD E. FEDERICO
DANIELLE M. HIGSON
SHANE E. JOHNSON
ROBERT T. KLINE
DEBORAH M. LOOMIS
JOHN M. MONTGOMERY
GREGORY W. SAYBOLT
HOLLIS N. SIMODYNES
MATTHEW J. SKLEROV
WILLIAM P. SMITH
GRETCHEN D. SOSBEE
IAN P. WOLF
SYLVAINE W. WONG

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES NAVY UNDER TITLE 10, U.S.C., SECTION 624:

To be commander

KEVIN S. BAILEY
STEVEN M. BAILEY
EDWARD A. BENCHOFF
JOSEPH L. BONVIE
RAYMOND M. BRISTOL
ERIC B. CARLSON
LORI A. CHRISTENSEN
CHRISTOPHER L. COOPER
SHAWN P. CRAWFORD
RODEL H. DIVINA
KARLTON K. DODSON
JUSTIN W. DOWE
GREGORY R. FAIRCHILD
DAWN M. FREEMAN
JOHN D. GARBRECHT
LEAH Y. GEISLINGER
JOHN S. GRIESENBECK
TIMOTHY D. HENNING
DANIELLE V. HICKS
CARY J. ISAACSON
JUSTIN C. LOGAN
KELLIE L. MCMULLEN
RYAN L. MESKIMEN
ROBERT C. MORRISON
JOSE E. NIEVES
OLAITAN F. OJO
EDWARD H. OWENS
JAMES W. PERRY
JACQUELINE L. POLLOCK
CHADWICK E. RAY
SHAWN E. SOUTIERE
HAZELANN K. TEAMER
DENNIS C. TOLENTINO
AMY C. VARNEY
BETH A. VEALEY
ANGELA M. WEBSTER
MATTHEW A. WEINER
LISA A. WHITE
THEODOR A. ZAINAL

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES NAVY UNDER TITLE 10, U.S.C., SECTION 624:

To be commander

DAVID L. BELL, JR.
ANDREW A. BOOKWALTER
JASON J. BREZOVIC
WILLIAM J. BURKE, JR.
MATTHEW W. CHANG
HEIDI S. ELLIS
MICHAEL A. GENTILE
CHRISTOPHER N. HANHILA
SUSAN E. HINMAN
KEVIN E. HUDSON
CHRISTOPHER S. KAPLAFKA
KHON H. LIEN
GARIN M. LIU
JOHN W. MCGEHEE, JR.
KEITH R. MERCHANT
JEFFREY D. NEAL
JEROME N. RAGADIO
MARK A. ROMANO
CHERI R. SMILEY
CALVIN B. SUFFRIDGE
JOSE A. SURIS
NATHAN J. WONDER

THE FOLLOWING NAMED OFFICERS FOR APPOINTMENT TO THE GRADE INDICATED IN THE UNITED STATES NAVY UNDER TITLE 10, U.S.C., SECTION 624:

To be commander

RUBEN D. ACOSTA
JOHN E. ALEX
KAIVON ARFAA
MARCO A. AYALA
ANDREW J. BALDWIN
THOMAS M. BALDWIN
MICHAEL M. BARNA
PATRICK L. BASILE
JARED D. BERNARD
LUKE F. BREMNER
ZACHARY W. BROWN
DAVID I. BRUNER
MICHAEL A. BUCKLEY
WAYNE M. BURR
MICHAEL A. BURT
COREY A. CARTER
KEVIN M. CASEY
WILLIAM K. CHIN
KENNY K. CHOI
ALISON M. CHRISTIE
MATTHEW S. CHRISTMAN
ERIN B. COAN
MICHAEL S. DENT
TODD J. ENDICOTT
RICK L. FISHER
ANDREW S. FLOTTEN
MICHAEL R. FRASER, JR.
JENNIFER C. FREEMAN
JERALD W. FROEHNER
DIANA C. FU
SATYEN M. GADA
ALEXANDER B. GALIFIANAKIS
PHILLIP G. GEIGER
JEFFREY W. GERTNER
CHARLES F. GOULD, JR.
SCOTT E. GRABILL
ADOLFO GRANADOS, JR.
MARION A. GREGG
ERIN A. GRIFFITH
NOA C. HAMMER
SCOTT M. HARLEY
JOSHUA M. HARRISON
BRADLEY W. HICKEY
THOMAS R. HICKS
STEVEN J. HOLLEY
ALEXANDER M. HOLSTON
KERRY A. HUDSON
CRAIG J. HURT
JEFFERY C. JOHNSON
SONOVIA L. JOHNSON
MICKAILA J. JOHNSTON
AHMIK L. JONES
LINDSAY E. JONES
MICHAEL R. KAPLAN
MICHAEL J. KAVANAUGH
BRYAN J. KEENAN
JOSHUA T. KINDELAN
MICHAEL C. KING
BRIAN T. KLEYENSTEUBER
ALAN S. LAM
SHANNON V. LAMB
EDWIN J. LANDAKER
IAN M. LAUGHLIN
RACHEL U. LEE
ELIZABETH A. LEONARD
SEAN P. LEONARD
PHILIP R. LETADA
JASON J. LONGWELL
ROBERT M. MARKS
MATTHEW R. MATIASEK
CARI E. MATTHEWS
DAMON M. MCCLAIN
JAMES M. MCDONALD
MICHAEL R. MELIA
TODD J. MONDZELEWSKI
JOSEPHINE C. NGUYEN
DANIEL G. NICASTRI
THOMAS W. NIPPER II
EMEKA O. OFOBIKE

TIFFANY M. OHTA
SHAUNA F. OSULLIVAN
AUSTIN L. PARKER
DOUGLAS E. PITTNER
TIMOTHY A. PLATZ
TRAVIS M. POLK
ANGELA M. POWELL
SHAWN D. REDDING
KENNETH E. RICHTER
LISA K. RIVERA
ANNE B. ROBERTS
RYAN C. ROCKHILL
GREGG W. SCHELLACK
TAMMY E. SERVIES
COREY A. SHAW
JAMES B. SOLOMON
MICHELE E. SPROSTY
DAVID A. STANECK
MELISSA R. STEGNERWILSON
DANIEL M. STULACK
DANIEL M. SUTTON
GUS THEODOS
DRAKE H. TILLEY
HEATHER J. TRACY
RALPH E. TUTTLE
GINA R. VIRGILIO
CHRISTOPHER M. WATSON
JIBRI M. WIGGINS
RASHAD C. WILKERSON
PAUL J. WISNIEWSKI
JASON A. YODER
DAVID M. YOU

CONFIRMATIONS

Executive nominations confirmed by the Senate July 17, 2014:

DEPARTMENT OF DEFENSE

DAVID B. SHEAR, OF NEW YORK, TO BE AN ASSISTANT SECRETARY OF DEFENSE.

EXECUTIVE OFFICE OF THE PRESIDENT

DAVID ARTHUR MADER, OF VIRGINIA, TO BE CONTROLLER, OFFICE OF FEDERAL FINANCIAL MANAGEMENT, OFFICE OF MANAGEMENT AND BUDGET.

EXTENSIONS OF REMARKS

RECOGNIZING THE SISTER CITIES OF OXNARD, CALIFORNIA AND OCOTLÁN, JALISCO, MEXICO

HON. JULIA BROWNLEY

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Ms. BROWNLEY of California. Mr. Speaker, today I rise to recognize the Cities of Oxnard, California, and Ocotlán, Jalisco, Mexico, as they celebrate fifty years of mutually beneficial cooperation and friendship through the Sister City Program.

Officially chartered by the United States—Mexico Sister Cities Association in 1964, the partnership between Oxnard and Ocotlán is one of the longest continuous Sister City relationships. As we reflect on fifty years of harmonious interaction, it is clear that the cities have been successful in their original mission to promote good will, friendship, and mutual understanding. These many years of welcoming cooperation between the two cities have built a strong foundation of reciprocal admiration and respect between people and communities of different countries.

Throughout the last fifty years, the Sister City program has established strong economic, educational, and cultural bonds, benefitting the people of both Oxnard and Ocotlán alike. The Sister City Committee has facilitated many donations of safety equipment, medical supplies, library books, and even three fire trucks, which provided the City of Ocotlán with the ability to establish its first fire department. When disaster struck Ocotlán after the 1992 earthquake, the City of Oxnard gladly assisted in emergency fundraising efforts.

The Sister City program has also extended many opportunities benefitting students from both cities. Ocotlán students participated in the Oxnard Union High School District's baseball tournaments in 1988 and 1989, and students in the Oxnard High School Band traveled to Ocotlán in 1993 and 1996 to help the city establish its first marching band. The program certainly deserves commendation for the investments it has made in the futures of these students.

I would like to recognize all members of the Oxnard Sister City Committee, including Officers: Mary Anne Rooney, President; Debra Cordes, Vice President; JoAnn Oliveras, Secretary; and Teresa Ramos, Treasurer; and Directors: Allison Cordes; Marsha Cordes; Dorian Guerrero; Priscilla Herrera; Adela L. Lambert; and Ben Wada.

I would also like to recognize all members of the Ocotlán Sister City Committee, including Officers: Jorge Mario Pérez, Presidente; Everardo Santos Ramos, Tesorero; and Jacinto Rodriguez, Rel. Publicas.

I want to congratulate the Cities of Oxnard and Ocotlán on this momentous occasion and look forward to the future accomplishments and successes that this relationship will foster.

INTERACTION

HON. TED POE

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Mr. POE of Texas. Mr. Speaker, Amarech Mana is a 28-year old mother living in a small Ethiopian village, hundreds of miles from the capital. She does her best to care for her sick child who is crying out in pain. She knows he needs water to survive, but she worries that the very water she uses to quench his thirst is filled with the very bugs that made him sick in the first place. This story is an all too common one when 884 million people around the world do not have access to clean water.

Coordinating and uniting the action of over 180 organizations, InterAction is helping poor people like Amarech around the world. InterAction is working to encourage transparency on foreign aid projects. InterAction's NGO Map collects project-level information to disseminate to donors, businesses, government, and the public. It is also working to push for new laws that require tougher evaluations of foreign aid projects. If we are not evaluating projects than we do not know what is sustainable or even making a difference over the short term.

InterAction's mission is to uphold human rights and ensure human dignity for the poor. It knows that the best way to accomplish this mission is to focus on sustainability. For example, InterAction not only helps dig wells to give poor people clean water but then teaches individuals how to fix the well when it breaks. This gives them the skills and opportunity to improve their own standard of living, long after InterAction and its partners are gone.

Water, sanitation, and hygiene are just some of the issues that InterAction addresses to improve the quality of life in the world's poorest communities.

At the end of the day, InterAction doesn't just improve the social and economic circumstances of the poor. It gives hope. Amarech Mana once feared for her son's life. Now she can hold him and enjoy the clean water supply provided by Concern Worldwide, a partner in the InterAction nonprofit community. The water supply serves 1,000 households in the area.

Children no longer have to trek for hours to get water before going to school. And they don't have to miss countless days of school due to dehydration or dysentery. InterAction is a testament to the positive change U.S.-based NGO partnerships are making throughout the world. I look forward to working with InterAction to ensure our foreign aid is transparent and rigorously evaluated so our taxpayer dollars can make a meaningful and lasting difference.

And that's just the way it is.

IN HONOR OF JOYCE STEVENS

HON. SAM FARR

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Mr. FARR. Mr. Speaker, I rise to bring to the House's attention the wonderful work of a California resident, Joyce Stevens. She is an environmentalist for all seasons and has done more in her quiet manner than any other single person in our community. She was a leading figure in the creation of the Big Sur Land Trust, the Monterey Bay State Seashore, the Fort Ord Beach State Park lands and numerous local parks and sanctuary lands protections. The residents of and visitors to the Monterey Bay region have Joyce to thank in no small way for the natural beauty they enjoy.

Joyce was born in Seattle, Washington in 1927. She graduated from the University of Washington in 1954 with a degree in architecture. Encountering gender discrimination in this ''man's field,'' and looking at the experiences of female civilians working for the government, she decided that she would be happier in that environment. As a single mother, she moved to Carmel, California in 1962 and took a job as Post Engineer at Fort Ord, working there until her retirement more than 20 years later.

One of Joyce's proudest achievements was designing the Post Chapel at Fort Hunter Liggett. It is located near the Hacienda, which was designed by another female California architect, Julia Morgan. She also convinced (pestered, actually) the army into protecting some rare native plant habitat at Fort Ord. Because of her persistence she had the satisfaction of seeing Fort Ord receive ecology awards.

Joyce's commitment to the community is unparalleled. She appointed herself full-time activist to save everything we all love about the Monterey Peninsula. As chair of the Ventana Chapter of the Sierra Club, she was devoted to protecting our local natural setting. She served on the Board of Trustees of Big Sur Land Trust, which is dedicated to preserving the wild lands of Big Sur. Joyce joined Pine Watch to educate people about the significance of our native Monterey Pine Forest, with the goal of creating a Monterey Pine State Park. She also created the Hatton Canyon Coalition to preserve the scenic beauty of Carmel and the canyon. But of all her work, my personal favorite was the time she spent with my father, the late State Senator Fred Farr, in forming the Odello Land Acquisition Fund, or OLAF, to preserve the open space at the mouth of the Carmel River. That land now forms the heart of Carmel River State Park.

For over 20 years Joyce served on the Carmel Area Wastewater District. She became known as the ''Sewer Queen'' for her work to save the Carmel River by encouraging the increased use of treated wastewater and thus reduce pumping from the river. She formed the Dunes Coalition to save the Monterey Bay

● This ''bullet'' symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

Matter set in this typeface indicates words inserted or appended, rather than spoken, by a Member of the House on the floor.

shores from development. Eventually this concept grew into the Monterey Bay State Shore.

Joyce Stevens has spent her life ensuring that the quality of life on the Monterey Peninsula be improved through sound land use management. She brings a voice of reason to every debate knowing so well the value aesthetics plays in our communities and the role resource protection adds to its economic value. Through interpretation, the education process is enhanced allowing the political leaders to enact best management practices. For all of us in elected office, her gift is our gain.

Mr. Speaker, on behalf of the Members of the House we thank her for her leadership, showing one person can make a difference, and wish her the happiest of birthdays.

RECOGNIZING VISIT ORLANDO

HON. DANIEL WEBSTER

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Mr. WEBSTER of Florida. Mr. Speaker, I am pleased to recognize Visit Orlando, the official tourism organization for the Orlando area, on its 30 years of service to our community.

Visit Orlando stands alongside Orange County and its member organizations to represent the Central Florida Hospitality Community and our area's leading industry, which is responsible for an economic impact of more than $54 billion annually. Since July 1984, Visit Orlando has worked with local organizations and assisted greatly in the marketing and advertising endeavors of its member organizations.

Serving as the largest tourism organization in the world, Visit Orlando focuses on maintaining the health of our tourism environment by globally marketing the area as a premier leisure, convention and business destination. Their partnership with Orange County and member companies has played a prominent role in making Orlando a great place to visit and to live.

It is a privilege to recognize Visit Orlando, and I would like to take the opportunity to thank this organization for its commitment to Central Florida and our hospitality industry.

IMMEDIATE END TO THE TURKISH OCCUPATION OF CYPRUS

HON. DINA TITUS

OF NEVADA

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Ms. TITUS. Mr. Speaker, I rise today to call for an immediate end to the Turkish occupation of Cyprus. This year we mark the 40th anniversary of Turkey's aggressive and illegal division of the island.

During their forty year occupation, Turkey has taken little action to bring peace and stability to the island. In fact, they have done just the opposite, bringing tens of thousands of settlers from mainland Turkey to live in the homes of Greek Cypriots and further complicate any solution to the Cyprus Problem.

The Turkish government has been complicit in the destruction of Greek churches and the systematic demolition of Greek culture in the northern areas of Cyprus.

Time after time, the Turkish Government has stood in the way of a mutually agreeable resolution. Despite the lack of commitment from the Turkish authorities, Cyprus remains committed to finding a settlement to reunify Cyprus in a manner that respects the rights of all inhabitants of the island. It is far past time for Turkey to seriously work on finding a solution to this problem.

Cyprus is a strong ally of the United States in an area of the world that can be unstable and unpredictable. It is critical that the United States strengthens our relationship with Cyprus, especially on issues such as energy and tourism.

ACKNOWLEDGING THE 40TH ANNIVERSARY OF THE ILLEGAL DIVISION OF CYPRUS

HON. CHERI BUSTOS

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Mrs. BUSTOS. Mr. Speaker, I rise today to bring attention to the current situation in Cyprus. This July 20th will mark the 40th anniversary of Turkey's invasion of Cyprus.

As a result of Turkey's invasion, Cyprus has been divided into two territories. The main part of the Island under control of the Republic of Cyprus, which has de jure sovereignty, and the northern section controlled and occupied by Turkish troops, which the international community does not recognize.

Because of this arbitrary and illegal division, thousands of Greek-Cypriot citizens have been unable to return to their homes, some of which have been confiscated or sold. Additionally, countless thousands of Turkish settlers and troops have inhabited the Northern territory since the Turkish invasion, in violation of UN resolutions and the Geneva Convention, and within the occupied territory, freedom of religion has been curtailed.

Mr. Speaker, I hope that progress can be made and diplomacy wins out to allow the reunification of Cyprus. In 2008, a wall that divided portions of Cyprus had been razed. That wall was seen as a symbol of the island's long-standing division. With luck, further headway can be made.

ACKNOWLEDGING KEITH HASKE

HON. DAN BENISHEK

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Mr. BENISHEK. Mr. Speaker, I rise today in support of Keith Haske, a storied basketball coach and school administrator from Northern Michigan who has recently been diagnosed with throat cancer.

Mr. Haske served as a head varsity boys' basketball coach in Northern Michigan since moving to the area in 1998. He initially coached at Charlevoix High School, where he compiled a tremendous record of 239 wins and just 78 losses. In these thirteen years he also amassed 10 district titles, 6 regional titles, 4 semi-final appearances, and 2 state runner-up titles. On top of that, he served as coach for the varsity girls program from 2004 to 2006, guiding them to a state title berth of their own.

Following his time at Charlevoix, Keith became the varsity boys coach at Traverse City St. Francis where he continues to find success. He recently led the team to a state runner up title in 2012.

It must be noted that as a coach Keith's impact transcends the wins and awards his teams have amassed over the years. The young women and men he has mentored over the years have looked to him for leadership and guidance, and his impact is seen all over the Northern Michigan community.

As Mr. Haske moves forward on a path to recovery, I would also like to send a heartfelt "thank you" and best wishes on behalf of the citizens of Northern Michigan to the Haske family— Barb, Ty, and Chelsey.

THE 40TH ANNIVERSARY OF THE TURKISH INVASION OF CYPRUS

HON. TONY CÁRDENAS

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Mr. CÁRDENAS. Mr. Speaker, Sunday, July 20th, marks the 40th anniversary of the Turkish Invasion of Cyprus.

I would like to express my unwavering support for the reunification of Cyprus. Since 1974, Cyprus has been wrought with conflict and tension between the northern Turkish Cypriot population and the southern Greek Cypriot population. This conflict has left Cyprus divided. Although I am encouraged by the recent support shown for Cyprus by my fellow colleagues in Congress and by Vice President BIDEN, who recently visited Cyprus and helped facilitate dialogue between both sides, only a Cypriot-led resolution can bring lasting peace to the country and region.

Cyprus is an important economic and geopolitical strategic partner for the United States. With its recent discovery of offshore gas reserves in the Eastern Mediterranean Sea, a stable, unified Cyprus can be an important economic and strategic ally for the United States and neighboring European countries. As such, it is important for the United States to continue to express its support for a re-unified Cyprus.

Moving forward, I hope that Greek Cypriot and Turkish Cypriot leaders can peacefully negotiate a just and enduring resolution to this conflict. I know that it won't be simple. I understand that given the situation's complexity, there is no silver bullet to a solution. A sustainable resolution will require patience and a genuine willingness from both Greek Cypriot and Turkish Cypriot leadership to seek a secure and stable re-unified Cyprus. However, in spite of these difficult realities, I am confident that a peaceful resolution can and will be achieved.

IN RECOGNITION OF MS. JEAN MAE ELIZABETH HASTINGS

HON. FRANK PALLONE, JR.

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Mr. PALLONE. Mr. Speaker, I rise today in commemoration of the life of Ms. Jean Hastings. Jean, a resident of Long Branch, New Jersey, passed away on July 10, 2014. She was a long time community leader whose memory will live on through all those whose lives she touched.

A graduate of Long Branch High School, Jean was a political activist. She was a Democratic Party Leader, proud of her work for the Schneider Team and President Obama. She worked for the City of Long Branch as a records clerk, was a member of the Martin Luther King, Jr. Guild of Long Branch and served as a Democratic Committeewoman for many years.

Jean leaves behind a loving and adoring family, including her son Harold, daughters Leslie Hill, Julia Hastings, Arlene Perozzi and Tanya Hastings, as well as siblings, grandchildren, great grandchildren, nieces and nephews.

Mr. Speaker, I sincerely hope that my colleagues will join me in honoring Ms. Jean Hastings for her dedication to her family and service to her community.

HONORING THE 50TH ANNIVERSARY OF FREEDOM SUMMER & THE CIVIL RIGHTS ACT OF 1964

HON. BENNIE G. THOMPSON

OF MISSISSIPPI

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Mr. THOMPSON of Mississippi. Mr. Speaker, I rise today to commemorate the 50th Anniversary of Freedom Summer and the Civil Rights Act of 1964.

The Civil Rights Act of 1964 is one of the most important laws enacted in this country. President Lyndon B. Johnson on July 2, 1964, signed this critical piece of legislation into law. The Civil Rights Act of 1964 is recognized as one of the most significant turning points in America's political and social development. In a country divided by racism and bigotry, the Civil Rights Act of 1964 made discriminatory practices in education, public establishments and by employers, illegal. This historic legislation served as a catalyst for efforts towards equality across the country. In addition, the Civil Rights Act of 1964, along with Freedom Summer marked the climax of intensive voter-registration activities in the South that began in 1961.

Prior to 1962, Mississippi faced significantly low levels of African-American voter registration. In fact, less than 7% of African-Americans were registered to vote within the state. In order to increase those numbers and register voters across the state Freedom Summer was born. While serving as an expanded voter registration project, Freedom Summer also helped to address the issue of the separate and unequal public education system. Efforts enacted during Freedom Summer established over 41 Freedom Schools attended by more than 3,000 young African-American students throughout the state.

Despite major challenges, Freedom Summer left a positive legacy. The well-publicized voter registration drives brought national attention to the subject of black disenfranchisement, leading to the 1965 Voting Rights Act, federal legislation that among other things outlawed the tactics Southern states had used to prevent blacks from voting. Freedom Summer also instilled among African Americans a new consciousness and a new confidence in political action.

Mr. Speaker, I ask my colleagues to join me in recognizing the 50th Anniversary of Freedom Summer and the Civil Rights Act of 1964.

RECOGNIZING SPECIAL FORCES SERGEANT RAMON RODRIGUEZ

HON. LORETTA SANCHEZ

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Ms. LORETTA SANCHEZ of California. Mr. Speaker, I rise today to recognize a valiant veteran, Special Forces Sergeant Ramon Rodriguez. At the age of 17, Sergeant Ramon Rodriguez began his military career during his junior year at Banning High School and decided to enlist in the Army with the help of the Juvenile Court system and his father's signature. After many years of training and being stationed in Germany, Sergeant Rodriguez was sent to Vietnam to serve his country. Sergeant Rodriguez embarked on dangerous missions and led his platoon through difficult obstacles during a mission in Phu Bai. While leading five soldiers into safety, Sergeant Rodriguez suffered from a bullet that shot him from behind.

In 1967, Sergeant Rodriguez was awarded the Army Commendation Medal for Heroism for his "fearless action while exposed to intense enemy fire". He was awarded with a Silver Star three times within a span of 34 days for his courageous service during the Vietnam War. Sergeant Rodriguez was also awarded three Bronze Stars with an Oak Leaf Cluster and five Purple Hearts during his 32 months of service in Vietnam for his heroism and act of valor against hostile enemy forces, and a total of 17 combat medals and awards for his service.

Sergeant Rodriguez attended the United States Ranger School and graduated with distinguished honors. After completing his service in Vietnam, Sergeant Rodriguez led the Special Forces scuba team at Fort Devens, Massachusetts and directed the team on a mission in Panama. Sergeant Rodriguez and his soldiers were responsible for the scuba and ranger training of armed forces from South American countries and established a ranger school in Honduras. In 1981, Sergeant Rodriguez earned the rank of Command Sergeant Major at the United States Sergeant Major Academy at Fort Bliss, Texas.

Sergeant Rodriguez completed two more assignments before officially retiring from the Army in 1983. In 1982, Sergeant Rodriguez was nominated for the Congressional Medal of Honor. On June 11, 2008, Sergeant Rodriguez was inducted as a member of the Ranger Hall of Fame. Sergeant Rodriguez is known to be one of the most decorated combat soldiers that served in the Vietnam War.

Sergeant Rodriguez remained in the United States Army for 23 years to serve the United States. Currently, he serves as Chairman of the Veterans and Military Commission for the County of Los Angeles.

It is an absolute honor to recognize Special Forces Sergeant Rodriguez and his years of service to this country. Sergeant Rodriguez and his fellow soldiers are an inspiration for their service, dedication and unending sacrifice. Sergeant Rodriguez's heroism and courageous acts during the call of duty saved the lives of his fellow soldiers and these acts of valor deserve the greatest recognition.

PERSONAL EXPLANATION

HON. MIKE THOMPSON

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Mr. THOMPSON of California. Mr. Speaker, on July 14, I was absent due to airline delays between California and Washington, DC and was unable to cast my vote for Rollcalls 405 and 406. Had I been present I would have voted:

Rollcall No. 405—"yes": To amend chapter 15 of title 44, United States Code (commonly known as the Federal Register Act), to modernize the Federal Register, and for other purposes. (386–0)

Rollcall No. 406—"yes": To provide for the establishment of a body to identify and coordinate international science and technology cooperation that can strengthen the domestic science and technology enterprise and support United States foreign policy goals. (346–41)

HIGHWAY AND TRANSPORTATION FUNDING ACT OF 2014

SPEECH OF

HON. RUSH HOLT

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 15, 2014

Mr. HOLT. Mr. Speaker, I rise today in opposition to this short-term highway bill because it fails to provide a funding mechanism that will guarantee the long-term solvency of the highway trust fund which is needed to spur investments in our nation's roadways, bridges, and public transportation infrastructure.

This is just another example of our failure to govern, and as a result we are sacrificing the jobs and economic development that are critical to the progress of our nation.

This is that same scenario that has occurred under the Republican leadership of the House over and over again: when we passed the last 2-year highway bill, with the farm bill, with the budget and debt ceiling.

These short-term extensions and governing by crisis make it nearly impossible to plan for future infrastructure needs. We have a crumbling infrastructure. We can't keep pretending to fund through phony accounting gimmicks. We actually have to put money into it.

About 90 percent of the revenue in the Highway Trust Fund is generated by a federal 18.4-cent-per-gallon tax on gasoline and a 24.4-cent-per-gallon tax on diesel fuel.

Federal fuel taxes have not been increased since 1993, and because of this stagnation the

gas taxes' buying power is about 40 percent below that in 1993.

If those taxes had been adjusted to keep pace with the consumer price index, for example, the tax on gasoline, which is currently 18.4 cents per gallon, would be about 30 cents per gallon, and the tax on diesel fuel, currently 24.4 cents per gallon, would be about 40 cents per gallon.

Other factors, such as increases in fuel efficiency, have reduced demand for fuel, causing the fund's overall revenues to fall.

Rather than proposing a bill that guarantees a long-term funding mechanism, such as an increased gas tax, the House brought to the floor legislation to fund highway projects for 8 months with a series of accounting gimmicks and one-time fund transfers.

The highway bill passed in the last Congress only authorized funding for two years. For two years we have known that this problem was coming, yet the House Ways & Means Committee has not had a single hearing on transportation finance.

We need to act to invest in our nation's transportation system, but under this bill we are simply dodging a problem. A real solution will require the political courage and leadership that we have failed to demonstrate here in the House, today.

HONORING JOSEPH ''BUDDY'' GIGLIOTTI, RECIPIENT OF AGC NYS

HON. RICHARD L. HANNA

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Mr. HANNA. Mr. Speaker, I rise today to recognize Mr. Joseph ''Buddy'' Gigliotti as a recipient of the Associated General Contractors New York State S.I.R. Award.

The S.I.R. Award is AGC of America's highest honor and it recognizes those who exemplify the AGC motto of Skill, Integrity, and Responsibility. In receiving the S.I.R. Award, Mr. Gigliotti joins the ranks of the true greats of AGC NYS and the construction industry in New York—including, most recently, Jeff Zogg; Marty Galasso, Sr.; and Richard Forrestel.

Mr. Gigliotti is a past President of the AGC NYS Chapter, and has become one of the industry's most respected leaders. We are well aware of the significant contributions he has made to the construction industry in New York State.

A lifelong resident of Utica, New York, Mr. Gigliotti joined Allied Chemicals in 1975 as the New York Area manager. After its merger with Barrett Industries, he served as Barrett's Marketing Manager. In his role, Mr. Gigliotti provided strategic consulting and sales strategy development, eventually helping Barrett become a national leader in transportation infrastructure construction. In 1990, Mr. Gigliotti left Barrett and continues to provide strategic consulting to companies under his firm, JGK Associates. He currently works for Lancaster Development, playing a key role in its marketing efforts.

Mr. Speaker, I wholeheartedly congratulate Mr. Joseph ''Buddy'' Gigliotti on this special occasion.

OUR UNCONSCIONABLE NATIONAL DEBT

HON. MIKE COFFMAN

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Mr. COFFMAN. Mr. Speaker, on January 20, 2009, the day President Obama took office, the national debt was $10,626,877,048,913.08.

Today, it is $17,603,731,782,433.70. We've added $6,976,854,733,520.62 to our debt in 5 years. This is over $6.9 trillion in debt our nation, our economy, and our children could have avoided with a balanced budget amendment.

PERSONAL EXPLANATION

HON. MIKE POMPEO

OF KANSAS

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Mr. POMPEO. Mr. Speaker, on rollcall Nos. 380, 382, 383, 384, 386, 387, and 401 I was unavoidably absent.

Had I been present, I would have voted ''nay.''

PERSONAL EXPLANATION

HON. RENEE L. ELLMERS

OF NORTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Mrs. ELLMERS. Mr. Speaker, on rollcall No. 418 I mistakenly voted ''no'' when my intention was to vote ''yes.''

PERSONAL EXPLANATION

HON. LUCILLE ROYBAL-ALLARD

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Ms. ROYBAL-ALLARD. Mr. Speaker, I was unavoidably detained and was not present for two rollcall votes on Wednesday, July 16, 2014. Had I been present, I would have voted in this manner: rollcall vote No. 415—Fleming of Louisiana Amendment No. 1—''no,'' and rollcall vote No. 416—Gosar of Arizona Amendment—''no.''

HONORING THE HEROIC SERVICE AND SACRIFICE OF INDIANAPOLIS METROPOLITAN POLICE DEPARTMENT OFFICER PERRY RENN

HON. SUSAN W. BROOKS

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Mrs. BROOKS of Indiana. Mr. Speaker, it is with a burdened heart I rise today to honor the life of a truly outstanding public servant, Officer Perry Renn. For more than three decades Officer Renn served his country and the City of Indianapolis with courage and integrity. Tragically, Officer Renn was killed in the line of duty on July 5, 2014.

Officer Perry Renn protected the citizens of Indianapolis for 21 years as a member of the Indianapolis Metropolitan Police Department. A career police officer, Renn made the conscious decision every day to place himself in harm's way to make Indianapolis a safer and more prosperous city. It was in this pursuit that he ultimately gave his life. On the night of his passing, Officer Renn was responding to a call of shots being fired in a residential neighborhood.

Day after day, Officer Renn displayed the compassion and integrity of a true public servant. After graduating from East High School in Phoenix, AZ, he began a 10 year enlistment in the United States Army's 82nd Airborne Division. During this time, Renn served his country as a paratrooper and jumpmaster. He served two tours in Korea and also helped to restore constitutional government to the island nation of Grenada during the 1983 liberation of the country, Operation Urgent Fury.

Yet another example of Officer Renn's heroism was shown in 2003 when he received the Indianapolis Metropolitan Police Department's Medal of Bravery for preventing an armed man from taking his own life. Every single day, Officer Renn displayed his admirable character and passion for helping others.

Few men and women are brave enough to answer the call of duty like Officer Renn. When he pinned on his badge the evening of July 5, no one could have dreamed that he would give his life so selflessly protecting the city he called home. As a former Deputy Mayor of Indianapolis and a member of the House Committee on Homeland Security, I am forever grateful to Officer Renn and to police forces all across the nation who work tirelessly to protect and serve their fellow Americans.

Officer Renn is a hero. His lifetime of service to the United States of America and the City of Indianapolis will never be forgotten. My condolences and well wishes go out to his wife, Lynn, and Officer Renn's entire family during this difficult time. My thoughts and prayers are with them.

HOUSE'S FAILURE TO CONSIDER HR 5051: THE PROTECT WOMEN'S HEALTH FROM CORPORATE INTERFERENCE ACT (NOT MY BOSS' BUSINESS ACT)

HON. LOUISE McINTOSH SLAUGHTER

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Ms. SLAUGHTER. Mr. Speaker, if anyone had told me that at the beginning of my career that I would fight 40 years for the right for contraception, I would never have believed it. We thought Griswold v. Connecticut had settled this, but no. It's been a constant war to control women, which is exactly what this is about.

Now, this audacious Supreme Court, which never fails to surprise, decided that bosses can tell you what kind of healthcare you can have and whether or not you can practice contraception. More specifically, the 5 men on this court decided whether women can have equal access to contraception.

And let's not forget, for male employees of these firms, their wives and daughters who are on their healthcare coverage will also be discriminated against and treated differently.

The stupidity of this Supreme Court decision is that it completely overlooks the fact that 58 percent of the women who get prescription oral contraceptives do it not just for birth control, but for another medical reason, such as endometriosis, ovarian cysts, or Polycystic Ovary Syndrome. Even those women will be out of luck, which means they don't have the same rights as all those men who buy Viagra. That's still covered.

The most dangerous thing that has happened here is that this court has set a precedent for the nearly 48 cases currently working their way through the courts filed by for-profit companies about contraception coverage. Those 48 cases now have this decision as legal precedent.

It is not beyond the realm of possibility that the idea of blood transfusions, vaccinations, and treatment for HIV/AIDS would no longer be covered. With this court, we are pedaling backward to the 19th century but I've got news for the five men on the court behind this decision: the women of America don't want to go! And this bill helps ensure that we don't.

H.R. 5051, The Protect Women's Health from Corporate Interference Act—also called the ''Not My Boss's Business Act''—would ensure that an employer that provides a group health plan for its employees does not deny coverage of a specific health care item or service to its employees or covered dependents of employees where that coverage is mandated by Federal law.

The bill specifically states the Religious Freedom Restoration Act does not excuse or relieve this duty, and allows for the existing exemption for houses of worship and accommodation for religious non-profit organizations that do not wish to provide coverage of contraceptives.

The women of this country don't want a court or anyone else to determine that they are second-class citizens, and this bill would put an end to that. And what we need is a vote. We're all here today to call on Speaker BOEHNER to bring this to the floor. Wouldn't that be something?

Mr. Speaker, the House has been given two opportunities to defeat the previous question: once on Tuesday, and another today. Both times, we offered an amendment to the rule that would have given Members an opportunity to consider reversing the damage done by the recent Hobby Lobby Supreme Court decision. Both times, the House has rejected this measure.

No employer should have the right to limit the health choices of its employees—male or female. It is pure discrimination, when 99 percent of women in this country have used some form of birth control during their lifetime—but now have to literally go to unreasonable measures to simply secure the fundamental health care they need.

PERSONAL EXPLANATION

HON. JUDY CHU

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Ms. CHU. Mr. Speaker, on July 15, 2014, I was unavoidably detained from votes due to a conflict. Had I been present on the House floor I would have voted as follows: ''no'' on rollcall No. 408, H. Res. 669, the rule providing for consideration of H.R. 5021, the Highway and Transportation Funding Act of 2014.

I would have voted as follows on amendments to H.R. 5016, the Financial Services and General Government Appropriations Act, 2015: ''aye'' on rollcall No. 409, the Jackson Lee Amendment; ''no'' on rollcall No. 410, the Roskam Amendment; ''aye'' on rollcall No. 411, the Moore Amendment; and ''aye'' on rollcall No. 412, the Waters Amendment.

RECOGNIZING MS. DOROTHY PARKS FOR HER 50 YEARS OF DEDICATED AND FAITHFUL SERVICE

HON. WILLIAM L. OWENS

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Mr. OWENS. Mr. Speaker, I rise today to recognize Dorothy Parks. I had the honor and privilege of working with Ms. Parks in Plattsburgh, NY for more than 30 years. She works hard every day, diligently and happily performing the tasks she is assigned.

This month will mark her 50th year at the firm where we both worked, she having started there on July 13, 1964. During her five decades at the firm, Ms. Parks earned the respect of all who came to trust and depend on her, including myself. She has guided many new staff and young lawyers, teaching us the ropes, if you will, with a smile and a gentle hand.

While working for the firm, Ms. Parks raised four children and now has six loving grandchildren for whom she is a dedicated grandparent.

Ms. Parks' employer, Stafford, Piller, Murnane, Kelleher and Trombley, will be recognizing her successful 50 year career later this month with a celebratory luncheon.

H.R. 5016, ''FINANCIAL SERVICES AND GENERAL GOVERNMENT APPROPRIATIONS ACT''

HON. EARL BLUMENAUER

OF OREGON

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Mr. BLUMENAUER. Mr. Speaker, I voted against H.R. 5016, the Financial Services and General Government Appropriations Act.

The bill cut too deeply into many important services—including an insane $340 million cut to the Internal Revenue Service (IRS). No business cripples its account receivables department and neither should we. The Congressional Budget Office has found that cutting the IRS's ability to enforce tax law ultimately costs more in lost revenue than the money saved in the initial cut. This is simply bad policy that does not save the government money.

I was pleased to see the rejection of an amendment offered by Representative FLEMING, which would have rolled back the Administration's guidance to banks seeking to provide services to state-legal marijuana businesses, and the adoption of an amendment offered by Representative HECK, which will increase access to these services. These were two strong votes to stop forcing state-legal marijuana businesses to operate only in cash, a situation that is unsafe and invites illegal activity. This was a victory for commonsense reform.

This was a rare bright spot, however, in otherwise reckless legislation that slows the enactment of effective financial regulations, reduces our ability to collect much-needed revenue and meddles in the affairs of the D.C. government. It was for these reasons that I opposed this legislation and was disappointed to see it pass.

INTRODUCTION OF THE ''PROTECTING EMPLOYEES AND RETIREES IN MUNICIPAL BANKRUPTCIES ACT OF 2014''

HON. JOHN CONYERS, JR.

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Mr. CONYERS. Mr. Speaker, when a municipality files for bankruptcy, its employees and retirees who have devoted their lives to public service—such as police officers, firefighters, sanitation workers and office personnel—risk having their hard-earned wages, pensions and health benefits cut or even eliminated.

This is why I am introducing the ''Protecting Employees and Retirees in Municipal Bankruptcies Act of 2014.'' This legislation strengthens protections for employees and retirees under chapter 9 municipality bankruptcy cases by: (1) clarifying the criteria that a municipality must meet before it can obtain chapter 9 bankruptcy relief; (2) ensuring that the interests of employees and retirees are represented in the chapter 9 case; and (3) imposing heightened standards that a municipality must meet before it may modify any collective bargaining agreement or retiree benefit.

While many municipalities often work to limit the impact of budget cuts on their employees and retirees, as was recently demonstrated in the chapter 9 plan of adjustment recently approved by Detroit's public employees and retirees, other municipalities could try to use current bankruptcy law to set aside collective bargaining agreements and retiree protections.

My legislation addresses this risk by requiring the municipality to engage in meaningful good faith negotiations with their employees and retirees before the municipality can apply for chapter 9 bankruptcy relief. This measure would also expedite the appellate review process of whether a municipality has complied with this and other requirements. And, the bill ensures employees and retirees have a say in any plan that would modify their benefits.

SECTION-BY-SECTION EXPLANATION

Sec. 1. Short Title. Section 1 of the bill sets forth the short title of the bill as the ''Protecting Employees and Retirees in Municipal Bankruptcies Act of 2014.''

Sec. 2. Determination of Municipality Eligibility To Be a Debtor Under Chapter 9 of Title II of the United States Code. A municipality can petition to be a debtor under chapter 9, a specialized form of bankruptcy relief, only if a bankruptcy court finds by a preponderance of the evidence that the municipality satisfies certain criteria specified

in Bankruptcy Code section 109. In the absence of obtaining the consent of a majority of its creditors, section 109 requires the municipality, in pertinent part, to have negotiated in good faith with its creditors or prove that it is unable to negotiate with its creditors because such negotiation is impracticable.

Section 2(a) of the bill amends Bankruptcy Code section 109 in three respects. First, it provides clear guidance to the bankruptcy court that the term ''good faith'' is intended to have the same meaning as it has under the National Labor Relations Act at least with respect to creditors who are employees or retirees of the debtor. Second, section 2(a) revises the standard for futility of negotiation from ''impracticable'' to ''impossible.'' This change ensures that before a municipality may avail itself of chapter 9 bankruptcy relief it must prove that there was no possible way it could have engaged in negotiation in lieu of seeking such relief. Third, the amendment clarifies that the standard of proof that the municipality must meet is ''clear and convincing'' rather than a preponderance of the evidence. These revisions to section 109 will provide greater guidance to the bankruptcy court in assessing whether a municipality has satisfied the Bankruptcy Code's eligibility requirements for being granted relief under chapter 9.

Bankruptcy Code section 921(e), in relevant part, prohibits a bankruptcy court from ordering a stay of any proceeding arising in a chapter 9 case on account of an appeal from an order granting a municipality's petition to be a debtor under chapter 9. Section 2(b) strikes this prohibition thereby allowing a court to issue a stay of any proceeding during the pendency of such an appeal. This ensures that the status quo can be maintained until there is a final appellate determination of whether a municipality is legally eligible to be a chapter 9 debtor.

Typically, an appeal of a bankruptcy court decision is heard by a district or bankruptcy appellate panel court. Under limited circumstances, however, a direct appeal from a bankruptcy court decision may be heard by a court of appeals. Until a final determination is made as to whether a municipality is eligible to be a debtor under chapter 9 of the Bankruptcy Code, the rights and responsibilities of numerous stakeholders are unclear. To expedite the appellate process and promote greater certainty to all stakeholders in the case, section 2(c) of the bill allows an appeal of a bankruptcy court order granting a municipality's petition to be a chapter 9 debtor to be filed directly with the court of appeals. In addition, section 2(c) requires the court of appeals to hear such appeal de novo on the merits as well as to determine it on an expedited basis. Finally, section 2(c) specifies that the doctrine of equitable mootness does not apply to such an appeal.

Sec. 3. Protecting Employees and Retirees. The chapter 9 debtor must file a plan for the adjustment of the municipality's debts that then must be confirmed by the bankruptcy court if it satisfies certain criteria specified in Bankruptcy Code section 943. Section 3 of the bill makes several amendments to current law intended to ensure that interests of municipal employees and retirees are better protected. With respect to plan confirmation requirements, section 3 amends Bankruptcy Code section 943 to require consent from such employees and retirees to any plan that impairs—in a manner prohibited by nonbankruptcy law—a collective bargaining agreement, a retiree benefit, including an accrued pension, retiree health, or other retirement benefit protected by state or municipal law or as defined in Bankruptcy Code section 1114(a).

Such consent would be conveyed to the court by the authorized representative of such individuals. Subject to certain exceptions, section 3 specifies that the authorized representative of individuals receiving any retirement benefits pursuant to a collective bargaining agreement is the labor organization that signed such agreement unless such organization no longer represents active employees. Where the organization no longer represents active employees of the municipality, the labor organization that currently represents active employees in that bargaining unit is the authorized representative of such individuals.

Section 3 provides that the exceptions apply if: (1) the labor organization chooses not to serve as the authorized representative; or (2) the court determines, after a motion by a party in interest and after notice and a hearing, that different representation is appropriate. Under either circumstance, the court, upon motion by any party in interest and after notice and a hearing, must order the United States Trustee to appoint a committee of retired employees if the debtor seeks to modify or not pay the retiree benefits or if the court otherwise determines that it is appropriate for that committee be comprised of such individuals to serve as the authorized representative.

With respect to retired employees not covered by a collective bargaining agreement, the court, on motion by a party in interest after notice and a hearing, must order the United States Trustee to appoint a committee of retired employees if the debtor seeks to modify or not pay retiree benefits, or if the court otherwise determines that it is appropriate to serve as the authorized representative of such employees. Section 3 provides that the party requesting the appointment of a committee has the burden of proof

Where the court grants a motion for the appointment of a retiree committee, section 3 requires the United States Trustee to choose individuals to serve on the committee on a proportional basis per capita based on organization membership from among members of the organizations that represent the individuals with respect to whom such order is entered. This requirement ensures that in a case where there are multiple labor organizations, the committee fairly represents the interests of the members of those various organizations on a proportional basis.

Finally, section 3 of the bill imposes a significant threshold that must be met before retiree benefits can be reduced or eliminated. Current law has no such requirement. In a case where the municipality proposes in its plan to impair any right to a retiree benefit, section 3 permits the committee to support such impairment only if at least two-thirds of its members vote in favor of doing so.

HONORING ED HATRICK

HON. FRANK R. WOLF

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Mr. WOLF. Mr. Speaker, I rise today to honor Mr. Ed Hatrick, who served as superintendent of Loudoun County Public Schools for 23 years before retiring on June 30.

Ed spent his entire career in Loudoun County, starting as a high school English teacher in 1967. He also served as a principal, director of special education, director of instruction, supervisor of guidance and foreign languages and assistant superintendent for pupil services before becoming superintendent in 1991.

As superintendent, Ed has watched Loudoun grow from a rural farming community with 8,000 students into a suburban community with a student population of 70,000 students. Since 1991, Loudoun County has constructed 54 new schools and renovated 33 more.

Ed has served as president of the Urban Superintendents Association of America and president of the American Association of School Administrators. He also has served in numerous professional and community offices and has been recognized for his work by the General Assembly of Virginia. He received an honorary doctor of humanities degree from Shenandoah University for his community service.

I am pleased to submit the following article from Leesburg Today on Ed's career and retirement. I ask that my colleagues join me in congratulating him for many years of distinguished service to our nation's youth.

[From Leesburg Today, June 24, 2014.]

SUPERINTENDENT HATRICK HONORED AS ''UNCOMMON COMMON MAN''

(By Danielle Nadler)

Even at 9:30 p.m. on a Friday, Edgar B. Hatrick III couldn't help but teach.

Standing in a sprawling ballroom with some of the commonwealth's most influential individuals at his retirement dinner, the 23-year superintendent and former high school English teacher launched into a metaphor.

He said, as geese fly in formation they offer encouragement to the lead goose through their honking, and when the lead goose tires, another pulls forward to take the lead. The story left many in the room chuckling. They'd heard it repeated at staff meetings and back-to-school orientations over the years.

Hatrick laughed with them, before finally interrupting the chatter to say, ''That's what being in Loudoun County Public Schools has been all about.

''I have felt the warmth, the support and the understanding that has led me to say if I had to do it all over again—the whole 47-and-a-half years—I would not change one thing,'' he said, fighting back tears. ''It has been just that wonderful to be able to work with you to build up this school system.''

Hatrick, 68, retires Monday as the region's longest serving superintendent. More than 500 people crowded the National Conference Center ballroom Friday to thank Hatrick for his service to help shape the learning experiences of hundreds of thousands of students in Virginia.

Politicians and fellow school administrators praised Hatrick for his influence on public education on a national and even global scale. He drew attention to Loudoun when it was the fastest growing school system in the country, opening 50 new schools to keep up with enrollment that has increased by 53,637 students during his tenure. And as former president of the American Association of School Administrators, he united superintendents to advocate better measures of schools' effectiveness than the federal No Child Left Behind model.

AASA Executive Director Dan Domenech described him as ''a recognized brand for education around the world.''

But it was the stories of Hatrick, from as early as his high school years when friends knew him as Skip, that best illustrate what he's been to Loudoun County, an individual the Loudoun Education Foundation called an ''uncommon common man.''

His former classmate Karolyn Whitely and Evan Mohler, former assistant superintendent for Support Services, described Hatrick as the student teachers wanted in

their classes, and the teen who set the bar on test scores and class projects.

''As a teenager, he was very focused and very hardworking,'' Whitely said.

''He was shaping education in Loudoun County back in 1962,'' Mohler said, ''and here we are 52 years later—he's still setting the standard of excellence.''

He spent his entire educational career in Loudoun's public schools, first on the payroll as a school bus driver during his senior year in high school. He graduated from Loudoun County High School in 1963 and returned to his alma mater after four years of college to teach English.

He especially loved teaching British literature, former Broad Run High School teacher Jo Ann Pearson recalled. So much so that he required one of his senior classes to memorize the bulk of the Canterbury Tales Prologue in Middle English.

Hatrick commented on this bit of leaked information later in the evening, saying, ''In my defense, I listened to each of them recite it.''

He served as assistant principal at Broad Run High School from 1969 to 1970, and as principal of Loudoun County High School from 1975 to 1978. He moved up the administration ranks to positions that had him overseeing special education, foreign language, instruction, planning and pupil services before he was named superintendent in 1991.

He served as superintendent under five school boards, and three former School Board members—Joe Vogric, John Andrews and Robert DuPree—did not hesitate to say that the superintendent was stubborn when it came to fighting for funding for public education.

Whether board members wanted it or not, he gave them his opinion, Vogric said, ''and it wasn't always done in a way that we liked it . . . . but it was about setting policies and taking actions to ensure the best education of our children.''

Most of the stories shared well beyond dinnertime Friday described Hatrick as a colleague, a mentor and a friend.

Whether a custodian or a principal loses a loved one, the superintendent can usually be seen at the funeral. Plays, football games, science fairs, club dedications, essay contests and, yes, retirement dinners, he's been there.

''We always knew that he cared about us,'' Pearson said.

''There's still a family feel about this district because that's how he wants it to be,'' Sharon Ackerman, who worked alongside Hatrick as assistant superintendent of instruction for 15 years, said.

W. John Brewer, principal at Dominion High School, joked that the school administration office, while called the Taj Mahal or ''the palace'' by some, ''from time to time it's simply the woodshed.'' He said Hatrick didn't scold principals or teachers but he used those moments to teach. ''He helped us grow personally and professionally,'' Brewer said. ''We've become better educators, and we've become better people.''

Whitely, who attended high school with Hatrick and later taught under his leadership, told a story about the superintendent's impression at their class's recent 50-year reunion. After a friend greeted Hatrick, she leaned over to Whitely and said, ''You know, success hasn't spoiled him one bit. He's still Skip.''

Eric Williams will officially take the helm of the school system as superintendent Tuesday.

HONORING HOOVER CASE

HON. BILLY LONG

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Mr. LONG. Mr. Speaker, I rise today to recognize and honor Hoover Case on having the Ozark Empire Fair Foundation's annual Gold Buckle Gala dedicated in his honor.

The Ozark Empire Fair Foundation was established in 2003 as a non-profit organization working to preserve Southwest Missouri's vast agricultural history and to sustain and better the Ozark Empire Fairgrounds.

Since 2004, the Foundation has held an annual gala to recognize the efforts of outstanding 4–H and FFA livestock exhibitors and to award grants and scholarships to local youths. In the ten years the event has been held, the Foundation has awarded almost $600,000 to local youths and raised over $521,000 in funds to be used for fairground improvements.

Each year, the Gold Buckle Gala is dedicated to a philanthropist that has shown outstanding support of the Foundation's goals. This year's recipient, Hoover Case of Marshfield, MO, has proved more than deserving. Case, a longtime auctioneer, created a mentoring program, Brangus for Kids, as a way of giving back to the purebred world and connecting kids with potential show animals. Case has also shown great support and love for the annual fair by being an involved volunteer. It is because of Case's continued dedication and commitment that the Foundation is able to impact the lives of so many.

I would like to thank Hoover Case for his continued support and devotion towards the Ozark Empire Fair and Ozark Empire Fair Foundation and congratulate him once again on having this year's Gold Buckle Gala held in his honor.

RECOGNIZING THE IMPORTANCE OF INTERNATIONAL ADOPTION

HON. TOM REED

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Mr. REED. Mr. Speaker, I rise today to recognize the importance of international adoption. Adoption is an important building block that contributes to strong and loving families for children and parents alike.

I recently met with a family from my congressional district which adopted a young girl from Nepal. The family experienced a great deal of difficulty throughout the adoption process, as evidenced by the numerous administrative roadblocks they encountered. However, the family persevered through the adversity and eventually completed the adoption process, welcoming a new daughter into their family.

The family's dedication to providing a better life for an orphan born into poverty on the other side of the world exemplifies the spirit of international adoption. The family's perseverance is a symbol of hope for the thousands of children living in orphanages around the world who yearn to become part of a loving and nurturing family. No matter the country or continent, children in each corner of the globe deserve to be part of a family.

As Americans, we should take every opportunity to offer a helping hand to those who are less fortunate. Today, there are thousands of orphanages with a growing number of children waiting to be adopted by a loving family that will provide sustenance, support, and stability. By providing these underprivileged children with the American ideals of hope and opportunity, we not only brighten their future, but America's future as well.

TRIBUTE TO DR. VINCENT HARDING

HON. DIANA DeGETTE

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Ms. DEGETTE. Mr. Speaker, on behalf of myself, Congressman JOHN LEWIS, and Congressman RUSH HOLT, I rise to honor the life of one of Colorado's most respected and honorable residents, Dr. Vincent Harding, who passed away May 19 at age 82. This remarkable man merits both our recognition and gratitude for his unwavering efforts to improve our society. He leaves behind an impressive record of leadership in social justice and education, and he made an enormous impact on many lives.

Vincent Harding lived a life of compassion and was committed to the ''beloved community'' that his friend and colleague, Dr. Martin Luther King, Jr., dreamed this country could become. We are fortunate to have been touched by such an intellectually gifted man. He was an historian, theologian, teacher, social justice activist, author, and much more. The legacy that Dr. Harding leaves behind should inspire us all to continue to build on the foundation of nonviolence, justice and equality. The passion and dedication with which he labored is evident in his life's work.

Born in 1931 in Harlem, Vincent Harding attended City College of New York, earning a BA in history. For the following 15 years he demonstrated his dedication to education as he earned a master's degree in both journalism and history as well as a PhD in history. Dr. Harding, along with his first wife, the late Rosemarie Freeney, a writer and activist in her own right, moved to Atlanta in 1961 to become involved in the American civil rights movement. There, he fought for equality as an advisor to Dr. Martin Luther King, Jr. Dr. Harding drafted several of Dr. King's speeches and is best known for writing his ''Beyond Vietnam'' speech, a landmark 1967 anti-war sermon. Following Dr. King's death, Dr. Harding wrote a book, Martin Luther King: The Inconvenient Hero, and he served as the first director at King's memorial center.

As a professor, Dr. Harding had an impact on countless students. He taught at a number of universities, including the University of Pennsylvania, Spelman College and Temple University, and he spent nearly three decades teaching at Denver's Iliff School of Theology. He founded the Veteran's Hope Project in order to preserve the lessons we have learned from social justice leaders. Dr. Harding's dedication did not end with his retirement. He still worked to achieve his vision of utilizing social justice activism to connect spirit, creativity,

and citizenship. He endeavored to heal America and make our country the beloved community Dr. Martin Luther King, Jr. had envisioned. His talent for teaching, gift of inspiring others, and capacity to relate to people of diverse racial, socio-economic and educational backgrounds means that his work will live on and continue to make a difference. Vincent Harding is an example of the life of commitment and courage we all can make.

Dr. Harding is survived by his wife, Aljosie Aldrich Knight; his daughter, Dr. Rachel Harding; and son, Jonathan Harding.

Please join me in commending Dr. Vincent Harding. His leadership in the search for justice, equity and truth continually enhances our lives and builds a better future for all Americans.

JOANN MOTT

HON. BILL PASCRELL, JR.

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Mr. PASCRELL. Mr. Speaker, I rise today to recognize JoAnn Mott who is being honored for her many years of service at the Haydon Corporation. Her friends, family, and coworkers will join together to celebrate her retirement tonight at the Brownstone in Paterson, New Jersey.

JoAnn Mott was born in North Carolina. She later moved to Tennessee where she met her future husband, Vincent Mott, who was stationed at the United States Air Force Base in Nashville.

In 1966, JoAnn and Vinnie moved to New Jersey upon Vinnie's discharge from the Air Force. It was then that JoAnn began working for New Jersey Bell for a short time before starting her career at the Haydon Corporation in 1968.

The Haydon Corporation is the leading manufacturer of strut metal framing systems and serves the industrial and commercial construction industries, as well as the communications and OEM markets. The Haydon Corporation is famed for their superior products but is truly defined by their outstanding customer service to all their clients.

JoAnn worked at the Haydon Corporation up until her retirement this year. JoAnn started off as a Sales Representative and was later promoted to Sales Manager. Today, she retires as the Office Manager. Her work ethic is second to none, and she truly embodies what it means to be a hard-working American.

As her Congressman, I am very pleased to have the great fortune of being able to honor such a marvelous member of our community. I sincerely wish Mrs. JoAnn Mott and her entire family the best. I consider JoAnn and Vinnie to not only be constituents of mine, but also good friends.

The job of a United States Congressman involves much that is rewarding, yet nothing compares to recognizing and commemorating the achievements of individuals like Mrs. JoAnn Mott.

Mr. Speaker, I ask that you join our colleagues, Mrs. Mott's family, friends, coworkers, and all those whose lives she has touched, and me, in recognizing JoAnn Mott.

RECOGNITION OF CRS CENTENNIAL

HON. CANDICE S. MILLER

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Mrs. MILLER of Michigan. Mr. Speaker, I rise today to recognize the 100th anniversary of the Congressional Research Service, otherwise known as CRS on Capitol Hill. CRS is a unit of the Library of Congress that provides policy analysis to Members of Congress and our staffs. CRS is a tremendous resource for Congress. In 1914, in its wisdom, Congress created the predecessor to CRS, named the Legislative Reference Service, to help support our work. In 1970, the Legislative Reference Service was expanded and became CRS. These days, we rely on CRS to provide us with authoritative and objective information so we can do our jobs. CRS has an impressive repository of reports on subjects we consider, and we look to CRS and the professionals who make up its workforce to provide us with factual and nonpartisan answers. I congratulate CRS on its Centennial, and we look forward to another 100 years of service to Congress.

HONORING TINDLEY TEMPLE UNITED METHODIST CHURCH

HON. ROBERT A. BRADY

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Mr. BRADY of Pennsylvania. Mr. Speaker, I rise today to honor the Tindley Temple United Methodist Church's celebration of Nelson Mandela on July 18, 2014.

Nelson Mandela has inspired so many through his work as a revolutionary leader in the South-African anti-apartheid movement, and his later career as a politician and philanthropist left a lasting legacy. Mandela's leadership and participation in peaceful protests against the oppressive regime in South Africa led to his incarceration, and he became the face of the anti-apartheid movement. As the President of South Africa, he was the nation's first black chief executive, and the first elected in a truly democratic election. Under Nelson Mandela, the government worked tirelessly to break through the institutionalized racism, poverty, and inequality that had long plagued the nation. After he left office, he continued to work as a global advocate for human rights.

On July 18, the Tindley Temple United Methodist Church will celebrate the legacy that Nelson Mandela created. The Tindley Temple United Methodist Church is well known in Philadelphia for being the birthplace of gospel music. Dr. Charles Albert Tindley, a pastor of the Church during the Depression, is renowned for composing more than 60 hymns, including ''Stand by Me'' and ''We'll Understand It Better By and By.'' They work in service to the community through their soup kitchen, and in their aid to the ill and underprivileged in the area.

It is a privilege to recognize this celebration of a person whose leadership and commitment have inspired and supported so many around the globe. I ask you and my other distinguished colleagues to join me in commending the Tindley Temple United Methodist Church for honoring Nelson Mandela in their celebratory day.

COMMENDING S.P. MANDALI'S NARALKAR INSTITUTE

HON. ENI F.H. FALEOMAVAEGA

OF AMERICAN SAMOA

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Mr. FALEOMAVAEGA. Mr. Speaker, I rise today to commend the Shikshana Prasaraka Mandali, or S.P. Mandali, for their vision and contribution to the Indian state of Maharashtra. S.P. Mandali, a historic education society in India, was established 125 years ago on May 2, 1888.

S.P. Mandali has made significant contributions in developing and improving the quality of education in Maharashtra by founding and managing more than 40 institutions in Pune, Mumbai, Bangalore, Solapur, Chiplun, Nagothana, and other municipalities that provide education from kindergarten to graduate level courses.

I am grateful for the leadership of the S.P. Mandali: President—Shri Bal J. Pandit, Vice President—Shri. Sushilkumar Ruia, Chairman (Managing Council)—Shri. A.S. Dadhe, Vice Chairman (Managing Council)—Shri. A.N. Mate, and Secretary—Shrimati Nanda Mane, for their hard work and commitment to education.

I want to take this opportunity to specifically recognize the Naralkar Institute of Career Development and Research (NICDR) that was started by S.P. Mandali in 1986. The NICDR was established and named in honor of the late Principal Nanasaheb Naralkar who was a great educator in Pune. The NICDR is affiliated with the University of Pune and is recognized as a research center for the Ph.D. program in Management Science. NICDR in the last twenty years has created many partnerships with different businesses and industries in the Pune region. NICDR offers many computer and vocational courses that use state of the art equipment for hands-on-training that include software and computer programming. NICDR's high standard of curriculum and meticulous trainings sets them apart from the many other institutions in Pune.

I would like to acknowledge the hard work of the Director of NICDR, Dr. G.K. Shirude, his staff, and faculty for their tremendous contributions in improving the quality of education and empowering students in becoming competent managers in many fields. I would be remiss if I did not also recognize members of the Managing Committee of NICDR: Chairman—Shri. A.S. Dadhe, Members—Adv. Jayant Shaligram, Shri. A.N. Mate, Shri. Ajay Datar, Shri. V.V. Joshi, Prof. Seema Bapat, and Mrs. Jyoti S. Joshi.

Dr. Shirude and the Managing Committee of NICDR have embarked on a pathway to possibly establish community colleges in Maharashtra. In the U.S., we have had community colleges for more than 100 years and have been a critical component in our education system. However, in India, this concept is brand new. The establishment of community colleges in India will provide greater access to education for the large population of Indians

who live in rural and remote locations. It will also allow for many individuals to receive specialized training in fields that are necessary or required by local industries and businesses.

This pathway will be possible with the assistance of many stakeholders, including Captain Shivaji Mahadkar and Mr. Sanjay Puri. Captain Shivaji, a retired commando of the Indian army, a former General Secretary for the Sinik Cell of the Maharashtra Pradesh Congress Committee, and an active trustee for many educational trusts in Maharashtra, has worked closely with Indian universities in building partnerships with other institutions in Germany, United Kingdom, and the U.S. I thank him for his service and dedication to improving the quality of education in India. His collaboration with Mr. Sanjay Puri, founder and Chairman of the Alliance for U.S.-India Business, will be instrumental in advancing education in India. I know that this venture in education between U.S. and India will be beneficial for both sides.

40TH ANNIVERSARY OF THE DIVISION OF CYPRUS

HON. THEODORE E. DEUTCH

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Mr. DEUTCH. Mr. Speaker, I rise in commemoration of the 40th anniversary of Turkey's invasion of Cyprus, which began a conflict that continues to this day.

Since July 20, 1974, Turkey has occupied the northern territory of Cyprus, denying thousands of Greek Cypriots the right to return to their homes and imposing severe restrictions on their property rights and religious freedoms. They continue to block the exhumation of mass graves, even under UN supervision, leaving hundreds of cases of missing people unresolved.

Cyprus should not be expected to accept anything less in terms of fundamental democratic rights than any American would accept. A final resolution must be determined by the Cypriots and for the Cypriots.

I am encouraged that both parties agreed to a Joint Statement which lays the foundation for future resolution talks, and I applaud President Anastasiades' proposed confidence-building measures as helpful ways to facilitate the negotiating process.

I also wish to recognize the incredible achievements by Cyprus despite the ongoing conflict.

Cyprus has flourished as a nation and grown as a democratic stalwart in the eastern Mediterranean. This ally of the United States has helped progress U.S. interests in the region, including their integral role in the removal of chemical weapons from Syria.

As a member of the European Union, they helped push the body to designate Hezbollah a terrorist organization. Their recent discovery of offshore natural gas will not only provide a significant revenue stream for the country, but also creates opportunities for cooperation with Israel and offers an alternative energy source for the EU.

As a co-chair of the Congressional Hellenic-Israeli Alliance Caucus, I will continue to promote greater collaboration between Congress, Israel, Greece, and Cyprus.

This conflict has continued for far too long, and I call on both parties to resume negotiations and work toward a permanent resolution.

IN HONOR OF THE SILLER FAMILY, A TRIBUTE TO TUNNEL TO TOWERS

HON. MICHAEL G. GRIMM

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Mr. GRIMM. Mr. Speaker, I rise today in honor of the Siller Family who lost their youngest brother, Stephen, of the FDNY's Squad One on 9/11. On the morning of 9/11 Stephen was off-duty when he heard the news. He quickly radioed in and told Squad One he would join them back at the Towers. When he got to the Brooklyn Battery Tunnel it was closed, so he strapped on sixty pounds of gear and ran through traffic towards and up and into the Towers to rejoin his FDNY brothers and help save others. Stephen was never seen or heard from again. His courage and sacrifice are a true reflection of all those who died on that day, and of our troops, who are willing to give that last full measure for us all. And out of all this heartache, his family has created a magnificent foundation to raise money to build homes for our Wounded Warriors and get families back on their feet after Hurricane Sandy; triumph out of tragedy. Stephen left behind a wonderful wife and five beautiful children, our prayers go out to them and all of those families who gave all on 9/11. I submit this poem penned in their honor by Albert Carey Caswell.

TUNNEL TO TOWERS

As into that tunnel your heart so led!
Running through traffic up into those towers you sped!
While Stephen,
Getting closer to Heaven with every step!
All out there on that edge . . .
Between life and death . . .
As your fine heart began to crest!
For our world to bless!
But for The Greater Good!
Stephen you,
And Squad One in all you could!
''Go Together . . . Stay Together'',
to catch up to them as you would!
To do what must so be done!
While, so willing to give up all of your future sun's!
Just like all of our brave men and women,
Of The Armed Forces these ones!
To shine bright like America's son!
So brilliant like this one!
While, all in that moment of truth . . .
What your fine heart so begun!
Showing us all so the proof!
Of how angels are begun!
As thy kingdom come,
On Earth as it is in Heaven will be done!
And from that tunnel to towers . . .
While, all in those darkest of all hours!
Stephen,
As upon us your light would so shower!
Because,
On this day you weren't coming home my son!
As such selflessness so shown in all these ones!
Just like our men and women who live now without arms and legs,
Who from war come home this day!
Showing us all,
That through darkest of all hours!
It's Faith, Hope, and Courage which above all else so towers!
And holds the greatest of all powers!
As Stephen,
Step by step your climbed those towers!
Alongside all of your Brothers,
As the Angels on high cried in those hours . . .
You go . . . I go . . .
As was your most heroic creed and its power!
To save precious lives!
As why here I stand with tear in eye!
And up to heaven as a new Angel you'd rise!
And from out of all of this heartache and pain!
Of a broken hearted family love so came . . .
Out of the ashes which would remain!
Your family's great love,
Something which would so honor your name!
To give back to all of our Brothers and Sisters In Arms!
And to all of those American families who must go off to war,
And come back in such heartache and harm the same!
A chance,
To rebuild all of their most precious lives to reclaim!
For you have died Stephen,
But you are not gone!
Now all in your name and memory,
This Foundation lives on . . .
Yes Stephen,
In your honor look what was born!
Which, but put's its arms around all of our wounded warriors so warm!
Because moments are all we so have!
To live and die for something worthwhile!
And make all of the Angels up in Heaven so smile!
To climb to the mountain top!
To move onward when others stop!
As why on bended knee Stephen all in your name,
And your brothers who died with you the same . . .
We honor our troops who like you were so ready to die in faith's name!
For all of those heroes,
Who come back home to rebuild their shattered lives!
To give them all a future,
A warm home,
And some hope so all inside!
Telling them hero your not alone!
As they run to recovery proving a home!
As we discover how like yours Stephen,
How much strength a heart can so own!
When Johnny comes marching home!
Tunnel to Towers,
Will be there for your America's heroes throughout all of the hours!
Just like 9/11,
We Will Never Forget what all your hearts so own!
So our Brothers and Sisters,
Our wounded warriors . . . you will never be alone!

STATEMENT ON THE 40TH ANNIVERSARY OF ILLEGAL OCCUPATION OF CYPRUS

HON. CAROLYN B. MALONEY

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Mrs. CAROLYN B. MALONEY of New York. Mr. Speaker, today I rise in honor of July 20th, a special day of remembrance for the families and loved ones of all those who have suffered so greatly as the result of one of the biggest national tragedies in modern Greek History—the 1974 illegal invasion and

occupation of the island of Cyprus by Turkish soldiers.

On July 20th, 40 years will have passed since the invasion forced nearly two hundred thousand Greek Cypriots to leave their homes in the occupied area and become refugees in their own country.

Turkey continues to forcibly occupy more than one-third of Cyprus with more than 43,000 troops. This amounts to almost one Turkish soldier for every two Turkish Cypriots.

To date, Turkey has repeatedly ignored all U.N. Resolutions pertaining to Cyprus and has continued to occupy the island in complete violation of international law.

As the co-chair and co-founder of the Congressional Hellenic Caucus, I fully support the reunification of Cyprus, and I am encouraged by the commitment of the Government of Cyprus to the UN-sponsored reunification talks.

I believe the partnership between America and Cyprus is based on mutual respect, a commitment to common goals, and a sharing of fundamental values.

I hope the recently renewed peace talks will allow Cyprus to take advantage of their gas reserves in the Eastern Mediterranean, and the ability to work with another strong ally, Israel, to deliver natural gas to Europe.

It is up to Congress to continue to make our voices heard on our ultimate goal of a reunified and prosperous Cyprus where Greek Cypriots and Turkish Cypriots can live together in peace, security and stability.

RECOGNIZING POLLY'S FREEZE

HON. TODD C. YOUNG

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Mr. YOUNG of Indiana. Mr. Speaker, my home state of Indiana takes great pride in creating an atmosphere conducive to small business innovation and entrepreneurship. When locally owned businesses are given the opportunity to succeed, families, workers, and the surrounding community all benefit. Once such example is Polly's Freeze, a popular ice cream shop just outside of Georgetown, Indiana. Polly's Freeze is a classic tale of American entrepreneurship. Elmer and Polly Gleitz purchased an abandoned filling station with the intention of restoring the facility and reopening it. After some consideration and a clever suggestion from Polly, the Gleitz family abandoned those plans and decided to turn the property into an ice cream shop and food stand. Sixty-two years later, Polly's Freeze stands as a model for excellent service and delicious ice cream that attracts large crowds all season long.

After opening in 1952, Elmer and Polly ran the business for several years until they passed it on to their children George, Donna, and Delores. Donna and her husband Paul continued the tradition until their retirement in 2009. Subsequently, Polly's was left to Penny Bodner, an employee of thirty-two years and friend of the family. The business is now under the direction of Cara and Mike Rothrock, also longtime employees, who are dedicated to sustaining Polly's reputation for quality products and service in a family-friendly environment.

From all across southern Indiana, residents can identify the iconic neon Polly-the-Parrot sign resting just to the side of Highway 62. It serves as a guide to Hoosiers who are looking for some good food or a cool treat on a hot summer's evening. Polly's has long been the gathering spot for youth sports teams who stop by after games to celebrate with Polly's famous upside-down banana split or their legendary orange sherbet. Polly's also provides patrons with a variety of food items such as the Pollyburger and their ground beef barbecue—a secret recipe known by only a few employees. Kids and adults alike are attracted to Polly's for its comfortable 1950's-like atmosphere, creating the perfect place to reconnect with old friends or even make new ones.

Polly's Freeze has become a landmark in Southern Indiana, exemplifying the entrepreneurial spirit that has built this great nation. For over six decades, Polly's has provided generations of loyal patrons with lasting memories, as well as great food and cool treats. I would like to congratulate Polly's Freeze for their dedication to both their customers and the community—and I wish them continued success for many years to come.

INTRODUCTION OF THE FEDERAL AGENCY SNOW REMOVAL IN THE DISTRICT OF COLUMBIA ACT OF 2014

HON. ELEANOR HOLMES NORTON

OF THE DISTRICT OF COLUMBIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Ms. NORTON. Mr. Speaker, The Federal Agency Snow Removal in the District of Columbia Act of 2014, which I introduce today, is a bill that I have worked on with the National Park Service (NPS), at its request, to create greater efficiency and to remove snow from federal agency property in the District of Columbia in the most efficient way.

The bill amends a 1922 law by making federal agencies in the District responsible for the removal of snow and ice in public areas associated with their buildings instead of NPS. For years, agencies have taken this commonsense action in the District and assumed this responsibility, but the law has never been updated to reflect this practice, leaving NPS with legal liability. This bill simply brings the law in line with current practice.

I ask that my colleagues support this no-cost bill.

HONORING THE CONGRESSIONAL RESEARCH SERVICE (CRS) AT THE LIBRARY OF CONGRESS ON ITS 100 YEAR ANNIVERSARY

HON. JOHN B. LARSON

OF CONNECTICUT

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Mr. LARSON of Connecticut. Mr. Speaker, today, we celebrate the 100 year anniversary of the Congressional Research Service at the Library of Congress. In honor of their history and continued pursuit of knowledge, I would like to commemorate CRS as we celebrate this milestone today.

CRS stands as an invaluable and respected institution in Congress—providing insight, research, and in-depth analysis on a wide range of issues. A Progressive-era invention, this service has evolved over the last century, growing in both size and scope since Wisconsin Senator Robert LaFollette first championed the idea.

In the 100 years since their inception, CRS has steadily provided comprehensive and objective research to the entire legislature. My staff and I have repeatedly benefited from the nonpartisan expertise provided by CRS and are fortunate that they continue to serve as a shared workforce for Congress. At a time of unprecedented partisanship in Washington, CRS has remained the unbiased repository of knowledge our nation needs.

Congratulations to the Congressional Research Service and its dedicated staff on this special day. I'd like to submit for the RECORD—a brief history of CRS:

FORMATION

The Congressional Research Service (CRS) is a service unit of the Library of Congress.

The idea of a legislative reference service for Congress was first championed by Sen. Robert M. LaFollette Sr. (served in the House from 1885–1891, and in the Senate from 1906–1925), and Rep. John M. Nelson (served in the House from 1906–1919, and from 1921–1933).

Supporters realized their goal through a Senate floor amendment offered by Rep. LaFollette to the Library's 1915 appropriations bill.

Librarian of Congress Herbert Putnam established the Legislative Reference Service (LRS) in the Library of Congress by administrative order on July 18, 1914.

In its early years, LRS provided basic reference services to assist lawmakers in their work.

Both LRS in 1914, and CRS today, benefits from the Library's collections for its research, analysis, and dissemination of information and materials to assist the Congress.

EVOLUTION

By the 1940s and following World War II, demands on LRS had increased significantly.

The 1946 Legislative Reorganization Act (LRA) called for an increase in the size and scope of LRS and directed it to hire expert policy specialists to provide expertise to Congress in subject fields aligned with a new committee system.

In 1970, the Service underwent another transformation with the passage of the LRA which renamed it the Congressional Research Service.

Emphasizing the fact that the research and informational needs of the Congress required the services of highly-skilled experts, the 1970 Act mandated that CRS provide authoritative and objective research and analysis as well as close support for Members and committees.

The Service evolved into a 21st century organization that utilizes formats and delivery methods (e.g., CRS4Congress Twitter, CRS.gov, Congress.gov) for CRS products and services.

CRS TODAY

Today, CRS provides comprehensive, objective, and non-partisan research and analysis to the entire Congress on all legislative and oversight issues of interest. In the Second Session of this Congress, CRS identified over 150 issues of interest to Congress that they could support.

CRS provides reports, confidential memoranda, briefings, and programs to Congress about policy issues and the legislative process.

CRS has a diverse workforce of over 600 analysts, attorneys, information professionals and support staff. The workforce is composed

of expert, highly-trained, and collaborative professional staff, dedicated to supporting the work of Congress.

In FY2013, Members and committees received information and analysis from CRS in more than 636,000 responses that took the form of 67,000 requests for custom analysis and research, 9,000 congressional participations in 350 seminars, and over half a million instances of Website services.

CRS is a repository of objective knowledge and expertise that Congress can rely on when making difficult policy decisions.

THE OCCASION OF THE FIFTIETH ANNIVERSARY OF THE OAKLAND LIVINGSTON HUMAN SERVICE AGENCY

HON. GARY C. PETERS

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Mr. PETERS of Michigan. Mr. Speaker, I rise today to recognize the Oakland Livingston Human Service Agency's (OLHSA) 50th Anniversary. OLHSA, founded in 1964 as a part of President Lyndon B. Johnson's War on Poverty, provides over 70 collaborative programs to the elderly, disabled, and low-income residents of Oakland and Livingston Counties.

Created with the mission of empowering individuals to attain self-sufficiency, OLHSA has developed a long record of success. Just last year, it provided information, advice, and material assistance to over 50,000 people—support that helped them to improve their own lives, as well as the vitality of their communities. OLHSA provided them with crucial resources such as food assistance, tax preparation, financial planning, foreclosure prevention counseling, referral guidance, early childhood development and energy assistance.

Recognizing the key role that education plays as a tool that empowers individuals to shape their own future, OLHSA has directed significant resources into education at the youngest ages with its Head Start program. Centered on the principle of involving parents directly in their children's learning process, OLHSA sees its Head Start program as a vital component of its efforts to break the poverty cycle. Through this program, OLHSA continues to demonstrate its commitment to strengthening communities by providing the basic services that enable its clients to attain prosperity.

Veterans facing housing insecurity can also turn to OLHSA to access the VA Supportive Services for the Veteran Families program, which was created with the goal of eliminating homelessness amongst veterans and their families. By providing case management, rent payment assistance, and emergency housing, OLHSA energetically works to ensure that veteran families in Oakland and Livingston Counties receive the housing and peace of mind they deserve.

Mr. Speaker, as the Oakland Livingston Human Services Agency celebrates its 50th Anniversary of service to communities across Southeastern Michigan, I ask my colleagues to join me in recognizing the remarkable impact it has made on its clients. Thanks to OLHSA's leadership and the dedication of its staff, many tens of thousands of residents of Oakland and Livingston counties of Michigan have received support at critical moments in their lives. In the face of the recent economic challenges in Michigan, OLHSA's programs were vital to families' continued well-being. I congratulate OLHSA's staff on all of their organization's accomplishments over the last five decades and I look forward to continuing to work with them to strengthen the Southeast Michigan community by empowering its residents with the necessary tools to build a successful future.

INTRODUCTION OF THE PREVENTING TERMINATION OF UTILITY SERVICES IN BANKRUPTCY ACT OF 2014

HON. JOHN CONYERS, JR.

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Mr. CONYERS. Mr. Speaker, utility companies provide many basic and life-saving services, such as electricity to light our homes, water to drink, and gas to heat our homes. Sometimes, however, individuals, through no fault of their own, struggle to pay for these services often in the face of devastating medical debt, job loss, or economic disruption caused by divorce. While resorting to bankruptcy provides some relief from financial distress, current law permits utility companies to force these debtors to pay security deposits for continued service even if they were current on their bills before filing for bankruptcy or if they promise to be current on their bills after bankruptcy. Utility companies typically insist that debtors pay at least two months or more of their average bills as a deposit—in addition to requiring that they remain current on their utility bills after bankruptcy—in exchange for the utility continuing to supply service.

H.R. ____, the ''Preventing Termination of Utility Service in Bankruptcy Act of 2014,'' corrects this injustice. It provides that if the debtor remains current on his or her utility bills after filing for bankruptcy relief, the debtor should not have to pay a deposit to the utility to continue service.

In Detroit, for example, families across the city have seen their water rates increase by 119 percent over the past decade. During the same period, the Nation generally and Detroit in particular suffered in the aftermath of a global financial crisis that left one-in-five local residences in foreclosure and sent local unemployment rates skyrocketing.

Fortunately, we are incrementally recovering from the Great Recession of 2008. For those individuals who must seek bankruptcy relief, however, we should ensure that their ability to pay their utility bills going forward is not hindered by unnecessary demands for deposits if these debtors remain current on their payments to these companies.

Terminating a family's access to such life-saving services that keeps the lights on, warms our homes, and ensures that they can bathe, hydrate and prepare meals is simply wrong if these utility bills are being paid on time.

This legislation is part of a range of solutions that are needed to address the still pervasive adverse impacts of the Great Recession of 2008. I continue to work with my colleagues in Congress, state and federal officials, and my constituents to defend the right to water and protect public health. I will not tolerate the notion that—in the 21st Century, in the wealthiest nation on earth—families should go without access to affordable public water and sanitation services.

PERSONAL EXPLANATION

HON. JUDY CHU

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Ms. CHU. Mr. Speaker, on June 26, 2014, I was unavoidably detained from votes due to a conflict. Had I been present on the House floor I would have voted as follows on amendments to H.R. 4899, the Lowering Gasoline Prices to Fuel an America That Works Act: ''no'' on rollcall No. 360, the Wittman/Duncan (SC) Amendment; ''aye'' on rollcall No. 361, the Lowenthal/Capps/Farr/Holt/Honda/Huffman/Langevin/Peters(CA)/Pingree/Shea-Porter/Lee Amendment; ''aye'' on rollcall No. 362, the Capps/Brownley/Huffman/Lowenthal Amendment; ''aye'' on rollcall No. 363, the Deutch Amendment; ''aye'' on rollcall No. 364, the Blumenauer Amendment; ''no'' on rollcall No. 365, the Bishop (UT) Amendment; ''aye'' on rollcall No. 366, the DeFazio Amendment.

A TRIBUTE TO THE JERSEY BOYS . . . THE FOUR SEASONS: A BAND FOR ALL SEASONS . . . DOO WOP DO WA!

HON. BILL PASCRELL, JR.

OF NEW JERSEY

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Mr. PASCRELL. Mr. Speaker, I submit the following poem penned by Albert Carey Caswell.

''Are the stars out tonight''
''it doesn't matter who's wrong or right''
''I've only got eyes for you'' . . .
doo wop do wa!
In the rhythm of our lives . . .
In these moments that we're alive . . .
All in the music of our lives!
Comes these beats,
these rhythms,
and these measures . . .
we all so feel inside . . .
These lyrics . . .
these sounds . . .
which so gives us such pleasure,
all in our strides . . .
All within our hearts,
which so makes us cry . . .
Taking us all so back in time,
to all those moments . . .
we so cherished so deep down inside . . .
Which so ''Stay'' with us,
as so timelessly they do reside!
And no matter where we are,
when we hear them we all so smile . . .
Making us all want to get up and dance,
so all the while!
To move to that beat,
to that music,
to that rhythm,
to that cadence oh so very sweet!
As it was the birth of Rock and Rock,
and doo wop was King as so!
When a King once so ruled the show!
The one who could so shake,
rattle,
and roll!

As Dick Clark,
and The American Band Stand,
so helped that vibe to grow!
As a group of Beatles invaded our coast!
As Motown but meant the most!
And for our Boys in Nam,
marching through those jungles,
it so helped them cope!
As music was everywhere,
touching our very souls there!
When a group of . . .
Jersey Boys let it rip . . . let it go!
Starting out as The Four Lovers . . .
then into The Lovers . . .
Becoming A Band for all The Seasons
those record covers those . . .
And then Franki ''Working It's Way
Back To You''. . . like no others you!
As The Four Seasons . . . oh!
Because ''Breaking Up Is Hard To Do!''
Seasons change but still over,
100 million records have been sold!
As why A Band For All Seasons,
we now know!
FEE . . . FI . . . FO . . . FOM as these Jersey
Giants turned music into GOLD!
With the founding members Franki,
and Bob being raised in the depression,
like a ''RAG DOLL'' it left them with
quite an impression!
Maybe that's why,
their music lift's us all up so!
And there's nothing false,
about Franki's 3 octave voice,
and falsesetto!
As it makes you feel like your in heaven,
even when your in a ghetto . . .
Cutting deep into our hearts like a stiletto!
As to that depression they said,
''Dawn, (Go Away) . . . your no good for
me'' learning life's lessons!
Forming a band,
to so make all their dreams come true!
Knowing,
they had to ''Walk Like A Man'' . . .
and ''talk like a man'' too!
They did not go ''Begging'' as they
knew . . . ''Big Girls Don't Cry'',
and neither do Big Guys too . . ..
Yea ''that's just an alibi . . .
they don't cry''
As to heartache they said ''Bye Bye Baby
(Baby Goodbye)'' . . .
And ''Let's Hang On'' (to what we
got), and ''Don't Think Twice It's
Alright'' . . .
As all in these The Seasons of our lives,
they have left us with such a warm hue!
That's why on any radio station today,
''There's Always Something There To
Remind Me''of The Four Seasons you!
With 46 hits on Billboards Hot 40,
that's true!
Yea, ''I Got You Under My Skin''!
Because your music goes with me
wherever I go, and been!
Yea I, ''Can't Take My Eyes Off Of
You'' nor my ears too!
Yea your music,
Your Just To Good To Be True''
And even ''Ronnie'' . . .
Ronald Reagan loved you!
And after the concert's over,
they'll be crying too,
''Aint That Shame''!
''Oh What A Night'' ''SHERRY''
listening to you!
''Alone (Why Must We Be Alone)''?
Can't you just play one more song?
Because before The New York Giants
moved to Jersey,
this place was already inhabited by Four
Giants who this state so owned!
The Jersey Boys music,
too all our hearts so roamed!
Even The Great One,
Frank from Hoboken,
would have paid many a token to listen to
you and your records to own!
Because in The Seasons of our lives,
all in our thoughts and hearts so deep
down inside . . .
There is some music upon our souls rely!
That when we are feeling low,
gives hearts to rise!
That we will treasure,
and cherish until the day we die!
The Fours Seasons,
are but an important put of all our lives!
And why for so many reasons,
you guys are The Band Four All Seasons!
''Are the stars out tonight'' ''it doesn't
matter who's wrong or right'' ''I've only
got eyes for you'' . . . doo wop do wa!
Oh Jersey Boys how you do what you do
to us so all inside!
Doo wop do waaaaaaaaaaaaaaaaaaaaaaa!

PERSONAL EXPLANATION

HON. MIKE POMPEO

OF KANSAS

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Mr. POMPEO. Mr. Speaker, on rollcall Nos. 381, 385, 389, 390, 393, 394, 395, 396, 397, 398, 399, 400, 402, and 404 I was unavoidably absent. Had I been present, I would have voted "yea."

RECOGNIZING CHIEF TONY SCHNELL AND CAPTAIN KURT IRELAND

HON. TOM REED

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Thursday, July 17, 2014

Mr. REED. Mr. Speaker, I rise today to recognize the decorated careers of Chief Tony Schnell and Captain Kurt Ireland of the Olean Police Department. Longtime members of the department, Chief Schnell and Captain Ireland have a combined 68 years of dedicated service to the Olean community.

Tony Schnell joined the Olean Police Department in 1982 and rose to the rank of chief in 2006. Throughout his 32-year career, Chief Schnell earned the trust and respect of his fellow officers, city leaders, and citizens. During his time with the Olean Police Department, Chief Schnell completed training at the FBI Academy, learning advanced skills and strategies that have positively benefited the department. Throughout his tenure as chief, Mr. Schnell repeatedly fought to secure necessary funding and support for the police department. His career exemplifies the values outlined in the department's mission statement, serving with "integrity, common sense, and sound judgment."

Kurt Ireland joined the Olean Police Department in 1977. He spent the majority of his 36-year career with the department's patrol division, earning promotions to sergeant in 1993 and captain in 1998. While holding these leadership positions, Captain Ireland managed the daily operations of his unit and established department procedures. Captain Ireland was a responsible, dedicated, and hard-working officer who served his community with the highest level of integrity.

I congratulate Chief Tony Schnell and Captain Kurt Ireland on their retirement from the Olean Police Department. We owe these men a debt of gratitude for their combined 68 years of service to the Olean community. Their impressive careers in law enforcement and numerous contributions to our community improved quality of life and made Olean a safer place to live.

Thursday, July 17, 2014

Daily Digest

HIGHLIGHTS

Senate passed S. 2244, Terrorism Risk Insurance Program Reauthorization Act, as amended.

Senate

Chamber Action

Routine Proceedings, pages S4571–S4635

Measures Introduced: Fourteen bills and four resolutions were introduced, as follows: S. 2619–2632, and S. Res. 505–508. **Page S4620**

Measures Reported:

H.R. 4870, making appropriations for the Department of Defense for the fiscal year ending September 30, 2015, with an amendment in the nature of a substitute. (S. Rept. No. 113–211)

Report to accompany S. 517, to promote consumer choice and wireless competition by permitting consumers to unlock mobile wireless devices. (S. Rept. No. 113–212)

S.J. Res. 19, proposing an amendment to the Constitution of the United States relating to contributions and expenditures intended to affect elections, with an amendment in the nature of a substitute. **Page S4618**

Measures Passed:

Terrorism Risk Insurance Program Reauthorization Act: By 93 yeas to 4 nays (Vote No. 231), Senate passed S. 2244, to extend the termination date of the Terrorism Insurance Program established under the Terrorism Risk Insurance Act of 2002, after agreeing to the committee-reported amendments, which will be considered as original text for the purpose of further amendment, after taking action on the following amendments and motion proposed thereto: **Pages S4574–95**

Adopted:

Vitter Amendment No. 3550, to reaffirm the importance of community banking and community banking regulatory experience on the Federal Reserve Board of Governors, to ensure that the Federal Reserve Board of Governors has a member who has previous experience in community banking or community banking supervision. **Pages S4584-85, S4588**

By a unanimous vote of 97 yeas (Vote No. 230), Flake Amendment No. 3551, to establish the Advisory Committee on Risk-Sharing Mechanisms. **Pages S4582-84, S4588-89**

Tester Amendment No. 3552, to reform the National Association of Registered Agents and Brokers. **Pages S4576–82, S4589**

During consideration of this measure today, Senate also took the following action: By 48 yeas to 49 nays (Vote No. 229), three-fifths of those Senators duly chosen and sworn, not having voted in the affirmative, Senate rejected the motion to waive all applicable sections of the Congressional Budget Act of 1974 and applicable budget resolutions for purposes of Coburn Amendment No. 3549, to allow the Secretary to extend the deadline for collecting terrorism loss risk-spreading premiums if the mandatory recoupment is more the $1,000,000,000. Subsequently, the point of order that Coburn Amendment No. 3549 (listed above) was in violation of section 201 of S. Con. Res. 21, the Concurrent Resolution on the Budget for Fiscal Year 2008, was sustained, and the amendment was ruled out of order. **Page S4588**

United States Support for the State of Israel: Senate agreed to S. Res. 498, expressing the sense of the Senate regarding United States support for the State of Israel as it defends itself against unprovoked rocket attacks from the Hamas terrorist organization. **Page S4626**

National Day of the American Cowboy: Committee on the Judiciary was discharged from further consideration of S. Res. 488, designating July 26, 2014, as "National Day of the American Cowboy", and the resolution was then agreed to. **Page S4626**

National Lighthouse and Lighthouse Preservation Day: Senate agreed to S. Res. 507, designating August 7, 2014, as "National Lighthouse and Lighthouse Preservation Day". **Page S4626**

Congressional Research Service Centennial Anniversary: Senate agreed to S. Res. 508, commemorating the centennial anniversary of the establishment of the Congressional Research Service. **Pages S4626–27**

Measures Considered:

Bring Jobs Home Act: Senate began consideration of the motion to proceed to consideration of S. 2569, to provide an incentive for businesses to bring jobs back to America. **Pages S4571–73, S4595–98, S4599–S4604**

Signing Authority—Agreement: A unanimous-consent agreement was reached providing that during the adjournment or recess of the Senate from Thursday, July 17, 2014, through Monday, July 21, 2014, Senators Reed and Rockefeller be authorized to sign duly enrolled bills or joint resolutions. **Page S4627**

Executive Reports of Committees: Senate received the following executive reports of a committee:

Report to accompany The Protocol Amending the Tax Convention with Spain (Treaty Doc. 113–4) (Ex. Rept. 113–10); and

Report to accompany Convention on Taxes with the Republic of Poland (Treaty Doc. 113–5) (Ex. Rept. 113–11). **Pages S4619–20**

Carnes Nomination—Agreement: Senate continued consideration of the nomination of Julie E. Carnes, of Georgia, to be United States Circuit Judge for the Eleventh Circuit. **Page S4599**

During consideration of this nomination today, Senate also took the following action:

By 68 yeas to 23 nays (Vote No. 232), Senate agreed to the motion to close further debate on the nomination. **Page S4599**

A unanimous-consent agreement was reached providing that at 5:30 p.m., on Monday, July 21, 2014, all post-cloture time be expired and Senate vote on confirmation of the nomination. **Page S4573**

Lawson and Reddick Nominations—Agreement: A unanimous-consent-time agreement was reached providing that following disposition of the nomination of Julie E. Carnes, of Georgia, to be United States Circuit Judge for the Eleventh Circuit, on Monday, July 21, 2014, Senate begin consideration of the nominations of Michael Anderson Lawson, of California, for the rank of Ambassador during his tenure of service as Representative of the United States of America on the Council of the International Civil Aviation Organization, and Eunice S. Reddick, of the District of Columbia, to be Ambassador to the Republic of Niger, that there be two minutes for debate equally divided between the two Leaders, or their designees, prior to each vote; that upon the use or yielding back of time, Senate vote, without intervening action or debate, on confirmation of the nominations in the order listed; that any roll call votes, following the first in the series, be 10 minutes in length; and that no further motions be in order to the nominations. **Page S4611**

Birotte, Rosenberg, and DeGravelles Nominations—Agreement: A unanimous-consent-time agreement was reached providing that notwithstanding rule XXII, at 10:45 a.m., on Tuesday, July 22, 2014, Senate vote on the motions to invoke cloture on the nominations of Andre Birotte, Jr., of California, to be United States District Judge for the Central District of California, Robin L. Rosenberg, of Florida, to be United States District Judge for the Southern District of Florida, and John W. deGravelles, of Louisiana, to be United States District Judge for the Middle District of Louisiana, in the order listed; that if cloture is invoked on any of these nominations, that at 2:15 p.m., on Tuesday, July 22, 2014, all post-cloture time be expired, and Senate vote on confirmation of the nominations in the order upon which cloture was invoked; all roll call votes after the first in each sequence be 10 minutes in length; and that there be two minutes for debate prior to each vote. **Page S4611**

Nominations Confirmed: Senate confirmed the following nominations:

David B. Shear, of New York, to be an Assistant Secretary of Defense. **Pages S4599, S4635**

David Arthur Mader, of Virginia, to be Controller, Office of Federal Financial Management, Office of Management and Budget. **Pages S4599, S4635**

Nominations Received: Senate received the following nominations:

Charles C. Adams, Jr., of Maryland, to be Ambassador to the Republic of Finland.

Matthew Vincent Masterson, of Ohio, to be a Member of the Election Assistance Commission for a term expiring December 12, 2017.

Christy A. McCormick, of Virginia, to be a Member of the Election Assistance Commission for a term expiring December 12, 2015.

1 Air Force nomination in the rank of general.

33 Army nominations in the rank of general.

4 Navy nominations in the rank of admiral.

Routine lists in the Air Force, Army, and Navy. **Pages S4628–35**

Messages from the House: **Page S4618**

Measures Referred: **Page S4618**

Measures Read the First Time: **Pages S4618, S4627**

Executive Reports of Committees: **Pages S4619–20**

Additional Cosponsors: **Pages S4620–21**

Statements on Introduced Bills/Resolutions: Pages S4621–24

Additional Statements: Pages S4615–18

Amendments Submitted: Pages S4624–25

Notices of Hearings/Meetings: Page S4625

Authorities for Committees to Meet: Page S4626

Record Votes: Four record votes were taken today. (Total—232) Pages S4588-89, S4599

Adjournment: Senate convened at 9:30 a.m. and adjourned at 6:12 p.m., until 2 p.m. on Monday, July 21, 2014. (For Senate's program, see the remarks of the Majority Leader in today's Record on page S4628.)

Committee Meetings

(Committees not listed did not meet)

BUSINESS MEETING

Committee on Appropriations: Committee ordered favorably reported H.R. 4870, making appropriations for the Department of Defense for the fiscal year ending September 30, 2015, with an amendment in the nature of a substitute.

NOMINATION

Committee on Armed Services: Committee concluded a hearing to examine the nomination of General Joseph F. Dunford, Jr., USMC, for reappointment to the grade of general and to be Commandant of the Marine Corps, Department of Defense, after the nominee testified and answered questions in his own behalf.

GENERAL MOTORS RECALLS

Committee on Commerce, Science, and Transportation: Subcommittee on Consumer Protection, Product Safety, and Insurance concluded a hearing to examine accountability and corporate culture in wake of the General Motors recalls, after receiving testimony from Kenneth R. Feinberg, Feinberg Rozen, LLP, Washington, DC; Mary T. Barra, and Michael P. Millikin, both of the General Motors Company, Detroit, Michigan; Rodney O'Neal, Delphi Automotive, Gillingham, United Kingdom; and Anton R. Valukas, Jenner and Block LLP, Chicago, Illinois.

FEDERAL RESEARCH PORTFOLIO

Committee on Commerce, Science, and Transportation: Committee concluded a hearing to examine the Federal research portfolio, focusing on capitalizing on investments in research and development, after receiving testimony from Vinton G. Cerf, Google, Reston, Virginia; Mariette DiChristina, *Scientific American*, New York, New York; Neal Lane, Rice University's Baker Institute for Public Policy, Houston, Texas, on behalf of The American Academy of Arts and Sciences Committee on New Models for U.S. Science and Technology Policy; and Stephen E. Fienberg, Carnegie Mellon University, Pittsburgh, Pennsylvania.

21ST CENTURY MANUFACTURING

Committee on Finance: Committee concluded a hearing to examine the role of trade and technology in 21st century manufacturing, after receiving testimony from Jacklyn A. Sturm, Intel Corporation, Santa Clara, California; Ray Kimber, RKB Industrial and Kimber Kable, Ogden, Utah, on behalf of the Consumer Electronics Association; and Stephen J. Ezell, Information Technology and Innovation Foundation, Washington, DC.

UNACCOMPANIED MINORS IN CENTRAL AMERICA

Committee on Foreign Relations: Committee concluded a hearing to examine Central America in crisis and the exodus of unaccompanied minors, after receiving testimony from Thomas A. Shannon, Counselor of the Department of State; Bruce Swartz, Deputy Assistant Attorney General, and Counselor for International Affairs, Criminal Division, Department of Justice; and Sonia Nazario, Kids in Need of Defense (KIND), Cynthia J. Arnson, Woodrow Wilson International Center for Scholars, and Stephen Johnson, International Republican Institute, all of Washington, DC.

NOMINATIONS

Committee on Foreign Relations: Committee concluded a hearing to examine the nominations of Marcia Stephens Bloom Bernicat, of New Jersey, to be Ambassador to the People's Republic of Bangladesh, David Pressman, of New York, to be Alternate Representative of the United States of America for Special Political Affairs in the United Nations, with the rank of Ambassador, and to be an Alternate Representative to the Sessions of the General Assembly of the United Nations, during his tenure of service as Alternate Representative for Special Political Affairs in the United Nations, George Albert Krol, of New Jersey, to be Ambassador to the Republic of Kazakhstan, Allan P. Mustard, of Washington, to be Ambassador to Turkmenistan, and Erica J. Barks Ruggles, of Minnesota, to be Ambassador to the Republic of Rwanda, all of the Department of State, after the nominees testified and answered questions in their behalf.

NEED TO IMPROVE PATIENT SAFETY

Committee on Health, Education, Labor, and Pensions: Subcommittee on Primary Health and Aging concluded a hearing to examine the need to improve patient safety and reduce preventable deaths, after receiving testimony from John T. James, Patient Safety America, Houston, Texas; Ashish K. Jha, Harvard School of Public Health, and Tejal K. Gandhi, Harvard Medical School, both of Boston, Massachusetts; Peter Pronovost, Johns Hopkins Medicine Armstrong Institute for Patient Safety and Quality, Baltimore, Maryland; Joanne Disch, University of Minnesota School of Nursing, Minneapolis; and Lisa McGiffert, Consumers Union, Austin, Texas.

BUSINESS MEETING

Committee on the Judiciary: Committee ordered favorably reported the nominations of Pamela Harris, of Maryland, to be United States Circuit Judge for the Fourth Circuit, Pamela Pepper, to be United States District Judge for the Eastern District of Wisconsin, Brenda K. Sannes, to be United States District Judge for the Northern District of New York, and Patricia M. McCarthy, of Maryland, and Jeri Kaylene Somers, of Virginia, both to be a Judge of the United States Court of Federal Claims.

INTELLIGENCE

Select Committee on Intelligence: Committee held closed hearings on intelligence matters, receiving testimony from officials of the intelligence community.

Committee recessed subject to the call.

House of Representatives

Chamber Action

Public Bills and Resolutions Introduced: 29 public bills, H.R. 5129–5157; and 4 resolutions, H. Con. Res. 108; and H. Res. 673–675 were introduced. **Pages H6397–99**

Additional Cosponsors: **Pages H6399–H6400**

Reports Filed: Reports were filed today as follows:

H. Res. 645, requesting that the President of the United States transmit to the House of Representatives copies of any emails in the possession of the Executive Office of the President that were transmitted to or from the email account(s) of former Internal Revenue Service Exempt Organizations Division Director Lois Lerner between January 2009 and April 2011; Adversely (H. Rept. 113–524);

H. Res. 647, directing the Secretary of the Treasury to transmit to the House of Representatives copies of any emails in the possession of the Department that were transmitted to or from the email account(s) of former Internal Revenue Service Exempt Organizations Division Director Lois Lerner between January 2009 and April 2011; Adversely (Rept. 113–525);

H.R. 3393, to amend the Internal Revenue Code of 1986 to consolidate certain tax benefits for educational expenses, and for other purposes, with an amendment (H. Rept. 113–526);

H.R. 4935, to amend the Internal Revenue Code of 1986 to make improvements to the child tax credit, with an amendment (H. Rept. 113–527);

H.R. 3202, to require the Secretary of Homeland Security to prepare a comprehensive security assessment of the transportation security card program, and for other purposes, with an amendment (H. Rept. 113–528);

H.R. 3136, to establish a demonstration program for competency-based education, with an amendment (H. Rept. 113–529);

H.R. 4983, to simplify and streamline the information regarding institutions of higher education made publicly available by the Secretary of Education, and for other purposes, with an amendment (H. Rept. 113–530);

H.R. 4984, to amend the loan counseling requirements under the Higher Education Act of 1965, and for other purposes, with an amendment (H. Rept. 113–531);

H.R. 3716, to ratify a water settlement agreement affecting the Pyramid Lake Paiute Tribe, and for other purposes (H. Rept. 113–532);

H.R. 4283, to amend the Wild and Scenic Rivers Act to authorize the Secretary of the Interior to maintain or replace certain facilities and structures for commercial recreation services at Smith Gulch in Idaho, and for other purposes, with an amendment (H. Rept. 113–533);

H.R. 4508, to amend the East Bench Irrigation District Water Contract Extension Act to permit the Secretary of the Interior to extend the contract for certain water services (H. Rept. 113–534);

H.R. 4527, to remove a use restriction on land formerly a part of Acadia National Park that was

transferred to the town of Tremont, Maine, and for other purposes (H. Rept. 113–535);

H.R. 4562, to authorize early repayment of obligations to the Bureau of Reclamation within the Northport Irrigation District in the State of Nebraska (H. Rept. 113–536);

H.R. 4315, to amend the Endangered Species Act of 1973 to require publication on the Internet of the basis for determinations that species are endangered species or threatened species, and for other purposes, with an amendment (H. Rept. 113–537);

H.R. 4316, to amend the Endangered Species Act of 1973 to improve the disclosure of certain expenditures under that Act, and for other purposes, with an amendment (H. Rept. 113–538);

H.R. 4317, to amend the Endangered Species Act of 1973 to require disclosure to States of the basis of determinations under such Act, to ensure use of information provided by State, tribal, and county governments in decisionmaking under such Act, and for other purposes (H. Rept. 113–539); and

H.R. 4318, to amend the Endangered Species Act of 1973 to conform citizen suits under that Act with other existing law, and for other purposes (H. Rept. 113–540, Pt. 1). **Page H6397**

Motion to Instruct Conferees: The House rejected the Gallego motion to instruct conferees on H.R. 3230 by a yea-and-nay vote of 201 yeas to 213 nays, Roll No. 430. The motion was debated yesterday, July 16th. **Pages H6363–64**

Fighting Hunger Incentive Act of 2014: The House passed H.R. 4719, to amend the Internal Revenue Code of 1986 to permanently extend and expand the charitable deduction for contributions of food inventory, by a yea-and-nay vote of 277 yeas to 130 nays, Roll No. 432. **Pages H6357–78**

Rejected the Van Hollen motion to recommit the bill to the Committee on Ways and Means with instructions to report the same back to the House forthwith with an amendment, by a yea-and-nay vote of 185 yeas to 227 nays, Roll No. 431.

Pages H6375–78

Pursuant to the rule, an amendment in the nature of a substitute consisting of the text of Rules Committee Print 113–51 shall be considered as adopted, in lieu of the amendment in the nature of a substitute recommended by the Committee on Ways and Means now printed in the bill. **Page H6364**

H. Res. 670, the rule providing for consideration of the bill, was agreed to by a recorded vote of 230 ayes to 183 noes, Roll No. 429, after the previous question was ordered by a yea-and-nay vote of 226 yeas to 186 nays, Roll No. 428. **Pages H6362–63**

Motion to Instruct Conferees: The House debated the Barber motion to instruct conferees on H.R. 3230. Further proceedings were postponed.

Pages H6380–83

Meeting Hour: Agreed that when the House adjourns today, it adjourn to meet at 11 a.m. tomorrow, July 18th; and when the House adjourns on that day, it adjourn to meet on Tuesday, July 22nd at 12 noon for Morning Hour Debate and 2 p.m. for legislative business. **Page H6383**

Providing for the correction of the enrollment of H.R. 5021: The House agreed by unanimous consent to H. Con. Res. 108, to provide for the correction of the enrollment of H.R. 5021. **Page H6391**

Senate Messages: Messages received from the Senate today appear on pages H6364 and H6396.

Senate Referral: S. 2244 was held at the desk.

Page H6396

Quorum Calls—Votes: Four yea-and-nay votes and one recorded vote developed during the proceedings of today and appear on pages H6362–63, H6363, H6364, H6377–78 and H6378. There were no quorum calls.

Adjournment: The House met at 9 a.m. and adjourned at 3:16 p.m.

Committee Meetings

RUSSIAN VIOLATIONS OF THE INF TREATY: AFTER DETECTION—WHAT?

Committee on Armed Services: Subcommittee on Strategic Forces held a hearing entitled "Russian Violations of the INF Treaty: After detection—what?". Testimony was heard from public witnesses.

THE PRESIDENT'S FUNDING REQUEST FOR OVERSEAS CONTINGENCY OPERATIONS

Committee on the Budget: Full Committee held a hearing entitled "The President's Funding Request for Overseas Contingency Operations". Testimony was heard from Heather Higginbottom, Deputy Secretary for Management and Resources, Department of State; Robert O. Work, Deputy Secretary, Department of Defense; and Admiral James A. Winnefeld, Jr., Vice Chairman, Joint Chiefs of Staff, Department of Defense.

21ST CENTURY TECHNOLOGY FOR 21ST CENTURY CURES

Committee on Energy and Commerce: Subcommittee on Communications and Technology; and Subcommittee on Health held a joint subcommittee hearing entitled "21st Century Technology for 21st Century Cures". Testimony was heard from public witnesses.

A LEGISLATIVE PROPOSAL ENTITLED THE "BANK ACCOUNT SEIZURE OF TERRORIST ASSETS (BASTA) ACT"

Committee on Financial Services: Subcommittee on Monetary Policy and Trade held a hearing entitled "A Legislative Proposal Entitled the 'Bank Account Seizure of Terrorist Assets (BASTA) Act' ". Testimony was heard from Jennifer Fowler, Deputy Assistant Secretary for Terrorist Financing and Financial Crime, Department of the Treasury; Marshall L. Miller, Acting Principal Deputy Assistant Attorney General and Chief of Staff, Department of Justice; and public witnesses.

GUILTY UNTIL PROVEN INNOCENT? A STUDY OF THE PROPRIETY & LEGAL AUTHORITY FOR THE JUSTICE DEPARTMENT'S OPERATION CHOKE POINT

Committee on the Judiciary: Subcommittee on Regulatory Reform, Commercial and Antitrust Law held a hearing entitled "Guilty until Proven Innocent? A Study of the Propriety & Legal Authority for the Justice Department's Operation Choke Point". Testimony was heard from Stuart F. Delery, Assistant Attorney General, Civil Division, Department of Justice; and public witnesses.

EXAMINING THE JUSTICE DEPARTMENT'S RESPONSE TO THE IRS TARGETING SCANDAL

Committee on Oversight and Government Reform: Subcommittee on Economic Growth, Job Creation and Regulatory Affairs held a hearing entitled "Examining the Justice Department's Response to the IRS Targeting Scandal". Testimony was heard from James M. Cole, Deputy Attorney General, Department of Justice.

POLICIES TO SPUR INNOVATIVE MEDICAL BREAKTHROUGHS FROM LABORATORIES TO PATIENTS

Committee on Science, Space, and Technology: Subcommittee on Research and Technology held a hearing entitled "Policies to Spur Innovative Medical Breakthroughs from Laboratories to Patients". Testimony was heard from Harold Varmus, Director, National Cancer Institute, National Institutes of Health; and public witnesses.

ONGOING INTELLIGENCE ACTIVITIES

House Permanent Select Committee on Intelligence: Full Committee held a hearing entitled "Ongoing Intelligence Activities". This was a closed hearing.

Joint Meetings

No joint committee meetings were held.

NEW PUBLIC LAWS

(For last listing of Public Laws, see DAILY DIGEST, *p. D742)*

H.R. 2388, to take certain Federal lands located in El Dorado County, California, into trust for the benefit of the Shingle Springs Band of Miwok Indians. Signed on July 16, 2014. (Public Law 113–127)

COMMITTEE MEETINGS FOR FRIDAY, JULY 18, 2014

(Committee meetings are open unless otherwise indicated)

Senate

No meetings/hearings scheduled.

House

No hearings are scheduled.

Next Meeting of the SENATE

2 p.m., Monday, July 21

Senate Chamber

Program for Monday: After the transaction of any morning business (not to extend beyond 5:30 p.m.), Senate will vote on confirmation of the nominations of Julie E. Carnes, of Georgia, to be United States Circuit Judge for the Eleventh Circuit, Michael Anderson Lawson, of California, for the rank of Ambassador during his tenure of service as Representative of the United States of America on the Council of the International Civil Aviation Organization, and Eunice S. Reddick, of the District of Columbia, to be Ambassador to the Republic of Niger.

Next Meeting of the HOUSE OF REPRESENTATIVES

11 a.m., Friday, July 18

House Chamber

Program for Friday: The House will meet in pro forma session at 11 a.m.

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